

POLICY MANUAL
OF THE GOVERNING AUTHORITY OF

COMMUNITY STE(A)M ACADEMY – XENIA



Community STE[A]M Academy

———— X E N I A ————

Main Table of Contents

0000 – Definitions and Interpretative Guidelines for the School Manual	1
Section I: Governing Authority.....	4
1100 – Foundation Subsection	4
1110 – Mission Statement	4
1120 – Statement of Vision.....	5
1200 – Authority Subsection.....	6
1210 – Legal Authority	6
1220 – General Powers of the Governing Authority.....	7
1230 – Additional Powers of the Governing Authority.....	8
1300 – Code of Regulations Subsection.....	9
1300.1 – Code of Regulations	10
ARTICLE I. GENERAL PROVISIONS.....	13
Section 1. Name and Structure	13
Section 2. Mission	13
Section 3. Purpose.....	13
Section 4. Fiscal Year	13
ARTICLE II. BOARD OF TRUSTEES	13
Section 1. Powers.....	13
Section 2. Members	13
Section 3. Number.....	14
Section 4. Term of Office.....	14
Section 5. New Members	14
Section 6. Qualifications.....	14
Section 7. Rights and Responsibilities	14
Section 8. Resignation	14
Section 9. Removal.....	15
Section 10. Vacancies.....	15
ARTICLE III. MEETINGS	15
Section 1. Open Meeting Law	15
Section 2. Annual Meetings	15
Section 3. Regular Meetings	15
Section 4. Special Meetings	16
Section 5. Notice of Meetings	16
Section 6. Executive Session	17
Section 7. Quorum and Voting	17
Section 8. Ex Officio and Non-voting Members	17
Section 9. Recusal and Duty to Disclose.....	17
Section 10. Minutes	18
Section 11. Rules of Order	18
ARTICLE IV. COMPENSATION AND PERSONAL LIABILITY	18
Section 1. Compensation	18
Section 2. No Personal Liability	18

ARTICLE V. OFFICERS.....	18
Section1. Number	18
Section 2. Election and Term	18
Section 3. Resignation, Removal, and Vacancy.....	19
Section 4. Authority	19
Section 5. Board Chair.....	19
Section 6. Vice Chair.....	19
Section 7. Treasurer	19
Section 8. Secretary.....	20
Section 9. Chief Administrative Officer	20
Section 10. Other Officers.....	20
ARTICLE VI. COMMITTEES	20
Section 1. Committee Overview	20
Section 2. Governance Committee	21
Section 3. Development Committee	21
Section 4. Finance Committee	21
Section 5. Academic Excellence (a.k.a. Curriculum) Committee	22
Section 6. Chief Administrative Officer Support and Evaluation Committee	22
Section7. Task Force “Ad Hoc Committees”	22
ARTICLE VII. STAFF.....	22
Section 1. Chief Administrative Officer	22
ARTICLE VIII. STUDENTS	23
Section 1. Admission and Non-discrimination Statement	23
ARTICLE IX. MISCELLANEOUS	23
Section 1. Amendments	23
Section 2. Indemnification	23
Section 3. Insurance	24
Section 4. Dissolution.....	24
Section 5 - Use of Electronic Mail	24
ARTICLE X. ETHICS AND CONFLICTS OF INTEREST.....	24
Section 1.....	24
EXHIBIT A. CSA-XENIA’S ETHICS AND CONFLICT OF INTEREST POLICY	25
Article I. Policy Statement.....	25
Article II. General Standards of Ethical Conduct.....	25
Article III. Financial Disclosure	26
Article IV. Ethics Procedure.....	26
Article V. Assistance	26
Article VI. Penalties	27
Article VII. Amendments	27
1400 – Governing Authority Members Subsection	28
1410 – Eligibility and Background Check	28
1420 – New Member Orientation.....	29
1440 – Reimbursement of Governing Authority Members	30
1450 – Ethics and Conflicts of Interest Policy	31
1450.1 – Annual Statement of Disclosure	33

1460 – Mandatory Periodic Ethical Review	34
1470 – Governing Authority Members; Qualifications	35
1500 – Governing Authority Meetings	36
1510 – Public Meetings and Notification.....	36
1511 – Virtual Meetings and Hearings.....	38
1520 – Executive Sessions.....	40
1530 – Parliamentary Procedure	41
1540 – Method of Voting.....	42
1550 – Minutes of the Governing Authority Meetings.....	43
1560 – Attendance at Governing Authority Meetings.....	44
1570 – Public Participation at Governing Authority Meetings	45
1600 – Other Managing Entities	47
1620 – Authority to Designate Fiscal Officer	47
1640 – Sunshine Law and Open Meeting Training	48
1700 – Duties of the Governing Authority.....	49
1710 – Development, Revision, and Distribution of Policies	49
1730 - Duty to Report Certain School Information.....	50
1740 – Public Records Policies	51
1741 – Public Records Access Policy.....	51
1741.1 – Public Record Access Poster	53
1741.2 – Acknowledgment of Receipt of Public Records Access Policy	54
1742 – Internet Public Record Redaction Policy.....	55
1742.1 – Request to Redact Personal Information.....	56
1743 – Retention, Management, and Disposal of Records	59
1743.1 – Schedule of Records Retention and Disposition.....	62
1743.2 – Certificate of Records Disposal	83
1750 – Financial Duties and Responsibilities	87
1752 – Financial Reporting	87
1753 – School Asset Policy.....	88
1754 – Audit Sub-committee	91
1755 – Purchasing and Proper Public Purpose	92
1756 – Credit Cards.....	94
1757 - Duties and Responsibilities Related to Federal Grants.....	97
1758 – Insurance Coverage.....	111
1759 – Crowdfunding.....	112
1760 - Use of Cell Phones for School Purposes	114
1770 – Procedures Related to Independent Contractors	116
1800 – Program-Related Duties and Other Managing Entities	118
1810 – Development of Administrative Rules, Guidelines, and Procedures	118
1820 – Job Description Database.....	119
1830 – Development of School Curriculum	120
1850 – Electronic Records and Signatures.....	121
1860 – Prohibition Against Requiring Specific Beliefs, Affiliations, Ideals, Political Principles, or Ideology.....	123
Section II: Support Services and Safety Policies.....	124

2100 – Food Services Subsection.....	124
2110 – Food Services Program.....	124
2120 – Federal Nutrition Programs.....	126
2130 – Wellness Policy.....	127
2140 – Nutritional Standards.....	130
2150 – Nutritional Guidelines.....	132
2200 – General Wellness Services.....	134
2210 – Health Screenings.....	134
2220 – Immunization Requirements.....	135
2220.1 – Immunization Summary for School Attendance Ohio.....	137
2230 – Medication Administration.....	139
2230.1 – Medication Request Form.....	141
2230.2 – Authorization of Non-Prescribed (Over-the-Counter) Medication.....	142
2231 – Student Use of Medical Marijuana.....	144
2240 – Student Use of Inhalers and Epinephrine Auto-Injectors.....	145
2240.1 – Permission to Carry and Self-Administer Asthma Inhaler.....	149
2240.2 – Permission to Carry and Self-Administer Epinephrine Auto Injector.....	150
2240.5 – Model Emergency Action Plan for the Use of an Automated External Defibrillator (AED) Permission.....	151
2241 – Procurement of Epinephrine Auto-Injectors by Schools.....	155
2242 – Procurement of Asthma Inhalers by School.....	157
2243 – Seizure Action Plan.....	159
2250 – Known Food Allergies.....	161
2250.1 – Notification of Known Food Allergy.....	163
2260 – Physical Activity Waiver and Consent.....	164
2260.1 – Physical Activity Waiver and Consent Form.....	165
2270 – Diabetic Care.....	166
2280 – Student Wellness and Success Program.....	168
2290 – Animals on School Property.....	170
2300 – General Health and Safety Policies Subsection.....	174
2310 – Hand Washing Requirements.....	174
2310.1 – Hand Washing Sign.....	176
2320 – Personal Safety.....	177
2330 – Equipment Safety.....	178
2340 – Face Coverings to Reduce the Spread of COVID-19.....	179
2350 – Feminine Hygiene Products.....	180
2400 – Emergency and Other Medical Policies.....	181
2410 – Student Medical Emergencies.....	181
2410.1 – Emergency Medical Authorization Form.....	183
2420 – Communicable Diseases.....	185
2430 – Direct-Contact Communicable Diseases.....	186
2440 – Bodily Fluid Exposure Control.....	187
2440.1 – Bodily Fluid Exposure Report.....	188
2450 – Head Lice.....	189
2450.1 – Parental/Guardian Notification and Treatment Letter.....	190
2450.2 – Head Lice Class Notification.....	192

2450.3 – Re-Admission Denial Letter.....	193
2460 – Administration of Naloxone	194
2460.1 – Protocol for the Administration of Naloxone	195
2470 – Off-Site/Remote Access Work During an Emergency	196
2480 – COVID-19 Case Reporting.....	197
2490 – Cybersecurity	198
2490.1 – Resolution for Cybersecurity	200
2500 – Environmental Safety.....	201
2510 – Compliance with Federal and State Safety Programs	201
2520 – Chemical Hazard Communication Program	202
2521 – Integrated Pest Management Policy.....	204
2530 – OSHA Exposure Control Plan.....	207
2540 – Asbestos Hazards	208
2540.1 – Model Asbestos Management Plan	209
2550 – Lead Poisoning Prevention.....	210
2550.1 – Lead Poisoning Prevention Brochure.....	211
2560 – Chemical Hygiene.....	212
2560.1 – Chemical Hygiene Plan.....	213
2560.2 – Acknowledgement of Receipt of Chemical Hygiene Plan	219
2570 – Hazard Review and Inspection	220
2580 – School Calamity	221
2600 – Building Security.....	222
2610 – Building and Grounds Security	222
2620 – School Safety/Emergency Management Plan	224
2620.1 – Ohio School Behavioral Threat Assessment Model Policy and Protocol	227
2630 – Crisis Management and Response Plan	250
2640 – Emergency Evacuation Drills	253
2640.1 – Record of Emergency Evacuation Drills	255
2650 – Bomb Threats	256
2650.1 – Bomb Threat Call Checklist	258
2660 – Weapons Policy	260
2660.1 – Notice Prohibiting Weapons	261
2670 – Public Conduct on School Property.....	262
2680 – Transportation	263
2680.1 – General Transportation Rules	266
2680.2 – School Bus Inspections.....	268
2680.3 – School Bus Emergency and Evacuation Procedures	271
2681 – Transportation Code of Conduct.....	273
2690 – Anonymous Tip Line	274
Section III: Instructional Duties and Obligations.....	275
3100 Federal Program Compliance.....	275
3110 – Equal Educational Opportunity	275
3120 – Title IX Compliance and Grievance Procedure	276
3120.1 – Title IX Sexual Harassment Incident Reporting Form	289
3130 – Title I Compliance.....	293
3130.1 – Title I Grievance Procedure.....	294

3130.2 – Title I/Title IX Complaint	295
3140 – Title V Required Cooperation.....	296
3200 – Curriculum Standards.....	297
3210 – General Curriculum Standards	297
3220 – School Reform Standards	298
3230 – Qualified Educators	299
3240 – Reading Standards.....	300
3250 – Dyslexia Screenings and Multi-Sensory Structured Literacy Certification	301
3300 – Parental Involvement.....	304
3310 – Parental Involvement and Participation	304
3320 – Title I Parental Involvement Policy.....	306
3320.1 – Model School-Parent Compact	308
3330 – Parent’s Right-to-Know	310
3330.1 – Parent’s Right-to-Know Letter	311
3330.2 – Parent Notification Regarding Your Student’s Teacher	312
3340 – Parent Rights under the Protection of Pupil Rights Amendment (PPRA)	313
3340.1 – Notification of Rights - Protection of Pupil Rights Amendment (PPRA)	316
3400 – School and Program Assessment	318
3420 – Annual Reporting Requirements.....	318
3440 – National Assessment of Educational Progress	320
3450 – Financial Needs Assessment	321
3500 – Admission, Retention, and Graduation.....	322
3510 – Enrollment.....	322
3511 – Admission Procedure	322
3511.1 – Enrollment Information	323
3512 – Kindergarten Admission.....	326
3512.1 – Early Entrance To Kindergarten	327
3515 – Required Documents Upon Admission	329
3515.1 – Grandparent Power of Attorney	331
3515.2 – Caretaker Authorization Affidavit	336
3515.3 – Records Request of Certain Students	340
3515.4 – Records Request of Transferring Students	341
3516.1 – Identification of Homeless Children and Youth Form.....	345
3516.2 – Appeal of School’s Enrollment Decision	347
3520 – School Assessments	348
3521 – Assessing Student Progress.....	348
3522 – Grading Policy	350
3530 – State Assessments.....	353
3531 – State Assessments & Support	353
3532 – State Assessments Security & Ethics.....	358
3533 – Standards for the Ethical Use of Tests	360
3533.1 – Standards for the Ethical Use of Tests Acknowledgement	363
3534 – Report of State Assessment Scores	364
3540 – Promotion and Retention of Students	366
3550 – Core Curriculum Requirements.....	368
3550.1 – Ohio Core Curriculum Requirements – Notification	369

3551 – Criteria for Awarding a Diploma with Honors.....	376
3552 – Ohio Means Jobs Readiness Seal	377
3560 – Academic Acceleration, Early Entrance To Kindergarten, & Early High School Graduation.....	378
3570 – Released Time Courses in Religious Instruction.....	382
3570.1 – Consent for Released-Time Courses in Religious Instruction	384
3580 – Sexual Abuse/Violence Prevention Instruction.....	385
3580.1 – Annual Sexual Abuse/Sexual Violence Prevention Notification	386
3600 – Specialized Instruction Programs.....	387
3610 – Program to Prevent Dropouts and Promote Reentry	387
3620 – Credit Flexibility Plan.....	388
3630 – School to Work Program	392
3640 – Migrant Students Program.....	393
3650 – Assisting English Language Learners and Immigrant Students	394
3650.1 – Guidelines for the Identification and Assessment of Limited English Proficient Students	395
3660 – Advanced Placement Program.....	408
3670 – College Credit Plus	409
3670.1 – College Credit Plus Counseling.....	413
3670.2 – College Credit Plus Enrollment Program Counseling.....	414
3680 – Policy on Career Advising.....	415
3680.1 – Resolution for College and Career Readiness and Financial Literacy	417
3680.2 – Student Success Plan.....	418
3691 – Instruction on Proper Interactions with Peace Officers.....	429
3700 – Individuals with Disabilities.....	430
3710 – Rights of Individuals with Disabilities.....	430
3710.1 – Special Education Policies & Procedures	432
3710.2 – Independent Educational Evaluation.....	433
3720 – Section 504 of the Rehabilitation Act of 1973	436
3730 – Alternate State Assessments for Students with Disabilities	439
3730.1 – Alternate Assessments for Students with Cognitive Disabilities Decision Framework & Tool	441
3740 – Child Find Responsibilities.....	442
3740.1 – Child Find Notice	443
3800 – Miscellaneous Policies	444
3810 – Communicating the School’s Suspension & Expulsion Policy	444
3810.1 CSA-Xenia’s Notice of Emergency Removal	445
3810.2 – CSA-Xenia’s Notice of Intent To Suspend	446
3810.3 – CSA-Xenia’s Notice of Suspension - Student.....	447
3810.4 – CSA-Xenia’s Notice of Suspension – Parent/Guardian.....	449
3810.5 – CSA-Xenia’s Notice Of Intent To Expel.....	451
3810.6 – CSA-Xenia’s Notice Of Expulsion.....	452
3810.7 – CERTIFICATION	456
3820 – Resolving Issues with Attendance.....	457
3820.1 – Attendance Corrective Action Plan.....	458
3830 – Records Policies.....	459
3831 – Student Records and Release of Information	459
3831.1 – Family Educational Rights and Privacy Act (FERPA) Notice for Directory Information.....	463

3831.2 – Request and Consent for Release of Records	468
3832 – Confidential & Public Records.....	469
3833 – Tracking Missing Children	470
3833.1 – Missing Child Report “Marking” Form	471
3840 – Controversial Topics.....	472
3841 – Religion and Prayer	472
3842 – Sexual Education & Contraceptives	474
3843 – Obscene Materials	475
3850 – Displaying Mottos of the United States and Ohio	476
3860 – Boy Scouts and Patriotic Youth Groups	477
3870 – Constitution Day.....	478
3890 – Single-Sex Facilities and Accommodations	479
Section IV: Student-Parent Handbook	481
4000 – Introduction	481
4001 – Welcome	481
4100 – Overview	482
4101 – Mission Statement	482
4102 – Philosophy and Vision Statement	483
4103 – Harassment and Sexual Harassment.....	485
4104 – Policy on Harassment, Intimidation, and Bullying	486
4104.1 – Notification of Bullying Incident Form	489
4105 – Anti-Hazing Policy.....	490
4106 – Policy on Gang Activity & Other Prohibited Groups	491
4200 – Attendance.....	492
4201 – Attendance, Absence & Truancy.....	492
4300 – Graduation	503
4301 – Graduation Requirements.....	503
4301.1 – Overview Handouts Graduation Requirements for Students	512
4302 – Graduation Plans/ Students at Risk of Not Qualifying for a High School Diploma	513
4400 – Student Code of Conduct	515
4410 – Student Code of Conduct	515
4410.1 – Student Bill of Rights and Responsibilities.....	527
4420 – Dress and Grooming.....	528
4430 – Internet & Technology Acceptable Use	531
4440 – Use of Mobile Electronic Devices and Cameras.....	534
4450 – Student Symbolic Expression	536
4460 – Assembling & Disorder	537
4470 – Drugs, Alcohol, and Tobacco.....	538
4480 – Pregnant Students & Students with Children	541
4490 – Search and Seizure	542
4500 – Student Discipline	544
4510 – Tiered Student Discipline Program	544
4520 – Transportation Discipline	548
4530 – Suspension & Expulsion Policy	549
4540 – Disciplining a 504 Student.....	561

4550 – Suspension & Expulsion for Students with Disabilities	562
4560 – Positive Behavior Intervention Supports, Restraint, Seclusion, and Prohibited Practices	565
4600 – Student Activities	570
4610 – Student Publications Sponsored by the School	570
4620 – Student Groups & Activities	571
4630 – School-Sponsored Trips.....	572
4630.1 – Field Trip Permission Form	573
4640 – Fundraising Activities and Projects	574
4650 – Use of School Facilities by Non-School Sponsored Clubs & Activities	575
4660 – Student Employment	576
4670 – Student Violence Prevention Club	577
4680 – Ticketing at School-Affiliated Events.....	578
4690 – Discretionary Participation in Interscholastic Athletics for Unenrolled Students	579
Section V: Personnel Handbook.....	580
5000 – Introduction	580
5010 – Welcome	580
5020 – About this Handbook	581
5020.1 – Employee Acknowledgment Form	582
5030 – Mission Statement	583
5040 – Philosophy and Vision	584
5050 – Equal Opportunity	586
5060 – Non-Discrimination Policy.....	587
5070 – Anti-Harassment Policy	588
5070.1 – Reporting Acts of Harassment	590
5080 – Whistleblower Policy.....	591
5080.1 – Notice of Whistleblower Rights	592
5081 – Fraud Reporting and Training	593
5100 – Employment Prerequisites.....	594
5110 – General Employment Eligibility.....	594
5110.1 – I-9 Employment Eligibility Form	596
5111 – Employee Misconduct.....	597
5120 – Employee Designations.....	598
5130 – Teacher Requirements	599
5140 – Substitute Teachers.....	600
5150 – Educational Assistants.....	601
5160 – Other Employees.....	602
5200 – Legal Employment Status.....	603
5210 – Scheduling and Work Hours.....	603
5220 – Organizational Communications.....	604
5230 – Reductions in Staff	605
5240 – Resignation.....	606
5300 – Compensation and Benefits.....	607
5310 – Compensation and Benefits Overview.....	607
5320 – Salary	608
5330 – Benefits	610

5340 – Paid School Holidays	612
5350 – Time Off.....	613
5360 – Family Medical Leave Act Policy	616
5370 – Severance Pay Policy: Classified Staff	620
5400 – Behavioral Expectations and Responsibilities.....	621
5410 – Behavioral Expectations.....	621
5411 – Dress and Grooming	621
5412 – Social Computing	623
5413 – Mobile Phone Use.....	624
5414 – Receiving Gifts.....	625
5415 – Conflicts of Interest.....	626
5420 – Drugs and Alcohol Policies	627
5420.1 – No Smoking Sign	633
5430 – Encountering Threatening Behavior	634
5440 – Student Responsibilities and Obligations.....	635
5441 – Staff & Student Boundaries	635
5442 – School Safety.....	637
5443 – Reporting Accidents & Treating Injuries	638
5443.1 – Accident Report Form.....	639
5444 – Reporting Suspected and Actual Child Abuse & Neglect/Suicide Awareness Training	640
5445 – Student Transportation in a Private Vehicle	643
5445.1 – Request for Authorization to Transport Students in a Private Vehicle.....	644
5445.2 – Student Transportation in a Private Vehicle.....	645
5445.3 – Authorized Driver Form	646
5450 – Administrative Responsibilities.....	647
5451 – Contracts & Leasing; Purchasing.....	647
5452 – Reimbursement of Staff Members	648
5453 – School Equipment – Use and Return	649
5453.1 – School Equipment Use – Authorization	651
5454 – Software and Copyright Issues.....	652
5500 – Discipline	655
5510 – General Employee Discipline Policy	655
5520 – Tiered Discipline System	656
5530 – Discharge/Termination	657
5540 – Reporting Licensed Employee Misconduct	658
5540.1 – Educator Misconduct Reporting Form.....	661
5550 – Pre-employment Applications and Screening Process.....	662
5600 – Employee Development.....	664
5610 – General Employee Learning/Development.....	664
5620 – Ohio Teacher Residency Program	665
5630 – Staff Performance Review.....	666
5640 – Teacher Evaluation.....	667
5650 –Performance Improvement Plans.....	671
5660 – Professional Growth & Development	672
5670 – Tuition Assistance Plan.....	674
5670.1 – Tuition Assistance Plan (TAP) Application	676

5670.2 – Tuition Assistance Plan (TAP) Reimbursement Form.....	677
5700 – Employee Medical Policies.....	678
5710 – Employee Medical Information and Examinations	678
5720 – Communicable Disease Prevention and Safety	679
5730 – Tuberculosis & Tuberculin Testing.....	680
5800 – Records Access	681
5810 – Personnel Records File	681
5810.1 – Notice of Personal Information & Rights of Individuals.....	684
Section VI: Community Relations.....	685
6100 – Community Partnership	685
6110 – Visitors.....	685
6120 – Volunteers.....	686
6130 – Relations with Law Enforcement Agencies	687
6140 – Student Fingerprinting	689
6200 – Media	690
6210 – Media Relations	690
6220 – Crisis Media Management	691

0000 – Definitions and Interpretative Guidelines for the School Manual

The following words, as used in this Policy Manual, shall be afforded the definitions indicated below, unless the terms are defined specifically in a policy.

Charter Contract. The contract existing between the School and the Sponsoring Entity. As used herein, Charter Contract and Sponsor shall have the same meaning.

Employee. Any individual, excluding independent contractors, who performs a service for the School and is compensated accordingly. This includes staff as well as other individuals employed by the School. If the School contracts with an outside entity to employ its staff, then the outside entity's employment policies prevail over the employment policies in this Policy Manual, to the extent that its policies are inconsistent with those herein. If the intent of the School is for specific employment policies in this Policy Manual to prevail over the outside entity, then said intent must be clearly established in writing.

Fiscal Agent. A third party, designated by the Governing Authority, whose job is to perform or direct the performance of all fiscal and accounting functions for the School.

Fiscal Year. The fiscal year is the calendar year beginning on July 1 and extending through the following June 30.

Governing Authority. The official governing authority of Community School Name is located at 135 East Church St., Xenia, OH 454385. As used herein, the following words and phrases are deemed to be synonymous: Governing Authority, Governing Authority of Directors, and Governing Authority.

Guest. Any individual who is visiting the School or who is otherwise present at the School without any obligation to be there. This definition does not include Staff members, students, School employees, or volunteers. As used herein, the words guest and visitor shall be deemed synonymous.

Head Administrator. The person or position that is in charge of all administrative functions of the School. This may be the Superintendent, the Director of Business Operations, the Director of Education, or the Chief Administrative Officer of the School. To the extent allowed by law, Head Administrator shall be interpreted to include any designee.

Immediate Relatives. Includes spouse, children, parent, grandparents, siblings, and in-laws residing in the same household as the person serving on the governing authority.

Management Company. The Company with which the School has entered into a Management Contract, if such a Management Contract exists.

Ohio Department of Education; ODE; State Department of Education; Department of Education. Any reference throughout the Policy Manual to the Ohio Department of Education; ODE; State Department of Education or Department of Education shall refer to the Department of Education and Workforce or DEW.

Parent. The natural or adoptive parents of a student. This includes any individual appointed by a court to be the official guardian of a student. Unless otherwise provided for by law, both parents of a student shall be treated equally and shall have equal rights as the parent of a student.

Policy. A written statement that was adopted by the Governing Authority and is related to the governance of the School. As used herein, the phrase Policy Manual is synonymous with the word Policies.

Record. Any document, device, or item, regardless of physical form or characteristic, created or received by or coming under the jurisdiction of the School or any employee or representative thereof, which serves to document the organization, functions, policies, decisions, procedures, operations, or other activities of the School.

School. The Ohio nonprofit 501(c)(3) corporate entity formally known as Community STE(A)M Academy - Xenia As used herein, the following words and phrases are deemed to be synonymous: Community STE(A)M Academy - Xenia, School, and Corporation.

School Property. The physical location of the School and any other facility or location as designated in the Charter Contract.

Sponsoring Entity. The entity approved by section 3314.02 of the Revised Code that has entered into a valid Charter Contract pursuant to the provisions contained in section 3314.03 of the Revised Code.

Staff/Staff Member. The subset of employees who are directly involved with the educational functions of the School, including teachers, administrators, or Governing Authority Members.

Student. Any individual officially enrolled in the School or any of the programs conducted by the School, either on school property or off-site.

Superintendent of Public Instruction. Any reference throughout the Policy Manual to the Superintendent of Public Instruction shall refer to the Director of Education and Workforce.

Teacher. A Staff member whose primary responsibility is directly educating the students.

Volunteer. Any individual who performs services for the School without receiving any compensation, benefits, or any other thing of value in return.

Headings and subheadings. As used throughout this Policy Manual, are for convenience and reference purposes only, and no substantive value should be attached to the contents thereof.

There is a distinction between the words “shall” and “may.” Where the word “shall” is used, it means that the indicated activity is mandatory. Where the word “may” is used, it means that the indicated activity is permissible, but not required unless otherwise indicated.

Ohio: R.C. 149.011, R.C. 3314.02, R.C. 3314.03, R.C. 3326.08.

Section I: Governing Authority

1100 – Foundation Subsection

Policy No. 1110

1110 – Mission Statement

Community STE(A)M Academy (CSA)-Xenia exists to ignite and sustain a desire in the school family to become responsible 21st-century decision-makers, change agents, and significant contributors to our community, by providing the skills and experiences within a caring, creative, and challenging environment that equips everyone to reach their full potential.

1120 – Statement of Vision

The School is an exemplary educational community that supports all students to engage their heart, mind, body, and soul to become academically, socially, emotionally, and physically successful and ready for service to local and global communities.

1200 – Authority Subsection

Policy No. 1210

1210 – Legal Authority

Community STE(A)M Academy – Xenia is a public school established according to Chapter 3326, is part of the state's program of education, may contract for any services necessary for the operation of the School, and may continue in operation for as long as the School is in compliance with the provisions of this chapter and with the proposal for its establishment as approved by the Ohio STEM committee.

Ohio: R.C. 1702, R.C. 3326.07.

Cross Reference: Policy No. **1220**, General Powers of the Governing Authority; Policy No. **1230**, Additional Powers of the Governing Authority.

1220 – General Powers of the Governing Authority

The Governing Authority shall have the power to make and enforce policies relating to its own governance, personnel, students, and all functions relating or pertaining, in any way, to the operation of the School. The Governing Authority shall also have such implied powers as are reasonably necessary to carry out its duties and responsibilities. All powers, whether expressed or implied, are subject to the limits imposed by the Ohio Constitution, applicable statutes, and regulations.

The powers granted to the Governing Authority as a governing entity are not similarly possessed by individual members of the Governing Authority. Rather, the power possessed by an individual Member of the Governing Authority is inherently limited to that member's voting power as an individual Member of the Governing Authority, unless otherwise authorized by the Governing Authority.

The Governing Authority can withhold documents and/or information requested by an individual Governing Authority Member if the Governing Authority determines by majority opinion that the request is administratively unreasonable. The Governing Authority is required to formally rule on the request after withholding the documents and/or information.

Ohio: R.C. 3326.

Cross Reference: Policy No. **1210**, Legal Authority; Policy No. **1230**, Additional Powers of the Governing Authority; Policy No. **1300**, Code of Regulations.

1230 – Additional Powers of the Governing Authority

The Governing Authority shall have the power to designate a Treasurer.

The Governing Authority shall have the power to assume jurisdiction over and to ultimately decide any and all disputes, either within the School or involving the School, so long as such authority has been granted by the applicable law or by these Policies.

Regarding all disputes and complaints for which authority has not been specifically granted to the Governing Authority, the Head Administrator shall have the power to develop and implement a procedure for the administration to follow when receiving and resolving complaints and disputes. The aforementioned complaint procedure should be developed and implemented in accordance with the following guidelines:

- the complaint shall be addressed in the most efficient and effective manner possible;
- the complaint shall be addressed as close to the source of the complaint as possible, and shall only involve higher authority if and when necessary;
- the complainant shall be kept always informed throughout the procedure; and
- copies of all letters or documents involved in the procedure shall be maintained.

Ohio: R.C. 3326.

Cross Reference: Policy No. **1210**, Legal Authority; Policy No. **1220**, General Powers of the Governing Authority; Policy No. **1300**, Code of Regulations.

1300 – Code of Regulations Subsection

The School is organized as a nonprofit corporation under Chapter 1702 of the Ohio Revised Code. Accordingly, the School and the Governing Authority are governed, in part, by corporate laws and principles. This Corporation is governed by the applicable state and federal statutes, as supplemented by these Policies and the Code of Regulations adopted by the Governing Authority. The most recent and updated version of the Code of Regulations is included as **Form No. 1300.1**.

Cross Reference: Policy No. **1210**, Legal Authority; Policy No. **1220**, General Powers of the Governing Authority; Policy No. **1230**, Additional Powers of the Governing Authority; Form No. **1300.1**, Code of Regulations.

1300.1 – Code of Regulations**Community STE(A)M Academy (CSA) - Xenia's Bylaws - Code of Regulations**

ARTICLE I. GENERAL PROVISIONS	1	
Section 1. Name and Structure		1
Section 2. Mission		1
Section 3. Purpose		1
Section 4. Fiscal Year		1
ARTICLE II. BOARD OF TRUSTEES	1	
Section 1. Powers		1
Section 2. Members		1
Section 3. Number		2
Section 4. Term of Office		2
Section 5. New Members		2
Section 6. Qualifications		2
Section 7. Rights and Responsibilities		2
Section 8. Resignation		2
Section 9. Removal		3
Section 10. Vacancies		3
ARTICLE III. MEETINGS	3	
Section 1. Open Meeting Law		3
Section 2. Annual Meetings		3
Section 3. Regular Meetings		3
Section 4. Special Meetings		3
Section 5. Notice of Meetings		4
Section 6. Executive Session		4
Section 7. Quorum and Voting		5
Section 8. Ex Officio and Non-voting Members		5
Section 9. Recusal and Duty to Disclose		5
Section 10. Minutes		5

Section 11. Rules of Order	6
ARTICLE IV. COMPENSATION AND PERSONAL LIABILITY	6
Section 1. Compensation	6
Section 2. No Personal Liability	6
ARTICLE V. OFFICERS	6
Section 1. Number	6
Section 2. Election and Term	6
Section 3. Resignation, Removal, and Vacancy	6
Section 4. Authority	6
Section 5. Board Chair	7
Section 6. Vice Chair	7
Section 7. Treasurer	7
Section 8. Secretary	7
Section 9. Chief Administrative Officer	7
Section 10. Other Officers	7
ARTICLE VI. COMMITTEES	8
Section 1. Committee Overview	8
Section 2. Governance Committee	8
Section 3. Development Committee	8
Section 4. Finance Committee	9
Section 5. Academic Excellence (a.k.a. Curriculum) Committee	9
Section 6. Chief Administrative Officer Support and Evaluation Committee	9
Section 7. Task Force “Ad Hoc Committees”	9
ARTICLE VII. STAFF	10
Section 1. Chief Administrative Officer	10
ARTICLE VIII. STUDENTS	10
Section 1. Admission and Non-discrimination Statement	10
ARTICLE IX. MISCELLANEOUS	11
Section 1. Amendments	11
Section 2. Indemnification	11
Section 3. Insurance	11

Section 4. Dissolution	11
Section 5 - Use of Electronic Mail	11
ARTICLE X. ETHICS AND CONFLICTS OF INTEREST	12
Section 1.	12
EXHIBIT A. CSA-XENIA’S ETHICS AND CONFLICT OF INTEREST POLICY	13
Article I. Policy Statement	13
Article II. General Standards of Ethical Conduct	13
Article III. Financial Disclosure	14
Article IV. Ethics Procedure	14
Article V. Assistance	14
Article VI. Penalties	14
Article VII. Amendments	14

BYLAWS - CODE OF REGULATIONS OF COMMUNITY STE(A)M ACADEMY - XENIA

ARTICLE I. GENERAL PROVISIONS

Section 1. Name and Structure

- (a) The name of the school is Community STE(A)M Academy – Xenia (“CSA-Xenia”).
- (b) CSA-Xenia is an Ohio nonprofit corporation (“Corporation”).

Section 2. Mission

- (a) The mission of CSA-Xenia is to ignite and sustain the desire in our school family to become responsible 21st-century decision-makers, change agents, and significant contributors to our community. United, we will provide the skills and experiences within a caring, creative, and challenging environment that equips everyone to reach their full potential.

Draft Amendment 2022-03-01

Section 3. Purpose

- (a) The purpose for which the Corporation is formed shall be:
 - a. To operate a science, technology, engineering, arts, and mathematics school pursuant to the provisions under [Chapter 3326 of the Ohio Revised Code](#).
 - b. Draft to be Removed 2022-03-01.
 - c. To operate exclusively for charitable purposes within the meaning of section 501(c)(3) of the Internal Revenue Code of 1986 (or any corresponding provision of any future United States internal revenue law).
 - d. To engage in any lawful act, activity or business not contrary to and in which a charitable nonprofit corporation may be engaged under the laws of the State of Ohio.

Draft Amendment 2022-03-01

Section 4. Fiscal Year

- (a) The first fiscal year, or fraction thereof, of the Corporation shall be the period commencing with the date of incorporation and ending on the last day of June 2020.
- (b) Each fiscal year thereafter shall be each succeeding 12-month period ending on the last day of each June.

ARTICLE II. BOARD OF TRUSTEES

Section 1. Powers

- (a) Except where the law, the articles, or this Code require that action be otherwise authorized or taken, all of the authority of the Corporation shall be exercised by or under the direction of the Board of Trustees.

Section 2. Members

- (a) All members of the Board of Trustees shall agree without reservation, comply with *CSA-Xenia’s Board of Trustees Roles & Responsibilities* (see Supplemental document), which contains the

Individual Trustee Performance Expectations that outline the responsibilities to the Board, and sign the *Board Member Agreement Form* (see Supplemental document p. 9).

- (b) The membership of the Board of Trustees will fill all of these categories with allowance of a member to hold more than one category:

Science, Technology, Engineering, Mathematics Partner
Arts Partner
K-12 Education Partner
Entrepreneur Partner
Higher Education Partner
Chief Administrative Officer (CAO) – *ex officio* member

- (c) No full-time, salaried employee or spouse of any full-time, salaried employee shall be eligible to serve on the Board.

Section 3. Number

- (a) The Board shall consist of no fewer than five (5) and no more than fifteen (15) members.

Section 4. Term of Office

- (a) Each Trustee shall serve a two (2) year term, renewable for two (2) additional times (maximum of six (6) years), after which they must take a minimum of two (2) years off before reappointment.
- (b) The Initial Founding Trustees will have staggered initial appointment of one (1) year for half the members so that not all terms are renewed at the same time. These one (1) year initial term members will not have this first year term counted as their first two (2) year term (see Section 4.(a)); therefore, it would be possible for these members to serve seven (7) years.

Section 5. New Members

- (a) New Members may be admitted to the Corporation upon the unanimous approval of the Members. Prior to nomination, the new candidate for membership will sign the *Board Member Agreement Form* (see Supplemental document p. 9).
- (b) Trustees shall be nominated in accordance with the board approved nominating policy. Trustees shall be elected by the Board at any regular or annual meeting.
- (c) A Trustee elected to fill an unexpired term shall have tenure only to the end of such term.

Section 6. Qualifications

- (a) Whenever possible, Board Members shall be sought who bring the skills, expertise, perspective, qualifications, as established by the Board and delineated in the Annual Meeting as aligned with the *CSA-Xenia's Board of Trustees Roles & Responsibilities* (see Supplemental document) and the *CSA - Xenia's Board Committee's Purpose & Responsibilities* (see Supplemental document).

Section 7. Rights and Responsibilities

- (a) Each trustee is responsible for actively participating in the work of CSA - Xenia's Board of Trustees and the life of the school. Each trustee is expected to affirm and strive to fulfill the performance expectations outlined in the *CSA-Xenia's Board of Trustees Roles & Responsibilities* (see Supplemental document). These expectations are to be clearly articulated prior to nominating any candidate as a board member.
- (b) In addition to these responsibilities, individual trustees are expected to help each other fulfill the tasks outlined in the collective *CSA - Xenia's Board Committee's Purpose & Responsibilities* (see Supplemental document).

Section 8. Resignation

- (a) Any Member may resign at any time by giving written notice to the Board Chair, the Chief Administrative Officer or the Treasurer.

- (b) A resignation shall take effect immediately or at such other time as the Member may specify, and unless otherwise specified therein, shall become effective upon delivery. Acceptance of any resignation shall not be necessary to make it effective unless so specified in the resignation.
- (c) Any vacancy in the number of Members by reason of this Section shall be filled in the manner provided in [Section 10](#).

Section 9. Removal

- (a) Any trustee may be removed, with or without cause, by an affirmative vote of the majority of the trustees then in office.
- (b) Any vacancy in the number of trustees by reason of this section shall be filled in the manner prescribed in [Section 10](#).

Section 10. Vacancies

- (a) In accordance with the nominating and election process set forth by the Governance Committee, any newly created trusteeships and any vacancies of the Board of Trustees, arising at any time and from any cause, may be filled at any regular or annual meeting of the Board in which a quorum is present.
- (b) If the number of remaining trustees in office is less than the necessary total members allowed by the Code, the vacancy(ies) shall be filled by the affirmative vote of
 - a. A majority of the officers then in office or
 - b. A sole remaining trustee.

A trustee so elected shall serve until the next annual meeting and until his or her successor is elected and qualified.

ARTICLE III. MEETINGS

Section 1. Open Meeting Law

- (a) Meetings of the Members shall be conducted in compliance with Ohio's Open Meetings Act ([ORC 121.22](#)) to the extent applicable.

Section 2. Annual Meetings

- (a) An annual meeting (a.k.a. Annual Summer Retreat) of the Members for the consideration of all annual reports, determination of annual goals, and for the transaction of such other business as may be brought before the meeting shall be held on such date as may be designated by the Members.
- (b) Notice of the annual meeting shall be given by the Board Chair or the Treasurer or the Chief Administrative Officer as provided in [Section 5](#).
- (c) An annual meeting of the Board will ideally be held during the non-school year (a.k.a. Summer months) to establish the direction for the following school year.

Section 3. Regular Meetings

- (a) Regular meetings of the Board shall be held at least ten (10) times during the year and may be held at such periodic intervals as monthly during the school year and at such time as the Board may specify. For purpose of this provision, the annual meeting of the Board is considered and counted as a regular meeting.
- (b) A notice of the time and place of any regular meetings will be established at the annual meeting each year. Any change in time or place of a regular meeting will be given to the media and those

persons requesting advance personal notice pursuant to this Code at least twenty-four hours prior to the meeting.

- (c) An agenda of all regular meetings shall be sent to the Members and accompanied by the agenda information packet, including a report from the Chief Administrative Officer on information relating to the Corporation with such recommendations as she or he shall make. The agenda for each regular meeting shall be delivered electronically or mailed by the Chief Administrative Officer or the Treasurer to each Trustee not less than five (5) days before the date of the meeting, unless unusual circumstances arise that make such timing impractical.

Section 4. Special Meetings

- (a) A special meeting of the Members may be called (i) by the Board Chair; (ii) by a majority of the Board of Trustees ("Board"); or (iii) by a Member by delivery of the request in writing to the Board Chair, the Treasurer or the Chief Administrative Officer. Upon receipt of such request, the person to whom the request is delivered shall give notice of the meeting to the Members as provided in [Section 5](#). If the request is refused, the person(s) making the request may call a meeting of the Members by giving notice of the meeting in the manner provided in [Section 5](#).
- (b) Special meetings shall not be held unless at least twenty-four (24) hours advance notice of the time, place, and purpose of the special meeting is given to any news media that have requested notification, except in the event of an emergency requiring immediate official action. In the event of such an emergency, the person calling the meeting shall notify the news media that have requested notification immediately of the time, place, and purpose of the meeting.
- (c) By contacting the Board Secretary;
 - a. Any person may obtain the time and place of any regular meeting and the time, place and purpose of any special meeting,
 - b. Any news media representative may request advance notice of any special meeting, and
 - c. Any person may, upon payment of a reasonable fee or upon providing a sufficient number of self-addressed, stamped envelopes, request reasonable advance notice of all meetings at which a specific type of business is to be discussed.

Section 5. Notice of Meetings

- (a) Written notice of the annual meeting or of a regular meeting of the Members, stating the place and the time of the meeting shall be given to the Members not less than seven (7) days nor more than sixty (60) days before the date of the meeting, either by personal delivery, by U.S. mail, electronic mail transmission or telecopy. Written notice of a special meeting of the Members, stating the place, the time, and the purpose or purposes of the meeting will be given to the Members not less than two (2) days before the date of the special meeting, by personal delivery, by U.S. mail, electronic mail transmission or telecopy, and shall also state the purpose or purposes for which the meeting is called, except that in the event of an emergency requiring immediate official action, the person calling the meeting shall notify the Members immediately of the time, place, and purpose or purposes of the meeting by any means reasonably calculated to reach the Members.
- (b) The Members shall furnish the Chief Administrative Officer or the Treasurer with a U.S. postal address, a telephone number for receipt of telecopies and/or an electronic mail address for receipt of electronic mail to which notices of meetings and other notices or correspondence may be addressed.
- (c) If and as permitted by Ohio law, any Member may, either before or after any meeting, waive any notice required to be given by law or under this Code.

- (d) Notice to the media and the public. All meetings of the Members and any Committees appointed by the Members are open to the public as required by Ohio law. Executive Sessions may be called in accordance with Ohio law. Due notice of all meetings of the Members or committees appointed by the Members will be given to the press and the public. Such notice may be given by any method reasonably calculated to provide notice of the meetings, such as providing written notice to the press for publication, posting notices on the school's website and/or in areas accessible to the public, and/or providing notice by regular U.S. mail or e-mail to those persons who have requested such notice pursuant to these Regulations.

Section 6. Executive Session

- (a) The Board and its committees and subcommittees reserve the right to meet privately in executive session solely to discuss issues exempted from public sessions under Ohio law. No official action may be taken in executive session.
- (b) An executive session will be held only at a regular or special meeting. After the meeting is convened, any Trustee may make a motion for an executive session and must state the purpose or purposes of the session by citing one of the reasons exempted from public session under Ohio law. Upon receiving a second to the motion and a majority roll-call vote of those present and voting, the Board Chair shall declare the Board in executive session.
- (c) In keeping with the confidential nature of executive sessions, no member of the Board, committee or subcommittee shall disclose the content of discussions that take place during such sessions. The members of the respective Board, committee or subcommittee that meets in executive session are entitled to attend such executive session. The Board, committee or subcommittee may invite any other person to attend its executive session.

Section 7. Quorum and Voting

- (a) A majority of the Members of the Board of Trustees then in office shall constitute a quorum for a meeting of the Board.
- (b) Being present at a meeting may take place via any synchronous means, whether physically or virtually, including telephone or video conferencing.
- (c) The act of a majority of the Members present at a meeting at which a quorum is present is the act of the Board, unless the act of a greater number is required by the Articles of Incorporation or this Code of Regulations.
- (d) Except as otherwise provided in this Code, each Member shall be entitled to an equal vote on each matter required to be submitted to a vote of the Members.
- (e) No proxies for a Member of the Board shall be valid for voting.

Section 8. Ex Officio and Non-voting Members

- (a) The Board may appoint one or more persons *ex officio* members of the Board.
- (b) Unless otherwise provided by the Board, each *ex officio* Board Member shall be entitled to notice, to be present in person, to present matters for consideration and to take part in consideration of any business by the Board at any meeting of the Board, but such *ex officio* members shall not be considered for quorum purposes and shall have no vote.

Section 9. Recusal and Duty to Disclose

- (a) In connection with any actual or possible conflict of interest from [ARTICLE X Section 1](#), an interested person must disclose the existence of the financial interest and be given the opportunity to disclose all material facts to the Board and members of committees with governing board delegated powers considering the proposed transaction or arrangement.
- (b) After disclosure of such conflict of interest, he/she shall recuse him/herself from the Board or Committee meeting while the determination of a conflict of interest is discussed and voted upon.

- (c) The remaining board or committee members shall decide if a conflict of interest exists with a majority vote of the remaining members present.
- (d) If a more advantageous transaction or arrangement is not reasonably possible under circumstances not producing a conflict of interest, the governing board or committee shall determine by a majority vote of the disinterested directors whether the transaction or arrangement is in the best interest, for its own benefit, and whether it is fair and reasonable. In conformity with the above determination it shall make its decision as to whether to enter into the transaction or arrangement.

Section 10. Minutes

- (a) Minutes shall be kept by the Secretary (or the Vice Chair in the absence of the Secretary) in a manner that complies with the Ohio Sunshine Laws.
- (b) Each member shall be provided with a copy of the minutes of the last meeting no later than two (2) days before the next regular meeting.
- (c) The minutes of Board meetings shall be considered at the next succeeding meeting where they shall be corrected, if applicable, and approved. The approved minutes shall be signed by the School Treasurer and the Board Chair. The approved minutes shall be filed as a hard copy in the school's office in a prescribed minute book as a permanent record of official Board proceedings.

Amendment 2020-08-04

Section 11. Rules of Order

- (a) Meetings of the Board of Trustees shall be governed by Robert's Revised Rules of Order when possible with exceptions being as required by Ohio law.

ARTICLE IV. COMPENSATION AND PERSONAL LIABILITY

Section 1. Compensation

- (a) Members of the Board of Trustees shall receive no compensation for their services.
- (b) The Board may authorize the reimbursement of expenses, incurred by any Board member, in the performance of official business for the school or the Board.

Section 2. No Personal Liability

- (a) Members of the Board of Trustees shall have no personal liability for CSA-Xenia's obligations.

ARTICLE V. OFFICERS

Section1. Number

- (a) The officers of the Corporation shall consist of a Board Chair, a Vice Chair, a Treasurer, a Secretary, a Chief Administrative Officer and such other officers and assistant officers as may be deemed necessary, each of whom may be designated by such other titles as may be provided in the articles, this Code, the bylaws, or resolutions of the Board.
- (b) Any two or more offices may be held by the same person, unless prohibited by Ohio law.

Section 2. Election and Term

- (a) Each officer shall serve a one (1) year; renewable for three (3) consecutive years with the approval of a majority vote of the board.

Section 3. Resignation, Removal, and Vacancy

- (a) Unless otherwise provided by Ohio law or required by contract, any officer or assistant officer may resign at any time by giving written notice to the Board Chair or the Chief Administrative Officer.
- (b) A legally permissible resignation shall take effect immediately or at such other time as the resignation may specify, and unless otherwise specified therein, shall become effective upon delivery. Acceptance of any resignation shall not be necessary to make it effective unless so specified in the resignation.
- (c) Unless otherwise provided by Ohio law, any officer or assistant officer may be removed, with or without cause, at any time by the affirmative vote of the majority of the Board.
- (d) Any vacancy created by reason of this section shall be filled by the Board.

Section 4. Authority

- (a) Each of the Chair, the Vice-Chair, and the Treasurer shall have the authority jointly or severally to sign, execute and deliver in the name of the Corporation any deed, mortgage, bond, instrument, agreement or other document evidencing any transaction properly authorized by the Board or the Executive Committee, except where the signing or execution thereof shall have been expressly delegated by the Board to another officer or person on the Corporation's behalf.
- (b) If and as permitted by Ohio law, in the absence of any officer or assistant officer or for any other reason that the Board may deem sufficient, the Board may delegate the authorities and duties of any officer, or any assistant officer to any other officer, or assistant officer to any Board member.

Section 5. Board Chair

- (a) The Board Chair shall serve as the President of the Corporation for Ohio law purposes.
- (b) The Chair is the senior volunteer leader of the organization and presides at all meetings of the Board and other meetings as required. The Chair is an ex officio member of all committees of the organization.
- (c) The Chair oversees implementation of board and organizational policies and ensures that appropriate administrative practices are established and maintained. More specific responsibilities are delineated in the *CSA-Xenia's Board of Trustees Roles & Responsibilities* (see Supplemental document).
- (d) In addition to the foregoing, each officer or assistant officer shall perform all duties as may from time to time be delegated to each of them by this Code or by the Board or any committee of Directors as provided herein.

Section 6. Vice Chair

- (a) The Vice Chair is the secondary volunteer leader of the school and as such, discharges the duties of the Chair as required in the Chair's absence.
- (b) The Vice Chair supports the activities of the Chair including sharing responsibilities as appropriate. More specific responsibilities are delineated in *CSA-Xenia's Board of Trustees Roles & Responsibilities* (see Supplemental document).
- (c) In addition to the foregoing, each officer or assistant officer shall perform all duties as may from time to time be delegated to each of them by this Code or by the Board or any committee of Directors as provided herein.

Section 7. Treasurer

- (a) The Treasurer provides direction for the financial management of the organization and facilitates the board in meeting its financial oversight responsibilities. More specific responsibilities are

delineated in the *CSA-Xenia's Board of Trustees Roles & Responsibilities* (see Supplemental document).

- (b) In addition to the foregoing, each officer or assistant officer shall perform all duties as may from time to time be delegated to each of them by this Code or by the Board or any committee of Directors as provided herein.

Section 8. Secretary

- (a) The Secretary shall serve as the Secretary of the Corporation for Ohio law purposes and as the Ohio Statutory Agent of the Corporation, which must maintain a physical address in the state of Ohio.
- (b) The Secretary provides direction for the keeping of legal documents including minutes of all board meetings. More specific responsibilities are delineated in the *CSA-Xenia's Board of Trustees Roles & Responsibilities* (see Supplemental document).
- (c) In addition to the foregoing, each officer or assistant officer shall perform all duties as may from time to time be delegated to each of them by this Code or by the Board or any committee of Directors as provided herein.

Section 9. Chief Administrative Officer

- (a) The Chief Administrative Officer is the educational leader and the head administrator of the Corporation.
- (b) The Chief Administrative Officer shall serve as an officer that is an *ex officio* member of the Board.
- (c) In addition to the foregoing, each officer or assistant officer shall perform all duties as may from time to time be delegated to each of them by this Code or by the Board or any committee of Directors as provided herein.
- (d) Further description of the Chief Administrative Officer follows in [ARTICLE VII, Section 1](#).

Section 10. Other Officers

- (a) The Board of Trustees may create additional officer positions or assistant officer positions as needed with a majority vote of the full Board.
- (b) In addition to the foregoing, each officer or assistant officer shall perform all duties as may from time to time be delegated to each of them by this Code or by the Board or any committee as provided herein.

ARTICLE VI. COMMITTEES

Section 1. Committee Overview

- (a) For Ohio Law purposes the "Executive Committee" shall consist of the Board Chair, the Vice Chair and the Treasurer. No committee other than the Executive Committee shall have the authority to act on behalf of the Board.
- (b) There shall be five (5) standing Board Committees:
 - a. Governance
 - b. Development
 - c. Finance
 - d. Academic Excellence (a.k.a. Curriculum)
 - e. Chief administrative Officer Support and Evaluation
- (c) The Board Chair is an *ex officio* member of all committees of the organization and may appoint a designee to attend any Committee meeting in his/her place.

- (d) All Committee Chairs must be a Board of Trustee Member.
- (e) Appointments of the Chair and members of all Committees shall be made annually by the Chair of the Board with the advice and consent of the Board.
- (f) The designation of such committees and the delegation thereto of such authority shall not operate to relieve the Board, or any individual Trustee of any responsibility imposed by law.
- (g) Each such committee shall serve at the pleasure of the Board, shall act only in the intervals between meetings of the Board, and shall be subject to the control and direction of the Board.
- (h) The Board may appoint one or more Trustees as alternate members of any committee, who may take the place of any absent committee member at any meeting of the particular committee.
- (i) Committees may be made up of Board members, staff liaisons of the school and community members.
- (j) Any Committee member who is not serving on the Board or a school employee will be part of the STE(A)M Advisory Group.
- (k) Unless otherwise provided by Ohio law or the Board, any committee shall act by a majority of its members at a properly noticed meeting.

Section 2. Governance Committee

- (a) The Governance Committee is commissioned by and responsible to the Board of Trustees (Board) to assume the primary responsibility for matters pertaining to Board recruitment, nominations, orientation, training, and evaluation in accordance with this Code as well as with established policies and practices approved by the Board.
- (b) Additional committee members may be appointed from the STE(A)M Advisory Group members and need not be members of the Board.
- (c) More specific details of responsibilities, indicators of effectiveness, and ideal members are delineated in the *CSA - Xenia's Board Committee's Purpose & Responsibilities* (see Supplemental document).

Section 3. Development Committee

- (a) The Development Committee is commissioned by and responsible to the Board to assume the primary responsibility for raising non-grant funds, building Community partners to support, and information-sharing the organization's mission.
- (b) Both the Chief Administrative Officer (CAO) (or designee) and the Director of Community Enterprises will be members of the Development Committee.
- (c) Additional committee members may be appointed from the STE(A)M Advisory Group members and need not be members of the Board.
- (d) More specific details of responsibilities, indicators of effectiveness, and ideal members are delineated in the *CSA - Xenia's Board Committee's Purpose & Responsibilities* (see Supplemental document).

Section 4. Finance Committee

- (a) The Finance Committee is commissioned by and responsible to the Board to create the upcoming fiscal year budget; present budget recommendations to the Board; monitor implementation of the approved budget on a regular basis and recommend proposed budget revisions; and recommend to the Board appropriate policies for the management of CSA-Xenia's assets.
- (b) The Treasurer of the Board will serve as Chair.
- (c) Both the Chief Administrative Officer (CAO) and the Chief Financial Officer (CFO) will be members of the Finance Committee.
- (d) Additional committee members may be appointed from the STE(A)M Advisory Group members and need not be members of the Board

- (e) More specific details of responsibilities, indicators of effectiveness, and ideal members are delineated in the *CSA - Xenia's Board Committee's Purpose & Responsibilities* (see Supplemental document).

Section 5. Academic Excellence (a.k.a. Curriculum) Committee

- (a) The Academic Excellence Committee is commissioned by and responsible to the Board to assume the primary responsibility for working with the Chief Administrative Officer (CAO) and the Director of Curriculum and Instruction to define academic excellence, ensure that all board members know the STEAM Designation promises ([ORC 3326](#)) that were made to the community and the State of Ohio, and to devise clear and consistent measures to monitor these goals.
- (b) The Chair of this Committee shall be a member of the Board with formal educational experiences.
- (c) At minimum, this Committee members will consist of the CAO; Director of Curriculum and Instruction; a teacher; a representative of the higher education institution that is a collaborating partner in CSA-Xenia; a member of the public with expertise in the application of science, technology, engineering, or mathematics; and in the integration of arts and design into the STEM fields
- (d) Additional committee members may be appointed from the STE(A)M Advisory Group members and need not be members of the Board.
- (e) More specific details of responsibilities, indicators of effectiveness, and ideal members are delineated in the *CSA - Xenia's Board Committee's Purpose & Responsibilities* (see Supplemental document).

Section 6. Chief Administrative Officer Support and Evaluation Committee

- (a) The Chief Administrative Officer (CAO) Support and Evaluation Committee is commissioned by and responsible to the Board to assume the primary responsibility for developing and implementing a year-round process to strengthen the Board's support, evaluation, and partnership with the organization's CAO.
- (b) No additional committee members may be appointed who are NOT members of the Board.
- (c) Three (3) members tend to be an ideal size but may contain different number if needed
- (d) More specific details of responsibilities, indicators of effectiveness, and ideal members are delineated in the *CSA - Xenia's Board Committee's Purpose & Responsibilities* (see Supplemental document).

Section 7. Task Force "Ad Hoc Committees"

- (a) By majority vote the Board may create any Task Force (a.k.a. Ad Hoc Committee) consisting of not less than one (1) Board of Trustee member and may delegate to each such Task Force only the authority to consider specific tasks/issues and make recommendations to the Board.
- (b) Each Task Force created shall have a specific charge to complete and timeline to produce a final report back to the Board.
- (c) Each Task Force will provide an update report to the Board at regular meetings of the Board in a manner determined by the Board.
- (d) After the Task Force has completed and reported its specific charge to the Board, the Task Force will be dissolved.

ARTICLE VII. STAFF

Section 1. Chief Administrative Officer

*Additional items found in [ARTICLE V. Section 9](#).

- (a) The Chief Administrative Officer (CAO) shall enforce the statutes of Ohio, rules of the Board of Education of the State of Ohio ("State Board"), and the policies of the Board.
- (b) The CAO shall prepare guidelines for the administration of the Corporation which are not inconsistent with statutes, regulations of the State Board, or the policies of the Board.
- (c) Such administrative guidelines shall be submitted to the Board for approval.
- (d) Such administrative guidelines shall become binding on the officers, employees and the students of the Corporation upon approval by the Board.
- (e) He or she shall have the authority to take necessary action in circumstances not provided for in such administrative guidelines or in the Board's policies, provided that such action shall be reported to the Board at the next meeting following such action.
- (f) The CAO serves as chief executive of CSA-Xenia and, in partnership with the Board, is responsible for the success of the school. Together, the Board and CAO assure CSA-Xenia's relevance to the community, the accomplishment of the school's mission and vision, and the accountability of the school to its diverse constituents.
- (g) The Board of Trustees shall appoint the CAO and provide a three (3) year contract.
- (h) The Board delegates responsibility for management, hiring of staff, and day-to-day operations to the CAO, and he or she has the authority to carry out these responsibilities, in accordance with the direction and policies established by the Board.
- (i) The CAO provides direction and support to the Board as it carries out its governance functions.
- (j) The CAO will assign staff liaisons to specific Board Committees as part of their role as an employee of the school.
- (k) More specific details of responsibilities, qualifications, and indicators of effectiveness are delineated in the *CSA - Xenia's CAO Job Description* (see Supplemental document).

ARTICLE VIII. STUDENTS

Section 1. Admission and Non-discrimination Statement

- (a) CSA-Xenia recruits and admits students of any race, creed, color, sex, disability, or ethnic origin to all its rights, privileges, programs and activities.
- (b) The school will not discriminate on the basis of race, creed, color, sex, disability, or ethnic origin in the administration of its educational programs and extracurricular activities.
- (c) Admission shall be open to individuals entitled and eligible to attend school pursuant to the ORC section [3313.64](#) or [3313.65](#) in any school district in the state of Ohio.
- (d) The school will not limit admission to students on the basis of intellectual ability, measures of achievement or aptitude, or athletic or artistic ability.
- (e) The school will assert its best effort to attract a diverse student body that reflects the community, and the school will recruit students from disadvantaged and underrepresented groups.

ARTICLE IX. MISCELLANEOUS

Section 1. Amendments

- (a) This Code may be amended from time to time by a 2/3 (67%) vote of the full Board of Trustees during the second regular meeting with the first meeting bringing the changes for consideration.

Section 2. Indemnification

- (a) To the fullest extent not prohibited by Ohio law, the Corporation shall indemnify any person who was or is a party, or is threatened to be made a party, to any threatened, pending, or completed action or suit by or in the right of the corporation to procure a judgment in its favor, by reason of the fact that the person is or was a Director, officer, employee, or agent of or a volunteer of the Corporation, or is or was serving at the request of the Corporation as a Director, officer, employee, member, manager, or agent of or a volunteer of another domestic or foreign nonprofit corporation or business corporation, a limited liability company, or a partnership, joint venture, trust, or other enterprise against expenses, including attorney's fees, actually and reasonably incurred by the person in connection with the defense or settlement of such action or suit, if the person acted in good faith and in a manner the person reasonably believed to be in or not opposed to the best interests of the Corporation.
- (b) Each request or case of or on behalf of any person who is or may be entitled to indemnification for reason other than by being or having been a Director or officer of the Corporation shall be reviewed by the Board, and indemnification of such person shall be authorized by the Board only if it is determined by the Board that indemnification is proper in the specific case, and, notwithstanding anything to the contrary in this Code, no person shall be indemnified to the extent, if any, it is determined by the Board or by written opinion of legal counsel designated by the Board for such purpose that indemnification is contrary to applicable law.

Section 3. Insurance

- (a) The Corporation may, as the Board may direct, purchase and maintain insurance, or furnish similar protection, including, but not limited to, trust funds, letters of credit, or self-insurance, for or on behalf of any person who is or was a Trustee, officer, employee, agent, or volunteer of the corporation, or is or was serving at the request of the corporation as a Trustee, officer, employee, member, manager, agent, or volunteer of another domestic or foreign nonprofit corporation or business corporation, a limited liability company, or a partnership, joint venture, trust, or other enterprise, against any liability asserted against the person and incurred by the person in any such capacity, or arising out of the person's status as such.

Section 4. Dissolution

- (a) Upon the dissolution of the Corporation, any assets remaining shall be conveyed by the affirmative vote of a majority of the Board to: (i) one or more organizations provided, however, that any such organization shall be exempt from federal income taxation under section 501 (c)(3) of the Code; or, (ii) one or more governmental units described in section 170(b)(1)(A)(v) of the Code provided, however, that such assets must be used exclusively for public purposes.

Section 5 - Use of Electronic Mail

- (a) Email communication by and among Board Members and Officers regarding the Corporation shall be permitted to the extent that it does not conflict with the Ohio Public Records Law and Open Meetings Law (collectively, the "Ohio Sunshine Laws").

ARTICLE X. ETHICS AND CONFLICTS OF INTEREST

Section 1.

- (a) It is policy of the Community STEAM Academy (the "Corporation") to carry out its mission in accordance with the strictest ethical guidelines and to ensure that the Corporation conducts its

operations in a manner that fosters public confidence in the integrity of the Corporation, its processes, and its accomplishments.

- (b) The Ethics and Conflicts of Interest Policy of the Corporation is attached hereto as [Exhibit A](#).

EXHIBIT A. CSA-XENIA'S ETHICS AND CONFLICT OF INTEREST POLICY

Article I. Policy Statement

It is policy of the Community STEAM Academy (the "Corporation") to carry out its mission in accordance with the strictest ethical guidelines and to ensure that the Corporation conducts its operations in a manner that fosters public confidence in the integrity of the Corporation, its processes, and its accomplishments.

Article II. General Standards of Ethical Conduct

Section 1.

- (a) Representatives of Corporation's Members, Directors and Officers (collectively, "Officials") and employees must, at all times, abide by protections to the public embodied in Ohio's ethics laws, as found in Chapters 102 and 2921 of the Ohio Revised Code ("R.C."), and as interpreted by the Ohio Ethics Commission, the Ohio Attorney General, and Ohio courts. A copy of these laws shall be provided by the Chief Administrative Officer of the Corporation, and receipt acknowledged, as required in R.C. 102.09(D). Officials and employees must conduct themselves, at all times, in a manner that avoids favoritism, bias, and the appearance of impropriety.

Section 2.

- (a) A general summary of the restraints upon the conduct of Officials and employees includes, but is not limited to, those listed below. No Official or employee shall:
- a. Solicit or accept anything of value from anyone doing business with the Corporation;
 - b. Solicit or accept employment from anyone doing business with the Corporation, unless the Official or employee completely withdraws from Corporation activity regarding the party offering employment, and the Corporation approves the withdrawal;
 - c. Use his or her public position to obtain benefits for the Official or employee, a family member, or anyone with whom the Official or employee has a business or employment relationship, except if and as otherwise permitted by law;
 - d. Be paid or accept any form of compensation for personal services rendered on a matter on which the Corporation has influence, unless the Official or employee qualifies for the exception, and files the statement, described in R.C. 102.04(D), or if and as otherwise permitted by law;
 - e. Hold or benefit from a contract with, authorized by, or approved by, the Corporation, except as permitted by law;
 - f. Vote, authorize, recommend, or in any other way use his or her position to secure approval of a contract with the Corporation (including employment or personal services) in which the Official or employee, a family member, or anyone with whom the Official or employee has a business or employment relationship, has an interest, except if and as otherwise permitted by law;
 - g. Solicit or accept honoraria prohibited by R.C. 102.01(H) and 102.03(H);

- h. During public service, and for one year after leaving public service, represent any person, in any fashion, before any public agency, with respect to a matter in which the Official or employee personally participated while serving with the Corporation, except if and as otherwise permitted by law;
- i. Use or disclose confidential information protected by law, unless appropriately authorized; or
- j. Use, or authorize the use of, his or her title, the name "Community STE(A)M Academy-Xenia" or the Community STE(A)M Academy-Xenia's logo in a manner that suggests impropriety, favoritism, or bias by the Corporation or the Official or employee;

Section 3.

(a) For purposes of this policy:

- a. "Anything of value" includes anything of monetary value, including, but not limited to, money, gifts, food or beverages, social event tickets and expenses, travel expenses, golf outings, consulting fees, compensation, or employment. "Value" means worth greater than de minimis or nominal.
- b. "Anyone doing business with the Corporation" includes, but is not limited to, any person, corporation, or other party that is doing or seeking to do business with, regulated by, or has financial interests involving the Corporation.

Article III. Financial Disclosure

Section 1.

- (a) Every Official or employee of the Corporation required to file a financial disclosure statement must file a complete and accurate statement with the Ethics Commission by April 15 of each year. An Official or employee elected, appointed, or employed to a filing position after February 15 must file a statement within ninety days of appointment or employment.

Article IV. Ethics Procedure

Section 1.

- (a) Any questions of the Corporation regarding the legal requirements under this policy with respect to a prospective action or transaction shall be referred to the Corporation's legal counsel for legal advice in advance of any such action or transaction.

Article V. Assistance

Section 1.

- (a) The Ethics Commission is available to provide advice and assistance regarding the application of the Ethics Law and related statutes. The Commission can be contacted at (614) 466-7090. The Commission's web site address is: www.ethics.ohio.gov. The Corporation legal counsel is available to answer questions involving this policy.

Article VI. Penalties

Section 1.

- (a) Failure of any Corporation Official or employee to abide by this Ethics policy, or to comply with the Ethics Law and related statutes, will result in discipline, which may include dismissal, as well as any potential civil or criminal sanctions under the law.

Article VII. Amendments

Section 1.

- (a) This policy may be amended only by the Corporation's Board of Trustees with a majority vote.

1410 – Eligibility and Background Check

No person shall serve on the governing authority under any of the following circumstances:

- the person is a member of a school district board of education;
- the person owes the state money or is in a dispute over whether the person owes the state any money concerning a community school that the State has closed;
- the person would be unable to obtain a teaching license for reasons specified in R.C. 3319.31(B);
- the person has pleaded guilty to or been convicted of theft in office or a substantially similar offense in another state;
- the person has not submitted to a background check under R.C. 3319.39;
- the person serves on the governing authority of five or more start-up community schools;
- additional requirements as provided for under Ohio’s Ethics Laws; and
- additional requirements as provided for in the Code of Regulations.

Annual Disclosure Statement

Each governing authority member must annually file a disclosure statement setting forth the names of any immediate relatives or business associates employed by any of the following within the past three years:

- any School district or ESC that has contracted with the School, and
- any Vendor that has engaged in business with the School.

Background Check

Prior to becoming a member, Governing Authority Members shall submit to a criminal background check(s) and/or fingerprinting(s) as required by law.

Discretion to Approve Membership

The Governing Authority retains the discretion to disapprove of any member’s background check results and terminate membership on the Governing Authority. Additionally, no Governing Authority Member shall serve if the background check reveals offenses that Ohio and/or Federal law prohibit the member from serving.

Ohio: R.C. 3319.39, 3319.391, 3326.11.

1420 – New Member Orientation

In an effort to ensure that each new Governing Authority Member is properly equipped to carry out his/her responsibilities fully and effectively, each new Governing Authority Member shall be provided with all necessary documents and materials including a copy of: the CSA-Xenia's Policy Manual, Committee Roles and Responsibilities, the applicable 5-year financial forecast/budget, and Ohio's Open Meetings Laws. It is imperative that each Governing Authority Member take the time to review and understand all documents and materials.

To further acquaint the new Governing Authority Member, each new Governing Authority Member shall have the opportunity to meet with the Chair of the Governing Authority and one (1) other Governing Authority Member.

New Governing Authority Members may be required to attend an orientation session.

Ohio: R.C. 121.22.

1440 – Reimbursement of Governing Authority Members

In order for a Governing Authority Member's expense to be reimbursed by the Governing Authority, the following requirements must be met:

- the expense must be pre-approved by the Governing Authority, with the exception that when a Governing Authority Member attends a conference, only attendance at the conference must be pre-approved and the associated reasonable costs for mileage, meals, accommodations, and parking will be considered reimbursable expenses;
- the Governing Authority Member must submit to the Governing Authority, within ten (10) days of incurring the expense, a detailed description of the expense and the specific amount;
- the expense must not have been incurred for alcoholic beverages or entertainment.

Governing Authority Members are subject to any additional rules found in Policy No. **5452**,

Cross Reference: Policy No. **5452**, Reimbursement of Staff Members.

1450 – Ethics and Conflicts of Interest Policy

The School's Governing Authority Members, Officials, and Employees must, at all times, abide by Ohio's ethics laws. Officials and employees must conduct themselves, at all times, in a manner that avoids favoritism, bias, and the appearance of impropriety.

Ethics Laws

Below is a general summary of the restraints upon the conduct of all Governing Authority Members, Officials and Employees. In the event a violation is suspected, legal counsel shall be contacted.

No governing authority member, official, or employee shall:

- Solicit or accept anything of value from anyone doing business with the School;
- Solicit or accept employment from anyone doing business with the School, unless the official or employee completely withdraws from School activity regarding the party offering employment, and the School approves the withdrawal;
- Use his or her public position to obtain benefits for the official or employee, a family member, or anyone with whom the official or employee has a business or employment relationship;
- Be paid or accept any form of compensation for personal services rendered on a matter before any board, commission, or other body of the School, unless the official or employee qualifies for the exception, and files the statement, described in R.C. 102.04(D);
- Hold or benefit from a contract with, authorized by, or approved by, the School, (the Ethics Law does except some limited stockholdings, and some contracts objectively shown as the lowest cost services, where all criteria under R.C. 2921.42 are met);
- Vote, authorize, recommend, or in any other way use his or her position to secure approval of a School contract (including employment or personal services) in which the official or employee, a family member, or anyone with whom the official or employee has a business or employment relationship, has an interest;
- Solicit or accept honoraria (see R.C. 102.01(H) and 102.03(H));
- During public service, and for one year after leaving public service, represent any person, in any fashion, before any public agency, with respect to a matter in which the official or employee personally participated while serving with the School;
- Use or disclose confidential information protected by law, unless appropriately authorized; or Use, or authorize the use of, his or her title, the name "School," or "[the Agency's acronym]," or the School's logo in a manner that suggests impropriety, favoritism, or bias by the School or the official or employee;

For purposes of this policy:

- "Anything of value" includes anything of monetary value, including, but not limited to, money, gifts, food or beverages, social event tickets and expenses, travel expenses, golf outings, consulting fees, compensation, or employment. "Value" means worth greater than de minimis or nominal.
- "Anyone doing business with the School" includes, but is not limited to, any person, corporation, or other party that is doing or seeking to do business with, regulated by, or has interests before School.

Distribution of Ethics Laws:

The School must provide each Governing Authority Member, Official, and Employee a copy of Policy No. **1440** - Ethics and Conflicts of Interest Policy, Policy No. **1410** - Eligibility and Background Checks, Chapter 102 of the Revised Code, and Section 2921.42 of the Revised Code within fifteen days of beginning his/her official duties.

Additional Eligibility & Conflict Laws

In addition to Ohio's Ethics laws, Governing Authority Members are subject to additional laws regarding conflicts of interest. Governing Authority Members should refer to Policy No. **1410**, Eligibility and Background Checks, to ensure no other conflicts prevent a board member from serving.

Penalties

Failure of any School Governing Authority Member, Official or Employee to abide by this Ethics policy, Policy No. **1410** Eligibility and Background Checks, or to comply with the Ethics Law and related statutes, will result in discipline, which may include dismissal, as well as any potential civil or criminal sanctions.

Ohio: R.C. 1.03, R.C. 102.03(D)-(E), R.C. 102.99(B), R.C. 2921.42(A)(1)-(4), R.C. 3326.11.

Cross Reference: Policy No. **1460**, Mandatory Periodic Ethical Review; Form No. **1450.1**, Annual Statement of Disclosure.

1450.1 – Annual Statement of Disclosure

Pursuant to R.C. 1.03, R.C. 102.03(D)-(E), R.C. 102.99(B), R.C. 2921.42(A)(1)-(4), all members of the Governing Authority of the School must annually file a disclosure statement regarding conflicts of interest, setting forth the names of any immediate relatives or business associates employed by any of the following within the past three years:

- any School district or ESC that has contracted with the School, and
- any Vendor that has engaged in business with the School.

_____ I have received a copy of the Ethics and Conflicts of Interest Policy and have read and understood the policy as written. I acknowledge that **I do not have** outside employment or a conflicting interest with regard to any transaction or arrangement to which the School is a party. I agree that if a situation arises that may result in a conflict to report and disclose all conflicts of interest in accordance with the conflict disclosure procedure.

_____ I have received a copy of the Ethics and Conflicts of Interest Policy and have read and understood the policy as written. I acknowledge that **I do have** outside employment and or a conflict of interest and agree to report and disclose all conflicts of interest in accordance with the conflict disclosure procedure.

If outside employment, please list the employer:

If a conflict of interest is indicated, please provide the nature of the conflict:

My signature indicates that I agree that I have read, understood and agree to abide by the Ethics and Conflicts of Interest Policy.

Signature of Member

Date

Print Name

Ohio: R.C. 102.03(B).

Cross-Reference: Policy No. **1450**, Ethics and Conflicts of Interest Policy.

1460 – Mandatory Periodic Ethical Review

In order to ensure that the School is adhering to its mission and Policies, conforming to all federal, state, or local laws and preserving its status as a non-profit tax-exempt corporation, the Governing Authority shall conduct periodic reviews with or without the assistance of an outside expert. Periodic reviews must include, but are not limited to, the following activities:

- Ensuring that all compensation agreements entered into by the School are free of any conflict of interest and are reasonable and justifiable in light of compensation surveys as well as compensation previously paid in similar situations for similar services.
- Ensuring that all contracts or other business arrangements entered into by the School conform with the School's policies, do not qualify as excess benefit transactions, and do not jeopardize the tax-exempt status of the School.

Cross Reference: Policy No. **1450**, Ethics and Conflicts of Interest Policy; Policy No. **1750**, Financial Duties and Responsibilities.

1470 – Governing Authority Members; Qualifications

The Governing Authority shall consist of not less than five members, of which members shall be chosen in the manner specified in the School's Code of Regulations.

All Governing Authority members shall be annually trained on open records and public meeting laws, along with all school leaders and administrative staff.

The School shall post on the School's website the name of each member of the Governing Authority. The names and addresses of each Governing Authority member shall be provided upon request to the School and the Ohio Department of Education.

Qualifications

No person shall serve on the governing authority under any of the following circumstances:

- the person is a member of a school district board of education;
- the person owes the state money or is in a dispute over whether the person owes the state any money concerning a community school that the State has closed;
- the person would be unable to obtain a teaching license for reasons specified in R.C. 3319.31(B);
- the person has pleaded guilty to or been convicted of theft in office or a substantially similar offense in another state;
- the person has not submitted to a background check under R.C. 3319.39;
- the Auditor of State has submitted a finding of recovery against the person which has not been resolved;
- the person serves on the governing authority of five or more start-up community schools;
- additional requirements as provided for under Ohio's Ethics Laws; and
- additional requirements as provided for in the Code of Regulations.

Ohio: R.C. 3319.39, 3319.391, 3326.11.

1500 – Governing Authority Meetings

Policy No. 1510

1510 – Public Meetings and Notification

Except as otherwise provided by these Policies or by law, Governing Authority Members must be in a Formal Meeting to take official action or to conduct official business. All formal meetings must comply with the requirements set forth in R.C. 121.22, Ohio's Open Meetings Law.

A Formal Meeting is defined under Ohio law to include any activity entered into by the Governing Authority or members of the Governing Authority for the purpose of conducting School business. A formal meeting is not defined to include a Governing Authority retreat, a professional development activity, or an interview session with someone other than a public official. Activities not considered a formal meeting do not need to comply with Ohio's Open Meetings Law.

Formal Meetings can be further classified into three (3) types: regularly scheduled meetings, special meetings, and emergency meetings. Each meeting has different notification requirements that must be adhered to by law.

Regularly Scheduled Meetings

A regularly scheduled meeting is conducted for the purpose of discussing and conducting regular or on-going School business. To ensure that every person can reasonably ascertain the date, time, and location of all regularly scheduled meetings, the following notification requirements shall be followed:

- the date, time, and location of each regularly scheduled meeting shall also be published on the School's website, and
- the date and time of each regularly scheduled meeting shall be posted at the meeting location.

Special Meetings

A Special Meeting is one which has been called for a particular purpose. For each special meeting, the following notification requirements shall be followed:

- any news media that has requested notification shall be notified no later than 24 hours in advance of the special meeting;
- the date and time of the special meeting shall be posted at the meeting location; and
- the time, date, and location of the special meeting shall be posted on the School's website, if one exists.

Emergency Meetings

An emergency meeting is one which has been called in response to a situation or circumstances constituting an emergency. With respect to emergency meetings, the following notification requirements shall be met:

- any news media that has requested notification shall be notified as soon as possible; and
- the date and time of the meeting shall be posted at the meeting location as soon as possible.
-

In addition to the aforementioned notification requirements, any individual may obtain reasonable advance notification of all meetings through either of the following methods:

- providing a valid e-mail address; or
- providing self-addressed and stamped envelope(s).

Ohio: R.C. 121.22.

Cross Reference: Policy No. **1570**, Public Participation at Governing Authority Meetings; Policy No. **6110**, Visitors; Policy No. **6210**, Media Relations.

1511 – Virtual Meetings and Hearings

Members of the Governing Authority may hold and attend meetings and may conduct and attend hearings by means of video conference or any other similar electronic technology. Any resolution, rule, or formal action of any kind adopted or taken at such a meeting or hearing has the same effect as if it occurred during an open meeting or hearing of the public body.

Notification

Whenever a member of the Governing Authority will attend a meeting or hearing by video conference or other similar technology under this policy, the Governing Authority will provide notification to the public, to the media that have requested notification of a meeting, and to the parties required to be notified of a hearing at least 72 hours in advance of the meeting or hearing by reasonable methods by which any person may determine the time, location, agenda of the meeting or hearing, and the manner by which the meeting or hearing will be conducted, except in the event of an emergency requiring immediate official action. An emergency meeting under this policy is one which has been called in response to a situation or circumstances constituting an emergency.

In the event of an emergency, the Governing Authority will immediately notify the news media that have requested notification or the parties required to be notified of a hearing of the time, place, and purpose of the meeting or hearing.

Any member of the public body who intends to attend a meeting by means of video conference or other similar electronic technology under this policy shall notify the chairperson of that intent not less than 48 hours before the meeting, except in the case of an emergency as defined above.

Public Access

The Governing Authority will provide the public access to a meeting held under this policy, and to any hearing held under this policy that the public would otherwise be entitled to attend, commensurate with the method in which the meeting or hearing is being conducted, including for example, livestreaming by means of the internet, television, cable, or public access channels, or by means of any other similar electronic technology. The public will be able to observe and hear the discussions and deliberations of all the members of the Governing Authority, whether the member is participating in person or electronically.

Members of the Governing Authority will maintain sufficient internet or other electronic connection to allow the member to be seen and heard clearly, and shall be visible at all times.

Voting

All votes taken in the meeting or hearing shall be taken by roll call vote unless there is a motion for unanimous consent, and the motion is not objected to by a Governing Authority member. If a vote is taken unanimously, the Governing Authority shall provide the public with information on how the members voted, including any members who abstained from voting.

Prohibitions

If, upon the notification of an upcoming meeting of the Governing Authority, and not later than 48 hours before the meeting, the greater of at least ten per cent of the members or two members of the Governing Authority, notifies the president that an item in the agenda must be acted upon at a meeting conducted fully in person, upon the chairperson's acknowledgment of receipt of the notification, the Governing Authority shall take action on the item of the agenda only at a meeting conducted fully in person.

The Governing Authority shall not hold a hearing, and members shall not attend a hearing, by means of video conference or other similar electronic technology without the consent of all parties to the hearing.

The Governing Authority cannot hold, and no member may attend, meetings or conduct and attend hearings by means of video conference or other similar electronic technology if the meeting or hearing involves a vote to approve a major nonroutine expenditure and/or the meeting or hearing involves a vote to approve a significant hiring decision.

Further, the Governing Authority cannot hold, and members cannot attend, meetings or conduct and attend hearings by means of video conference or other similar electronic technology if, excluding expense reimbursements for actual expenses incurred while fulfilling their duties, the members of the Governing Authority are compensated for their position as members of the Governing Authority. See Policy No. **1430**.

Ohio: R.C. 121.221

Cross Reference: Policy No. **1560**, Attendance at Governing Authority Meetings; Policy No. **1430**, Compensation.

Policy No. 1520

1520 – Executive Sessions

Under Ohio's Open Meetings Law, official School business must be conducted during a meeting that is open to the public. During an open meeting, there are times when the Governing Authority may enter an executive session. An executive session can be held during regularly scheduled, special, or emergency meetings and be entered in the following instances:

- considering the appointment, employment, dismissal, discipline, promotion, demotion, or compensation of a public employee, or the investigation of charges or complaints against a public employee, unless the public employee requests a public hearing;
- considering the purchase of property for public purposes, or the sale of property at competitive bidding, if premature disclosure of information would give an unfair competitive or bargaining advantage to a person whose persona, private interest is averse to the general public interest;
- conferencing with an attorney representing the Governing Authority concerning a dispute involving the Governing Authority that is the subject of pending or imminent court action;
- preparing for, participating in, or reviewing negotiations or bargaining sessions with public employees concerning compensation or other terms and conditions of employment;
- matters required to be kept confidential by federal law or regulations or state statutes or regulations; and
- details relative to the security arrangements and emergency response protocols for a public body or public office, if disclosure of the matters discussed could reasonably be expected to jeopardize the security of the School or the Governing Authority.

An executive session may be entered when the public meeting concludes, and a Governing Authority Member makes a motion to enter an executive session. The Member shall state the purpose for entering an executive session. The motion must be seconded, and a majority of all Governing Authority Members present must then vote—via roll call—in favor of entering an executive session.

The minutes shall indicate the purpose stated for the executive session as well as the results of the vote. If the purpose of the executive session is the appointment, dismissal, or other action regarding a public employee, the minutes shall indicate the purpose of the executive session but need not include the name of the person to be considered.

All resolutions, rules, or formal actions of any kind undertaken during an executive session must be adopted in an open meeting to be valid. Any resolution, rule or formal action adopted in an open meeting pursuant to deliberations during an executive session will not be valid unless the executive session during which the deliberations occurred strictly complied with this policy.

Ohio: R.C. 121.22.

1530 – Parliamentary Procedure

The Governing Authority wishes to achieve the following goals at each Governing Authority meeting:

- that the Governing Authority meeting proceeds in an organized and efficient manner;
- that the Governing Authority Members have the information necessary to participate fully and effectively in Governing Authority actions and discussions;
- that the meeting is conducted in a manner that is accessible and informative to the public; and
- that each decision made by the Governing Authority is determined strictly by its merits and not by any manipulations of the applicable procedural rules.

Accordingly, the Governing Authority shall use Robert’s Rules of Order, Newly Revised, as modified by federal and state law, these Policies, the Code of Regulations, or any other ruling or order issued by the Governing Authority.

1540 – Method of Voting

Except as specifically required by statute, this Policy Manual, and the Code of Regulations, a motion shall be considered passed upon an affirmative majority vote of all Governing Authority Members *present*.

Governing Authority Members may abstain from voting. An abstention shall be considered and recorded as a vote in favor of the outcome, unless a certain number of votes is specifically required or the vote results in a tie, in which case the motion shall be deemed to have failed.

A vote may be conducted by a voice vote or a show of hands, unless a roll call vote is specifically requested or is required by statute, these Policies, or the Code of Regulations.

1550 – Minutes of the Governing Authority Meetings

The minutes are the only official record of the Governing Authority meeting. It is important that the minutes be recorded in a reasonably detailed format, so the public may understand the events of the meeting. Accordingly, the minutes of each Governing Authority meeting shall include:

- the time, date, and location of the meeting;
- the type of meeting (regularly scheduled, special, or emergency meeting);
- the names of all Governing Authority Members present at the meeting;
- any changes made to the minutes from the prior meeting;
- the topic and content of all discussions and deliberations;
- the results of any vote, as well as any other action taken by the Governing Authority; and
- any other information required to be included and available to the public pursuant to law, these Policies, or the Code of Regulations.

With respect to an executive session, the minutes shall include a general description of the topics discussed.

Within a reasonable time prior to each regularly scheduled Governing Authority meeting, each Governing Authority Member shall be provided with a copy of the minutes of the previous meeting so as to enable him/her to knowingly vote on approving the minutes of the prior meeting. After the minutes of the previous Governing Authority meeting have been approved by a majority vote of the Governing Authority Members, the approved minutes shall be permanently kept on file in an official minute book in the School office.

Ohio: R.C. 121.22.

1560 – Attendance at Governing Authority Meetings

Governing Authority meetings are the primary method by which School business is conducted. Each Governing Authority Member is required to make every reasonable effort to attend all Governing Authority meetings, either in person or virtually, consistent with Governing Authority Policy No. **1511**. A Governing Authority Member will be removed if the Governing Authority Member fails to attend three (3) consecutive meetings or failure to attend five (5) meetings in one (1) year. The vacated position shall then be filled pursuant to Code of Regulations.

If a Governing Authority Member's ability to attend a meeting(s) is made unreasonable due to exceptional circumstances outside the Governing Authority Member's control, the Governing Authority Member may request, in writing, an attendance waiver for the meeting(s) missed. The requested attendance waiver will be voted upon at the next regularly scheduled meeting by all members present except the Governing Authority Member who requested the attendance waiver.

Members of the Governing Authority who attend meetings or hearings by means of video conference or any other similar electronic technology in a manner permitted by Ohio law and consistent with Policy No. **1511** shall be considered present as if in person at the meeting or hearing, shall be permitted to vote, and shall be counted for purposes of determining whether a quorum is present at the meeting or hearing.

Cross-Reference: Policy No. **1511**, Virtual Meetings and Hearings, Policy No. **1450**, Ethics and Conflicts of Interest Policy.

1570 – Public Participation at Governing Authority Meetings

The Governing Authority recognizes that public participation is an essential element in the effective operation of the School. Accordingly, members of the public are invited to attend and participate in Governing Authority Meetings. To ensure public participation is orderly and efficient, the School adopts the following rules.

Placing Items on the Agenda

Any proposed agenda topics shall be submitted in writing to the Head Administrator at least one (1) day in advance of the regularly scheduled Meeting. The written notification shall include the individual's name, the individual's affiliation, a reasonably detailed description of the agenda topic, and the individual's contact information.

Public Participation Time Limit

The cumulative time limit for all public participation at any of the following: (1) Governing Authority meeting shall not exceed twenty (20) minutes. Each statement or opinion shall not exceed two (2) minutes in length. No individual shall make more than one statement on the same topic unless and until all other members of the community wishing to express a statement or opinion about the topic have had an opportunity to do so.

Participation Procedure

Members of the community may not speak unless and until they are recognized by the presiding officer. Prior to presenting a statement or opinion, each member of the community, once recognized by the presiding officer, must state his/her name, address, and the name of any group with which he/she is affiliated, if any.

Preserving Order

To preserve order, the presiding officer may caution, limit, or exclude any statement that exceeds the two (2) minute time limit or any statement or opinion that the presiding officer deems to be inappropriate or offensive. Additionally, the presiding officer may require any individual to leave the Meeting if they are disruptive; and may temporarily adjourn the Meeting if the

- ask for assistance from law enforcement in removing any member of the community who refuses to comply with the reasonable demands of the presiding officer;
- temporarily adjourn the Governing Authority meeting if the behavior of the public attendants and participants makes it impossible or impractical to continue the meeting;
- disregard any of the aforementioned rules so long as such waiver is not inconsistent with state statutes or regulations;
- any individual intending to participate at a Governing Authority meeting shall so notify the Governing Authority upon their arrival at the Governing Authority meeting;
- members of the community will be permitted to speak at a time indicated on the agenda, or at any other time during the Governing Authority meeting as permitted by the presiding officer;

- all questions, statements, and other statements from members of the community shall be addressed to the presiding officer and shall not be directed to any individual Governing Authority Member.

Recordings

The School prohibits audio or video recordings at a Meeting unless the recording has been approved by the Head Administrator prior to the meeting. The Head Administrator shall approve, and permit, video recordings provided the video recorder does not create any type of obstacle or barrier between the Governing Authority Members and the public.

Additional Rules

The Governing Authority has the authority and the discretion to formulate additional rules, so long as they are not in conflict with the state statutes, the aforementioned rules, or other Policies.

The presiding officer has the authority to ensure that these rules are followed, as well as to ensure that the Governing Authority meeting progresses in an orderly and efficient fashion.

Cross Reference: Policy No. **1510**, Public Meetings and Notification; Policy No. **1530**, Parliamentary Procedural Policy No. **6110**, Visitors; Policy No. **6210** Media Relations.

1600 – Other Managing Entities

Policy No. 1620

1620 – Authority to Designate Fiscal Officer

The School shall have a designated Fiscal Officer.

Prior to becoming the School's Fiscal Officer, the individual must be licensed as a school treasurer by the State Board of Education unless provided otherwise in R.C. 3314.011.

The Fiscal Officer, prior to beginning service, is required to execute a bond in an amount and with surety to be approved by the Governing Authority made payable to the state and conditioned upon the faithful performance of all the official duties required of the Fiscal Officer. The bond shall be deposited with the Governing Authority, and a copy thereof, certified by the Governing Authority, shall be filed with the county auditor.

The School may allow for the use of an employee dishonesty and faithful performance of duty policy, rather than a surety bond, to cover losses caused by the fraudulent or dishonest actions of, and/or the failure to of the Fiscal Officer to perform a duty prescribed by law only by adopting, by resolution, a separate policy permitting the use of such an insurance policy.

Ohio: R.C. 3314.011; R.C. 3.061

Cross-Reference: Policy No. **1630**, Relationship Among Different Managing Entities.

1640 – Sunshine Law and Open Meeting Training

Annual training on Public Records and Open Meeting Laws must be completed by the following:

- Governing Authority Members,
- Treasurer,
- Administrators, and
- All individuals under contract with an operator who perform supervisory or administrative services.

1700 – Duties of the Governing Authority

Policy No. 1710

1710 – Development, Revision, and Distribution of Policies

The Governing Authority, with the assistance of the Head Administrator shall develop, maintain, and amend Policies in accordance with the School's mission, state law, and federal law.

Developing Policies

The Governing Authority is ultimately responsible for the developing Policies. In developing Policies, the Governing Authority can accept advice and suggestions from the Head Administrator and from the Treasurer.

Maintaining and Amending Policies

The Governing Authority shall review its existing Policies on a regular basis and adopt any necessary changes. The Governing Authority shall have the discretion to develop its own Policy review schedule, provided that such review occurs at least once per year. If any Policy changes are made, the changes shall be communicated promptly and, in a manner, reasonably expected to reach members of the School and the community.

Distributing Policies

This Policy Manual is considered a public record. The purpose of the manual is to serve as a guide to Governing Authority Members, officers, employees, students, parents, and members of the community. A current version of these Policies is maintained in the Governing Authority's offices and the Head Administrator's offices. The Policy Manual is available for visual inspection during normal office hours.

Developing Guidelines and Procedures

To further the School's policies, the Governing Authority designates the Head Administrator or his/her designee to develop and implement guidelines and procedures.

Cross Reference: Policy No. **1220**, General Powers of the Governing Authority; Policy No. **1230**, Additional Powers of the Governing Authority.

1730 - Duty to Report Certain School Information

In conformance with the reporting requirements imposed by the Ohio Revised Code, the Governing Authority, in the form and manner required by the Ohio Department of Education (ODE), shall report all of the following information:

- a) The total number of students enrolled in the school who are Ohio residents;
- b) The number of Ohio students who are receiving special education and related services pursuant to an IEP;
- c) For each Ohio student receiving special education and related services pursuant to an IEP, which category specified in divisions (A) to (F) of section 3317.013 of the Revised Code applies to the student;
- d) The full-time equivalent number of Ohio students who are enrolled in career-technical education programs or classes described in each of divisions (A)(1), (2), (3), (4), and (5) of section 3317.014 of the Revised Code that are provided by the School;
- e) The number of Ohio students who are English learners and which category specified in divisions (A) to (C) of section 3317.016 of the Revised Code applies to each student;
- f) The number of Ohio students who are economically disadvantaged, as defined by ODE. A student shall not be categorically excluded from the number reported based on anything other than family income.
- g) The resident district of each Ohio student enrolled in the School;
- h) The total number of students enrolled in the school who are not residents of this state and any additional information regarding these students that ODE requires the School to report. The school shall not receive any payments from the state for non-Ohio students.
- i) Any additional information the department determines necessary to make payments under the law.

Ohio: R.C. 3326.32.

1741 – Public Records Access Policy

Public records shall be made available to any person for inspection or copying during normal business hours and at the location where the requested public records are normally stored and maintained. For purposes of this Policy, the database maintained by the School which contains the names and dates of birth for each Governing Authority Member or staff member shall be considered a public record.

Upon the receipt of a public records request, either verbally or in writing, the rules and guidelines stated below shall be adhered to.

- A School representative or employee shall be present for the duration of the inspection.
- Public records shall not be removed from the office or other location where they are stored and maintained, unless removed by a Governing Authority Member, employee, or other representative in the course of business.
- With only one exception, as indicated immediately below, access to public records shall not be conditioned on the requesting party's willingness to disclose his identity/her or the purpose of the information requested, or to submit the public records request in writing. The School representative or employee may, however, make such a request, so long as he/she notifies the requesting party that such action or information is not mandatory.
- Student directory information shall not be used in any for-profit activity. The School representative or employee has the authority to question the requesting party regarding the proposed use of student directory information to the extent necessary to assure that the information will not be used in any for-profit activity, and to limit access to that information accordingly.
- Through request and payment of a fee, the requesting party may obtain copies of any public records. The fee shall only be out of pocket costs. The "per page" fee must be the same fee paid by the office. The School cannot charge for time for compiling records. The copying fee shall be established by a resolution of the Governing Authority.
- When making available any requested public records, the School representative or employee shall redact all personal information and personally identifiable information and shall either alert the requesting party to the redactions or otherwise make the redactions obvious to the requesting party.
- If a public records request is overly broad or ambiguous or the School representative or employee cannot reasonably identify what records are requested or there are other reasons under the law that provide a basis for denial of a request or exclusions of certain records, the School representative or employee may deny request, in whole or in part, as appropriate. If the initial request was in writing, the denial must be in writing as well. The denial shall include the reason for denial. If, in addition to the aforementioned reasons for denial, there exists another legal basis for denial, the additional legal basis does not need to be identified in the denial in order to be preserved.

In order to ensure that this Public Records Access Policy is available and accessible to staff, students, and members of the community, the following guidelines shall be followed:

- copies of the Public Records Access Policy shall be re-printed in the Personnel Handbook as well as any other handbook or policy guide directed to School employees;
- a poster regarding the Public Records Access Policy shall be posted in an obvious location in each of the facility buildings and offices.

Minors Involved in School Vehicle Accidents

The name, address, contact information and other personal information of a minor shall be exempt from the Public Records Law, if it is included in the record of a school vehicle traffic accident and the minor was in the vehicle at the time of the accident.

If the parent or guardian of a minor who was an occupant of a school vehicle involved in a traffic accident requests a copy of a record of the accident that contains the minor's personal information, then the School must respond to the request, so long as the request is submitted in writing and identifies the minor and the recipient of the record. The personal information of any other minor who may have been an occupant of the school vehicle involved in the accident must be redacted before the record is provided to the requestor.

It is important that School employees and representatives are knowledgeable regarding this Public Records Access Policy as well as the accompanying state statutes.

Each and every School representative or employee who is in charge of public records shall receive a copy of this Public Records Access Policy and shall sign a copy of Form No. **1741.1** acknowledging their receipt of this Policy.

Ohio: R.C. 149.43, R.C. 109.43.

Cross-Reference: Form No. **1741.1**, Public Records Access Poster; Form No. **1741.2**, Acknowledgement of Receipt of Public Records Access Policy.

1741.1 – Public Record Access Poster

In accordance with section 149.43 of the Ohio Revised Code, all public records are made available for inspection and/or copying during normal business hours at the office in which they are stored and maintained. The following rules apply to any request.

- Any individual wishing to inspect or obtain copies of public records must submit a request for public records. Such a request may be either verbal or in writing. It is suggested, however, that the request be made in writing, as this may facilitate the identification and location of the requested record(s).
- It is not necessary for any person to disclose his or her identity when making a public request.
- Student directory information may not be used as part of any for-profit activity.
- A fee of 10 cents per page must be paid by the requesting party prior to receiving any requested copies.
- If a public records request is overly broad or ambiguous or the School representative or employee cannot reasonably identify what records are requested or there are other reasons under the law that provide a basis for denial of a request or exclusions of certain records, the School representative or employee may deny request, in whole or in part, as appropriate. The denial shall include the reason for denial. The denial must be in writing only when the original request was in writing.

***Note: This poster provides a brief summary of the Policies contained in the Public Records Access Policy. If there is any discrepancy or conflict between the information presented in this poster and the information contained in the Policy, the information contained in the Public Records Access Policy shall prevail.*

1741.2 – Acknowledgment of Receipt of Public Records Access Policy

I hereby acknowledge that I have received a copy of the Public Record Access Policy. I understand that, as an employee or representative in charge of public records, I am legally obligated to adhere to the rules and guidelines included therein.

Signed: _____ Date: _____
Signature of Employee

1742 – Internet Public Record Redaction Policy

The School shall redact, encrypt, or truncate any individual's social security number that appears on any public record that is available via the Internet. If the School realizes that a social security number which was mistakenly not redacted, encrypted, or truncated, the School shall take action to redact, encrypt, or truncate the social security within a reasonable time period.

“Available on the internet” is defined to exclude documents that, while technically available on the internet, can only be accessed with a password.

Any member of the public whose personal information appears on any document available on the internet may request that such personal information be redacted. Personal information includes social security number, federal tax identification number, driver's license number or state identification number, individual checking account number, savings account number, or credit card number. A request for redaction must be submitted in writing, on a form adopted by the Ohio Attorney General and included herein as Form No. **1742.1**. The School shall redact all personal information as requested within five (5) days of receipt of the request. If the School determines that it is impractical to redact the requested information, the School shall attempt to contact the requesting party within five (5) days of receipt of the request and explain why the request is impractical.

Ohio: R.C. 149.45.

Cross Reference: Policy No. **1741**, Public Records Access Policy; Policy No. **1743**, Retention, Management, and Disposal of Records; Policy No. **3833**, Tracking Missing Children; Policy No. **3831**, Student Records and Release of Information; Policy No. **5810**, Personnel Records File; Form No. **1742.1**, Request to Redact Personal Information.

1742.1 – Request to Redact Personal Information

Adopted from the Ohio Department of Education: Request to Redact Personal Information

https://education.ohio.gov/getattachment/Miscellaneous/Privacy/Request_to_Redact_Personal_Info.pdf.aspx

Under paragraph 149.45(C)(1) of the Ohio Revised Code, an individual may request that a public office or a person responsible for a public office's public records redact specified types of personal information of that individual from any record made available to the general public on the internet. An individual who makes a request for redaction "shall...provide any information that identifies the location of that personal information within a document that contains that personal information." O.R.C. 149.45(C)(1) If redaction is not practicable, the public officer or person responsible for the public office's public records shall verbally or in writing within five business days after receiving the written request explain to the individual why the redaction is impracticable. O.R.C. 149.45 (C) (3)

I, _____, request that the Office of
(Print full name)

redact the following items of personal information from being made available to the public on the Internet:

(Please check all that apply)

- ___ Social security number
- ___ Checking account number
- ___ Tax identification number
- ___ Savings account number
- ___ Driver's license number
- ___ Credit card number
- ___ State identification number as issued by the Ohio Bureau of Motor Vehicles

For each item of personal information checked above, please identify the location of that information within any record made available by this office to the public on the internet:

Document Title and Description:
Specific Web Address (URL):
Location of Information Within Document:

(Use the back of this form to identify additional locations of personal information items.)

Signature of Requester: _____

The public office may need to contact you:

- 1) To request additional information to locate your specific personal information to be redacted or to identify the appropriate public office responsible for redacting your personal information.
- 2) To provide you with an explanation within five (5) business days after receiving your written request if a requested redaction is impracticable.

Please provide contact information below, or indicate that you will contact this office, to receive any explanation. This form is a public record, and the information you provide may be released in response to a public records request.

Address: _____

Telephone Number: (____) _____ E-mail address: _____

____ I do not wish to provide contact information. I will contact the office for any explanation.

Date Request Received ____/____/____ (To be completed by the public office)

Document Title and Description:
Specific Web Address (URL):
Location of Information Within Document:

Document Title and Description:
Specific Web Address (URL):
Location of Information Within Document:

Document Title and Description:
Specific Web Address (URL):
Location of Information Within Document:

Document Title and Description:
Specific Web Address (URL):
Location of Information Within Document:

Document Title and Description:
Specific Web Address (URL):
Location of Information Within Document:

1743 – Retention, Management, and Disposal of Records

For the School to operate efficiently, the School must effectively manage its records. To accomplish this goal and to comply with Ohio law, the School has established a Record Commission.

The Records Commission shall include of the President of the Governing Authority, the Treasurer, and the Head Administrator. The Records Commission shall meet at least once every twelve months. The Records Commission has the authority and the discretion to appoint records officers who shall perform the necessary work associated with the storage, retention, and disposal of records.

Schedule of Records Retention and Disposition

The Records Commission shall create and adopt a Schedule of Records Retention and Disposition (“Schedule”) (Form RC-2), which classifies different types of School records and designates an appropriate retention period for each. The Schedule suggested by the Ohio Historical Society is hereby included as **Form No. 1743.1**. The Records Commission has the authority to review and revise this Schedule as necessary.

After adopting a Schedule or revising a schedule, the Records Commission shall forward the Schedule to the Ohio Historical Society. The Records Commission shall keep a copy of the Schedule. The Schedule shall become effective upon approval by the Ohio Historical Society and the State Auditor.

Certificate of Records Disposal

Prior to disposing of any School records, the members of the Records Commission, or the records officers, if any, shall submit to the records commission a Certificate of Records Disposal (“Certificate”) (Form RC-3). An example of the Certificate may be found at **Form No. 1743.2**. The submitted Certificate(s) shall list records that are eligible for disposal pursuant to the Schedule. The records commission shall meet at least once each year to review the submitted Certificates. Following approval of the Certificate(s) by the records commission, the guidelines stated below shall be adhered to.

- The records commission shall make a copy of all approved Certificates and shall maintain these copies for its records.
- The original Certificate(s) shall be forwarded to the Ohio Historical Society Network Specialist for the county in which the School is located no later than fifteen (15) days prior to the proposed disposal date. The records commission does not need to send a copy of the Certificate(s) to the State Auditor’s office. The Ohio Historical Society Network Specialist shall send a copy.
- The Records Commission shall wait at least fifteen (15) days after forwarding the Certificates to the Ohio Historical Society Network Specialist before disposing of the indicated records. During this time period, the records commission may be notified that the proposed disposal is inappropriate or that the Ohio Historical Society considers some or all of the documents to have continuing historical value and wishes, therefore, to take custody of them. The Ohio Historical Society may not review or select for its custody any of the following:
- Records containing personally identifiable information concerning any student, without the written consent of the parent, guardian, or custodial of each such student who is less than

eighteen (18) years of age, or without the written consent of each student who is eighteen (18) years of age or older.

- Records, the release of which would, according to the “Family Educational Rights and Privacy Act of 1974,” 88 Sta. 571, 20 U.S.C.A. 1232g, qualify disqualifies a school or other educational institution from receiving federal funds.
- At the end of the fifteen (15) day period, any records which have not been opposed to or taken custody of may be disposed of. The Treasurer, serving as secretary of the records commission, shall arrange for the appropriate disposal of such documents.

Emails and Other Correspondence

Emails and other forms of correspondence are not considered a record. Instead, these messages should be categorized, retained, stored, and disposed of based upon the contents of each email or other form of correspondence. As suggested by the Ohio Historical Society, e-mail correspondence can be grouped into four (4) different categories:

Not an Official Record. If an email or correspondence does not document the organization, functions, policies, decisions, procedures, operations, or other activities of the School, it is not considered a “record” and, therefore, may be deleted immediately. Examples of non-records include personal messages as well as publications, promotional items, and similar materials (unless it is part of a larger material that is considered a record).

Official Record of Transient Retention. If an email or other correspondence serves a limited administrative value, then it shall be retained only until it no longer serves its limited administrative purpose. Examples of official records of transient retention include messages regarding upcoming meetings and messages which substitute for verbal conversation, as might otherwise occur in the hallway or on the telephone. Official records of transient retention do not discuss policy or establish guidelines.

Official Record of Intermediate Retention. Official records of intermediate retention are those records considered general or routine correspondence. Routine correspondence includes referral letters and requests for routine information and shall be retained for a period of six (6) months. General correspondence includes informative letters and memos pertaining to agency and legal interpretations and shall be retained for a period of one (1) year.

Official Record of Long-Term Retention. Official records of long-term retention are those records which discuss policy, create rules or guidelines, or otherwise deal with significant administrative duties and responsibilities. These records shall be retained according to the Schedule as adopted by the Governing Authority.

Email Storage

Emails may be stored in the following formats:

- on-line storage, where the email is maintained in the email system;
- near-line storage, where the message is stored in an electronic record-keeping system; and
- off-line storage, where the message is physically printed and stored accordingly.

In order to assure that all necessary emails records are preserved, one of the following guidelines shall be adopted:

- the individual who sends the email is responsible for its retention. If an email is received from outside the School, any individual who receives the email is responsible for its retention.
- a special mailbox is created, and each time an email is sent, the sender shall send a carbon copy (cc) to said mailbox. The party charged with administering the mailbox, such as the IT department, shall retain the emails as necessary.

Ohio: R.C. 149.41.

Cross Reference: Policy No. **1741**, Public Records Access Policy; Policy No. **1742**, Internet Public Record Redaction Policy; Policy No. **3833**, Tracking Missing Children; Policy No. **3831**, Student Records and Release of Information; Policy No. **5810**, Personnel Records File; Form No. **1743.1**, Schedule of Records Retention and Disposition; Form No. **1743.2**, Certificate of Records Disposal.

1743.1 – Schedule of Records Retention and Disposition

The School has adopted the forms provided by the Ohio Historical Society. The Record retention forms are available on the Ohio Historical Society's website:

<https://www.ohiohistory.org/OHC/media/OHC-Media/Learn/Archives-Library%20Documents/School-Retention-Suggested-Schedule.pdf>

Section A: Local Government Unit

- Include the name of the municipality, county, township, school, library, or special taxing district (local government entity) for which the form is being submitted.
 - Include the unit (department, agency, office), if applicable.
 - The departmental official directly responsible for the records must sign and date the form.

Section B: Records Commission

- Complete the phone number and mailing address for the Records Commission, including the county.
- To have this form returned to the Records Commission electronically, include an email address. It is the responsibility of the Records Commission to forward an electronic or paper copy of the approved form to the appropriate department.
- The Records Commission Chairperson must sign the certification statement before it can be reviewed and signed at the Ohio Historical Society by the Local Government Records representative and approved by the Auditor of State's Office.

Section C: Ohio Historical Society – State Archives

- The reviewing agent from Ohio Historical Society Local Government Records Program (OHS-LGRP) will indicate on your RC-2 which records series will require a Certificate of Records Disposal (RC-3) prior to disposal.
- They will sign the form and forward it to the Auditor of State's Office.

Section D: Auditor of State

- The approving agent at the Auditor of State's office will sign the form and return it to the OHS-LGRP.

Section E: Records Retention Schedule

- 1) Schedule numbers can be expressed by a year and item numbering scheme for each records series being scheduled, for example, 09-1 and 09-2. Another option is to include a unique abbreviated identifier for each office, for example, Eng. [Engineer] 1, Eng. 2, etc. The numbering schema is your choice, and it will be used later on your Certificate of Records Disposal (RC-3).
- 2) Include the title of the records series and a brief description of each series. Please provide information about the content and use of the records series.
- 3) Articulate a retention period for the record in terms of time (exp. six years), an action (exp. until audited), or both (six years after audit).
- 4) Include the formats of the record (paper, electronic, microfilm, etc.)
- 5) For use by the Auditor of State or the OHS-LGRP. OHS-LGRP will mark the records series that will need an RC-3 prior to disposal.

General Instructions:

- For questions related to records scheduling and disposition, OHS-LGRP: (614) 297-2553 or at localrecs@ohiohistory.org

- After completing sections, A and E, submit the form to your records commission so it can be approved in an open meeting pursuant to Section 121.22 ORC. See Ohio Revised Code Section 149.38 (counties), 149.39 (municipalities), 149.41 (school districts), 149.411 (libraries), 149.412 (special taxing districts) and 149.42 (townships) for the composition of your records commission. Your records commission completes section B and sends the form to OHS-LGRP at:
localrecs@ohiohistory.org OR The Ohio Historical Society
 State Archives of Ohio
 Local Government Records Archivist
 800 E. 17th Avenue
 Columbus, OH 43211-2497
- The OHS-LGRP will review this RC-2 and forward it to the Auditor of State's Records Officer, Columbus.
- This RC-2 is in effect when all signatures have been affixed to it. OHS-LGRP will return a copy of the approved form to the Records Commission. *The local records commission and the originating office should retain permanent copies of the form to document legal disposal of public records.*
- Remember, at least 15 Business days before you intend to dispose of records, submit a Certificate of Records Disposal (RC-3) to the OHS-LGRP. Copies of RC-3s will not be returned.

RECORDS RETENTION SCHEDULE (RC-2)
See instructions before completing this form.

For State Archives - LGRP Use Only

Date Reviewed: _____

Form Scanned: _____

Section A: Local Government Unit (To complete this form online, use "tab" key to jump from box to box.)

(local government entity) (unit)

(signature of responsible official) (name) (title)
(date)

Section B: Records Commission

Records Commission (telephone number)

(address) (city) (zip code)
(county)

To have this form returned to the Records Commission electronically, include an email address:

I hereby certify that our records commission met in an open meeting, as required by Section 121.22 ORC, and approved the schedules listed on this form and any continuation sheets. I further certify that our commission will make every effort to prevent these records series from being destroyed, transferred, or otherwise disposed of in violation of these schedules and that no record will be knowingly disposed of which pertains to any pending legal case, claim, action or request. This action is reflected in the minutes kept by this commission.

Records Commission Chair Signature

Date

Section C: Ohio Historical Society - State Archives

Signature

Title

Date

Section D: Auditor of State

Signature

Date

**Please Note: The State Archives retains RC-2 forms permanently.
It is strongly recommended that the Records Commission retain a permanent copy of this form**

Section E: Records Retention Schedule

(local government entity)

(unit)

(1) Schedule Number	(2) Record Title and Description	(3) Retention Period	(4) Media Type	(5) For use by Auditor of State or OHS-LGRP	(6) RC-3 Required by OHS- LGRP
<u>1000</u>	GOVERNING AUTHORITY AND ADMINISTRATIVE RECORDS				☐
1101	Minutes Treasurer	Permanent			☐
1101.1	Audio Tapes Treasurer	2 years			☐

(1) Schedule Number	(2) Record Title and Description	(3) Retention Period	(4) Media Type	(5) For use by Auditor of State or OHS-LGRP	(6) RC-3 Required by OHS- LGRP
1102	Blueprints, Plans, Maps Business Office & Secretary	Permanent			☐
1103	Deeds, Easements, Leases Treasurer	Permanent			☐
1104	Governing Authority Policy Books and Superintendent Other Adopted Policies and Secretary	1 year after superseded			☐
1105	Administrative Regulations Superintendent and Secretary	1 year after superseded			☐
1106	Court Decisions Treasurer	Permanent			☐
1107	Claims and Litigation Treasurer	Permanent			☐
1201	Elections Treasurer	10 years			☐
1202	Record Disposal forms Treasurer (RC-3)	10 years			☐
1203	Bargaining Agreements Treasurer	10 years after expiration			☐
1204	Budget Policy Files Treasurer	5 years			
1301	Workers' Compensation Treasurer Claims	10 years after financial payment made			
1302	Bank Depository Agreements Treasurer	4 years after completion			
1303	Organization Reports Treasurer	2 years **			
1304	Governing Authority Meeting Notes Treasurer	1 year			
1305	Agendas Treasurer	1 calendar year **			

(1) Schedule Number	(2) Record Title and Description	(3) Retention Period	(4) Media Type	(5) For use by Auditor of State or OHS-LGRP	(6) RC-3 Required by OHS- LGRP
1401	Adopted Courses of Study Superintendent and Secretary	Until superseded			
1402	Adopted Special Education Superintendent Programs and Secretary	Until superseded			
1403	Adopted Special Programs Superintendent and Secretary	Until superseded			
2000	(Employee files include employment applications, resumes, contracts/salary notices, evaluations, personnel actions, absence certification, transcripts and any other documents which become part of the file.)				
2101	Certified Active Employees Asst. Supt., Personnel Secretary	Permanent			
2102	Classified Active Employees Asst. Supt., Personnel Secretary	Permanent			
2103	Certificated Inactive Employees Asst. Supt., Personnel Secretary	Permanent ***			
2104	Classified Inactive Employees Asst. Supt., Personnel Secretary	Permanent ***			
2105	Civil Rights, Civil Services And Disciplinary Reports Asst. Supt., Personnel Secretary	Permanent ***			
2107	Retirement Letters Asst. Supt., Personnel Secretary	Permanent ***			
2108	Substitute records Asst. Supt., Personnel Secretary	25 years			
2301	Employee Contracts Treasurer	4 years after termination from employment			

(1) Schedule Number	(2) Record Title and Description	(3) Retention Period	(4) Media Type	(5) For use by Auditor of State or OHS-LGRP	(6) RC-3 Required by OHS- LGRP
2302	Professional Conference Applications Asst. Supt., Personnel Secretary	2 years **			
2303	Irregular Employee Contracts (Substitutes, etc.) Treasurer	4 years after contract expires			
2304	Unemployment Claims Treasurer	5 years			
2305	Unemployment Treasurer	5 years			
2306	Applications (not hired) Asst. Supt., Personnel Secretary	2 years **			
2307	Schedules of Employees Asst. Supt., Personnel Secretary	Fiscal year plus 2 years			
2308	Student Helper Applications Asst. Supt., Personnel Secretary	2 Years			
2309	Teacher Personnel Reports (internal) Asst. Supt., Personnel Secretary	Fiscal year plus 1 year			
2310	I-9 Immigration Verification Forms Asst. Supt., Personnel Secretary	Termination of employment plus 1 year			
2401	Job Descriptions Asst. Supt., Personnel Secretary	Retain until superseded or obsolete			
3000	STUDENT RECORDS				
3101	Student Record Folders Secretary Enrollment/Withdrawal Information Grades/Transcripts Activities Records Attendance Records Individual Test Results Standardized Competency/Proficiency Bldg.	Permanent ***			

(1) Schedule Number	(2) Record Title and Description	(3) Retention Period	(4) Media Type	(5) For use by Auditor of State or OHS-LGRP	(6) RC-3 Required by OHS- LGRP
	Aptitude Intervention Records Foreign Exchange Records Suspensions/Expulsions Home Schooled Student Records				
3102	Office Record Card (K-9)Bldg. Secretary	Permanent ***			
3103	Cosmetology Records Voc. Secretary (Vocational)	Permanent ***			
3201	Health/Medical Records Nurse/Bldg. Visual Screening Secretary Hearing Screening Immunization Records	7 years after graduation			
3202	Discipline Records Bldg. Secretary Letters to Parents Office Discipline	1 year after student leaves school			
3203	Psychological Records Special Ed. (Restricted) Secy/Nurse	Permanent ***			
3204	Child Abuse/Neglect Bldg. Secretary Referral Letters	Through graduation			
3301	Teacher Grade Books/ Secretary Records	3 years **			
3302	Pre-School Screening Bldg. Secretary Profiles	3 years			
3303	Age and Schooling Records Bldg. Secretary (Work Permits)	3 years			
3304	Accident Reports Nurse/Bldg. Secretary	5 years provided no action pending			

(1) Schedule Number	(2) Record Title and Description	(3) Retention Period	(4) Media Type	(5) For use by Auditor of State or OHS-LGRP	(6) RC-3 Required by OHS- LGRP
3305	Individual Educational Secretary Plan (IEP) Bldg. Spec. Ed. Secy	Permanent			
3306	Free/Reduced Price Secretary Lunch Application Bldg.	4 years			
3401	Emergency Information Secretary Bldg.	Until superseded			
4000	BUILDING RECORDS				
4202	Tornado and Fire Drill Secretary Records Bldg.	1 year *			
4203	Building Health Inspections Secretary Bldg.	2 years *			
4301	Student Activity Records Secretary Pay-in forms Pay-out forms Account forms/Dist. Budget forms Requisitions Purchase orders Ticked sale reports Bldg.	2 years **			
4302	Receipts/Deposit Slips Secretary Bldg.	4 years **			
4303	Budget/Appropriation Secretary Records Bldg.	4 years **			
4304	Requisitions/ Secretary Purchase Orders Bldg.	10 years **			
4401	Textbook Inventories Secretary Bldg.	Until superseded			
4402	Supplies Inventory Secretary Bldg.	Until superseded			

(1) Schedule Number	(2) Record Title and Description	(3) Retention Period	(4) Media Type	(5) For use by Auditor of State or OHS-LGRP	(6) RC-3 Required by OHS- LGRP
4403	Student Handbooks Bldg. Secretary	Until superseded			
4404	Yearbooks Bldg. Secretary	Permanent			
4405	Security Tapes Bldg. Secretary	Permanent			
5000	CENTRAL DEPARTMENTAL RECORDS Administrative Offices				
5201	School Calendars Supt. Secretary	5 years			
5301	Repair, Installation and Business Office and Secretary Maintenance Records	4 years **			
5302	Prevailing Wage Records Business Office and Secretary	4 years **			
5303	Rental Information Business Office and Secretary (Use of Facilities)	4 years **			
5304	Work Orders Business Office and Secretary	4 years **			
5305	Environmental Reports Business Office and Secretary and Data (asbestos, etc.)	4 years **			
5306	Vandalism Reports Business Office and Secretary	4 years **			
5307	Student Activity Business Office and Secretary Purpose Clauses	4 years **			
5308	Sales Potential Forms Business Office and Secretary (Student Activities)	4 years **			

(1) Schedule Number	(2) Record Title and Description	(3) Retention Period	(4) Media Type	(5) For use by Auditor of State or OHS-LGRP	(6) RC-3 Required by OHS- LGRP
5309	Bids and Specifications Office (Unsuccessful) Business and Secretary	1 year **			
5310	Bids and Specifications Office (Successful) Business and Secretary	4 years after completion of Project **			
	Administrative Offices - Continued				
5311	Contractor Files (Resolutions, Office additions, drawings, etc.) Business and Secretary	Until project complete, if no action pending**			
5401	Preventive Maintenance Office Reports Business and Secretary	Fiscal year plus 2 years			
5402	Warranty/Guarantee Office Business and Secretary	Life/warranty of equipment			
5403	Plant and Equipment Office Inventory Business and Secretary	Until superseded **			
5404	Textbook/Workbook Dir. Inventory Curriculum and Secretary	Until superseded **			
5405	Supplies Inventory Office Business and Secretary	Until superseded **			
	Special Education Department				
5221	Special Education Tutoring Reports Special Ed. Secretary	10 years			
5222	Individual Educational Plan (IEP) Special Ed. Secretary	Permanent***			
5223	Psychological Records (Restricted) Special Ed. Secretary	Permanent***			
	Transportation Department				

(1) Schedule Number	(2) Record Title and Description	(3) Retention Period	(4) Media Type	(5) For use by Auditor of State or OHS-LGRP	(6) RC-3 Required by OHS- LGRP
5340	Driver Physical Transportation Secretary	2 years after termination			
5341	Fuel Consumption Data Transportation Secretary	4 years **			
5342	Transportation Records Transportation Secretary	4 years **			
5343	Field Trip Forms and Transportation Volunteer Driver Forms Secretary	Fiscal year plus 2 years			
5441	Accident Reports Transportation Secretary	3 years provided no action pending			
5442	Vehicle Registration Office Secretary	Life of vehicle			
5443	Vehicle License Office Business and Secretary	1 year after termination			
5445	Driver Certifications Transportation Secretary	1 year after termination			
5446	Supplies Inventory Transportation Secretary	Until superseded **			
5447	Vehicle Defect Report Transportation Secretary	Life of vehicle			
5448	Bus Video Tapes Transportation Secretary	Permanent			
	Food Service Department				
5561	Food Service Records Menus Food Production Milk Sold Students Served Cafeteria Supervisor	4 years **			

(1) Schedule Number	(2) Record Title and Description	(3) Retention Period	(4) Media Type	(5) For use by Auditor of State or OHS-LGRP	(6) RC-3 Required by OHS- LGRP
5562	Lunchroom Records Cash Register Tapes Cashier's Daily Reports	Cafeteria Supervisor	4 years **		
5563	Lunchroom Reports (Free and Reduced)	Cafeteria Supervisor	4 years **		
5564	Inventories	Cafeteria Supervisor	Until superseded **		
5565	Lunchroom License	Cafeteria Supervisor	1 year after expiration		
6000	FINANCIAL RECORDS				
6101	Annual Financial Reports Appropriation Ledgers Budget Ledgers Revenue Journals Vendor Listing Check Register Purchase Order Listing Invoice List Account Reports Financial Summary Detail Reports	Treasurer	5 years **		
6102	Activity Fund Cash Journal and Ledger	Treasurer	5 years **		
6103	Bond Register	Treasurer	20 years after issue expires		
6104	Securities	Treasurer	Permanent ***		
6201	Investment Ledger	Treasurer	5 years **		
6202	Foundation Distribution	Treasurer	5 years **		

(1) Schedule Number	(2) Record Title and Description	(3) Retention Period	(4) Media Type	(5) For use by Auditor of State or OHS-LGRP	(6) RC-3 Required by OHS- LGRP
6203	Tax Settlements Treasurer (Semi-Annual) and Advances	5 years **			
6204	Budgets (Annual) Treasurer	5 years **			
6205	Insurance Policies Treasurer	15 years after expiration provided all claims settled			
6206	Contracts Treasurer	15 years after expiration			
6207	Bonds and Coupons Treasurer	Until redeemed**			
6208	Accounts Payable Ledgers Treasurer	5 years **			
6209	Accounts Receivable Treasurer Ledgers	5 years **			
6210	Budget Work Papers Treasurer	5 years **			
6211	Vouchers, Invoices and Treasurer Purchase Orders	10 years **			
6212	State Program Files Treasurer Aux. Services, DPPF, Adult Vocational, Excess Lottery, Data Processing, Public/ Private Grants, etc.	10 years **			
6213	Federal Program Files Treasurer Title I, II, III, IV-B, IV-C, & VI-B; Chapter 1, 2; Drug Free, etc.	10 years **			
6214	Travel Expense Vouchers Treasurer	10 years **			

(1) Schedule Number	(2) Record Title and Description	(3) Retention Period	(4) Media Type	(5) For use by Auditor of State or OHS-LGRP	(6) RC-3 Required by OHS- LGRP
6215	Tax Anticipation Notes Treasurer (Records borrowing against future tax collections)	10 years **			
6216	State Reimbursement Treasurer Settlement Sheets	5 years **			
6217	Unemployment Claims Treasurer	5 years			
6218	Employee Bonds, Governing Authority Treasurer Member Bonds	5 years			
6219	Certificate of Estimated Treasurer Resources	15 years after expiration			
6220	Appropriation Resolutions Treasurer	5 years			
6222	Tax Apportionments Treasurer (Semi-Annual)	5 years			
6301	Canceled Checks and Treasurer Bank Settlements	4 years **			
6302	Publication Notice Treasurer	4 years **			
6303	Tuition Fees and Payments Treasurer	4 years **			
6304	School Finance (S.F.) Treasurer Monthly Statements	4 years **			
6305	Investment Records Treasurer (May include individual record of investments, bank confirmations, wire transfers, copy of CD, etc.)	4 years **			
6306	Travel Expense Reports Treasurer	10 years **			
6307	State Sales Tax Reports Treasurer	4 years **			

(1) Schedule Number	(2) Record Title and Description	(3) Retention Period	(4) Media Type	(5) For use by Auditor of State or OHS-LGRP	(6) RC-3 Required by OHS- LGRP
6308	Student Activity Fund Treasurer (Pay-ins, pay-outs, receipts/deposits, reports)	4 years **			
6309	Check Registers Treasurer	4 years **			
6310	Deposit Slips/Cash Proofs Treasurer	4 years **			
6311	Bids and Specifications Treasurer (Unsuccessful)	1 year **			
6312	Bids and Specifications Treasurer (Successful)	4 years after completion of project			
6313	Receipt Books Treasurer	4 years **			
6314	Extra Trip Records Treasurer	4 years **			
6315	Monthly Financial Reports Treasurer	4 years **			
6316	Accounting Data Treasurer	4 years **			
6317	Service Contracts Treasurer	4 years **			
6318	State Subsidy Reports Treasurer Applications for driver education, student transportation, special education, etc.	3 years **			
6319	Delivery/Packing Slips Treasurer	1 year **			
6401	Requisitions Treasurer	1 year *			

(1) Schedule Number	(2) Record Title and Description	(3) Retention Period	(4) Media Type	(5) For use by Auditor of State or OHS-LGRP	(6) RC-3 Required by OHS- LGRP
7000	PAYROLL RELATED				
7001	Payroll Ledgers Bi-Weekly Payroll Reports, Quarterly Payroll Reports Treasurer	Permanent ****			
7102	Earnings Registers By Staff Member By Calendar Year Treasurer	Permanent ****			
7103	Monthly Payroll Reports Treasurer Leave usage and accumulation, retirement service, etc.	Permanent ****			
7201	Bureau of Employment Service Quarterly Reports Treasurer	7 years			
7301	W-2's, W-4's (Employer copy) Treasurer	6 years and current **			
7302	Federal Income Tax (Quarterly/Annual) Treasurer	6 years and current **			
7303	Ohio Income Tax (Monthly/Annual) Treasurer	6 years and current **			
7304	City Income Tax (Monthly/Annual) Treasurer	6 years and current **			
7305	School Income Tax (Monthly/Annual) Treasurer	6 years and current **			
7306	Payroll Reports Reports used for each payroll-computer generated Treasurer	4 years **			
7307	Payroll Update Listing Treasurer	4 years **			
7308	Payroll Calculations Treasurer	4 years **			

(1) Schedule Number	(2) Record Title and Description	(3) Retention Period	(4) Media Type	(5) For use by Auditor of State or OHS-LGRP	(6) RC-3 Required by OHS- LGRP
7309	State Teachers System and School Employees Retirement System Waivers Treasurer	Permanent ****			
7310	State Employees Retirement System (SERS) Reports Treasurer	4 years **			
7311	State Teachers Retirement System (STRS) Reports Treasurer	4 years **			
7312	Annuity Reports Treasurer	4 years **			
7313	Benefit Folders/Reports Treasurer	4 years **			
7314	Employee Request and/or Authorization for Leave Forms (Sick, Vacation, Personal or other leave) Treasurer	4 years **			
7315	Deduction Reports Voluntary payroll deductions Treasurer	4 years **			
7316	Employee Vacation/ Sick Leave Records Treasurer	4 years **			
7317	Time Sheets Treasurer	6 years **			
7318	Overtime Authorization Treasurer	6 years			
7319	Employee Insurance Bills Medical Dental Life Treasurer	4 years **			
7323	Paycheck Register Treasurer	4 years **			
7324	Payroll Bank Statement Treasurer	4 years **			
7401	Deduction Authorization Treasurer	Until superseded or			

(1) Schedule Number	(2) Record Title and Description	(3) Retention Period	(4) Media Type	(5) For use by Auditor of State or OHS-LGRP	(6) RC-3 Required by OHS- LGRP
		employee terminated			
8000	REPORTS				
8201	State Audit Reports Treasurer	5 years			
8202	#59, #659 and #4502 Treasurer	5 years			
8203	#25 and #625 Treasurer	5 years			
8204	School Finance Treasurer (S.F.) Reports-annual	5 years			
8205	Special Education Spec Ed Secy (S.E.) Reports-annual Supt Secy	7 years			
8206	Vocation Education Voc Secy (V.E.) Reports-annual Supt Secy	5 years			
8207	Ohio Common Core Data Supt Secy (OCCD) Reports	5 years			
8208	Drivers Education Reports Treasurer	5 years			
8209	Ohio Department of Bldg Secy Education (ODE) Reports	5 years			
8211	Civil Rights Reports Supt Secy	Permanent ****			
8212	Title IX Reports Supt Secy	10 years			
8213	SM-1 & SM-2 Treasurer (Annual and Quarterly)	10 years			
8214	State Minimum Standards Supt Secy	10 years			

(1) Schedule Number	(2) Record Title and Description	(3) Retention Period	(4) Media Type	(5) For use by Auditor of State or OHS-LGRP	(6) RC-3 Required by OHS- LGRP
8301	Personnel State Reports (Currently SF-1, CS-1) Secretary	4 years **			
8302	Workers' Comp Wage Reports (Co. Auditor) Treasurer	5 years			
8303	Bank Balance Certification (Co. Auditor) Treasurer	5 years			
8304	Transportation Reports Transportation Secretary	4 years **			
9000	OTHER				
9101	Personnel Directory Supt Secy	10 years			
9102	Enrollment Record (By grade and building) Supt Secy	Permanent ****			
9202	School Calendars Supt Secy	5 years			
9203	Building, Boiler, Office Maintenance Reports Business and Secretary	2 years *			
9402	Employee Handbooks Supt Secy	Until superseded			
9403	Directives, Standards, Laws for Local, State and Federal Governmental Agencies All Secretaries	Until superseded			
9404	Attendance Records	Until superseded			

* After end of fiscal year
 ** Provided audited
 *** Hard copy maintained for 3 years after audited, then microfilmed
 **** Hard copy maintained for 5 years, then microfilmed

1743.2 – Certificate of Records Disposal

The School has adopted the Certificate of Records Disposal form created by the Ohio Historical Society. The form is available at the link below.

<http://www.das.ohio.gov/Portals/0/DASDivisions/GeneralServices/SPMS/pdf/ADM%203504.pdf?ver=2014-02-25-155319-773>

INSTRUCTIONS - FORM RC-3

USE OF FORM: Serves as a notification to your local records commission and to The Ohio Historical Society/State Archives, Local Government Records Program (OHS-LGRP), that your office intends to dispose of the records listed on the form as authorized by an approved RC-2 form. It also provides an opportunity for the OHS-LGRP to select for historical records, or to provide for other disposition under Section 149.31ORC.

WHEN TO USE: Prepare and send this RC-3 a minimum of fifteen (15) business days before the proposed disposal date.

CERTIFICATION: This is a legal document representing compliance to the Ohio Revised Code and a commitment to maintain any microfilm master negatives according to American National Standards Institute (ANSI) Standards when the source document is listed for disposal on this RC-3. Therefore, the certification requires the signature of the official responsible for the records.

SUBMISSION:

Send the original RC-3 to: localrecs@ohiohistory.org *or* The Ohio Historical Society
State Archives of Ohio
Local Government Records Program
800 E. 17th Avenue
Columbus, OH 43211-2497

Retain a permanent copy for your office files and send an additional copy to your records commission.

NOTE: Your office or records commission will **not** receive a copy of the RC-3 back. Your office will be contacted if a record is selected for its historical value or if there are questions about the records listed on the form.

(1) RECORD SERIES TITLE: Record series title as shown on your retention schedule (RC-2). This information is critical for documenting the disposal; include additional descriptive information if necessary to aid in the appraisal and selection process.

(2) AUTHORIZATION FOR DISPOSAL: Schedule number marked as needing review by OHS-LGRP as shown on your approved RC-2 and the date it was approved *by your local records commission*.

(3) MEDIA TYPE (DESTROYED): Medium of the record series you are *disposing of*, for example, paper, film, disk, magnetic tape, optical disc.

(4) OTHER MEDIA TYPE (RETAINED) If your government plans to *retain* the records series in another medium, list each type of medium in which it is being retained. For example: microfilm, microfiche, optical disc, electronic storage, etc.

(5) INCLUSIVE DATES OF RECORDS Enter the time period encompassed by the records being disposed of such as: Jan. 2008 to Dec. 2008, etc.

(6) PROPOSED DATE OF DISPOSAL Enter the proposed disposal date; the OHS-LGRP has *fifteen business days* to review the disposal form. It is recommended that a few extra days for mail delivery be included.

(7) FOR USE BY OHS-LGRP OHS-LGRP may write clarifying notes or notes about possible records transfers.

NOTICE CONCERNING MEDIA AND FORMAT CHANGES

The Local Government Records Program strongly discourages the use of electronic formats for long-term retention of records unless the records are also maintained in an eye-readable format such as paper or microfilm. It is a responsibility of the local government to ensure the preservation and accessibility of any records retained in electronic format. For guidelines on electronic records issues, visit <http://www.ohiohistory.org/ohiojunction/erc/>.

Never use a microfilm master negative except to create a use copy from it.

For State Archives - LGRP Use Only

Date Received:

Date Reviewed:

Items requested for transfer: YES

NO

CERTIFICATE OF RECORDS DISPOSAL (RC-3) – Part 1

See instructions before completing this form. Must be submitted with PART 2

(local government entity) (unit) (contact person) (telephone number)
(location of records)

(address) (city) (zip code) (county) (date mailed to LGRP)

I hereby certify that the records listed on this RC-3 and attachments are being disposed of according to the time periods stated on the ***approved Records Retention Schedules (RC-2)*** listed below. No record will be knowingly disposed of which pertains to any pending legal case, claim, action or request. In addition, microfilm created in place of any original record listed on this RC-3 will be stored according to ANSI Standards and all microfilm master negatives will only be used to create use copies. It is a responsibility of the local government to ensure the preservation and accessibility of any records retained in electronic format.

(signature of responsible official) (title) (telephone number)

To have this form returned to the Records Commission electronically, include an email address:

***Please Note: The State Archives retains RC-3 forms for seven years.
It is strongly recommended that the Records Commission retain a permanent copy of this form.***

CERTIFICATE OF RECORDS DISPOSAL (RC-3) – Part 2

See instructions before completing this form. Must be submitted with PART 1.

(political subdivision name) (unit)

(1) Records Series Title	(2) Authorization for Disposal		(3) Media Type To be destroyed	(4) Media Type To be retained (if any)	(5) Inclusive Dates of Records		(6) Proposed date of destruction (15 business days from receipt by OHS-LGRP)	(7) For OHS- LGRP use
	Schedule Number	Date the RC- 2 was approved by the Records Commission			From	To		

1752 – Financial Reporting

The Governing Authority shall comply with the standards for financial reporting adopted under division (B)(2) of section 3301.07 of the Revised Code.

The School shall prepare and file an Annual Financial Report for each fiscal year, as required by R.C. 117.38.

The Annual Financial Report shall be prepared pursuant to generally accepted accounting principles, and shall be filed with the auditor of state, in a format prescribed by the auditor of state, no later than one hundred fifty (150) days after the close of the fiscal year. The Annual Financial Report shall be filed with the auditor of the state at “Auditor of State, Local Government Services Division, 88 East Broad Street, Columbus, Ohio 43216-1140” or “Post Office Box 1140, Columbus, Ohio 43216-1140.”

The Annual Financial Report shall contain the following:

- amount of collections and receipts, and the accounts due from each source;
- amount of expenditures for each purpose;
- income of each public services industry owned or operated by the School and the cost of such ownership or operation; and
- amount of any public debt of each taxing district, the purpose for which each item of such debt was created, and the provision made for the payment thereof.

Failure to submit the annual report may result in the School being fined.

A copy of the Report shall be maintained by the School’s Fiscal Agent as a public record pursuant to the adopted Schedule. At the time the Annual Financial Report is filed with the auditor of state, the Fiscal Agent shall publish notice in a local newspaper of general circulation, stating that the annual report has been prepared and is available for public inspection.

Ohio: R.C. 117.38; R.C. 3326.112;OAC 117-2-03.

1753 – School Asset Policy

The School maintains a number of assets that have been obtained from different sources. This policy ensures that all of the School's assets are properly handled and disposed of, and that the School complies with the Generally Accepted Accounting Principles, as required by the auditor of state.

Fixed Asset Policy

A "fixed asset" is defined as any asset which has a useful life of at least one (1) year and an initial cost equal to or exceeding \$5,000, regardless of whether the asset is leased or purchased.

Valuating. Fixed assets shall be recorded according to their historical cost. If the historical cost is unavailable, the fixed asset(s) shall be recorded according to their estimated historical cost, as determined by the Treasurer in accordance with any applicable policies adopted by the auditor of state. Any donated fixed assets shall be recorded according to the fair market value at the time the donated item was received. All fixed assets shall be depreciated using straight-line depreciation. The estimated life for all fixed assets, for purposes of depreciation, shall be determined in accordance with the guidelines established by the Association of School Business Officials (ASBO).

Asset Records. The following information shall be maintained regarding each fixed asset:

- description of the asset;
- name of the person or entity owning title to the asset;
- classification of the asset (real property, furniture, equipment, or leased fixed asset);
- identifying information (serial number, tag number, etc.)
- date acquired and vendor from whom acquired;
- current location and use of the asset;
- purchase price of the asset and the percentage of federal government assistance;
- accumulated depreciation;
- current condition and estimated value of the asset;
- date and method of disposal of asset; and
- records produced as a result of physical inventories.

Physical Inventory. A physical inventory of all the School's assets shall be conducted at least once every year. The physical inventory serves to verify the existence and condition of all equipment. The records of the physical inventory shall be reconciled with the available asset records.

Managing Assets. Fixed assets should be maintained in working order. The School shall create and implement a system to help minimize the likelihood of theft, damage or loss of its assets. As part of this system, all fixed assets shall have a School asset sticker displayed in a conspicuous location. No items should leave the School without the prior knowledge of the Head Administrator or his/her designee. All reports of damage, loss, or theft will be investigated.

Disposing Fixed Assets. Fixed assets may be disposed of in any manner that is approved by the Governing Authority. When selling an asset, the asset must first be valued according to a reasonable valuation procedure as established by the School.

Title I Asset Policy

Assets that are purchased with Title I funds and/or are provided by a federal agency are subject to additional statutes and regulations. These special rules and guidelines apply in addition to the rules and guidelines of the stated above. If there is a conflict, the specific provisions of this Policy shall prevail.

Management and Disposal of Equipment Provided by a Federal Agency. All assets that are provided by a federal agency shall be titled in the name of the Federal Government and shall be maintained and disposed of according to standards set or approved by the federal agency. In accordance with 2 C.F.R. § 313(d)(4), the School maintains adequate maintenance procedures to ensure that property is kept in good condition.

Management and Disposal of Title I Real Property. All real property acquired with Title I funds shall be managed and disposed of according to the following rules and guidelines:

- the property shall be titled in the name of the School;
- the property shall only be used for such purposes that are permitted according to the terms of the grant;
- the School shall not sell, give, trade, or take any other action affecting the legal status of the title; and
- when the property is no longer being used for a permitted purpose, then it shall be disposed of in a manner indicated or otherwise approved by the agency who originally granted the funds.

Management and Disposal of Title I Equipment. All equipment acquired with Title I funds shall be managed and disposed of according to the following rules and guidelines:

- the equipment shall be used in the program or project or which it was acquired so long as needed, whether or not the project or program continues to be supported by Federal funds;
- when the equipment is no longer needed for the original program or project, the equipment may be used in other activities currently or previously supported by a Federal agency, with priority being given to any programs or projects currently or previously supported by the same Federal agency;
- the School shall not use the equipment to provide services for a fee;
- when acquiring replacement equipment, the School must gain the approval of the Federal agency before either using the equipment as a trade-in or selling the equipment and putting the proceeds towards the cost of replacement equipment;
- when the original or replacement equipment is no longer needed, it may be retained, sold or otherwise disposed of, subject to the requirement that if the fair market value of the equipment exceeds \$5,000, the Federal agency may have a right to a portion of the fair market value of the equipment, as determined in accordance with 34 C.F.R. 80.31. State statutes may impose additional obligations upon the sale of such property.

Federal: 34 C.F.R. 80.31, 34 C.F.R. 80.32.

Ohio: R.C. 117.09, O.A.C. 117-2-02, O.A.C. 117-2-05.

Cross-Reference: Policy No. **1757**, Duties and Responsibilities Related to Federal Grants; Policy No. **3130**, Title I Compliance.

1754 – Audit Sub-committee

The Governing Authority shall establish and oversee the School's Audit Sub-committee. The Audit Sub-committee is an advisory committee that assists the Governing Authority in fulfilling the Governing Authority's financial obligations and is housed under the Financial Committee. The Audit Sub-committee ensures that all internal and external audit functions receive appropriate oversight.

Composition

The Audit Sub-committee must be composed of at least three members and may be composed in any of the following manners:

- all of the Governing Authority Members,
- at least three of the Governing Authority Members, or
- at least three Governing Authority Members and an outside consultant approved by the Governing Authority.

Each committee member must be financially literate. At least one member of the Audit Sub-committee shall have expertise regarding financial reporting.

The Audit Sub-committee's term of office shall last for one (1) year. All members of the Audit Sub-committee shall perform their duties in good faith and in the School's best interests.

Meetings

The Audit Sub-committee shall meet as often as necessary to address and carry out its duties and responsibilities. All Audit Sub-committee members are expected to attend each meeting. Agendas will be prepared prior to each meeting. Minutes shall be kept for each meeting.

Duties and Responsibilities

The Audit Sub-committee's duties and responsibilities include, but shall not be limited to, the following:

- reviewing the results of any external audit and assuring that all recommendations are given appropriate consideration;
- reviewing all annual financial reports that are filed with the auditor of state;
- periodically reviewing all other financial reports and information submitted to the Governing Authority throughout the fiscal year;
- serving as liaison to assist communications between the Governing Authority and any external auditor;
- reviewing the School's practices and procedures regarding reporting of questionable accounting or auditing matters and suspected embezzlement or other fraud; and
- reporting committee actions to the School Governing Authority with the Sub-committee's recommendation.

All recommendations made by the Sub-committee are subject to ultimate approval by the Governing Authority.

1755 – Purchasing and Proper Public Purpose

Only purchases that are for the benefit of the School and serve a valid and proper public purpose shall be allowed. Generally, a public purpose has for its objective the promotion of the public health, safety, morals, general welfare, security, prosperity, and contentment of all the inhabitants and second the primary objective of the expenditure is to further a public purpose, even if an incidental private end is advanced.

The Treasurer's office will keep a record/activity log of all approved expenditures and verify that the expenses are incurred in connection with Board-approved or school-related activities, are for the benefit of the School, and serve a valid and proper public purpose prior to disbursing public funds for payment of such expenses.

The Governing Authority wishes to ensure that all necessary supplies, equipment, and other necessary materials are obtained fairly and efficiently. Purchases up to \$2,500 must be approved by the Head Administrator and do not require the Governing Authority's approval. Purchases over \$2,500 must be approved by the Governing Authority prior to being purchased. To be approved:

- the purchase must be submitted by an authorized person;
- the purchase must not conflict with Policy No. **1450**, Ethics and Conflicts of Interest, and/or all other applicable laws that apply to all Governing Authority Members, staff members, and other representatives/
- the purchase must be solely for School use and not for any other use; which may include purchases for coffee, meals, refreshments, or other amenities (including but not limited to flowers for sick employees or relatives of employees, token retirement gifts and meritorious service awards).
- the purchase must not be already owned and cannot be obtained through other means such as joint/cooperative purchasing;
- the purchase must adequately meet the School's needs and can be properly maintained;
- the purchase may be made through a local vendor, if any kind of advantage will result; and
- the purchase, if an ongoing commitment, was renewed each year in writing.

Under no circumstances shall the School approve the purchase of alcoholic beverages regardless of whether the purchase of such beverages is made in connection with a meal.

Nothing in this Policy shall limit the right of any person to receive royalties pursuant to the purchase of a textbook that has been approved for use in the School.

Any invoices presented to the Governing Authority for approval must adhere to the following guidelines:

- all invoices must be pre-approved by the Treasurer for payment prior to presentment to the Governing Authority;
- all invoices must contain a sufficient amount of detail to for the Governing Authority to assure that the goods or services were provided for School purposes; and
- the vendor requesting payment on an invoice must certify that the goods or services were provided for School purposes.

Ohio: O.A.C. 117-2-02; *See also* Auditor of State Bulletin 2003-005; 2004-002.

Cross-Reference: Policy No. **1450**, Ethics and Conflicts of Interest; Policy No. **1756**, Credit Cards; Policy No. **5452**, Reimbursement of Staff Members; Policy No. **5451**, Contracts & Leasing; Purchasing.

1756 – Credit Cards

The Governing Authority realizes that as credit card use becomes increasingly common, clear rules must be established regarding their use. Accordingly, the following Policy establishes what constitutes an acceptable use and states the procedures for using a credit card.

“Credit card” is defined to include credit cards, business check cards, and debit cards.

As used in this policy, a "credit card account" means any bank-issued credit card account, store-issued credit card account, financial institution-issued credit card account, financial depository issued credit card account, affinity credit card account, or any other card account allowing the holder to purchase goods or services on credit or to transact with the account, and any debit or gift card account related to the receipt of grant moneys. "Credit card account" does not include a procurement card account, gasoline or telephone credit card account, or any other card account where merchant category codes are in place as a system of control for use of the card account.

Credit Card Agreements must be approved by the Head Administrator and the Management Company (if any).

The Head Administrator shall serve as the Compliance Officer for the credit card and shall review the following on a quarterly basis along with the Governing Authority: the number of cards issued, the number of active cards issued, the cards' expiration dates and credit limits. The Governing Authority authorizes the Head Administrator and the following employees to use the credit card account: CAO, Executive Administrative Assistant, Community Events Coordinator, Treasurer, Facility Coordinator, and Operations Coordinator. Only the Head Administrator and employees designated in this policy may use the school's credit card.

The school's name must appear on the credit card account and all presentation instruments including cards and checks. All credit cards must have a credit limit of no more than \$30,000.

Acceptable Purposes

Credit Card purchases must be limited to those purchases made for the school's benefit and for an acceptable purpose. Acceptable purposes are those that approved by the Governing Authority and include the following:

- transportation related expenses including taxi fares, mileage, fuel, parking and other transportation expenses;
- accommodation expenses;
- conference/course registration fees;
- meal purchases including gratuity up to 25%;
- vendor purchases, where the vendor refuses to accept other forms of payment;
- student trip expenses, provided the use is necessary, preapproved by the Head Administrator, and properly budgeted; and
- any other use that is deemed appropriate and acceptable by the Head Administrator.

Unacceptable Purposes

Individuals are prohibited from making unacceptable purchases. Unacceptable purchases include, but are not limited to the following:

- cash advancements/disbursements, unless approved;
- the purchase of alcoholic beverages, tobacco products, and any related gratuity;
- personal expenses not otherwise permitted under this Policy; and
- any purchases that are not approved and/or consistent with this policy.

If any individual uses a credit card in an unacceptable purchase, the employee will be held financially responsible for paying the expenses and any interest incurred. Furthermore, any employee or other representative that makes unacceptable purchases may be subject to disciplinary action and may have his/her credit card privileges revoked. Additionally, anyone who knowingly uses a credit card account for expenses beyond those authorized by the Governing Authority is guilty of misuse of credit cards and may suffer criminal penalties under Ohio law.

Additionally, the School prohibits the use of debit cards except for debit card accounts related to the receipt of grant money. If an individual uses a debit card for any other purpose, s/he shall be guilty of the criminal offense of misuse of credit cards.

Tax Exemption Forms

As a tax-exempt entity, the school does not pay State or local taxes regarding any purchase made pursuant to a school purpose. All purchases on behalf of the school shall inform the merchant that the purchase is for "Official School Business" and that the purchase is tax exempt. If the merchant refuses to waive the State and local taxes, the purchaser is required to present a tax exemption form to the merchant. If the merchant still refuses to waive the State and local taxes after presenting the form, the purchase may still be made.

All authorized persons are required to carry a sufficient number of tax exemption forms so that such a form can be presented to any merchant to refuse to waive State and local taxes regarding the sale. Tax exemption forms may be obtained from the Head Administrator.

Credit Card Use Procedures

All School employees authorized to use the credit card account under this policy shall strictly adhere to the following rules and guidelines.

- All requests for the use of a credit card shall be submitted, in writing, to the Head Administrator, and shall include the purpose of the request, date needed, and the date the credit card will be returned. The Head Administrator shall submit the requests to the Treasurer for approval. Upon approval granted to an employee to use a credit card, the Head Administrator shall maintain a system for signing out credit cards to employees for their use and purpose for the use of the credit card.
- The employee shall be responsible for the credit card's safe storage while the credit card is in his/her possession to avoid loss of the card and to avoid any unauthorized charges. If the card is lost or stolen, the employee shall immediately inform his/her immediate supervisor and the Head Administrator. The Head Administrator shall immediately notify the credit card company of a lost or stolen card and cancel the card. The Head Administrator shall initiate the process for having a new credit card issued.

- The employee shall make every attempt to have the State and local taxes waived regarding a purchase, include notifying the merchant that the purchase is for “Official School Business” and presenting a tax exemption form.
- The employee shall return the credit card to the Head Administrator as soon as reasonably practicable following the credit card purchases. Failure to return the credit card in a timely manner may result in the suspension or revocation of credit card privileges.
- Itemized Receipts: The employee shall request and maintain all itemized receipts and appropriate documentation regarding all purchases made with the credit card. All receipts and documentation shall be presented to the Fiscal Officer or his/her designee as soon as reasonably practicable, but not later than five (5) days after the purchase. If the receipt is not presented within this time, the employee may be held liable for payment of the purchase, the associated interest and expenses.
- If the employee is terminated, resigns, or otherwise ends employment with the school, all credit cards shall be returned immediately, and the former employee will be held liable for continued use.

Credit Card Management

The Head Administrator is responsible for storing all credit cards in a locked storage area. All credit card payments shall be made through the office of the Head Administrator. The Head Administrator shall monitor and reconcile all credit card activity each month. Credit Card activity shall be reported to and reviewed by the Governing Authority on a monthly basis. Oversight of the Head Administrator’s use of the credit card shall be accomplished by the Governing Authority through its monthly review. Following the Governing Authority’s monthly review of the credit card activity, it shall sign an attestation verifying that the Governing Authority reviewed the credit card account transaction detail. The school’s credit card account’s maximum credit limit shall be \$30,000. The Head Administrator shall set the credit card account’s maximum credit limit(s) for each individual card with specific names/titles. The Head Administrator is responsible for overseeing the process of credit card issuance, reissuance, cancellation, and the process for reporting lost or stolen credit cards. A credit card may be issued or reissued at the discretion of the Head Administrator. Upon the written request of an employee, prior authorized user, or current authorized user, the Head Administrator may re-issue a credit card. An individual credit card connected to the credit card account shall be cancelled on the determination of the Head Administrator. In the event a credit card is lost or stolen, the Authorized User shall immediately notify the Head Administrator and the Treasurer in person or by phone and in writing. The Treasurer or the Head Administrator shall immediately notify the card issuer. The Authorized User must provide all necessary information required by the school or the card issuer relating to the loss of the credit card. The Head Administrator shall inform the Governing Authority of any actions to issue, re-issue, or cancel a credit card at the Governing Authority’s next scheduled meeting.

The Treasurer or his/her designee shall annually file a report with the Governing Authority detailing all rewards received based on the use of the school's credit card account.

Cross-Reference: Policy No. 1755, Purchasing; Policy No. 5452, Reimbursement of Staff Members.

Ohio: R.C. 3314.52; Ohio Auditor of State Bulletin 2018-003.

1757 - Duties and Responsibilities Related to Federal Grants

The following duties and responsibilities are imposed upon the School when seeking, obtaining, monitoring, or otherwise administering grant money, as indicated below. This Policy supplements, rather than replaces, other existing and applicable Policies.

Grant Administration

The School shall designate an assigned employee who shall be responsible for ensuring compliance with all internal control measures related to grant money. In order to ensure that grants submitted and obtained by the School are effective and properly administered, the following duties and responsibilities are placed on the assigned employee:

- the duty to monitor all applications for federal grants that have been submitted but are still pending, and to prepare a report or summary regarding the status of all outstanding grant applications, which shall be submitted at each regularly scheduled Governing Authority meeting;
- the duty to monitor the expenditures made from each federal grant and to prepare a report detailing the accumulated amount and type of expenditures made from each grant, which shall be submitted at each regularly scheduled Governing Authority meeting; and
- the duty to review each final expenditure report federal grant for accuracy and completeness, and to reconcile that final expenditure report with the School's other financial records.

The assigned employee must follow all internal control guidelines as set forth in the "Standards for Internal Control in the Federal Government" issued by the Comptroller General of the United States.

In the event that an instance of noncompliance is identified by the assigned employee in an internal audit, prompt action must be taken by the School to correct such noncompliance.

Contract Procurement

When federal grant funds are used to obtain a contract for goods or services, the School shall adhere to the rules below.

- All policies and procedures established by the federal agency providing the grant are controlling, and, to the extent there is any conflict with these Policies, shall prevail.
- Contracts shall be procured through a competitive process as required by law. If a bidding process is used, the contract shall be awarded to the bid which, from the perspective of the School, is most beneficial and cost-effective.
- The School shall carefully review each contract funded with grant money to ensure that the products or services purchased are necessary.
- With respect to equipment or other materials, the School shall compare the advantages and disadvantages associated with leasing versus purchasing.
- The School shall perform a cost analysis before entering or approving any contract.
- All solicitations for products or services which shall be paid with grant money shall contain a sufficient amount of detail and information as required by federal grant regulations.
- The School shall take all necessary steps in assuring that each party it contracts with is willing, able, and intends to fulfill the contract requirements.
- The School shall accurately document each step involved in procurement of a contract involving federal grant monies. This documentation shall indicate the process in which the contracts were

procured, the reason for choosing that procurement process, the reason for awarding the contract to the contracting party, an explanation for the lack of competitive bidding, if applicable, and an analysis of the cost of the contract. These records shall be made available to the public upon request.

- The School shall, to the extent reasonably possible, attempt to award contracts involving federal grant money to small businesses, as well as businesses owned or operated by women or minorities.
- All procurement transactions must be conducted in a manner providing full and open competition consistent with 2 C.F.R §200.319.

The School shall ensure that each contract funded with grant money shall contain all necessary elements and provisions as required by the applicable federal grant regulations. Furthermore, federal regulations may require that the party awarded a contract, whether through a bidding process or otherwise, fulfill certain bonding requirements. If such bonding requirements are indicated, the School shall assure that they are carried out.

Procurement Methods

Informal Procurement Methods

When the value of the procurement for property or services under a federal award does not exceed the simplified acquisition threshold (SAT), as defined in federal law, or if an allowable exception applies, formal procurement methods are not required. The School may use informal procurement methods to expedite the completion of its transactions and minimize the associated administrative burden and cost.

The exceptions are the following:

1. The acquisition of property or services, the aggregate dollar amount of which does not exceed the micro-purchase threshold;
2. The item is available only from a single source;
3. The public exigency or emergency for the requirement will not permit a delay resulting from publicizing a competitive solicitation;
4. The Federal awarding agency or pass-through entity authorizes noncompetitive procurement based on a written request from the non-Federal entity; or
5. After solicitation of a number of sources, competition is determined inadequate.

Micro-purchases

A micro-purchase is the acquisition of supplies or services, the aggregate dollar amount of which does not exceed the micro-purchase threshold which is \$10,000. To the maximum extent practicable, the School should distribute micro-purchases equitably among qualified suppliers.

A micro-purchase can be done without soliciting competitive price or rate quotations if the School considers the price to be reasonable based on research, experience, purchase history or other information and documentation maintained by the school.

Small Purchases

A small purchase is the acquisition of property or services, the aggregate dollar amount of which is higher than the micro-purchase threshold (\$10,000) but does not exceed the simplified acquisition

threshold (“SAT”), which is \$250,000 in most cases. If small purchase procedures are used, price or rate quotations must be obtained from two (2) qualified sources.

Formal Procurement Methods

When the value of the procurement for property or services under a federal award exceeds the SAT, or a lower threshold established by the State, formal procurement methods are required. Formal procurement methods require following documented procedures. Formal procurement methods also require public advertising unless a non-competitive procurement method can be used in accordance with federal standards on competition or non-competitive procurement. The formal methods of procurement are:

1. Sealed Bids:

A sealed bid is a procurement method in which bids are publicly solicited and a firm fixed-price contract (lump sum or unit price) is awarded to the responsible bidder whose bid, conforming with all the material terms and conditions of the invitation for bids, is the lowest in price. The sealed bids method is the preferred method for procuring construction.

In order for sealed bidding to be feasible, the following conditions shall be present:

- a complete, adequate, and realistic specification or purchase description is available;
- two (2) or more responsible bidders are willing and able to compete effectively for the business; and the procurement lends itself to a firm, fixed-price contract and the selection of the successful bidder can be made principally on the basis of price.

When sealed bids are used, the following requirements apply:

- Bids shall be solicited in accordance with the provisions of State law and Policy 6320.
- Bids shall be solicited from an adequate number of qualified suppliers, providing sufficient response time prior to the date set for the opening of bids.
- The invitation to bid shall be publicly advertised;
- The invitation for bids will include product/contract specifications and pertinent attachments and shall define the items and/or services required in order for the bidder to properly respond;
- All bids will be opened at the time and place prescribed in the invitation for bids;
- Bids will be opened publicly;
- A firm, fixed-price contract award will be made in writing to the lowest responsible bidder. Where specified in bidding documents, factors such as discounts, transportation cost, and life cycle costs shall be considered in determining which bid is lowest. Payment discounts may only be used to determine the low bid when prior experience indicates that such discounts are usually taken; and
- The School may reject any or all bids for a sound documented reason.

2. Proposals

Procurement by proposals is a method in which either a fixed price or cost-reimbursement type contract is awarded. Proposals are generally used when conditions are not appropriate for the use of sealed bids.

Proposals are subject to the following requirements:

- Requests for proposals shall be publicized and identify all evaluation factors and their relative importance. Any response to the publicized requests for proposals shall be considered to the maximum extent practical;
- The School shall use its written method for conducting technical evaluations of the proposals received and for selecting recipients;
- Contracts must be awarded to the responsible offeror whose proposal is most advantageous to the School, with price and other factors considered; and
- The School may use competitive proposal procedures for qualifications-based procurement of architectural/engineering (A/E) professional services whereby competitors' qualifications are evaluated, and the most qualified competitor is selected, subject to negotiation of fair and reasonable compensation. The method, where price is not used as a selection factor, can only be used in procurement of A/E professional services. It cannot be used to purchase other types of services though A/E firms are a potential source to perform the proposed effort.

3. Noncompetitive Procurement.

Noncompetitive procurement can only be awarded if one or more of the following circumstances apply:

- The acquisition of property or services constitutes a micro-purchase under this policy and federal law;
- The item is available only from a single source;
- Public exigency or emergency for the requirement will not permit a delay resulting from publicizing a competitive solicitation;
- The Federal awarding agency or pass-through entity expressly authorizes a noncompetitive procurement in response to a written request from the School; or
- After solicitation of a number of sources, competition is determined inadequate.

The Davis-Bacon Act applies to all contracts exceeding \$2,000 for the “construction, alteration, or repair” of public buildings that are funded, either in whole or in part, with federal funds. In such cases, the School will specify that Davis-Bacon prevailing wage requirements apply to the project in the bidding and contract materials. The School or its contractor will also post Davis-Bacon wage determinations on job sites.

The School must maintain records sufficient to detail the history of all procurements. These records will include but are not necessarily limited to the following: rationale for the method of procurement, selection of contract type, contractor selection or rejection, the basis for the contract price (including a cost or price analysis), and verification that the contractor is not suspended or debarred. The School may not subcontract with or award subgrants to any person or company who is debarred or suspended. For all contracts over \$25,000, the School verifies that the vendor with whom the School intends to do business with is not excluded or disqualified.

To foster greater economy and efficiency, the School may enter into state and local intergovernmental agreements where appropriate for procurement or use of common or shared goods and services.

Agreements for the Purchase of Personnel-Based Services. The School is in compliance with federal law and exempt from competitive bidding requirements for personnel-based services purchased through an agreement with an educational service center, provided the service center has met conditions imposed

by Ohio law. The School shall ensure that the educational service center has met such conditions, including that the ESC's bidding policies and procedures were declared substantially in compliance with all audit rules and guidelines by the Auditor of State.

Contract Administration. The School shall ensure that the contracting party complies with all requirements and other provisions imposed by the contract. This duty may be delegated as necessary.

Financial Management System

The School maintains a proper financial management system in order to receive both direct and state-administered grants and to expend funds associated with a grant award under 2 C.F.R. § 200.302.

Identification

The School shall identify all federal awards received and expended and the federal programs under which they were received. Federal program and award identification must include the CFDA title and number, federal award identification number and year, name of the federal agency, and, if applicable, name of the pass-through entity.

Financial Reporting

Accurate, current, and complete disclosure of the financial results of each federal award or program must be made in accordance with the financial reporting requirements. The assigned employee is responsible for managing the budget and accounts payable of the School related to grant awards.

Accounting Records

The School must maintain records which adequately identify the source and application of funds provided for federally assisted activities. These must be supported by source documentation.

The assigned employee shall be responsible for compiling timely and accurate financial reports, subject to the review and approval of the Governing Authority. The reports must be prepared and submitted as specified by the financial reporting clause of each grant or contract award, and include monthly and cumulative expenditures, project budgets, and a balance remaining column.

Budgeting

Initial discussions regarding the budget shall begin prior to the School receiving the GAN. The School shall designate at the planning phase the parties involved in the initial budget discussions. The School shall base these early decisions on any prior year's grant award, if applicable, and make adjustments to this initial budget upon receipt of the GAN. The assigned parties shall take into account existing resources in determining the initial budget to determine if existing resources such as unused equipment could benefit the planned program.

The assigned employee reviews the items in the budget to ensure allowability. If it is determined that a cost is not allowable, then revisions to the budget must be made pursuant to this determination.

Once it is determined that all budgeted items are allowable, the budget is sent to the Governing Authority for final review and approval.

Upon receiving the GAN, the Governing Authority shall meet to discuss the initial grant budget and any adjustments which need to be made based on the GAN.

Amending the Budget

Budget revisions are required prior to obligations in an object/functions category exceeding 10% of the most current approved budget cell.

Budget Control

The School monitors its financial performance by comparing and analyzing actual results with budgeted results. The assigned employee shall prepare reports which compare actual expenditures to budgeted amounts at least quarterly.

Spending Grant Funds

The School shall follow any and all federal, state, and local requirements, including those requirements imposed by EDGAR and 2 CFR Part 200 the Uniform Administrative Requirements, and any imposed by the award or grant itself. All costs must be adequately documented.

Direct and Indirect Costs

Determining Whether a Cost is Direct or Indirect:

Direct costs are costs identified specifically with a particular final cost objective, such as a federal award, or other internally or externally funded activity, or that can be directly assigned to such activities relatively easily with a high degree of accuracy. 2 C.F.R. § 200.413(a).

Indirect costs are incurred for a common or joint purpose benefitting more than one cost objective, and not readily assignable to the cost objectives specifically benefitted. 2 C.F.R. § 200.56.

Costs incurred for the same purpose in like circumstances must be treated consistently as either direct or indirect costs. 2 C.F.R. § 200.413(a).

The salaries of administrative and clerical staff shall be treated as indirect costs. Direct charging of these costs may be appropriate only if all of the following conditions are met:

- Administrative or clerical services are integral to a project or activity;
- Individuals involved can be specifically identified with the project or activity;
- Such costs are explicitly included in the budget or have the prior written approval of the federal awarding agency; and
- The costs are not also recovered as indirect costs. 2 C.F.R. § 200.413(c).

Indirect Cost Rate: The School shall approve an indirect cost rate pursuant to 2 C.F.R. Part 230.

Applying the Indirect Cost Rate: Once the School has an approved indirect cost rate, the percentage is multiplied against the actual direct costs (excluding distorting items such as equipment, contracts in excess of \$25,000, pass-through funds, etc.) incurred under a particular grant to produce the dollar amount of indirect costs allowable to that award. 34 C.F.R. § 75.564; 34 C.F.R. § 76.569.

Determining Allowability of Costs

When determining how the School will spend grant funds, the assigned employee shall review the proposed cost to determine whether it is an allowable use of federal grant funds *before* obligating and spending those funds on the proposed good or service. All costs supported by federal education funds must meet the standards outlined in EDGAR, 2 CFR Part 3474 and 2 CFR Part 200 (Subpart E). The assigned employee must consider these factors when making an allowability determination:

- **Be Necessary and Reasonable for the performance of the federal award.** A cost is reasonable if, in its nature and amount, it does not exceed that which would be incurred by a prudent person under the circumstances prevailing at the time the decision to incur the cost was made. When determining reasonableness of a cost, consideration must be given to: Whether the cost is generally recognized as ordinary and necessary for the operation of the School or the proper and efficient performance of the federal award.
- The restraints or requirements imposed by factors, such as: sound business practices; arm's-length bargaining; federal, state and other laws and regulations; and terms and conditions of the federal award.
- Market prices for comparable goods or services for the geographic area.
- Whether the individuals concerned acted with prudence in the circumstances considering their responsibilities to the School, its employees, its students, the public at large, and the federal government.
- Whether the School significantly deviates from its established practices and policies regarding the incurrence of costs, which may unjustifiably increase the federal award's cost. 2 C.F.R. §200.404.

When determining whether a cost is necessary, consideration may be given to:

- Whether the cost is needed for the proper and efficient performance of the grant program.
- Whether the cost is identified in the approved budget or application.
- Whether there is an educational benefit associated with the cost.
- Whether the cost aligns with results and findings from a needs assessment.
- Whether the cost addresses program goals and objectives and is based on program data.

Allocable to the federal award.

A cost is allocable to the federal award if the goods or services involved are chargeable or assignable to the federal award in accordance with the relative benefit received. This means that the federal grant program derived a benefit in proportion to the funds charged to the program. 2 C.F.R. §200.405.

- Consistent with policies and procedures that apply uniformly to both federally financed and other activities of the School.
- Conform to any limitations or exclusions set forth as cost principles in the terms and conditions of the federal award.
- Consistent treatment of costs for the same purpose in similar circumstances.
- Adequately documented.
- Be determined in accordance with generally accepted accounting principles (GAAP).
- Not included as a match or cost-share unless the specific federal program authorizes federal costs to be treated as such.
- Be the net of all applicable credits. 2 C.F.R. §200.406.

- Consider all state and local requirements related to items not addressed by federal rules, such as mileage, hotel points, etc.

Additionally, employees must consult federal, State and School requirements when spending federal funds.

Compensation for Personal Services-Time and Effort Policy

In accordance with this policy, all employees whose compensation is paid, in full or in part, with Federal funds or whose compensation is used as matching funds on a federally funded grant program must maintain time distribution records in accordance with these established criteria. Employees must provide the information required on a timely basis and in accordance with these procedures. Time distribution records must be maintained to prevent disallowance of salary and wages charged to Federal grants. Federal Uniform Grant Guidance, 2 CFR Part 200.430

Definitions

Cost Objective: A program, function, activity, award, organizational subdivision, contract, or work unit for which cost data are desired and for which provision is made to accumulate and measure the cost of the processes, products, jobs, capital projects, etc. See §200.28 Uniform Grant Guidance.

Employee Compensation: All amounts paid to an employee for services rendered during the award period. Compensation includes salaries, fringe benefits, stipends, bonuses and payments made under supplemental contracts.

Multiple Cost Objectives Employees: An employee is considered to work on multiple cost objectives if he or she works on:

- More than one Federal award;
- A Federal award and a non-Federal award;
- An indirect cost activity and a direct cost activity;
- Two or more indirect activities which are allocated using different allocation bases;
- An unallowable activity and a direct or indirect cost activity; or
- More than one activity within a Federal award that is separately tracked by the School.

Personnel Activity Report (PAR): A document certifying that the amount of time a multiple cost objective employee spends on each cost objective. The PAR must reflect an after-the-fact distribution of the activities performed; account for the total activity for which the employee is compensated; is prepared at least monthly; coincides with one or more pay periods; and must be signed by the employee.

Semi-Annual Certification: A document certifying that a single cost objective employee worked solely on one cost objective. The certification must be prepared at least every six months and must be signed by the employee or supervisory official having first-hand knowledge of the work performed by the employee.

Procedure

All employees paid with Federal funds must complete the appropriate time and effort records. These procedures also apply to employees paid with non-Federal funds that are used as a match (Or in-kind contribution) in a Federal program.

Single Cost Objective Employees

An employee who works on a single cost objective must complete a semi-annual certification that indicates the employee worked solely on that cost objective for the period covered by the certification. The certification must be prepared at least every six months. Either the employee or a supervisor with first-hand knowledge of the work performed by the employee must sign and date the semi-annual certification.

A semi-annual certification must:

- Be executed after the work has been completed;
- State that the employee worked solely on activities related to a particular cost objective;
- Name the employee and the employee's position;
- Identify the single cost objective;
- Specify the reporting period;
- Be signed by the employee or a supervisor with first-hand knowledge of the work performed; and
- Be dated.

Multiple Cost Objective Employees

Employees working on multiple cost objectives must maintain Personnel Activity Reports (PARs) or equivalent documentation indicating the amount of time spent on each cost objective for the period covered by the PAR or equivalent documentation. The PAR or equivalent documentation must be prepared at least every month. The employee must sign and date the PAR or equivalent documentation.

A PAR or equivalent documentation must:

- Be executed after the work has been completed (projections of how an employee is expected to work or position descriptions are not sufficient);
- Account for the total activity for which each employee is compensated, including part-time schedules or overtime (total activity means all of the time an employee works, not just the amount of time worked on a Federal program) as well as any holiday, sick, and vacation time utilized;
- Name the employee and the employee's position;
- Identify all cost objectives including federal program name and CFDA # being worked upon;
- Specify the reporting period;
- Be prepared at least monthly and coincide with one or more pay periods;
- Be signed by the employee (unlike a semi-annual certification a supervisor's signature is not sufficient); and
- Be dated after the fact (when the work has been completed).

The PAR must be supported with documentation of actual effort, not estimates. Supporting documentation could be a work calendar, work product, time log, or class schedules. All multiple cost objective employees must complete the PAR.

Supplemental Contracts

If an employee works overtime, that time must be reflected in the employee's time and effort record. If, however, an employee works in two distinct positions the employee may maintain separate time and effort records for each position.

Stipends

Employees may receive compensation in the form of stipends to participate in activities such as professional development. Employees receiving such stipends for School sponsored activities may satisfy time and effort records by signing the sign-in and sign-out sheets provided at the activity.

Reconciliation

Employee compensation costs shall be charged to Federal programs based on budget estimates that reasonably approximate how an employee will work during the year. The School will reconcile payroll charged as compared to the effort incurred in each employee's time and effort records at least quarterly.

If the School identifies a variance between how an employee's compensation was charged and how the employee actually worked, it will adjust its payroll charges so that the amount charged to Federal funds reflects the employee's actual time and effort. This shall be adjusted annually if an identified variance is less than 10%, or at least quarterly if an identified variance is 10% or more. The School will determine if the variance is an anomaly or if an amendment to the existing approved budget is required.

In-Kind Contributions and Matching

Employees who are paid with non-Federal funds used to meet a Federal match requirement must comply with the time distribution reporting requirements.

Employees paid with matching funds who work on multiple cost objectives must complete a personnel activity report.

Document Retention

Time and effort records including any employee supporting documentation must be maintained for a period of at least five (5) years.

Federal Cash Management Policy/Procedures

The School will comply with applicable methods and procedures for payment that minimize the time elapsing between the transfer of funds and disbursement by the School, in accordance with the Cash Management Improvement Act at 31 CFR Part 205.

If the School receives an advance in federal grant funds, the School will remit interest earned on the advanced payment quarterly to the federal agency, as provided for under 2 CFR § 200.305(b)(9).

Payment Methods

Reimbursements: The School will initially charge federal grant expenditures to nonfederal funds.

The School Assigned employee will request reimbursement for actual expenditures incurred under the federal grants. All reimbursement requests must be in writing and signed by the person requesting reimbursement. The Assigned employee has the right to request additional documentation from the party requesting reimbursement prior to submitting any request. All reimbursements are based on actual disbursements, not on obligations.

Consistent with state and federal requirements, the School will maintain source documentation supporting the federal expenditures (invoices, time sheets, payroll stubs, etc.) and will make such documentation available for the Department of Education review upon request.

Reimbursements of actual expenditures do not require interest calculations.

Advances: To the extent the School receives advance payments of federal grant funds; the School will strive to spend the federal funds on allowable expenditures as expeditiously as possible. Specifically, all drawn downs of federal funds must be expended within 72 hours of receipt.

Cash advances are limited to the immediate cash needs associated with the grant and all advances must be prorated to meet immediate cash needs.

The School will hold federal advance payments in interest-bearing accounts, unless an allowable exception applies. The School will begin to calculate interest earned on cash balances once funds are deposited into the School's account.

Interest will be calculated quarterly. Total federal grant cash balances will be calculated on cash balances per grant and applying the School's interest rate. Within 30 days of the end of the quarter, the School will remit interest earned on U.S. Department of Education grants. The School may retain up to \$500 of interest earned per year.

Timely Obligation of Funds

Obligations are orders placed for property and services, contracts and sub awards made, and similar transactions during a given period that require payment by the non-Federal entity during the same or a future period.

If the obligation is for:	The obligation is made:
Acquisition of property	On the date which the School makes a binding written commitment to acquire the property
Personal services by an employee of the School	When the services are performed
Personal services by a contractor who is not an employee of the School	On the date which the School makes a binding written commitment to obtain the services
Public utility services	When the School receives the services
Travel	When the travel is taken
Rental of property	When the School uses the property

A pre-agreement cost that was properly approved by the Secretary under the cost principles in 2 CFR part 200, Subpart E- Cost Principles.	On the first day of the project period.
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Period of Performance of Federal Funds

All obligations must occur on or between the beginning and ending dates of the grant project (“the period of performance”).

Regardless of the period of availability, the School must liquidate all obligations incurred under the award not later than 90 days after the end of the funding period unless an extension is authorized. Any funds not obligated within the period of availability or liquidated within the appropriate time frame are said to lapse and must be returned to the awarding agency.

Carryover

State-Administered Grants: The Tydings Amendment extends the period of availability and permits recipients to “carryover” any funds left over at the end of the initial 15-month period for an additional 12 months. The Assigned employee is responsible for tracking carryover and creating a carryover reporting sheet annually.

Direct Grants: Schools are authorized to extend a direct grant automatically for one 12-month period. The School must provide written notice of extension to the federal awarding agency at least 10 calendar days before the end of the period of performance specified in the award. This one-time extension may not be exercised merely for the purpose of using unobligated balances. The written notice must provide the reasons for the extension as well as the revised period of performance. Any proposed notice for extension must be approved by the Governing Authority at least 30 days prior to the end of the period of performance.

The School will seek prior approval from the federal agency when the extension will not be contrary to federal statute, regulation or grant conditions and:

The terms and conditions of the Federal award prohibit the extension;

- The extension requires additional Federal funds; or
- The extension involves any change in the approved objectives or scope of the project.

Conflict of Interest Requirements

Standards of Conduct: In accordance with 2 C.F.R. § 200.18(c)(1), the School maintains the following standards of conduct covering conflicts of interest and governing the actions of its employees engaged in the selection, award and administration of contracts.

No employee, officer, or agent may participate in the selection, award, or administration of a contract supported by a federal award if he or she has a real or apparent conflict of interest. Such a conflict of

interest would arise when the employee, officer, or agent, any member of his or her immediate family, his or her partner, or an organization which employs or is about to employ any of the parties indicated herein, has a financial or other interest in or a tangible personal benefit from a firm considered for a contract.

The officers, employees, and agents of the School may neither solicit nor accept gratuities, favors, or anything of monetary value from contractors or parties to subcontracts, unless the gift is an unsolicited item of nominal value.

Any conflict of interest shall be immediately reported to the Assigned employee or the Governing Authority. In the event of a conflict of interest, the officer, employee, or agent involved shall be immediately removed from the contract procurement transaction, whose removal shall be documented.

The School shall disclose in writing any potential conflict of interest to the federal awarding agency or pass-through entity in accordance with applicable policies and laws. The annual audit must also include a description of all conflicts which arose throughout the year.

The School must disclose, in a timely manner, any federal criminal law violation involving fraud, bribery, or gratuity violations potentially affecting the federal award.

Disciplinary Actions

Any individual who violates the standards of conduct shall be disciplined in accordance with the School's employee discipline policies.

Record Keeping

Record Retention

The School maintains all records that fully show: (1) the amount of funds under the grant or subgrant; (2) how those funds are used; (3) the total cost of each project; (4) the share of the total cost of each project provided from other sources; (5) other records to facilitate an effective audit; and (6) other records to show compliance with federal program requirements. The School also maintains records of significant project experiences and results. These records and accounts must be retained and made available for programmatic or financial audit.

Collection and Transmission of Records

Records shall be collected and transmitted in accordance with 2 C.F.R. §200.336.

Access to Records

The School provides the awarding agency, Inspectors General, the Comptroller General of the United States, and the pass-through entity, or any of their authorized representatives the right of access to any documents, papers, or other records of the School which are pertinent to the Federal award, in order to make audits, examinations, excerpts, and transcripts. The right also includes timely and reasonable access to the School's personnel for the purpose of interview and discussion related to such documents.

Privacy

The School shall take reasonable measures to safeguard protected personally identifiable information and other information that the awarding agency or pass-through entity designates as sensitive in accordance with all federal, state, and local laws regarding privacy and obligations of confidentiality.

Cross-Reference: Policy No. **1753**, School Asset Policy.

1758 – Insurance Coverage

The Governing Authority shall purchase and maintain, using school funds, an insurance policy or policies sufficient to protect the School from major financial liability and loss. The duty to administer the insurance policy(s) shall be delegated by the Governing Authority to the Head Administrator and the Treasurer.

Adequate insurance coverage shall include, but shall not be limited to, the following areas:

- property loss insurance coverage for all School buildings and their contents;
- comprehensive bodily injury and property damage coverage for all School-owned motor vehicles;
- any necessary specialty insurance coverage for equipment not adequately covered by existing insurance policies;
- worker's compensation coverage;
- employee insurance coverage as required by Governing Authority directive;
- professional liability insurance coverage for all Governing Authority Members and officers; and
- any additional insurance required pursuant to law.

1759 – Crowdfunding

Crowdfunding is a method of raising funds for a project or venture by soliciting voluntary contributions from the public or smaller community via the internet or social media platforms. The purpose of this policy is to regulate the use of crowdfunding campaigns by School employees for the benefit of the School's students, employees, facilities, and programs.

School employees may not engage in crowdfunding campaigns without prior written authorization from the Head Administrator or designee. This policy does not apply to private fundraising engaged in by employees for campaigns unrelated to the individual's employment with the School.

The Head Administrator shall prepare a list of approved crowdfunding services or websites, and only those services or websites approved by the Head Administrator may be used by School employees.¹ None of the designated services or websites may permit donations to be sent to the staff member; donations must go directly to the School.

Employee crowdfunding proposals submitted to the Head Administrator or designee for prior approval must clearly identify the purpose of the fundraising and state all the information that will be communicated to potential donors. The Head Administrator or designee will ensure the campaign proposal complies with state and federal law (including, but not limited to, Title IX and laws governing the confidentiality of student information), as well as the Governing Authority's policies and rules. Only proposals that comport with the School's needs, educational philosophy, and technical infrastructure will be approved.

Crowdfunding proposals may not:

- contravene the mission or undermine the authority of the School;
- Option 1: use student images, names, or other personally identifiable without the express written permission of the parent; Option 2: utilize the image of any student or group of students;
- be used to obtain resources or materials that are required to provide a student's free appropriate public education, as defined by law;
- permit donations to go directly to an individual staff member or any entity other than the School.

Financial oversight of crowdfunding donations falls under the responsibility of the Treasurer. All fundraising must be done in the name of the School (not an individual staff member, club, etc.). All donations shall be the property of School. The Treasurer shall collect and deposit all cash donations into School bank accounts and record all in-kind donations in the School's inventory.

¹ The Head Administrator or designee shall determine, with the assistance of legal counsel, if necessary, whether the utilization of a crowdfunding site obligates the School to file government-required reports of charitable activities.

All donations must be approved by the Governing Authority before disbursement and must be used for the purpose stated in the crowdfunding proposal, as communicated to donors.

1760 - Use of Cell Phones for School Purposes

School-Owned Cell Phones

In an effort to facilitate timely and efficient communication, the Board may, when necessary, provide an employee with a School-owned cell phone to be used exclusively for School business. The Board shall only provide a School cell phone to those employees with a consistent need for such in the ordinary course of School business. The respective cell phone policy shall be set at the minimum level necessary, in terms of number of minutes, services available, type of phone, and coverage area, while still meeting the employee's needs.

Pursuant to this Policy, the Head Administrator shall develop and implement any administrative policies and guidelines necessary to ensure that:

- school cell phones are only used when a more cost-effective manner of communication, such as e-mail or a landline, is not available or otherwise appropriate;
- school cell phones are only used in an emergency situation and when communicating with Board members, officers, staff, or parents regarding School business;
- the respective cell phone plans are set at the appropriate level, as determined according to the provisions of this Policy, and are reviewed on a regular basis for continued conformity with this Policy;
- the employee compensates the Board for any use of the School cell phone that is not related to School business;
- all employees provided with a School cell phone understand the usage allowances under the respective cell phone policy and are familiar with what is considered acceptable cell phone usage under this Policy; and
- the School cell phone shall be returned to the Board and/or the respective cell phone policy shall be terminated when the use of the School cell phone is no longer necessary, the employee is no longer employed, or the employee is deemed to have disregarded the provisions contained within this Policy.

When an employee is in possession of a School cell phone, the following rules and guidelines shall be followed:

- All reasonable precautions shall be taken to assure that the School cell phone is not damaged, stolen, or lost.
- The Board may, at any time during or upon termination of employment, request presentation of the School cell for purposes of inspection or confiscation. If the employee cannot produce the School cell phone within the reasonably requested time period, the employee will be financially responsible, to the Board, for the value of the cell phone.
- All precautions should be taken to eliminate or otherwise limit the number of extra charges and other fees from the service provider. This includes using a landline or other means of communication when necessary, avoiding making or receiving calls when outside the covered service area.

The Board reserves the right to audit all School cell phones to ensure that they are being used appropriately.

If, upon termination or resignation of employment, the employee has any outstanding fees owed to the Board for unauthorized use of the School cell phone or damage or loss of the School cell phone, the School may initiate legal action against the employee to recover the amounts owed.

Use of Personal Cell Phones for School Business

At times, due to an emergency or other unusual circumstance, it may be necessary for the Head Administrator, or any other employee designated by the Head Administrator to make or receive School-related phone calls on his personal cell phone, or otherwise use his personal cell phone for School business. All employees thus designated shall provide the Head Administrator with an accurate and updated personal cell phone number. If any additional fees or use charges result from this use, the employee may be reimbursed.

Safety and Security

Whether using a School-owned cell phone or using a personal cell phone for School business, the following safety and security measures should be adhered to:

- cell phones shall not be used while driving an automobile;
- Due to security concerns, confidential information shall not be discussed over a cell phone unless, after consideration, the employee deems it appropriate and necessary.

1770 – Procedures Related to Independent Contractors

The School may contract with an Independent Contractor provided the School follows the proper procedures.

An “Independent Contractor” is defined as an individual who is employed by the School on a contractual basis but is not treated as an employee of the School for tax purposes.

An updated list of all independent contractors that are currently working or have previously worked under a contract with the School shall be maintained.

Procedure for Hiring

The School will not hire an Independent Contractor unless:

- no School employees are qualified to perform the service;
- a School employee is qualified to perform the service, but performing the service would interrupt the School’s ongoing operations and activities; or
- In the opinion of the Governing Authority, or its designee, it is in the School’s best interest to hire the Independent Contractor.

By law, the School is required to follow procedures when working with an independent contractor.

Accordingly, the Head Administrator is responsible for ensuring that the mandated procedures and guidelines listed below are followed.

- For all contracts over \$600, a written contract shall be made describing the services to be provided with sufficient detail. The contract must be signed prior to beginning the services and shall then be maintained by the School.
- The School shall obtain a completed W-9 form from the independent contractor. Under no circumstances shall the School use a W-2 form when working with an independent contractor. If any state retirement system decides that the School must make payments on behalf of the independent contractor, such payments shall be deducted from the independent contractor’s gross payment.
- Prior to generating payment pursuant to any contract with an independent contractor, the School shall require sufficient substantiation from the independent contractor in order to ensure that the contracted services have been provided as contemplated by the contract.
- If required by federal or state law, the School shall complete a Form-1099 for the independent contractor at the end of the tax year. One copy shall be delivered to the independent contractor, one copy shall be submitted to all appropriate government offices, and at least one copy shall be maintained for School records.

Essential School Services

Under Ohio law, the School must also comply with rules regarding Independent Contractor employees who provide “essential” school services. Essential school services are defined by law as services provided by a private company under contract that the Head Administrator determines are necessary and that would need to be provided by employees of the School if the services were not provided by the private company.

In order for an independent contractor to provide “essential” school services, the independent contractor must:

- present proof that the individual has been the subject of a criminal records check, conducted in accordance with Ohio law at some point within the five-year period immediately prior to the date on which the person will begin working with the School, and the criminal records check indicates that the person has not been convicted of or plead guilty to any offense as described in R.C. 3319.39(B); or
- during any period of time in which the individual will have routine interaction with a child or regular responsibility for the care, custody, or control of a child, an employee of the School will be present in the same room or, if outside, within a thirty-yard radius of the child or have visual contact with the child.

Federal: 26 U.S.C. 6041.

Ohio: R.C. 3326.25.

1800 – Program-Related Duties and Other Managing Entities

Policy No. 1810

1810 – Development of Administrative Rules, Guidelines, and Procedures

The Head Administrator is responsible for the developing and implementing of all rules, guidelines, and procedures necessary for the operation and administration of the School. These rules, guidelines, and procedures shall be binding upon all students and staff, so long as they do not conflict with these Policies or any state or federal law. In the event that these Policies directly conflict with federal or state law, the rules, guidelines, and procedures should comply with the applicable federal or state laws.

The Head Administrator has the authority and discretion to develop handbooks, derived from these administrative rules, guidelines, and procedures. Such handbooks shall be distributed to parents, students, and staff as the Head Administrator deems necessary.

If any changes are made to the administrative rules, guidelines, or procedures, such changes shall be posted in a common area of the Facilities or shall otherwise be communicated in a manner reasonably expected to reach students, staff, and parents.

Finally, the Head Administrator shall develop and maintain an organizational chart, which is kept updated and is immediately accessible by the Governing Authority at any given time.

Cross Reference: Policy No. **1300**, Code of Regulations.

1820 – Job Description Database

The School shall create and maintain a comprehensive database of job descriptions, which shall include an accurate and reasonably detailed description of each position within the School.

Cross Reference: Policy No. **5110**, General Employment Eligibility; Policy No. **5120**; Employee Designations; Policy No. **5130**, Teacher Requirements; Policy No. **5140**, Substitute Teachers; Policy No. **5150**, Educational Assistants; Policy No. **5160**, Other Employees.

1830 – Development of School Curriculum

“Curriculum” is broadly defined as all school courses, instruction, projects, and activities planned and executed pursuant to the educational goals of the School.

The curriculum shall be developed by the Academic Excellence Committee that consists of at least the School's Chief Administrative Officer, a teacher, a representative of the higher education institution that is a collaborating partner in the School, and a member of the public with expertise in the application of science, technology, engineering, or mathematics. In addition, the team shall include an expert in the integration of arts and design into the STEM fields. The curriculum is subject to approval by the Governing Authority.

Ohio: R.C. 3326.09.

1850 – Electronic Records and Signatures

The Governing Authority adopts the following policy with respect to the use of electronic records and signatures in connection with its communications with parents and guardians of children enrolled at the School.

"Electronic record" means a record created, generated, sent, communicated, received, or stored by electronic means.

"Electronic signature" means an electronic sound, symbol, or process attached to or logically associated with a record and executed or adopted by a person with the intent to sign the record. A name in a sender's email may constitute a valid electronic signature for purposes of entering into electronic transactions.

If the School (through its employees) and parents/guardians have agreed to conduct a transaction by electronic means and a law requires the School to provide, send, or deliver information in writing to a parent/guardian, the requirement is satisfied if the information is provided, sent, or delivered, as the case may be, in an electronic record capable of retention by the recipient at the time of receipt. An electronic record is not capable of retention by the recipient if the sender or its information processing system inhibits the ability of the recipient to print or store the electronic record. The School shall document the agreement between parents/guardians and the School to conduct a transaction or receive information electronically and shall verify the accuracy and confidentiality of the parent/guardian's email address.

Where the School permits parents/guardians to fill out forms and applications online and sign electronically, the School will notify parents/guardians that the electronic signature acts as a handwritten signature with binding effect by posting the following statement: *"The Governing Authority of Community STE(A)M Academy - Xenia accepts signatures or symbols on this document as though signed in handwriting. The parent/guardian understands and agrees that by including an electronic signature on this document, s/he has agreed to the terms and conditions."*

If a law requires that a record be retained (either as a public or confidential record), the requirement is satisfied by retaining an electronic record if: (1) the electronic record accurately and completely reflects the information set forth in the record after it was first generated in its final form as an electronic record or otherwise; and (2) the electronic record remains accessible for later reference. The Governing Authority shall ensure that all electronic records and signatures are capable of being stored in a secure manner and accurately reproduced until such time as all record-retention requirements under state and federal law are satisfied. Electronic student records are confidential, in accordance with state and federal law.

Nothing in this policy is intended to authorize any individual to sign on behalf of the Governing Authority if s/he has not been granted such authority, as governed by applicable School policies. The presence of

an electronic signature does not mean that the signatory was authorized to sign or approve on behalf of the Governing Authority.

1860 – Prohibition Against Requiring Specific Beliefs, Affiliations, Ideals, Political Principles, or Ideology

In accordance with Ohio law, the Governing Authority shall not solicit or require an employee or applicant for employment or academic admission to affirmatively ascribe to, or opine about, specific beliefs, affiliations, ideals, or principles concerning political movements, or ideology.

Statements of commitment to specific beliefs, affiliations, ideals, or principles concerning political movements, or ideology shall not be a part of the evaluation criteria for employees or applicants for employment, or employees that are seeking career progression or benefits.

Students are not required, and shall not be solicited to, affirmatively ascribe to specific beliefs, affiliations, ideals, or principles concerning political movements, or ideology. Statements of commitment to specific beliefs, affiliations, ideals, or principles concerning political movements or ideology shall not be a part of the academic evaluation of students.

Nothing in the policy shall be construed to prohibit, limit, or restrict any of the following:

- 1) The School's authority to require a student or employee to comply with federal or state law, including anti-discrimination laws, or to take action against a student or employee for violation of federal or state law;
- 2) An educator's academic freedom;
- 3) An educator's ability to research or write publications about specific beliefs, affiliations, ideals, or principles concerning political movements, ideology, or social action;
- 4) The School's authority to consider an applicant for employment's scholarship, teaching, or subject matter expertise in the applicant's given academic field;
- 5) The School's authority to offer an established character education program.

All policies, district guidance, and training materials used for students, educators, and staff on all matters regarding specific beliefs, affiliations, ideals, or principles concerning political movements, or ideology are available to the public.

Nothing in this policy shall be construed to require school districts to make protected legal communications or guidance publicly available

Ohio: R.C. 3319.614

Section II: Support Services and Safety Policies

2100 – Food Services Subsection

Policy No. 2110

2110 – Food Services Program

A food services program may be provided *directly* by the School or may be provided *indirectly* by a company that has entered a contract with the Governing Authority. The food services program shall comply with all state and federal regulations regarding the management of the program, such as fiscal management, menu planning, food preparation and food disposal. If the food service program is provided by a contracted company, the contracted company shall be responsible for ensuring that the menu meets or exceeds all federal and state regulations regarding nutritional and dietary requirements.

Unless provided otherwise, all students shall remain on school property during the lunch period. During the lunch period, staff members, or their permitted designees will be responsible for supervising the students. At least one employee who has received instruction in methods to prevent choking and has demonstrated an ability to perform the Heimlich maneuver shall be always present when students are being served food. If any or all students are permitted to leave school property during lunch, the students shall adhere to all applicable rules or guidelines established by the School.

If the food services program has a special rate for students, then staff members and other adults are prohibited, according to government regulations, from purchasing a lunch at this special rate.

School Breakfast Program

The School shall offer breakfast to all enrolled students either before or during the school day so long as in the first year of the Program the School has 70% of students eligible for free and reduced-priced meals to participate. This requirement drops to 60% in the second year and 50% in the third and each subsequent year.

School administration, in consultation with building staff, shall determine the model for serving breakfast under the Program. Each breakfast must comply with federal meal patterns and state and federal nutritional standards. The School may charge students for meals, based on family income in accordance with federal requirements, to cover all or part of the costs incurred in operating the program.

The School may choose not to establish a School Breakfast Program for financial reasons or if it already has a successful breakfast program or partnership in place.

Meals served through the school's food services program shall comply with USDA nutrition standards as specified in 7 CFR 210.10 and 220.8. The menu planning, food preparation, and portion sizes will meet or exceed the requirements for meal patterns, nutrient levels, and calorie limits appropriate for the age/grade levels served. A link to the current USDA nutrition standards shall be made available to the school community via the district website.

All food and nutrition services staff will receive annual training to meet USDA Professional Standards for State and Local Nutrition Programs. Training hours will align with the USDA requirements, including 12 hours for new and current directors, 10 hours for new and current managers, and 6 hours for new and current staff. Training content will focus on food service operations, meal pattern compliance, and nutrition education.

Ohio: R.C. 3313.818.

Cross-Reference: Policy No. **2120**, Federal Nutrition Programs; Policy No. **2130**, Wellness Policy; Policy No. **2140**, Nutritional Standards; Policy No. **2150**, State Nutritional Guidelines; Policy No. **2250**, Known Food Allergies; Policy No. **2310**, Hand Washing Requirements; Policy No. **2320**, Personal Safety; Policy No. **2330**, Equipment Safety.

Reviewed/Modified December 3, 2024

2120 – Federal Nutrition Programs

The Governing Authority recognizes that adequate nutrition is a necessary component for each student's education and success. Accordingly, free or reduced-price breakfasts and lunches, as well as free milk, will be offered to all students who qualify. Qualification standards are based upon the most recent criteria established by the Child Nutrition Program and National School Lunch Act and issued by the Ohio Department of Education.

The Head Administrator is responsible for directing and overseeing the free and reduced-price meal program and the free milk program. The Head Administrator shall ensure the program complies with the standards below.

- Ensure that each student receives an application at the beginning of each school year or when the student enrolls after the start of the school year. This application shall serve as a notification to each student's family regarding the availability of the programs, the eligibility requirements, and the application process.
- Ensure that all applications are received and processed in a timely manner as required by law.
- Establish and implement any procedures and policies necessary to ensure that the free and reduced-price meal program and the free milk program operate efficiently and in accordance with all applicable regulations.
- Submit all necessary paperwork or other documentation to the School Food Service Division of the State Department of Education on a timely basis.

Federal: 42 U.S.C. § 1751.

*Cross-Reference: Policy No. **2110**, Food Services Program; Policy No. **2130**, Wellness Policy; Policy No. **2140**, Nutritional Standards; Policy No. **2150**, State Nutritional Guidelines.*

Reviewed December 3, 2024

2130 – Wellness Policy

The School recognizes that a healthy lifestyle is an important part of success in education and in life, and that there is a strong correlation between students who lead healthy lifestyles and students who complete their formal education. The School also recognizes that it is important for staff members to make healthy lifestyle choices, not only to improve their health and job performance, but also to serve as effective role models for students. Accordingly, the Governing Authority hereby adopts the following general guidelines to be used, in conjunction with any federal or state regulations or other Policies, in establishing and implementing programs and activities regarding nutrition and general wellness.

Nutritional Guidelines

All food available in the School during the school day shall serve the objectives of promoting student health and reducing childhood obesity. Pursuant to this:

- all foods shall be served in appropriate serving sizes, as determined by the USDA.
- all beverages sold on school premises must comply with all statewide standards as discussed in Policy No. **2140**, Nutritional Standards.
- when selecting foods to be served a la carte, foods shall be nutritious and conform with state guidelines and standards.
- when possible, food choices shall be appealing and attractive to children and made after considering the opinions and suggestions of an advisory group consisting of students, parents, staff, and other members of the community.
- when selecting foods, a preference should be expressed for foods that are high in fiber and low in added fats, sugar, and sodium.
- when selecting foods which will be reimbursed pursuant to a state or federal program, foods shall be selected which meet the program requirements, but no additional or more restrictive requirements shall be placed on the food selection.

Physical Activity Opportunities

Physical activity shall be designed to promote student wellness and shall be a part of the School curriculum. The Physical activity opportunities shall be designed to accomplish a goal of promoting an active, fit lifestyle. There are several ways these can be accomplished including, but not limited to, the following:

- physical education class, consisting of both physical activity and education;
- integrating physical education and physical activities across the curricula as possible;
- physical education class that promotes participation in physical activity beyond the school environment;
- extracurricular activities offered on a regular, recurring basis; and
- other School-wide activities offered on a regular, recurring basis.

Nutrition & Health Education

The School is committed to furthering this Wellness Policy through nutrition and health education. Nutrition education shall be designed to promote healthy lifestyle choices and the importance of nutrition. This goal may be accomplished by the following:

- including instruction about nutrition, physical exercise, and disease prevention as a part of the Health curriculum;
- integrating nutrition education into the curriculum beyond health education classes;
- developing nutrition and health education that developmentally appropriate and culturally sensitive;
- promotes fruits, vegetables, whole grain products, low-fat and fat-free dairy products, healthy food preparation methods, and health-enhancing nutrition practices;
- Students shall be regularly exposed

The district will establish measurable goals for nutrition promotion and education to encourage lifelong healthy eating habits. Nutrition lessons will be integrated into health education and other subjects to teach students how to make informed choices about their diet. These lessons will promote fruits, vegetables, whole grains, low-fat and fat-free dairy products, and other nutrient-rich foods while reducing consumption of added sugars, sodium, and saturated fats.

Students shall also be given opportunities throughout the day to implement these healthy lifestyle choices. By offering a selection of nutritious foods and exposing students to active, physical activities throughout the day, students have the opportunity to apply their knowledge about healthy lifestyle choices outside of the classroom environment.

Community and Family Involvement

The School shall foster and develop relationships between the students, the parents, and other members of the community, so that everyone can work together to reinforce the School's educational mission of learning and to help extend learning and wellness beyond the classroom through events, activities, programs, and other projects.

To increase participation in school meal programs, the school will implement strategies such as offering taste tests for new menu items, utilizing Smarter Lunchroom techniques, scheduling bus arrivals to allow sufficient time for breakfast, and promoting Grab-and-Go or Breakfast in the Classroom models. Student input on menu items will be sought periodically to ensure that offerings meet their preferences and cultural needs.

All community involvement shall adhere to the guidelines articulated in this Manual and shall account for diversity among students and diversity within the community.

Monitoring and Reviewing this Policy

The Head Administrator or his/her designee shall ensure the School implements and complies with this policy. The Head Administrator shall develop administrative guidelines as necessary to implement this policy.

The district will conduct a triennial (every three years) assessment of the implementation of the wellness policy to evaluate compliance, progress toward achieving policy goals, and alignment with model local wellness policies. The results will include a summary of compliance, a comparison to model

policies, and progress made in meeting goals. The assessment results will be shared with the public via the school's website and any annual reports distributed to the school community.

As appropriate and possible, the School shall involve parents, students, representatives of the school food provider, the Governing Authority, School Administrators, and the public in further implementing and developing this policy.

Federal: 42 U.S.C. §1751, 42 U.S.C. §1771.

Cross-Reference: Policy No. **2110**, Food Services Program; Policy No. **2120**, Federal Nutrition Programs; Policy No. **2140**, Nutritional Standards; Policy No. **2150**, State Nutritional Guidelines; Policy No. **2260**, Physical Activity Waiver and Consent; Policy No. **2310**, Hand Washing Requirements; Policy No. **6110**, Visitors; Policy No. **6120** Volunteers; Policy No. **6130** Relations with Law Enforcement Agencies.

Reviewed/Modified December 3, 2024

2140 – Nutritional Standards

In an effort to encourage healthy eating, the School shall limit which foods and beverages are offered to students and when food and beverages are offered. The Governing Authority shall approve only foods and beverages that are consistent with these Policies.

Food and Beverage Standards

When making decisions about which foods and beverages should be served or offered to students, the School shall comply with the following:

- any nutritional rules established by Ohio law and/or regulation;
- any nutritional rules established by Federal law and/or regulation;
- the nutritional value of the food or beverage compared with the nutritional needs of students, as determined by the USDA;
- the goals and policies in Policy No. **2130**, Wellness Policy; and
- the goals and standards included in this policy manual.

Time of Serving

The time of day for the sale of food and beverages to students shall be consistent with the student's nutrient intake needs, eating patterns, and class schedules. Bake sales and other fundraising activities involving food or beverages shall not be held during the lunch hour unless approved by the Head Administrator.

Vending Machines

Vending machines shall not be placed in any classroom where students are provided instruction unless the classroom also is used to serve student meals. During the lunch period, the School shall not operate vending machines selling food or beverages that are not approved by the Governing Authority and are inconsistent with this policy. The Governing Authority further reserves the right to restrict vending sales of all non-approved food.

Food Service Program Report

The Food Services Program's supervisor shall develop a Food Service Program Report (the "Report") on an annual basis. The Report shall be made in consultation with a licensed dietitian, a certified school nutrition specialist, or a registered dietetic technician. The Report shall: (1) describe how the School is complying with and enforcing all food/drink policies, laws, and guidelines and (2) include restrictions on the time and place food is being served, and (3) indicate the standards for the type of food being served.

Each year, the Food Service Program's supervisor shall submit for Governing Authority approval, the Supervisor's recommendations regarding which types of food and beverages shall be served as part of the Program. The Governing Authority shall only approve those food and beverages that conform to the above standards.

Separate standards and policies may be established for the types of food and beverages sold to staff members or sold at extracurricular activities or other special events.

Ohio: R.C. 3313.814, R.C. 3313.816, O.A.C. 3301-91-09.

Cross-Reference: Policy No. **2110**, Food Services Program; Policy No. **2120**, Federal Nutrition Programs; Policy No. **2130**, Wellness Policy; Policy No. **2150**, State Nutritional Guidelines.

Reviewed/Modified December 3, 2024

2150 – Nutritional Guidelines

The State of Ohio has adopted nutritional guidelines regarding the sale of food and beverages in Schools. The School shall conform to these guidelines by only selling foods that adhere with these standards and any additional nutritional standards articulated in the Nutritional Standards Policy.

Beverages

General Guidelines. All schools must conform to the following guidelines:

- At least 50% of all beverages offered a la carte during the normal or extended school day shall be water or other beverages containing no more than 10 calories per 8 ounces. Milk and juice are included in this calculation unless the vending machine sells only milk.
- Any beverage containing no more than 10 calories per 8 ounces may contain sweeteners, flavoring and/or carbonation. USDA regulations, however, restrict carbonated beverages from being sold during the breakfast or lunch hour.

In addition to the general guidelines, the School shall observe the following guidelines, depending on what the majority of grades are.

Kindergarten to fourth grade. At schools in which the majority of grades offered are in the range of kindergarten to fourth grade, only the following beverages may be offered:

- water;
- 8 ounces or less of low fat or fat-free milk, provided that the milk does not contain more than 170 calories per 8 ounces; * and
- 8 ounces or less of 100% fruit juice or 8 ounces of a 100% fruit juice and water blend without any added sweeteners, provided that the juice or blend contains no more than 160 calories per 8 ounces.

Fifth to eighth grade. At schools in which the majority of grades offered are in the range of fifth grade to eighth grade, only the following beverages may be offered:

- water;
- 8 ounces or less of low fat or fat-free milk, provided that the milk does not contain more than 170 calories per 8 ounces; * and
- 10 ounces or less of 100% fruit juice or fruit juice and water blend without any added sweeteners, provided that the juice or blend contains no more than 160 calories per 8 ounces.

Ninth to twelfth grade. At schools in which the majority of grades offered are in the range of ninth grade to twelfth grade, only the following beverages may be offered:

- water;
- 16 ounces or less of low fat or fat-free milk, provided that the milk does not contain more than 170 calories per 8 ounces; *
- 12 ounces or less of 100% fruit juice or fruit juice and water blend without any added sweeteners, provided that the juice or juice blend contains no more than 160 calories per 8 ounces; and
- 12 ounces or less of any beverage that does not contain more than 66 calories per 8 ounces.

* As of January 1, 2014, milk must contain no more than 150 calories per 8 ounces.

A la Carte Food

All food sold a la carte must meet appropriate nutritional and serving size standards, as established by the Alliance for Healthier Generation or the Nutrient Density Format. Food is sold a la carte if it cannot qualify as part of a reimbursable meal, as defined in section 3313.814 of the Revised Code. This includes food that is actually served as part of a reimbursable meal, but that is not a qualifying component of the meal.

Food sold a la carte is exempted from the a la carte standards if either of the following qualifications is met:

- The food is also offered as a qualifying component of a reimbursable meal and is served in the same serving size as on the reimbursable meal; or
- The food could qualify as a component of a reimbursable meal and is served in any appropriate serving size as determined by the School in consideration of applicable regulations, standards, and guidelines.

Ohio: R.C. 3313.814, R.C. 3313.816, 3313.817.

Cross-Reference: Policy No. **2110**, Food Services Program; Policy No. **2120**, Federal Nutrition Programs; Policy No. **2130**, Wellness Policy; Policy No. **2140**, Nutritional Standards.

Reviewed December 3, 2024

2200 – General Wellness Services

Policy No. 2210

2210 – Health Screenings

Prior to the first day of November of the school year in which a student is enrolled for the first time in either kindergarten or first grade, the student shall be screened for hearing, vision, speech and communications, health and medical problems, or for any developmental disorders. The School should send information to the parents of the student prior to the first day of August of the school year in which the Student qualifies for screening.

The School may conduct the screening or may contract with any person or governmental entity or may request the parent to obtain any such screening elements. If the School requests the parent to obtain any screening services, the School shall provide the parent with lists of providers and information about screening services available in the community to parents who cannot afford them.

Any parent requested to obtain any screening services may sign a written statement to the effect that he or she does not wish to have his or her child receive a screening.

If the results of any screening reveal the possibility of special learning needs, the School shall conduct a further assessment in accordance with Chapter 3323 of the Revised Code (Education of Children with Disabilities).

Ohio: R.C. 3313.673, R.C. 3326.11.

Cross-Reference: Policy No. **3740**, Child Find Responsibilities.

Reviewed December 3, 2024

2220 – Immunization Requirements

At the time a student initially enrolls in the School, and at the beginning of each school year while enrollment continues, each student shall have sufficient written evidence on file at the School demonstrating that he/she has been immunized against diphtheria, tetanus, pertussis, poliomyelitis, measles, mumps, rubella, Hepatitis B, chicken pox, and all other things as required by applicable statutes, regulations, and guidelines (hereinafter “mandatory immunizations”).

“Sufficient written evidence” is defined as either a signed statement from the student’s physician or a signed statement from the student’s parent indicating the immunizations received and the dates on which they were received. If the only written evidence presented to the School is a parent’s signed letter, the Head Administrator, in his sole discretion, may request additional written evidence, up to and including a signed doctor’s statement.

A student shall not be permitted to remain in School for more than fourteen (14) days without either sufficient written evidence of all mandatory immunizations (which include: Hepatitis B, Chicken Pox and Meningococcal Diseases) or sufficient written evidence that the student is in the process of being immunized, as defined by section 3313.671 of the Revised Code. Students who do not comply with this Policy shall be excluded from the School and permitted to re-enter only upon presenting sufficient written evidence of all mandatory immunizations or sufficient written evidence that the student is in the process of being immunized.

Any student who is admitted while “in the process of being immunized” must obtain immunizations at the appropriate time intervals until all mandatory immunizations are completed. Any student who was previously admitted under the “in the process of being immunized” exception but has not adhered with the appropriate immunization interval schedule shall be excluded from the School on the fifteenth (15th) day of the following school year. Such a student shall be permitted to re-enter School only upon presenting proper written evidence demonstrating appropriate progress on the immunization interval schedule.

Under certain circumstances, a student may be exempted from one or more of the mandatory immunizations. A student is exempt if the student presents:

- a signed statement from the student’s parent, guardian, or physician stating that the student has already had natural rubeola, mumps and/or chicken pox, and therefore is not required to be receive the respective immunization(s);
- the results of a laboratory test, signed by a physician, demonstrating the student has a detectable amount of rubella (German measles) antibodies, and therefore does not need to be immunized against rubella;
- a written statement from the student’s parent or guardian stating that the parent or guardian declines to have the student immunized for reasons of conscience, including, but not limited to, religious convictions; and
- a written certification from the student’s physician stating that one or more mandatory immunizations are medically contraindicated.

In consideration of any of the aforementioned exemptions, the Head Administrator reserves the right, in his sole discretion, to require additional evidence to support the claimed exemption. The Head Administrator has the exclusive discretion and authority to decide whether or not a claimed exemption exists.

Chicken Pox Epidemic

If the Ohio Health Department determines that a chicken pox epidemic exists among the School's population, the Head Administrator may deny admission to any student who was not immunized against chicken pox despite the above exceptions. A Chicken Pox Epidemic is defined as the occurrence of cases of chickenpox in numbers greater than the School's population for a particular period.

The student will be permitted to re-enter the School once the Head Administrator is notified that the epidemic no longer exists. The academic standing of any student who is denied admission during a chicken pox epidemic may be preserved, subject to other School Policies as well as approval from the Head Administrator and the Governing Authority.

Ohio: R.C. 3313.67, R.C. 3313.671, R.C. 3313.71; R.C. 3326.11.

Cross-Reference: Form No. **2220.1**, Schedule of Immunization Requirements.

2220.1 – Immunization Summary for School Attendance Ohio



Department
of Health

VACCINES	FALL 2022 Immunizations for School Attendance
DTaP/DT Tdap/Td Diphtheria, Tetanus, Pertussis	K-12 Four or more doses of DTaP or DT, or any combination. If all four doses were given <i>before the fourth birthday</i>, a fifth dose is <i>required</i>. If the fourth dose was administered at least six months after the third dose, and on or after the fourth birthday, a fifth dose is not required. * Grades 1-12 Three doses of Td or a combination of Td and Tdap is the minimum acceptable for children ages 7 years and older with the first dose being Tdap. Minimum spacing of four weeks between doses 1 and 2, and six months between doses 2 and 3. Grade 7 One dose of Tdap vaccine must be administered on or after the 10th birthday. ** <i>All students in grades 8-12 must have one documented Tdap dose.</i>
POLIO	K-12 Three or more doses of IPV. <i>The FINAL dose must be administered on or after the fourth birthday</i>, regardless of the number of previous doses and there must be six months spacing between doses 2 and 3. If a combination of OPV and IPV was received, four doses of either vaccine are required.
MMR Measles, Mumps, Rubella	K-12 Two doses of MMR. The first dose must be administered on or after the first birthday. The second dose must be administered at least 28 days after the first dose.
HEP B Hepatitis B	K-12 Three doses of hepatitis B. The second dose must be administered at least 28 days after the first dose. The third dose must be given at least 16 weeks after the first dose and at least eight weeks after the second dose. The last dose in the series (third or fourth dose) must not be administered before age 24 weeks.
VARICELLA (Chickenpox)	K-12 Two doses of varicella vaccine must be administered prior to entry. The first dose must be administered on or after the first birthday. The second dose should be administered at least three months after the first dose; however, if the second dose is administered at least 28 days after the first dose, it is considered valid.
MCV4 Meningococcal	Grade 7 One dose of meningococcal (serogroup A, C, W, and Y) vaccine <u>must be administered prior to seventh grade entry</u>. All students grade 8-11 must have one documented dose of MCV4. Grade 12 Two doses of MCV4 by age 16 years, with a minimum interval of eight weeks between doses. If the first dose was given on or after the 16th birthday, only one dose is required. ****

NOTES:

- Vaccine should be administered according to the most recent version of the *Recommended Child and Adolescent Immunization Schedule for ages 18 years or younger* or the *Catch-up immunization schedule for persons aged 4 months-18 years who start late or who are more than 1 month behind*, as published by the Centers for Disease Control and Prevention's Advisory Committee on Immunization Practices. Schedules are available for print or download through www.cdc.gov/vaccines/schedules/index.html.

- Vaccine doses administered less than or equal to four days before the minimum interval or age are valid (grace period). Doses administered greater than or equal to five days earlier than the minimum interval or age are not valid doses and should be repeated when age appropriate. If MMR and varicella are **not** given on the same day, the doses must be separated by at least 28 days with no grace period.
- For additional information, please refer to the [Ohio Revised Code 3313.67](#) and [3313.671](#) for school attendance and the [ODH Director's Journal Entry](#) on required vaccines for child care and school. These documents list required and recommended immunizations and indicate exemptions to immunizations.

Please contact the Ohio Department of Health Immunization Program at 800-282-0546 or 614-466-4643 with questions or concerns.

** Recommended DTaP or DT minimum intervals for kindergarten students are four weeks between the first and second doses, and the second and third doses; and six months between the third and fourth doses and the fourth and fifth doses. If a fifth dose is administered prior to the fourth birthday, a sixth dose is recommended but not required.*

*** Tdap can be given regardless of the interval since the last tetanus or diphtheria-toxoid containing vaccine. Children aged 7 years or older with an incomplete history of DTaP should be given Tdap as the first dose in the catch-up series. If the series began at age 7-9 years, the fourth dose must be a Tdap given at age 11-12 years. If the third dose of Tdap is given at age 10 years, no additional dose is needed at age 11-12 years.*

**** The final polio dose in the IPV series must be administered at age 4 years or older with at least six months between the final and previous dose.*

***** Recommended MCV4 minimum interval of at least eight weeks between the first and second doses. If the first dose of MCV4 was administered on or after the 16th birthday, a second dose is not required. If a pupil is in 12th grade and is 15 years old or younger, only one dose is required. Currently, there are no school entry requirements for meningococcal B vaccine.*

Last updated 12/01/2021

2230 – Medication Administration

As used throughout this Policy, the following definitions apply:

- “Medication” is defined as all medicines, drugs, or other substances taken for medical treatment or alleviation of medical symptoms, whether on a daily basis or an emergency-only basis. This includes over-the-counter medicines (including hemp, hemp products and CBD oil (a hemp derivative)) as well as prescription medicines.
- “Administration” is defined as (1) a medical process or procedure that requires medical training or experience (e.g., catheterization); or (2) a particular method in which a medication is provided.

This Policy does not apply to: Policy No. **2240**, Student Use of Inhalers and Epinephrine Auto-injectors, Policy **2241**, Procurement of Epinephrine Auto-injectors by School, and Policy No. **2242**, Procurement of Asthma Inhalers by School, if adopted. This Policy does not affect Policy No. **2410**, Student Medical Emergencies. The Head Administrator shall have the authority to develop and implement any administrative guidelines necessary to fully effectuate this, Policy.

Medication Administration Policy

The School, including all Staff members and employees, is not responsible for, and will not attempt to diagnose, administrate any medications for, or otherwise treat any disease or illness. The School shall, however, permit the administration of medication to students if all of the following apply:

- the administration of the medication during school hours is necessary for the student’s health or continued School attendance and administration of the medication before and/or after school hours is inconsistent with the necessary medication administration intervals or other requirements;
- a properly completed Physician’s Medication Request Medication Form (Form No. **2230.1**) or Authorization of Non-Prescribed (Over the Counter) Medication Form (Form No. **2230.2**) has been submitted to the School; and
- a written authorization and waiver, signed by the student’s parent, is submitted to the School.

The Physician’s Medication Request Form shall be signed by the prescribing physician and shall contain all information required by Section 3313.713 of the Revised Code such as the student’s information, information regarding the administration, dosage and side effects of the drug, and the physician’s contact information. The parent’s written authorization and waiver must include a promise to notify the School immediately upon any changes in medication or administration. A proper authorization containing the Physician’s Medication Request Form and the Parent’s Authorization is available in Form No. **2230.1**, Medication Request Form.

A separate Physician’s Medication Request Form shall be required for each medication and all required forms must be filled out each year. All forms shall be kept on file in the School office with other secure medical documents.

All medications shall be delivered to the School by the parent and shall be stored in the original container as provided by the pharmacy. The container shall be labeled with the student’s name, the date the prescription was filled, and the exact dosage requirements. Once the container is empty, it will

be sent home with the student. It is the parent's responsibility to deliver a refill prescription back to the School. Except as otherwise provided in these Policies, all medications shall be securely stored in the Health Services office.

The ultimate responsibility for ensuring that medication is administered properly rests with the student and the parents. The parent, or the student if so, authorized by the parent, may administer the medication. Any such self-administration must be supervised by a designated Staff member.

Administering Medication

The School limits who may administer medication to students. To administer medication, Staff members must be either a licensed health professional or must have successfully completed a drug administration program (approved by the Governing Authority and presented by a licensed health professional). These staff members may assist or administer medications and treatments in the following ways:

- reminding the student when it is time to take the medication;
- retrieving the container containing the medication from where it is stored and delivering the container with the medication inside of it to the student;
- assuring that the student adheres to the appropriate dosage instructions;
- assisting a physically impaired (but mentally alert) student, upon request or consent of the student, in removing the medication from the prescription container and then consuming or applying the medication;
- administering oral medications to a student by placing the pill or liquid in the student's mouth; or
- administering any medication that requires an intravenous or intramuscular injection, or otherwise requires insertion of an object into the student's body, so long as the Staff member has received any necessary additional training and both the medication, and the procedure are prescribed by the physician or other prescribing health professional.

If, when administering an oral medication, it is physically impossible for the licensed staff member to administer the dose without it being spilled or dropped, an unlicensed staff member may put the medication into another container and put the container to the student's mouth.

Ohio: R.C. 3313.711, R.C. 3313.712, R.C. 3313.713; 3326.16.

Cross-Reference: Form No. **2230.1**, Medication Request Form; Form No. **2230.2**, Authorization of Non-Prescribed (Over-the-Counter) Medication; Policy No. **2240**, Student Use of Inhalers and Epinephrine Auto-injectors; Policy No. **2241**, Procurement of Epinephrine Auto-injectors by School; Policy No. **2250**, Known Food Allergies

Modified December 5, 2023

2230.1 – Medication Request Form**Physician Request Form** (to be completed by the physician)

The following student is under my care and should receive the medication indicated below. It is not possible to arrange for this medication to be taken at home under the supervision of a parent and, therefore, must be taken during school hours.

Name of Student: _____

Student Address: _____

School Name: _____ Grade: _____

Name of Medication: _____

Dosage and Administration Intervals/Times: _____

This medication can be safely administered by non-medical personnel: ☐ Yes ☐ No

Begin Date: _____ End Date: _____

Possible Adverse Reactions that Should Be Reported to Physician: _____

Special Storing, Handling, or Administration Requirements: _____

Physician Name: _____ Phone Number: _____

Physician Signature: _____ Date: _____

Parental Authorization and Waiver Form *(to be completed by parent)*

I, _____ hereby authorize designated personnel to administer the above-named medication or procedure as instructed by the physician. I further agree to:

- Provide the School with the medication in its prescribed container;
- Notify the School if my child no longer uses the physician indicated above;
- Notify the School if the medication, dosage, or procedures are changed;
- Notify the School if the medication is no longer needed or used;
- Release the School, including all personnel, from any and all liability alleged to have resulted from administering the medicines indicated above.

Parent Signature: _____ Date: _____

Address:

Note to Parents: If possible, please attach a recent photograph of your child.

2230.2 – Authorization of Non-Prescribed (Over-the-Counter) Medication

Each Community STE(A)M Academy building will keep a supply of acetaminophen, ibuprofen, antacids, and cough drops. These will be adult strength tablets, children's CHEWABLE tablets, or liquid equivalent in generic brands.

Name of Student: _____

Address of Student: _____

Name of School: _____

Student's Grade: _____ DOB: _____

My child may take the following medication at school (mark all that are applicable). The directions on the bottle will determine dosage of each medication. This authorization will be in effect for the current school year unless revoked in writing by the parent/ guardian. **The parent/guardian will be called prior to ALL distributions of medication.**

_____ Acetaminophen: (Tylenol)

_____ Antacids: (Tums/ Pepto- Bismol)

_____ Ibuprofen: (Advil/ Motrin)

_____ Cough Drop / Vitamin C Drop

In Accordance with Board Policy 5330, Students are not permitted to carry, self-administer, or distribute/sell any type of Over-the-Counter medication. If you wish to have any other Nonprescribed medication given at school, please list it below and provide the Nurse's Office with a supply of the medication.

We (I) understand that the administration of this medication is to be done under the supervision of the school nurse or designated non-medical personnel, assigned by the administrators. Further, we (I) understand that the school personnel are not legally obligated to administer any medication to a child. Therefore we (I) agree to release and hold the Board of Education, its officials, and its employees harmless from all liability foreseeable or unforeseeable for damages or injury resulting directly or indirectly from this authorization. Further, we (I) will notify the school immediately if we (I) change medication or terminate the use of this medication for any reason.

Parent / Guardian Signature: _____

Date: _____ Primary phone: _____ Secondary Phone: _____

Disclaimer: The school district maintains the right to restrict the use of this form for certain Over-the-Counter medications.

Innovative Education of the Heart, Mind, Body and Soul

Modified December 5, 2023

2231 – Student Use of Medical Marijuana

"Medical marijuana" means marijuana that is cultivated, processed, dispensed, tested, possessed, or used for a medical purpose.

Medical Marijuana shall not be sold, cultivated, possessed, used, or administered on School property, any facility maintained by the School, or at any and all School-sponsored events. A student with an active Medical Marijuana Card shall be permitted to leave School property to have the medical marijuana properly administered by a registered caregiver in accordance with Ohio law. Both the student and caregiver must provide proof of their status as registered medical marijuana patient and caregiver. A student who leaves School property for the administration of medical marijuana under this policy may not operate a vehicle on School property.

A student, who is a registered patient and under the influence of medical marijuana to treat a qualifying medical condition, may not be disciplined for being under the influence of medical marijuana while at School or attending a School-sponsored event.

Federal law continues to prohibit the sale, cultivation, processing, or use of marijuana, for any purpose.

See Policy No. **4470** Drugs, Alcohol, and Tobacco; Policy No. **5420** Drug and Alcohol Policies

2240 – Student Use of Inhalers and Epinephrine Auto-Injectors

The School permits students to possess and use metered dose inhalers and/or dry powder inhalers (“inhalers”) and epinephrine auto-injectors (“epi-pens”) provided this policy is followed. Inhalers and epi-pens may be used to alleviate (or, in the case of inhalers, to alleviate and to prevent) asthmatic or anaphylactic symptoms, respectively.

Inhalers and epi-pens that comply with this policy may be used at the School or at any activity, event, or program sponsored by or in which the School is a participant. All Inhalers and epi-pens which do not comply with this policy, shall be governed by and administered according to Policy No. **2230**, Medication and Treatment Administration unless the epi-pens are procured pursuant to Policy No. **2241**, Procurement of Epinephrine Auto-injectors.

As mandated by Sections 3313.7113, 3313.7114, 3326.30, 3328.30 of the Revised Code, this policy is intended to create a framework for accommodating individuals with asthma symptoms.

The district will obtain a prescriber-issued protocol specifying definitive orders for asthma inhalers with or without spacers including dosages of medication to be administered, the number of times that each inhaler may be used before disposal and method of disposal. This prescriber shall be a licensed health care professional authorized to prescribe drugs, as defined in section 4729.01 of the Revised Code.

Obtaining Permission to Carry & Use

To be permitted to carry an inhaler or epi-pen, the student must submit to the Head Administrator or his/her designee: (1) A backup dose of the medication is supplied (if the student is seeking to carry an epi-pen), (2) written approval from the student’s parent or guardian (if the student is a minor) and (3) written approval from the student’s physician. The physician’s written approval must contain the following information:

- the student’s name and address;
- the name and dose of the medication contained in the inhaler or the epi-pen;
- the date the administration of the medication is to begin;
- the date the administration of the medication is to end (if known);
- written instructions that outline the procedures that school personnel should follow in the event that the medication does not provide the expected relief;
- any adverse reactions that may occur to the child after using the inhaler or epi-pen and that should be reported to the physician;
- any severe adverse reactions that may occur to another child for whom the inhaler or epi-pen is not prescribed should such a child receive a dose of the medication;
- at least one emergency telephone number for contacting the physician in an emergency;
- at least one emergency telephone number for contacting the student’s parent, guardian, or other person having care or charge of the student in an emergency; and
- any other special instructions from the physician.

A written approval for both parents and physicians may be found at Form No. **2240.1**, Permission to Carry and Self-Administer Asthma Inhaler, and Form No. **2240.2**, Permission to Carry and Self-Administer Epinephrine Auto-injector.

Procurement and Possession of Inhalers by School

The School may procure and possess inhalers with or without spacers for use in emergency situations without possessing an otherwise required license from the State Board of Pharmacy. The School may also accept monetary donations to purchase inhalers with or without spacers and/or accept donated inhalers from a wholesale distributor of dangerous drugs or a manufacturer of dangerous drugs, as defined in section 4729.01 of the Revised Code. The School is encouraged to keep on hand at least two inhalers at all times.

Further, if the School chooses to procure inhalers, it shall report to the Department of Education, each procurement, and occurrence in which an inhaler is used from its supply.

The School must consult with a licensed health professional who is authorized to prescribe drugs to determine the following:

1. Prescriber-issued protocol specifying definitive orders for inhalers, including the dosages of medication to be administered through them, the number of times that each inhaler may be used before disposal, and the methods of disposal.
2. The inhalers shall be stored in the following locations:

_____.
3. An inhaler must be stored, replaced, and disposed of under the following conditions:

_____.
4. In addition to licensed school nurses and athletic trainers, the following school personnel may also access and use an inhaler to provide a dosage of medication to an individual in an emergency situation: _____

_____ ("School Personnel). School Personnel must complete the following training, in order to be authorized to access or use an inhaler: _____
_____.
5. Identified and trained individuals may administer an asthma inhaler to students, school employees or contractors, school visitors and other individuals in the school building in an emergency situation when a person exhibits signs and symptoms of asthma on school premises during the school day.

6. Assistance from an emergency medical service provider must be requested immediately after School Personnel use an inhaler;
7. The School will report each procurement of an occurrence in which an asthma inhaler is used to ODE per protocol.

School administration shall be responsible for identifying one or more locations in the school in which an inhaler must be stored. Inhalers must be stored in a safe, secure, accessible, locked location in accordance with ORC 3313.713 that will allow for rapid, life-saving administration.

Inhalers that have expired should be disposed of according to manufacturer's guidelines. Used and expired inhalers shall be replaced in a reasonable time period.

Specifications of individuals who can provide a dosage of an asthma inhaler to an individual in an emergency situation

School administration shall be responsible for identifying individuals employed by or under contract with the district board, in addition to the school nurse licensed under section 3319.221 of the Revised Code or an athletic trainer licensed under Chapter 4755 of the Revised Code, who may access and use an asthma inhaler to provide a dose to an individual in an emergency situation.

Identified individuals specified above, other than a school nurse or athletic trainer, must complete training based on the protocol developed with the prescriber before being authorized to access and use an asthma inhaler. Only trained personnel should administer an asthma inhaler to a person believed to be having asthma symptoms. Emergency medical services must be requested immediately after an asthma inhaler is used by an employee or contractor, other than a school nurse, athletic trainer, or another licensed health professional.

Cardiopulmonary Resuscitation (CPR) and Automated External Defibrillator (AED)

Instruction and Staff Training

The School will provide students instruction in CPR and the use of an AED as required pursuant to O.R.C. 3313.6021. Students shall be excused from the CPR and AED instruction requirement if 1) the student's parent or guardian requests it in writing, or 2) if the student is a child with a disability and is incapable of performing the psychomotor skills required to perform CPR and the use of AED.

The School shall provide training in the use of an AED to at least ____ people employed by that School. Said training must be received by each employee no later than July 1, 2018, and once every five years thereafter.

The ability to keep an AED on School property is discretionary, and the Governing Authority has the authority to determine whether or not the School keeps an AED on School property.

Liability

The School, Governing Authority Members, Staff members, and all other employees shall not be held liable for any damages or claims allegedly arising any of the following:

- incorrectly prohibiting a student from using an inhaler or epi-pen because of the good faith belief that the conditions of this Policy had not been satisfied;
- incorrectly permitting a student to use an inhaler or epi-pen because of the good faith belief that the conditions of this Policy had been satisfied; and
- use of the inhaler or epi-pen by a fellow student for whom it was not prescribed.
- an act or omission associated with procuring, maintaining, accessing, or using an inhaler, unless the act or omission constitutes willful or wanton misconduct.

This Policy does not eliminate, limit, or reduce any other immunity or defense that the School, Governing Authority Members, Staff members, or any other employee may be entitled to under Chapter 2744, or any other provision of the Revised Code or under the common law of Ohio.

Ohio: R.C. 3313.716, R.C. 3313.718, R.C. 3326.11; R.C. 3326.30.

Cross-Reference: Form No. **2240.1**, Permission to Carry and Self-Administer Asthma Inhaler; Form No. **2240.2**, Permission to Carry and Self-Administer Epinephrine Auto-injector; Policy No. **2230**, Medication Administration; Policy No. **2241** Procurement of Epinephrine Auto-injectors by Schools; Policy No. **2250**, Known Food Allergies.

2240.1 – Permission to Carry and Self-Administer Asthma Inhaler
Physician Authorization (to be completed by the physician)

The following student has the approval to possess and use an asthma inhaler, as described below, to alleviate asthmatic symptoms or before exercise to prevent the onset of asthmatic symptoms.

Name of Student: _____

Student Address: _____

Name and Dose of Medication: _____

Begin Date: _____ End Date (if known): _____

List any possible adverse reactions that should be reported to the physician: _____

State the procedure to be followed if the asthma inhaler does not alleviate asthmatic symptoms:

List any possible adverse reactions that may occur to another student, for whom the inhaler is not prescribed, should such student receive a dose of the medication: _____

Any other special instructions: _____

Physician Name: _____

Physician Signature: _____ Date: _____

Emergency Phone Number: _____

Parental Authorization (to be completed by parent for all minor students)

I, _____, am the legal parent or guardian of the above-named student and hereby give permission for this student to carry and use the asthma inhaler described above at the School and any activity, event, or program sponsored by the School or in which the School is a participant.

Parent Signature: _____ Date: _____

Emergency Contact Number: _____

This form must be fully completed and turned in to the Head Administrator and the School Nurse, if one exists.

2240.2 – Permission to Carry and Self-Administer Epinephrine Auto Injector**Physician Authorization** (to be completed by the physician)

The following student has the approval to possess and use an asthma inhaler, as described below, to epinephrine auto injector (EpiPen), as described below, to treat anaphylaxis.

Name of Student: _____

Student Address: _____

Name and Dose of Medication: _____

Begin Date: _____ End Date (if known): _____

List any possible adverse reactions that should be reported to the physician: _____

State the procedure to be followed if the EpiPen does not alleviate asthmatic symptoms:

List any possible adverse reactions that may occur to another student, for whom the EpiPen is not prescribed, should such student receive a dose of the medication: _____

Any other special instructions: _____

Physician Name: _____

Physician Signature: _____ Date: _____

Emergency Phone Number: _____

Parental Authorization (to be completed by parent for all minor students)

I, _____, am the legal parent or guardian of the above-named student and hereby give permission for this student to carry and use the EpiPen described above at the School and any activity, event, or program sponsored by the School or in which the School is a participant.

Parent Signature: _____ Date: _____

Emergency Contact Number: _____

This form must be fully completed and turned in to the Head Administrator and the School Nurse, if one exists.

2240.5 – Model Emergency Action Plan for the Use of an Automated External Defibrillator (AED) Permission



**Model Emergency Action Plan for the Use
of an Automated External Defibrillator (AED)**
by Public and Chartered Nonpublic Schools, Youth Sports
Organizations, Sports and Recreation Locations

Note: This model plan may be used to satisfy requirements under House Bill 47 of the 135th General Assembly (ORC 3701.851). Alternatively, an entity may adopt other emergency action plans for the use of AEDs.

The [Centers for Disease Control and Prevention \(CDC\)](#) defines [cardiac arrest](#) as when the heart suddenly and unexpectedly stops beating and blood stops flowing to the rest of the body. Cardiopulmonary resuscitation (CPR) and Automated External Defibrillators (AEDs) are to be used when a person is unresponsive, is not breathing, or the heartbeat stops.

How to Use an AED:

Please note: For persons under age 8, pediatric AED pads should be used whenever possible. However, if not available, use adult pads. Do not use pediatric AED pads on adults.

During an emergency, designate someone who can direct first responders to the exact location of the unresponsive person once first responders arrive at the location.

Protocol:

If a person:

- Collapses suddenly and loses consciousness (passes out), or
- Is not breathing or is gasping for air, or
- Doesn't respond to shouting or tapping, or
- Doesn't have a pulse.

Note: A person's eyes may be open or closed.

Follow these steps:

1. If the scene is safe, check for responsiveness using shout-tap-shout for no more than 10 seconds.

If appearing unresponsive, check responsiveness:

Shout "Are you OK?" (use their name, if known, to get their attention).

Tap (the person's shoulder if adult or child, foot if an infant) and look for signs of **rhythmic, normal breathing**.

Shout (again and assess for breathing, life-threatening bleeding, or conditions).

2. If person is unresponsive, **shout for help, CALL EMS (9-1-1), and send someone to get the AED.** Stay on the line with EMS (preferably on speaker phone) for instructions on CPR and AED use.
3. Begin chest compressions until the AED arrives. *(If trained in CPR, provide CPR according to your training).*
4. Turn on the AED and set it up according to the manufacturer's instructions. Follow the verbal instructions provided by the AED. Incorporate the AED into CPR cycles according to instructions from the AED and from any prior training.
5. Prepare AED to check heart rhythm. Follow the AED's verbal instructions to deliver one shock as advised.
6. Continue CPR and follow AED verbal instructions until person responds or EMS arrives and takes over care.

Hand Placement for Infants

Using two fingers, press down in the middle of the chest about 1.5 inches.

Hand Placement for Children

Using one or two hands, press down in the middle of the chest about 2 inches.

Hand Placement for Adults

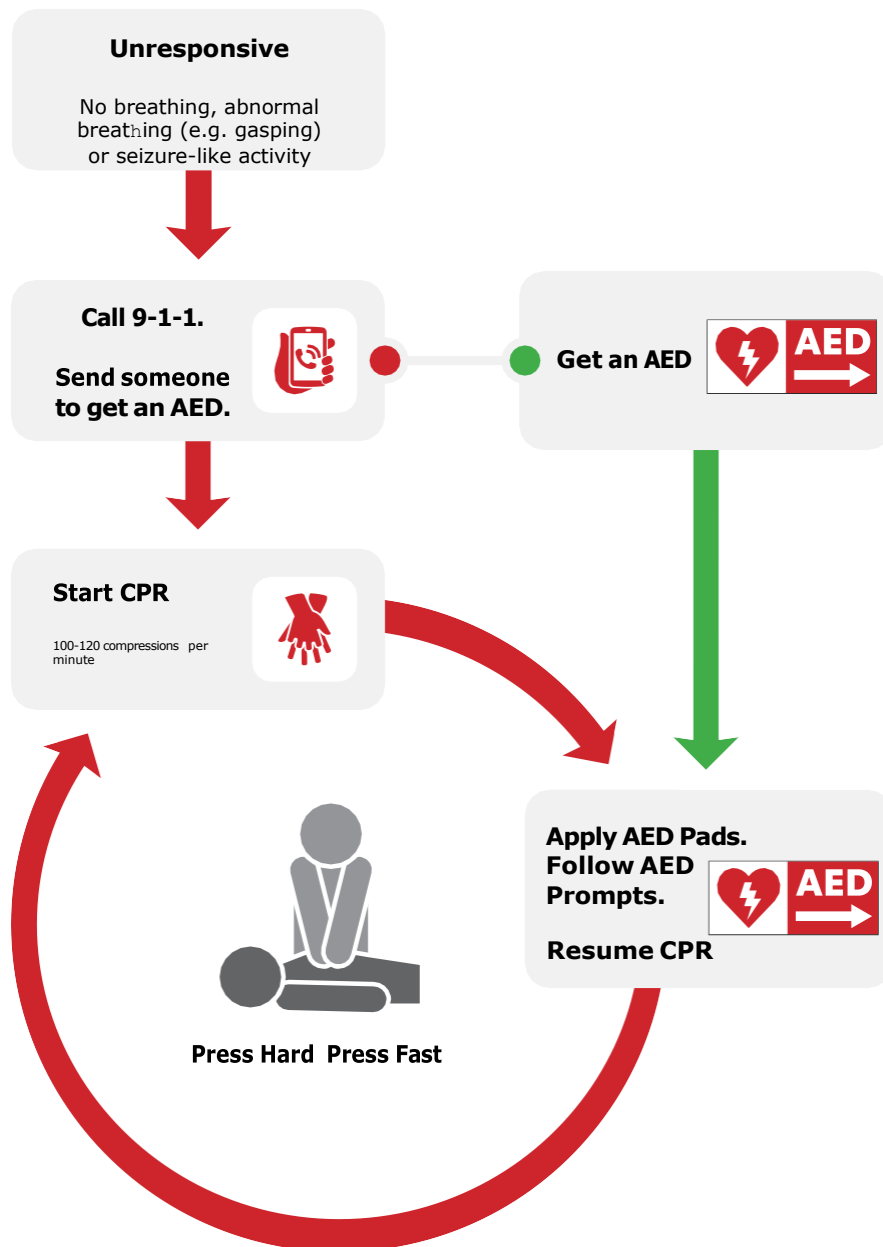
Using two hands, press down in the middle of the chest at least 2 inches.

or

Follow instructions of the 9-1-1 dispatcher or refer to your most recent CPR training.

Act Now. Save a Life.

Follow these steps to take action.



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Practice of Plan:

1. Ohio Revised Code (ORC) [3701.851](#) requires the Emergency Action Plan (EAP) to be practiced at least quarterly.
2. Follow recommendations or requirements, as appropriate, specific to your school, location, or organization for training on CPR and AED use.
3. Develop a schedule for practicing your plan.

Maintenance of Automated External Defibrillators (AEDs):

Follow manufacturer's instructions with regards to maintenance, operation, and replacement of the AED and any of its parts.

Location of Automated External Defibrillators (AEDs):

1. Ensure AEDs are easily accessible and ensure they are not locked away.
2. Include maps of where AEDs are located in and around the school, venue, and sports and recreation location so staff, students, guests, volunteers, and community members can locate them quickly in an emergency.

Additional Considerations:

1. Designate a person(s) at your school, location, or organization who can coordinate and supervise CPR/AED program activities, trainings, AED maintenance, and practice of response plans.
2. Share your emergency action plan for AEDs with your local emergency management services (EMS) in advance of a medical emergency.

REFERENCES

[Adult & Child CPR Anytime® Skills Reminder —](#)

[CPR AED \(heart.org\). Algorithms | American Heart](#)

[Association CPR & First Aid.](#)

[American Heart Association 2023-Cardiac-Emergency-Response-Plan-and-Protocol-Schools-](#)

[Final.pdf \(heart.org\). American Heart Association 2023 Cardiac Emergency Response Plan and](#)

[Protocol Sports Facilities.pdf \(heart.org\). American Heart Association 2023 Cardiac Emergency](#)

[Response Plan and Protocol Community.pdf \(heart.org\).](#)

[2020 American Heart Association Guidelines for CPR and ECC.](#)

Ohio Emergency Medical Services [CPR Myths Debunked | Emergency Medical Services \(ohio.gov\)](#)

2241 – Procurement of Epinephrine Auto-Injectors by Schools

The School shall procure epinephrine auto-injectors ("Epi-Pens") for use in emergency situations. Epinephrine is a prescription drug used to treat life-threatening allergic reactions caused by insect bites or stings, foods, medications, latex, and other causes. The School may procure epinephrine autoinjectors through purchase or may accept donations of epinephrine autoinjectors from a wholesale distributor of dangerous drugs or a manufacturer of dangerous drugs, as defined in section 4729.01 of the Revised Code. The district may accept donations of money to purchase epinephrine autoinjectors.

The School will obtain a prescriber-issued protocol specifying definitive orders for epinephrine autoinjector and doses of epinephrine to be administered through them. This prescriber shall be a licensed health care professional authorized to prescribe drugs, as defined in section 4729.01 of the Revised Code.

The Head Administrator shall adopt a policy and procedures, governing the maintenance and use of Epi-Pens. The Head Administrator shall consult with a licensed health professional who is authorized to prescribe drugs ("Prescriber") when developing the procedure, which shall:

- include a prescriber-issued protocol specifying definitive orders for Epi-Pens and the doses of epinephrine to be administered through the Epi-Pens;
- identify the location(s) in each school building where the Epi-Pens shall be stored. Epinephrine autoinjectors must be stored in a safe, secure, accessible, locked location in accordance with ORC 3313.713 that will allow for rapid, life-saving administration.;
- specify the conditions under which Epi-Pens must be stored, replaced, and disposed of. Epinephrine autoinjectors that have expired should be disposed of in a sharp's container. Epinephrine autoinjectors that have been used should either be sent with emergency medical services or disposed of in a sharp's container. Used and expired epinephrine autoinjectors shall be replaced in a reasonable time period;
- specify the individuals employed by or under contract, in addition to a licensed School nurse and licensed athletic trainer, who may access and use Epi-Pens in emergency situations;
- specify the training that employees or contractors (besides School nurses or athletic trainers) must complete before being authorized to access and use Epi-Pens;
- identify the emergency situations, including when an individual exhibits signs and symptoms of anaphylaxis, in which a School nurse, athletic trainer, or other trained employee/contractor may access and use an Epi-Pen; specify that assistance from an emergency medical service provider (911) must be requested immediately after an Epi-Pen is used; and specify individuals, in addition to students, employees, contractors, and visitors, to whom a dosage of epinephrine may be administered through an Epi-Pen in an emergency situation.

Each building shall contain at least two (2) Epi-Pens of both prescribed doses in their building. In procuring Epi-Pens, the Board will accept donations of Epi-Pens from wholesale distributors of dangerous drugs or manufacturers of dangerous drugs, as well as donations of money from any person to purchase Epi-Pens. The Head Administrator shall report to the Ohio Department of Education ("ODE"), in the form and manner determined by ODE, each procurement of Epi-Pens and each occurrence in which an Epi-Pen is used from the School's supply.

In order to allow the use of an Epi-Pen in an emergency situation, the Head Administrator shall obtain a protocol from an authorized prescriber in order to administer epinephrine from the School's supply.

The Schools, members of its Governing Authority, employees, contractors and a licensed health professional authorized to prescribe drugs who personally furnishes or prescribes epinephrine autoinjectors, provides a consultation, or issues a protocol under this Policy, shall not be liable in a civil action for damages resulting from injuries arising from acts or omissions associated with procuring, maintaining, accessing, or using Epi-Pens in emergency situations, unless the act or omission constitutes willful or wanton misconduct.

Usage

Identified and trained individuals may administer an epinephrine auto injector to students, school employees or contractors, school visitors and other individuals in the school building in an emergency situation when a person exhibits signs and symptoms of anaphylaxis on school premises during the school day.

Reporting

The School will report each procurement of an occurrence in which an epinephrine auto injector is used to ODE per protocol.

R.C. 3313.7110; 3326.28.

2242 – Procurement of Asthma Inhalers by School

This Policy relates to the procedures for the obtaining, maintaining and using of certain asthma inhalers. The School may obtain asthma inhalers for use in Emergency Situations. This policy applies to inhalers that are used (1) to alleviate asthmatic symptoms, (2) are manufactured in the form of metered dose inhalers or dry powder inhalers, and (3) may include spacers; holding chambers; or other devices that attach to inhalers (collectively referred to as “Asthma Inhalers”).

The School must consult with a licensed health professional who is authorized to prescribe drugs (a “Prescriber”) in developing this policy.

1. The Prescriber must develop a protocol regarding definitive orders for Asthma Inhalers, including dosage, the number of times an inhaler may be used, and disposal. The protocol is as follows:

-
2. Asthma Inhalers must be stored in the following location(s) _____.
 3. The conditions under which the Asthma Inhalers must be stored, replaced, and disposed are _____.
 4. The following are the employees or individuals under contract (“Designated Persons”) who may access and use epi-pens to provide a dosage of Epinephrine to an individual in Emergency Situations:
 - _____.
 5. The School may require all Designated Persons—other than licensed school nurses and athletic trainers—to complete training before being authorized to access or use Asthma Inhalers. This training includes: _____.
 6. The following are Emergency Situations in which an Asthma Inhaler may be administered:
 - When an individual exhibits signs and symptoms of asthma.
 - _____.
 - _____.
 7. After an epi-pen is used, an emergency medical service provider must be requested immediately.
 8. Asthma Inhalers may be administered in Emergency Situations to the following individuals:
 - Students,
 - school employees or contractors,
 - school visitors,
 - _____.

It is recommended that the School maintain at least two Asthma Inhalers at all times. The School shall report to the Department of Education and the Ohio Department of Job and Family Services each time an Asthma Inhaler is obtained and used.

The School may accept financial donations from individuals for the purpose of purchasing Asthma Inhalers and may accept donated Asthma Inhalers from a wholesale distributor of dangerous drugs or a manufacturer of dangerous drugs, as defined in section 4729.01 of the Revised Code.

The Governing Authority and its employees and contractors have qualified immunity from liability for injury resulting from the use of an Asthma Inhaler under this policy.

Ohio: R.C. 3313.7110; 3326.30.

Cross-Reference: Policy No. **2240**, Student Use of Inhalers and Epinephrine Auto-injectors; Permission to Carry and Self-Administer Epinephrine Auto-injector; Policy No. **2230**, Medication Administration; Policy No. **2250**, Known Food Allergies.

2243 – Seizure Action Plan

The School shall create an individualized seizure action plan for each enrolled student who has an active seizure disorder diagnosis. It must be created by the school nurse, or another School employee if the School does not have a school nurse, in collaboration with the student's parent or guardian.

Each plan must include:

1. A written request signed by a parent, guardian, or other person having care or charge of the student to have drugs prescribed for a seizure disorder administered to the student;
2. A written statement from the student's treating practitioner providing the drug information for each drug prescribed for the student for a seizure disorder; and
3. Any other component required by the State Board. The plan is effective only for the school year in which a written request is submitted and must be renewed at the beginning of each school year.

Plans must be maintained in the School nurse's office, or head administrator's office if the school does not employ a full-time school nurse.

For each student who has a seizure action plan in force, a School nurse or head administrator must notify each School employee, contractor, and volunteer who (1) regularly interacts with the student, (2) has legitimate educational interest in the student, or (3) is responsible for the direct supervision or transportation of the student in writing regarding the existence and content of the student's plan.

Each School nurse or head administrator must identify each individual who has received training under the seizure action plan in the administration of drugs prescribed for seizure disorders.

A school nurse or another School employee also must coordinate seizure disorder care at the School and ensure that all required staff are trained in the care of students with seizure disorders.

A drug prescribed for a student with a seizure disorder must be provided to the School nurse or another person at the School who is authorized to administer it to the student. The drug also must be provided in the container in which it was dispensed by the prescriber or licensed pharmacist.

Training on seizure action plans

Once every two years, the School shall train or arrange training for at least one employee, aside from a school nurse, on the implementation of seizure action plans. Training must be consistent with guidelines and best practices established by a nonprofit organization that supports the welfare of individuals with epilepsy and seizure disorders, such as the Epilepsy Alliance Ohio, Epilepsy Foundation of Ohio, or other similar organizations as determined by the Department.

Training must address the following:

1. Recognizing the signs and symptoms of a seizure;
2. Appropriate treatment for a student exhibiting the symptoms of a seizure; and
3. Administering seizure disorder drugs prescribed for the student.

The seizure training program must be at least one hour long and is qualified as a professional development activity for educator license renewal. If the training is provided on portable media by a nonprofit entity, the training must be provided free of charge.

Each person employed as an administrator, guidance counselor, teacher, or bus driver shall complete a minimum of one hour of self-study or in-person training on seizure disorders by October 2, 2024. Any such individual employed after October 2, 2024 must complete a training within 90 days of employment.

Qualified Immunity

The School, members of its Governing Authority, and employees shall not be liable in a civil action for damages resulting from injuries arising from acts or omissions associated with providing care of performing duties under this policy, unless the act or omission constitutes willful or wanton misconduct.

Added September 2, 2023

2250 – Known Food Allergies

The School seeks to provide a safe environment for all its students. The School understands that peanut and other food allergies present serious dangers to students and have become increasingly common.

This policy seeks to reduce the likelihood of accidental exposure allergic reactions and to create a clear action plan should an allergic reaction occur.

Emergency Food Allergy Plan

An Emergency Food Allergy Plan (EFAP) shall be created for each student identified with any peanut or other food allergy. The EFAP shall be developed by the student's parents, the student's physician/allergist, and the School nurse (or other appropriate designee of the School). A separate EFAP shall be completed for each known peanut or other food allergy and shall be completed prior to entry into the School or immediately after the diagnosis. Each EFAP must be reviewed on a yearly basis.

Each EFAP shall contain detailed information about preventative measures to avoid accidental exposure and emergency measures in case the student is exposed to the allergen.

The School shall share the student's EFAP with Staff members as appropriate.

With the consent of the student's parents (or with the consent of the student, if the student is over eighteen (18) years of age), the School may utilize the EFAP, or the information contained therein in its efforts to educate and/or notify classmates and/or classmates' parents of the student's peanut or other food allergy.

School Responsibilities

The School shall

- review and maintain all health records and EFAPs submitted by parents and doctors;
- review this policy and prevention plans with core staff members; and
- follow all state/federal laws regarding sharing medical information.

Student's Responsibilities

Students with known peanut or other food allergies should take several steps to prevent allergic reactions. Students:

- should not trade food with others;
- should not eat anything with unknown ingredients; and
- identify an adult immediately if they eat something that may contain peanuts or other foods to which they are allergic

Parental Responsibilities

The parents of each student with a known peanut or other food allergy shall do each of the following:

- notify the Head Administrator of the known peanut or other food allergy in writing at the beginning of each school year (a sample notification form is included as Form No. **2250.1**);
- execute an Emergency Medical Authorization Form (included as Form No. **2410.1** for the student, listing all known peanut or other food allergies in the appropriate section;

- develop an Emergency Food Action Plan;
- provide the School with all medication(s) to be used in the case of an allergic reaction, along with the completed copy of Form No. **2230.1**, Medication Request Form, or, if the student will carry and self-administer an EpiPen, shall submit a completed copy of Form No. **2240.2**, Permission to Carry and Self-Administer Epinephrine Auto Injector; and
- work with the student in managing the student's food allergy including reviewing the student's responsibilities listed in this policy, reviewing the weekly lunch menu to identify appropriate foods, establishing a list of "safe foods" which do not contain the known allergen, and discussing the self-discipline that is required at School functions and other activities where food is being offered.

Ohio: R.C. 3313.719; 3326.11.

Cross-Reference: Form No. **2230.1**, Medication Requests Form; Form No. **2240.2**, Permission to Carry and Self-Administer Epinephrine Auto Injector; Form No. **2250.1**, Notification of Known Food Allergy; Policy No. **2230**, Medication Administration; Policy No. **2240**, Student Use of Inhalers and Epinephrine Autoinjectors.

2250.1 – Notification of Known Food Allergy

This form must be fully completed and turned in to the Head Administrator and the School Nurse if one exists.

Student Food Allergy Information

Student Name: _____ Grade: _____

Food Allergy: _____

Recommended Actions and/or Medications: _____

This food allergy is potentially life-threatening: ☐ Yes ☐ No

Parental Certification

I, _____, the legal parent or guardian of the above-named student, hereby certify the following:

- I have completed and submitted to the School an Emergency Medical Authorization Form;
- I have cooperated with the appropriate School officials in creating or updating a Food Action Allergy Plan;
- I have been educated as a child regarding effective management of this food allergy. We have identified a list of “safe foods,” will review the weekly lunch menu together, and have discussed the self-discipline that will be necessary at any School event or activity where food is being offered.

Please Check: ☐ Yes ☐ No I give my permission for the School to notify classmates and classmates' parents about my child's food allergy.

Parent Signature: _____ Date: _____

2260 – Physical Activity Waiver and Consent

At the beginning of each school year, a Physical Activity Waiver and Consent Form, included as Form No. **2260.1**, shall be distributed to all students. Students shall not be permitted to participate in any sports or extra-curricular activities until this form has been completed and returned to the School.

Cross-Reference: Form No. **2260.1**, Physical Activity Waiver and Consent Form.

2260.1 – Physical Activity Waiver and Consent FormStudent Name: _____ Gender: ☐ Male ☐ Female

Address: _____ City: _____ State: _____ Zip: _____

Date of Birth: _____ Age: _____ Grade: _____

Please list any illness, injury, or medical condition that would limit your child's ability to participate in the School's extra-curricular or fitness programs in any way. Please write "none" if you child has no such limitations. _____

Note: If your child has asthma but will still be participating in extracurricular and fitness programs, he/she must bring the inhaler each day. You MUST fill out the appropriate permission form for your child to be permitted to carry and self-administer the inhaler.

I, _____, the legal parent or guardian of the above-named child, hereby acknowledge and certify the following:

- To the best of my knowledge, the above-named child is physically fit to participate in all sporting events and School-related physical activities.
- I agree to abide by the rules and regulations of the School's fitness and extra-curricular programs.
- I understand that it is solely my responsibility to provide adequate insurance coverage for the above-named child in case of any resulting injury.
- I am aware that playing or practicing to play/participate in any sport, dance, or other extra-curricular activity can be dangers and involves risks of injury including, but not limited to: death, serious neck and spinal injuries (which may result in complete or partial paralysis); brain damage; injury to internal organs, bones, joints, ligaments, muscles, tendons and other aspects of the skeletal system; and injury or impairment to other aspects of the body general health, and well-being of my child. I further understand that the risks of participation are not limited to serious injury, but also an impairment of my child's future abilities to earn a living, to engage in other business, social and recreational activities and to generally enjoy his/her life.
- I release from liability the School, Staff members, and any other employee or representative thereof from any injuries sustained during my child's participation in all sporting events, practices, and extracurricular activities.

By signing below, I acknowledge that I have read and understand the criteria for extra-curricular events and fitness classes, and that all information provided above is correct. If my child uses an inhaler, I will complete and return the appropriate permission forms.

Parent Signature: _____ Date: _____

Home Phone Number: _____ Cell Phone Number: _____

****Note:** Original must be filed with the School Office. Copies will not be accepted.

2270 – Diabetic Care

The School is committed to ensuring that each student enrolled with diabetes receives appropriate and needed diabetes care in accordance with an order signed by the student's treating physician.

The diabetes care to be provided includes any of the following: checking and recording blood glucose levels and ketone levels or assisting the student with checking and recording these levels; responding to blood glucose levels that are outside of the student's target range; in the case of severe hypoglycemia, administering glucagon and other emergency treatments as prescribed; administering insulin or assisting the student in self-administering insulin through the insulin delivery system the student uses; providing oral diabetes medications; understanding recommended schedules and food intake for meals and snacks in order to calculate medication dosages pursuant to the student's physician's order; following the physician's instructions regarding meals, snacks, and physical activity; and administering diabetes medication, as long as the conditions described below are satisfied.

Within fourteen (14) days after the School receives an order signed by the student's treating physician, it shall inform the student's parent or guardian that the student may be entitled to a Section 504 Plan regarding the student's diabetes.

The administration of diabetes medication shall be in accordance with Policy No. **2230** Medication Administration. Also, a School employee who has received training provided by the School which training complies with the Ohio Department of Education's training guidelines, and complies with the following additional requirements: The training must be coordinated by a School nurse, or if the School does not employ a School nurse, a medical or osteopathic doctor, a registered nurse, or a licensed practical nurse with expertise in diabetes; The training will take place prior to the beginning of each school year or, as needed, not later than fourteen (14) days after the Board receives a physician's order related to a student with diabetes; Upon completion of the training, the Board will determine whether each trained employee is competent to provide diabetes care; The School nurse, medical or osteopathic doctor, registered nurse, or licensed practical nurse who provided the training will promptly provide all necessary follow-up training and supervision to an employee who receives training.

The Head Administrator will distribute a written notice to each employee containing the following information: A statement that the School is required to provide diabetes care to a student with diabetes and is seeking employees who are willing to be trained to provide that care; A description of the tasks to be performed; A statement that participation is voluntary and that the School will not take action against an employee who does not agree to provide diabetes care, including that the employee will not be penalized or disciplined for refusing to volunteer to be trained in diabetes care; A statement that training will be provided by a School nurse, a medical or osteopathic doctor, a registered nurse, or a licensed practical nurse with expertise in diabetes to an employee who agrees to provide care; A statement that a trained employee will not be subject to disciplinary action by the Board for providing care or performing duties to students with diabetes; A statement that a trained employee is immune from liability for damages in a civil action for injury, death, or loss to person or property allegedly arising from providing care or performing duties (unless the act or omission constitutes willful or wanton misconduct); The name of the individual to contact if an employee is interested in providing diabetes care.

A student's diabetes medication will be kept in an easily accessible location.

A student with diabetes will be permitted to attend to his or her diabetes care and management, in accordance with the student's physician's order, during regular school hours and School-sponsored activities only if: the student's parent or guardian provides a written request that the student be permitted to attend to his or her diabetes care and management while at School and the student's physician has authorized such self-care and determined that the student is capable of performing diabetes care tasks.

A student with diabetes is permitted to perform diabetes care tasks in a classroom, in any area of the School or School grounds, and at any School-related activity. The student must have access to a private area for performing diabetes care tasks if the student or the student's parent or guardian makes such a request.

A student with diabetes is permitted to possess on the student's self at all times all necessary supplies and equipment to perform diabetes care tasks. If the student performs any diabetes care tasks or uses medical equipment for purposes other than the student's own care, the School will revoke the student's permission to attend to the care and management of the student's diabetes.

The School will provide training in the recognition of hypoglycemia and hyperglycemia, and actions to take in response to emergency situations involving these conditions, to both of the following: a School employee who has primary responsibility for supervising a student with diabetes during some portion of the school day, and a bus driver employed by the School who transports a student with diabetes.

By December 31 of each year, the School will report to the Ohio Department of Education the following information regarding students with diabetes: the number of students with diabetes enrolled in the School during the previous school year, and the number of errors associated with the administration of diabetes medication to students with diabetes during the previous school year.

The School will provide either an electronic or paper copy of informational materials developed by the department of health on type 1 diabetes (R.C. 3707.61) to each elementary student's parent or guardian upon the student's enrollment in elementary school.

Ohio: R.C. 3313.7112; 3313.7118; R.C. 3314.03.

Cross-Reference: Policy No. **2230**, Medication Administration; Form No. **2230.1**, Medication Request Form; Form No. **2230.2**, Parental Notification Regarding Medications.

Modified September 2, 2025

2280 – Student Wellness and Success Program

The funding received by the School for student success and wellness initiatives, shall be used for the following:

- Mental health services, including telehealth services, community-based behavioral health services, and recovery supports;
- Culturally appropriate, evidence-based or evidence-informed prevention services, including youth-led programming and curricula to promote mental health and prevent substance use and suicide, and trauma-informed services;
- Services for homeless youth;
- Services for child welfare involved youth;
- Community liaison;
- Physical health care services, including telehealth services and community-based health services;
- Mentoring programs;
- Family engagement and support services;
- City connects programming;
- Professional development regarding the provision of trauma informed care;
- Professional development regarding cultural competence;
- Student services provided prior to or after the regularly scheduled school day or any time school is not in session.

The School shall spend at least 50% of SWSF for either physical or mental health based initiatives, or a combination of both.

The Head Administrator or designee shall develop a plan for utilizing the student wellness and success funds it receives in coordination with a community mental health prevention or treatment provider or local board of alcohol, drug addiction, and mental health services, established under Chapter 340 of the Revised Code and one of the community partners:

- An educational service center;
- A county board of development disabilities;
- A community-based mental health treatment provider;
- A board of health of a city or general health district;
- A county department of job and family services;
- A nonprofit organization with experience serving children;
- A public hospital agency.

Within 30 days of the completion or amendment of this plan, the School shall share the plan at a public governing authority meeting and post it to the School's website.

All SWSF funds allocated for fiscal years 2020 to 2023, shall be expended by June 30, 2025. Any unexpended funds shall be repaid to the Department.

Beginning in fiscal year 2024, all SWSFs shall be spent by the end of the following fiscal year. Any unexpended funds shall be paid to the Department.

If the Department determines that the School is out of compliance, it may require a corrective action plan. If the School is determined to be out of compliance with the corrective action plan, then the Department may withhold SWSF from the School.

At the end of each school year, the School shall submit a report to the Department, describing the initiative or initiatives on which the School's student wellness and success funds were spent during the fiscal year.

Ohio: R.C. 3317.25; 3317.26.

Revised September 2, 2023

2290 – Animals on School Property

Service animals shall be permitted on School property in accordance with state and federal law, as well as this policy. Other live animals are prohibited from being brought onto School property by students, staff, or members of the community unless specifically permitted by the Head Administrator in accordance with this policy.

Licensing and Health Requirements

Any animals on School property, whether on a temporary basis, such as for an approved educational program or to conduct searches for illegal substances by local authorities, or on a regular basis, such as a service animal for a student or employee with disabilities or a classroom pet, are subject to local licensing and registration requirements, as well as local animal control or public health/veterinary requirements set forth in local and state law.

Service Animals

Definition: A service animal is any dog that is individually trained to do work or perform tasks for the benefit of an individual with a disability, including a physical, sensory, psychiatric, intellectual, or other mental disability. Other species of animals, whether wild or domestic, trained or untrained, are not service animals for the purposes of this definition.

The work or tasks performed by a service animal must be directly related to the individual's disability. Examples of work or tasks include, but are not limited to, assisting individuals who are blind or have low vision with navigation and other tasks, alerting individuals who are deaf or hard of hearing to the presence of people or sounds, providing non-violent protection or rescue work, pulling a wheelchair, assisting an individual during a seizure, alerting individuals to the presence of allergens, retrieving items such as medicine or the telephone, providing physical support and assistance with balance and stability to individuals with mobility disabilities, and helping persons with psychiatric and neurological disabilities by preventing or interrupting impulsive or destructive behaviors.

The crime deterrent effects of an animal's presence and the provision of emotional support, well-being, comfort, or companionship do not constitute work or tasks for the purposes of this definition.

Under federal regulations, a miniature horse may be a service animal, if the miniature horse has been individually trained to do work or perform tasks for the benefit of the individual with a disability. The School will allow for the use of a miniature horse as a service animal and/or make modifications to buildings in accordance with federal law.

Documentation/Permission

Service animals for students

The Head Administrator shall ensure that a service animal's presence on School property is preceded by proper documentation including a current IEP or Section 504 Plan stating that the use of a service animal

is required, and a current, certified health certificate or report from a veterinarian in compliance with local and state public health and vaccination requirements.

If an individual other than the student is required to handle the service animal on School property, the handler shall complete, on an annual basis, a satisfactory criminal background check under Policy **6120** before being permitted on School grounds. The students/parent should be provided with a copy of this policy.

Service animals for employees

An employee may request the use of a service animal as a reasonable accommodation for a disability under the ADA, and the School and employee shall engage in the interactive process as mandated by law. Approval of the accommodation shall be memorialized in writing.

Prior to the service animal's presence on School property, the employee shall present to the Governing Authority a current, certified health certificate or report from a veterinarian in compliance with local and state public health and vaccination requirements. The employee should be provided with a copy of this policy.

Service animals for others

Individuals with disabilities may be accompanied by their service animals in all areas of the School's facilities where members of the public; participants in services, programs, or activities; vendors; or invitees may go. In situations where an individual with a disability who is not a student or employee of the School enters School property with a service animal and it is not obvious that the dog is a service animal, staff may ask only two specific questions: (1) is the dog a service animal required because of a disability? and (2) what work or task has the dog been trained to perform? Staff may not request any documentation for the dog, require that the dog demonstrate its task, or inquire about the nature of the person's disability.

Transportation

The Head Administrator and appropriate transportation personnel shall meet with a student to be transported by the School, the student's parent(s), and, as pertinent, the service animal's handler prior to the service animal gaining access to transportation. At the meeting, the parties shall determine whether the service animal will be secured by tether or harness and will identify commands for daily interaction and emergency situations. The service animal will participate in emergency evacuation drills with the student.

The service animal shall be excluded from transportation vehicles if the student/handler is unable to control the service animal's behavior, posing a direct threat to the health or safety of others, or if the service animal urinates or defecates in the vehicle.

When a service animal is excluded from transportation, the transportation services required by a student's IEP or Section 504 Plan shall remain the School's responsibility.

Removal

If admitting service animals would fundamentally alter the nature of the educational program, service animals may be prohibited. In addition, if a service animal is out of control and the handler does not take effective action to control it, or if it is not housebroken, that animal may be excluded from School property by the Head Administrator. Should a service animal be excluded under this policy, the School will permit the individual with a disability to have the opportunity to participate in the service, program, or activity without having the service animal on the premises.

Allergies/Fear of Animals

Allergies and fear of dogs are not valid reasons for denying access or refusing service to people using service animals. If a person is at documented risk of a significant allergic reaction to an animal, the School shall determine, on a case-by-case basis, a way to accommodate both the individual using the service animal and the individual with the allergy.

Responsibility/Liability

A service animal shall be under the control of its handler. A service animal shall have a harness, leash, or other tether, unless either the handler is unable because of a disability to use a harness, leash, or other tether, or the use of a harness, leash, or other tether would interfere with the service animal's safe, effective performance of work or tasks, in which case the service animal must be otherwise under the handler's control (e.g., voice control, signals, or other effective means).

A service animal is the personal property of the owner (including the student and/or parent). The School does not assume responsibility for the handling, training, daily care, health, or supervision of any service animal. The School does not assume liability for any losses, damages, injuries, claims, actions, legal proceedings, judgments, and/or expenses in any way arising out of or in connection with the presence or use of service animals on School property or at School-sponsored activities, including while being transported to/from such activities. The owner of the service animal assumes all such responsibility and liability.

Non-Service Animals

An employee may request permission from the Head Administrator to have a non-service animal in the classroom for an identified purpose related to the curriculum. The staff member receiving such permission shall:

- (1) provide a current, satisfactory health certificate or report from a licensed veterinarian for the animal;
- (2) treat the animal humanely and ensure that students do the same;
- (3) provide appropriate housing (such as a tank, cage, or hutch) that is secure and cleaned regularly;
- (4) ensure that students wash their hands immediately after handling the animal;
- (5) keep the rest of the classroom as affected by the animal in a clean and sanitary condition and restrict the animal from any area where food is prepared or served; and
- (6) take any precautions necessary to protect the health and safety of students and staff.

Permission for a non-service animal shall not be granted where the documented allergy of a student or staff member cannot be accommodated.

2300 – General Health and Safety Policies Subsection

Policy No. 2310

2310 – Hand Washing Requirements

The School recognizes that hand washing is a simple and effective way to decrease the spread of illness and disease. By decreasing the spread of illness and disease, the School can more effectively protect and educate its students. Accordingly, the following rules, guidelines, and procedures apply to all School members. Food service operators and any employee or other individual who participates in food preparation or service are subject to additional rules stated in this policy.

Hand Washing Stations

Hand washing is only permitted in designated hand washing stations. A waste container shall be provided directly near the hand washing station or, if the hand washing station is in a restroom, near the restroom door.

Hand Washing Technique and Requirements

The proper hand washing technique is as follows:

1. rinse hands and forearms under warm, clean running water (at least 100° F);
2. apply soap and scrub all surfaces of the hands, fingers, and forearms vigorously for at least fifteen (15) to twenty (20) seconds, paying particular attention to the area under the fingernails and between fingers;
3. rinse thoroughly with clean, warm running water (at least 100° F) for five (5) to twenty (20) seconds;
4. thoroughly dry the hands and forearms either by using a single-use paper towel or placing hands under heated-air hand-drying device for at least thirty (30) seconds; and
5. use a paper towel to turn off the faucet and open the restroom door as you leave.

Hands shall be washed:

- after using the toilet;
- before and after eating;
- after changing a diaper-wash the diaper-wearer's hands, too;
- after touching animals or animal waste;
- before and after preparing food, especially before and immediately after handling raw meat, poultry, or fish;
- after blowing your nose;
- after coughing or sneezing into your hands;
- before and after treating wounds or cuts;
- before and after touching a sick or injured person;
- after handling garbage;
- before inserting or removing contact lenses;
- entering a food preparation area;
- after any cleanup activity;
- putting on clean, single-use gloves for working with food and between glove changes;
- handling soiled dishes, equipment, or utensils;
- touching bare human body parts other than clean hands and forearms (e.g., hair, face);
- handling money; and

- any other activity that contaminates the hands.

Hand Sanitizers

With the one exception indicated below, hand sanitizers shall not be used to replace effective hand washing but may be used in addition to proper hand washing to further inhibit the spread of disease and illness. Hand sanitizers shall be used in the manner prescribed by the manufacturer, and only those hand sanitizers that are approved by a Food Contact Substance Notification shall be permitted for use.

If soap and water are not readily available, and hands are not visibly soiled, hand sanitizer gel or wipes may be used instead of proper hand washing techniques.

Food Service Operators/Preparation

All individuals who prepare or serve food shall be trained in the proper hand washing technique. This training shall demonstrate the proper hand washing technique, and may be presented as a video, live demonstration, or in any other effective manner.

Hand washing stations shall be made available to food service employees at all times. All food service individuals shall only use designated hand-washing stations and shall wash their hands in use food preparation, utility, and dishwashing sinks.

A hand washing sign, in a language understood by all food service employees, shall be posted at each hand washing station, restroom, or food preparation area. The sign shall remind food service employees to wash their hands and should include information on the proper hand washing technique. A sample hand washing sign is included herein as Form No. **2310.1**.

The Head Administrator or the contracted food service operator may designate an individual as hand washing monitor. This individual shall be responsible for ensuring that hand washing stations are fully equipped and properly functioning at all times. The monitor shall also be responsible for ensuring that all food service employees wash their hands at all appropriate times using the appropriate hand washing technique.

If a food service employee is seen not washing their hands at the required time or using the appropriate technique, the employee will be asked to wash or re-wash their hands using the appropriate technique. Refusal or failure to adhere with this Policy may result in disciplinary action, up to and including termination.

Cross Reference: Policy No. **2110**, Food Services Program; Policy No. **2130**, Wellness Policy; Policy No. **2420**, Communicable Diseases; Form No. **2310.1**, Hand Washing Sign.

2310.1 – Hand Washing Sign

Sign adopted from the Center for Disease Control. The sign is available at:

<https://www.cdc.gov/handwashing/pdf/wash-your-hands-poster.pdf>

2320 – Personal Safety

The guidelines and procedures listed below shall be adhered to by all students, Staff members, and other employees of the School.

- When working with or near machinery, individuals no loose clothing, rings, or other jewelry shall be worn, all scarves or neckties shall be securely attached to the body, and all hair shoulder-length or longer shall be tied back or otherwise effectively contained in a hat or hair net.
- When performing a task or activity for which hand protection is necessary or advisable, appropriate gloves or other hand protection may be obtained from the Staff member or Head Administrator.
- When working on a task or in an area that involves the risk of falling debris or other items, appropriate head protection shall be worn at all times.
- Appropriate face protection and industrial quality eye protective devices that complies with applicable state and federal laws and regulations shall be worn at all times while participating in or observing any activity involving exposure to:
 - 1) Hot molten metals or other molten materials;
 - 2) Milling, sawing, drilling, turning, shaping, cutting, grinding, buffing, or stamping of any solid materials;
 - 3) Heat treatment, tempering, or kiln firing of any metal or other materials;
 - 4) Gas or electric arc welding or other forms of welding processes;
 - 5) Repair or servicing of any vehicle;
 - 6) Caustic or explosive materials, hot liquids or solids, injurious radiations, or other hazards.

Such devices may be furnished for all students, teachers and visitors to the classroom, or they may be purchased and sold at cost to students and teachers, or made available for a moderate rental fee, and shall be furnished for all visitors to such shops and laboratories.

- When working on a task or in an area involving caustic or corrosive substances, chemicals, or other irritants, face shields, aprons, gloves, and chemical-resistant footwear shall be provided by the School and worn at all times.

The procedures and guidelines listed below apply specifically to Staff members and other employees.

- Appropriate shoes should be worn in all situations, including steel-toed and/or slip-resistant shoes where necessary to protect feet and/or secure footing.
- Staff members who require prescription glasses and who regularly work on tasks or in areas requiring eye protection may request prescription safety glasses through the Head Administrator. Such prescription safety glasses will be provided at the expense of the School.
- Staff members who work in conditions where the noise level regularly meets or exceeds eighty (80) decibels may obtain noise mufflers or other noise protection from the Head Administrator. The School shall also provide these employees with yearly hearing tests.

Cross Reference: Policy No. **2330**, Equipment Safety; Policy No. **2500**, Environmental Safety; Policy No. **5720**, Communicable Disease Prevention and Safety.

2330 – Equipment Safety

As an active learning environment, the School relies on a variety of Equipment to aid in educating students and to maintain the School's facilities. To ensure the safety of everyone in the School and to further the School's educational mission, all equipment must be properly maintained and used with caution. Additionally, all equipment should be used efficiently to prevent unnecessary use of resources.

The School requires all Staff members to be familiar with the appropriate ways to use School equipment and shall handle all equipment with care so as to avoid potential damage. Upon determining that equipment that is broken or otherwise malfunctioning, an employee shall be informed. The employee shall immediately report the damage to the Head Administrator.

Electrical equipment poses a particular set of hazards. All students and Staff members who use or otherwise come into contact with portable electrical equipment shall abide by the following rules and procedures:

- prior to using, an employee shall inspect the equipment, including attached cords and plugs, shall be inspected both internally and externally;
- electrical cords shall not be used as handles to raise, lower, or otherwise direct the movement of the attached electrical equipment;
- electrical cords shall not be stapled, nailed, or otherwise treated in any manner which would involve a risk of damaging the outer jacket;
- portable grounding equipment shall not be used without an equipment grounding conductor built into the electrical cord;
- protective equipment shall be used in situations where contact with an electrical cord or equipment could form or complete a dangerous conducting path; and
- portable equipment and accompanying electrical cords shall not be used in any particularly conductive circumstances, such as near water or wet surfaces, unless the use of such equipment in this area has been approved by the Head Administrator.

Cross Reference: Policy No. **1753**, School Asset Policy; Policy No. **5443**, Reporting Accidents and Treating Injuries; Policy No. **5453**, School Equipment – Use and Return.

2340 – Face Coverings to Reduce the Spread of COVID-19

The novel coronavirus known as SARS-CoV-2 (COVID-19) spreads mainly from person to person through respiratory droplets produced when an infected person coughs, sneezes, talks, or raises their voice (e.g., while shouting, chanting, or singing). The Centers for Disease Control and Prevention (CDC) states that a significant portion of individuals with COVID-19 lack symptoms, and that even those who eventually develop symptoms can transmit the virus to others before showing symptoms.

In recognition of the ongoing and dynamic nature of the COVID-19 pandemic, the Head Administrator shall retain the authority to review and adjust this policy in light of new developments and government or health department guidance. At minimum, the Head Administrator shall ensure that this Policy complies with all applicable state laws and state health department regulations.

The state of Ohio is allowing each school district to address their own COVID 19 policies. The Head Administrator has determined each family may decide for their own children if they should wear a mask to school.

The Head Administrator shall communicate to students, parents, and staff: “Be careful not to touch your eyes, nose, and mouth to prevent potential contamination. Continue frequent hand washing, avoiding touching the face, practicing social distancing, and staying home if you are ill.”

The Head Administrator will determine the need for a supply of disposable face coverings in School Buildings and ensure that a supply is maintained if necessary.

All students that use public transportation, must be in accordance with the CDC regulations and state recommendations.

A “face covering” is a cloth or disposable face covering that covers the nose, mouth, and chin, such as a mask or neck gaiter. The face covering need not be a medical-grade mask. It should fit snugly around the side of the face without gaps, but not create difficulty breathing. The final decision as to the appropriateness of face coverings will be made by the Grade-level Director (a.k.a. Principal).

A “face shield” is a clear plastic shield that covers the forehead, extends below the chin, and wraps around the sides of the face.

2350 – Feminine Hygiene Products

The School shall provide free feminine hygiene products to students in grades six to twelve. All such products shall be for use on school premises. The School shall determine where feminine hygiene products are to be kept in the school.

The School may, within its discretion, provide free feminine hygiene products to students below grade six.

O.R.C. 3313.6413

Added September 2, 2023

2400 – Emergency and Other Medical Policies

Policy No. 2410

2410 – Student Medical Emergencies

If any student is seriously ill or injured or sees a student or Staff member who is or may be seriously ill or injured, a Staff member shall be immediately notified. Any Staff member who is so notified or otherwise becomes aware of a student or fellow Staff member who is or may be seriously injured shall follow the foregoing procedure:

- contact the Head Administrator and request medical assistance, providing the name and the physical location of the individual who is or may be seriously ill or injured, the main symptoms observed, and whether or not an Emergency Medical Squad is necessary;
- if necessary, call 9-1-1;
- ensure that, if the Emergency Medical Squad is called, someone is posted at the School entrance to direct the Squad to the ill or injured person;
- stay with the ill or injured person until medical assistance of the Emergency Medical Squad arrives; and
- clear the area of unnecessary third parties and observers.

Before medical treatment is administered to a student, reasonable efforts should be made to contact the student's legal parent or guardian for permission. If attempts to contact the parent or legal guardian are unsuccessful, medical treatment decisions shall be made in accordance with the information provided in the student's Emergency Medical Authorization Form.

For each student, the School shall maintain an Emergency Medical Authorization Form. The Emergency Medical Authorization Form provides instructions regarding what to do and who to contact in the event of an emergency. The Emergency Medical Authorization Form shall be provided to each student prior to October 1st of each school year, or within thirty (30) days after entry of the student. Forms may be changed or replaced upon request by authorized parents.

The School shall use Form No. **2410.1**, Emergency Medical Authorization Form. Completed Emergency Medical Authorization Forms shall be kept by the Head Administrator in a file or folder that is stored separately from other records and is easily accessible in the case of an emergency. Emergency Medical Authorization Forms shall remain on file until replaced with an updated form the following year.

If a parent does not wish to give written permission, the parent shall indicate in the proper place on the form the procedure the parent wishes school authorities to follow. Even if a parent gives written consent for emergency medical treatment, when a student becomes ill or is injured and requires emergency medical treatment while under school authority, or while engaged in an extra-curricular activity authorized by the appropriate school authorities, the School shall make reasonable attempts to contact the parent before treatment is given.

In the event of a medical emergency involving a student, Staff members shall:

- exercise appropriate safety precautions;
- follow the School's Emergency Medical Procedures outlined above;

- attempt to contact the student's parent or legal guardian;
- follow all instructions provided in the Emergency Medical Authorization Form; and
- refrain from following orders or directives contained in a Do Not Resuscitate (DNR) Order unless otherwise required by a court of law.

When a student leaves School property pursuant to a School-sponsored activity, event, or program (field trips, student competitions, etc.), the Staff member that is in charge of the off-site event or activity shall be responsible for obtaining the student's Emergency Medical Authorization Form from the Head Administrator, keeping it in an accessible place throughout the duration of the off-site activity, and promptly returning it to the Head Administrator upon return to School property.

Ohio: R.C. 3313.712.

Cross Reference: Policy No. **2230**, Medication Administration; Policy No. **2250**, Known Food Allergies; Policy No. **4630**, School-Sponsored Trips; Form No. **2410.1**, Emergency Medical Authorization Form; Policy No. **5443**, Reporting Accidents and Treating Injuries.

2410.1 – Emergency Medical Authorization Form

Student Name: _____

Address: _____ City: _____ State: _____ Zip: _____

Telephone Number: _____

School: _____ Grade: _____

Purpose – To enable parents and guardians to authorize the provision of emergency treatment for children who become ill or injured while under School authority, when parents or guardians cannot be reached.

Residential Parent or Guardian

Mothers Name: _____ Daytime Phone: _____

Fathers Name: _____ Daytime Phone: _____

Others Name: _____ Daytime Phone: _____

Relative or Childcare Provider

Name: _____ Relationship: _____

Address: _____ Phone: _____

PART I OR II MUST BE COMPLETED

PART I-TO GRANT CONSENT

I hereby give consent for the following medical care providers and local hospital to be called:

Doctor: _____ Phone: _____

Dentist: _____ Phone: _____

Medical Specialist: _____ Phone: _____

Local Emergency Room: _____

Hospital: _____ Phone: _____

In the event reasonable attempts to contact me have been unsuccessful, I hereby give my consent for (1) the administration of any treatment deemed necessary by above-named doctor, or, in the event the designated preferred practitioner is not available, by another licensed physician or dentist; and (2) the transfer of the child to any hospital reasonably accessible.

This authorization does not cover major surgery unless the medical opinions of two other licensed physicians or dentists, concurring in the necessity for such surgery, are obtained prior to the performance of such surgery.

Facts concerning the child's medical history including allergies, medications being taken, and any physical impairments to which a physician should be alerted: _____

Parent/Guardian Signature: _____ Date: _____

Address: _____

PART II – REFUSAL TO CONSENT

I do NOT give my consent for emergency medical treatment of my child. In the event of illness or injury requiring emergency treatment, I wish the School authorities to take the following action:

Parent/Guardian Signature: _____ Date: _____

Address:

2420 – Communicable Diseases

The School is committed to providing a safe, healthy, educational environment for all students, and the uncontrolled spread of communicable diseases can make it difficult to achieve this goal. Accordingly, the Governing Authority hereby adopts the following Policy for the purpose of preventing, controlling, and containing communicable diseases in the School.

A “communicable disease” is defined as any infection or contagious disease which is transmitted directly or indirectly to a person from an infected person or animal, or any other disease designated as such by federal or state health laws and regulations.

The School shall adhere to all duties and responsibilities imposed by federal and state laws and regulations relating to communicable diseases (e.g., prevention strategies, reporting requirements, etc.). The responsibilities imposed under this Policy serve to supplement, not to replace, the existing statutory and regulatory obligations.

Staff members shall receive general instruction regarding the prevention of disease and shall be provided sufficient training to enable the Staff member to recognize and identify the symptoms of a communicable disease.

Under Ohio law, whenever a student, teacher, or other school employee is found to be ill or suffering from tuberculosis in a communicable stage or other communicable disease, the School physician shall promptly send such student, teacher, or other school employee home, with a statement, in the case of a student, to the student’s parents or guardian, briefly setting forth the discovered facts, and advising that the family physician be consulted. School physicians shall keep accurate card-index records of all examinations and records. If the parent or guardian of any student or any teacher or other school employee, after notice from the Governing Authority furnishes within two (2) weeks thereafter the written certificate of any reputable physician that the student, teacher, or other school employee has been examined, in such cases the service of the school physician shall be dispensed with, and such certificate shall be furnished by such parent or guardian, as required by the Board of Education.

The results of any and all medical examinations, as well as any written certificate sent home with an ill individual as indicated above, shall not be open to the public. The information shall be maintained in a separate, confidential file, and shall be made available for examination by Department of Public Health personnel and the Head Administrator.

Ohio: R.C. 3313.71.

Cross Reference: Policy No. **2310**, Hand Washing Requirements; Policy No. **2430**, Direct-Contact Communicable Diseases; Policy No. **2440**, Bodily Fluid Exposure Control; Policy No. **2450**, Head Lice.

2430 – Direct-Contact Communicable Diseases

The School is committed to providing a safe, healthy, educational environment for all students, and recognizes that direct-contact communicable diseases, although serious, are often misunderstood.

A “direct-contact communicable disease” is defined as one which only spreads through direct contact with bodily fluids and excretions such as blood, vomit, feces, and urine. This definition includes human immunodeficiency virus (HIV); acquired immune deficiency syndrome (AIDS); AIDS-related complex (ARC); Hepatitis A (HAV); Hepatitis B (HBV); Hepatitis C (HCV); and any other disease or illness defined as such by the Ohio Health Department.

Policy No. **2420**, Communicable Diseases, provides general guidelines for controlling the spread of communicable diseases among students and Staff. Direct-contact communicable diseases, however, are not spread through air-borne pathogens, but rather are only spread through direct contact with contaminated bodily fluids.

Individuals who have contracted a direct-contact communicable disease may experience no symptoms, and, in fact, may even be unaware that they have the disease. Nonetheless, the disease can still be transmitted from person to person through direct contact with bodily fluids. A large body of research has demonstrated that Direct-Contact Communicable diseases are not transmitted in casual contact settings, such as a school.

The Governing Authority hereby adopts the following rules and guidelines regarding direct-contact communicable diseases, and authorizes the Head Administrator to develop and implement any necessary respective administrative policies:

- The School shall implement programs to students and Staff members which will enable understanding of the manner in which these diseases can be prevented and how they are transmitted.
- Students who have been diagnosed with a direct-contact communicable disease shall be assured that their medical diagnosis and status is confidential. A student’s confidentiality and civil rights shall be protected in accordance with applicable federal and state law.
- If a student cannot attend School because of the disease or illness, the School shall offer alternative accommodations in accordance with federal and state law and these Policies.
- If a Staff member is determined to be in a position in which he/she is at a high risk for exposure to direct-contact communicable diseases on a regular basis, legal counsel shall be consulted to assist in developing appropriate procedures.
- The School will strive to maintain a respectful climate and prohibits any physical or verbal harassment of any individual with a direct-contact communicable disease

Cross Reference: Policy No. **2420**, Communicable Diseases; Policy No. **2440**, Bodily Fluid Exposure Control; Policy No. **2450**, Head Lice.

2440 – Bodily Fluid Exposure Control

All School Staff members and other employees should take proper precautions when exposed to bodily fluids. It should be assumed that all bodily fluids are potentially infectious. Accordingly, when dealing with all bodily fluids and excrements, such as vomit, blood, feces, and urine, the following procedures should be adhered to at all times:

- Staff members, cleaning personnel, and other employees shall wear disposable latex gloves at all times when coming into contact with bodily fluids.
- Any Staff member or other employee who is pregnant or may be pregnant shall wear a surgical face mask when coming into contact with bodily excrement.
- Staff members and employees shall wash their hands thoroughly after coming into contact with bodily fluids, even if disposable latex gloves were worn at all times.
- All cuts, sores, and other skin lesions shall be covered at all times.
- After removing bodily fluids from a hard surface, the surface should be scrubbed with soap and water and then disinfected using a proper disinfectant formula (either MATAR or a solution with similar ingredients) and in accordance with the manufacturer's instructions.
- When cleaning bodily fluids, disposable materials should be whenever possible. When finished cleaning, such disposable materials (gloves, paper towels, etc.) shall be double-bagged and properly disposed of as a hazardous waste. All re-usable materials, such as mops and towels, shall be soaked and rinsed in a disinfecting solution.

After any incident involving exposure to a bodily fluid, a Bodily Fluid Exposure Report, included as Form No. **2440.1**, shall be completed and returned to the Head Administrator as soon as possible.

Cross Reference: Policy No. **2430**, Direct-Contact Communicable Diseases.

2440.1 – Bodily Fluid Exposure Report

Note: This report shall be completed by any Staff member who is exposed to bodily fluids.

Individuals Involved

Staff Member	Name: _____
Source of Bodily Fluid	Name: _____
Status:	Student ☐ Staff ☐ Other ☐
Phone Number:	_____

Event Details

Location: _____	Date: _____	Time: _____ am / pm
Type of Bodily Fluid(s) Involved: _____		
Description of the Event: _____		

Witnesses

Name: _____	Phone Number: _____
Name: _____	Phone Number: _____

Signature: _____ Date: _____

This Form should be completed and returned to the Head Administrator.

2450 – Head Lice

If evidence of a head lice infestation is found on any student, the student's parent shall be instructed to pick the student up. The student shall be excluded from the School.

Until the parent arrives at the School, the student shall be excused from any activities that may result in head-to-head contact. When picking the child up, the School shall provide the parent with an informative letter detailing the reason for the student's exclusion and suggesting treatment methods. A sample letter is included as Form No. **2450.1**. Parents should be advised, in the letter and in person (or phone if the parent is unable to pick the child up), of the following:

- when searching for nits, parents should examine the scalp behind the ears and at the nape of the neck;
- shampooing should be done in strict accordance with the instructions;
- seven (7) to ten (10) days after the initial shampooing, the process should be repeated to eliminate any still-existing nits or lice; and
- the student will only be admitted after all lice and nits have been removed from the hair and scalp.

For precautionary purposes, the School shall examine every student that is in the same class as the excluded student and any siblings of the excluded student. If three (3) or more cases of head lice occur in the same class, a letter shall be sent to the parents of every child in the class notifying the parents of the head lice infestation and providing information about identifying and treating head lice. The letter is found in Form No. **2450.2**, Head Lice Class Notification.

A student with lice may return to the School when the student is free of lice and nits. Upon returning to School, the excluded student shall first be examined for the presence of lice or nits. If any lice or nits are found, the student shall not be re-admitted into School, but rather shall be sent back home with another letter found in Form No. **2450.3**, Re-Admission Denial Letter.

Cross Reference: Form No. **2450.1**, Parental Notification and Treatment Letter; Policy No. **2450.2**, Head Lice Class Notification; Policy No. **2450.3**, Re-Admission Denial Letter.

2450.1 – Parental/Guardian Notification and Treatment Letter

Dear Parent/Guardian:

Your child was examined today and found to have head lice. This is an easily treated condition that is not associated with any serious medical complications. This letter is adopted from the Ohio Department of Health and will acquaint you with the nature of this infestation and what you can do to help get rid of it.

In the United States, head lice infestation is most common in children attending childcare and elementary school. Head lice is not a sign of poor hygiene, and all socioeconomic groups are affected. Head lice infestation is not influenced by hair length, frequency of shampooing, hair brushing, or frequency of bathing. Head lice are not a health hazard, because they are not responsible for spreading disease.

Head lice are small, elongated insects about this long (--) and are yellowish white to grayish white with dark margins. LICE DO NOT JUMP OR FLY, NOR DO THEY STAY ALIVE FOR LONG PERIODS OFF THE HUMAN HEAD. They can move very quickly once on the head, however, and therefore are difficult to find.

Because head lice are good at hiding in the hair, an infestation is usually diagnosed by finding the nits (eggs). Nits are teardrop-shaped, about the size of a typewritten comma, and vary in color from yellowish-brown to white. Head lice attach each nit to a hair shaft at the scalp with a waterproof, cement-like substance. Thus, nits cannot be washed or brushed out of the hair like dandruff or other debris resembling nits. Nits are most commonly found on hairs at the nape of the neck and behind the ears, where they are protected from extreme light and temperatures. However, clusters of nits can be found in any area of the hair, requiring examination of the entire head.

It is necessary to inspect and treat the infested individual and his/her contacts, including family members who are also infested, using the following steps:

- 1) Obtain head louse shampoo from your pharmacy, physician or local health department. Several medications are available without a prescription: A-200 Pyrinate, RID, NIX, etc. Other medications are available with a physician's prescription.
- 2) Apply the shampoo according to the manufacturer's directions: DO NOT OVER TREAT!! Do not allow children to apply the shampoo to themselves. Be sure that the product gets to the scalp and remains there the recommended length of time.
- 3) Have your child put on clean clothing after treatment.
- 4) Manually remove all nits from your child's hair. Most kits come with a nit comb but should not be solely relied upon. Using fingertips and fingernails is the most efficient method of nit removal. Nits may be disposed of by dipping the nit comb or the fingers with the nits into a small jar of rubbing alcohol or warm soapy water. Adequate lighting is essential to aid in detecting nits for removal. Nit removal is time consuming but is extremely important for elimination of the infestation. Your child may not be allowed to attend school until he/she is nit free. Wash your hands thoroughly after completing nit removal.
- 5) Repeat treatment with the shampoo after 7-10 days as directed by the manufacturer.

Since heat kills lice and their eggs, many personal articles can be disinfested by machine-washing in **HOT** water and/or drying on the **HOT** cycle for at least 20 minutes. Both nits and adults are killed in 10-20 minutes at 125 degrees Fahrenheit. Home hot water heaters keep water at or above this temperature when the heat selector is set on medium or higher.

Articles of clothing and bedding that cannot be washed or dried should be dry cleaned or placed in tightly sealed plastic bags for 14 days. Combs, brushes, and similar items can be disinfested by soaking them in a pan of 150oF water for 5-10 minutes.

Carpets, furniture, mattresses, etc. do not require special treatment, as lice live only about 24 hours off the head. Instead, you should thoroughly vacuum these items and then seal and discard the vacuum bag outside of the home. APPLICATION OF PESTICIDES OR FUMIGATION IS NOT NECESSARY! Animals such as dogs and cats do not carry these lice; there is no need to treat family pets.

Babysitters and parents of your child's closest friends must be notified that they and their children might also be infested. This is particularly important if the children have slept near each other or participated in activities involving direct hair-to-hair contact, such as athletics, dance classes, etc. If the friend becomes infested while playing with your child and is not treated, your child might become reinfested from the friend. This also applies to all family members. TREATMENT DOES NOT PREVENT REINFESTATION.

Your child may return to the School the day following treatment provided there are no more head lice or nits. If any nits are found upon reinspection, however, your child will be denied admission to School and must return home for more treatment.

If you have any questions or concerns, please do not hesitate to contact the School nurse during School hours.

Thank you in this matter.

2450.2 – Head Lice Class Notification

Dear Parent or Guardian:

At least three cases of head lice have been identified in your child, _____'s classroom. Please do your part to prevent the spread of this condition. Check your child(ren) daily for the next few weeks and on a regular basis thereafter.

Head lice are transmitted through close personal contact with an infested individual. Occasionally, transmission occurs by sharing combs, brushes and other grooming aids; through sharing coats, scarves, hats, caps, wigs, etc.; or through commingling of these items at home, the homes of friends, school, church or other public places.

Most people have the impression that only unclean persons become infested with head lice. This is not true. Frequent bathing will neither prevent head lice nor eliminate the infestation once it has become established.

If you should find head lice or their nits on your child(ren), or have questions or need assistance, please contact _____ at the School.

Thank you for your cooperation.

2450.3 – Re-Admission Denial Letter

Dear Parent/Guardian:

Your child was denied readmission to School today because an inspection of your child's scalp revealed existing evidence of head lice (lice and/or nits). Unfortunately, your child cannot be readmitted to school until all evidence of head lice is completely gone.

Please follow the instructions provided in the first letter to remove all lice and nits from your child's scalp. Your child will be permitted to re-enter School only when an inspection of your child's scalp reveals no evidence of head lice, including lice and nits, whether dead or alive.

If you have any additional questions or concerns, you should either contact your family physician or call the School nurse at _____ during normal school hours.

Thank you in this matter.

2460 – Administration of Naloxone

A School employee, volunteer, or contractor shall be authorized to administer naloxone to individuals who are apparently experiencing an opioid-related overdose, in accordance with the following policy.

To be eligible to authorize naloxone administration, a physician or board of health must establish a written protocol for administering naloxone. The protocol must include the following: (1) A description of the clinical pharmacology of naloxone; (2) Precautions and contraindications concerning the administration of naloxone; (3) Any limitations concerning the individuals to whom naloxone may be administered; (4) The naloxone dosage that may be administered and any variation in the dosage based on circumstances specified in the protocol; (5) Labeling, storage, record-keeping, and administrative requirements; and (6) Training requirements that must be met before an individual can be authorized to administer naloxone. See Form No. **2460.1** Protocol for the Administration of Naloxone. An authorized School employee, volunteer, or contractor must be approved to administer naloxone by the physician or board of health that established the written protocol contained in Form No. **2460.1**, obtain the naloxone from the School, comply with the protocol contained in Form No. **2460.1**, and summon emergency services as soon as practicable either before or after administering the naloxone.

A School employee, volunteer, or contractor, acting in good faith, who administers naloxone in accordance with this policy to an individual who is apparently experiencing an opioid-related overdose, is immune from criminal prosecution for unauthorized practice of medicine or violation of Ohio drug laws. Additionally, school resource officers are immune from civil liability for any injury, death, or loss to person or property that allegedly arises from obtaining, maintaining, accessing, or administering the naloxone.

A School employee, volunteer, or contractor is not liable for damages in any civil action or subject to prosecution in any criminal proceeding or professional disciplinary action for any act or omission associated with procuring, maintaining, accessing, or using naloxone under this policy and Ohio law, unless the act or omission constitutes willful or wanton misconduct. This immunity does not eliminate, limit, or reduce any other immunity or defense to which a School employee, volunteer, or contractor may be entitled under the Revised Code or Ohio's common law.

R.C. 2625.61, 3707.562, 4729.514, 4731.943.

2460.1 – Protocol for the Administration of Naloxone

The School shall follow the protocol for the administration of Naloxone set forth by the State of Ohio Board of Pharmacy. A handout with information can be found here:

<http://pharmacy.ohio.gov/Documents/Pubs/Naloxone/Pharmacist/Patient%20Counseling%20Brochure.pdf>

2470 – Off-Site/Remote Access Work During an Emergency

In the case of an emergency, such as a natural or man-made disaster, health crisis or quarantine, weather emergency, statewide or nationally declared emergency, an employee may be assigned, at the discretion of the Head Administrator or his/her designee, to home or to a specified off-campus location and expected to perform work remotely during school hours.

School employees assigned to work from home remain subject to and are expected to follow all adopted policies and procedures, including, but not limited to, policies regarding the confidentiality of student records, acceptable use of School-owned or operated technology, and staff ethics.

Equipment provided by the Governing Authority for remote-access work will be owned and maintained by the School. Such equipment shall be used only for school purposes, and the employee shall be fully responsible for its safe-keeping and return. The School will not be responsible for any costs associated with the setup of the employee's workspace, including the setup or purchase of internet/Wi-Fi services. Equipment provided by the employee will be maintained by the employee. The Governing Authority accepts no responsibility for damage or repairs to employee-owned equipment.

Employees are responsible for ensuring that their home or off-campus work location is secure and safe, meets all applicable building, fire, electrical, and zoning codes, and that no hazardous materials are present. In accordance with School Policy, any employee of the Governing Authority who suffers a job-related injury during the course and scope of his/her employment shall report the injury and its circumstances to their job supervisor, as appropriate, as soon as possible following the occurrence of the injury, and may file a claim with the Bureau of Workers' Compensation. Any claims filed will be handled in accordance with the Board's normal procedures for Workers' Compensation claims.

The decision to assign an employee to work from home or a specified off-campus location may be modified or discontinued at any time. The Head Administrator or his/her designee will make reasonable efforts to provide an employee with at least twenty-four hours' notice of such change.

2480 – COVID-19 Case Reporting

The Ohio Department of Health has ordered, beginning Tuesday, September 8, 2020, parents/guardians, and school staff to notify the School within 24 hours of receiving a positive test or a clinical diagnosis of COVID-19.

Within 24 hours after receiving notification that a student, teacher, staff member, or coach has tested positive or been diagnosed with COVID-19, the School will notify parents/guardians of the existence of that case in writing, providing as much information as possible without releasing protected health information.

Written notification of a positive test or case shall be sent to parents/guardians of all students who share a classroom space or have participated in a school activity during the COVID-19 infections period of the student, teacher, staff member, or coach. ***[Note: Personally identifiable information of a student shall not be disclosed in the written notification, except where, on a case-by-case basis, School officials have determined that such a disclosure is absolutely necessary to protect the health or safety of students or other individuals, taking into account the totality of the circumstances, including the needs of such students or other individuals to have such information in order to take appropriate protective action(s) and the risks presented to the health or safety of such students or other individuals.]***

The School will notify parents/guardians via email or the School website of a positive test or case at the school building the student attends.

The School will also notify the County health department of positive cases within 24 hours, in accordance with the order from ODH.

To facilitate the reporting of case information, the Governing Authority designates the following individual as the COVID-19 Coordinator:

Assistant Chief Administrative Officer

CAO@communitysteam.com

2490 – Cybersecurity**Program**

The Governing Authority shall adopt a cybersecurity program that safeguards the School's data, information technology, and information technology resources to ensure availability, confidentiality, and integrity. The program shall be consistent with generally accepted best practices for cybersecurity, such as the national institute of standards and technology cybersecurity framework and the center for internet security cybersecurity best practices. The best practices may include, but are not limited to, the following:

- 1) Identify and address the critical functions and cybersecurity risks of the School.
- 2) Identify the potential impacts of a cybersecurity breach.
- 3) Specify mechanisms to detect potential threats and cybersecurity events.
- 4) Specify procedures for the School to establish communication channels, analyze incidents, and take actions to contain cybersecurity incidents.
- 5) Establish procedures for the repair of infrastructure impacted by a cybersecurity incident, and the maintenance of security after the incident.
- 6) Establish cybersecurity training requirements for all employees of the School; the frequency, duration, and detail of which shall correspond to the duties of each employee.

Definitions

"Cybersecurity incident," as defined in Ohio law, means any of the following:

- 1) A substantial loss of confidentiality, integrity, or availability of the Governing Authority's ("School's") information system or network;
- 2) A serious impact on the safety and resiliency of the School's operational systems and processes;
- 3) A disruption of the School's ability to engage in business or industrial operations, or deliver goods or services;
- 4) Unauthorized access to the School's information system or network, or nonpublic information contained therein, that is facilitated through or is caused by:
 - a) A compromise of a cloud service provider, managed service provider, or other third-party data hosting provider; or
 - b) A supply chain compromise.

"Cybersecurity incident" does not include mere threats of disruption as extortion; events perpetrated in good faith in response to a request by the system owner or operator; or lawfully authorized activity of a United States, state, local, tribal, or territorial government entity.

"Ransomware incident" means a malicious cybersecurity incident in which a person or entity introduces software that gains unauthorized access to or encrypts, modifies, or otherwise renders unavailable the School's information technology systems or data and thereafter the person or entity demands a ransom to prevent the publication of the data, restore access to the data, or otherwise remediate the impact of the software.

Ransom Demands

Should the School experience a ransomware incident, the Governing Authority shall not pay or otherwise comply with a ransom demand unless the Governing Authority formally approves the payment or compliance with the ransom demand in a resolution that specifically states why the payment or compliance with the ransom demand is in the best interest of the School.

Reporting Requirements

Following any cybersecurity incident or ransomware incident, the Governing Authority shall notify both of the following:

- (1) The executive director of the division of homeland security within the department of public safety, in a manner prescribed by the executive director, as soon as possible but not later than seven (7) days after the Governing Authority discovers the incident;
- (2) The auditor of state, in a manner prescribed by the auditor of state, as soon as possible but not later than thirty (30) days after the Governing Authority discovers the incident.

Records Not Public

Any records, documents, or reports related to the cybersecurity program and framework developed and implemented by the Governing Authority, and the reports of a cybersecurity incident or ransomware incident under this policy, are not public records under Ohio law (R.C. 149.43).

A record identifying cybersecurity-related software, hardware, goods, and services that are being considered for procurement, have been procured, or are being used by the Governing Authority, including the vendor name, product name, project name, or project description, is a security record under Ohio law (R.C. 149.433).

Ohio: R.C. 9.64; R.C. 149.43; R.C. 149.433.

2490.1 – Resolution for Cybersecurity

A Resolution of the Governing Authority adopting a Cybersecurity Policy pursuant to R.C. § 9.64.

WHEREAS, Revised Code 9.64, enacted via House Bill 96, requires political subdivisions like the Governing Authority to adopt and implement a cybersecurity program that safeguards the political subdivision's data, information technology, and information technology resources to ensure availability, confidentiality, and integrity. recognizes that protecting School data and technology resources is essential to effective operations and student safety.

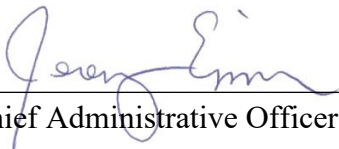
NOW, THEREFORE, BE IT RESOLVED,

1. Policy No. 2490, Cybersecurity Program, is hereby adopted to establish and maintain a cybersecurity program that safeguards the School's data, information technology, and information technology resources to ensure availability, confidentiality, and integrity, and is consistent with generally accepted best practices for cybersecurity as required by Ohio law. The Chief Administrative Officer is authorized and directed to develop, implement, and update the cybersecurity program through accompanying administrative guidelines, such that it will comply with the law and meet auditing standards.
2. The Chief Administrative Officer shall provide an annual report to the Governing Authority regarding the status of the School's cybersecurity program and any significant incidents.

Adopted this 7 day of October, 2025.



Governing Authority President



Chief Administrative Officer

2500 – Environmental Safety

Policy No. 2510

2510 – Compliance with Federal and State Safety Programs

The Governing Authority seeks to protect the safety of all students, Staff members, and School visitors. Accordingly, the School will hereby comply with all applicable federal and state statutes and regulations designed to ensure the health and safety of students, Staff members, and visitors.

Occupational Safety and Health Administration (OSHA)

The Head Administrator shall develop, implement, and maintain sufficient guidelines and standards to prevent accidents and to limit their effects. The Head Administrator shall designate an employee or Staff member to do routine health and safety checks in compliance with the Federal OSHA standards adopted by the State of Ohio. Any health or safety violations that are discovered during these routine, periodic safety checks shall be reported to the Head Administrator and corrected immediately. In the case of an inspection by an OSHA representative, the Head Administrator shall report the results, as received by the School, at the next regularly scheduled Governing Authority meeting.

Public Employees Risk Reduction Advisory Commission (PERRAC)

The Head Administrator shall ensure that all students and Staff members are aware of their right to be in an educational and work environment free from safety hazards. Necessary safety devices and equipment shall be readily available, and students and Staff members shall be properly trained in safety techniques and methods. The Head Administrator is responsible for ensuring that, in accordance with PERRAC regulations, administrative rules are developed and maintained, and proper records are kept and maintained. In the case of an inspection by a PERRAC representative, the Head Administrator shall report the results, as received by the School, at the next regularly scheduled Governing Authority meeting.

Ohio: R.C. 4167.01, R.C. 4167.04, R.C. 4167.05.

Cross Reference: Policy No. **2520**, Chemical Hazard Communication Program; Policy No. **2530**, OSHA Exposure Control Plan; Policy No. **2540**, Asbestos Hazards; Policy No. **2550**, Lead Poisoning Prevention; Policy No. **2560** Chemical Hygiene; Policy No. **2570**, Hazard Review and Inspection.

2520 – Chemical Hazard Communication Program

The Governing Authority recognizes that it is important to know the hazards and chemicals they are exposed to when working or learning. This knowledge will allow Staff members to take steps to reduce exposures, substitute less hazardous materials, and establish proper work practices. To facilitate this knowledge in a clear and effective manner, the School shall adopt a Chemical Hazard Communication Program. The School's Chemical Hazard Communication Program shall be developed, implemented, and maintained in accordance with this Policy. A copy of this Policy shall be made available to Staff members at all times.

Labeling Hazardous Chemicals

The Head Administrator shall designate a Toxic Hazard Preparedness Officer (THP Officer). The THP Officer shall be responsible for ensuring that all containers of hazardous chemicals are appropriately labeled prior to being used. A container will not be released for use until an appropriate label is affixed to the container.

For hazardous chemicals stored in the manufacturer's original container, the THP Officer must verify that the following information is legibly and prominently displayed on the label: the identity of the substance, an appropriate hazard warning; and the name and address of the manufacturer. If the label is incorrect, the THP Officer shall notify the manufacturer or supplier.

For hazardous chemicals that are not stored in the manufacturer's original container, but rather a secondary container, the THP Officer must verify that either a copy of the original manufacturer's label is applied to the container or verify that the label correctly states the identity of the substance, an appropriate hazard warning, and the name and address of the manufacturer.

The THP Officer is responsible for ensuring that, if this required information is changed that such changes or alterations appear on the respective labels.

Material Safety Data Sheets

Material Safety Data Sheets (MSDSs) provide detailed information about each hazardous chemical, including its potential hazardous effects, its physical and chemical characteristics, and recommendations for appropriate protective measures. It is crucial that Staff members have access to MSDSs for every hazardous chemical used. The THP Officer is responsible for developing and implementing administrative rules and policies to assure the following:

- the School maintains a comprehensive list of all chemicals used or stored within the School;
- an updated MSDS for each chemical used or stored is accessible and on file in the School office; and
- an updated MSDS for each chemical used or stored is accessible and maintained in an accessible file where the chemical is used.

The THP Officer shall review each MSDS for accuracy and completeness. A product will not be released for use until a completed MSDS is on file. If a new chemical is used for which an MSDS is unavailable or is

otherwise not on file with the School, the THP Officer shall be immediately notified. If any changes are made to an MSDS, the THP Officer shall assure that the appropriate changes are reflected on each copy of the respective MSDS throughout the School.

If it is discovered that a MSDS is incomplete or missing, the THP Officer shall request a new copy from the manufacturer.

Staff Information and Training

Prior to starting work with hazardous substances, each Staff member will be trained regarding the handling of chemicals. This initial training shall provide the following information:

- regulations contained within the Hazard Communication Regulation, and an explanation of the School's policies;
- where MSDS is are located;
- how to read and interpret MSDSs;
- physical and health hazards of the substances in their work area and the steps the School have taken to eliminate or reduce the risks of exposure to hazardous chemicals; and
- the ways the Staff members can protect themselves, through protective equipment and safe work habits.

When a new hazardous chemical is introduced for use by an existing Staff member, the THP Officer shall be responsible for ensuring training and informing the appropriate Staff members.

When a Staff member is required to perform a non-routine task which involves the risk of exposure to a new or additional hazardous chemical, the THP Officer shall ensure that the Staff member is provided with the following information:

- specific hazards to which the Staff member may be exposed;
- ways in which the Staff member can protect himself against this risk of exposure, including protective equipment and safe work habits; and
- steps the School has taken to eliminate or reduce the hazards, including adequate ventilation, breathing devices, emergency procedures, and the presence of another Staff member.

Federal: 42 U.S.C. 9601 et seq., 29 C.F.R. 1910.1200.

Cross Reference: Policy No. **2320**, Personal Safety; Policy No. **2510**, Compliance with Federal and Safety Programs; Policy No. **2530**, OSHA Exposure Control Plan; Policy No. **2540**, Asbestos Hazards; Policy No. **2550**, Lead Poisoning Prevention; Policy No. **2560**, Chemical Hygiene; Policy No. **2570**, Hazard Review and Inspection; Policy No. **5443**, Reporting Accidents and Treating Injuries.

2521 – Integrated Pest Management Policy

School Pest Management Policy Statement

Pests can pose significant problems to people, property, and the environment. Pesticides pose similar risks. Children spend a great deal of time in school and face potential for health effects resulting from pest and pesticide exposure. By reducing reliance on pesticides and incorporating low-risk control options, Integrated Pest Management (IPM) reduced both pests and pesticide risks. It is therefore the policy of the School to use IPM procedures for controlling pests.

Pest Management

Pests are living organisms that interfere with use of the facility by students and staff. Strategies for managing pest populations will be based on the pest species and whether that species poses a threat to people, property, or the environment.

IPM Coordinator

The school shall appoint an IPM Coordinator who shall have primary responsibility for ensuring that this policy is carried out. The IPM Coordinator will manage pest control contractors and staff to ensure implementation of pest prevention measures; communicate with school administration to carry out posting and notification, recordkeeping, and education requirements; provide information to the school community (including parents) and answer questions on IPM topics; and present an annual report evaluating the progress of the IPM program.

Integrated Pest Management Procedures

IPM procedures will determine when to control pests and whether to use mechanical, physical, cultural, biological or chemical methods. Applying IPM principles prevents unacceptable levels of pest damage by the most economical means and with the least possible hazard to people, property, and the environment.

In each situation staff shall consider the full range of management options, including no action at all. Non-pesticide pest management methods are to be used whenever possible. The choice of using a pesticide shall be based on a review of all other available options and a determination that these options are not effective or not reasonable. When it is determined that a pesticide must be used, low impact pesticides and methods are preferred and shall be considered for use first.

The application of pesticides is subject to school policies and procedures, EPA regulations, OSHA regulations, and federal, state and local regulations.

This school/facility recognizes and adheres to the following procedures:

1. Integrated Pest Management programs are designed to prevent pest problems whenever possible, via monitoring, regular inspections, high standards of sanitation and pest proofing measures, or modification of environmental conditions leading to pest problems.
2. The school/facility will establish pest tolerance thresholds for common pests. These thresholds will serve as an indicator for pest population levels and the point at which control measures will be undertaken. Control measures will not be undertaken if pest populations are below threshold

levels. In such cases, managers will use preventive measures such as improved sanitation, clutter reduction and exclusion of pests.

3. When pests do exceed tolerance thresholds, non-chemical pest control measures will be practiced where possible.
4. Pesticides will be used when appropriate, along with other management practices or when other non-chemical measures have failed. When a pesticide must be used, the smallest amount that will meet pest management goals will be used.
5. Insecticides will be used in containerized baits, or for spot treatments targeted to insect infestations or problem areas. Rodent baits shall not be used unless in childproof bait boxes. Bait boxes shall be inaccessible to children and tethered when appropriate.
6. Pesticide Use. To ensure the safety of students and staff, the management will use the following criteria to ensure that the least hazardous method of control is utilized:
 - a. No use of any pesticide classified as highly acutely toxic by the U.S. EPA.
 - b. The school/facility shall not use any pesticide unless all ingredients have been evaluated by the EPA and found to include no possible, probable, known, or likely human carcinogens; no reproductive toxicants; no known, probable or suspected endocrine disruptors; and no nervous system toxicants.
 - c. All ingredients in pesticides used shall have a soil half-life of 30 days or less.
 - d. Properly applied gel bait or tamper-resistant containerized bait can be exempted from 6a, 6b, and 6c if it is the least hazardous treatment option.
7. Pesticide Applications. The School must approve pesticide applications in advance; antimicrobial agents and insecticide and rodenticide baits, because they pose less risk to human health, are exempt from approval. Pesticides will be applied only when no one is present in the building or the grounds of the school to be treated.

Education

Students and parents or guardians will be provided information on this policy and instructed on how they can contribute to the success of the IPM program. Staff, students, pest managers, and the public will be educated about potential school pest problems and the IPM policies and procedures to be used to achieve the desired pest management objectives.

1. Parents will be informed annually about the IPM policy;
2. Staff will receive information and/or training on their role in pest management.

Record Keeping

Records of pesticide use shall be maintained on site to meet the requirements of the state regulatory agency and the school board. Records shall also include, but are not limited to, pest surveillance data sheets and other non-pesticide pest management methods and practices utilized.

Notification

The School shall notify the school staff, students, and parents of upcoming pesticide treatments via parent handout, mail, email, or listserv, or any other method approved by the governing authority. Antimicrobial agents, such as sanitizers and insecticide and rodenticide baits, are exempt from notification requirements. Exemptions from prior notification shall include emergency situations and applications of bait pesticides and/or container-delivery systems.

Facility Management will see to the following:

1. All parents and staff will be notified of a pesticide application **at least three business days** prior to any pesticide applications, with the exception of exempt applications. Parents should be notified each time a non-exempt pesticide is applied. Neighbors immediately adjacent to the school property will be notified at least two business days in advance of outdoor pesticide applications.
2. Applications exempt from prior notification are, antimicrobial agents, insecticide and rodenticide baits; container-delivery systems; emergency situations.
3. In situations where pesticides must be applied on an emergency basis, notification to parents and school staff will occur within two business days following the application.
4. Contractors: The School will provide written notification to all pest control, construction and landscape contractors of the IPM policy. Pest control contractors will be expected to provide recommendations for structural improvements or repairs, and sanitation measures required to reduce or prevent recurrence of pest problems.
5. Posting: Signs will be posted at least three business days in advance of pesticide use. These signs will include the pesticide used; date and time of application; warning statements from product label; and a contact phone number for those seeking additional information. Outdoor applications will be cordoned off and flagged. Signs shall remain in place for one week, or as specified by the pesticide label.

Pesticide Purchase

Pesticides will be stored and disposed of in accordance with the EPA-registered label directions and state regulations. Pesticides must be stored in an appropriate, secure site not accessible to students or unauthorized personnel.

Pesticide Applicators

Pesticide applicators must be educated and trained in the principles and practices of IPM, and the use of pesticides approved by this School. Applicators must follow regulations and label precautions.

2530 – OSHA Exposure Control Plan

The School shall adopt an Exposure Control Plan (ECP) to eliminate or minimize personal exposure to bloody bodily fluids. “Personal exposure to bloody bodily fluids” is defined to mean contact with blood, bloody body fluids, or bloody cleaning products through the eye, the mouth, or any cut or break in the skin such as a cut or other injury.

The Head Administrator is responsible for developing and implementing the administrative policies, guidelines, and training necessary to implement the ECP.

The ECP shall conform to the Occupational Safety and Health Administration (OSHA) standards and all other applicable laws. The plan shall contain:

- guidelines for maintaining a safe, health school environment;
- exposure determinations for all applicable employees;
- provisions of protective materials and equipment to all applicable employees;
- procedures for cleaning up bloody/bodily fluids;
- communicating hazards to Employees through education and training;
- record keeping of any incidents of exposure to bloody/bodily fluids.
- Records of input from applicable employees.

The ECP shall be reviewed and updated on an annual basis and as necessary to reflect new or modified tasks and procedures. The School shall also solicit input from non-managerial employees responsible for direct patient care who are potentially exposed to injuries from contaminated sharps in identifying, evaluating and selecting effective work practice controls.

Disseminating the Exposure Control Plan

The School shall ensure that a copy of the Exposure Control Plan is accessible to staff members.

Federal: 29 C.F.R. 1910.1030.

Cross Reference: Policy No. **2320**, Personal Safety; Policy No. **2440**, Bodily Fluid Exposure Control; Policy No. **2510**, Compliance with Federal and Safety Programs; Policy No. **2520**, Chemical Hazard Communication Program; Policy No. **2540**, Asbestos Hazards; Policy No. **2550**, Lead Poisoning Prevention; Policy No. **2560**, Chemical Hygiene; Policy No. **2570**, Hazard Review and Inspection; Policy No. **5443**, Reporting Accidents and Treating Injuries.

2540 – Asbestos Hazards

The Governing Authority is concerned for the safety of the students and Staff members and, accordingly, will comply with all federal and state statutes and regulations to protect them from hazards caused by asbestos materials used in previous construction.

Asbestos Hazards

The School, in compliance with the law, has adopted the following rules to protect students and staff members from exposure to asbestos. The School shall:

- inspect all School buildings for the existence of asbestos or asbestos-containing materials;
- take appropriate action based on the inspections;
- re-inspect asbestos-containing material every three (3) years;
- establish a program for dealing with friable asbestos, if found;
- develop, maintain, and update an asbestos management plan;
- comply with EPA regulations governing the transportation and disposal of asbestos and asbestos-containing material; and
- provide custodial staff with asbestos-awareness training.

The School's Head Administrator shall designate a Staff Member to develop and implement the Asbestos Management Plan. This individual will be responsible for ensuring the School complies with federal and state laws and regulations, and appropriately instructs students and Staff members. A Model Asbestos Management Plan, designed to assist the School in complying with all federal regulations, is included as Form No. **2540.1**.

The Head Administrator shall also verify that, when conducting asbestos abatement projects, each contractor employed by the School is appropriately licensed pursuant to the Ohio Department of Health Regulations.

Nothing in this Policy shall be construed, in any way, as an assumption of liability by the Governing Authority for any death, injury, or illness that is the consequence of an accident or equipment failure or negligence or deliberate act beyond the control of the School, the Governing Authority, its officers, or staff members.

Federal: 40 C.F.R. 763.92, 15 U.S.C. 2641, 20 U.S.C. 4011, 42 U.S.C. 9601, et seq.

Cross Reference: Policy No. **2320**, Personal Safety; Policy No. **2510**, Compliance with Federal and State Safety Programs; Policy No. **2530**, OSHA Exposure Control Plan; Form No. **2540.1**, Model Asbestos Management Plan.

2540.1 – Model Asbestos Management Plan

The Model Asbestos Management Plan found below is adopted from the Environmental Protection Agency (EPA). The PDF version of the Plan is available at:

https://www.epa.gov/sites/default/files/2013-12/documents/modelamp_0.pdf

The EPA has more information regarding Asbestos Management Plans at:

https://www.epa.gov/sites/production/files/2013-12/documents/modelamp_0.pdf

2550 – Lead Poisoning Prevention

The School shall avoid the use of any materials or techniques which would result in lead exposure. If lead-based materials were previously used in the School's construction, the Head Administrator shall develop and implement procedures for the monitoring and properly maintaining the materials.

The Head Administrator shall designate a staff member to be responsible for developing and implementing a parent-outreach program, designed to educate parents and legal guardians about the dangers of lead poisoning in children. As part of this outreach program, the Head Administrator may find it helpful to distribute an informational brochure. A brochure developed by the EPA is provided in Form No. **2550.1**, Lead Poisoning Prevention Brochure.

Ohio: R.C. 3742.

Cross-Reference: Form No. **2550.1**, Lead Poisoning Prevention Brochure.

2550.1 – Lead Poisoning Prevention Brochure

The Lead Poisoning Prevention Brochure found below is from the Ohio Department of Health.

The Brochure may be linked to by visiting:

https://odh.ohio.gov/wps/wcm/connect/gov/14f674bf-b392-4a70-8dc1-9181fdb0590/Childhood-Lead-Poisoning-Brochure-optimized.pdf?MOD=AJPERES&CONVERT_TO=url&CACHEID=ROOTWORKSPACE.Z18_M1HGGIK_0N0JO00QO9DDDDM3000-14f674bf-b392-4a70-8dc1-9181fdb0590-nio6BJC

2560 – Chemical Hygiene

As part of a continued effort to maintain a safe environment for all students and Staff members, the School is committed to managing chemical safety and hygiene.

The Head Administrator is ultimately responsible for the development, implementation, and annual review of a Chemical Hygiene Plan, although some or all of these duties may be delegated to a Chemical Hygiene Officer appointed by the Head Administrator. The Chemical Hygiene Plan applies to students, Staff members, and administrators, and shall contain information about potential chemical hazards and proper rules and procedures to be followed when encountering these hazards.

Each employee shall be provided with a copy of the Chemical Hygiene Plan and, upon receipt, shall sign an acknowledgement form, included herein as Form No. **2560.2**, Acknowledgement of Receipt of Chemical Hygiene Plan. The Chemical Hygiene Plan shall be made readily available to all Staff members and other School employees.

A sample Chemical Hygiene Plan is included as Form No. **2560.1**, Chemical Hygiene Plan.

Federal: 29 C.F.R. 1910.1450.

Cross Reference: Policy No. **2320**, Personal Safety; Policy No. **2510**, Compliance with Federal and State Safety Programs; Policy **2530** No. OSHA Exposure control Plan; Policy No. **2570**, Hazard Review and Inspection; Form No. **2560.1**, Chemical Hygiene Plan; Form No. **2560.2**, Acknowledgment of Receipt of Chemical Hygiene Plan; Policy No. **5443**, Reporting Accidents and Treating Injuries.

2560.1 – Chemical Hygiene Plan

In compliance with the Federal Laboratory Standard, the Governing Authority realizes its responsibility for protecting its students, Staff members, and other employees. To protect all School members the School shall adopt a Chemical Hygiene Plan (the “Plan”). The Plan shall set forth operating procedures and work policies designed to control chemical hazards.

The School hereby appoints the Head of the Science Department to serve as the School’s Chemical Hygiene Officer. The Chemical Hygiene Officer has the knowledge and the authority to make needed decisions regarding this Plan in order for it to remain effective and current. The School realizes, however, that the success of the Plan rests with all Staff members and students. Therefore, the ultimate responsibility for this Plan rests with the Head Administrator.

Responsibilities:

Head Administrator. The Head Administrator is responsible for enforcement of all federal, state, and local health, safety, and environmental regulations and policies, including this Plan.

Chemical Hygiene Officer. The Chemical Hygiene Officer is responsible for fully implementing the provisions contained within this Plan. Accordingly, the Chemical Hygiene Officer is responsible for:

- being familiar with all aspects of the Plan;
- ensuring that this Plan is distributed to all Staff members and is available at all times in the School office;
- developing and implementing employee training programs;
- inspect the School every three (3) months for compliance with this Plan, and documenting the results of each inspection;
- maintaining copies of chemical inventories and all necessary MSDSs;
- ensuring that the School has an emergency medical plan in place with regards to chemical spills or other accidents;
- coordinating pick-up and disposal of unwanted chemicals from the School; and
- maintaining records of all employee exposures to hazardous chemicals and all submitted accident reports.

The Chemical Hygiene Officer shall annually review the Plan, and this policy, and make any necessary changes.

Teachers/Staff Members. Teachers and staff members are responsible for ensuring that this Plan is implemented in their classrooms and adhered to at all times. Accordingly, each Staff member is responsible for:

- understanding the obligations imposed by this Plan, by attending all training offered by the School and requesting additional information or training when necessary;
- ensuring that all necessary safety equipment or personal protective equipment is available and in working order;

- being familiar with the hazards associated with each experiment conducted;
- inspecting all chemicals for proper labeling prior to use;
- maintaining a personal awareness of the location and proper use of MSDSs;
- ensuring that students are aware of applicable chemical hazards and safety procedures, including the proper use of personal protective equipment;
- ensuring that all safety rules are followed, all chemicals are properly disposed of, and all spills are promptly cleaned;
- reporting all accidents to the Head Administrator or Chemical Hygiene Officer; and
- using and modeling good chemical hygiene habits.

Students. Students shall adhere to safety procedures and practice good chemical hygiene habits. They should report all accidents or unsafe conditions to the appropriate Staff member and shall maintain an awareness of health, safety, and emergency procedures. A student shall not begin any experiment unless and until the student is familiar with the procedures to be used as well as the hazards associated with the chemicals being used. Students shall listen to and follow the Staff members instructions at all times.

Standard Operating Procedures

General Safety Rules and Procedures. The following general laboratory rules shall be adhered to at all times by students and Staff members:

- The Head Administrator will be contacted when any accident occurs.
- Appropriate eye protection shall be worn at all times. Chemical splash goggles must be worn anytime chemicals, glassware, or heat are used in the laboratory.
- Pants and closed-toed shoes shall be worn at all times in the laboratory. Loose clothing and jewelry shall not be worn in the laboratory. Scarves and long hair shall be tied back or otherwise secured.
- Never work alone in the laboratory, chemical prep, or storage areas.
- Only procedures and experiments that are authorized by a Staff member shall be performed in the laboratory.
- Emergency phone numbers shall be posted in the chemical storage area.
- Emergency plans shall be posted in the laboratory and practiced regularly.
- Double-check all chemical labels prior to use and know the hazards associated with each chemical that is being used.
- Do not use chipped, etched, or cracked glassware. Dispose of all such glassware in appropriate waste containers.
- Keep all aisles clear and do not block fire exits.
- Do not run in the laboratory.
- No unlabeled products should be stored anywhere in the science facility.
- Chemical spills should be cleaned up immediately or as soon as safely possible.
- Chemicals shall not be removed from the laboratory.

Personal Chemical Hygiene Guidelines. Personal hygiene with respect to chemicals decreases the chances of exposure. Accordingly, the following rules and procedures shall be adhered to:

- Do not apply cosmetics or smoke, eat, chew gum, or drink in the laboratory.
- Do not smell or taste chemicals.
- Do not drink from lab glassware or other lab vessels.
- Do not pipette by mouth – always use a pipet bulb or other appropriate suction device.
- Wash thoroughly after any chemical exposure and before leaving the laboratory.
- Never smell chemicals directly; if instructed to smell chemicals, the odors should be wafted using the hands.
- Never bring food into the laboratory.

Protective Equipment Requirements

The following rules ensure that that proper protective equipment is available and properly functioning at all times:

- Eye goggles and aprons shall be made available at all times. Goggles and aprons shall be inspected prior to each to ensure that they are clean and in working order.
- All laboratories shall have proper ventilation. Fume hoods shall be inspected annually to ensure effective performance.
- All laboratories shall have safety showers which shall be inspected annually.
- All laboratories shall have a fire blanket easily accessible in case of an accident.
- All laboratories shall have an eyewash station capable of treating both eyes continuously for fifteen (15) minutes. Eyewash stations shall be tested each week by running them continuously for three (3) minutes and checking for continuous, copious water flow.
- Fire extinguishers of the appropriate type (ABC) shall be available and properly functioning at all times. Fire extinguishers shall be checked in accordance with established standards.

Housekeeping Rules

To keep a laboratory clean and safe:

- Keep chemicals in the chemical prep and storage areas. If chemicals are moved to the classroom for the lab, they must be returned to their proper storage location at the end of the day's laboratory periods.
- Waste shall be stored and disposed of in properly labeled containers. Wastes shall not be poured down the drain or disposed of in the normal trash can.
- Items shall not be stored in the fume hood. The storage of items in the fume hood is a fire hazard and decreases the efficiency of the fume hood.
- All chemicals, including solutions, shall be labeled with the names of the contained chemical(s) and the associated hazard(s).
- Exits and emergency equipment should be easily accessible at all times.
- All spills shall be cleaned up promptly.
- Work areas and floors should be cleaned regularly and kept free of clutter.
- After an experiment is completed, all materials, chemicals, and equipment shall be cleaned and stored appropriately. Unused chemicals shall not be returned to the original containers, but rather shall be disposed of properly.

Spill and Accident Procedures

If a spill is minor and can be easily cleaned up, the student shall immediately clean the spill in accordance with the safety procedures established in this Plan. With respect to any large or hazardous spills, or any other accident occurring in the laboratory, the following procedures shall be adhered to:

- The appropriate Staff member shall be notified of the accident or spill immediately.
- All students and unnecessary Staff members shall be evacuated from the area.
- Individuals who were exposed to the chemical or other hazardous material shall be tended to immediately to minimize the exposure to attendant effects.
- Spills should be cleaned up immediately and thoroughly, using all necessary safety equipment and procedures. All materials and chemicals, including disposable gloves, shall be disposed of in accordance with this Plan.
- After the spill is appropriately cleaned or the accident otherwise dealt with, a detailed accident report shall be filled out and submitted to the Head Administrator.

Chemical Procurement, Distribution, and Storage Rules and Procedures

It is important that Staff members store all chemicals appropriately and in accordance with the following rules and guidelines:

- All chemicals shall be stored in a separate and secure area which, if possible, shall have two (2) separate exits. A clear entranceway to and from the storage area shall be maintained. Students shall never be permitted in the chemical storage area.
- Chemicals shall be stored in chemically compatible families.
- An updated chemical inventory shall be maintained, including information about all chemicals, their amounts, and their location.
- Stored chemicals shall be examined annually for replacement, deterioration, and chemical integrity.
- All chemicals and chemical solutions shall be labeled with the identity of the contents, the purchase or mixture date, the date the container was first opened, the concentration, applicable hazard information, and the responsible Staff member. Where appropriate, the container shall also be labeled with the disposal date. (e.g., Peroxide forming chemicals shall be disposed of within 6 months of opening, or sooner if periodic testing reveals the presence of peroxides.)
- Only the minimum amount of chemicals needed shall be maintained in storage.
- Do not store chemicals under a fume hood.
- The storage area and cabinets should be labeled as to identify the hazardous nature of the products stored within. This will allow fire department officials to quickly see a potentially hazardous area.
- Shelving sections should be secured to walls or floor to prevent tipping of entire sections. Shelves should be equipped with lips to prevent containers from rolling off. Shelving above any work area, such as a sink, should be free of chemicals or other loose miscellany. Avoid storing chemicals on shelves above eye level.
- Chemicals should not be stored on the floor except in approved shipping containers.
- Upon receipt, all chemical labels shall be checked for special storage instructions.
- Flammable chemicals shall only be stored in a refrigerator if it is of explosion-proof or explosion-safe design. Never store food in a laboratory refrigerator.
- Corrosives shall be stored in appropriate corrosive cabinets.
- Flammable materials shall be stored in an approved flammable storage cabinet or in safety cans.

- Store all poisons in a locked cabinet.
- Chemical exposure to heat or direct sunlight should be avoided.
- The chemical storage area shall be ventilated appropriately to ensure that chemical emissions do not spread to any other part of the School.
- Neutralizer for both acids and bases should be available in the chemical storage room in case of a chemical spill.

Employee Training Program

The School shall provide ongoing training for Staff members and employees. This training shall include information about:

- Awareness and location of this Plan and the OSHA Lab Standard;
- The location and availability of chemical Material Safety Data Sheets (MSDSs) and other chemical safety reference materials;
- Potential hazards involved in using chemicals;
- The location, proper use, and maintenance of safety and protective equipment, as well as information about proper work habits and safety procedures;
- Signs and symptoms associated with overexposure to chemicals;
- Observation techniques and other methods used to detect potentially harmful exposures before such exposure occurs;
- Information about the Threshold Limit Values (TLVs) and Permissible Exposure Limits (PELs).

Exposure Investigation

It is the School's policy to investigate all suspected overexposures to chemicals in a prompt and timely fashion.

In the event of a possible overexposure, the initial information included in the complaint, as well as the School's decision to investigate or not to investigate the complaint, shall be recorded. If the complaint is not investigated, the reasoning for this decision shall be documented. If the complaint is investigated, the following information shall be recorded:

- information obtained from the victim about the circumstances of the possible exposure and the chemicals involved;
- a comparison of the symptoms experienced by the victim and the overexposure symptoms described in the respective MSDSs;
- information about the use of safety equipment and personal protective equipment; and
- the results of air testing or monitoring.

This information obtained in the course of an investigation shall be used to change safety practices and further improve lab safety. The files shall be maintained in a way that is accessible to all employees.

Medical Evaluations

It is the School's policy to make medical consultation and examination available to all Staff members and employees whenever an overexposure is suspected, such as:

- when an employee presents any sign or symptom of overexposure (nausea, dizziness, skin rash, etc.);
- when a chemical container is accidentally broken or cracked; and
- when a hazardous chemical splashes into the eyes or onto the skin of a Staff member.

The medical consultation and examination will be free-of-charge to the employee or Staff member and shall not result in a loss of pay. The physician or medical professional consulted will be provided with the name of the chemical(s) to which overexposure is suspected. Medical records shall be kept in accordance with applicable laws and regulations. All employees working under the same conditions shall be notified of the suspected overexposure.

Mandatory Signs and Labels

Signs shall be posted throughout the laboratory as follows:

- all laboratory refrigerators shall be labeled “No Food”;
- all containers, including waste disposal receptacles, shall be labeled appropriately;
- The location of all safety equipment (eye wash station, fire blanket, fire extinguisher, etc.) shall be clearly labeled;
- all exits shall be clearly identified and labeled as such;
- phone numbers for emergency personnel, local hospitals, administrative employees, and the responsible Staff member shall be posted in a conspicuous location; and
- any specific locations or equipment posing a particular hazard or danger shall be labeled appropriately.

Federal: 29 C.F.R. 1910.1450.

Cross-Reference: Policy No. **2520**, Chemical Hazard Communication Program; Policy No. **2560**, Chemical Hygiene; Form No. **2560.2**, Acknowledgement of Receipt of Chemical Hygiene Plan; Policy No. **5443**, Reporting Accidents and Treating Injuries.

2560.2 – Acknowledgement of Receipt of Chemical Hygiene Plan

Do not sign and return this Acknowledgement until you have received and read the School's Chemical Hygiene Plan.

I, _____, hereby acknowledge that I have received a copy of the School's Chemical Hygiene Plan. I have read and understood my obligations under this Plan and was given an opportunity to ask questions. I hereby accept the obligations and responsibilities imposed upon me through this Plan.

Signature: _____ Date: _____

2570 – Hazard Review and Inspection

The Governing Authority shall periodically review its Policies and procedures to ensure that students, Staff members, and other persons using the School building are safe from any known hazards in the School building or on School grounds that, in the judgment of the Governing Authority, pose an immediate risk to health or safety. The Governing Authority shall further ensure that its policies and procedures comply with all federal laws and regulations regarding health and safety applicable to School buildings.

In accordance with state law, the local health department shall inspect all School buildings for sanitary conditions. This inspection shall be conducted at least semi-annually, but may be conducted more often if, in the opinion of the local health department, it is necessary. This inspection will be conducted according to standards established by the local health department.

If the local health department finds any condition that is detrimental to health or well-being, the local health department may serve upon the School an order for the abatement of such nuisance or condition. When the School receives such an order, the respective nuisances shall be abated, or the detrimental conditions corrected within a reasonable time as specified on the order.

Ohio: R.C. 3313.86, R.C. 3707.03, R.C. 3707.26.

Cross Reference: Policy No. **2320**, Personal Safety; Policy No. **2510**, Compliance with Federal and State Safety Programs; Policy **2520**, Chemical Hazard Communication Plan; Policy No. **2530**, OSHA Exposure Control Plan; Policy No. **2540**, Asbestos Hazards; Policy No. **2550**, Lead Poisoning Prevention; Policy No. **2560**, Chemical Hygiene; Policy No. **5443**, Reporting Accidents and Treating Injuries.

2580 – School Calamity

By August 1 of each school year, the School shall adopt a plan to provide instruction via online delivery in order to make up hours in that school year for which it is necessary to close schools for disease epidemic, hazardous weather conditions, law enforcement emergencies, inoperability of school buses or other equipment necessary to the school's operation, damage to a school building, or other temporary circumstances due to utility failure rendering the school building unfit for use.

The plan shall be designed to ensure continuity of learning for students during a school closure and shall include all of the following:

A statement that the School, to the extent possible, will provide for teacher-directed synchronous learning in which the teacher and students are interacting in real time on a virtual learning platform during the closure;

The School's attendance requirements, including how the School will document participation in learning opportunities and how the School will reach out to students to ensure engagement during the closure;

A description of how equitable access to quality instruction will be ensured, including how the School will address the needs of students with disabilities, English learners, and other vulnerable student populations;

The process the School will use to notify staff, students, and parents that the School will be using online delivery of instruction;

Information on contacting teachers by telephone, electronic mail, or a virtual learning platform during the closure;

A description of how the School will meet the needs of staff and students regarding internet connectivity and technology for online delivery of instruction.

The plan shall provide for making up any number of hours, up to a maximum of the number of hours that are the equivalent of three school days.

The School shall not be considered to have failed to comply with the minimum number of hours required with respect to the number of make-up hours for which the plan is utilized.

O.R.C. 3313.482; 3314.08.

Revised September 2, 2023

2600 – Building Security

Policy No. 2610

2610 – Building and Grounds Security

In order to fulfill the School's educational mission, the School must take all necessary steps to protect the School's buildings, grounds, and equipment from damage, vandalism, theft, and destruction. The Head Administrator is hereby vested with the responsibility for developing and implementing a program that will serve to ensure the security of School property. The program may, in the discretion of the Head Administrator, involve the use of security cameras. If a system of security cameras is used, a Policy shall be developed and implemented to assure the security of students and Staff members and comply with applicable statutes and regulations.

Staff members are asked to report all damage, vandalism, theft, or destruction of School property. The School will take all steps necessary to ensure the School property is either replaced or repaired at the expense of the responsible individual(s).

The School may offer and pay a reward to a person other than a Governing Authority Member, School official, School employee, or a member of the immediate family of the Member, official, or employee for information leading to the arrest and conviction of any person who damages, vandalizes, steals, or destroys School property.

If the damage, vandalism, theft, or destruction of School property rises to such a level that it is considered serious by the Head Administrator, the Governing Authority and the proper law enforcement authorities shall be notified.

The Governing Authority will ensure that all protective door assemblies in school buildings used for instruction of students will be inspected and tested every twelve months in accordance with the Ohio Childhood Safety Act, and brought into compliance with applicable standards.

"Protective door assembly" means any of the following: (1) Doors with panic hardware or fire exit hardware; (2) Door assemblies in exit enclosures; (3) Electricity controlled egress doors; (4) Door assemblies with special locking arrangements, such as delayed egress, sensor release egress doors, and elevator lobby doors.

The Governing Authority will maintain records verifying annual inspections.

Ohio: R.C. 3313.173, R.C. 3737.07.

Cross Reference: Policy No. **2670**, Public Conduct on School Property; Policy No. **4460**, Assembling & Disorder; Policy No. **4490**, Search and Seizure; Policy No. **5453**, School Equipment – Use and Return; Policy No. **6110**, Visitors; Policy No. **6120**, Volunteers; Policy No. **6130** Relations with Law Enforcement Agencies; Policy No. **6220**, Crisis Media Management..

2620 – School Safety/Emergency Management Plan

Transportation of students is the responsibility of each student's public school district of residence, to the extent required by state law, unless the Governing Authority has entered into an agreement with the school district of residence to provide transportation, and that agreement is certified by the Ohio Superintendent of Public Instruction. The School shall establish start and end times for the school year by April 1st of the prior school year and shall provide those times to its students' school district of residence. The school districts must use those start and end times to develop a transportation plan for the School's students whom the districts are required to transport within 60 days after receiving the information. If the School provides those times from April 2-July 1 of the prior school year, then the school districts of residence must attempt to provide a transportation plan to the School by August 1 of the school year. For any student who enrolls in the School after July 1, the districts of residence must develop a transportation plan within 14 business days after receiving a request for transportation services from the student's parent or guardian.

For students in grades K-8, the school district of residence is prohibited from transporting the School's students using mass transit vehicles unless the school district of residence enters into an agreement with School which is approved by both the school district of residence and the School.

For student in grades 9-12, if the school district of residence elects to transport the School's students using vehicles operated by a mass transit system, then the school district of residence must ensure that a student's route does not require more than one transfer.

The school districts of residence are required to transport the School's student to and from school each day the school is open for instruction, regardless of whether the school district of residence's buildings are similarly open.

The School may request from the resident school district, a list of its enrolled students names and addresses for whom the resident school district is providing transportation.

ODE shall deduct a portion of the school districts of residence state transportation funding if ODE determined that the district has consistently, or for a prolonged period, been noncompliant with certain statutory obligations regarding student transportation.

Ohio law and regulations of the Department of Education shall govern any question not covered by this policy or the certified agreement.

Pursuant to the certified agreement, the Board shall furnish transportation to all enrolled students in grades K-8 who live more than two miles from school. A "payment in lieu" procedure applies for transportation which the community school has determined to be "impractical" in accordance with certain criteria set forth in state law. The School shall make a determination regarding whether to provide payment in lieu of transportation for a student not later than 30 calendar days prior to the first

day of school. For students who enroll within the 30 day period or later, the School must make the determination within 14 calendar days of a student's enrollment. Also, the head of school is authorized to make the determination but said authorization must be formalized at the next Governing Authority meeting. Additionally, the School must issue a letter to a student's parent or guardian and the State Board, providing a detailed description of the reasons why the payment in lieu determination was made. The parent or guardian of a student may authorize the School to act on the student's behalf for purposes of determining payment in lieu of transportation and any related mediation proceedings. The annual payment in lieu amount shall not be less than 50% but not more than the average cost of pupil transportation for the previous school year, as determined by ODE. The School may provide or arrange transportation for any other enrolled student who is not entitled to free transportation and may charge such student a fee up to the actual cost of the service. The Governing Authority shall provide or arrange transportation free of any charge for any disabled student enrolled in the School whose individualized education program developed under Chapter 3323. of the Revised Code specifies transportation as a related service.

The Board authorizes the installation and use of video recording devices in the school buses to assist the drivers in providing for the safety and well-being of the students while on a bus.

The School holds that busing is a privilege, not a right, which may be removed from any student who violates the rules of the district or who conducts himself/herself in a manner which is considered dangerous to persons or property or a threat to the safe operation of the school bus. Students may be suspended from the bus and not be suspended from school. It will be the parent's responsibility to transport during the suspension.

The Board shall report to the department of education the number of students transported or for whom transportation is arranged under this section in accordance with rules adopted by the state board of education.

The Board shall annually report the following information to the Ohio department of education:

- 1) The number of students enrolled in kindergarten through grade twelve in the School who are not receiving special education and related services pursuant to an individual education plan.
- 2) The number of students enrolled in grades kindergarten one through grade twelve in the School who are receiving special education and related services pursuant to an individual education plan.
- 3) The number of enrolled preschool handicapped students receiving special education services in a state-funded unit.
- 4) The School's base formula amount as defined in division R.C. 3314.03(A)(15).
- 5) The city, exempted village, or local school district in which the School is located.
- 6) The poverty-based assistance reduction factor that applies to the School for the school year.
- 7) The school district each student is entitled to attend pursuant to R.C. 3313.64-.65.
- 8) If any student does not attend the School on a full-time basis, the number of days enrolled per year and the percentage of the school day enrolled for each less-than-full-time student.

- 9) The number of limited-English proficient students enrolled in the community school.
- 10) The full-time equivalent number of students enrolled in career-technical education programs or classes described in divisions (A) and (B) of R.C. 3317.014 provided by the community school.
- 11) The number of students receiving transportation services from the community school pursuant to R.C. 3314.091.
- 12) The first and last day of the school year for the community school.
- 13) The number of days and hours the school is in session and the total hours or days of learning opportunities offered to a student attending for the entire school year.
- 14) If the school offers all-day kindergarten.

R.C. 3314.091; R.C. 3327.01; OAC Ann 3301-83, et. seq.

Revised September 2, 2023

Ohio School Behavioral Threat Assessment Model Policy and Protocol

A Guide for School Personnel and Law Enforcement Officers

**Ohio School Safety Center
Ohio Department of Public Safety**

DISCLAIMER

This document does not constitute either an informal or formal opinion of the Ohio Attorney General, Ohio Department of Education, or Ohio Department of Public Safety. It does not constitute legal advice or counsel. It does not create an attorney-client relationship. It creates no rights beyond those established under the constitutions, statutes, regulations and administrative rules of the United States and the State of Ohio. It does not attempt to provide answers to every question that may arise regarding school safety.

This document reflects the law as of the date of its publication. It may be superseded or affected by other versions or changes in the law.

Acknowledgements

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Ohio Attorney General

Ohio Department of Education

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Ohio School Safety Center, Ohio Department of Public Safety

This guide includes a basic introduction to behavioral threat assessment, model protocols, as well as charts to assist in determining the risk levels of behaviors and actions. Additional resources are available through the Ohio School Safety Center, Ohio Department of Education, and Ohio Department of Mental Health and Addiction Services.

Introduction

On August 21, 2019, Governor Mike DeWine signed Executive Order 2019-21D creating the Ohio School Safety Center within the Ohio Department of Public Safety. The Ohio School Safety Center is responsible for assisting local schools and law enforcement with preventing, preparing for, and responding to threats and acts of violence, including self-harm, through a holistic, solutions-based approach to improving school safety.

The Ohio 133rd General Assembly passed House Bill 123 titled “Safety and Violence Education Students Act,” or the “SAVE Students Act” with an effective date of March 24, 2021. The SAVE Students Act requires the Ohio Department of Public Safety, in consultation with the Ohio Department of Education and the Ohio Attorney General, to develop a model school behavioral threat assessment plan to provide best practice guidance to schools around the state. The Ohio School Behavioral Threat Assessment is a significant part of that guidance. This protocol was developed to assist school safety professionals in identifying students of concern so that their behaviors can be mitigated to the point that they no longer pose a threat.

This guide focuses on one of the most important school violence prevention tools, the school-based threat assessment. School Behavioral Threat Assessment should be applied as an early intervention tool. A well-designed threat assessment protocol should help improve school safety and identify students that need additional resources.

Any documents mentioned in this guide may be requested from an OSSC regional liaison or directly from the OSSC by emailing ohioschoolsafetycenter@dps.ohio.gov.

Overview

Background

House Bill (HB) 123 (Ohio), the Safety and Violence Education Students (SAVE Students) Act, was enacted on March 24, 2021. HB 123 calls for a comprehensive approach to school safety involving the Ohio departments of Education, Public Safety, Mental Health and Addiction Services, and Attorney General's Office. Section 3313.669 (A) requires each local, city, exempted village, and joint vocational school district to create a threat assessment team for each school building in the district serving grades six through 12. It also requires each member of the threat assessment team to complete an approved threat assessment training program, from the list maintained by the Ohio School Safety Center, upon appointment and once every three years thereafter.

Scope

In Ohio schools, behavioral threat assessment teams function to conduct assessments and interventions for individuals whose behavior indicates they may pose a risk of harm to the school community and/or themselves.

Multidisciplinary Decision Making

There should not be any attempt to complete the threat assessment process in isolation. At least two team members representing different disciplines (e.g., administrators, school psychologists, teachers, counselors, school resource officers). need to be involved in the decision-making process. Team members should be well versed in the threat assessment process, applicable policy, and law. When a threat assessment team is uncertain how to proceed in a situation, they are encouraged to consult with nearby schools, local law enforcement or the Ohio School Safety Center Regional Liaisons. Any consultation with outside resources should be documented.

Individuals potentially subject to a behavioral threat assessment include:

- Students: current, former, and prospective
- Employees: current, former, and prospective
- Parents/guardians of students/non-custodial parents or relatives
- Persons who are (or have been) in a relationship with faculty, staff, or students
- Contractors, vendors, or other visitors
- Unaffiliated persons

Ohio schools will utilize a behavioral threat assessment model and Behavioral Threat Assessment Management Team to assist in the proactive prevention of targeted violence by identifying areas of concern, gathering information, assessing the likelihood of violence, initiating appropriate interventions and violence mitigation strategies and provide ongoing evaluation to increase positive outcomes for individuals and enhance overall school safety. Individuals who plan to commit violent acts against schools often share their plans with someone. This is an important realization when discussing intervention points.

Ohio schools will utilize a behavior-based approach to identify and assess individuals who demonstrate concerning communications or behavior and does not tolerate profiling of any kind based on race, ethnicity, age, physical or mental health conditions, learning abilities, socioeconomic status, gender, sexual orientation or religion.

Definitions

- **Behavioral Threat Assessment:** In K-12 schools, a *behavioral threat assessment* is a proactive approach to identify, assess, and provide appropriate interventions and resources for students who display a behavior that elicits concern for the safety of themselves or others.

A behavioral threat assessment:

✓ Focuses on behaviors, not traits or profiles	✗ <i>Is not</i> a criminal investigation
✓ Involves multidisciplinary school staff	✗ <i>Is not</i> a disciplinary process
✓ Identifies threatening and other concerning behaviors, and assesses them in context	✗ <i>Does not</i> involve zero tolerance
✓ Provides students with additional supports	✗ <i>Does not</i> replace student support programs
✓ Utilizes existing school resources	✗ <i>Is not</i> a physical security measure
✓ Promotes a safe school climate	

- **Bullying:** The Ohio Revised Code defines, harassment, intimidation or bullying as follows²:
 - Any intentional written, verbal, graphic, or physical act that a student or group of students exhibited toward other particular student more than once and the behavior both:
 - Causes mental or physical harm to the other student; and
 - Is sufficiently severe, persistent or pervasive that it creates an intimidating, threatening or abusive educational environment for the other student
 - Violence within a dating relationship.

² [Section 3313.666 - Ohio Revised Code | Ohio Laws](#)

- **Electronic act:** An act committed through the use of a cellular telephone, computer, pager, personal communication device, or other electronic communication device.³
- **Concerning Behavior:** An observable behavior that elicits concerns in bystanders regarding the safety of an individual or those around them. Some concerning behaviors may be defined as ***prohibited behaviors*** and should trigger an immediate response. Prohibited behaviors can include threats, weapons violations, and other aggressive or violent behavior. Other behaviors that may elicit concern can include unusual interests in violent topics, conflicts between classmates, increased anger, increased substance use, or other noteworthy changes in behavior (e.g., depression or withdrawal from social activities). *Note: Concerning behavior does not necessarily imply or predict that an individual or group will become violent. Instead, it serves as an indicator that the student may be in need of intervention or increased supports. Proactive intervention and de-escalation are key and should be part of any approach to violence prevention.*
- **Concerning Communication:** Unusual, bizarre, threatening, or violent communications made by an individual or group. Concerning communications may allude to violent intentions, violence to solve a problem, justifying violent acts, unusual interest in weapons, personal grievances, or other inappropriate interests. Concerning communications may also allude to hopelessness or suicide. Concerning communications may be made in the form of written, oral, or visual media. *Note: Concerning communication does not necessarily imply or predict that an individual or group will become violent. Instead, it serves as an indicator that the student may be in need of intervention or increased supports. Proactive intervention and de-escalation are key and should be part of any approach to violence prevention.*
- **Multidisciplinary Behavioral Threat Assessment Team:** A team composed of highly trained school personnel with diverse positions, backgrounds, and experience (e.g., administrators, school psychologists, teachers, counselors, school resource officers). The team will receive reports about concerning student behavior and situations, gather additional information, assess the risk posed to the community, and develop and implement intervention and management strategies to mitigate any risk of harm.⁴
- **Targeted violence:** A premediated act of violence directed at an individual, group, or location for a specific reason.

Information Sharing/Consent

³ Definition adapted from the Centers for Disease Control and Prevention

⁴ National Threat Assessment Center, 2018, p. 7

Although the law gives schools⁵, law enforcement, and child welfare professionals the ability to interview a child without parental consent, it is considered best practice to have the consent and cooperation of the parents. **A positive and communicative relationship with the parents can be a mitigating factor and make a child's reintegration back into the school community after a significant incident easier to manage.**

When investigating a safety issue, schools do not need to request consent from parents prior to interviewing their child. However, it is possible that parents might later refuse the school permission to complete the behavioral threat assessment with their child, to speak to administration, or allow access to their child. It is certainly the parent's right to refuse, but (depending on the seriousness of the prohibited/concerning behavior) could significantly increase the risk level associated with the threat. The reason behind this concern is that it could indicate that the parent doesn't recognize serious pathological behavior.

Schools may search school provided property such as lockers, iPads, and laptops without permission. Schools may also be able to search the personal belongings of a student, such as a jacket or backpack but must first have reasonable suspicion to do so. This reasonable suspicion may include information that has been shared about but not limited to illegal drugs, paraphernalia, and weapons.

If a school is unable to complete a threat assessment because of consent issues or limited access to a student, law enforcement can detain the student and question them (complete the assessment). Child welfare workers can also interview a child without parental consent, based on allegations of child abuse or neglect.

In addition to considerations surrounding consent to interview, members of the behavioral threat assessment team should identify instances where a release of information is needed to access student records during the information gathering stage of a behavioral threat assessment and work to obtain

⁵ State law does not provide a specific statute that authorizes schools, law enforcement, and child welfare professionals to interview students without parental consent. However, several statutes generally provide this authority. Revised Code 3313.20(A) permits a school district to make any rules that are necessary governing the employees, pupils of its schools, and all other persons entering upon its school grounds. Revised Code Sections 3313.669 and 5502.262(B)(2)(d) require schools to establish threat assessment teams and establish a protocol for addressing potential threats. Section 3313.951(D) permits a school resource officer to carry out duties that may include threat investigations. In addition, several court decisions have held that questioning of a juvenile is not a violation of the Fifth Amendment right against self-incrimination merely because it occurs in a school and the presence of a police officer. In re Haubeil, 2002 Ohio 4095 (4th Dist. 2002); In re Bucy, 1996 Ohio App. LEXIS 4842 (9th Dist. 1996); In re Johnson, 1996 Ohio App. LEXIS 2972 (5th Dist. 1996). However, if there is evidence that the student was under arrest or told he was not free to leave, then any discussions may be suppressed from a resulting criminal case. In re L.G., 2017 Ohio 2781 (2nd Dist. 2017)

signed releases. Having signed release of information forms can also be helpful in the management phase of a behavioral threat assessment for monitoring student progress with intervention programming. Examples may include attendance records, personal identifying information, discipline history, and previous schools attended.⁶

In the past, schools and law enforcement did not commonly share information about students due to concerns about federal regulations on confidentiality⁷. However, the Family Educational Rights and Privacy Act (FERPA) already provides some guidance as to when schools can share student information with law enforcement.

FERPA 34 CFR 99.36 informs us of what conditions apply to disclosure of information in health or safety emergencies:

- (a) An educational agency or institution may disclose personally identifiable information from an education record to appropriate parties, including parents of an eligible student, in connection with an emergency if knowledge of the information is necessary to protect the health or safety of the student or other individuals.
- (b) Nothing in this Act or this part shall prevent an educational agency or institution from -
 - (1) Including in the education records of a student appropriate information concerning disciplinary action taken against the student for conduct that posed a significant risk to the safety or well-being of that student, other students, or other members of the school community;
 - (2) Disclosing appropriate information maintained under paragraph (b)(1) of this section to teachers and school officials within the agency or institution who the agency or institution has determined have legitimate educational interests in the behavior of the student; or
 - (3) Disclosing appropriate information maintained under paragraph (b)(1) of this section to teachers and school officials in other schools who have been determined to have legitimate educational interests in the behavior of the student.
- (c) In making a determination under paragraph (a) of this section, an educational agency or [institution](#) may take into account the totality of the circumstances pertaining to a threat to the health or safety of a student or other individuals. If the educational agency or institution determines that there is an articulable and significant threat to the health or safety of a student or other individuals, it may disclose information from education records to any person whose knowledge of the information is necessary to protect the health or safety of the student or other individuals. If, based on the information available at the time of the determination, there is a rational basis for the determination, the Department will not substitute its judgment for that

⁶ More information on privacy rights can be found in the [National Association of School Psychologists' Report on Protecting Students' Rights in Behavioral Threat Assessment Management](#).

⁷ Columbine Review Commission, 2001, p.108

of the educational agency or institution in evaluating the circumstances and making its determination.

Schools can disclose information that is considered “directory” information without consent. According to FERPA, directory information includes a student’s name, address, telephone number, date and place of birth, honors and awards, and dates of attendance.

According to FERPA, schools must have consent to release student records. Records may be released in certain circumstances without the consent of parents or students. One of those circumstances is to, “appropriate officials in cases of health and safety emergencies.” Another circumstance where the disclosure of student information is allowed without consent is under FERPA 34 CFR 99.31 “State and local authorities, within a juvenile justice system, pursuant to specific State law.” This information is specifically cited on the U.S. Department of Education, Family Policy Compliance Office website.⁸

FERPA **does not apply** to several communications regarding students. Information reported about a student to school staff by another student, either verbally or in writing, is not protected under FERPA. Personal observations of a student or their behavior by school staff are not protected under FERPA. Social media posts made by a student and discovered by school personnel are not protected under FERPA.

How to Establish a Behavioral Threat Assessment Model

History: Research and Guidance on School Violence Prevention: The U.S. Secret Service

For over 20 years, the U.S. Secret Service National Threat Assessment Center (NTAC) has produced operationally relevant, behavior-based research on the prevention of targeted violence in various contexts, including attacks targeting public officials and public figures, government facilities, workplaces, public spaces, K-12 schools, and institutes of higher education.

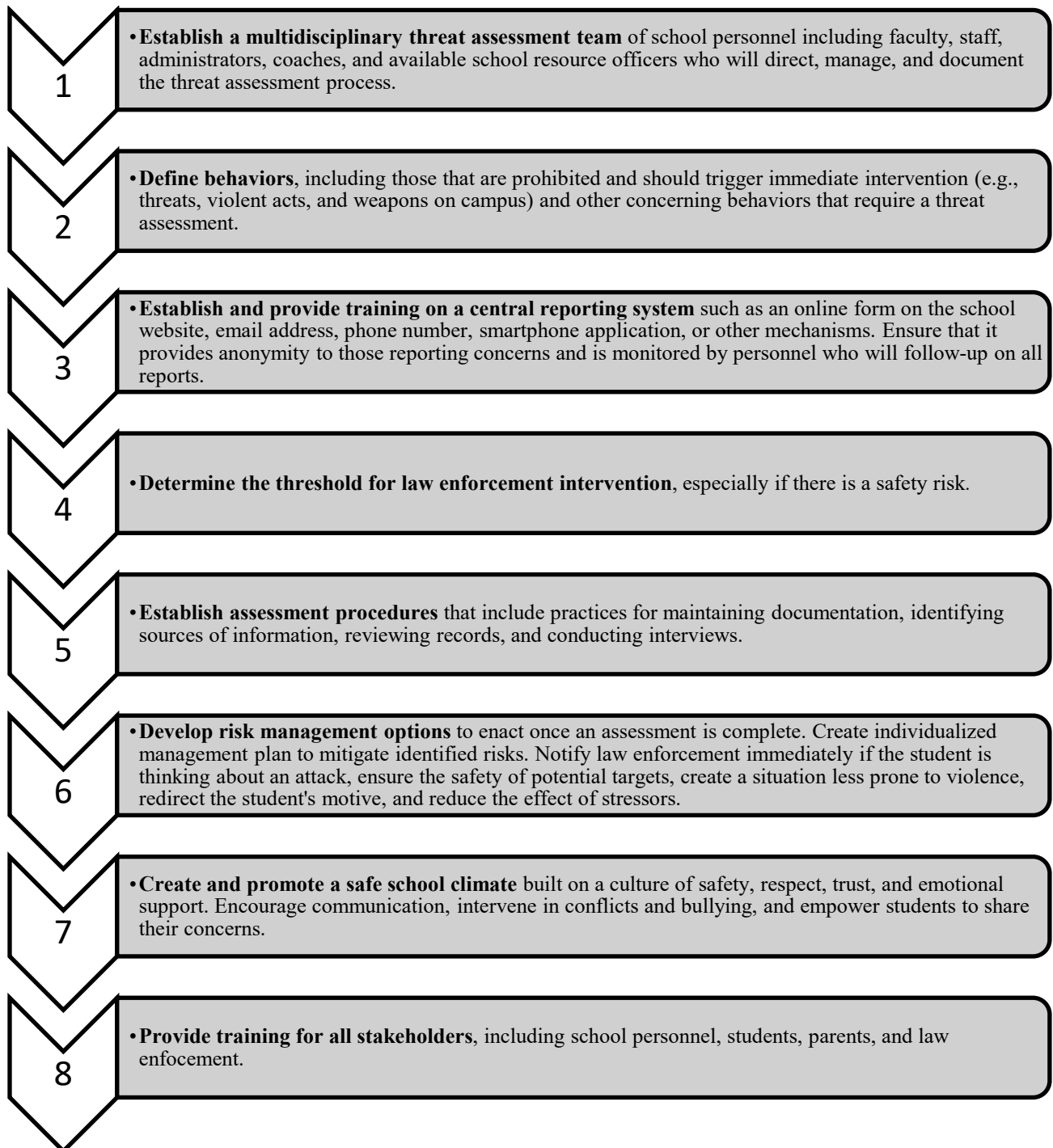
Following the tragedy at Columbine High School in 1999, the Secret Service partnered with the U.S. Department of Education on a study that examined 37 incidents of targeted school violence that occurred from 1974-2000. The ***Safe School Initiative*** focused on gathering and analyzing information about the thinking and behavior displayed by the students who committed these violent acts. The publication of the final report and accompanying guide provided schools and law enforcement with a framework for how to identify, assess, and manage students who display threatening or concerning behavior, with efforts focusing on determining what could be known prior to a violent school attack.

In response to the Feb. 14, 2018, attack at Marjory Stoneman Douglas High School in Parkland, Fla., the Secret Service published an updated operational guide on school threat assessment, intended to provide K-12 schools with actionable steps on creating a targeted violence prevention plan. [***Enhancing School Safety Using a Threat Assessment Model: An Operational Guide for Preventing Targeted School***](#)

⁸ <https://www2.ed.gov/policy/gen/guid/fpco/ferpa/index.html>

[Violence](#) is an 8-step “how to” that outlines the process of establishing a multidisciplinary threat assessment team, protocols for gathering information, and management strategies for reducing a student’s risk of harm to self or others.

8 Steps to Establishing a Behavioral Threat Assessment Model:⁹



⁹ National Threat Assessment Center, 2018

In 2019, the Secret Service published [*Protecting America's Schools: A U.S. Secret Service Analysis of Targeted School Violence*](#). This study examined 41 incidents of targeted school violence that occurred at K-12 schools in the United States from 2008 to 2017. This report offers an in-depth analysis of the motives, behaviors, circumstances, and situational factors of the attackers, as well as an analysis of the tactics, resolutions, and other operationally relevant details of the attacks. This report was produced to inform the best practices of multidisciplinary school threat assessment programs nationwide.

Key Findings and Implications from <i>Protecting America's Schools</i>	
1.	There is no profile of a student attacker, nor is there a profile for the type of school that has been targeted.
2.	Attackers usually had multiple motives, the most common involving a grievance with classmates.
3.	Most attackers used firearms, and firearms were most often acquired from the home.
4.	Most attackers had experienced psychological, behavioral, or developmental symptoms.
5.	Half of the attackers had interests in violent topics.
6.	All attackers experienced social stressors involving their relationships with peers and/or romantic partners.
7.	Nearly every attacker experienced negative home life factors.
8.	Most attackers were victims of bullying, which was often observed by others.
9.	Most attackers had a history of school disciplinary actions, and many had prior contact with law enforcement.
10.	All attackers exhibited concerning behaviors. Most elicited concern from others, and most communicated their intent to attack.

In 2021, the Secret Service published [*Averting Targeted School Violence: A U.S. Secret Service Analysis of Plots Against Schools*](#). This study built upon the existing research around targeted violence in schools by examining thwarted attack plots against K-12 schools from 2006-2018. A comparison between these plotters and individuals who perpetrated attacks in K-12 schools found that the behavioral backgrounds were very similar.

Key Findings and Implications from <i>Averting Targeted School Violence</i>	
1.	Targeted school violence is preventable when communities identify warning signs and intervene.
2.	Schools should seek to intervene with students before their behavior warrants legal consequence.

Key Findings and Implications from <i>Averting Targeted School Violence</i>	
3.	Students were most often motivated to plan a school attack because of a grievance with classmates.
4.	Students are best positioned to identify and report concerning behaviors displayed by their classmates.
5.	The role of parents and families in recognizing concerning behavior is critical to prevention.
6.	School resource officers (SROs) play an important role in school violence prevention.
7.	Removing a student from school does not eliminate the risk they might pose to themselves or others.
8.	Students displaying an interest in violent or hate-filled topics should elicit immediate assessment and intervention.
9.	Many school attack plots were associated with certain dates, particularly in the month of April. More information can be found in the report.
10.	Many of the students had access to weapons, including unimpeded access to firearms.

Secret Service research findings and implications demonstrate that ***school violence is preventable, if communities can identify the warning signs and appropriately intervene.***

Ohio School Behavioral Threat Assessment Model Protocols

The following is a guide for how to complete the Ohio School Behavioral Threat Assessment Model Protocol. It is important to note that all documentation of actions taken should be completed on the *Ohio School Threat Assessment Form*. Schools may request this form from their OSSC regional liaison or directly from the OSSC by emailing ohioschoolsafetycenter@dps.ohio.gov.

A behavioral threat assessment is predicated on bystanders reporting their concerns when they observe concerning behavior. As such, schools should actively encourage bystander reporting. School staff, students, parents, and other community members should be trained on identifying concerning behaviors and communications, and how to report those concerns using the [Safer Ohio School Tip Line](#) anonymous reporting system, or through other avenues as appropriate.

The Ohio School Behavioral Threat Assessment Model Protocol involves 3 Phases. Each phase will be described briefly here.

When the threat assessment team at a school receives a report, **Phase 1** of the Threat Assessment Model Protocol is initiated.

Phase 1:

Initial response and Information Gathering. Phase 1 of the behavioral threat assessment process includes initiating emergency protocols when appropriate and moving through the initial information gathering stage. Initial information is gathered through interviews with relevant parties, and an initial Classification Level is determined.

If the result of Phase 1 is a Classification Level of moderate, high, or imminent, the team should proceed to **Phase 2** of the Threat Assessment Model Protocol for additional information gathering (a Classification Level of low will progress directly to Phase 3).

Phase 2:

Additional Information Gathering and Risk Classification. Phase 2 of the behavioral threat assessment process includes opportunities for additional information gathering for individuals with an initial Classification Level of moderate, high, or imminent. Additional information gathering includes identification of other factors of concern, protective factors, as well as additional sources of information. At this stage, the team will review and adjust the Classification Level as appropriate based on the findings from the additional information gathering process.

All behavioral threat assessments will proceed to **Phase 3** of the Threat Assessment Model Protocol, where the team develops a plan to intervene and manage the concern.

Phase 3:

Intervention and Case Management. Phase 3 of the behavioral threat assessment process includes identifying and implementing intervention and risk mitigation strategies. This should include a *Case Plan* to assist with case management strategies.

The following sections describe Phase 1, Phase 2, and Phase 3 in greater detail.

Phase I: Initial Response and Information Gathering

Once the school receives information regarding a prohibited or concerning behavior, the likelihood that the behavior could result in harm must be determined. In Phase I of the Behavioral Threat Assessment Model Protocol, the threat assessment team will make a determination that will guide their actions in the following phases. The first step in Phase I is to document the staff members who are completing the required tasks for Phase I. The first page of the threat assessment form is where this information should be documented.

The next step in Phase I is to interview the reporting person. If the reporting person perceives the concerning behavior to indicate a serious and imminent threat, the reporting person should call law enforcement immediately. Keep in mind that if there is a school resource officer (SRO) in the building they should be a part of the threat assessment team. The staff member may report the concerning

information to the SRO instead of calling 911. If the reporting person is unknown or not available the interview may not be able to be completed, but the rest of Phase I should continue as outlined.

Depending on the information that the staff member provides to the threat assessment team or law enforcement, immediate action may be required to prevent serious injury or death. If this is the case, the threat assessment process should be postponed until the environment has been made safe.

Documentation should be completed regarding the information gathered from the reporting person on the *Threat or Concerning Behavior Report*. The information required on this report is the minimum information that should be gathered. If the team determines that additional information is needed, they should add more.

The next section in Phase I is the *Emergency Operations/Notifications* section. This is where contact with the parents of the involved students will be documented. Documenting who made these contacts, who was spoken to, and the time these contacts occurred can prove to be very helpful in protecting against liability.

The next section outlines interviews that should be completed to collect information about the concerning incident. At this time, the teacher interview should be completed by all teachers that have regular or noteworthy contact with the concerning student. A specific deadline for the completion of these interviews should be set. Staff members should be informed that the request for the information (and the information itself) contained in these documents is confidential and should not be shared with others.

The questions listed on the interview sheets for the staff members, subject of concern, potential targets, parents/guardians, and witnesses are not exhaustive. If the team determines that there are additional questions that need to be asked, they can be documented on a separate sheet and attached to the documented interview.

Considerations for Information Gathering

When the threat assessment team is investigating a report, the team should be sure to examine the following behavioral themes.¹⁰ These behavioral themes are not an exhaustive list and should not serve as a checklist, but rather as a starting point for the information gathering process.

- The student's motives and goals.
- Concerning, unusual, or threatening communications.
- Inappropriate interest in weapons, school shooters, mass attacks, or other types of violence.
- Access to weapons.

¹⁰ National Threat Assessment Center, 2018, p. 8

- Stressful events, such as setbacks, challenges, or losses.
- Home-life factors (e.g., domestic violence, abuse, instability).
- Impact of emotional or developmental issues.
- Evidence of desperation, hopelessness, or suicidal thoughts/gestures.
- Whether the student views violence as an option to solve problems.
- Whether others are concerned about the student's statements or behaviors.
- Capacity to carry out an attack.
- Evidence of planning for an attack.
- Consistency between the student's statements and actions.
- Protective factors such as positive or prosocial influences or events.

The Importance of Rapport Building

Teams should establish rapport with those that they are interviewing. Some of the information that will be discussed can be considered sensitive and some may be reluctant to share it with someone they do not trust. Reassuring them that the goal of this process is to determine how to best help the person of concern can help develop that trust. One approach to build trust while gathering information is to clarify roles at the onset of the interview. Role clarification includes providing a context to the behavioral threat assessment process, explaining expectations of the interviewee and the interviewer, and outlining the process moving forward while addressing questions surrounding confidentiality. Role clarification should include the following steps:

Step 1

Provide an overview of the goals of the behavioral threat assessment program.

Step 2

Provide an overview of your role on the behavioral threat assessment team, and what you hope to accomplish during the interview.

Step 3

- *Discuss the steps of the behavioral threat assessment and interview process,*
- *Explain what is requested of the interviewee, and*
- *Identify the roles of other individuals involved in the behavioral threat assessment process.*

Step 4

- *Discuss expectations of confidentiality,*
- *Explain what information can be shared in accordance with FERPA, and*
- *Who has access to the responses from this interview?*

In addition to role clarification, paying close attention to the interviewee and using active listening skills can assist in building trust.

Risk Classification Level

As information is gathered from interviews and other sources, the team will use the information to assess a level of risk posed by the individual of concern. When determining the level of risk associated with a threat, the central questions is not whether a person ***made a threat***, but whether a person ***poses a threat***.

Classification Level		Suggested Response Guide
LOW	The reported concerning behavior has been investigated and assessed as benign. The individual or situation does not appear to pose a risk of violence or serious harm to self or others, and any exhibited issues or concerns can be addressed using existing support structures.	- Communicate information to school leadership - Notify appropriate school staff, to include the SRO - Contact parents/guardians of student of concern - Determine if school and/or community-based referrals are needed - Continue to monitor behavior through school counselor follow-up - Determine if a release of information is needed, and obtain signatures when appropriate - Develop a management plan (Phase 3)
MODERATE	The individual or situation does not appear to pose a risk of violence or serious harm to self or others, at this time; however, the behaviors exhibited indicate a need for intervention. Examples of interventions that may be required include increased academic or behavioral supports, services intended to address the impact of stressors, mental health or drug abuse	- Communicate information to school leadership - Notify appropriate school staff, to include the SRO - Contact parents/guardians of student of concern - Determine if school and/or community-based referrals are needed, and initiate appropriate referrals for the student of concern - Determine if a release of information is needed, and obtain signatures when appropriate - Assign a team member to monitor behavior and student response to interventions - Incidents at this level may require law enforcement notification if prohibited behaviors are present

Classification Level		Suggested Response Guide
	treatment, and mediation for student conflicts or bullying.	Continue gathering more information (Phase 2) and develop a management plan (Phase 3)
HIGH	The individual or situation appears to pose a risk of violence or serious harm to self or others . The behaviors exhibited may indicate the student is considering a planned act of violence, has planned to harm self or others, or other concerning behaviors or communications that indicate an interest and/or intention to commit violence.	- Incidents at this level may require immediate law enforcement intervention or hospitalization - Communicate information to school leadership - Notify appropriate school staff, to include the SRO - Contact parents/guardians of student of concern - Provide direct supervision of the student until any immediate concerns are addressed - Follow district policies for notifying parents/guardians and potential victims - Initiate interventions to stabilize the situation as needed - Determine if a release of information is needed, and obtain signatures when appropriate - Assign a team member to monitor behavior and student response to interventions - Continue gathering more information (Phase 2) and develop a management plan (Phase 3)
IMMINENT	The individual or situation appears to pose an immediate risk of violence toward self or others that requires immediate containment and action to prevent violence from occurring . The individual is known to have the present desire and capacity to conduct a violent act.	- Incidents at this level require immediate law enforcement intervention or hospitalization - Notify the SRO/law enforcement to address imminent risk - Initiate lock-down procedures, per policy, if appropriate - Communicate information to school leadership - Notify appropriate school staff - Contact parents/guardians of student of concern - Provide direct supervision of the student until parents/guardians assume custody and/or the student is removed from campus - Follow district policies for notifying parents/guardians and potential victims - Initiate interventions to stabilize the situation as needed - Determine if a release of information is needed, and obtain signatures when appropriate - Assign a team member to monitor behavior and student response to the safety and intervention plan - Gather more information (Phase 2) and develop a management plan (Phase 3)

Based on the information collected, one of the following four Classification Levels will be assigned to the behavior: low, medium, high, or imminent. An initial *Suggested Response Guide* for each level outlines actionable steps staff can take to address the potential risk of harm.

Those evaluating the risk associated with a concerning behavior should keep in mind that a student demonstrating a pattern of concerning behavior over time may warrant an elevated Classification Level. If you observe an escalating pattern of low-level concerning behavior, all three phases of the threat assessment process should be completed to determine if the student requires additional resources.

The Classification Level assigned to a concerning behavior will determine the next steps to be taken in the threat assessment process. If the behavior is determined to be low risk, and it is not connected to an escalating pattern of behavior, you may decide as a team to proceed to Phase III and document the outcomes associated with this behavior. However, if you determine that the behavior should be assessed at medium, high, or imminent risk, you should proceed to Phase II of the threat assessment process before moving to Phase III.

The team will need to document the Classification Level at which the behavior is assessed and the justification for that decision. If the team is made aware of additional information, the Classification Level could change. Any change in Classification Level should be documented and the date/time of the change should be noted as well.

Phase II: Additional Information Gathering and Risk Classification

If it is determined that Phase II of the threat assessment process will need to be completed, documentation should continue regarding any interviews or investigation that has been completed thus far. Each member of the behavioral threat assessment team taking part in the assessment should be listed, along with their position, phone number, and email address. The same team members may take part in Phase II as in Phase I, but their information should still be entered on the Phase II documentation.

In Phase II, all additional sources of information should be noted. Additional documents gathered should be attached to the behavioral threat assessment paperwork. The team may discover that more information is needed. These tasks should be assigned by the leader of the team and expectations about when the information is needed should be clear. Care should be taken to document each task being completed, when and by whom. If information is required from outside sources, be certain to document who was contacted to provide the information. Additionally, if any consent to release information, Memorandum of Understanding (MOU) or court orders exist between entities (in regard to this student), they should be referenced/attached as well.

It is the responsibility of the team leader to make sure all of the assigned tasks are completed within the time limits set by the team.

Once all the necessary information has been collected, the team will reconvene and complete the *Key Observations, Factors of Concern, and Protective Factors Checklists*. This document can be requested from your OSSC liaisons or the OSSC directly. Once the checklists have been completed, the team may determine that more information is needed. If the team determines that all the necessary information has been gathered and evaluated, they will assess and revise the Classification Level, as needed. The team will then determine an appropriate response to the concerning behavior.

Going forward, a Classification Level can be amended based upon new information, mitigating circumstances, aggravating circumstances, or upon successful compliance with interventions. ***It is important to remember that removing a student from school does not mean that student no longer poses a risk of harm to themselves or others. If the student's behavior indicates that they still pose such a risk, the Classification Level should not be lowered.***

Phase III: Intervention and Case Management

Once a Classification Level has been assigned, a determination regarding the response to that behavior must be made. The behavioral threat assessment team will be a part of that decision in order to examine and consider all possible outcomes. However, each school will need to evaluate potential outcomes based on their policy and code of conduct. Additionally, law enforcement, social services, and other stakeholders will need to determine if there are actions that they will need to take in this situation, as well.

There may be additional stakeholders outside of the behavioral threat assessment team that may be of value to the team in determining the appropriate outcomes or interventions. Teams should consider including community case managers, special education case managers, teachers, counselors/therapists, social workers, parents/guardians, MTSS or student assistant program teams, and mentors. Any person taking part in Phase III decisions should be documented on the Phase III fact sheet.

Once the most appropriate response is determined, documentation will need to be completed regarding the outcome. The team will complete the *Response to Threat or Concerning Behavior Checklist*. If you determine that a different resource is needed than what can be found on the checklist, document what that resource is and how it will be monitored. Once the checklist has been completed a *Case Plan* will need to be completed as well.

A *Case Plan* will help the team determine if the concerning person is complying with the interventions designed to mitigate their concerning behavior and promote successful outcomes. A staff member should be assigned to each requirement listed in the plan to ensure that requirement is being complied with. This should include the duration and frequency of assigned tasks, as well as a specific date set for the team to review progress.

Teams should ensure consistency between behavioral threat assessment and case management

strategies. Based on an individualized assessment of the risk posed by the individual, teams will employ

case management strategies that are appropriate, fair, and reasonable to address the concerns identified. For each Classification Level, there is a minimal level of response or intervention that should guide the initial development of a case management strategy (see *Risk Classification*). ***A given case may have a fact pattern that necessitates deviation from the general guidelines. When that is the case, teams should deliberate, reach consensus upon action steps, and document the facts or circumstances that factored into their case management planning.***

When developing individualized case management plans for the individual, teams should attempt to identify interventions that align with best practices, for example, evidence-based interventions for bullying, suicidal ideation, and drug use. Informal strategies can also be utilized to provide the student of concern with additional support, for example, assigning a teacher mentor to routinely check in with the student and support their case management plan. In addition, ***case management plans should consider the student's Classification Level and match the level of services, interventions applied, and monitoring to the student's needs*** identified during the behavioral threat assessment process. *Case Plans/Plans of Support* should consider the student's learning style, cognitive level, social connections, emotional development, disabilities and personality characteristics.

A *Case Plan* can include a variety of actions that guide a student's emotional development or reduces risk of harm to self and others. The following is a list of possible interventions, but a school may take any other actions that are deemed advisable and/or necessary:

- Rapport-building
- Enhancing skill deficits, such as problem-solving skills, coping skills, communication skills, advocacy skills, and anger management skills.
- Check-in/Check-out
- Mentoring
- Bag/Locker searches
- Assessments by counselor/therapist
- Change of schedule/placement
- Cognitive-behavioral interventions
- Referring for behavioral health treatment

The behavioral threat assessment team should be meeting regularly to review *Case Plans/Plans of Support* completed on previous threat assessments. The teams should be reviewing information and reports regarding the concerning person's compliance/progress in order to assess intervention results and modify the case plan. At that time, the team will determine if it is appropriate to decrease or elevate the Classification Level assigned to the concerning person. The team may also decide that the person's progress has been successful enough to discontinue the *Case Plan*.

Again, it is the responsibility of the team leader to make sure all the assigned tasks in the Case Plan are being completed successfully. If the student requires an extended period of monitoring, regular meetings of the threat assessment team will be scheduled and documented.

As best practice dictates in the treatment of juveniles, interventions should be implemented in the least restrictive environment. School administrators and law enforcement should provide a supportive environment for the individual and the safest situation possible for the school community.

Additional Considerations

Schools should review their code of conduct, policies/procedures, and any memoranda of understanding with outside agencies to ensure that they are aligned with recommended best practices and current state and federal law.

Complying with the Individuals with Disabilities Education Act and the Americans with Disabilities Act

It should be noted that the completion of a threat assessment does not excuse a school from following all Individuals with Disabilities Education Act (IDEA) or Americans with Disabilities Act (ADA) requirements for students with disabilities. Instead, the threat assessment process should be completed concurrent to any IDEA or ADA required process, to determine if the student's needs are being met by their current services. Conversely, the presence of an Individualized Education Plan (IEP) does not excuse a school from completing a behavioral threat assessment, which should be a collaborative process in conjunction with any IEP requirements. For example, an IEP for a child who has difficulty expressing himself may have accommodations in place so that in times of crisis he goes to talk to a trusted person such as a counselor, not the SRO. If instead of the counselor the SRO interviews the child during that time of crisis, the IEP may have been violated, and the child's behavior may escalate.¹¹

¹¹ Additional information can be found in the [National Association of School Psychologists' Report on Protecting Students' Rights in Behavioral Threat Assessment Management](#).

Records Retention and Sharing

The completed behavioral threat assessment form and associated corroborating documents should be maintained as a part of the student of concern's education record. Should a student transfer to another school district, there is no legal requirement to prevent the receiving school district from viewing these records. For example, if a student transfers to another school district to avoid expulsion, it does not mean that this student no longer poses a risk. Information regarding the student's threatening/concerning behavior and actions taken to mitigate such behaviors should be shared with the receiving school district as soon as possible. ***If an expulsion process has been initiated as a result of prohibited/concerning behavior, regardless of whether a student transfers to another school district, the expulsion process should be completed.***

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Added March 7, 2023

2630 – Crisis Management and Response Plan

The School's crisis management and response plan has been created in consultation with local community emergency response agencies and other appropriate individuals and groups that would likely be involved in the event of a school district emergency. It is designed so that each building administrator can tailor a building-specific crisis management plan to meet that building's specific situation and needs.

Schools are safe environments, but violence or any other type of crisis and/or crisis situation can happen anytime and anywhere. The School's Crisis Management and Response Plan is focused around three central foundational principles, Readiness, Response and Recovery.

The READINESS component includes:

- Analyzing our facilities for safety, security, equipment capabilities and other areas of operational and functional ability.
- Research and preplanning to determine the most probable scenarios that could adversely affect our staff and the community we serve.
- Training for our staff members so they can act as a team to mitigate a threat or minimize the impact to our children when a natural or man-made disaster occurs.
- Constant vigilance to make necessary changes when protocols or actions need to be modified.

The RESPONSE component includes:

- Recognizing a crisis or disaster early and communicating initial actions to co-workers, students and parents.
- Early notification of public safety officials when appropriate (911, Police, Fire, Rescue, Sheriff)
- Staff implementing actions that follow a predetermined plan to mitigate a threat or minimize the impact to our students when a natural or man-made disaster occurs.
- Staff working seamlessly with public safety officers when they arrive to maximize positive outcomes.

The RECOVERY component includes:

- Having predetermined programs in place to provide counseling services to staff, students and parents when a situation and/or need arises.
- Having the ability to continue operations or the capacity to restore basic services quickly and effectively.
- Maintaining a fiscally sound and financially conservative business model so the School has a "rainy-day" funding mechanism.
- Utilize "hot-wash" methodology (immediate review of the response to the situation), so we can continue to reinforce the readiness process.

A School Safety/Emergency Management Plan is developed to assist the School with preparation, communication and education, and includes an Ohio School Behavioral Threat Assessment Policy and Protocol (Policy 2620.1). This Plan is available to all staff members at each facility and provides a step-by-step procedure to follow for most of the predictable scenarios the School may experience.

Threat Assessment Team

By August 2023, each school building serving grades six through twelve shall be served by a threat assessment team. Each team shall be multidisciplinary, when possible, and may include school administrators, mental health professionals, school resource officers, and other necessary personnel.

Upon appointment and once every three years thereafter, or otherwise as permitted by Ohio law (3313.669) team members will complete an evidence-based, threat assessment training program from an approved list maintained by the Ohio Department of Public Safety.

Each School building shall include proof of completion of an approved training program by each team member in the building's emergency management plan submission to the Director of Public Safety (see Policy 2620), including the Ohio School Behavioral Threat Assessment Policy and Protocol (Policy 2620.1).

1. Assess the situation.
2. Call 911 or other crisis numbers as appropriate.
3. Secure the building for the safety of students and staff. Take initial actions as provided by the School Safety/Emergency Management Plan.
4. Notify the Superintendent and other appropriate personnel.
5. Refer media inquiries to the designated Crisis Media Management representative.
6. Notify families of the students and/or people involved.
7. Mobilize the building and/or School Crisis Management Team.
8. Keep a log of all activity.

Communications

All staff shall be given a copy of the School's School Safety/Emergency Management Plan, including all building-specific plans, as well as periodic training on plan implementation. Students and parents shall be made aware of the school district's crisis management policy and relevant tailored crisis management plans for each school building. Each school district's building-specific crisis management plan shall set forth how students and parents are made aware of the district and school-specific plans. Students shall receive specific instruction on plan implementation and shall participate in the required number of drills and practice sessions throughout the school year.

Internal Direct Response to Crisis Situations – Communications are established between all sites of the School and the appropriate public safety agencies. There are several public safety entities which may be involved, depending on the location of the situations or event. These agencies are:

- Local Police and Fire Departments
- County Sherriff and Crisis Management
- Ohio State Patrol
- Ambulance Services
- Local Hospitals and Local and County Health Department
- Poison Control Center
- County and State Emergency Management Agencies
- Local Public Works Departments and Utility Companies

External Direct Response – School personnel will communicate information and procedures to the public in the event of a crisis situation involving the School. Things that may be communicated include:

- Crisis situation information
- Dismissal procedures
- Family unification procedures

If school must be canceled or dismissed early due to weather conditions or other emergencies, an announcement will be made through School website, area television and radio stations, and other media sources (direct parent messaging, twitter, blogs, etc.).

Warning and Notification Systems

1. Maintenance of the School Warning System. The School shall maintain a warning system designed to inform students, parents, staff, and visitors of a crisis or emergency. This system shall be maintained on a regular basis.
2. Notification of the District Warning System to Staff, Parents, and Students. The School shall inform students, parents, and employees of the warning system and the means by which the system is used to identify a specific crisis or emergency situation.

Legal Immunity

The Governing Authority, its members and employees, including a school threat assessment team member, are not liable in damages in a civil action for injury, death, or loss to person or property allegedly arising from a team member's execution of duties related to school safety unless the team member's act or omission constitutes willful or wanton misconduct. This is in addition to any other immunity or defense that the Governing Authority, its members and employees, including a threat assessment team member, may be entitled to under Ohio law.

Revised March 7, 2023.

Ohio: R.C. 3313.669

Cross Reference: Policy No. **2620**, School Safety/Emergency Management Plan; Policy No. **2640**, Emergency Evacuation Drills; Policy No. **6220**, Crisis Media Management.

2640 – Emergency Evacuation Drills

Ohio law mandates that certain emergency drills are conducted throughout the school year. Drills ensure that all students, Staff members, and administrators are prepared in the case of a fire, tornado, or other emergency. The Head Administrator shall be responsible for planning, conducting, and reporting emergency evacuation drills in accordance with the respective requirements imposed in this Policy and any other requirements imposed by law.

Fire Drills

Frequency. Fire drills shall be conducted nine (9) times per school year. One fire drill shall be conducted each month, unless a safety drill is also conducted in that month, in which case the fire drill may be rescheduled. The first fire drill must be conducted within the first ten (10) days of school. The first fire drill may be announced ahead of time.

Procedures. All fire drills/alarms shall be treated seriously. When the fire alarm is sounded, all students, Staff, employees, and visitors shall exit the School in accordance with the fire evacuation plan established and implemented by the Head Administrator. Staff members shall take attendance at the designated meeting spot. Any unaccounted-for students shall be immediately reported to the Head Administrator. Upon receiving the “all clear” sign, students and Staff members can re-enter the building. Upon returning to the classroom or other work site, the students shall again be accounted for by the appropriate Staff member.

Fire Extinguishers. Twice each year, the Head Administrator shall check all fire extinguishers located in the School to assure that they are in working order. Upon making such assurance, the Head Administrator shall date and initial the card attached to each fire extinguisher.

Records. After each fire drill, the following information shall be recorded: identity of the person conducting the drill; date and time of the drill; notification method used; Staff members participating in the drill; number of occupants evacuated; special conditions; problems encountered; weather conditions; and time required to accomplish complete evacuation. A form developed by the State Fire Marshall designated for this purpose is included as Form No. **2640.1**, Record of Emergency Evacuation Drills. Such records shall be submitted to the State Fire Marshall twice per year.

Tornado Drills

Frequency. Tornado drills shall be conducted at least once each month whenever School is in session during the tornado season. Tornado season extends from the first day of April to the last day of July.

Initial Tornado Drill Notice. The first tornado drill shall be announced ahead of time so Staff Members may share Tornado procedure instructions.

Procedures. All tornado drills shall be treated seriously. When the tornado siren is sounded, all students, Staff, employees, and visitors shall leave their current classroom and, in accordance with policies and procedures established by the Head Administrator, shall gather in the established tornado

drill area, where attendance shall be taken by the responsible Staff members. Any unaccounted-for students shall be immediately reported to the Head Administrator. Upon completing the drill, Staff members can then return with their students to their classrooms. The students shall again be accounted for by the appropriate Staff member.

Records. After each tornado drill, the following information must be recorded: the date and time of the tornado drill, the number of individuals evacuated to the tornado drill area, and the weather conditions. A form developed by the State Fire Marshall designated for this purpose is included as Form No. **2640.1**, Record of Emergency Evacuation Drills. Such records shall be submitted to the State Fire Marshall twice per year.

Safety Drills

A safety drill must be performed on or before December 1 of each school year. The safety drill shall be performed in accordance with rules and procedures established by the Head Administrator. The date, time, and length of each safety drill shall be reported to the State Fire Marshall twice per year. A form developed by the State Fire Marshall designated for this purpose is included as Form No. **2640.1** (Record of Emergency Evacuation Drills).

Ohio: R.C. 3737.73, OAC 1301:7-7-04.

Cross Reference: Policy No. **2620**, School Safety/Emergency Management Plan; Policy No. **2630**, Crisis Management and Response Plan; Policy No. **6220**, Crisis Media Management.

2640.1 – Record of Emergency Evacuation Drills

Adopted from the Ohio Department of Commerce Division of State Fire Marshal.

The Record of Emergency Evacuation Drills may be accessed by visiting:

<https://saferschools.ohio.gov/sites/default/files/HB178-TB15-001%20-%20Instruction%20Sheet-Log%20-%20final.pdf>

The PDF of the Form may be accessed by visiting

https://www.com.ohio.gov/documents/fire_RecordofEmergencyEvacuationDrills.pdf

2650 – Bomb Threats

The Governing Authority recognizes that bomb threats represent a danger to the safety and welfare of students and Staff members and to the integrity of School property. All bomb threats received by the School shall be considered valid and this Policy must be followed. All Staff members have a responsibility to understand and observe this policy.

Bomb threats received by telephone. When a Staff member or other employee receives a bomb threat by telephone, the Staff member shall treat the threat as valid. The Staff member shall proceed as follows.

- Ask if the caller would speak with the Head Administrator. If the caller refuses, stay on the line, do not antagonize the caller. Engage the caller to learn as much information as possible.
- Take written notes about what is said. Use Form No. **2650.1**, Bomb Threat Call Checklist, if possible.
- Try to get a response to the following questions:
 - Where is the bomb?
 - When is the bomb going to go off?
 - What type of bomb is it?
 - What does it look like?
 - Did you place the bomb & why?
 - What is your name and call back number?
 - Where are you?
- Signal a nearby employee for assistance. If this is not possible, use another phone to call for assistance.
- Keep the caller on the line as long as possible. This will increase the chances the police can track the call's origins.
- Contact the Head Administrator as quickly as possible.

Bomb Threats by Letter or Message. Bomb Threats received by letter, message, e-mail, or otherwise shall be immediately forwarded to the Head Administrator.

Suspicious Items. Suspicious items that could be a bomb shall be reported immediately to the Head Administrator. Do not attempt to move or touch the suspicious item.

Evacuation

Upon receiving a bomb threat, the Head Administrator has the authority to decide whether the School should be evacuated. The School shall vacate pursuant to the plan established in Policy No. **2620**, School Safety/Emergency Management Plan.

For safety purposes, all interior doors, windows, skylights, etc. shall be left open upon evacuating.

When evacuating, Staff members shall mentally note all suspicious items in the hallways but shall not attempt to touch or move any suspicious items. Upon reaching a safe location, report the location of the suspicious item to the Head Administrator or Police.

Staff Members shall account for all students and report any missing students to the Head Administrator and emergency responders.

Review of Policy

This policy should be reviewed on a regular basis and following every evacuation of the School.

Cross Reference: Policy No. **2620**, School Safety/Emergency Management Plan; Policy No. **2630**, Crisis Management and Response Plan; Policy No. **2640**, Emergency Evacuation Drills; Policy No. **2660**, Weapons; Policy No. **4490** Search and Seizure; Policy No. **6220**, Crisis Media Management; Form No. **2650.1**, Bomb Threat Call Checklist.

2650.1 – Bomb Threat Call Checklist**Instructions:**

Be courteous, listen, and do not antagonize the caller. Do not hang up. Signal to someone nearby to contact the Head Administrator and call 9-1-1. Gather as much information as possible. If the building is evacuated, bring this form with you.

Date: ___/___/___ **Call Began:** _____ am / pm **Call Ended:** _____ am/ pm

Callers Exact Words: _____

Questions to Ask Caller:

- ▶ When is the bomb going to explode? _____
- ▶ Where is the bomb now? _____
- ▶ What type of bomb is it? _____
- ▶ What does it look like? _____
- ▶ Did you place the bomb & why? _____
- ▶ What is your name and call back number? _____
- ▶ Where are you? _____

Try to Determine the Following:

Caller Is: ___Male___Female ___Adult___Juvenile___Child (age/years):_____

Voice: ___Loud___Soft___Low___High___Raspy___Intoxicated

___Familiar Voice: _____

___Other (describe): _____

Accent: ___Local

___Regional (describe): _____

___Foreign (country/region): _____

Speech: ___Fast___Slow___Distinct___Distorted___Stutter___Nasal

___Excellent___Good___Fair___Poor___Foul___List

___Other (describe): _____

Manner: ___Calm___Angry___Rational___Irrational___Coherent___Incoherent

___Deliberate___Emotional___Righteous___Other (describe): _____

Background Noises: ___Traffic___Trains___Planes___Voices___Music

___Machines___Quiet___Other (describe): _____

To be Completed After Phone Call Ends:

Your Name: _____ Position: _____

Location Where Phone Call was Answered: _____

2660 – Weapons Policy

The School prohibits all weapons in the School Safety Zone. The School Safety Zone is defined as all school buildings, school grounds, school buses, school activities, and school-sponsored events. This policy applies to all persons, whether or not they are affiliated with the School. The only persons excluded from this policy are state and/or federal officers, agents, or employees who are authorized by the Governing Authority to carry deadly weapons and are acting within the scope of their duties.

“Weapons” is defined broadly to include all definitions of weapons under local, state or federal law.

Objects Indistinguishable from Weapons. This policy extends to an individual that possesses an object in a School Safety Zone where the object is (1) indistinguishable from a firearm, whether or not the object is capable of being fired and (2) the person indicates that the person possesses the object and that it is a firearm, or the person knowingly displays or brandishes the object and indicates that it is a firearm. This policy does not apply if the indistinguishable object is used for legitimate, approved purposes (e.g., ceremonial activities, plays, dramatic presentations, ROTC activities) or the weapon is used under the direction of an authorized school official.

Exceptions to General Policy. This policy does not apply to individuals with either a valid license or temporary emergency license to carry a weapon in two limited situations. First, the policy does not apply if the individual is a driver or passenger in a motor vehicle, the individual does not enter into a school building or onto school premises, is not at a school activity, and does not realize he/she is in a prohibited area. Second, the policy does not apply if the individual is in the school safety zone while immediately in the process of picking up or dropping off a child and the gun is handled according to Ohio R.C. 2923.16.

Required Posting. To enforce this policy, the School shall post a sign banning all weapons on the School’s property. See Form No. **2660.1**, Notice Prohibiting Guns.

Enforcement

Offenders of the policy may be subject to disciplinary action up to and including discharge and criminal prosecution, as provided for in Ohio R.C. 2923.122.

Any student who is determined to have brought a weapon shall be expelled for not less than one year, subject to reduction of this term by the Head Administrator on a case-by-case basis.

The School may conduct a search for a weapon in accordance with Policy No. **4490**, Search and Seizure.

Federal: 20 U.S.C. 7151.

Ohio: R.C. 2923.12, R.C. 2923.122, R.C. 2923.16.

Cross-Reference: Policy No. **2670**, Public Conduct on School Property, Policy No. **4490**, Search and Seizure; Form No. **2660.1**, Notice Prohibiting Guns.

2660.1 – Notice Prohibiting Weapons

NOTICE

IT IS ILLEGAL TO CARRY A FIREARM, DEADLY WEAPON, OR DANGEROUS ORDNANCE ANYWHERE ON THESE PREMISES

Under the Ohio Revised Code, no person shall knowingly possess, have under the person's control, convey or attempt to convey a firearm, deadly weapon, or dangerous ordinance in the School Safety Zone.

POSTED PURSUANT TO O.R.C. 2923.12; O.R.C. 2923.122; O.R.C. 2923.16.

2670 – Public Conduct on School Property

All persons on school grounds will be expected to abide by applicable laws, local ordinances, School policies and building regulations.

No person on school property will assault, strike, threaten, menace or use improper, indecent or obscene language towards any student, Staff member, or other employee.

No person will disrupt, disturb or interfere with the teaching of any class of students, or any other activity conducted in a school building or upon the campus or grounds.

Whoever violates the above policy and building regulations will be asked to leave the property by the Head Administrator. Should that person refuse, the police may be called. The School will cooperate in any prosecution pursuant to the criminal law of the State of Ohio and local ordinances.

Cross Reference: Policy No. **2610**, Building and Grounds Security; Policy No. **2660**, Weapons; Policy No. **2680**, Public Conduct on School Property; Policy No. **4460**, Assembling & Disorder.

2680 – Transportation

Transportation of students is the responsibility of each student's public school district of residence, to the extent required by state law, unless the proposal for the School as approved by the Ohio STEM Committee provides otherwise. The School shall establish start and end times for the school year by April 1st of the prior school year and shall provide those times to its students' school district of residence. The school districts must use those start and end times to develop a transportation plan for the School's students whom the districts are required to transport within 60 days after receiving the information. If the School provides those times from April 2-July 1 of the prior school year, then the school districts of residence must attempt to provide a transportation plan to the School by August 1 of the school year. For any student who enrolls in the School after July 1, the districts of residence must develop a transportation plan within 14 business days after receiving a request for transportation services from the student's parent or guardian.

For students in grades K-8, the school district of residence is prohibited from transporting the School's students using mass transit vehicles unless the school district of residence enters into an agreement with School which is approved by both the school district of residence and the School.

For students in grades 9-12, if the school district of residence elects to transport the School's students using vehicles operated by a mass transit system, then the school district of residence must ensure that a student's route does not require more than one transfer.

The school districts of residence are required to transport the School's student to and from school each day the school is open for instruction, regardless of whether the school district of residence's buildings is similarly open.

The School may request from the resident school district, a list of its enrolled students' names and addresses for whom the resident school district is providing transportation.

ODE shall deduct a portion of the school districts of residence state transportation funding if ODE determined that the district has consistently, or for a prolonged period, been noncompliant with certain statutory obligations regarding student transportation.

Ohio law and regulations of the Department of Education shall govern any question not covered by this policy or the proposal approved by the Ohio STEM Committee.

The Governing Authority shall furnish transportation to all enrolled students in grades K-8 who live more than two miles from school, unless the proposal approved by the Ohio STEM Committee. A "payment in lieu" procedure applies for transportation which the community school has determined to be "impractical" in accordance with certain criteria set forth in state law. The School shall make a determination regarding whether to provide payment in lieu of transportation for a student not later than 30 calendar days prior to the first day of school. For students who enroll within the 30-day period or later, the School must make the determination within 14 calendar days of a student's enrollment.

Also, the head of school is authorized to make the determination but said authorization must be formalized at the next Governing Authority meeting. Additionally, the School must issue a letter to a student's parent or guardian and the State Board, providing a detailed description of the reasons why the payment in lieu determination was made. The parent or guardian of a student may authorize the School to act on the student's behalf for purposes of determining payment in lieu of transportation and any related mediation proceedings. The annual payment in lieu amount shall not be less than 50% but not more than the average cost of pupil transportation for the previous school year, as determined by ODE. The School may provide or arrange transportation for any other enrolled student who is not entitled to free transportation and may charge such student a fee up to the actual cost of the service. The Governing Authority shall provide or arrange transportation free of any charge for any disabled student enrolled in the School whose individualized education program developed under Chapter 3323. of the Revised Code specifies transportation as a related service.

The Governing Authority authorizes the installation and use of video recording devices in the school buses to assist the drivers in providing for the safety and well-being of the students while on a bus.

The School holds that busing is a privilege, not a right, which may be removed from any student who violates the rules of the district or who conducts himself/herself in a manner which is considered dangerous to persons or property or a threat to the safe operation of the school bus. Students may be suspended from the bus and not be suspended from school. It will be the parent's responsibility to transport during the suspension.

The Governing Authority shall report to the department of education the number of students transported or for whom transportation is arranged under this section in accordance with rules adopted by the state board of education.

The Board shall annually report the following information to the Ohio department of education:

- 1) The number of students enrolled in kindergarten through grade twelve in the School who are not receiving special education and related services pursuant to an individual education plan.
- 2) The number of students enrolled in grades kindergarten one through grade twelve in the School who are receiving special education and related services pursuant to an individual education plan.
- 3) The number of enrolled preschool handicapped students receiving special education services in a state-funded unit.
- 4) The School's base formula amount as defined in Ohio law.
- 5) The city, exempted village, or local school district in which the School is located.
- 6) The poverty-based assistance reduction factor that applies to the School for the school year.
- 7) The school district each student is entitled to attend pursuant to R.C. 3313.64-.65.
- 8) If any student does not attend the School on a full-time basis, the number of days enrolled per year and the percentage of the school day enrolled for each less-than-full-time student.
- 9) The number of limited-English proficient students enrolled in the community school.
- 10) The full-time equivalent number of students enrolled in career-technical education programs or classes described in divisions (A) and (B) of R.C. 3317.014 provided by the School.
- 11) The number of students receiving transportation services from the School.
- 12) The first and last day of the school year for the School.

- 13) The number of days and hours the school is in session and the total hours or days of learning opportunities offered to a student attending for the entire school year.
- 14) If the School offers all-day kindergarten.

R.C. 3326.20; R.C. 3327.01; OAC Ann 3301-83, et. seq.

2680.1 – General Transportation Rules

The driver shall use the established route and make stops only at points designated by the Governing Board or the administrator who is authorized to designate such stops. The Governing Board shall establish and document a routing plan for all routine routes. The driver shall operate the bus on the approved time schedule and shall wait for pupils if ahead of schedule.

Identified route hazards shall be documented and provided to school bus drivers whose routes are affected. Drivers should report any such regular pedestrian or vehicular concerns as the following: (1) construction sites; (2) areas of poor visibility; (3) restricted sight distances; (4) railroad crossings; and (5) other route hazards as noted by the driver.

All buses shall be kept clean on the inside and on the outside. Front and rear windows, lights and mirrors should be clean and all markings clearly visible. The school bus driver shall use the seat belt whenever the bus is in motion.

The Governing Board will equip all buses with emergency assistance cards which list three telephone numbers to call. The cards shall provide space for describing the location of the school bus and the type of emergency.

The following equipment may be installed in a school bus: broom, snow brush, ice scraper, and trash container. All equipment must be properly secured. Equipment such as music instruments, athletic uniforms, etc., which cannot be held by passengers in their seats, shall be stored in the rear of the bus; however, the placement of such items in the rear of the bus shall not displace students. When it is necessary to transport such equipment concurrently with pupils, space shall be provided to comply with this rule without having standees in the bus. Equipment required in the assistance of preschool and special needs children shall be safely and properly secured. A clear aisle to the exit door must be maintained at all times.

Medically necessary oxygen may be transported provided it is properly secured. The oxygen must be housed in portable units less than fifteen pounds total weight each. Guidelines for transporting oxygen shall comply with rules adopted by the Ohio department of education.

The school bus driver shall operate the bus for not more than ten hours in any one twenty-four-hour period. Operation means on-road driving. Layover time does not count as operating time.

Except in cases of extreme-emergency, cellular telephones, including hands-free and wireless devices, or other portable communication devices shall not be used by the driver while the school bus is in motion or while the driver is supervising the loading or unloading of students.

Buses shall not be fueled while the engine is running and/or with students on board. Smoking shall not be permitted while fueling.

Districts shall adopt engine idling time policies that minimize the amount of time diesel engines shall be left idling. Diesel engine idling in excess of five minutes in school loading zones shall not be permitted unless the operation of a wheelchair lift is required.

The use of alcohol, tobacco, and non-prescribed drugs is prohibited on the school bus. Firearms, ammunition, weapons, explosives or other dangerous materials or objects are also prohibited. Animals are prohibited with the exception of animals pre-approved by the principal or designee for special needs assistance in accordance with the law.

Ohio: R.C. 3301.07; 3327.01; 4511.76

A.C. 3301-83-20

2680.2 – School Bus Inspections

The Governing Board is responsible for the pre-inspection, repair, and preparation of each school bus it owns, operates, or leases. All school buses owned, operated, or leased by the Governing Board must be presented to the Ohio state highway patrol for the annual safety inspection.

Daily inspection

It is the responsibility of each school bus driver to complete and document a daily pre-trip inspection of the school bus before transporting students. The Governing Board may designate another qualified individual to complete and record portions of the stationary inspection in lieu of the school bus driver. The Governing Board will provide each driver with all inspection forms for reporting purposes, which include the following:

1. A stationary inspection
 - a. Pre-starting inspection:
 - i. Observe the bus for evidence of oil, fuel, or coolant leaks and vandalism.
 - ii. Raise the hood and check the safety latch or hinges, then check oil and water - check belts, hoses and wiring for frayed, cracked and/or deteriorated conditions.
 - b. Walk around inspection: Place the transmission in neutral and set the parking brake. Start the engine and check the following:
 - i. Tires: underinflated, flat, excessive wear or damaged.
 - ii. Wheels: loose or missing nuts, excessive corrosion, cracks or other damage, and sanders if installed, and splash guards.
 - iii. Battery compartment.
 - iv. Suspension system checks for damage.
 - v. Brake system secure - no damage.
 - vi. Drive shaft secure - no damage.
 - vii. Frame of bus - check for cracks.
 - viii. Fuel tank secure - no leaks, and fuel cage secure - no damage.
 - ix. Fluid leaks: evidence of oil on wheels and tires.
 - x. All school bus windows should be clean.
 - xi. All outside mirrors: clean and mounted securely.
 - xii. Warning systems: headlights, backup lights, clearance and marker lights, all signals and signs, reflectors, turn signals, stop lights and warning flashers clean and working properly.
 - xiii. Exhaust system: check for sagging exhaust pipes, short and leaky tailpipes and defective mufflers.
 - xiv. Exits: check service and emergency doors for ease of operation.
 - xv. Check wheelchair lift operation, if installed.
 - c. Inside safety check:
 - i. Check driver's seat and seat belt adjustments.
 - ii. With the engine running check or inspect the following instruments and controls:
 - (a) Air pressure gauge or hydraulic brake warning lights.
 - (b) Oil pressure gauge.
 - (c) Warning lights, if installed:
 - i. Oil pressure warning light.

- ii. Service brake warning light.
 - iii. Alternator/generator warning light.
 - iv. Amp meter and/or voltmeter.
 - v. Water temperature gauge or warning light.
- (d) Dome lights.
- (e) Horn.
- (f) Heaters, fans and defrosters.
- (g) Mirrors properly adjusted and sunshade mounted and not broken.
- (h) Wipers and washers.
- (i) Indicator lights.
 - i. Headlight high beam.
 - ii. Panel lights.
 - iii. Left and right turn signal indicators.
 - iv. Hazard indicators.
 - v. Amber warning light.
 - vi. Red warning light.
 - vii. Red over-ride switch.
 - viii. Strobe indicator light.
- (j) Brake system for leaks
 - i. Storage tanks - 2 psi, one minute.
 - ii. Service brake - 3 psi, one minute.
 - iii. Low air pressure light and buzzer - 60 psi.
 - iv. Emergency brake - 20-40 psi.
 - v. Hydraulic - pump three times for five seconds.
- (k) Check passenger seats, frames, emergency exits, windows, and adaptive equipment required for the transportation of pre-school and special needs students.
- (l) Check emergency equipment: fuses, first-aid kit, fire extinguisher and emergency reflectors.

2. An operation inspection

A planned road pre-check when driving between storage and first pupil pickup enables the driver to evaluate the steering, suspension, clutch, transmission, driveline, engine and brakes. The following items shall be checked and, if found in need of repair, a written report shall be submitted to the Governing Authority:

- a. Parking brake: check by slowly engaging the drive train while the parking brake is on. (In air brake systems, the parking brake will remain applied if there is a partial or complete air pressure loss in the service brakes.)
- b. Transmission operation: an automatic transmission should not slip, and a manual transmission should allow for easy and smooth gear changes throughout the entire shifting range.
- c. Clutch: the clutch should engage easily and smoothly without jerking, slipping excessively or "chattering." A properly adjusted clutch should have some "free play" when the pedal is fully released.

- d. Service brakes: test at low speeds and bring the bus to a complete stop. The bus should stop in a straight line without skidding, swerving or pulling to one side.
- e. Engine: listen for unusual engine noises.
- f. Steering: check for any unusual handling characteristics.
- g. Suspension: check for any unusual ride or handling characteristics.

3. A post trip check

At the conclusion of each route or trip, the driver should ensure all passengers have left the bus by visually inspecting each seat position.

Ohio: R.C. 3301.07; 4511.76

A.C. 3301-83-11

2680.3 – School Bus Emergency and Evacuation Procedures

Emergencies

The Governing Board has developed this policy in conjunction with all those whose services would be required in the event of emergencies. The transportation director/supervisor, school administrators, teachers, drivers, maintenance and service personnel, and students shall be provided instruction in the procedures to be followed in the event of:

Accident

(The procedure shall describe how to protect the accident scene; evacuate and control students; evaluate the need for medical assistance; notify the responsible law enforcement agency, school officials and emergency services; collect and record data essential to the preparation of required reports; and communicate with parents and/or guardians.)

Medical emergencies of pupils

(Procedures for handling situations in the event of illness, injury, or disability of a student shall be included in the policy.)

Disability of driver

(Procedures for handling situations in the event of illness, injury, or disability of the bus driver shall be included in the policy.)

School bus failure

(The policy shall describe procedures for securing the bus, disposing of and controlling passengers, notifying school officials, securing alternate equipment, and repairing and recovering the disabled school bus.)

Inclement weather conditions

(The pre-emergency policy shall provide instruction as to school closings, delayed take-ups and/or early dismissals.)

Tornado

(The policy shall provide procedures for drivers and students in the event of tornado sightings and/or warnings.)

Dangerous and/or threatening situations

(The policy should provide procedures for drivers and students in the event of a dangerous or threatening situation such as weapons, assaults, unauthorized attempted boardings, and impeding the movement of the bus.)

No school bus driver shall transport students unless the driver has received training in the above procedures.

Evacuation

The Chief Academic Officer or designee shall organize and conduct three emergency exit drills for all students who ride school buses to and from school. Each of the following three emergency procedures shall be conducted at least once annually: (1) Everyone exits through the front entrance door; (2) Everyone exits through the rear emergency door; and (3) Front half exits through the front door and rear half exits through the rear door.

All drills shall be arranged and scheduled by the transportation director/supervisor in cooperation with building principals. The drills shall be supervised by at least one staff person other than the driver assigned to the route.

Drills shall be held on school property when possible and not on the bus route.

The driver shall stay in the bus during evacuation drills. The parking brake must be set, ignition turned off, and transmission in gear or park.

Children shall not take lunch boxes, books, etc., when they leave the bus.

Students shall assemble at a distance of at least one hundred feet from the bus in an “emergency drill” and remain there until given further directions.

Emergency evacuation drills of preschool and special needs children may require modification of these procedures as required by law and shall be communicated to the driver.

Ohio: R.C. 4511.76

A.C. 3313-83-15

2681 – Transportation Code of Conduct

Transportation is a privilege and should not be abused. Safe, efficient transportation service requires teamwork from parents, students, bus drivers, school staff members and administrators. Without such teamwork, there exists an increased risk of injury or death.

Bus stops:

- A bus stop is where students wait for the bus; the bus does not wait for the students.
- Students should be at their bus stops, ready to load, not waiting in vehicles, 5 minutes before pick-up time and waiting 10 minutes after the bus pick-up time for the bus. Buses will only pick up students standing at designated bus stops.
- Inclement weather, ice and snow, and traffic tie-ups can delay the bus arrival time at stops.
- Once the bus door is closed and the bus is in motion, the bus will not stop for students who are late.
- Parents are responsible for supervising students at bus stops.
- Students are picked up and returned to the same bus stop to ensure their safety.
- Parents should accompany kindergarten and first-grade students to the bus stop in the morning and meet them in the afternoon. If an adult does not meet the afternoon bus, students will be transported back to school.
- At the beginning of the school year, young students should wear name tags pinned to their clothing - with their name, address, phone number and school - to ensure they are dropped off at the correct location.
- Stops are established according to state laws and regulations and are approved by the School.
- We recommend you know your child's school, bus number and bus driver's name. For the safety of students on the bus, adults are not permitted to board the bus.

Bus conduct:

- Safety of students is the first concern of the driver. Students must obey driver's instructions at all times.
- Students will locate their seat and remain seated for the entire ride.
- State law prohibits any food or beverage being consumed on the bus at any time.
- Cell phone use on the bus is strictly prohibited.
- Pupil behavior that distracts the driver is a hazard and jeopardizes the safety and welfare of all passengers.
- To ensure that a student understands that bus rules have been violated, the bus driver will first issue a verbal warning to the misbehaving student.
- Continued misbehavior will be written on a School Bus Incident Report and given to the school principal. Schools will notify parents of a student's misconduct and disciplinary action.
- Misbehavior or irresponsible actions are sufficient reason to suspend transportation services to those students.
- If a student's transportation is suspended, the student is still expected to attend school.
- Buses may return to the school if students cannot control their behavior.

2690 – Anonymous Tip Line

The Governing Authority shall establish an anonymous reporting program by registering with the SaferOH tip line operated by the Ohio Department of Public Safety

(<https://ohioschoolsafetycenter.ohio.gov/pre-k-12-schools/safer-ohio-school-tip-line>).

The tip line will:

- (1) Operate twenty-four hours per day, seven days per week;
- (2) Forward reported information to and coordinate with the appropriate school threat assessment teams and law enforcement and public safety agencies required under the school's emergency management plan developed under R.C. 5502.262 (see Policy 2620);
- (3) Be promoted within the School community to inform students about the reporting program and its reporting methods;
- (4) Comply with state and federal law regarding public records and confidential student information.

The Governing Authority will submit the following data to ODE, in a manner prescribed by the department, and the Ohio Department of Public Safety at the end of the first full school year of the School's participation in anonymous reporting program, and at the end of each school year thereafter, disaggregated by school:

- (1) The number and type of disciplinary actions taken in the previous school year as a result of anonymous reports;
- (2) The number and type of mental wellness referrals as a result of anonymous reports;
- (3) The race and gender of the students subject to the disciplinary actions and mental wellness referrals as a result of anonymous reports;
- (4) Any other information the Departments of Education and/or Public Safety determines necessary.

Any data collected pursuant to this policy or reported to the Departments of Education or Public Safety are security records and are not public records under Ohio law (R.C. 149.433).

Ohio: R.C. 3313.6610; 149.433; 3319.321; 5502.262

Federal: 20 U.S.C. 1232g

Section III: Instructional Duties and Obligations

3100 Federal Program Compliance

Policy No. 3110

3110 – Equal Educational Opportunity

The School shall provide all students with equal educational opportunities. The School shall not discriminate based on race, color, creed, religion, sex, handicap, economic status, national origin, ancestry, or any other legally protected status in its Policies and programs.

Cross Reference: Policy No. **3120**, Title IX Compliance; Policy No. **3710**, Rights of Individuals with Disabilities; Policy No. **3720**, Section 504 of the Rehabilitation Act of 1973.

3120 – Title IX Compliance and Grievance Procedure

Title IX of the Education Amendments Act of 1972 provides:

No persons in the United States shall on the basis of sex be excluded from participation in, be denied the benefits of, or be subjected to discrimination under any educational program or activity receiving financial assistance.

Title IX Compliance

The School shall comply with this law and always accompanying regulations and does not discriminate on the basis of sex (including sexual orientation or gender identity) in its education programs, activities, or employment. To ensure compliance and resolve any complaints, the Governing Authority has designated the following individual as the School's Title IX Coordinator:

Director of Students Services
135 East Church Street
Xenia, OH 45385
937-736-2102
TitleIX@communitysteam.com

Inquiries relating to Title IX may be referred to the School's Title IX coordinator or the federal Office for Civil Rights, or both.

Any person may report sex discrimination, including sexual harassment, in person, by mail, by telephone, or by e-mail, using the contact information listed for the Title IX Coordinator above, or by any other means that results in the Title IX Coordinator receiving the person's verbal or written report.

The Title IX Coordinator shall have full authority to coordinate compliance with the law, including responding to inquiries, investigating any alleged violations, and implementing the School's Grievance Procedure found in Form No. **3120.1**, Title IX Grievance Procedure.

Definitions

"Sexual harassment" means conduct on the basis of sex that satisfies one or more of the following:

- (1) An employee of the School conditioning the provision of an aid, benefit, or service of the School on an individual's participation in unwelcome sexual conduct;
- (2) Unwelcome conduct determined by a reasonable person to be so severe, pervasive, and objectively offensive that it effectively denies a person equal access to the School's education program or activity; or
- (3) "Sexual assault," "dating violence," "domestic violence," or "stalking" as each term is defined in federal law:
 - A. "Sexual assault" means any sexual act directed against another person, without the consent of the victim, including instances where the victim is incapable of giving consent. Sexual assault includes rape, fondling, incest, and statutory rape.

- i. *Rape* is penetration, no matter how slight, of the vagina or anus with any body part or object, or oral penetration by a sex organ of another person, without the consent of the victim.
 - ii. *Fondling* is the touching of the private body parts of another person for the purpose of sexual gratification, without the consent of the victim, including instances where the victim is incapable of giving consent because of his/her age or because of his/her temporary or permanent mental incapacity.
 - iii. *Incest* is sexual intercourse between persons who are related to each other within the degrees wherein marriage is prohibited by law.
 - iv. *Statutory Rape* is sexual intercourse with a person who is under the statutory age of consent.
- b. “Domestic violence” includes felony or misdemeanor crimes of violence committed by:
 - A current or former spouse or intimate partner of the victim;
 - A person with whom the victim shares a child in common;
 - A person who is cohabitating with or has cohabitated with the victim as a spouse or intimate partner;
 - A person similarly situated to a spouse of the victim under the domestic or family violence laws of the jurisdiction in which the crime occurred; or
 - Any other person against an adult or youth victim who is protected from that person’s acts under the domestic or family violence laws of the jurisdiction in which the crime occurred.
- c. “Dating violence” means violence committed by a person who is or has been in a social relationship of a romantic or intimate nature with the victim. The existence of such a relationship shall be determined based on consideration of the length of the relationship, the type of relationship, and the frequency of interaction between the persons involved in the relationship.
- d. “Stalking” means engaging in a course of conduct directed at a specific person that would cause a reasonable person to (1) fear for the person’s safety or the safety of others or (2) suffer substantial emotional distress.

“Unwelcome conduct” may include, but is not limited to, unwelcome sexual advances, requests for sexual favors, and other verbal (e.g., slurs, jokes, name-calling) or physical harassment of a sexual nature. It can also include offensive remarks about a person's sex (including sexual orientation or gender identity).

“Complainant” means an individual who is alleged to be the victim of conduct that could constitute sexual harassment.

“Respondent” means an individual who has been reported to be the perpetrator of conduct that could constitute sexual harassment.

“Formal complaint” means a document filed by a complainant or signed by the Title IX Coordinator alleging sexual harassment against a respondent and requesting that the School investigate the allegation of sexual harassment. At the time of filing a formal complaint with the School, a complainant

must be participating in or attempting to participate in the School's education program or activity. "Document filed by a complainant" means a document or electronic submission (such as by electronic mail or through an online portal that the School provides for this purpose) that contains the complainant's physical or digital signature, or otherwise indicates that the complainant is the person filing the formal complaint. Where the Title IX Coordinator signs a formal complaint, the Title IX Coordinator is not a complainant or otherwise a party to the formal complaint and must not have a conflict of interest or bias for or against complainants or respondents generally or an individual complainant or respondent.

"Supportive measures" means non-disciplinary, non-punitive individualized services offered as appropriate, as reasonably available, and without fee or charge to the complainant or the respondent before or after the filing of a formal complaint or where no formal complaint has been filed. Such measures are designed to restore or preserve equal access to the School's education program or activity without unreasonably burdening the other party, including measures designed to protect the safety of all parties or the School's educational environment, or deter sexual harassment. The Title IX Coordinator is responsible for coordinating the effective implementation of supportive measures. Supportive measures may include:

- (1) counseling;
- (2) extensions of deadlines or other course-related adjustments;
- (3) modifications of work or class schedules;
- (4) campus escort services;
- (5) mutual restrictions on contact between the parties;
- (6) changes in work locations;
- (7) leaves of absence;
- (8) increased security and monitoring of certain areas of the campus; and
- (9) other similar measures.

"Education Program or Activity" includes locations, events, and circumstances over which the Governing Authority exercises substantial control over both the respondent and the context in which the sexual harassment occurs. It includes admission/enrollment.

"Eligible Student" means a student who has reached eighteen (18) years of age or is attending an institution of postsecondary education.

"Day(s)," unless expressly stated otherwise, means business day(s) (i.e., a day that the Governing Authority's office is open, and employees are working).

"Actual Knowledge" means notice of sexual harassment or allegations of sexual harassment to the Title IX Coordinator, any School official who has authority to institute corrective measures on behalf of the School, or any employee of the Governing Authority. The mere ability or obligation to report sexual harassment or to inform a student about how to report sexual harassment, or having been trained to do so, does not qualify an individual as one who has authority to institute corrective measures on behalf of the School. "Notice" includes, but is not limited to, a report of sexual harassment to the Title IX

Coordinator. This standard is not met when the only School official with actual knowledge is the respondent.

Emergency Removal

Notwithstanding any other provision of this policy, the School may remove a respondent from an education program or activity on an emergency basis, if, following the completion of an individualized safety and risk analysis, the School determines that an immediate threat to the physical health or safety of any student or other individual arising from the allegations of sexual harassment justifies removal, and provides the respondent with notice and an opportunity to challenge the decision immediately following the removal.

The School's right to impose an emergency removal under these circumstances may not modify any rights under the Individuals with Disabilities Education Act, Section 504 of the Rehabilitation Act of 1973, or the Americans with Disabilities Act.

Training

The Title IX Coordinator, investigators, decision makers, and any person who facilitates an informal resolution process shall receive training on:

1. the definition of sexual harassment under federal Title IX regulations;
2. the scope of the School's education program or activity;
3. how to conduct an investigation and grievance process including hearings, appeals, and informal resolution processes, as applicable; and
4. how to serve impartially, including by avoiding prejudgment of the facts at issue, conflicts of interest, and bias.

Decision makers at any stage of the grievance process must receive training on any technology to be used at a live hearing (if conducted) and on issues of relevance of questions and evidence, including when questions and evidence about the complainant's sexual predisposition or prior sexual behavior are not relevant.

Anyone conducting investigations under Title IX must also receive training on issues of relevance to create an investigative report that fairly summarizes relevant evidence.

Any materials used to train Title IX Coordinators, investigators, decision makers, and any person who facilitates an informal resolution process must not rely on sex stereotypes and must promote impartial investigations and adjudications of formal complaints of sexual harassment.

Training materials will be posted on the School's website and maintained by the School for seven years after they were presented.

Records

For a period of seven years, the School shall retain the following records: (1) each sexual harassment investigation, including any determination regarding responsibility and any audio or audiovisual recording or transcript required (if a hearing is conducted), any disciplinary sanctions imposed on the respondent, and any remedies provided to the complainant; (2) any appeal and the result; (c) any

informal resolution and the result; and (4) all materials used to train Title IX Coordinators, investigators, decision makers, and any person who facilitates an informal resolution process.

The School shall both create and maintain for a period of seven years, records of any actions, including any supportive measures, taken in response to a report or formal complaint of sexual harassment. In each instance, the School must document the basis for its conclusion that its response was not deliberately indifferent to the report or formal complaint, and document that it has taken measures designed to restore or preserve equal access to the School's education program or activity. If the School does not provide a complainant with supportive measures, the School will document the reasons why such a response was not clearly unreasonable considering the known circumstances.

Confidentiality

Any supportive measures provided to the complainant or respondent will be kept confidential, to the extent that maintaining such confidentiality would not impair the ability of the School to provide supportive measures.

The School will keep confidential the identity of any individual who has made a report or complaint of sex discrimination, including any individual who has made a report or filed a formal complaint of sexual harassment, any complainant, any individual who has been reported to be the perpetrator of sex discrimination, any respondent, and any witness, except as may be permitted by FERPA, 20 U.S.C. 1232g, or related regulations, 34 CFR part 99, or as required by law, or to carry out the purposes of the Title IX regulations, including the conduct of any investigation, hearing, or judicial proceeding arising from the hearing. Complaints alleging retaliation may be filed according to the grievance procedures in Form No. **3120.1**, Title IX Grievance Procedure.

Retaliation

Retaliation against any individual for exercising Title IX rights will not be tolerated. The exercise of rights protected under the First Amendment does not constitute retaliation. Charging an individual with a code of conduct violation for making a materially false statement in bad faith in the course of a grievance proceeding under policy does not constitute retaliation, provided, however, that a determination regarding responsibility, alone, is not sufficient to conclude that any party made a materially false statement in bad faith.

Title IX Grievance Procedure

The School is committed to complying with Title IX. The School's response to allegations of sexual harassment will treat complainants and respondents equitably, including providing supportive measures to the complainant and respondent, as appropriate, and following this Grievance Process before imposition of any disciplinary sanctions or other actions that are not supportive measures against the respondent. The Title IX Coordinator, along with any investigator, decision maker, or any person designated to facilitate an informal resolution, shall not have a conflict of interest or bias for or against complainants or respondents generally or an individual complainant or respondent.

The following procedures have been developed to handle complaints dealing with Title IX programs, services, and staff members.

Step 1: Reporting Sexual Discrimination/Harassment

Any person who has a complaint of alleged sex discrimination shall attempt promptly to resolve the complaint by discussion with the Title IX Coordinator, either in person, by mail, by telephone, or by electronic mail, using the Title IX Coordinator's contact information listed above, or by any other means that results in the Title IX Coordinator receiving the person's verbal or written report.

Governing Authority employees are required, and Governing Authority members, students, parents, community members, and third parties are encouraged, to report allegations of sex discrimination or sexual harassment promptly to the/a Title IX Coordinator or to any School employee, who in turn will promptly notify the/a Title IX Coordinator.

Such a report may be made at any time (including during non-business hours), by using the telephone number or electronic mail address, or by mail to the office address listed for the Title IX Coordinator.

The Complainant shall describe the alleged discrimination in as much detail as possible. The Title IX Coordinator shall investigate the alleged discrimination and discuss the results of the investigation with the student or employee.

A student may file criminal charges simultaneously with filing a Title IX complaint. A student does not need to wait until the Title IX investigation is completed before filing a criminal complaint. Likewise, questions or complaints relating to Title IX may be filed with the U.S. Department of Education's Office for Civil Rights at any time.

Because the School is considered to have actual knowledge of sexual harassment or allegations of sexual harassment if any School employee has such knowledge, and because the School must take specific actions when it has notice of sexual harassment or allegations of sexual harassment, a School employee who has independent knowledge of or receives a report involving allegations of sex discrimination and/or sexual harassment must notify the/a Title IX Coordinator within two (2) days of receiving the report. The School employee must also comply with his/her mandatory reporting responsibilities pursuant to R.C. 2151.412, if applicable. If the School employee's knowledge is based on another individual bringing the information to the School employee's attention and the reporting individual submitted a written complaint to the School employee, the employee must provide the written complaint to the Title IX Coordinator.

When a report of sexual harassment is made, the Title IX Coordinator shall promptly (i.e., within two (2) days of the Title IX Coordinator's receipt of the report of sexual harassment) contact the complainant (including his/her parent/guardian if the complainant is under 18 years of age or under guardianship) to discuss the availability of supportive measures, consider the complainant's wishes with respect to supportive measures, inform the complainant of the availability of supportive measures with or without

the filing of a formal complaint, and explain to the complainant the process for filing a formal complaint. The Title IX Coordinator shall provide the complainant with an emailed or hard copy of this Policy.

The Title IX Coordinator is responsible for coordinating the effective implementation of supportive measures. Any supportive measures provided to the complainant or respondent shall be maintained as confidential, to the extent that maintaining such confidentiality will not impair the ability of the School to provide the supportive measures.

Step 2: Filing a Formal Complaint of Sexual Harassment

The Complainant can submit a formal written complaint to the Title IX Coordinator in person, by mail, or by electronic mail, by using the contact information set forth above.

A sample written complaint form is included as Form No. **3130.2**. The written complaint shall state when the grievance occurred, the factual details of the grievance, and the relief sought. If the Complainant is a student, the Title IX Coordinator shall assist the student in writing the complaint and assuring that it is submitted in time.

When the Title IX Coordinator receives a formal complaint or signs a formal complaint, the School will follow its Grievance Process and Procedures, as set forth herein. Specifically, the School will undertake an objective evaluation of all relevant evidence – including both inculpatory and exculpatory evidence – and provide that credibility determinations will not be based on a person’s status as a complainant, respondent, or witness.

The complainant(s), the respondent(s), and any witnesses are prohibited from knowingly making false statements or knowingly submitting false information during the grievance process.

The respondent is presumed not responsible for the alleged conduct until a determination regarding responsibility is made at the conclusion of the grievance process.

The School will seek to conclude the grievance process, including resolving any appeals, within sixty (60) days of receipt of the formal complaint. If the Title IX Coordinator offers informal resolution processes, the informal resolution processes may not be used by the complainant or respondent to unduly delay the investigation and determination of responsibility. This timeframe, however, may be subject to a temporary delay of the grievance process or a limited extension for good cause with written notice to the complainant and the respondent of the delay or extension and the reasons for the action.

Within 2 days of receipt of a formal complaint, the Title IX Coordinator will provide written notice of the following to the parties who are known:

- (1) Notice of the School’s grievance process, including any informal resolution process;
- (2) Notice of the allegations of misconduct that potentially constitutes sexual harassment as defined in this policy, including sufficient details known at the time and with sufficient time to prepare a response before any initial interview. Sufficient details include the identities of the parties involved in the incident, if known, the conduct allegedly constituting sexual

harassment, and the date and location of the alleged incident(s), if known. The written notice must:

- a. include a statement that the respondent is presumed not responsible for the alleged conduct and that a determination regarding responsibility will be made at the conclusion of the grievance process;
- b. inform the parties that they may have an advisor of their choice, who may be, but is not required to be, an attorney, and may inspect and review evidence.
- c. inform the parties of any provision in the School's code of conduct that prohibits knowingly making false statements or knowingly submitting false information during the grievance process.

If, in the course of an investigation, the Title IX Coordinator decides to investigate allegations about the complainant or respondent that are not included in the original notice provided to the parties, the Title IX Coordinator will provide notice of the additional allegations to the parties whose identities are known.

A complainant's wishes with respect to whether the school investigates allegations of sexual harassment should be respected unless the Title IX Coordinator determines that signing a formal complaint to initiate an investigation over the wishes of the complainant is not clearly unreasonable in light of the known circumstances.

Step 3 Informal Resolution

Under no circumstances shall a complainant be required as a condition of enrollment or continuing enrollment, or employment or continuing employment, or enjoyment of any other right, to waive his/her right to an investigation and adjudication of a formal complaint of sexual harassment. Similarly, no party shall be required to participate in an informal resolution process.

If a formal complaint is filed, the Title IX Coordinator may offer to the parties an informal resolution process. If the parties mutually agree to participate in the informal resolution process, the Title IX Coordinator shall designate a trained individual to facilitate an informal resolution process, such as mediation, that does not involve a full investigation and adjudication. The informal resolution process may be used at any time prior to the decision maker(s) reaching a determination regarding responsibility.

If the Title IX Coordinator is going to propose an informal resolution process, the Title IX Coordinator shall provide to the parties a written notice disclosing:

- (1) the allegations;
- (2) the requirements of the informal resolution process including the circumstances under which it precludes the parties from resuming a formal complaint arising from the same allegations; and
- (3) any consequences resulting from participating in the informal resolution process, including the records that will be maintained or could be shared.

Any time prior to agreeing to a resolution, any party has the right to withdraw from the informal resolution process and resume the grievance process with respect to the formal complaint.

Before commencing the informal resolution process, the Title IX Coordinator shall obtain from the parties their voluntary, written consent to the informal resolution process.

The informal resolution process is not available to resolve allegations that an employee sexually harassed a student.

In conducting the investigation of a formal complaint and throughout the grievance process, the burden of proof and the burden of gathering evidence sufficient to reach a determination regarding responsibility is on the School, not the parties.

In making the determination of responsibility, the decision maker(s) is(are) directed to use the preponderance of the evidence standard.

Pursuant to law, the School is not permitted to access, consider, disclose, or otherwise use a party's records that are made or maintained by a physician, psychiatrist, psychologist, or other recognized professional or paraprofessional acting in the professional's or paraprofessional's capacity, or assisting in that capacity, and which are made and maintained in connection with the provision of treatment to the party, unless the party provides the School with voluntary, written consent to do so; if a party is not an eligible student, the School must obtain the voluntary, written consent of a parent.

Similarly, the investigator(s) and decision maker(s) may not require, allow, rely upon or otherwise use questions or evidence that constitute, or seek disclosure of, information protected under a legally recognized privilege, unless the person holding such privilege has waived the privilege.

As part of the investigation, the parties have the right to:

- (1) present witnesses, including fact and expert witnesses, and other inculpatory and exculpatory evidence; and
- (2) have others present during any grievance proceeding, including the opportunity to be accompanied to any related meeting or proceeding by the advisor of their choice, who may be, but is not required to be, an attorney. The School may not limit the choice or presence of an advisor for either the complainant or respondent in any meeting or grievance proceeding.

Neither party shall be restricted in their ability to discuss the allegations under investigation or to gather and present relevant evidence.

The School will provide to a party whose participation is invited or expected written notice of the date, time, location, participants, and purpose of all hearings, investigative interviews, or other meetings, with sufficient time for the party to prepare to participate. The investigator(s) and decision maker(s) must provide a minimum of 4 days' notice with respect to hearings and 2 days' notice with respect to investigative interviews and other meetings

Both parties shall have an equal opportunity to inspect and review any evidence obtained as part of the investigation that is directly related to the allegations raised in the formal complaint, including the evidence upon which the School does not intend to rely in reaching a determination regarding

responsibility and inculpatory or exculpatory evidence whether obtained from a party or other source, so that each party can meaningfully respond to the evidence prior to conclusion of the investigation.

Prior to completion of the investigative report, the Title IX Coordinator will send to each party and the party's advisor, if any, the evidence subject to inspection and review in an electronic format or a hard copy, and the parties will have at least ten (10) calendar days to submit a written response that the investigator will consider prior to completion of the investigative report.

At the conclusion of the investigation, the investigator shall create an investigative report that fairly summarizes relevant evidence and send the report to each party and the party's advisor, if any, for their review and written response. The investigator will send the investigative report in an electronic format or a hard copy, at least ten (10) calendar days prior to the decision maker(s) issuing a determination regarding responsibility.

Determination of Responsibility: The Title IX Coordinator shall appoint a decision maker(s) to issue a determination of responsibility. The decision maker(s) cannot be the same person(s) as the Title IX Coordinator(s) or the investigator(s).

After the investigator sends the investigative report to the parties and the decision maker(s), and before the decision maker(s) reaches a determination regarding responsibility, the decision maker(s) must afford each party the opportunity to submit written, relevant questions that a party wants asked of any party or witness, provide each party with the answers, and allow for additional, limited follow-up questions from each party.

Questions and evidence about the complainant's sexual predisposition or prior sexual behavior are not relevant, unless such questions and evidence about the complainant's prior sexual behavior are offered to prove that someone other than the respondent committed the conduct alleged by the complainant, or if the questions and evidence concern specific incidents of the complainant's prior sexual behavior with respect to the respondent and are offered to prove consent. The decision maker(s) must explain to the party proposing the questions any decision to exclude a question as not relevant.

Determination regarding responsibility: The decision maker(s) will issue a written determination regarding responsibility. To reach this determination, the decision maker(s) must apply the preponderance of the evidence standard.

The written determination will include the following content:

- (1) Identification of the allegations potentially constituting sexual harassment pursuant to this policy;
- (2) A description of the procedural steps taken from the receipt of the formal complaint through the determination, including any notifications to the parties, interviews with parties and witnesses, site visits, [and] methods used to gather other evidence,
- (3) Findings of fact supporting the determination;
- (4) Conclusions regarding the application of the applicable code of conduct to the facts;

- (5) A statement of, and rationale for, the result as to each allegation, including a determination regarding responsibility, any disciplinary sanctions the decision maker(s) is recommending that the School impose on the respondent(s), and whether remedies designed to restore or preserve equal access to the School's education program or activity will be provided by the School to the complainant(s); and

(6) The procedures and permissible bases for the complainant(s) and respondent(s) to appeal. If the decision maker(s) determines the respondent is responsible for violating this policy, the decision maker(s) written determination should include steps to end the sex discrimination/sexual harassment, eliminate the hostile environment, prevent its recurrence, and remedy its effects. In addition to imposing disciplinary sanctions/consequences on the respondent, the decision maker may also order further supportive measures along with following individual and global remedies, on a case-by-case basis:

- (1) Provide medical, counseling, and academic support services to the complainant and/or respondent;
- (2) Re-arranging schedules at the complainant's request;
- (3) Afford the complainant extra time to complete or retake classes without academic penalty;
- (4) Review any disciplinary proceedings against the complainant;
- (5) Train or re-train employees;
- (6) Develop materials on sexual harassment;
- (7) Conduct sexual harassment prevention programs; and/or
- (8) Conduct climate checks.

Disciplinary sanctions/consequences imposed on a student may include suspension, expulsion, and any other sanction authorized by the student code of conduct. If the decision maker(s) makes a determination of responsibility and recommends the suspension and/or expulsion of the respondent, the Title IX Coordinator will notify the Head Administrator so the applicable due process procedures in Policy No. **4530**, Suspension and Expulsion, can be implemented. Discipline of a student must comply with the applicable provisions of the Individuals with Disabilities Education Improvement Act (IDEA) and/or Section 504 of the Rehabilitation Act of 1972, and their respective implementing regulations. See also, Policy Nos. **4540** and **4550**.

Disciplinary sanctions/consequences imposed on an employee may include written reprimands, unpaid suspension, termination, and any other sanction authorized by any applicable codes of conduct or collective bargaining agreement. If the decision maker(s) makes a determination of responsibility and recommends the imposition of disciplinary action, the Title IX Coordinator will notify the Head Administrator so applicable due process procedures, whether statutory or contractual, can be implemented.

Discipline of an employee must be implemented in accordance with Federal and State law, Governing Authority policy, and applicable provisions of relevant collective bargaining agreements.

The decision maker(s) will provide the written determination to the Title IX Coordinator who will provide the written determination to the parties simultaneously.

The determination regarding responsibility becomes final either on the date that the Title IX Coordinator provides the parties with the written determination of the result of the appeal, if an appeal is filed, or, if an appeal is not filed, the date on which an appeal would no longer be considered timely.

The Title IX Coordinator is responsible for effective implementation of any remedies.

Appeals

Both parties may appeal from a determination regarding responsibility, or from a dismissal of a formal complaint or any allegations therein, on the following bases: (1) a procedural irregularity that affected the outcome of the matter; (2) newly discovered evidence that was not reasonably available at the time the determination regarding responsibility or dismissal was made that could affect the outcome of the matter; and/or (3) the Title IX Coordinator, investigator(s), or decision maker(s) had a conflict of interest or bias for or against complainants or respondents generally or the individual complainant or respondent that affected the outcome of the matter.

The decision maker(s) hearing the appeal may not be the same person(s) as the decision maker(s) that reached the determination regarding responsibility or dismissal, the investigator(s), or the Title IX Coordinator(s). The decision maker(s) for the appeal shall not have a conflict of interest or bias for or against complainants or respondents generally or an individual complainant or respondent and shall receive the same training as required of other decision makers.

The parties' written statements in support of, or challenging, the determination of responsibility must be submitted within five (5) days after the Title IX Coordinator provides notice to the non-appealing party of the appeal.

The decision maker(s) for the appeal shall issue a written decision describing the result of the appeal and the rationale for the result. The written decision will be provided to the Title IX Coordinator who will provide it simultaneously to both parties. The written decision will be issued within five (5) days of when the parties' written statements were submitted.

The decision maker(s) for the appeal's (or the original decision-maker's(s') if there is no appeal) decision shall be final.

The Title IX Coordinator is responsible for effective implementation of any remedies. If the complainant is still dissatisfied, the complainant may submit, within 180 days of the alleged discrimination, a written complaint to the Office for Civil Rights, located at:

Office of Civil Rights
U.S. Department of Education
600 Superior Ave. East, Suite 750
Cleveland, Ohio 44114-2611

Federal: 20 U.S.C. 1681 et seq., Title IX of the Education Amendments of 1972 (Title IX) 34 C.F.R. Part 106

Cross Reference: Policy No. **3110**, Equal Educational Opportunity

3120.1 – Title IX Sexual Harassment Incident Reporting Form

The Board is committed to maintaining an education and work environment that is free from all forms of unlawful harassment, including sexual harassment. The Board prohibits sexual harassment that occurs within its education programs and activities and will take appropriate action when an individual is determined to be responsible for the sexual harassment of a student or staff member.

If you have experienced, or if you have knowledge of, any unlawful sexual harassment, you are encouraged to complete this form. The School's Title IX Coordinator can assist you with completing this form and with any questions about the application of Title IX and its implementing regulations.

Retaliation against a person making a report of sexual harassment, filing a formal complaint of sexual harassment, or participating in a Title IX investigation is strictly prohibited and can result in disciplinary sanctions/consequences.

Please complete all sections of this form. You may attach additional pages as needed if your answers do not fit in the space provided. Return completed forms to the School's Title IX Coordinator:

Director of Students Services
135 East Church Street
Xenia, OH 45385
937-736-2102
TitleIX@communitysteam.com

Section 1: Reporter Information
Part 1a: Your Contact Information
Your Name: _____ Address: _____ Phone: _____ E-mail: _____ School Building: _____
Part 1b: Reporter Classification (<i>Select the appropriate box below</i>)
☐ I am a School student ☐ I am the parent/guardian of a School student ☐ I am a School employee ☐ Other (<i>please explain</i>) _____
Part 1c: Relationship to Alleged Victim (<i>Select the appropriate box below</i>)

☐ I am the victim of the reported conduct (*Continue to Section 2*)

☐ I am filing this report on the victim's behalf (*Complete the information below*)

Name of alleged victim: _____

The alleged victim is: ☐ My child ☐ Another School student ☐ A School employee

☐ Other (*please explain*) _____

Section 2: Respondent Information

Part 2a: Name(s) of Individual(s) Responsible for Incident

Name(s) of person(s) you believe are responsible: _____

Part 2b: Respondent Classification (*Select the appropriate box below*)

The individual(s) named above is a/are: ☐ School student(s) ☐ School employee(s)

☐ Other (*please explain*) _____

Section 3: Incident Information

Part 3a: Date(s) of Incident(s)

Date(s): _____

Part 3b: Location(s) of Incident(s) (*Select the appropriate box below*)

The reported conducted occurred:

☐ on School property (*specify building or location*) _____

☐ off of School property (*please explain*) _____

Part 3c: Description of Incident(s)

Please provide a description of the incident(s) describing the reported conduct in as much detail as possible, and explain how the reported conduct has affected you or the alleged victim:

Part 3d: Witnesses to Incident(s)

If possible, please provide the name(s) of any other person(s) who were present during the reported conduct: _____

If possible, please provide the name(s) of any other person(s) who may have knowledge of the reported conduct: _____

Part 3e: Prior Reporting (Select the appropriate box below)

Before filing this Report:

☐ I reported the conduct to a School employee (please provide the name(s) of the employee(s) with whom you discussed the reported conduct): _____

☐ I have not reported the conduct to a School employee prior to completing this form.

Signature of Reporter

Date

Note: For purposes of Title IX sexual harassment, this Incident Report Form serves initially as an informal report, not a formal complaint of Sexual Harassment under Title IX. If a Title IX complaint ensues you will be asked to sign a formal complaint.

Depending on the circumstances, there may be additional policy and/or student code of conduct violations implicated.

The School will use all reasonable efforts to respect the confidentiality of the Complainant, the individual(s) against whom the complaint is filed, and any witnesses, consistent with the Board's legal obligations to investigate, to take appropriate action, and to conform with any discovery or disclosure obligations. All records generated shall be maintained as confidential to the extent permitted by law. Confidentiality, however, cannot be guaranteed. All Complainants proceeding through the formal investigation process will be advised that their identities may be disclosed to the Respondent.

3130 – Title I Compliance

The School seeks to help all students reach their potential and meet the School's academic standards. In an effort to help students who need support in meeting high academic standards, the School shall participate in the federal Title I of the Amendments in the Elementary and Secondary School Improvement Act of 1965.

The School shall develop a Comprehensive Plan for delivering Title I services. The Plan shall be developed by the Head Administrator and affected employees, parents, and students (if the plan relates to secondary school). The Plan shall then be submitted to the US Department of Education. The Plan shall include all provisions required by law, including, but not limited to, the following:

- *Identifying Eligible Students.* Once per year, the School shall assess the educational needs of students who qualify by law for Title I assistance. The assessment process shall include all processes and techniques mandated by the Department of Education and additional processes and techniques chosen by Staff members selected for the purpose of diagnosing or teaching the eligible and participating students.
- *Appropriating Resources.* The School shall determine whether it will use the funds for a School-wide renovation of the educational program and/or will use the funds specifically to develop or enhance educational programs specifically for students in particular need of assistance. The scope of the proposed program shall comply with federal requirements.
- *Parental Involvement.* The plan shall provide for and promote parental involvement to the extent required by federal law. See Policy No. **3320**, Title I Parental Involvement Policy.
- *Funds as Supplement.* Title I funds shall not be used in a manner that supplants state and local funds. Title 1 funds shall be used as a supplement.
- *Simultaneous Services.* In accordance with federal law, the School may simultaneously serve other students with similar needs.
- *Professional Development.* The School shall also provide training to Staff members that will be involved in the Title I program. When possible, the School may consolidate and cooperate with other schools and institutions for purposes of this training and may combine and consolidate among other Federal or state programs.

The School appoints the Head Administrator as the School's Title I Compliance Officer. The Title I Compliance Officer shall be responsible for coordinating compliance; responding to inquiries, investigating any alleged violations, and implementing the School's Grievance Procedure found in Form No. **3130.1**, Sample Title I Grievance Procedure.

Federal: 20 U.S.C. § 6314, 34 C.F.R. 104.7.

Cross Reference: Policy No. **3320**, Title I Parental Involvement Policy; Form No. **3130.1**, Sample Title I Grievance Procedure.

3130.1 – Title I Grievance Procedure

The School is committed to serving its students through Title I programs and services. The School is aware, however, that disagreements may arise regarding Title I programs. The following procedures have been developed to handle complaints dealing with Title I programs, services, and staff members. Unless granted an exemption by the Ohio Department of Education for extenuating circumstances, all complaints shall be resolved within thirty (30) days.

Step 1

A written complaint shall be submitted to the Head Administrator. The complaint may be submitted using Form No. **3130.2**. Upon receipt of the written complaint, the Head Administrator, in his/her role as Compliance Officer, shall investigate the allegations. If additional information is needed, such information shall be requested within ten (10) days of the receipt of the complaint. Upon completing the investigation, the Head Administrator shall attempt to resolve the issue.

Step 2

If, after fifteen (15) days of submitting the complaint to the Head Administrator, the complainant is dissatisfied with the investigation, then the complainant may appeal to the Governing Authority. The Governing Authority, upon notice of such an appeal, shall appoint a panel to hear the complaint. The panel shall consist of the Head Administrator, the President of the Governing Authority, and either another Governing Authority Member or a representative of the Managing Company, if one exists.

The complainant shall be given an opportunity to present evidence to the panel on his/her behalf and question the individuals involved. The panel is vested with the responsibility for investigating the allegations and clarifying the precise issues involved. Records shall be maintained for all formal hearings occurring throughout this process. Once the panel has reached a decision regarding the issue or its resolution, the Head Administrator shall notify the complainant, in writing, of the decision.

Step 3

If the complainant, after receipt of the panel's decision, is still dissatisfied, then the complainant may appeal the decision to the Ohio Department of Education. The appeal must be submitted within thirty (30) days of receipt of the panel's decision or resolution.

All expenses incurred by the School as a result of this process may be included in the budget for Title I funds, so long as they are incurred in accordance with School Policies. Budgeted expenses must be approved by the Governing Authority.

3130.2 – Title I/Title IX Complaint

Name: _____

Address: _____

Phone Number: _____ Date: _____

Status: Student ☐ Parent ☐ Teacher ☐ Other: _____

Details of Incident: _____

Do Not Write Below This Line

Date Received: _____ Date Resolved: _____

Details of Resolution: _____

3140 – Title V Required Cooperation

Title V requires the School to contact local, non-profit private schools to offer those schools to participate in the School's programs and services that receive Title V funding.

The Head Administrator shall ensure that the School adheres to all requirements and that notice is provided on an annual basis.

Federal: 20 U.S.C. 7201, et seq.

3200 – Curriculum Standards

Policy No. 3210

3210 – General Curriculum Standards

In an effort to ensure that all children have a fair, equal, and significant opportunity to obtain a high-quality education and reach, at a minimum, proficiency on challenging State academic achievement standards and state academic assessments, the School program and accompanying curriculum shall be developed and implemented so as to achieve the following goals as required pursuant to the receipt of Title I, Part A funding:

- Ensuring that high-quality academic assessments, accountability systems, teacher preparation and training, curriculum, and instructional materials are aligned with challenging State academic standards so that students, teachers, parents, and administrators can measure progress against common expectations for student academic achievement.
- Closing the achievement gap between high- and low-performing children, especially the achievement gaps between minority and nonminority students and between disadvantaged children and their more advantaged peers.
- Improving and strengthening accountability, teaching, and learning by using State assessment systems designed to ensure that students are meeting challenging State academic achievement and content standards and increasing achievement overall, but especially for the disadvantaged.
- Providing greater decision-making authority and flexibility to teachers in exchange for greater responsibility for student performance.
- Ensuring access to effective, scientifically based instructional strategies and challenging academic content.
- Affording parents substantial and meaningful opportunities to participate in the education of their children.

Federal: 20 U.S.C. §6301.

Cross Reference: Policy No. **3120**, Title IX Compliance; Policy No. **3550**, Core Curriculum Requirements.

3220 – School Reform Standards

Title I, Part F funds are provided to schools for the purpose of developing comprehensive school reforms, based on scientifically based research and effective practices that include an emphasis on basic academics and parental involvement, so that children can meet challenging State academic content and academic achievement standards. Accordingly, if the School elects to receive funding pursuant to Title I, Part F, school reform shall be developed and implemented so as to achieve the following goals:

- Using proven strategies and methods for student learning, teaching, and School management that are based on scientifically based research and effective practices that have been replicated successfully in other schools;
- Integrating a comprehensive design for effective School function, including instruction, assessment, classroom management, professional development, parental involvement, and school management, Such a design shall align the School's curriculum, technology, and professional development into a comprehensive School reform plan for School-wide change and enable all students to meet challenging State content and student academic achievement standards and addresses needs identified through a School needs assessment.
- Providing high quality and continuous development for teachers and other Staff members.
- Developing use of measurable goals for student academic achievement and benchmarks for meeting such goals
- Permitting and encouraging meaningful involvement of parents and the local community while planning, implementing, and evaluating school activities pursuant to this plan.
- Evaluating the implementation of school reforms and the student results that were achieved on an annual basis.

The School's reform plan shall be supported by and shall provide support for all teachers, other Staff members, and other School employees.

Federal: 20 U.S.C. 6511, 20 U.S.C. 6216.

3230 – Qualified Educators

In order to ensure that the appropriate curriculum goals are developed and implemented, and to comply with the requirements of the Every Student Succeeds Act, all educators who are currently teaching, as well as educators newly hired, shall conform with the qualifications established in the Every Student Succeeds.

The School shall assure that all teachers hired by the School are considered “certified or licensed” as defined within the Every Student Succeeds.

The School shall assure that all paraprofessionals currently working for the School or hired by the School meet the qualifications established in the Every Student Succeeds Act.

The School may use funds received pursuant to the Every Student Succeeds Act to support ongoing training and professional development to help teachers and paraprofessionals obtain the necessary qualifications.

The contents of this Policy are subject to the regulations, rules, and guidelines established by appropriate governmental agencies and authorities.

Federal: 20 U.S.C. § 6319.

Ohio: R.C. 3319.074.

Cross Reference: Policy No. **3330**, Parent’s Right-to-Know; Policy No. **5110**, General Employment Eligibility; Policy No. **5130**, Teacher Requirements; Policy No. **5150**, Educational Assistants; Policy No. **5160**, Other Employees; Policy No. **5600**, Employee Development.

3240 – Reading Standards

As a condition of receipt of Title I, Part B funding, the School shall develop and implement curriculum and programs so as to achieve the following goals regarding reading:

- establish reading programs for students in kindergarten through third grade that are based on scientifically-based reading research and are designed to ensure that every student can read at grade level or above not later than the end of third grade;
 - effectively prepare all teachers, through professional development programs and other support, so that they can identify specific reading barriers facing their students and have the necessary tools and skills to effectively help their students learn to read; and
 - select or develop effective instructional materials, programs, learning systems, and strategies to implement methods that have been proven to prevent or remediate reading failure.

Literacy Instructional Materials

Beginning in the 2024-2025 school year, the School shall use core curriculum, instructional materials, and intervention programs only from the lists compiled by the Department of Education and Workforce.

The School shall not use the “three-cueing approach” (which is any model of teaching students to read based on meaning, structure and syntax, and visual cues) to teach students to read unless the School receives a waiver from the Department permitting them to do so.

However, students who have an individualized education program (IEP) that explicitly indicates use of the three-cueing approach and students who have a reading improvement and monitoring plan under the Third Grade Reading Guarantee do not need a waiver to receive instruction in the “three-cueing approach.”

The School’s professional development committee shall qualify any completed professional development coursework in literacy instruction provided by a vendor identified by the Department and coursework completed through literacy improvement stipends paid to teachers for professional development in the science of reading and evidence-based strategies for effective literacy instruction to count toward professional development coursework requirements for teacher licensure renewal. Said committee must permit a teacher roll over to the next licensure renewal period any hours earned over the minimum amount required for professional development coursework related to literacy.

The School shall report to EMIS the English language arts curriculum and instructional materials it is using for each of grades pre-K-5 and the reading intervention programs being used in each of grades pre-K-12.

Federal: 20 U.S.C. § 6361; O.R.C. 3313.6028; 3301.0714

Cross Reference: Policy No. 3530, State Assessments.

Modified September 2, 2023

[Main Table of Contents](#)

Policy Manual of the Governing Authority of CSA-Xenia

Page | 300

3250 – Dyslexia Screenings and Multi-Sensory Structured Literacy Certification

The School recognizes the importance of early detection of dyslexia in children. “Dyslexia” means a specific learning disorder that is neurological in origin and that is characterized by unexpected difficulties with accurate or fluent word recognition and by poor spelling and decoding abilities not consistent with the person's intelligence, motivation, and sensory capabilities, which difficulties typically result from a deficit in the phonological component of language.

The School will comply with the Ohio Dyslexia Committee’s guidebook regarding the best practices and methods for universal screening, intervention, and remediation for children with dyslexia or children displaying dyslexic characteristics and tendencies using a structured literacy program.

Team

The (Building Head Administrator) (Chief Executive Officer) shall establish a multi-disciplinary team to administer screening and intervention measures and analyze the results of the measures. The team shall include trained and certified personnel and a stakeholder with expertise in the identification, intervention, and remediation of dyslexia.

Screenings

The School will select reliable, valid, universal, and evidence-based screening and intervention measures that evaluate the literacy skills of students using a structured literacy programs as identified by the Ohio Department of Education and the Ohio Dyslexia Committee.

For the 2023-2024 school year, the School will administer a tier one dyslexia screening measure to students enrolled in kindergarten (after January 1, 2024, but prior to January 1, 2025) through grade three or the student transfers into the School midyear and is enrolled in K-3rd grades and any student enrolled in grades four through six or the student transfers into the School midyear and is enrolled in grades four to six, and either of the following applies:

The student whose parent/guardian/custodian requests that the screening measure be administered to the student, or

A classroom teacher requests that the screening measure be administered to the student and the student's parent/guardian/custodian grants permission.

The screening measure must be aligned to the grade level in which the student is enrolled at the time the screening is administered.

Beginning with the 2024-2025 school year and thereafter, the School will administer a tier one dyslexia screening measure to:

- (1) each kindergarten student enrolled in the School or a student that transfers into the School midyear and is enrolled in kindergarten; and

- (2) each student in grades one through six enrolled in the School or a student that transfers into the School midyear and is enrolled in grades one through six, if either of the following applies:

The student whose parent/guardian/custodian requests that the screening measure be administered to the student, or

A classroom teacher requests that the screening measure be administered to the student and the student's parent/guardian/custodian grants permission.

The screening measure must be aligned to the grade level in which the student is enrolled at the time the screening is administered.

Any such transfer student who has been identified as at-risk for dyslexia following a tier one screening shall receive a tier two screening measure in a timely manner.

If the student is enrolled in kindergarten, a tier one dyslexia screening measure shall be administered to the student during the school's regularly scheduled screening of the kindergarten class or within thirty days after the student's enrollment if so required under this section, or within thirty days after the student's parent, guardian, or custodian requests the screening or grants permission for a screening

If the student is enrolled in any of grades one through six, a tier one dyslexia screening measure shall be administered to the student within thirty days after the student's enrollment if so required under this section, or within thirty days after the student's parent, guardian, or custodian requests the screening

The School shall be required to administer a tier one dyslexia screening measure to a student who transfers into the School midyear if the student's records indicate that such a screening was administered to the student by the School from which the student transferred during that school year.

Identification

The multi-disciplinary team will identify each student that is at risk of dyslexia based on the student's results on the tier one screening measure and notify the student's parent that the student has been identified as being at risk.

The School will monitor the progress of each at-risk student toward attaining grade-level reading and writing skills for up to six weeks. Specifically, progress shall be checked on at least the second week, fourth week, and sixth week after the student is identified as being at risk. If no progress is observed during the monitoring period, the School shall notify the parent of the student and administer a tier two dyslexia screening measure to the student. Tier two screening results must be provided to the student's parent.

If the student is identified as having dyslexia tendencies, the student's parent must be provided with information about reading development, risk factors for dyslexia, and descriptions for evidence-based interventions. If a student demonstrates markers for dyslexia, the student's parent will be provided with a written explanation of School's structured literacy program.

In lieu of initial monitoring, the School may administer a tier two dyslexia screening measure following a tier one screening measure.

The results of screening measures shall be reported to ODE.

In addition to screening, the School will comply with Ohio statutory requirements, as they pertain to the Ohio Dyslexia Committee's guidebook with respect to intervention and remediation for children with dyslexia or children displaying dyslexic characteristics and tendencies.

Certification

The Governing Authority shall establish a teacher certification process that complies with the Ohio Dyslexia Committee's (ODC) guidebook. The list of online or classroom training that fulfill the professional development requirements described below are maintained by the Ohio Department of Education (ODE), in collaboration with the ODC. The training and certification requirements described herein does not apply to teachers who provide instruction in fine arts, music, or physical education.

Beginning with the 2022-2023 school year, the Governing Authority shall establish a structured literacy certification process for teachers employed by the School providing instruction for students in grades kindergarten through three.

Not later than the beginning of the 2023-2024 school year, each teacher who provides instruction for students in kindergarten and first grade, including those providing special education instruction, shall complete the number of instructional hours in approved professional development training required by the ODE/ODC.

Not later than September 15, 2024, each teacher who provides instruction for students in grades two and three, including those providing special education instruction, shall complete the number of instructional hours in approved professional development courses required by the ODE/ODC.

Not later than September 15, 2025, each teacher who provides special education instruction for students in grades four through twelve shall complete professional development training approved as identified by the ODE/ODC.

Teachers employed after April 12, 2021, must complete the training by the later of two years after date of hire or the dates specified above for teachers employed prior to that date. However, this does not apply to teachers who have already completed the training while employed by a different district.

Ohio: R.C. §§3319.077, 3319.078, 3323.251

Revised September 2, 2023

3300 – Parental Involvement

Policy No. 3310

3310 – Parental Involvement and Participation

The School recognizes that family involvement plays a key role in the academic success of students. The term “family” and “families” is used to include parents as well as children's primary caregivers, who are not their biological parents, such as foster parents and caregivers, grandparents, and other family members. The School shall afford family meaningful opportunities to participate in the education of their children. These opportunities shall be based on the most current research that meets the highest professional and technical standards and shall be geared towards lowering barriers to greater participation by family.

Parent Involvement in the Student’s Education

The School shall seek to create an environment that is accessible to families. The School shall also provide a meaningful range of opportunities for families to volunteer to be involved with the School’s activities.

The School shall also assist families by providing them with training, materials, and information regarding techniques, strategies, and skills to use at home to support the student’s academic efforts at school and the student’s future as a responsible adult member of society. The School shall strive to create engagement activities that respect the various cultures, languages, practices and customs of the students.

Increasing Communication

This policy shall be designed to build consistent and effective communication between family of students enrolled in the district and the teachers and administrators.

The School shall provide families with information regarding their child’s education, health, and safety. This information shall be communicated regularly and in a clear, open, and understandable manner. The School strives to promote consistent and effective two-way communication between all students' family, family members and school personnel.

The School shall also provide families with information on Ohio's academic standards, state and local assessments, and legal requirements so that they can make informed decisions about their children's academic future. These legal requirements include Title I, Section 1118, parent participation rights under IDEA, and gifted students under ORC 3324.04 and 3324.06.

Collaboration with Community Programs

The School shall collaborate with community-based programs, including health and human service providers, to ensure that the families have the resources they need to be involved in their children's education, growth and development, including such programs as Head Start, Reading First, Early

Reading First, Home Instruction Programs for Preschool Youngsters, Parents as Teachers Programs, preschool, special education, gifted students' services, and parent resource centers.

Implementing the Parental and Family Involvement Plan

The School, via the Head Administrator, shall develop a comprehensive family and community engagement plan, based on family, student and school needs, with defined outcomes, measurements, strategies and activities grounded in research and logically linked to academic achievement. This plan shall be evaluated at least annually with input from families, students, school staff and community members. Special attention shall be given to support strategies for low-achieving students.

The School shall designate a Parent and Family Coordinator, whose role is to coordinate family and community engagement strategies.

Federal: 20 U.S.C. §6310(12), 20 U.S.C. § 6311(d).

Ohio: R.C. 3313.472.

Cross Reference: Policy No. **2130**, Wellness Policy; Policy No. **3320**, Title I Parental Involvement Policy; Policy No. **3330**, Parent's Right-to-Know; Policy No. **3340**, Parental Rights under the Protection of Pupil Rights Amendment; Policy No. **3550**, Core Curriculum Requirements.

3320 – Title I Parental Involvement Policy

As a condition of receipt of Title I funds, the School shall develop a Parental Involvement Plan (the “Plan”) for involving parents of participating children in Title I fund programs and activities.

As used herein, the term “participating children” means all students who are participating in the programs, activities, and services funded by Title I, Part A of the Elementary and Secondary Education Act (ESEA).

Components of the Parental Improvement Plan

- involve the parents of participating students in the development, review, and improvement of Title I programs and activities;
- provide the coordination, technical assistance, and other support necessary to enable the School to plan and implement effective parental involvement activities;
- coordinate and integrate parental involvement strategies for Title I programs with parental involvement strategies under other federally funded programs (e.g., Head Start Reading First, Even Start, etc.);
- build the School’s and parents’ capacity for strong parental involvement;
- conduct an annual evaluation with parents to evaluate this policy and this policy’s effectiveness by (1) identifying barriers prohibiting greater parental involvement, (2) using the evaluation to design strategies to generate more effective parental involvement, and (3) revising the School’s parental involvement policies;
- schedule parent meetings throughout the year in a manner which promotes attendance, such as offering meetings at flexible times and offering childcare, transportation, or other needed assistance;
- offer, if requested, additional opportunities;
- involve parents in the activities of the School by providing them with timely information about the programs offered pursuant to Title I funds;
- assure that, to the extent possible, full participation opportunities are provided to parents with limited English proficiency, parents with disabilities, and parents of migratory children;
- assure that, to the extent possible, all reports, notices, and other information given to parents is provided in a language that they can read, and in a manner, they can understand;
- assist parents in understand such topics as the State’s academic content standards, State assessments, and how to monitor a child’s progress to improve achievement;
- provide materials and training to parents to work with their children to improve their children’s achievement (e.g., literacy training, technology, etc.);
- provide timely responses to parents’ questions, concerns, suggestions, etc.;
- educate teachers and other Staff members about the importance of parent involvement, and in how to reach out to, communicate with, and work with parents as equal partners in the implementation and coordination of parent involvement programs; and
- fulfill all other obligations as imposed by applicable laws, regulations, or guidelines.

Although not required, the Parental Involvement Policy may also include provisions intended to accomplish the following:

- Involve parents in the training for teachers, principals, and other educators;

- May provide and pay the associated reasonable expenses for services provided for the purpose of enabling parents to participate in School-related meetings and training sessions;
- Train parents to enhance the involvement of other parents;
- Establish a parent advisory Governing Authority to provide advice on all matters related to parental involvement in programs funded by Title I.
- Develop appropriate roles for community-based organizations and businesses in parent involvement activities.

The Parental Involvement Policy shall be annually reviewed and revised as necessary to eliminate any barriers that may be preventing effective parental involvement. The most current Parental Involvement Policy shall be distributed annually to the parents of participating students and shall be made available to the local community.

School-Parent Compact

Pursuant to the receipt of Title I funds, the School shall jointly develop, with parents of all participating children, a School-Parent Compact that outlines how the School staff and participating students and parents will share the responsibility for improved student academic achievement and how the School and the parents will build and develop a partnership to help children achieve the State's highest standards. Such a Compact shall, at a minimum:

- describe the School's responsibility to provide high-quality curriculum and instruction in a supportive and effective learning environment that enables the participating students to meet the State's student academic achievement standards,
- describe the ways in which each parent will be responsible for supporting their children's learning, such as monitoring attendance, homework completion, and television watching; volunteering in their child's classroom; and participating, as appropriate, in decisions relating to the education of their children and positive use of extracurricular time; and
- address the importance of communication between teachers and parents on an ongoing basis including, but not limited to 1) annual parent-teacher conferences in elementary schools; 2) frequent reports to parents detailing the student's progress; and 3) reasonable access to staff, opportunities to volunteer and participate in the child's class, and opportunities to observe classroom activities.

The School-Parent Compact, as approved by the Governing Authority, shall be submitted to all parents participating in programs receiving Title I funds. A model School-Parent Compact is included as Form No. **3320.1**.

Federal: 20 U.S.C. § 6318.

Cross Reference: Policy No. **2130**, Wellness Policy; Policy No. **3310**, Parental Involvement and Participation; Policy No. **3330**, Parent's Right-to-Know; Policy No. **3340**, Parental Rights under the Protection of Pupil Rights Amendment (PPRA); Form No. **3320.1**, Model School-Parent Compact.

3320.1 – Model School-Parent Compact

The School and the parents of students participating in activities, services, and programs funded by Title I, Part A of the Elementary and Secondary Education Act (ESEA) (“participating children”), agree that this Compact outlines how the parents, the entire School staff, and the students will share the responsibility for improved student academic achievement and the means by which the School and the parents will build and develop a partnership that will help children achieve the State’s high standards.

This School-Parent Compact is in effect during the 2022-2023 school year.

School Responsibilities

The School hereby agrees to:

- Provide high-quality curriculum and instruction in a supportive and effective learning environment that enables the Participating Children to meet the State’s student academic achievement standards as follows:

CSA– Xenia’s overall goal is to utilize an active, brain-based, student-first model of instruction ensuring personalized education for every learner. Each learner will engage in activities of the mind accessed through their diverse backgrounds and creative heart passion. They each will be given voice and choice to demonstrate their mastery of academic content and 21st-century skills. They will do so by means of authentic, project-based learning experiences that are linked to community enterprises, and critical aspects of the learners’ soul (emotional and social), and body (physical wellbeing) with the goal of holistic preparation for college, career, and citizenship.

It is essential that all staff are part of the main instructional focus of CSA-Xenia, which is learning. Every position has a specific role for providing some part in learning. Even though teachers have a very direct link to the students, each employee should accentuate the community of learners. Teachers understand that teaching is a constant stream of decision-making that if made appropriately increases the opportunity for learning. Every decision made should acknowledge that all students can learn, even if it is not the same way or day.

- Hold parent-teacher conferences during which this compact will be discussed as it relates to the individual child’s achievement. Specifically, those conferences will be held: Twice a year mid-way through each semester.
- Provide parents with frequent reports on their student’s progress. Specifically, the School will provide reports as follows: Via the School’s Learning Management System, all stakeholders will have access to the student’s progress upon teacher’s update of mastery on a weekly basis.
- Provide parents reasonable access to staff. Specifically, staff will be available for consultation with parents as follows: Beyond the Parent-Teacher conference times, each parent may request a meeting with the student’s teacher within a 48-hour period of time within the regularly scheduled workdays of the teacher. This meeting may occur in-person, virtually with a video call, or over the phone.
- Provide parents opportunities to volunteer and participate in their child’s class, and to observe classroom activities, as follows: Through the Office of Community Enterprise, parents are encouraged to volunteer to support the learning experiences and other types of activities (e.g., lunch, advisory, community projects, service-learning) throughout the school day.
- Treat students, parents, legal guardians, and other members of the educational community in a respectful manner at all times.
- Establish clear classroom rules, and enforce them in a fair, consistent manner.

- Maintain familiarity with State educational standards and the respective content of the School curriculum.

Parent Responsibilities

I, as a parent, recognize the importance of parental participation in the overall success of my child's education, and therefore agree to support my child's education in the following ways:

- Treat teachers, administrators, and other members of the educational community in a respectful manner at all times.
- Ensuring that my child attends School on a regular basis and in accordance with the School attendance Policy. This includes all mandated educational programs occurring outside of normal school hours, such as after-school tutoring.
- Making sure that homework is completed.
- Understanding the School rules and policies, including the Zero-Tolerance Policy, and cooperating in their enforcement.
- Actively engaging in weekly conversations with my child about academic and social activities at school.
- Monitoring the amount of television, internet, and electronic gaming that my child watches and promoting a positive use of my child's extracurricular time.
- Taking an active role in ensuring that my child adheres to applicable School policies, including, but not limited to, the School Dress Code.
- Actively participating, as appropriate, in decisions related to my child's education.
- Attending, whenever reasonably possible, all scheduled meetings with teachers and administrators, including, but not limited to, Report Card Meetings, IEP meetings, and other meetings focused on my child's academic performance and success.
- Staying informed about my child's education and communicating with the School by promptly reading all notices received from the School and responding as appropriate, and promptly informing the School of any change in address, telephone number, etc.
- Volunteering, to the extent possible, in classroom projects, extracurricular programs, or other School activities, whenever possible and appropriate.
- Serving, to the extent possible, on policy advisory groups, such as being the Title I, Part A parent representative on the School Improvement Team, the Title I Policy Advisory Committee, or any other advisory or policy groups.

Student Responsibilities

I, as a student, agree to share in the responsibility for improving my academic achievement and meeting State standards. Due to the nature and rigor of the academic content to be delivered, I agree to:

- Demonstrate a passion for learning and continued growth in the mastery-based learning system.
- Have solid attendance records with very few absences.
- Demonstrate persistence when faced with challenging academic expectations
- Give to my parents or legal guardian all notices and other information received from my teachers or the School.
- Treat my parents, teachers, as well as other School employees, and peers, in a respectful manner at all times.

School Representative: _____ Date: _____

Parent: _____ Date: _____

Student: _____ Date: _____

3330 – Parent’s Right-to-Know

As a condition of receipt of Title I funds, the School is required to communicate certain information listed below. All notices and information shall be provided in an understandable and uniform format and, to the extent practicable, provided in a language that parents can understand.

Right to Know Notice

The School shall annually notify all parents of their right to request information about the qualifications of the student’s classroom teachers. The notice shall indicate that parents may request information regarding:

- whether the teacher has met State qualification and licensing criteria for the grade levels and subject areas in which the teacher provides instruction;
- whether the teacher is teaching under emergency or other provisional status through which the State qualification or licensing criteria have been waived;
- whether the teacher’s undergraduate degree and any other graduate certification or degree including the field of discipline of the certification or degree); and
- whether the child is provided services by paraprofessionals and, if so, their qualifications.

The annual notification is available at Form No. **3330.1**, Parent’s Right-to-Know Letter.

Upon receiving an informational request from a parent, the School shall respond in a timely manner.

Automatic Notice

The School shall also automatically provide each parent with written notice of the following:

- information on the level of achievement of the child in Ohio’s academic assessments; and
- timely notice that the parent’s child has been assigned, or, has been taught for more than four (4) consecutive weeks, by a teacher who is not certified and licensed, as defined in 20 USC § 6311. Notice may be provided using Form No. **3330.2**, Parent’s Notification Regarding Your Student’s Teacher.

Federal: 20 U.S.C. § 6311.

Ohio: R.C. 3319.074.

Cross Reference: Policy No. **3230**, Qualified Educators; Policy No. **3310**, Parental Involvement and Participation; Policy No. **3320**, Title I Parental Involvement Policy; Form No. **3330.1**, Parent’s Right-to-Know Letter; Form No. **3330.2**, Parent’s Notification Regarding Your Student’s Teacher Letter.

3330.1 – Parent’s Right-to-Know Letter

Dear Parent/Guardian,

At _____, we are very proud of our teachers and are confident they will ensure your child receives a high-quality education. Federal law allows you to learn more about the education your child will receive. As a parent of a student at the School, you have the right to learn more about your child’s teachers’ training and credentials, including the following:

- whether the teacher met the Ohio Department of Education’s qualification and certification requirements for the grade level and subject he/she is teaching;
- whether special circumstances permitted the teacher to receive an emergency or conditional certificate;
- the Teacher’s undergraduate and/or graduate degrees (including graduate certificates and additional degrees, and major(s) or area(s) of concentration); and
- whether the child is provided services by paraprofessionals and, if so, their qualifications.

If you have any questions about your child’s assignment to a teacher or paraprofessional, please feel free to contact me.

Sincerely,

Head Administrator

3330.2 – Parent Notification Regarding Your Student’s Teacher

Dear Parent:

The federal Every Child Succeeds Act requires all schools to notify parents or guardians if their child has been assigned to or has been taught for four consecutive weeks by a teacher who is not considered “highly qualified” for that specific subject area. While there are a variety of ways in which a teacher can demonstrate that he or she is “certified and licensed” in a given subject, the requirement is considerably more difficult to meet for a teacher who is responsible for teaching several core subject areas. Special education teachers and bilingual education teachers in particular are affected by this requirement.

The purpose of this letter is to notify you as required that Mr./Ms. _____ is not currently considered “certified and licensed” in one or more subjects being taught to your son or daughter.

Please be assured that this does not mean this teacher is not qualified for this assignment. Mr./Ms. _____ does meet the Ohio requirements for this position. Given his/her professional experience and local reputation, we believe that your child is receiving a high-quality education in his/her class.

If you have any concerns regarding this information, you have a right as a parent to review the qualifications of your child’s teachers. Please feel free to contact me with any questions or concerns.

Sincerely,

Head Administrator

3340 – Parent Rights under the Protection of Pupil Rights Amendment (PPRA)

Through the Protection of Pupil Rights Amendment (PPRA), the School seeks to protect the student's privacy rights and promote parental involvement in the student's education.

As required by federal law, the Head Administrator shall annually notify parents of their rights under the PPRA. A sample parental notification is included as Form **3340.1**. The notification shall be distributed at the beginning of each school year to the student's parent or guardian. Additional notifications pursuant to specific events and activities shall be provided as required below.

A parent's rights under PPRA transfer to the student when the student turns 18 years old, or is an emancipated minor, under Ohio law. If the student has obtained these rights, all communication shall be sent to the student.

Right to Inspect Instructional Materials

The parents of each student have the right to inspect, upon their reasonable request, any Instructional Material used as part of their child's educational curriculum.

"Instructional Material" is defined as instructional content that is provided to a student, regardless of its format, printed or representational materials, audio-visual materials, and materials in electronic or digital formats (such as materials accessible through the Internet). Instructional Material does not include academic tests or academic assessments.

Responses to requests shall be made in a reasonable time and shall provide reasonable access.

Notification of Invasive Physical Exams or Screenings

On an annual basis, the School shall directly notify the parent of a student of the specific or approximate dates during the School year when any nonemergency, invasive physical exam or screening is scheduled that is:

- required as a condition of attendance;
- administered by the School and scheduled by the School in advance; and
- not necessary to protect the immediate health and safety of the student or of other students.

Upon receiving notice of invasive physical exams, the parent may opt the student out of the screening or exam. This Policy does not apply to any screenings or exams that are permitted or mandated under existing Ohio law.

"Invasive Physical Exam" is defined as any medical examination that involves the exposure of private body parts, or any act during examination that includes incision, insertion, or injection into the body, but does not include a hearing, vision, or scoliosis screening.

Parental Rights Regarding Student Surveys

Third-Party Surveys. Before a School official or a Staff member administers or distributes a survey or evaluation created by a third party, the student's parent or guardian may inspect the survey or evaluation, upon request. This provision applies to every survey that is created by a person or entity,

regardless of whether the student answering questions can be identified and regardless of the subject matter of the questions.

The Head Administrator shall assure that parents receive annual notification of these rights by distributing Form No. **3340.1**, Notification of Rights – Protection of Pupil Rights Amendment.

Surveys Requesting Personal Information. The School must obtain prior written consent before the School requests or discloses the identity of any student who completes any survey or evaluation (created by any person or entity, including the School), that contains one or more of the following items:

- political affiliations or beliefs of the student or the student’s parent or guardian;
- mental or psychological problems suffered by the student or the student’s family;
- behavior or attitudes about sex;
- illegal, anti-social, self-incrimination, or demeaning behavior;
- critical appraisals of other individuals with whom students have close family relationships;
- legally recognized privileged or analogous relationships, such as those with lawyers, physicians, and ministers;
- religious practices, affiliations, of beliefs of the student or the student’s parent or guardian; and
- income other than that required by law to determine eligibility for participation in a program or for receiving financial assistance under such a program.

The School shall provide advance notice of any proposed student survey or evaluation asking about the protected information. The student may only participate in the survey or evaluation if the student’s parent or guardian provides written consent.

Selling or Marketing Student Information

Prior to administering any survey or evaluation designed to collect a student’s personal information to be sold or marketed, the School shall notify parents of the right to inspect and/or opt-out of the survey or evaluation. If the parent requests an opportunity to inspect the survey or evaluation, such an inspection shall be provided within a reasonable time period.

“Personal information” is defined as a student or parent’s first and last name, a home or other physical address, a telephone number, or a Social Security number.

This provision does not apply to the collection, disclosure, or use of personal information collected from students for the exclusive purpose of developing, evaluating, or providing educational products or services for, or to, students or educational institutions, such as the following:

- college or other postsecondary education recruitment, or military recruitment;
- book clubs, magazines, and programs providing access to low-cost literacy products;
- curriculum and instructional materials used by elementary schools and secondary schools;
- tests and assessments used by elementary schools and secondary schools to provide cognitive, evaluative, diagnostic, clinical, aptitude, or achievement information about students and the subsequent analysis and public release of the aggregate data;
- the sale by students of products or services to raise funds for School-related or education-related programs; and
- student recognition programs.

Federal: 20 U.S.C. § 1232h.

Cross Reference: Policy No. **3310**, Parental Involvement and Participation; Policy No. **3320**, Title I Parental Involvement Policy; Policy No. **3330**, Parent's Right-to-Know; Policy No. **3831**, Student Records and Release of Information; Policy No. **3832**, Confidential and Public Records; Form No. **3340.1**, Notification of Rights - Protection of Pupil Rights Amendment (PPRA).

3340.1 – Notification of Rights - Protection of Pupil Rights Amendment (PPRA)

Dear Parent or Guardian,

The Protection of Pupil Rights Amendment (PPRA) affords parents certain rights regarding their child(ren)'s participation in certain surveys, analyses, or evaluations. These include the right to:

- Consent/ Before Students are Required to Participate in a Survey That is Funded by the U.S. Department of Education (ED), if the Survey, Analysis or Evaluation One or More of the Following Protected Areas:
 1. Political affiliations or beliefs of the student or student's parents;
 2. Mental or psychological problems of the student or student's family;
 3. Sex behavior or attitudes;
 4. Illegal, anti-social, self-incriminating, or demeaning behavior;
 5. Critical appraisals of others with whom respondents have close family relationships;
 6. Legally recognized privileged relationships, such as with lawyers, doctors, or ministers;
 7. Religious practices, affiliations, or beliefs of the student or parents; or
 8. Income, other than as required by law to determine program eligibility.
- Notice/Opt Out/Receive Notice and the Opportunity to Opt a Student Out of:
 1. Any other protected information survey, regardless of funding;
 2. Any non-emergency, invasive physical exam or screening required as a condition of attendance, administered by the School or its agent, and not necessary to protect the immediate health and safety of a student, except for hearing, vision, or scoliosis screenings, or any physical exam or screening permitted or required under State law; and
 3. Activities involving collection, disclosure, or use of personal information obtained from students for marketing or to sell or otherwise distribute the information to others.
- Inspect/Upon Request and Before Administration or Use, a Parent May Inspect:
 1. Protected information surveys of students;
 2. Instruments used to collect personal information from students for any of the above marketing, sales, or other distribution purposes; and
 3. Instructional material used as part of the educational curriculum.

These rights transfer to from the parents to a student who is 18 years old or an emancipated minor under Ohio law.

The School has adopted Policies, in consultation with parents, regarding these rights, as well as arrangements to protect student privacy in the administration of protected information surveys and the collection, disclosure, or use of personal information for marketing, sales, or other distribution purposes. The School will directly notify parents of these policies at least annually at the start of each school year and after any substantive changes. The School will also directly notify, such as through U.S. Mail or email, parents of students who are scheduled to participate in the specific activities or surveys noted below and will provide an opportunity for the parent to opt his or her child out of participation in the specific activity or survey. The School will make this notification to parents at the beginning of the school year if the District has identified the specific or approximate dates of the activities or surveys at

that time. For surveys and activities scheduled after the school year starts, parents will be provided reasonable notification of the planned activities and surveys listed below and be provided an opportunity to opt their child out of such activities and surveys. Parents will also be provided an opportunity to review any pertinent surveys. Following is a list of the specific activities and surveys covered under this requirement:

- Collection, disclosure, or use of personal information for marketing, sales or other distribution.
- Administration of any protected information survey not funded in whole or in part by ED.
- Any non-emergency, invasive physical examination or screening as described above.

Parents who believe their rights have been violated may file a complaint with:

Family Policy Compliance Office

U.S. Department of Education

400 Maryland Avenue, SW

Washington, D.C. 20202

Attached are a schedule of activities that require parental notice and consent for the upcoming year.

3400 – School and Program Assessment

Policy No. 3420

3420 – Annual Reporting Requirements

The Head Administrator is directed to develop, implement, and oversee policies and procedures to ensure that the School complies with all reporting requirements required by state or federal laws or regulations.

State Reporting Requirements

The Governing shall provide the following assurances in writing to the Ohio Department of Education not later than ten business days prior to the opening of the school:

- A. That the School has a plan for providing special education and related services to students with disabilities and has demonstrated the capacity to provide those services in accordance with Chapter 3323. of the Revised Code and federal law;
- B. That the School has a plan and procedures for administering the achievement and diagnostic assessments prescribed by sections [3301.0710](#), [3301.0712](#), and [3301.0715](#) of the Revised Code;
- C. That School personnel have the necessary training, knowledge, and resources to properly use and submit information to all databases maintained by the department for the collection of education data, including the education management information system established under section [3301.0714](#) of the Revised Code;
- D. That all required information about the school has been submitted to the Ohio education directory system or any successor system;
- E. That all classroom teachers are licensed in accordance with sections [3319.22](#) to [3319.31](#) of the Revised Code or are engaged to teach pursuant to section [3319.301](#) of the Revised Code;
- F. That the School's treasurer is in compliance with section [3326.21](#) of the Revised Code;
- G. That the School has complied with sections [3319.39](#) and [3319.391](#) of the Revised Code with respect to all employees and that the school has conducted a criminal records check of each of its governing body members;
- H. That the School holds all of the following:
 - I. Proof of property ownership or a lease for the facilities used by the school;
 - J. A certificate of occupancy;
 - K. Liability insurance for the school, as required by section [3326.11](#) of the Revised Code;
 - L. A satisfactory health and safety inspection;
 - M. A satisfactory fire inspection;
 - N. A valid food permit, if applicable.
- O. That the Governing Authority has conducted a pre-opening site visit to the School for the school year for which the assurances are provided;
- P. That the School has designated a date it will open for the school year for which the assurances are provided;
- Q. That the School has met all of the Governing Authority's requirements for opening and any other requirements of the Governing Authority.

Federal Reporting Requirements

If the School is receiving Title I funds, the Head Administrator shall annually review the School's progress using State academic assessments to determine whether the School is making adequate yearly progress.

The report shall be publicized and disseminated to parents, teachers, administrators, and the community so that the teachers, administrators, and School staff can continually refine, in an instructionally useful manner, the educational program.

Federal: 20 U.S.C. § 6316(a)(1)(A), 20 U.S.C. §6316(a)(1)(C).

Ohio: R.C. 3326.23.

Cross Reference: Policy No. **1730**, Duty to Report Certain School Information;

3440 – National Assessment of Educational Progress

Pursuant to federal law, annual and biennial academic assessments will be conducted by the Commissioner for Education Statistics for the purpose of providing a fair and accurate measurement of student academic achievement in reading, mathematics, and other subject areas.

All participation is voluntary. Parents of children selected to participate in any assessment authorized under 20 U.S.C. § 9622 shall be informed prior to the administration of any authorized assessment that their child may be excused from participation for any reason, is not required to finish any assessment, and is not required to answer any test question.

Except for redactions of personally identifiable information, parents and other members of the public shall have access to all assessment data, questions, and instruments used in the assessment. The School shall make reasonable efforts to inform parents and members of the public of this right of access.

Federal: 20 U.S.C. § 9622 (c)(1)(a), 20 U.S.C. § 9622 (d).

Cross Reference: Policy No. **3340**, Parental Rights under the Protection of Pupil Rights Amendment (PPRA).

3450 – Financial Needs Assessment

Upon initial application for a Comprehensive Continuous Improvement Plan (“CCIP”) Grant, the School shall develop a needs assessment. Such a needs assessment shall be a unified, comprehensive plan which takes into consideration all programs, available funding, future plans, and expected funding including, but not limited to, federal grants, title funds, state grants, and local funding. To the extent reasonably possible, students, parents, administrators, Staff members, and other members of the community shall be included in the development of the needs assessment through the formation and utilization of a committee. This needs assessment and shall be reviewed and revised on a regular basis.

3500 – Admission, Retention, and Graduation

3510 – Enrollment

Policy No. 3511

3511 – Admission Procedure

Admission is open to any individual between the ages of five (5) and twenty-two (22) who, pursuant to Ohio law, is entitled to attend school. In making admission decisions, the School shall not discriminate on the basis of race, color, creed, sex, or disabling condition. Upon admission of any student with a disability, the School will comply with all federal and state laws regarding the education of students with disabilities.

The Parent or Guardian of the Student or Student (age 18 or over), shall notify the School when there is a change in the Parent/Guardian or Student's primary residence.

The School may accept out-of-state students on a tuition basis.

Unless the School serves only students identified as gifted under Chapter 3324. of the Revised Code, the School will not limit admission to students on the basis of intellectual ability, measures of achievement or aptitude, or athletic or artistic ability.

The School will assert its best effort to attract a diverse student body that reflects the community, and the school will recruit students from disadvantaged and underrepresented groups.

Ohio: R.C. 3326.10; R.C. 3313.98.

Cross Reference: Policy No. **3512**, Kindergarten Admission.

3511.1 – Enrollment Information**Admission and Enrollment**

If your child is between six and 18 years of age, or if your child is under age six but has been enrolled in kindergarten, he or she is "of compulsory school age" in Ohio.

Admission to Community STEAM Academy -Xenia ("the School") is open to any individual between the ages of five and 22 who is entitled to attend school under state law. To attend kindergarten at the School, a child must be five years old by August 1 of the year of admission. Children under the age of five may be admitted under certain circumstances provided under Ohio law. If your child is not five years old by August 1, your child may be admitted if he or she has been recommended in accordance with the School's acceleration policy. The child shall be evaluated for early admittance upon referral by the child's parent or guardian, an educator employed by the School, a preschool educator who knows the child, or a pediatrician or psychologist who knows the child. The School's referral form is available at Form No. **3512.1**, Early Entrance to Kindergarten.

The School will not deny a transferring student admission, based on the student's age, if the student had been admitted to kindergarten by another school.

In making admission decisions, the School shall not discriminate on the basis of race, color, creed, sex, or disabling condition. The School will comply with all federal and state laws regarding the education of students with disabilities.

Unless the School serves only students identified as gifted under Chapter 3324. of the Revised Code, the School will not limit admission to students on the basis of intellectual ability, measures of achievement or aptitude, or athletic or artistic ability. The School will not offer or give any monetary payment or in-kind gift to any student or student's family as an incentive for the student to enroll in the School.

The School may accept out-of-state students on a tuition basis.

The Parent or Guardian of the Student or Student (age 18 or over), shall notify the School when there is a change in the Parent/Guardian or Student's primary residence.

Records and Documentation

Upon admission into the School, all students shall be required to provide the following:

- any records from the public or nonpublic elementary or secondary school the student most recently attended;
- if issued and applicable, a certified copy of an order or decree, or modification of such an order or decree, allocating parental rights and responsibilities for the care of a child and designating a residential parent and legal custodian of the child¹²;

¹² After enrollment, whenever there is a modification of any order or decree allocating parental rights and responsibilities for the care of a child and designating a residential parent and legal custodian of the child that has

- a copy of a power of attorney or caretaker authorization affidavit, if either has been executed with respect to the child; and
- a birth certificate or one of the following comparable documents: (1) a certification of birth; (2) Passport or attested transcript of a passport filed with a registrar of passports at a point of entry of the United States showing the date and place of birth of the child; (3) An attested transcript of the certificate of birth; (4) An attested transcript of the certificate of baptism or other religious record showing the date and place of birth of the child; (5) An attested transcript of a hospital record showing the date and place of birth of the child; (6) A birth affidavit.

Upon enrolling a student, the School will request records within 24 hours from the school your student most recently attended. If the records are not received within seven days, a second request will be made, and the Head Administrator shall directly contact the school.

You or your student must notify the School if the student is under the care of a shelter for victims of domestic violence at the time of initial enrollment. Upon being so informed, the School will inform the elementary or secondary school from which it requests the student's records of that fact.

If the school your student claims to have most recently attended indicates that it has no record of the student's attendance or the records are not received within 14 days of the date of request, or if the student does not present a birth certificate or comparable document (listed above), the Head Administrator shall notify the law enforcement agency having jurisdiction in the area where the student resides of this fact and of the possibility that the student may be a missing child.

A student who has been discharged or released from the custody of the department of youth services under R.C. 5139.51 just prior to requesting admission to the School will not be admitted until the records described in R.C. 2152.18 (D)(4)(a) to (d) have been received by the Head Administrator.

The School will not deny admission to a protected child placed in a foster home or residential facility (as defined in the Ohio Revised Code) solely because the protected child does not present a birth certificate or comparable document. However, the protected child or the protected child's parent, custodian, or guardian shall present a birth certificate or comparable document (listed above) within 90 days after the protected child's entry to the School.

The School will comply with all records requests within two business days, make copies of the student's records, and keep the records on file.

If an order or decree allocating parental rights and responsibilities for the care of a child and designating a residential parent and legal custodian of the child, including a temporary order, is issued resulting from an action of divorce, alimony, annulment, or dissolution of marriage, and the order or decree pertains to a child enrolled in the School, the residential parent of the child shall provide the School with a certified copy of the order or decree.

been submitted to the School, the residential parent shall provide the School with a certified copy of the order or decree that makes the modification.

School Performance Notification

As part of the admissions process, you are entitled to receive the enclosed copy of the most recent report card for the School.

Ohio: R.C. 3313.6411, R.C. 3313.672, , R.C. 3321.01, R.C. 3326.10, R.C. 3326.11.

3512 – Kindergarten Admission

In order to attend kindergarten a child must be 5 years old by August 1 of the year of admission.

Exception for Recommended Admittance

A child that does not meet the age requirements may be admitted if the child has been recommended in accordance with the School's acceleration policy. The child shall be evaluated for early admittance upon referral by the child's parent or guardian, an educator employed by the School, a preschool educator who knows the child, or a pediatrician or psychologist who knows the child. The School's referral form is available at, Form No. **3512.1**, Early Entrance to Kindergarten.

Exception for Transfer Student Admission

The School will not deny a transferring student admission, based on the student's age, if the student had been admitted to kindergarten by another school.

Ohio: R.C. 3321.01, R.C. 3326.11.

Cross Reference: Policy No. **3511**, Admission Procedure; Form No. **3512.1**, Early Entrance to Kindergarten.

3512.1 – Early Entrance To Kindergarten

Adopted from the Ohio Department of Education Referral Form

REFERRAL FOR:

Child Name _____

Address _____

Phone__ Email_____

The child I am referring will be 5 years old before August 1: Yes_____ No_____

Children who will benefit from early entrance may not exhibit all of the characteristics listed below; however, strong candidates will exhibit more of these characteristics than other children.

What to look for in the areas of ability/achievement/aptitude/behavior?

My child seems advanced beyond other children his/her age in these ways:

- Understands the meanings and use of words better than other children his/her age;
- Is curious about many things and asks questions often;
- Is very good at working puzzles or solving problems;
- Has a great sense of humor and understands jokes more than other children his/her age;
- Has a good memory and remembers details of conversations or stories;
- Is interested in difficult concepts such as time and space;
- Concentrates on certain activities much longer than other children his/her age;
- Reads (and understands text) in picture books or chapter books;
- Figures out math-related problems better than other children his/her age.

What are some important school and academic factors?

My child:

- Enjoys learning new information or skills;
- Participates in community-sponsored activities such as sports, dance, gymnastics, library and museum programs;
- Believes he/she is capable of succeeding at new tasks.

What are some important developmental factors?

My child has the following developmental characteristics;

- He/she has average fine and large motor coordination (i.e., holding a pencil, skipping);
- He/she is able to use the computer to play games or find information.

What are some important interpersonal skills for entering school?

My child:

- Thoughtfully considers feedback and criticism and modifies behavior appropriately;
- Often behaves in a way that is positive and effective;

- Has good interpersonal skills with age-mates, as well as with both older and younger children and with adults;
- Has excellent interpersonal relationships with adults in a teaching role.

What are some important attitudes and supports necessary for success in school?

My child is:

R. enthusiastic about going to kindergarten or first grade.

As a parent or guardian, I understand that a child's success in school depends on support provided at home. I am able to give my child additional support to help in his/her transition to a new setting with much higher academic demands than he/she encountered in preschool.

Some considerations:

My child:

- Has one or more older siblings in the grade in which he/she will be placed if admitted by early entrance which may cause social/emotional issues in the family. In which case, acceleration may not be advisable.
- Often did not want to attend preschool or missed preschool often because of illness or family issues.

I believe that my child exhibits a number of the characteristics listed above that indicate he/she might benefit by entering Kindergarten. I have reviewed the considerations and do not feel they would negatively impact my child's success in school. I request evaluation for my child for possible early entrance to kindergarten.

Name: _____ Relationship to Child: _____

Signature: _____ Date _____

The referral request will be processed, and parents will receive the final determination for early entrance in 45-60 days from the date the referral is received.

School Representative Receiving Referral _____

School _____

Date _____

3515 – Required Documents Upon Admission

The School and Ohio law require certain documents, records, and other information be provided upon the student's enrollment in the School. The Head Administrator is hereby directed to develop and implement rules and procedures as necessary to ensure that the School complies with this Policy and all other applicable laws.

Records and Documentation

Upon admission into the School, all students shall be required to provide the following:

- any records from the public or nonpublic elementary or secondary school the student most recently attended,
- if issued and applicable, a certified copy of an order or decree, or modification of such an order or decree allocating parental rights and responsibilities for the care of a child and designating a residential parent and legal custodian of the child,
- if executed and applicable, a copy of a power of attorney or caretaker authorization affidavit, if either has been executed with respect to the child, and
- a birth certificate or Comparable Document, as defined below.

Upon enrolling a student, the School shall make a request for records within twenty-four (24) hours from the school the student most recently attended. If the records are not received within seven (7) days, a second request will be made, and the Head Administrator shall directly contact the school.

If the school the student claims to have most recently attended indicates that it has no record of the student's attendance or the records are not received within fourteen (14) days of the date of request, or if the student does not present a birth certificate or other Comparable Document, the Head Administrator shall notify the law enforcement agency having jurisdiction in the area where the student resides of this fact and of the possibility that the student may be a missing child.

A Comparable Document is defined to include any of the following: (1) a certification of birth; (2) Passport or attested transcript of a passport filed with a registrar of passports at a point of entry of the United States showing the date and place of birth of the child; (3) An attested transcript of the certificate of birth; (4) An attested transcript of the certificate of baptism or other religious record showing the date and place of birth of the child; (5) An attested transcript of a hospital record showing the date and place of birth of the child; (6) A birth affidavit.

Protected Child Admission

For purposes of this Policy, a Protected Child is defined as a child placed in a Foster Home or Residential Facility, as defined in the Revised Code.

The School shall not deny a Protected Child admission to the School solely because the Protected Child does not present a birth certificate or Comparable Document. However, the Protected Child or the Protected Child's parent, custodian or guardian shall present a birth certificate or Comparable Document within ninety days after the Protected Child's entry to the School

Receiving Records Requests

The School shall comply with all records requests within two (2) business days. The School shall make copies of the student's records and keep the records on file.

Grandparent Caretaker Requirements

A child who is living with and being cared for by grandparents may enroll in and attend the School, so long as the Grandparents/caretaker provide the documents and records above and all of the following documents:

- *Power of Attorney.* Under Ohio law, A child's parent, guardian, or custodian may create a power of attorney that grants to the grandparent with whom the child is residing any of the parent's, guardian's, or custodian's rights and responsibilities regarding the care, physical custody, and control of the child, including the ability to enroll the child in school, to obtain from the school district educational and behavioral information about the child, to consent to all school-related matters regarding the child, and to consent to medical, psychological, or dental treatment for the child. The power of attorney does not affect the rights of the parent, guardian, or custodian of the child in any future proceeding concerning custody of the child or the allocation of parental rights and responsibilities for the care of the child and does not grant legal custody to the attorney in fact. To create a Power of Attorney, an individual must use Form No. **3515.1**, Grandparent Power of Attorney.
- *Caretaker Authorization Affidavit.* A caretaker authorization form, included as Form No. **3515.2**, is a document that authorizes the grandparent to exercise care, physical custody, and control of the child, including, but not limited to, the authority to enroll the child in school, the discuss with the school the child's educational progress, to consent to all school-related matters regarding the child, and to consent to medical, psychological, or dental treatment for the child. Such a form can only be executed by grandparent if the grandparent has made reasonable attempts to locate or contact the child's parents but has been unable to do so. To create a Caretaker Authorization Affidavit, an individual must use Form No. **3515.2**, Caretaker Authorization Affidavit.

The Power of Attorney and/or Caretaker Authorization Affidavit are terminated if (1) revoked in writing and notice is provided; (2) the child ceases to reside with the grandparent; (3) court order; (4) the child's death; or (5) the grandparent's death.

Ohio law prohibits individuals from executing the Power of Attorney or the Caretaker Authorization Affidavit if the purpose is to enroll the child in the School so that the child may participate in academic or interscholastic activities offered by the School. Power of Attorney or Caretaker Authorization Affidavits submitted for this reason are void and are punishable as a misdemeanor of the first degree.

Ohio: R.C. 3313.672, R.C. 3109.52, R.C. 3109.65, R.C. 3109.80, R.C. 3109.78.

Cross Reference: Policy No. **3833**, Tracking Missing Children; Form No. **3515.1**, Grandparent Power of Attorney; Form No. **3515.2**, Caretaker Authorization Affidavit.

3515.1 – Grandparent Power of Attorney

Ohio requires this form be used as it is identical to R.C. 3109.53

I, the undersigned, residing at _____, in the county of _____, state of _____, hereby appoint the child's grandparent, _____, residing at _____, in the county of _____, in the state of Ohio, with whom the child of whom I am the parent, guardian, or custodian is residing, my attorney in fact to exercise any and all of my rights and responsibilities regarding the care, physical custody, and control of the child, _____, born _____, having social security number (optional) _____, except my authority to consent to marriage or adoption of the child _____, and to perform all acts necessary in the execution of the rights and responsibilities hereby granted, as fully as I might do if personally present. The rights I am transferring under this power of attorney include the ability to enroll the child in school, to obtain from the school district educational and behavioral information about the child, to consent to all school-related matters regarding the child, and to consent to medical, psychological, or dental treatment for the child. This transfer does not affect my rights in any future proceedings concerning the custody of the child or the allocation of the parental rights and responsibilities for the care of the child and does not give the attorney in fact legal custody of the child. This transfer does not terminate my right to have regular contact with the child.

I hereby certify that I am transferring the rights and responsibilities designated in this power of attorney because one of the following circumstances exists:

- 1) I am: (a) Seriously ill, incarcerated or about to be incarcerated, (b) Temporarily unable to provide financial support or parental guidance to the child, (c) Temporarily unable to provide adequate care and supervision of the child because of my physical or mental condition, (d) Homeless or without a residence because the current residence is destroyed or otherwise uninhabitable, or (e) In or about to enter a residential treatment program for substance abuse;
- 2) I am a parent of the child, the child's other parent is deceased, and I have authority to execute the power of attorney; or
- 3) I have a well-founded belief that the power of attorney is in the child's best interest.

I hereby certify that I am not transferring my rights and responsibilities regarding the child for the purpose of enrolling the child in a school or school district so that the child may participate in the academic or interscholastic athletic programs provided by that school or district.

I understand that this document does not authorize a child support enforcement agency to redirect child support payments to the grandparent designated as attorney in fact. I further understand that to have an existing child support order modified or a new child support order issued administrative or judicial proceedings must be initiated.

If there is a court order naming me the residential parent and legal custodian of the child who is the subject of this power of attorney and I am the sole parent signing this document, I hereby certify that one of the following is the case:

- 1) I have made reasonable efforts to locate and provide notice of the creation of this power of attorney to the other parent and have been unable to locate that parent;
- 2) The other parent is prohibited from receiving a notice of relocation; or
- 3) The parental rights of the other parent have been terminated by order of a juvenile court.

This POWER OF ATTORNEY is valid until the occurrence of whichever of the following events occurs first: (1) I revoke this POWER OF ATTORNEY in writing and give notice of the revocation to the grandparent designated as attorney in fact and the juvenile court with which this POWER OF ATTORNEY was filed; (2) the child ceases to reside with the grandparent designated as attorney in fact; (3) this POWER OF ATTORNEY is terminated by court order; (4) the death of the child who is the subject of the power of attorney; or (5) the death of the grandparent designated as the attorney in fact.

WARNING: DO NOT EXECUTE THIS POWER OF ATTORNEY IF ANY STATEMENT MADE IN THIS INSTRUMENT IS UNTRUE. FALSIFICATION IS A CRIME UNDER SECTION 2921.13 OF THE REVISED CODE, PUNISHABLE BY THE SANCTIONS UNDER CHAPTER 2929. OF THE REVISED CODE, INCLUDING A TERM OF IMPRISONMENT OF UP TO 6 MONTHS, A FINE OF UP TO \$1,000, OR BOTH.

Witness my hand this _____ day of _____, _____.

Parent/Custodian/Guardian's signature

Parent's signature

Grandparent designated as attorney in fact

State of Ohio)

) ss:

County of _____)

Subscribed, sworn to, and acknowledged before me this _____ day of _____, _____.

Notary Public

Notices Regarding Grandparent Power of Attorney

1. A power of attorney may be executed only if one of the following circumstances exists:
(1) The parent, guardian, or custodian of the child is: (a) Seriously ill, incarcerated or about to be incarcerated; (b) Temporarily unable to provide financial support or parental guidance to the child; (c) Temporarily unable to provide adequate care and supervision of the child because of the parent's, guardian's, or custodian's physical or mental condition; (d) Homeless or without a residence because the current residence is destroyed or otherwise uninhabitable; or (e) In or about to enter a residential treatment program for substance abuse; (2) One of the child's parents is deceased and the other parent, with authority to do so, seeks to execute a power of attorney; or (3) The parent, guardian, or custodian has a well-founded belief that the power of attorney is in the child's best interest.
2. The signatures of the parent, guardian, or custodian of the child and the grandparent designated as the attorney in fact must be notarized by an Ohio notary public.
3. A parent, guardian, or custodian who creates a power of attorney must notify the parent of the child who is not the residential parent and legal custodian of the child unless one of the following circumstances applies: (a) the parent is prohibited from receiving a notice of relocation in accordance with section 3109.051 of the Revised Code of the creation of the power of attorney; (b) the parent's parental rights have been terminated by order of a juvenile court pursuant to Chapter 2151. of the Revised Code; (c) the parent cannot be located with reasonable efforts; (d) both parents are executing the power of attorney. The notice must be sent by certified mail not later than five days after the power of attorney is created and must state the name and address of the person designated as the attorney in fact.
4. A parent, guardian, or custodian who creates a power of attorney must file it with the juvenile court of the county in which the attorney in fact resides, or any other court that has jurisdiction over the child under a previously filed motion or proceeding. The power of attorney must be filed not later than five days after the date it is created and be accompanied by a receipt showing that the notice of creation of the power of attorney was sent to the parent who is not the residential parent and legal custodian by certified mail.
5. A parent, guardian, or custodian who creates a second or subsequent power of attorney regarding a child who is the subject of a prior power of attorney must file the power of attorney with the juvenile court of the county in which the attorney in fact resides or any other court that has jurisdiction over the child under a previously filed motion or proceeding. On filing, the court will schedule a hearing to determine whether the power of attorney is in the child's best interest.

6. This power of attorney does not affect the rights of the child's parents, guardian, or custodian regarding any future proceedings concerning the custody of the child or the allocation of the parental rights and responsibilities for the care of the child and does not give the attorney in fact legal custody of the child.
7. A person or entity that relies on this power of attorney, in good faith, has no obligation to make any further inquiry or investigation.
8. This power of attorney terminates on the occurrence of whichever of the following occurs first: (1) one year elapses following the date the power of attorney is notarized; (2) the power of attorney is revoked in writing by the person who created it; (3) the child ceases to live with the grandparent who is the attorney in fact; (4) the power of attorney is terminated by court order; (5) the death of the child who is the subject of the power of attorney; or (6) the death of the grandparent designated as the attorney in fact.
9. If this power of attorney terminates other than by the death of the attorney in fact, the grandparent who served as the attorney in fact shall notify, in writing, all of the following:
 - (a) Any schools, health care providers, or health insurance coverage provider with which the child has been involved through the grandparent;
 - (b) Any other person or entity that has an ongoing relationship with the child or grandparent such that the other person or entity would reasonably rely on the power of attorney unless notified of the termination;
 - (c) The court in which the power of attorney was filed after its creation; and
 - (d) The parent who is not the residential parent and legal custodian of the child who is required to be given notice of its creation. The grandparent shall make the notifications not later than one week after the date the power of attorney terminates.
10. If this power of attorney is terminated by written revocation of the person who created it, or the revocation is regarding a second or subsequent power of attorney, a copy of the revocation must be filed with the court with which that power of attorney was filed.

Additional information:

To the grandparent designated as attorney in fact:

1. If the child stops living with you, you are required to notify, in writing, any school, health care provider, or health care insurance provider to which you have given this power of attorney. You are also required to notify, in writing, any other person or entity that has an ongoing relationship with you or the child such that the person or entity would reasonably rely on the power of attorney unless notified. The notification must be made not later than one week after the child stops living with you.
2. You must include with the power of attorney the following information:

- (a) The child's present address, the addresses of the places where the child has lived within the last five years, and the name and present address of each person with whom the child has lived during that period;
- (b) Whether you have participated as a party, a witness, or in any other capacity in any other litigation, in this state or any other state, that concerned the allocation, between the parents of the same child, of parental rights and responsibilities for the care of the child and the designation of the residential parent and legal custodian of the child or that otherwise concerned the custody of the same child;
- (c) Whether you have information of any parenting proceeding concerning the child pending in a court of this or any other state;
- (d) Whether you know of any person who has physical custody of the child or claims to be a parent of the child who is designated the residential parent and legal custodian of the child or to have parenting time rights with respect to the child or to be a person other than a parent of the child who has custody or visitation rights with respect to the child.
- (e) Whether you previously have been convicted of or pleaded guilty to any criminal offense involving any act that resulted in a child being an abused child or a neglected child or previously have been determined, in a case in which a child has been adjudicated an abused child or a neglected child, to be the perpetrator of the abusive or neglectful act that was the basis of the adjudication.

To school officials:

- 1. Except as provided in section 3313.649 of the Revised Code, this power of attorney, properly completed and notarized, authorizes the child in question to attend school in the district in which the grandparent designated as attorney in fact resides and that grandparent is authorized to provide consent in all school-related matters and to obtain from the school district educational and behavioral information about the child. This power of attorney does not preclude the parent, guardian, or custodian of the child from having access to all school records pertinent to the child.
- 2. The school district may require additional reasonable evidence that the grandparent lives in the school district.
- 3. A school district or school official that reasonably and in good faith relies on this power of attorney has no obligation to make any further inquiry or investigation.

To health care providers:

- 1. A person or entity that acts in good faith reliance on a power of attorney to provide medical, psychological, or dental treatment, without actual knowledge of facts contrary to those stated in the power of attorney, is not subject to criminal liability or to civil liability to any person or entity, and is not subject to professional disciplinary action, solely for such reliance if the power of attorney is completed and the signatures of the parent, guardian, or custodian of the child and the grandparent designated as attorney in fact are notarized.
- 2. The decision of a grandparent designated as attorney in fact, based on a power of attorney, shall be honored by a healthcare facility or practitioner, school district, or school official.

3515.2 – Caretaker Authorization Affidavit

Use of this affidavit is required and authorized by sections 3109.65 to 3109.73 of the Ohio Revised Code. Completion of items 1-7 and the signing and notarization of this affidavit is sufficient to authorize the grandparent signing to exercise care, physical custody, and control of the child who is its subject, including authority to enroll the child in school, to discuss with the school district the child's educational progress, to consent to all school-related matters regarding the child, and to consent to medical, psychological, dental treatment for the child.

The child named below lives in my home, I am 18 years of age or older, and I am the child's grandparent.

1. Name of child: _____
2. Child's date and year of birth: _____
3. Child's social security number (optional): _____
4. My name: _____
5. My home address: _____
6. My date and year of birth: _____
7. My Ohio driver's license number or identification card number: _____
8. Despite having made reasonable attempts, I am either:
 - a. Unable to locate or contact the child's parents, or the child's guardian or custodian; or
 - b. I am unable to locate or contact one of the child's parents and I am not required to contact the other parent because paternity has not been established; or
 - c. I am unable to locate or contact one of the child's parents and I am not required to contact the other parent because there is a custody order regarding the child and one of the following is the case:
 - i. The parent has been prohibited from receiving notice of a relocation; or
 - ii. The parental rights of the parent have been terminated.
9. I hereby certify that this affidavit is not being executed for the purpose of enrolling the child in a school or school district so that the child may participate in the academic or interscholastic athletic programs provided by that school district.

I understand that this document does not authorize a child support enforcement agency to redirect child support payments. I further understand that to have an existing child support order modified or a new child support order issued administrative or judicial proceedings must be initiated.

WARNING: DO NOT SIGN THIS FORM IF ANY OF THE ABOVE STATEMENTS ARE INCORRECT.

FALSIFICATION IS A CRIME UNDER SECTION 2921.13 OF THE REVISED CODE, PUNISHABLE BY THE SANCTIONS UNDER CHAPTER 2929. OF THE REVISED CODE, INCLUDING A TERM OF IMPRISONMENT OF UP TO 6 MONTHS, A FINE OF UP TO \$1,000, OR BOTH.

I declare that the foregoing is true and correct:

Signed: _____ Date: _____
Grandparent

State of Ohio)

) ss:

County of)

Subscribed, sworn to, and acknowledged before me this ____ day of, ____, ____.

Notary Public

Notices of Caretaker Authorization

1. The grandparent's signature must be notarized by an Ohio notary public.
2. The grandparent who executed this affidavit must file it with the juvenile court of the county in which the grandparent resides or any other court that has jurisdiction over the child under a previously filed motion or proceeding not later than five days after the date it is executed.
3. This affidavit does not affect the rights of the child's parents, guardian, or custodian regarding the care, physical custody, and control of the child, and does not give the grandparent legal custody of the child.
4. A person or entity that relies on this affidavit, in good faith, has no obligation to make any further inquiry or investigation.
5. This affidavit terminates on the occurrence of whichever of the following occurs first: (1) the child ceases to live with the grandparent who signs this form; (2) the parent, guardian, or custodian of the child acts to negate, reverse, or otherwise disapprove an action or decision of the grandparent who signed this affidavit, and the grandparent either voluntarily returns the child to the physical custody of the parent, guardian, or custodian or fails to file a complaint to seek custody within fourteen days (3) the affidavit is terminated by court order; (4) the death of the child who is the subject of the affidavit; or (5) the death of the grandparent who executed the affidavit.

A parent, guardian, or custodian may negate, reverse, or disapprove a grandparent's action or decision only by delivering written notice of negation, reversal, or disapproval to the grandparent and the person acting on the grandparent's action or decision in reliance on this affidavit.

If this affidavit terminates other than by the death of the grandparent, the grandparent who signed this affidavit shall notify, in writing, all of the following:

- (a) Any schools, health care providers, or health insurance coverage provider with which the child has been involved through the grandparent;
- (b) Any other person or entity that has an ongoing relationship with the child or grandparent such that the person or entity would reasonably rely on the affidavit unless notified of the termination;
- (c) The court in which the affidavit was filed after its creation.

The grandparent shall make the notifications not later than one week after the date the affidavit terminates.

6. The decision of a grandparent to consent to or to refuse medical treatment or school enrollment for a child is superseded by a contrary decision of a parent, custodian, or guardian of the child, unless the decision of the parent, guardian, or custodian would jeopardize the life, health, or safety of the child.

Additional information:

To caretakers:

1. If the child stops living with you, you are required to notify, in writing, any school, health care provider, or health care insurance provider to which you have given this affidavit. You are also required to notify, in writing, any other person or entity that has an ongoing relationship with you or the child such that the person or entity would reasonably rely on the affidavit unless notified. The notifications must be made not later than one week after the child stops living with you.
2. If you do not have the information requested in item 7 (Ohio driver's license or identification card), provide another form of identification such as your social security number or Medicaid number.
3. You must include with the caretaker authorization affidavit the following information:
 - (a) The child's present address, the addresses of the places where the child has lived within the last five years, and the name and present address of each person with whom the child has lived during that period;
 - (b) Whether you have participated as a party, a witness, or in any other capacity in any other litigation, in this state or any other state, that concerned the allocation, between the parents of the same child, of parental rights and responsibilities for the care of the child and the designation of the residential parent and legal custodian of the child or that otherwise concerned the custody of the same child;
 - (c) Whether you have information of any parenting proceeding concerning the child pending in a court of this or any other state;
 - (d) Whether you know of any person who has physical custody of the child or claims to be a parent of the child who is designated the residential parent and legal custodian of the child or to have parenting time rights with respect to the child or to be a person other than a parent of the child who has custody or visitation rights with respect to the child;
 - (e) Whether you previously have been convicted of or pleaded guilty to any criminal offense involving any act that resulted in a child's being an abused child or a neglected child or previously have been determined, in a case in which a child has been adjudicated an abused child or a neglected child, to be the perpetrator of the abusive or neglectful act that was the basis of the adjudication.
4. If the child's parent, guardian, or custodian acts to terminate the caretaker authorization affidavit by delivering a written notice of negation, reversal, or disapproval of an action or decision of yours or removes the child from your home and if you believe that the termination or removal is not in the best interest of the child, you may, within fourteen days, file a complaint in the juvenile court to seek custody. You may retain physical custody of the child until the fourteen-day period elapses or, if you file a complaint, until the court orders otherwise.

To school officials:

1. This affidavit, properly completed and notarized, authorizes the child in question to attend school in the district in which the grandparent who signed this affidavit resides and the grandparent is authorized to provide consent in all school-related matters and to discuss with

the school district the child's educational progress. This affidavit does not preclude the parent, guardian, or custodian of the child from having access to all school records pertinent to the child.

2. The school district may require additional reasonable evidence that the grandparent lives at the address provided in item 5 of the affidavit.
3. A school district or school official that reasonably and in good faith relies on this affidavit has no obligation to make any further inquiry or investigation.
4. The act of a parent, guardian, or custodian of the child to negate, reverse, or otherwise disapprove an action or decision of the grandparent who signed this affidavit constitutes termination of this affidavit. A parent, guardian, or custodian may negate, reverse, or disapprove a grandparent's action or decision only by delivering written notice of negation, reversal, or disapproval to the grandparent and the person acting on the grandparent's action or decision in reliance on this affidavit.

To health care providers:

1. A person or entity that acts in good faith reliance on a CARETAKER AUTHORIZATION AFFIDAVIT to provide medical, psychological, or dental treatment, without actual knowledge of facts contrary to those stated in the affidavit, is not subject to criminal liability or to civil liability to any person or entity, and is not subject to professional disciplinary action, solely for such reliance if the applicable portions of the form are completed and the grandparent's signature is notarized.
2. The decision of a grandparent, based on a CARETAKER AUTHORIZATION AFFIDAVIT, shall be honored by a healthcare facility or practitioner, school district, or school official unless the health care facility or practitioner or educational facility or official has actual knowledge that a parent, guardian, or custodian of a child has made a contravening decision to consent to or to refuse medical treatment for the child.
3. The act of a parent, guardian, or custodian of the child to negate, reverse, or otherwise disapprove an action or decision of the grandparent who signed this affidavit constitutes termination of this affidavit. A parent, guardian, or custodian may negate, reverse, or disapprove a grandparent's action or decision only by delivering written notice of negation, reversal, or disapproval to the grandparent and the person acting on the grandparent's action or decision in reliance on this affidavit.

3515.3 – Records Request of Certain Students

[DELETE BEFORE SENDING: Only use this letter when the transferring student has had a complaint filed alleging the student is an abused, neglected, or the transferring student has been adjudicated abused, neglected, or dependent]

[Date]

[Name & Address]

Dear _____:

This letter is a request for all the records you have of _____. As you may know, _____ has been transferred to [INSERT SCHOOL NAME]. As stated under Ohio Revised Code § 3313.672, we are required to obtain, and you are required by law to transfer, all of the student's official records. We ask that you comply with this request as quickly as possible so we can ensure that _____ is able to continue to receive an education.

As you may know, new law effective October 11, 2013, prohibits you from withholding grades, credits, official transcripts, IEPs, 504 plans, or diplomas for students like _____. R.C. 3313.642. Therefore, we respectfully request that you immediately transfer all of the student's transcripts, records, IEPs, and 504 plans immediately.

Sincerely,

Head Administrator

3515.4 – Records Request of Transferring Students

[DELETE BEFORE SENDING: Use this letter when the transferring student is not subject to special rules stated in Policy 3515]

[Date]

[Name & Address]

Dear _____:

This letter is a request for all the records you have of _____. As you may know, _____ has been transferred to [INSERT SCHOOL NAME]. As stated under Ohio Revised Code § 3313.672, we are required to obtain, and you are required by law to transfer, all of the student's official records. We ask that you comply with this request as quickly as possible so we can ensure that _____ is able to continue to receive an education.

Should we not receive the records from you, we will be required by law to contact the proper law enforcement agencies and notify them that the student may be a missing child. R.C. § 3313.672. Furthermore, to the extent that you are withholding the student's records pursuant to R.C. § 3313.642, the section does not permit you to withhold the student's transcripts, records, IEPs, and 504 plans. Therefore, we respectfully request that you transfer all of the student's transcripts, records, IEPs, and 504 plans immediately.

Sincerely,

Head Administrator

3516 – Homeless Children and Youth Placement

In accordance with the McKinney-Vento Homeless Assistance Act and Ohio law, the School believes all homeless children have a right to equal educational opportunities. The School shall provide services to each homeless child or youth that is comparable to services offered to other students in the School.

A “homeless” child or youth is an individual that lacks a fixed, regular and adequate nighttime residence and includes an individual that:

- is “doubling up” or is sharing the housing of other persons due to loss of housing, economic hardship, or a similar reason;
- is living in a motel, hotel, trailer park or campground due to the lack of alternative adequate accommodations;
- is living in emergency or transitional shelters;
- is abandoned in a hospital;
- is awaiting foster care;
- has a primary nighttime residence that is a public or private place not designed for, or ordinarily used as, a regular sleeping accommodation for human beings;
- is living in cars, parks, public spaces, abandoned buildings, substandard housing, bus or train stations, or similar settings; or
- is a migratory child as defined by the McKinney-Vento Act and Federal Law.

School Placement & Enrollment

In determining where a homeless child or youth attends school, the School shall place the child according to the child’s best interest. The determination shall be based on the following:

- when a child becomes homeless during the school year or in between school years, the School shall continue the child’s education in the school of origin for the duration of homelessness;
- if the child becomes permanently housed during an academic year, the School shall continue the child’s education in the school of origin for the remainder of the academic year;
- enroll the child or youth in any public school that non-homeless students who live in the attendance area in which the child or youth is actually living are eligible to attend; and
- Factors a school may consider include: the child’s age, the distance of a commute, personal safety issues, the student’s need for special instruction, length of anticipated time in a temporary shelter, time remaining in the school year.

The School shall keep a homeless child or youth in the “school of origin” unless the “school of origin” is contrary to the wishes of the child or youth’s parent guardian. The school of origin is the school the student attended when permanently housed or last enrolled. If the School wishes to send a homeless child to a school other than the school of origin or the school requested, the School must provide a written notice containing an explanation and a statement regarding the right to appeal the decision. The written notice explanation must be provided to the parent or guardian. The process for resolving disputes is discussed below.

Homeless students should be enrolled immediately. Enrollment shall occur even if the student does not have the enrollment records required by the School. The School shall contact the school last attended by the student to obtain health records and shall immediately refer the homeless child’s parent or

guardian to the School's homeless liaison so additional documents may be obtained. The School must obtain all records in a timely fashion.

Enrolled homeless students shall be provided services comparable to services offered to other students in the school. Services include, but are not limited to: transportation, programs in vocational and technical education, programs for gifted and talented students, school nutrition programs, and before/after school programs.

Disputes Regarding Placement

Should a dispute arise, the dispute resolution process should follow these guidelines. The dispute resolution process shall be as informal and accessible as possible, allowing for impartial and complete review. Students are to be provided with all services for which they are eligible while the dispute is being resolved. Parents, guardians, and unaccompanied youth should be able to initiate the resolution process directly at the school they choose, as well as at the district LEA homeless liaison's office. Parents, guardians, and unaccompanied youth should be informed that they can provide written or oral documentation to support their views. Written documentation should be complete, as brief as possible, simply stated, and be provided in a language the parent, guardian, or unaccompanied youth can understand.

Should a dispute arise over school selection or enrollment in a school the following procedure is to be followed:

- The Local Education Agency (LEA) shall provide the parent or guardian with a written explanation of the school's decision regarding school selection or enrollment.
- The LEA shall inform the parent or guardian in writing of their right to appeal the decision.
- Should the dispute continue, the LEA shall refer the parent or guardian to the local LEA liaison who shall review the complaint and issue an opinion in writing to the parent or guardian.
- Should the dispute continue the LEA liaison shall assist the parties involved in presenting the situation to the Ohio Department of Education homeless education coordinator.
- The homeless education coordinator shall recommend a decision for distribution to the parent, local superintendent and local educational agency liaison.
- Should the dispute continue the final appeal is made to the State Superintendent of Public Instruction for review and disposition.

Liaison for Homeless Children

The Head Administrator shall appoint a Liaison for Homeless Children. The Liaison will perform, coordinate, and collaborate with the State Coordinator for the Education of Homeless Children and Youth and shall work to ensure the School complies with this policy and all applicable law.

Transportation

The School shall provide transportation, at the request of the parent or guardian (or in the case of an unaccompanied youth, the liaison), to and from the school of origin, if:

- The child continues to live in the area served by the LEA in which the school of origin is located, the child's transportation to and from the school of origin shall be provided or arranged by the local educational agency in which the school of origin is located.

- The homeless child's living arrangements in the area served by the LEA of origin terminate and the child or youth, though continuing his or her education in the school of origin, begins living in an area served by another LEA, the LEA of origin and the LEA in which the homeless child or youth is living shall agree upon a method to apportion the responsibility and costs for providing the child with transportation to and from the school of origin. If the LEAs are unable to agree upon such a method, the responsibility and costs for transportation shall be shared equally.

Federal: 42 U.S.C. 11431, et seq.

3516.1 – Identification of Homeless Children and Youth Form

Student Name: _____ Student Social Security Number: _____

Under federal law, the School identifies all homeless children. A “homeless” child or youth is defined as an individual that lacks a fixed, regular, and adequate nighttime residence. If your child is not homeless, please sign below and do not complete the rest of the form. If you are unsure if your child may be considered homeless, please complete the rest of the form.

Signature: _____ Date: _____

	Motel, hotels, camping grounds, or shelter
	A house with another family
	A house with other family members
	Other: (Please explain)

Where is the student currently living?

(Mark an “X” next to all that apply)

Please identify all persons the student currently lives with and state their relationship to the Student (parent, relative, friend):

Adults (Name/Relationship) _____

Siblings _____

INFORMATION BELOW IS TO BE COMPLETED BY THE SCHOOL

School Liaison: _____

Enrollment Decision: _____

INFORMATION BELOW IS TO BE COMPLETED BY THE PARENT/GUARDIAN AFTER THE SCHOOL MAKES AN ENROLLMENT DECISION

By law, you have the right to appeal the School's Enrollment Decision. If you do appeal, your child will still be permitted to enroll in the school of your choice until the appeal process is completed. Once the appeal is completed, the child will be enrolled in the appropriate school.

I (circle one) DO / DO NOT exercise my right to appeal the School's Enrollment Decision.

Signature: _____ Date: _____

If you decide to appeal the decision, please complete the appeal form.

3516.2 – Appeal of School’s Enrollment Decision

Please state your reason for appeal:

Please state the school that you choose your child to be enrolled until this appeal is completed:

Is the school identified above, the school your child attended before becoming homeless or where your child was last enrolled?

Circle One: Yes No

TO BE COMPLETED BY HEAD ADMINISTRATOR

Date Notice of Appeal was Received _____. Action must be taken within ten (10) business days after receiving notice of the appeal. Action was taken within ____ business days.

Explain the action taken to resolve the Dispute:

Identify final resolution of the Dispute:

To the parent/guardian. You have the right to appeal this decision to the Ohio Department of Education. Appeals may be made by sending an appeal to the following address:

Ohio Department of Education
25 S. Front Street
Columbus, OH 43215-4183

3521 – Assessing Student Progress

Assessments serve a number of purposes. Assessments give students, parents, teachers, and the School feedback as to how the student is progressing and mastering a subject. Assessments also provide teachers guidance for instructional planning. Finally, assessments give guidance as to courses or occupations a student may pursue further. With these purposes in mind, the School uses a wide range of assessments.

One of the primary ways to assess a student is through a grading system. The Head Administrator shall develop a grading system that accurately reflects a student's level of achievement as it relates to the course/program's goals. The system shall clearly communicate to each student what type of work is required and shall be given frequent feedback as to the student's status in achieving the program's goals.

Grades shall be determined by the instructor for a given class. Grades shall be objective, or where subjective, based on clear, consistent standards. Grades may only be changed with the express permission of the Head Administrator or his/her designee.

Procedures for the regular collection of student performance data

The School shall develop procedures for the regular collection of student performance data; a plan for the design of classroom-based intervention services to meet the instructional needs of individual students as determined by the results of diagnostic assessments; and procedures for using student performance data to evaluate the effectiveness of intervention services and, if necessary, to modify such services.

The School shall keep records for each student including the following:

- A. A unique State student identification code or a student data verification code as required in accordance with R.C. 3301.0714(D)(2);
- B. A list or designation of which tests are required, and which tests are not required;
- C. A list or designation of which tests, required or not required, are taken and which are not taken at each test administration period;
- D. Score for each test taken;
- E. Whether each student obtained the requisite performance standard designated for each required test;
- F. What if any tests must still be taken;
- G. Whether or not intervention must be provided; and
- H. For each test required for graduation, the date passed must be recorded on the student's transcript. No information shall be on the student's transcript for a test not passed. When a student who has taken State-mandated tests in one (1) school leaves that school to enroll in another school, the school previously attended shall provide, immediately upon request by a school official from the enrolling school, all applicable records set forth above.

Procedures for using student performance data to evaluate the effectiveness of intervention services and, if necessary, to modify such services

The School shall utilize diagnostic and performance assessments that are nationally- normed and aligned with State-standards to measure student performance data. Data will be collected to determine student performance in reading, math, language arts and life sciences and the effectiveness of intervention services.

The student performance will be measured after each diagnostic and performance assessments and compared with previous assessments to determine gains in each relevant subject category. Intervention and remediation programs may include by way of illustration, one-on-one tutoring, computer-assisted remedial curriculum, small group intervention and/or one-on-one student/teacher interaction will be employed. Subsequent diagnostic and performance assessments will be employed after implementation of intervention and remediation programs to determine efficacy and effectiveness of such programs.

This policy shall be reviewed annually.

Cross Reference: Policy No. **3522**, Grading Policy; Policy No. **3532**, State Assessments Security & Ethics; Policy No. **3540**, Promotion and Retention of Students; Policy No. **3550**, Core Curriculum Requirements.

3522 – Grading Policy

CSA is a Mastery-based assessing school, meaning teachers and students embrace the practice that students must demonstrate a full understanding of a standard before progressing to a concept/skill that requires understanding of the previous content/skill. Students can attempt to demonstrate mastery in a variety of ways and through varying forms of assessment, under the close guidance and support of their teacher. It is possible but not expected that students demonstrate mastery on their first attempt. Students are offered multiple opportunities and attempts to demonstrate mastery but are not penalized for utilizing multiple attempts to demonstrate mastery.

How can students demonstrate mastery?

Students can demonstrate mastery in a variety of ways that go beyond traditional assessments. Methods may include a presentation, an interview, a portfolio, a final product for a project (such as a prototype, a painting or song, a poster, a model, etc.), or even a simple conversation. Teachers and students are encouraged to collaboratively create unique and personalized methods for students to demonstrate mastery.

How do students know if they have reached mastery?

Clear and concise communication of a student's progress is essential in achieving mastery. In order to provide effective feedback, teachers and students must have a shared language so that students know where they are on the learning continuum and recognize when they have reached mastery. The Mastery Scale below outlines that language:

Mastery Scale:

A Advance	M Mastery	AM Approaching Mastery	WIP Work in Progress	IWS Insufficient Work Shown
This “score” or “grade” is achieved when a student consistently exceeds grade-level expectations and demonstrates a deep understanding of concepts and applies them in a sophisticated manner. When a student earns an “A,” no further remediation is needed.	This “score” or “grade” is achieved when a student has successfully demonstrated that he/she has a full understanding of the standards the project or assignment is addressing. When a student earns an “M,” no further remediation is needed.	This “score” or “grade” is given when a student has attempted to demonstrate mastery, and only needs to make minor adjustments and implement simple feedback in order to demonstrate mastery. Informal remediation is still needed, and formal remediation may be	This “score” or “grade” is given when a student’s work is lacking key elements that are needed to demonstrate mastery. Both formal and/or informal remediation are needed.	This “score” or “grade” is given when students have not given the teacher enough information to assess their progress. This may be a result of the student being absent for a sustained period of time, or the student simply not turning in assignments or participating in class activities. Both formal

		needed for some students.		and informal remediation are needed.
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New Levels	Description	State Comparison
Advanced (A)	“Exceeds grade-level” “Honors” Deep Understanding with Sophistication of Application	<i>Advanced Accomplished</i>
Mastery (M)	“At Grade-level” Met the Standard Proficient Has Learned/Understands with Ease of Application No Remediation Needed	<i>Proficient</i>
Approaching Mastery (AM)	“Approaching Grade-level” Meets Most Concepts of the Standard Has Knowledge but Struggles to Apply Minor Remediation Needed	<i>Basic</i>
Work In Progress (WIP)	“Limited Grade-level” Meets Some Concepts of the Standard Has Slight Knowledge and needs Support to Apply Significant Remediation Needed	
Insufficient Work Shown (IWS)	No Work Shown or Attempted to Assess Unable to Assess Even Though Opportunity to Do So	<i>Limited</i>

What is Remediation?

The process of teachers (and peers, when appropriate) providing feedback to students, and students then adjusting and improving their work is generally referred to as “Remediation.” Mastery- based learning is dependent on students receiving quality feedback from their teachers and peers, in a frequent and timely manner. Remediation can take many forms, both formal and informal, and may need to occur several times before a student successfully demonstrates Mastery. Remediation may require students to fix, revise, correct, or redo a project or assignment, and allows for the time and support to do so. In short: Remediation is the opportunity for another chance for the student to demonstrate Mastery.

When and how does Remediation take place?

Remediation can take place in a combination of ways: formal and informal.

- **Informal remediation** occurs when a student is able to correct small errors and make minor adjustments to an assignment or project and does not require a significant amount of extra time

or instruction from the teacher. Informal remediation can occur on a continuous basis, throughout the school day, and is part of the daily expectations at the school.

- **Formal remediation**, however, may require the teacher to find new ways to present the student with information, or may require a more focused attention to a concept or lesson that the student is struggling to understand. Formal remediation may require significantly more time than informal remediation. As a result, formal “Remediation Days” allow both students and teachers the time required for extra instruction and attention to singular concepts to better prepare a student to demonstrate mastery. During Formal Remediation Days, teachers and students pause their work on projects and assignments in order to focus solely on items that students are struggling to master. Formal Remediation Days will take place no less than once per month and will be on the school calendar to ensure that students, teachers, and parents are aware of when they are to take place.

What do students do if they have already demonstrated Mastery prior to a Formal Remediation Day?

If a student is already at Mastery for each of his/her subject areas, he/she has several options, and may choose the option most appropriate for them, based on input from his/her parents and teachers. Options for these students may include but is not limited to: a passion project related to the concepts the class is exploring, participation in a service project during the Formal Remediation Day, and Peer Tutoring and Instruction, where the student is part of helping his/her peers during Formal Remediation Days.

3531 – State Assessments & Support

In addition to the School's own assessments, the School shall assess each student in accordance with Ohio law and regulations. The State's assessments and diagnostics are designed to ensure that students demonstrate the proper levels of achievement and to assist students if they are not meeting the proper standards.

Administering Diagnostic Assessments

Diagnostic assessments shall be administered as the Governing Authority deems appropriate, but at least once annually. As required by Ohio law, diagnostic assessments should be performed as described below.

- To each student who transferred into the School if the applicable diagnostic assessment was not administered at the Student's previous school. The diagnostic must be conducted thirty (30) days after the date of transfer.
- Each kindergarten student shall take the Kindergarten Readiness Assessment. The assessment must be administered from July 1st through the 20th day of instruction for the school year. The results of the Assessment may not be used to prohibit a student from entering Kindergarten.
- The Third Grade Reading Guarantee diagnostic assessments for students in grades kindergarten through third grade.
- All other diagnostics required by law for students in grades kindergarten through three.

After the administration of any diagnostic assessment, the School shall provide the following information to each parent/guardian: the student's completed diagnostic assessment, the results of the assessment, any other accompanying documents used during the administration of the assessment, and all documents and information in any plan developed for the student.

The School shall submit the results of each assessment as required by law.

Ohio Assessments and Tests

The School shall administer all assessments required by Ohio law. The assessments are to be aligned with the academic standards and model curricula adopted by the state. The tests shall be administered at the designated times.

The School may, for medical reasons or other good cause, excuse a student from taking an assessment administered on the date scheduled, but that assessment shall be administered to the excused student not later than nine (9) days following the scheduled date. The School shall annually report the number of students who have not taken one or more of the required assessments by June 30.

Students receiving special education services may participate in the required testing according to the student's individualized education plan (IEP). If a student is to take an alternate assessment, the method must be approved by the Ohio Department of Education as conforming to federal law. See Policy No. **3730**, Alternative Assessments for Students with Disabilities.

Intervention Services

The School shall provide intervention services as follows:

Diagnostic Assessment Intervention. The School shall provide intervention services to students whose diagnostic assessments show that they are failing to make satisfactory progress toward attaining the academic standards for their grade level.

Proficiency and Achievement Tests. The School shall also provide prevention/intervention services in pertinent subject areas to students who score below the proficient level on a reading, writing, mathematics, social studies, or science proficiency or achievement test.

Third Grade Reading Guarantee. The School shall also provide intervention services pursuant to the Third Grade Reading Guarantee, as explained below.

Ohio Graduation Tests. If the School teaches high school, the School may be required to provide intervention under R.C. 3301.0711. The School shall provide intervention services to any student whose results indicate the student is failing to make satisfactory progress toward being able to attain scores at the proficient level on the Ohio Graduation tests. These intervention services shall be provided prior to the end of the school year, during the summer following the ninth grade, and/or in the next succeeding school year.

Third Grade Reading Guarantee; Intervention and Remediation Services

To assist students in meeting the Third Grade Guarantee, all students in grades kindergarten through third shall be given an English Language Arts diagnostic assessment, which shall include items related to dyslexia identification. Such assessments and comparable tools shall include a sufficient number of items to test phonological awareness, phonemic awareness, rapid naming skills, nonsense word fluency, and correspondence between sounds and letters to identify students who may need further measures to determine if the student has dyslexia. Additionally, test vendors utilized by the School shall share student performance data on comparable tools related to dyslexia as described above with each district and community, STEM, and chartered nonpublic school and ODE. The assessment shall identify students who are below their grade level. If the diagnostic assessment indicates the student is “not on track” to be reading at his or her grade level by the end of the year, the School shall provide the parents a written notice. The written notice shall:

- indicate that the School has identified a reading deficiency in their child;
- indicate the current services provided to the student;
- describe proposed supplemental instruction services;
- indicate that the Ohio Achievement Assessment for third grade reading is not the only measure of reading competency; and
- indicate that unless the student attains the appropriate level of reading competency by the end of grade 3, the student will be retained.

Additionally, for each student shown to be “not on track”, the School shall take the following steps: begin reading intervention immediately using research-based reading strategies targeted at the student’s identified reading deficiencies, assign the student to a Credentialed Teacher, and develop a reading improvement and monitoring plan—as described below.

All reading improvement and monitoring plans must be developed within sixty (60) days of identifying the child's disability and shall:

1. identify the student's specific reading deficiency;
2. describe proposed supplemental instruction services that will target the student's identified reading deficiencies;
3. include opportunities for the parents or guardians to be involved in the instructional services;
4. include a process to monitor the implementation of the student's instructional services;
5. develop a reading curriculum during the regular school hours that assist the student to read at his or her grade level, provide for reliable assessments, and provide ongoing analysis of each student's reading progress; and
6. include a statement that unless the student attains the appropriate level of reading competency by the end of grade three, the student will be retained.

Credentialed Teacher. Each student who is retained or has a reading improvement and monitoring plan must be assigned to a Credentialed Teacher. A Credentialed Teacher is a teacher who has been actively engaged in the reading instruction of students for the previous three (3) years, and who either (1) hold a reading endorsement and has attained a passing score on the corresponding assessment, or (2) has obtained a master's degree with a major in reading. Additionally, until July 1, 2014, a teacher is qualified if the teacher possesses a credential earned from a list of reading instruction programs approved by the ODE or was rated "above value added" for the last two years. Effective July 1, 2014, a teacher is also qualified if the teacher has a passing score on a State-approved reading instruction test.

Retention Policy. Beginning with students who enter third grade in the 2013 - 2014 school year, the School will retain all students scoring below the designated level on the third grade reading assessment, unless the student qualifies for one of the following exceptions:

1. The student is a limited English-proficient student who has been enrolled in the United States schools for less than two full school years and has less than two years of instruction in English as a second language program;
2. The student is a child with a disability entitled to special education and the student's individualized education program exempts the student from being retained;
3. The student demonstrates an acceptable level of performance on an alternative standardized reading assessment as determined by the Ohio Department of Education;
4. The student is a child with a disability entitled to a special education, the student has taken the third grade English Language Arts achievement assessment, the student's individualized education program or plan shows that the student has received intensive remediation in reading for two school years but still demonstrates a deficiency in reading, and the student previously was retained in any of grades kindergarten through three; and
5. The student received intensive remediation for reading for two school years but still demonstrates a deficiency in reading and was previously retained in any of grades kindergarten through 3. The student shall continue to receive intensive reading instruction in grade four. The instruction shall include an altered instructional day that includes specialized diagnostic information and specific research-based strategies for the student that has been successful in improving reading among low-performing readers.

For each student retained in the third grade, the School shall provide Intense Remediation Services until the student is able to read at grade level. The remediation services shall include at least ninety (90)

minutes of reading instruction per day and should be targeted to the student's identified reading deficiencies. The remediation services must be provided by a Credentialed Teacher and may include but are not limited to: small group instruction; Reduced teacher-student ratios; More frequent progress monitoring; Tutoring or mentoring; Transition classes containing third and fourth grade students; Summer reading camp; or Extended school day, week, or year.

The School must offer the option for students to receive reading intervention services from one or more providers other than the district. The district will screen and improve any provider offered and paid for by the School.

For each retained student who has demonstrated a proficiency in a specific academic ability field, each district shall provide instruction commensurate with student achievement levels in that specific academic ability field. Academic ability fields include mathematics, science, reading and/or writing, and social studies.

Each retained student may be promoted mid-year if the student demonstrates he or she is reading at or above grade level.

The School must report any information requested by the Ohio Department of Education on the reading improvement and monitoring plan as required by the Ohio Department of Education. The School must submit to the Ohio Department of Education the results of diagnostic assessments and include such information related to the reading assessment and the student's reading and improvement monitoring plan.

Response to Intervention

Response to Intervention (RTI) is a process the School uses to help children who are struggling academically or behaviorally. The purpose of RTI is to meet students where they are and progress them forward in their skills. This process also helps to distinguish between students who need intervention to advance their skills and students who require specially designed instruction as a student with an identified disability.

With RTI, the School shall identify students at risk for not meeting learning outcomes, provide evidence-based interventions, adjust the intensity and nature of those interventions depending on a student's responsiveness, and monitor their progress.

RTI is divided into three tiers. In Tier I, students experiencing learning needs are identified through their performance and provided with small group interventions through the core curriculum in the classroom. The teacher monitors their response to strategies and makes adjustments in the delivery of the curriculum to determine if the student's needs are met or the student needs more intensive interventions. The teacher and other staff members who have regular interaction with the student shall make regular reporting of the student's progress.

If the child does not respond to the first level of group-oriented interventions, he or she moves to Tier II. The length of time in Tier II is generally a bit longer than in Tier I, and the level of intensity and individualization of the interventions are increased. Child progress is again closely monitored. The child's teacher will notify the family of their area of concern, how they will intervene with this concern, and how they will track information related to the child's progress. If the child shows adequate progress, then the intervention has been successful and will continue. It is quite possible that, if the problem is caught early enough and addressed via appropriate instruction, the child learns the skills necessary to continue in general education without further intervention.

Students who do not respond to Tier II instruction move into Tier III instruction. At Tier III a building team will convene, including the parents, to share information on the interventions tried and to present the data collected on the child's progress. Through discussions at Tier III, teams will make decisions about whether to change out interventions and continue to monitor progress, or to move towards a referral for an evaluation to determine if special education services are needed. The data gathered on the child's response to interventions in Tiers I, II and III becomes a part of the Evaluation Team Report in making a determination as to whether the child is a child with special needs.

Ohio: R.C. 3301.071, R.C. 3301.079, R.C. 3301.0711, R.C. 3301.0714, R.C. 3301.0715, R.C. 3313.608, R.C. 3313.6012.

Cross Reference: Policy No. **3521**, Assessing Student Progress; Policy No. **3522**, Grading Policy; Policy No. **3532**, State Assessments Security & Ethics; Policy No. **3540**, Promotion and Retention of Students; Policy No. **3550**, Core Curriculum Requirements; Policy No. **3730**, Alternative Assessments for Students with Disabilities; Policy No. 3250 Dyslexia Screenings and Multi-Sensory Structured Literacy Certification

3532 – State Assessments Security & Ethics

The School abides by all laws and rules regarding the administration of state assessments. This policy seeks to familiarize all individuals with the general rules regarding all state assessments. Prior to administering any assessment, all School officials must be familiar with and understand this policy and any additional laws and rules.

Administrators

The School's Head Administrator or his/her designee shall serve as the School's Test Coordinator. The Test Coordinator is to ensure that the School complies with all Assessment Security Provisions while Assessment materials are in the School.

The Test Coordinator shall appoint staff members to serve as Examiners.

General Security Rules/Ethics

No person shall reveal, cause to be revealed, release, cause to be released, reproduce, or cause to be reproduced any secure assessment materials through any means or medium, including, but not limited to, electronic, photographic, photocopy, written, paraphrase, or oral reproduction.

No unauthorized person shall be in an assessment room during any assessment session or be permitted to have access to any secure assessment materials at any time these materials are in the School.

These security rules do not apply to practice tests.

Security of the Assessment Materials

To ensure the security of assessment materials, the School has developed the following procedure to protect assessment materials while the materials are in the School.

From the time of receipt and until the time of shipping all the testing materials, the Test Coordinator shall be in charge of tracking, handling, and maintaining the materials. Before, during, and after an assessment administration, the assessment booklets, answer documents, and all other assessments shall be in a secure location. The secure location shall be a locked safe, cabinet, or closet.

During each assessment administration session, Examiners shall ensure that all Assessment Security Provisions are met and shall account for all assessment booklets by serial number, all CDs containing English audio and foreign language translations of the assessments, all answer documents, and all tape-recorded student responses from the translation session. Examiners remain in charge of material until the materials are returned to the Test Coordinator. The Test Coordinator shall inventory the test materials and re-secure them in the secure location.

The Test Coordinator shall ship all the testing materials as instructed.

Communicating Security Measures

The Test Coordinator shall communicate this policy in writing and discuss this policy each school year with the School's employees, with all students, and with any other person authorized to be present in an assessment room.

All employees are required to read The Ethical Use of Tests and are required to return Form No. **3553.1**, indicating they have read and will abide by the Ethical use of tests.

Security measures and standards for testing should be reviewed annually.

Security Violations

A Security violation may occur in any of the following circumstances:

- an individual reveals to any student any specific question that the individual knows is part of an assessment or the individual assists a student in any other way to cheat on an assessment;
- an individual uses the tests unethically;
- an individual violates this policy; or
- an individual violates the School's security procedure

Any alleged assessment security violation must be reported to the Head Administrator or his/her designee as soon as it becomes known. The Head Administrator or his/her designee must report the alleged violation as soon as it becomes known. The School shall conduct an investigation into the alleged violation and, upon completing its investigation, provide the Department of Education (ODE) a written report delineating the cause and results of the investigation. The School must report all breaches to the ODE within ten (10) days of any violation.

All employees shall comply with any investigation conducted by the ODE. Prior to taking any action, the ODE shall provide the individual with notice of the allegation and an opportunity to respond and present a defense.

Should a violation be verified, the offending employee may be disciplined. Discipline may include termination. Additionally, the State may seek to suspend the educator's license, and a law enforcement agency may take criminal action.

Cross Reference: Policy No. **3531**, State Assessments and Support; Policy No. **3533**, Standards for the Ethical Use of Tests.

3533 – Standards for the Ethical Use of Tests

Each employee of the School must have appropriate knowledge of these standards of ethical assessment practices and shall comply with these standards.

In monitoring practices related to preparing students for a state-wide assessment, the following practices are unethical and/or inappropriate:

- any preparation activity that undermines the reliability and/or validity of an inference made from any result of an assessment;
- any preparation practice that results solely in raising scores or performance levels on a specific assessment without simultaneously increasing a student's achievement level as measured by other tasks and/or assessments designed to assess the same content domain;
- any practice involving the reproduction of any secure assessment materials, through any medium, for use in preparing a student for an assessment;
- any preparation activity that includes a question, task, graph, chart, passage, or other material included in an assessment, and/or material that is a paraphrase or highly similar in content to what is in an assessment;
- preparation for an assessment that focuses primarily on the assessment, including its format, rather than on the objectives being assessed;
- any preparation practice that does not comply with, or has the appearance of not complying with any statutory and/or regulatory provision related to security of an assessment;
- any practice that supports or assists others in conducting unethical or inappropriate preparation activities;
- obtaining prior knowledge of the contents of a state achievement assessment; and
- using prior knowledge of the content of a state achievement assessment to assist students in preparing for the assessment.

The following practices related to administering and/or scoring assessments that are unethical and/or inappropriate:

- any assessment used for purposes other than that for which it was intended;
- any practice that results in a potential conflict of interest or one that exerts undue influence on a person administering and/or scoring an assessment, either making or appearing to make an assessment process unfair to some examinees;
- except for accommodations and/or alternate assessments expressly permitted under Chapter 3301-13 of the Administrative Code, any change in procedures for administering and/or scoring an assessment that results in a nonstandard condition for one or more students;
- any practice that allows a person without sufficient and appropriate knowledge, skills, and/or training to administer and/or score an assessment;
- any administration and/or scoring practice that may produce a result contaminated by a factor not relevant to the purpose(s) of an assessment;
- any practice of excluding one or more students from an assessment solely because a student has not performed well, or may not perform well, on the assessment and/or because the aggregate performance of a group may be affected;
- any practice immediately preceding and/or during an assessment including, but not limited to, the use a gesture, facial expression, body language, language, or any other action and/or sound that may guide a students' response;

- except for the directions for administration as prescribed by the test developer and/or by the department of education, any practice such as providing to a student, immediately preceding and/or during administration of an assessment, any definition and/or clarification of the meaning of a word or term contained in an assessment;
- any practice that corrects or alters any student's response to an assessment either during and/or following the administration and/or scoring of an assessment; and
- any practice that supports or assists any person in unethical and/or inappropriate practices during administration and/or scoring of an assessment; and
- failing to comply with any rule adopted by the Ohio Department of Education regarding security protocols for a state achievement assessment.

In monitoring practices related to interpreting and/or using any result of an assessment, the following practices are unethical and/or inappropriate:

- providing interpretations of and/or using any result of an assessment in a manner and/or for a purpose that was not intended;
- making false, misleading, or inappropriate statements and/or unsubstantiated claims that may lead to false and/or misleading conclusions about any result of an assessment;
- any practice that permits appropriate staff without the necessary knowledge and skills to interpret and/or use any result of an assessment;
- any practice that violates, or places at risk, the confidentiality of personally identifiable information pursuant to section 3319.321 of the Revised Code;
- any practice that provides an interpretation or suggests a use of any result of an assessment without due consideration of the purpose(s) for the assessment, the limitations of the assessment, an examinee's characteristics, any irregularities in administering and/or scoring the assessment, and/or other factors that may affect any result;
- any practice that supports or leads any person to interpret and/or use any result of an assessment in unethical and/or inappropriate ways; and
- each participating school shall cooperate with the State Board of Education in conducting an investigation of any alleged unethical and/or inappropriate assessment practice as defined in this rule. The State Board, after conducting an investigation, shall take any action (license suspension, revocation, or limitation) that it considers appropriate against the license of a school employee who takes any of the prohibited actions described above, based on the nature and extent of the violation. The State Board must give the employee notice of an allegation regarding cheating on an assessment upon beginning an investigation and an opportunity to respond prior to taking any disciplinary action. Actions prohibited herein are grounds for termination of a teacher contract and for termination of a non-teaching employee.

Limitations on Time Spent on State or School Testing

Beginning with assessments administered on or after July 1, 2017, the Governing Authority shall make sure that no student is required to do either of the following:

1. Spend a cumulative amount of time in excess of 2 percent of the school year taking state-and School-required assessments combined; and/or
2. Spend a cumulative amount of time in excess of 1 percent of the school year taking practice or diagnostic assessments used to prepare for assessments.

The tests included in this limitation are:

All Ohio's State Tests in grades 3-8 for English language arts, mathematics and science (14 different tests, with grade 3 English language arts administered twice for a total of 15 tests) and seven high school end-of-course tests for first-time test takers. It also includes any test that the School administers to all students in a specific content area or grade level.

With regards to the 1% cap for practice tests, this limitation includes practice tests and diagnostic assessments used for preparation for state tests included in the above chart and for tests the district identifies as Schoolwide tests for all students in a specific content area or grade level.

The following tests are exempt from this limit:

1. Assessments for students with disabilities;
2. Any related diagnostic tests for students who failed to attain passing scores on the grade 3 English language arts assessment;
3. Substitute exams for high school end-of-course exams (Advanced Placement or International Baccalaureate tests in science and social studies or College Credit Plus course tests); and
3. Any additional tests administered to identify students as gifted.
4. Kindergarten Readiness Assessment (KRA), WorkKeys, or the state-funded ACT or SAT for high school juniors.

The School must plan to include the time for these tests within their 2 percent limit or pass a resolution to exceed the 2 percent limit. The Governing Authority may approve exceeding the limitations by resolution. However, prior to the adoption of this resolution, the Governing Authority must conduct at least one public hearing on the proposed resolution.

The School shall keep accurate records of the total amount of time spent on such tests. Calculations for testing time shall be based upon the number of hours in the School's calendar at each grade level.

Cross Reference: Policy No. **3531**, State Assessments and Support; Policy No. **3532**, State Assessments Security & Ethics; Policy No. **5441**, Staff and Student Boundaries; Policy No. **5540**, Reporting Licensed Employee Misconduct; Form No. **3533.1**, Standards for Ethical Use of Tests.

3533.1 – Standards for the Ethical Use of Tests Acknowledgement

The School requires all its employees to read Policy No. **3532**, State Assessments Security and Ethics, and Policy No. **3533**, Standards for the Ethical Use of Tests.

I have read the School's policy on Testing Security and Ethics and agree to abide by all the rules stated.

Name: _____

Signature: _____

Date: _____

3534 – Report of State Assessment Scores

By June 30th of each school year, the School shall provide a student's parents with the student's score on any state assessment administered to the student that school year by doing either of the following: (1) Sending the scores to the parent by mail or electronic mail; (2) Posting the scores in a secure portal on the district's or school's web site that the parent may access.

O.R.C. 3313.6029

Added September 2, 2023

3540 – Promotion and Retention of Students

The School has developed a curriculum that allows students to learn and develop mentally, physically, socially, and emotionally. The Governing Authority realizes, however, that students develop at different rates and that students learn best when they are engaged in material that is at their developmental stage. The School shall promote and retain students to accomplish these goals and to comply with the law.

Each student's promotion or retention shall be determined individually and according to pre-established documented standards. Whether a student should be promoted or retained is based on several factors, including Ohio law, the student's attendance and performance, and the School's promotion criteria and instructional objectives. The Head Administrator shall further define these factors in writing for each grade. At the beginning of the year, the School shall communicate these standards to students and parents.

Throughout the school year, parents and students shall receive feedback on the student's progress through written progress reports, grade reports, and, and feedback during teacher-parent conference. Final decisions regarding whether to promote or retain a student are to be made by the Head Administrator. In making these decisions, the Head Administrator shall consult with staff, teachers, and parents/guardians.

Statutory Retention

The School will retain students in the Third Grade, as required by law, who attain a score less than the level of achievement on the English Language Arts Assessment, unless the student qualifies in one of the exceptions. The Third Grade Guarantee is further explained in Policy No. **3531**, State Assessments and Support.

The School will also retain a student, as required by law, if the student has failed at least two of the required subject areas. The student may still be promoted despite the above if the Head Administrator and the teacher determine the student is academically prepared.

Retention

A student shall be retained if the student does not meet the School's predetermined, written standards prior to making a retention decision, the Head Administrator shall notify the student's parents and discuss the student's status.

Factors in Deciding whether to Promote or Retain

The Head Administrator shall consider the following factors in deciding whether to promote or retain a student:

- the Student's current academic achievement;
- the Student's physical, social, and emotional maturity/disability;
- whether student has met instructional objectives;
- attendance; and/or
- any additional factors.

The School generally will not consider a student's performance on a state achievement tests. The School, however, (1) is prohibited from promoting a student that does not attain a necessary score in the Third Grade reading test, except as provided in Ohio law (see Policy No. 3531) (2) *may* decide not promote a student who does not take the required achievement test or make-up test and who is not exempted from the test, and (3) may use the student's failure to attain a score in the basic range as a factor in the following state tests:

- 3rd Grade: math achievement test
- 4th Grade: math, reading, writing and social science achievement tests
- 5th Grade: math, reading, writing, and science achievement tests
- 6th Grade: math reading, and social science achievement tests
- 7th Grade: math, reading, and writing achievement tests
- 8th Grade: math, reading, and science achievement tests.

Students with Disabilities

Students with disabilities, including those with individualized education plans (IEPs) and/or are 504 Students shall be promoted/retained based on (1) this policy and (2) the student's IEP.

Cross Reference: Policy No. **3531**, State Assessment and Support; Policy No. **3550** Core Curriculum Requirements.

Modified September 2, 2025

3550 – Core Curriculum Requirements

Core Curriculum. The School shall adopt the core curriculum mandated by the Ohio Revised Code for all high school students. The Core Curriculum requirements are found in Form No. **3550.1**, Core Curriculum Requirements.

Additionally, the English language model curriculum for grades K to 5 instructional materials shall require printed handwriting by grade 3 and the use of cursive by grade 5.

Parental Notification. The School shall notify each student’s parents, guardian, or custodian of the student of Ohio’s Core Curriculum requirements. The notification shall be in writing and indicate that one consequence of not completing the curriculum is ineligibility to enroll in most state universities in Ohio without further coursework. The Notification is found in Form No. **3550.1**, Ohio Core Curriculum Requirements - Notification.

Ohio: R.C. 3313.603; R.C. 3326.15

Cross Reference: Form No. **3550.1**, Ohio Core Curriculum Requirements - Notification.

3550.1 – Ohio Core Curriculum Requirements – Notification

The Ohio Core Curriculum Requirements form is adopted from the Ohio Department of Education. The Notification is available at:

The link below is for graduation requirements for 2018

<http://education.ohio.gov/getattachment/Topics/Ohio-Graduation-Requirements/News/Two-additional-graduation-options-available-for-th/GradReq2018.pdf.aspx>

The link below is for the graduation requirements for 2019 and beyond

<http://education.ohio.gov/getattachment/Topics/Ohio-s-Graduation-Requirements-rev/Earning-an-Ohio-High-School-Diploma-for-the-CI-1/GradReq2019.pdf.aspx>

What It Takes to Earn an Ohio Diploma – Graduating Classes of 2019 and Beyond

Students must meet both testing requirements and curriculum requirements in order to earn a diploma. These requirements apply to students graduating in the year 2019 and beyond. The first section includes requirements for all students regarding curriculum and required courses. The students must also then fulfill one of the three possible pathways to graduation to earn their diploma.

I. Curriculum Requirements Complete Courses

Take and earn a state minimum of 20 credits in specific subjects.

Courses	State Minimum
English language arts	4 credits
Health	½ credit
Mathematics	4 credits ¹
Physical education	½ credit ²
Science	3 credits ³
Social studies	3 credits ⁴
Electives	5 credits ⁵

Other Requirements

You also must receive instruction in economics and financial literacy⁶ and complete at least two semesters of fine arts⁶.

Your district may require more than 20 credits to graduate.

1 **Mathematics** units must include one unit of algebra II or the equivalent of algebra II. Exceptions: a) Algebra II is not a requirement for students following a [career-technical pathway](#). However, students still must have four units in mathematics, and b) A family may decide that their child is not prepared to meet the graduation requirement for a higher-level math course. Or their child may be planning a career that

does not require higher level math. Algebra II may not be a requirement for this student. [Here](#) is more information on Curriculum Choices.

2 Physical education - School districts may adopt a policy that would exempt students who participate in interscholastic athletics, marching band or cheerleading for two full seasons or an approved Junior Reserve Officer Training Corps (JROTC) program for two years from the physical education requirement. Students must take another course, which cannot be a physical education course, of at least 60 contact hours.

3 Science units must include one unit of physical sciences, one unit of life sciences and one unit of advanced study in one or more of the following sciences: chemistry, physics or other physical science; advanced biology or other life science; astronomy, physical geology or other earth or space science. Exception: A family may decide that their student is not prepared to meet the graduation requirement for a higher-level science course. Or their student may be planning a career that does not require higher level science. Higher level science may not be a requirement for this student. [Here](#) is more information on Curriculum Choices.

4 Social studies units must include ½ unit of American history and ½ unit of American government in three units required for the classes of 2018 and 2019. The class of 2021 will need ½ unit in world history and civilizations in their required three units as well as American history and American government.

5 Elective credits must include one or any combination of foreign language, fine arts, business, career-technical education, family and consumer sciences, technology, agricultural education or English language arts, mathematics, science or social studies courses not otherwise required.

6 Other state requirements - All students must receive instruction in economics and financial literacy during grades 9-12 and must complete at least two semesters of fine arts taken any time in grades 7-12. Fine arts is not a requirement for students following a career-technical pathway.

II. Three Pathways to Graduation.

1. Earn at least 18 points on seven end-of-course state tests

End-of-course exams are:

- Algebra I and geometry or integrated math I and II
- Biology (or Physical Science for the class of 2018 only)
- American history and American government
- English I and English II

For each of the seven end-of-course state tests, a student earns one to five graduation points. Students have the potential to earn a total of 35 points. To meet this graduation pathway, a student must earn a minimum number of 18 points from the seven tests.

This graduation pathway gives a student flexibility in accumulating 18 points. A high score on one test can balance a low score on another test. A student must earn a total of at least four points on English tests, four points on math tests and six points on science and social studies tests.

Performance Level	Graduation Points
Advanced	5
Accelerated	4
Proficient	3
Basic	2
Limited	1

Students may earn graduation points through approved substitute tests

- College Credit Plus (CCP) courses or approved AP/IB tests, in the subject area, will satisfy the end-of-course graduation test requirement for American history, American government, physical science (class of 2018 only) and biology. The college course grade earned under College Credit Plus or AP/IB test score may earn graduation points in place of the end-of-course tests as provided here.
- It is important to note, while students can earn graduation points for CCP coursework and AP/IB test scores in biology, all schools must administer the biology end-of-course tests to all students in order to satisfy federal testing requirements. CCP students may use their course grade and AP/IB students may use their test scores OR the biology end-of-course test score to earn graduation points, whichever is higher. A student completing a CCP course in American history or American government will not need to sit for the end-of-course tests in the subject area and may earn graduation points based on the letter grade in the course.
- There are no CCP/AP/IB substitutions for mathematics or English language arts. Students may use math and English language arts CCP/AP/IB courses to satisfy the graduation curriculum requirements. But schools must administer the end-of-course tests to students to earn graduation points.

Graduation points for course grades prior to July 1, 2015

- The student is in the Graduating Classes of 2018 and beyond. (This is not applicable to students choosing the new OGT options.)
- The student received credit on their transcript for a course taken prior to July 1, 2015.
- The course didn't have a state end-of-course test available at the time the student was enrolled in the course.
- The student will receive graduation points based on the course grade.³

1 - The following table converts Advanced Placement and International Baccalaureate test scores to graduation points for valid courses. This applies only to American history, American government and science. There are no permitted substitutions for English language arts and mathematics.

AP and IB Crosswalk to Graduation Points
--

Advanced Placement	International Baccalaureate	Graduation Points
4 or 5	6 or 7	5
3	4 or 5	4
2	2 or 3	3
Not applicable	Not applicable	2
1	1	1

The Ohio State Board of education approved the following AP and IB substitute tests:

PHYSICAL SCIENCE

- Advanced Placement Physics 1: Algebra-based (only the class of 2018)
- Advanced Placement Physics 2: Algebra-based (only the class of 2018)
- International Baccalaureate Physics Standard Level (only the class of 2018)
- International Baccalaureate Physics Higher Level (only the class of 2018)

BIOLOGY

- Advanced Placement Biology
- International Baccalaureate Biology

AMERICAN HISTORY

- Advanced Placement United States History
- International Baccalaureate History – Route Two – including study of the history of the Americas

AMERICAN GOVERNMENT

- Advanced Placement United States Government and Politics
- International Baccalaureate Global Politics

2 - The following table is to be used to convert College Credit Plus grades to graduation points for valid courses. This applies only to American history, American government and science. There are no permitted substitutions for English language arts and mathematics.

College Credit Plus Course Grade (Social Studies and Science substitute courses)	Ohio Graduation Points
A or B	5
C	4
D	3
Not applicable	2
Not applicable	1
F – Fail or drop the course	0

3 - The following conversion chart should be used to determine the number of graduations points a student will receive based on the grade the student receives for high school courses prior to end-of-course tests being available. (This is not applicable to students choosing the new OGT options.)

High School Grade	Ohio Graduation Points
A	5
B	4
C Earned Credit or Passed Course	3
D	2
Not applicable	1

The following provides the dates when end of course tests were available for the first time		
Fall 2014	Spring 2015	Fall 2015
Algebra I	Physical Science	Biology
Geometry	American History	
English Language Arts I	American Government	
English Language Arts II	Integrated Math I & II	

2. Industry-Recognized Credentials and WorkKeys

In order to qualify for a diploma under the credential option, a student need to do two things:

- Earn a minimum score of 13 on WorkKeys, a work readiness test that many employers use
- Earn an industry-recognized credential or credentials worth 12 credential points.

Information on industry-recognized credentials may be found here:

<http://education.ohio.gov/Topics/Ohio-s-Graduation-Requirements/Industry-Recognized-Credentials-and-WorkKeys/Industry-Recognized-Credentials>

3. College and Career Readiness Test

One of the pathways that students may use to meet the test requirement for graduation is a college and career readiness test. The two tests that meet this pathway are the ACT and SAT. Colleges and universities use the ACT and SAT to determine student readiness for the rigors of higher education. These institutions generally expect that students who earn "remediation-free" scores will be able to succeed in their college courses.

[Main Table of Contents](#)

Policy Manual of the Governing Authority of CSA-Xenia

Page | 373

The Ohio Department of Higher Education works with Ohio universities to set the remediation-free scores for the ACT and SAT. Periodically, for a variety of reasons, these scores may be adjusted. State law requires the Ohio Department of Education to use the ACT and SAT remediation-free scores to meet the graduation requirements of the college and career readiness test pathway.

The Ohio Department of Education will communicate the remediation-free scores needed to meet the graduation requirement in spring of the students' junior (grade 11) year before they take the state-sponsored test. For all high school juniors, the remediation-free scores set by Feb. 1 of their junior year will be used to meet their graduation requirement. Any changes after Feb. 1 each year will affect only future groups of students.

Students must earn "remediation-free" scores in each of the three subscore areas, two in English language arts and one in mathematics.

What are the remediation-free scores?

Subject	ACT	SAT taken prior to March 1, 2016	SAT taken after March 1, 2016
English Language Arts	English subscore of 18 (or higher)	Writing 430 (or higher)	Evidence-Based Reading and Writing (EBRW) 480 (or higher)
	Entered high school prior to July 1, 2014, reading subscore of 21 (or higher)	Reading 450 (or higher)	
	Entered high school after July 1, 2014, reading subscore of 22 (or higher)		
Mathematics	Mathematics subscore of 22 (or higher)	Mathematics 520 (or higher)	Mathematics 530 (or higher)

Each student may use the highest score in each subscore from multiple administrations of a test to meet the student's graduation requirement pathway. This would include the state-funded administration, which all Ohio students will take in the spring of their junior year and additional attempts that students take and fund through non-state resources during their academic careers.

Students who meet the remediation-free scores in all three subscore areas under a single test will meet the requirements for graduation under this pathway. These students will receive Ohio diplomas upon completion of the curriculum requirements.

As part of the state and federal reporting requirements, districts are required to submit student scores for the following state end-of-course tests: geometry or math II, English language arts II, biology, American history and American government. Therefore, districts do need to administer these tests to all students.

Statewide Administration

Districts will select either the ACT or SAT to administer each school year. Here is more information about the state-funded administration of [ACT](#) and [SAT](#).

Source: Ohio Department of Education (Rev. Feb. 21, 2018)

3551 – Criteria for Awarding a Diploma with Honors

The School shall award the Diploma with Honors to any student who has fulfilled the following requirements:

- A. met the course, credit, and other requirements established by the Board or completed the IEP developed for the student.
- B. attained at least the applicable score on the tests required by the State Board of Education for graduation
- C. (I) completes the academic curriculum in the high school and has met at least seven (7) of the following eight (8) criteria:
 - 1. earn four (4) units of English,
 - 2. earn at least four (4) units of Mathematics, which shall include Algebra I, Geometry, Algebra II or equivalent and another higher-level course or a four (4) year sequence of courses which contains equivalent content,
 - 3. earn at least four (4) units of Science, including physics and chemistry,
 - 4. earn four (4) units of Social Studies,
 - 5. earn either three (3) units each of one (1) foreign language, or two (2) units each of two (2) foreign languages (must include no less than two (2) units for which credit is sought),
 - 6. earn one (1) unit of fine arts,
 - 7. maintain an overall high school grade point average of at least 3.5 on a 4-point scale up to the last grading period of the senior year or obtain a composite score of 27 on the American College Testing Program's (ACT) Tests, or an equivalent composite score of 1210 on the Scholastic Assessment Test (SAT). OR
- D. (II) completes an intensive career-technical education curriculum in the high school and has met at least seven (7) of the following eight (8) criteria:
 - 1. earn four (4) units of English,
 - 2. earn at least four (4) units of Mathematics, which shall include Algebra I, Geometry, Algebra II or equivalent and another higher-level course or a four (4) year sequence of courses which contains equivalent content,
 - 3. earn at least four (4) units of Science, including physics and chemistry,
 - 4. earn four (4) units of Social Studies,
 - 5. earn four (4) units of Career-Technical education program that leads to an industry-recognized credential, apprenticeship, or be part of an articulated career pathway which can lead to post-secondary credit (Otherwise, the student must achieve the proficiency benchmark established for the applicable Ohio Career-Technical competency assessment of the equivalent.),
 - 6. maintain an overall high school grade point average of at least 3.5- or 4-point scale up to the last grading period of the senior year
 - 7. achieve proficiency benchmark established for appropriate Ohio Career-Technical Competency Assessment or equivalent assessment aligned with State-approved and industry validated technical standards, or
 - 8. obtain a composite score of 27 on the American College Testing Program's (ACT) tests, or an equivalent composite score of 1210 on the Scholastic Assessment Tests (SAT).

Ohio: R.C. 3313.61; R.C. 3326.11

3552 – Ohio Means Jobs Readiness Seal

The School shall affix the Ohio Means Jobs Readiness Seal onto the diploma and transcript of a student enrolled in the School who meets the following requirements:

1. The student must demonstrate and become proficient in each of the 15 identified professional skills. Proficient means have a deep understanding, can achieve a high standard routinely, take responsibility for their own work, deal with complex situations, make decisions with confidence, and see, overall, how individual actions include outcomes.
2. Using the Ohio Means Jobs Readiness Seal Form (See Form **3552.1**) record how he or she demonstrated each essential professional skill in at least two of three environments. The three possible environments are school, work or community.
3. Have each skill validated by a mentor. Three or more mentors must be involved in the validation process and must sign the form. Mentors are experienced advisors the student trusts. By signing the form, the mentor is recommending the student to a prospective employer or higher education provider.

The School shall not charge for the seal. Students can begin earning the seal anytime during high school and can cite experience from any point in their high school career provided the experience is validated by a mentor who supervises the student.

Ohio: R.C. 3313.6112.

Cross reference: Form No. **3552.1** Ohio Means Jobs Readiness Seal Validation Form.

3560 – Academic Acceleration, Early Entrance To Kindergarten, & Early High School Graduation

In accordance with the belief that all children are entitled to an education commensurate with their particular needs, students who can exceed the grade-level indicators and benchmarks set forth in the standards must be afforded the opportunity and be encouraged to do so.

The Governing Authority believes that such students often require access to advanced curriculum in order to realize their potential contribution to themselves and society.

All children learn and experience success given time and opportunity, but the degree to which academic content standards are met and the time it takes to reach the standards will vary from student to student. The Governing Authority believes that all students, including advanced learners, should be challenged and supported to reach their full potential. For many advanced learners, this can best be achieved by affording them access to curriculum, learning environments, and instructional interventions more commonly provided to older peers.

This policy describes the process that shall be used for evaluating students for possible accelerated placement and identifying students who should be granted early admission to kindergarten, accelerated in one or more individual subject areas, promoted to a higher grade level than their same-age peers, and granted early graduation from high school.

Referrals and Evaluation

- A. Any student in the School may be referred by a teacher, administrator, gifted education specialists, guidance counselor, school psychologists, or a parent or legal guardian of the student to the principal of his/her school for evaluation for possible accelerated placement. A student may refer to himself/herself or a peer through a staff member who has knowledge of the referred child's abilities.
- B. Copies of this policy and referral forms for evaluation for possible early entrance, whole-grade acceleration, individual subject acceleration, and early high school graduation shall be made available to staff and parents at each school building. The principal of each school building (or his/her designee) shall solicit referrals of students for evaluation for possible accelerated placement annually and ensure that all staff s/he supervises are aware of procedures for referring students for evaluation for possible accelerated placement.
- C. The principal (or his/her designee) of the referred students' school shall obtain written permission from the student's parent(s) or legal guardian(s) to evaluate the student for possible accelerated placement. The School shall evaluate all students who are referred for evaluation and whose parent(s) or legal guardian(s) have granted permission to evaluate the student for possible accelerated placement.
- D. Children who are referred for evaluation for possible accelerated placement sixty (60) or more days prior to the start of the school year shall be evaluated in advance of the start of the school year so that the child may be placed in the accelerated placement on the first day of school. Children who are referred for possible accelerated placement sixty (60) or more days prior to the start of the second semester shall be evaluated for possible accelerated placement at the start of the second semester. In all other cases, evaluations of a referred child shall be scheduled at the student's principal's discretion and placed in the accelerated setting(s) at the

time recommended by the acceleration evaluation committee – if the committee determines the child should be accelerated. Pursuant to R.C. 3321.01, all children who will be the proper age for entrance to kindergarten or first grade by the first day of January of the school year for which admission is requested shall be evaluated upon the request of the child's parent or legal guardian. Children who will not yet be the proper age for entrance to kindergarten or first grade by the first day of January of the school year for which admission is requested shall also be evaluated for possible early admittance if referred by an educator within the School, a preschool educator who knows the child, or pediatrician or psychologist who knows the child. Children who will not yet be the proper age for entrance to kindergarten or first grade by the first day of January of the school year for which admission is requested may also be evaluated for possible early admittance at the discretion of the principal of the school to which the student may be admitted.

- E. A parent or legal guardian of the evaluated student shall be notified in writing of the outcome of the evaluation process within forty-five (45) days of the submission of the referral to the referred student's principal. This notification shall include instructions for appealing the outcome of the evaluation process.
- F. A parent or legal guardian of the referred student may appeal in writing the decision of the evaluation committee to the Chief Academic Officer within thirty (30) days of being notified of the committee's decision. The Chief Academic Officer shall review the appeal and notify the parent or legal guardian who filed the appeal of his/her final decision within thirty (30) days of receiving the appeal. The Chief Academic Officer's decision shall be final. However, the student may be referred and evaluated again at the next available opportunity, if s/he is again referred for evaluation by an individual eligible to make referrals as described in this policy.

Acceleration Evaluation Committee

Composition

- A.
 - 1. A principal or assistant principal from the child's current school.
 - 2. A current teacher of the referred student (with the exception of students referred for possible early admission to kindergarten).
 - 3. A teacher at the grade level to which the student may be accelerated (with the exception of students referred for possible early graduation from high school).
 - 4. A parent or legal guardian of the referred student or a representative designated by a parent or legal guardian of the referred student.
 - 5. A gifted education coordinator or gifted intervention specialist.
If a gifted coordinator or gifted intervention specialist is not available in the School, a school psychologist or guidance counselor with expertise in the appropriate use of academic acceleration may be substituted.
- B. The acceleration evaluation committee shall be charged with the following responsibilities:
 - 1. The acceleration evaluation committee shall conduct a fair and thorough evaluation of the student.
 - a. Students considered for whole-grade acceleration and early entrance to kindergarten shall be evaluated using an acceleration assessment process approved by the Ohio Department of Education. The committee shall consider the student's own thoughts on possible accelerated placement in its deliberations.

- b. Students considered for individual subject acceleration shall be evaluated using a variety of data sources, including measures of achievement based on State academic content standards (in subjects for which the State had approved content standards) and consideration of the student's maturity and desire for accelerated placement. The committee shall consider the student's own thoughts on possible accelerated placement in its deliberations.
 - c. Students referred for possible early high school graduation shall be evaluated based on past academic performance, measures of achievement based on State academic content standards, and successful completion of State mandated graduation requirements. The committee shall consider the student's own thoughts on possible accelerated placement in its deliberations.
- 2. The acceleration evaluation committee shall issue a written decision to the principal and the student's parent, or legal guardian based on the outcome of the evaluation process. If a consensus recommendation cannot be reached by the committee, a decision regarding whether or not to accelerate the student will be determined by a majority vote of the committee membership.
- 3. The acceleration evaluation committee shall develop a written acceleration plan for students who will be admitted early to kindergarten, whole grade accelerated, or accelerated in one or more individual subject areas. The parent(s) or legal guardian(s) of the student shall be provided with a copy of the written acceleration plan. The written acceleration plan shall specify:
 - a. placement of the student in an accelerated setting;
 - b. strategies to support a successful transition to the accelerated setting;
 - c. requirements and procedures for earning high school credit prior to entering high school (if applicable); and,
 - d. an appropriate transition period for accelerated placement for early entrants to kindergarten, grade-level accelerated students, and students accelerated in individual content areas.
- 4. For students the acceleration evaluation committee recommends for early high school graduation, the committee shall develop a written acceleration plan designed to allow the student to complete graduation requirements on an accelerated basis. This may include the provision of educational options in accordance with Ohio Administrative Code 3301-35-06(G), waiving District prerequisite requirements for enrolling in advanced courses, waiving District graduation requirements that exceed those required by the State, and early promotion to sophomore (or higher) status to allow the student to take the Ohio Graduation Test.
- 5. The acceleration evaluation committee shall designate a school staff member to ensure successful implementation of the written acceleration plan and to monitor the adjustment of the student to the accelerated setting.

Accelerated Placement

- A. The acceleration evaluation committee shall specify an appropriate transition period for accelerated placement for early entrants to kindergarten, grade-level accelerated students, and students accelerated in individual subject areas.
 - 1. At any time during the transition period, a parent or legal guardian of the student may request in writing that the student be withdrawn from accelerated placement. In such cases, the principal shall remove the student without repercussions from the accelerated placement.

2. At any time during the transition period, a parent or legal guardian of the student may request in writing an alternative accelerated placement. In such cases, the principal shall direct the acceleration committee to consider other accelerative options and issue a decision within thirty (30) days of receiving the request from the parent or legal guardian. If the student will be placed in an accelerated setting different from that initially recommended by the acceleration evaluation committee, the student's written acceleration plan shall be revised accordingly, and a new transition period shall be specified.
- B. At the end of the transition period, the accelerated placement shall become permanent. The student's records shall be modified accordingly, and the acceleration implementation plan shall become part of the student's permanent record to facilitate continuous progress through the curriculum.

3570 – Released Time Courses in Religious Instruction

The Governing Authority will excuse students from school to attend an off-campus, “released time” course in religious instruction pursuant to this policy, as authorized by Ohio law. Students will not be considered absent from school for “released time” instruction for at least one period per week provided the following conditions are met:

- (1) The student's parent or guardian gives written consent;
- (2) The sponsoring entity maintains attendance records and provides them to the School;
- (3) The sponsoring entity makes provisions for and assumes liability for the student;
- (4) No public funds are expended, and no public school personnel are involved in providing the religious instruction; and
- (5) The student assumes responsibility for any missed schoolwork.

Students may NOT be released from a core curriculum subject course to attend a religious instruction course. Students in an elementary or middle school shall not exceed two periods in total per week of released time instruction under this policy. High school students may not exceed the amount of time that is equivalent to attending two units of high school credit per week for released time instruction under this policy.

Transportation to and from the place of instruction, including transportation for students with disabilities, is the complete responsibility of the sponsoring entity, parent, guardian, or student. The Governing Authority, its members, and its employees shall not be liable in damages for injury allegedly arising during a student's transportation to or from a place of “released time” instruction under this policy.

The Governing Authority neither promotes nor discourages student participation under this policy, and its decision to excuse students for “released time” religious instruction pursuant to Ohio law shall not constitute an endorsement of religion.

High school students may earn up to two units of high school credit for the completion of a released time course in religious instruction. In determining whether to award credit for completion of such a course, the Governing Authority shall evaluate the course based on purely secular criteria that are substantially the same criteria used to evaluate similar nonpublic high school courses for purposes of determining whether to award credit for such courses to a student transferring from a nonpublic high school to the School. Secular criteria will include:

- (1) The number of hours of classroom instruction time;
- (2) A review of the course syllabus that reflects course requirements and materials used;
- (3) The methods of assessment used in the course; and
- (4) The qualifications of the course instructor, which shall be similar to the qualifications of other teachers within the School.

The decision to award credit for a released time course of religious instruction shall be neutral to, and shall not involve any test for, religious content or denominational affiliation. Such high school credit will be awarded pursuant to O.R.C. 3313.603(C)(8).

Ohio: R.C. 3313.6022

Updated September 2, 2025

3570.1 – Consent for Released-Time Courses in Religious Instruction

I, the parent/guardian of _____, give consent for my child to be excused from school to attend a course in religious instruction off school property. I further acknowledge and agree that:

- (1) my child assumes all responsibility for all missed schoolwork;
- (2) the entity sponsoring the religious instruction will provide my child's attendance records to the School;
- (3) the School is not responsible for transporting my child to and from the place of instruction;
- (4) my child will not receive school credit for the course in religious instruction.
- (5) My child may receive high school credit only under the terms of Board policy _____ as applied by school officials.

_____ will be responsible for transporting my child to and from the location of the released time course. _____ (initial) My child will transport him/herself to and from the location of the released time course.

I acknowledge and agree that the Governing Authority, its members, and its employees shall not be liable in damages for any injury or damages incurred in connection with my child's attendance and participation in released time religious instruction and/or my child's transportation to or from a place of released time instruction.

Parent/Guardian signature

Student signature

Notice:

The Governing Authority does not encourage or discourage students from participating in released time religious instruction and does not endorse any particular religious practice or religion.

3580 – Sexual Abuse/Violence Prevention Instruction

The School is committed to the well-being and health of its students, and takes seriously the issue of child sexual abuse and sexual violence. Ohio law requires annual instruction that is developmentally appropriate for students on the prevention of child sexual abuse and sexual violence.

For students in grades Kindergarten through six, the School's curriculum shall include annual, developmentally appropriate instruction in child sexual abuse prevention, including information on available counseling and resources for children who are sexually abused. Such instruction and information provided shall not be connected in any way to any individual, entity, or organization that provides, promotes, counsels, or makes referrals for abortion or abortion-related services. Students may be excused from taking instruction in child sexual abuse prevention upon written request of the parent or legal guardian (see Form 3580.1).

For students in grades seven through twelve, the School's curriculum shall include annual, developmentally appropriate instruction in sexual violence prevention education. Students may be excused from taking instructions in sexual violence prevention upon written request of the parent or legal guardian (see Form 3580.1). Parents or legal guardians of a student who is less than eighteen years of age may submit a written request to the Grade-level Director to examine the sexual violence prevention education instruction materials, and the Grade-level Director, within 48 hours after the request is made, shall allow the parent or guardian to examine those materials at school.

Added March 7, 2023

Ohio: R.C. 3326.091.

3580.1 – Annual Sexual Abuse/Sexual Violence Prevention Notification

The School is committed to the well-being and health of its students and takes seriously the issue of child sexual abuse and sexual violence. Ohio law requires annual instruction that is developmentally appropriate for students on the prevention of child sexual abuse and sexual violence.

While instruction in child sexual abuse prevention (for students in grades K through 6) and sexual violence prevention (for students in grades 7-12) is a mandated part of the School's curriculum, your child/children may be excused from such instruction upon your written request (see below).

If your student is less than eighteen years old, you may submit a written request (including email) to the Grade-level Director to examine the sexual violence prevention instruction materials at the school, and your request will be granted within 48 hours.

(Grades K-6): Please excuse my child/children from taking instruction in child sexual abuse prevention for the _____ school year.

Name(s) of Student(s): _____

Grade(s): _____

Parent/legal guardian name: _____

Parent/legal guardian signature: _____

Date: _____

(Grades 7-12): Please excuse my child/children from taking instruction in sexual violence prevention for the _____ school year.

Name(s) of Student(s): _____

Grade(s): _____

Parent/legal guardian name: _____

Parent/legal guardian signature: _____

Date: _____

Added March 7, 2023

3600 – Specialized Instruction Programs

Policy No. 3610

3610 – Program to Prevent Dropouts and Promote Reentry

To receive Title I, Part H, funding, schools are required to adopt and implement programs to prevent school dropout and promote reentry. Consistent with Federal Law, the School shall adopt and implement programs effective in preventing students from dropping out of school and shall also adopt and implement programs promoting reentry to school.

Federal: 20 U.S.C. 6552, et seq.

3620 – Credit Flexibility Plan

Credit flexibility enables students to earn units of high school credit based on a demonstration of subject area competency, instead of, or in combination with completing hours of classroom instruction. Any student who has progressed through the curriculum to the high school level is eligible to be considered for alternative ways of earning high school credit, but students must be capable of meeting the conditions necessary to earn the credits.

Also, students in grades 7 and 8 may meet curriculum requirements based on a demonstration of subject area competency, instead of, or in combination with completing hours of classroom instruction.

Interested students will initiate and submit a request in writing to take an assessment and/or submit an application to earn credit via a Credit Flexibility Plan (CFP).

Students may earn credits through any of the following or a combination thereof:

1. The completion of courses;
2. Demonstrating mastery of the course content;
3. Pursuit of one or more “educational options” such as:
 - a. Distance Learning
 - b. Online Learning
 - c. Independent Study
 - d. Post-Secondary Education option
 - e. Sports

Issuance of credit will be determined locally, by teachers or through the use of:

1. A multi-disciplinary team
2. A state performance-based assessment
3. Grade verification from an accredited institution

Application/Approval Process

Students seeking credit through the Credit Flexibility option must complete an application for a Credit Flexibility Plan (CFP) and submit it to the head administrator by the deadline.

The application will be reviewed by the Credit Flexibility Committee (CFC) comprised of the head administrator, the appropriate Grade-level Director, and one teacher from the appropriate department. Students may be required to provide additional supporting documentation as determined by the CFC.

The CFC will appoint a highly qualified teacher of record, when required, for the student’s CFP. In cases where the student submitting the application has other legally binding education plans (e.g., IEP, 504, WEP), the case manager for that student shall also be a member of the CFC.

The CFC will review the application and approve or deny it.

In the event the CFC does not approve the application for a CFP and recommends areas for improvement, students who wish to resubmit their application must do so within two weeks. If this deadline has passed, the student may resubmit his/her application for the next annual deadline. Upon approval of a completed application, the student may then proceed with the learning activity and credit will be awarded when all requirements are completed on time and evaluated.

Awarding Grades and Credit

Grades will be issued, and credit awarded through demonstration and mastery of the course competencies. Course credit granted through Credit Flexibility will be recorded the same as other credits and based on the School's grading scale. Grades and credits will be included in your grade point average and reported on your official transcripts. The following standards and guidelines apply for awarding credit:

- The total number of credits that may be awarded is not limited.
- The successful completion of a pre-approved course may result in credit being designated as fulfilling either required or elective credit toward graduation requirements.
- In order to receive credit, all CFPs must be aligned to Ohio's Learning Standards, current AP course standards (as necessary), and/or School curriculum requirements.
- Credit from other districts and educational providers, including online providers, may be accepted in accordance with the Ohio Operating Standards.
- The determination of how credit will be awarded must be outlined in the CFP at the time of its approval. A student must demonstrate proficiency through an assessment or exam, performance, or work product as outlined in the CFP and approved by the CFC.
- The CFC and the teacher of record reserve the right to award partial credit if student work does not warrant full credit, or to withhold credit until the student does additional work to warrant the agreed upon credit.
- All senior flexible credits must be completed by May 1st of the intended graduation year. Credit flexibility may be used to warrant early graduation.
- If a student transfers from another school district and the student has not completed the course requirements to receive credit as approved by the other district, the CFC may consider this a new application for credit. The head administrator may assign partial credit for partial completion as deemed appropriate.
- Credits completed in another district before transfer to the School will count as credits toward fulfilling graduation requirements as awarded by the sending district. The head administrator will review the transfer credit to determine equivalency to specific courses offered by the School.
- Approved tests/assessments used to determine advancement and course credits can be used. To qualify for credit by assessment, the student must show mastery of 70% or higher in the subject to receive credit. A student failing to achieve this score may not apply for credit by assessment for the same course credit until four months after the date of the initial assessment. Any credit by assessment for a particular course may only be attempted two times.
- Credit may be earned simultaneously for academic and career technical experiences; secondary and post-secondary credit, and more than one academic content area/course.
- Students may be awarded Carnegie Units as approved by the CFC. Units of credit will be awarded in intervals no less than one-half (1/2) credit.

- The CFC may award flexible credit in the amount approved in advance based upon the equivalence to a 120-hour (Carnegie Unit) course. In pre-approved cases, partial credits may be awarded where deemed appropriate.
- There are no weighted grades for credits earned through Credit Flexibility.
- The supervising teacher of record reserves the right to remove the student from a course (withdrawn with penalty) for issues involving plagiarism and copyright violation.
- The student must complete all coursework assigned by the supervising teacher on or before the due date or the student may be withdrawn from the course.
- Should a student transfer to another district, upon request of the student or parent, the School shall forward a copy of the approved application to the new district for their consideration.
- In cases where students are pursuing learning opportunities from an online service provider, the exact grade issued on that institution's transcript will be the grade posted to the student's transcript.
- Students are not allowed to retroactively receive credit for courses or experiences taken prior to the submission of an application.
- The teacher of record reserves the right to remove the student from a course (withdrawn with penalty) for issues involving violations of academic integrity, including but not limited to plagiarism and copyright violations.
- The final grade must be posted before the credit can count toward graduation, including early graduation.
- If a student fails to complete or make adequate progress on his/her CFP within the time frame approved by the CFC, the credit flexibility application will be voided.
- If a student is unable to complete the CFP due to illness (confirmed through medical documentation) or other valid reason as determined by CFC, the CFC may extend the pre-approved timeline or revoke the application without posting a failing grade.

Appeal Process

A student who disagrees with a decision or action by the CFC or head administrator may submit a written appeal to the Academic Excellence Committee. Appeals must be submitted to the Academic Excellence Committee's office within 30 calendar days of receiving the decision at issue. Prior to making a decision on the appealed matter, the Academic Excellence Committee will review the matter in its entirety including without limitation any relevant information submitted by the student and/or his or her parent(s). The Academic Excellence Committee shall decide whether there was a reasonable, verifiable basis for the determination which is the subject of the appeal and whether any procedural or substantive error occurred. The Academic Excellence Committee will issue a determination on the appeal within 30 days after the appeal was submitted.

Students may submit an appeal of the Academic Excellence Committee's final determination to the Ohio Department of Education if there is a complaint about having access to or implementation of the Credit Flexibility policy.

Integrity

To ensure the integrity of the learning experience approved under this program, the student will be required periodically and/or upon request to provide evidence of progress and attendance. The CFC will

be responsible for certifying completion and the award of credits consistent with the School's policies on graduation.

Athletic Eligibility

Student athletes who wish to participate in the credit flexibility option and athletics must ensure that they continue to meet eligibility requirements as directed by the Ohio High School Athletic Association (OHSAA) bylaws, specifically bylaw 4, Student eligibility. Grades awarded for successfully completed Credit Flexibility Plans will not be factored into OHSAA eligibility requirements. Students wishing to pursue Division I or Division II NCAA athletics eligibility are responsible for ensuring that they will meet the appropriate requirements. The NCAA has determined that they will NOT accept Credit Flexibility as an approved core course.

Fees

The School will require parent(s)/guardians of a student participating in the credit flexibility option not initiated by the School to be responsible for any additional fees associated with participation in that option, as may be legally required.

Communication

The School will communicate the provisions of the Credit Flexibility policy and application process to students and parents using multiple methods, including an annual notice, and posting them on the School website.

Performance data including the number of participating students, total credits earned, and extent to which student participation reflects diversity of the student body will be made available to the governing authority, and to the Ohio Department of Education as required by law.

Ohio: R.C. 3313.603; 3326.15

3630 – School to Work Program

The School recognizes the importance of fostering a strong link as students transition from an academic setting to a work or post-secondary setting. As a result, the School, if appropriate, may adopt a program that offers opportunities for its students to participate in a performance-based education and training program that will: enable students to earn portable credentials, prepare students for first jobs in high-skill, high wage careers; and increase opportunities for further education.

Federal: 20 U.S.C. 6212

3640 – Migrant Students Program

To receive Title I, Part H, funding, schools are required to ensure that migrant students receive a proper education and academic support. To comply with these requirements, the School shall ensure that migrant students receive high-quality and comprehensive educational programs, are not penalized by disparities in curriculum, receive appropriate educational services, and receive full opportunities to meet academic standards. Additionally, the School shall design programs to help migratory students overcome facts that inhibit children to do well in school.

Federal: 20 U.S.C. 6391, et seq.

3650 – Assisting English Language Learners and Immigrant Students

To receive Title II funding, schools are required to ensure that all English Language Learners (ELLs) develop English proficiency. To comply with these requirements, the School shall develop a program based on scientifically based research that is taught to limited English proficient children.

The program will enable students to speak, read, write, and comprehend the English language; will enable students to meet Ohio's academic content and student achievement standards; and will not violate any state law regarding the education of limited English proficient children. The program will be taught by teachers who are fluent in the English language.

The program will be developed by a written plan (the "Plan") that shall be submitted to the Ohio Department of Education. The Plan will conform to all the requirements stated above. The Plan will also:

- describe the programs and activities proposed to be developed, implemented, and administered;
- describe how the School will meet all annual measurable achievement objectives required;
- describe how the School will ensure that it holds schools accountable for meeting the objectives, making yearly progress, and annually measuring the English proficiency of limited English proficient children;
- describe how the School will promote parental and community participation in programs for limited English proficient children; and
- describe how the program will ensure that students served by the program develop English proficiency.

The Plan may be developed by referring to Form No. **3650.1**, Guidelines for the Identification and Assessment of Limited English Proficient Students.

Federal: 20 U.S.C. 6825(a).

Cross Reference: Form No. **3650.1**, Guidelines for the Identification and Assessment of Limited English Proficient Students.

3650.1 – Guidelines for the Identification and Assessment of Limited English Proficient

Students

The form Guidelines for the Identification and Assessment of Limited English Proficient Students is adopted from the Ohio Department of Education. The guidelines may be accessed online at:

<https://education.ohio.gov/Topics/Other-Resources/English-Learners/Teaching-English-Language-Learners/Guidelines-for-Identifying-English-Learners>

Guidelines for the Identification and Assessment of Limited English Proficient Students/English Language Learners

Overview of School District Requirements in Serving Limited English Proficient (LEP) Students/English Language Learners (ELL)

In its publication *The Provision of an Equal Education Opportunity to Limited English Proficient Students* (1992), the U.S. Department of Education, Office for Civil Rights, provides guidelines to school districts regarding their legal obligation to language minority students. The following is a summary of the guidelines.

First, school districts must identify all students whose primary or home language is other than English (PHLOTE). The district then needs to assess all PHLOTE students to determine if they are limited English proficient and need special language assistance to participate effectively in the district's instructional program.

After a school district has identified LEP students who need assistance, it must determine what kind of special language service program is to be provided and it must implement the program. Ohio does not prescribe a specific type of intervention program. Thus, school districts have the flexibility to decide on the educational approach that best meets the needs of their LEP/ELL students. Programs must be based on sound theory and best practice. In other words, programs must likely be effective in meeting the educational needs of language minority students. Whatever program is selected, it must provide effective instruction that leads to academic achievement and timely acquisition of proficiency in English. Guidelines and further information about programmatic options for LEP/ELL students are available through the Lau Resource Center of the Ohio Department of Education (see Contact Information at the end of this document).

In implementing their programs, school districts must ensure that staff members are properly trained and that appropriate curricular materials are used. Classroom facilities should be comparable to those used by other students. In addition, school districts have the responsibility to notify national origin minority group parents of school activities which are called to the attention of other parents. Such a notice, to be effective, may need to be in a language other than English.

Once a school district implements a special language program for its LEP students, it must monitor student progress on a regular basis and take steps to modify the program if the students are not making reasonable progress.

Focus of this Document

The focus of this document is the initial identification of students whose home/native language is not English and the subsequent assessment of their English communication skills to determine if the students are LEP. The information and guidelines in the following pages are intended to serve as a resource for personnel of school districts serving language minority students.

On the next page is a sample form that can be adapted by school districts for documenting the identification of students whose home/native language is not English, the assessment of their English language proficiency and the placement of the students in appropriate educational programs. On the subsequent pages are guidelines for the English language assessment of students whose home/native language is not English.

Home Language Survey

Date: _____

Name of Student: _____

Family Name/First Name/Middle Initial

Date of Birth: _____ Place of Birth: _____

Month/Day/ Year _____ City/State/Country _____

Name of Parent/Guardian: _____ Family Name/First Name: _____

Home Address: _____

City: _____ State: _____

ZIP Code: _____

Home Phone: _____ Work Phone: _____

For Parents/Guardians:

Please answer the following questions.

1. What language did your son or daughter speak when he or she first learned to talk?

2. What language does your son or daughter use most frequently at home?

3. What language do you use most frequently with your son or daughter?

4. What language do the adults at home most often speak?

5. How long has your son or daughter attended school in the United States?

For School District Personnel:

If the answer to any of the first four questions above is a language other than English, indicate the student's native/home language in EMIS Student Data Element (GI270), and proceed to assess the student's English language proficiency.

Initial English Language Assessment

Communication Skill		Proficiency Level			
Listening_____Pre-functional	_____Beginning	_____Intermediate	_____Advanced	_____Proficient	
Speaking_____Pre-functional	_____Beginning	_____Intermediate	_____Advanced	_____Proficient	
Reading_____Pre-functional	_____Beginning	_____Intermediate	_____Advanced	_____Proficient	
Writing_____Pre-functional	_____Beginning	_____Intermediate	_____Advanced	_____Proficient	
Comprehension*_ _____Pre-functional	_____Beginning	_____Intermediate	_____Advanced	_____Proficient	
Composite**_ Pre-functional	_____Beginning	_____Intermediate	_____Advanced	_____Proficient	

*The Comprehension level is derived from Listening and Reading

**The Composite level is derived from Listening, Speaking, Reading, Writing and Comprehension

Assessment instrument(s) used:

Is the student LEP?

_____Yes _____No

Indicate the student's status as LEP or not LEP in EMIS Student Data Element (GI230).

If the student has been in U.S. schools for less than three years and the student's reading and writing level is intermediate or below, the student is eligible for additional accommodations.

Is this student eligible? __Yes ____No

The English Language Assessment of Students Who's Native or Home Language is Not English

Purposes of English Language Assessment

- To determine if a student is limited English proficient (LEP), that is, the student's level of English proficiency is not adequate to participate effectively in mainstream classroom settings in which English is the only language of instruction
- To determine the appropriate support to be provided for those students identified as LEP
- To help inform instructional decisions relating to the education of LEP students
- To determine if a student who has been enrolled in United States schools for less than three full school years is eligible for additional accommodations when taking certain Ohio statewide assessments.
- To evaluate the progress of LEP students in developing English language proficiency
- To help determine when a student is no longer LEP and is ready to be exited from the district's LEP program
- To help evaluate the effectiveness of the district's LEP program

English Communication Modes to be Assessed

- **Listening:** How well is the student able to understand spoken English in social and grade-level academic settings?
- **Speaking:** How well is the student able to communicate orally in English in both social and academic settings?
- **Reading:** How well is the student able to read age-appropriate written materials in English for both social and academic purposes?
- **Writing:** How well is the student able to produce writing in English for both social and academic purposes?

Proficiency Levels

A number of category systems have been developed to indicate the different stages or levels of second/foreign language proficiency. Category systems include **nine levels:** Novice-Low, Novice-Mid, Novice-High, Intermediate-Low, Intermediate-Mid, Intermediate-High, Advanced, Advanced-Plus, and Superior (American Council of Teachers Foreign Languages); **six levels:** No English, Receptive English Only, Survival English, Intermediate English, Proficient English I, and Proficient English II (*Bilingual Syntax Measure*, The Psychological Corporation) and **five levels:** Beginner Proficiency Level, Elementary Proficiency Level, Low Intermediate Proficiency Level, High Intermediate Proficiency Level, and Advanced Proficiency Level (*Secondary Level English Proficiency Test*, Educational Testing Service).

For the purpose of this guide, five levels are used to categorize LEP students at different stages of English language proficiency: Pre-functional, Beginning, Intermediate, Advanced and Proficient/Trial Mainstream. It should be recognized that within each of these levels, students will represent a certain range of proficiencies (low, mid, high).

On the next page is a description of the five levels of English language proficiency of LEP students. Following the description of the proficiency levels is a chart indicating the five English proficiency levels for each of the four language domains: listening, speaking, reading and writing.

English Proficiency Levels of LEP Students

Students learning a new language proceed through different stages or levels of proficiency. Ohio has established five proficiency levels to categorize LEP students at different stages of their English language development:

- Pre-functional;
- Beginning;
- Intermediate;
- Advanced;
- Proficient/Trial-Mainstream.

The following are summary descriptions of each of the proficiency levels:

Pre-functional: Students at this level may understand some isolated words (particularly school and social environment vocabulary), some high-frequency social conventions, and simple (single-word or short-phrase) directions, commands, and questions. They rely on nonverbal cues such as gestures and facial expressions and require frequent repetition and rephrasing to understand spoken language. In conversations, they may be able to provide some basic information in response to requests and questions. They can ask one- or two-word questions without regard to structure and intonation.

Regarding reading and pre-reading skills, students at this level may demonstrate an understanding of concepts of print (e.g., front-to-back, top to-bottom, left-to-right) and begin to track print. They may be able to distinguish letters from other symbolic representations. They can imitate the act of reading (e.g., holding a book and turning pages); however, they get meaning mainly through pictures. Students at this level participate in writing activities by drawing pictures. They may be able to copy letters or form them from memory and may be able to copy some words. They can imitate the act of writing (e.g., scribbling); however, their text does not transmit a message. They may attempt to apply some writing conventions but do so inappropriately or do so correctly only when copying.

Beginning: As LEP students' oral comprehension increases, they begin to imitate the verbalizations of others by using single words or simple phrases and begin to use English spontaneously. They gradually construct more meaning from the words themselves, but the construction is often incomplete. They are able to generate simple texts that reflect their knowledge level of syntax. These texts may include a significant amount of non-conventional features, such as invented spelling, some grammatical inaccuracies, pictorial representations, surface features and rhetorical patterns of the native language (i.e., ways of structuring text from native culture and language).

Intermediate: At this level, students understand more complex speech, but still may require some repetition. They acquire a vocabulary of stock words and phrases covering many daily situations. They use English spontaneously but may have difficulty expressing all of their thoughts due to a restricted vocabulary and a limited command of language structure. Students at this level speak in simple

sentences, which are comprehensible and appropriate, but frequently marked by grammatical errors. They may have some trouble comprehending and producing complex structures and academic language.

Proficiency in reading may vary considerably depending upon the learner's familiarity and prior experience with themes, concepts, genre, characters and so on. They are most successful constructing meaning from texts for which they have background knowledge upon which to build. They are able to generate more complex texts, a wider variety of texts and more coherent texts than beginners. Texts still have considerable numbers of non-conventional features.

Advanced: At this level, students' language skills are adequate for most day-to-day communication needs. Occasional structural and lexical errors occur. Students may have difficulty understanding and using some idioms, figures of speech and words with multiple meanings. They communicate in English in new or unfamiliar settings but have occasional difficulty with complex structures and abstract academic concepts.

Students at this level may read with considerable fluency and are able to locate and identify the specific facts within the text. However, they may not understand texts in which the concepts are presented in a decontextualized manner, the sentence structure is complex, or the vocabulary is abstract. They can read independently but may have occasional comprehension problems. They produce texts independently for personal and academic purposes. Structures, vocabulary, and overall organization approximate the writing of native speakers of English. However, errors may persist in one or more of these domains.

Source of the above proficiency level descriptions of Beginning –Advanced: Teachers of English to Speakers of Other Languages (TESOL), Inc., 1997, pp. 20-21.

Proficient/Trial-mainstream: At this final stage, students usually can participate in academic topical conversations without difficulty. In most cases, they can follow complex and multi-level directions without assistance, and they can understand oral information provided via electronic audio and video media. Students at this level usually speak English fluently in social and grade-level academic settings and they control age-appropriate syntax and vocabulary in their speech.

Generally, students read and understand factual information in non-technical prose as well as discussions on concrete topics related to special events. They comprehend standard newspaper items addressed to the general reader, correspondence reports, and technical materials. At this level, they can write short papers and clearly express statements of position, points of view and arguments. In their writing, they usually show control of varied sentence structures, spelling and vocabulary, expressing well-developed thoughts.

During this transition stage, the students' progress is carefully monitored, and additional support is provided on an as-needed basis.

Criteria for Exiting LEP Program

To be exited from LEP programs in Ohio, students need to demonstrate the ability to understand, speak, read and write the English language at a level in which they are able to:

1. Achieve successfully in classrooms where the language of instruction is in English;
2. Meaningfully participate in academic assessments in English; and
3. Participate fully in society in the United States.

A student has attained the required level of English proficiency to be exited from a district's LEP program when the student:

- Obtains a composite score of 5 on the Ohio Test of English Language Acquisition (OTELA); **or**
- Obtains a composite score of 4 on the OTELA, subsequently completes a trial period of mainstream instruction and obtains a composite score of 4 or above on the OTELA during the trial period of mainstream instruction.

Special Conditions

- Students will not be exited from the LEP program before Grade 3.
- Students who obtain a composite score of 4 or 5 on the OTELA in Grade 2 and obtain a composite score of 4 or above on the OTELA during the completion of a trial period of mainstream instruction in Grade 3 shall be exited from the program.
- Transition Year – LEP students who obtain a composite score of 4 or 5 on the OTELA in 2008-2009 will be exited from the program if they obtain a composite score of 4 or 5 on the OTELA in 2009-2010.

English Proficiency Levels – Descriptions				
	Listening	Speaking	Reading	Writing
Level I Preliminary	☐ Has zero to very limited ability in understanding spoken English ☐ Relies on non-verbal cues such as gestures and facial expressions, and requires frequent repetition/rephrasing to understand spoken language ☐ May understand some isolated words, some social conventions, and simple directions, commands and	☐ Has zero to very limited ability in speaking English ☐ May say or repeat common phrases, words and formulaic language ☐ May be able to provide some basic information in response to requests and questions ☐ Can ask one or two-word questions without regard to structure and intonation	☐ Has zero to very limited ability in reading English ☐ May demonstrate some basic concepts of print (front-to-back, top to- bottom, left-to-right) ☐ May distinguish letters from other symbolic representations ☐ May follow one-step directions depicted graphically	☐ Has zero to very limited ability in writing English ☐ Can participate in writing activities by drawing pictures ☐ May be able to copy letters or form them from memory ☐ May be able to copy some words ☐ May attempt to apply some writing conventions, but often does so inappropriately

	questions			
Level II Beginning	- Understands simple, short statements and questions on a well-known topic within a familiar context - Can follow simple multi-step directions - Can identify the main idea and some details of short conversations or simple orally delivered text on a familiar topic - May still need repetition and rephrasing	- Predominantly uses formulaic patterns and memorized phrases - Uses language that is often marked by the lack of tense, number, and agreement - Uses school-social vocabulary that is limited to key words and has little or no academic vocabulary - Responds to questions usually with one or two-word answers	- Begins to identify the names of both upper- and lower-case letters of the alphabet - Can identify where words begin and end - Can follow multi-step directions depicted graphically - During read aloud, gets meaning primarily from pictures and the teacher's tone of voice and gestures	- Produces writing that is marked by the lack of tense, number, and agreement - Makes frequent errors in mechanics such as punctuation and capitalization - Writes most effectively when supported by a visual, a shared experience, or scaffolding - Can begin to revise or edit own writing with teacher support
Level III Intermediate	- Shows understanding simple questions and statements on familiar topics - Often requires restatements in graphic terms or at a lower rate - Can follow many simple directions - Shows appropriate responses when read or told a story (example – laughs at humor)	- Can communicate ideas and feelings in English, but with some difficulty - Speaks coherently, but with hesitations and with grammatical and syntactic errors - Can retell a simple story, but detail may be lacking - Can respond appropriately to many questions, but with errors in grammar	- Reads simple printed material within a familiar context - Understands short discourse on familiar topics. - Has a small repertoire of high frequency words? - Partially uses details to extract meaning - Partially perceives the feeling and tone in a poem or story	- Composes short paragraphs that are mostly intelligible - Begins to edit for sentence-level structure, spelling and mechanics and revises for content, organization and vocabulary, usually with the support of the teacher - Writes with less dependency on visual supports, shared

	Has difficulty comprehending academic-related	and vocabulary	Has some weaknesses in predicting from details	experiences, and scaffolding
Level IV Advanced	- Understands conversations in most school/social settings - Understands main ideas and significant relevant details of extended discussions or presentations on familiar and relevant academic topics - May ask for clarification on oral information related to academic content - Understands multiple meanings of words and can use context clues to understand messages	- Speaks in coherent, fluent sentences, but with occasional errors in vocabulary and syntax - Has little difficulty communicating personal ideas and feeling in English - Can respond appropriately to many questions in classroom settings, but makes some errors in more complex grammatical structures - Can often use language to connect, tell and expand on a topic; and can begin to use it to reason	- Can read familiar text with little teacher or visual support; still needs those supports when reading to comprehend unfamiliar text - Has oral fluency and uses self-monitoring and self-correction strategies when necessary - Can identify main idea of many reading passages - Able to identify most specific facts within a text - May have some difficulty using details to make predictions	- Writes simple social correspondence with some errors in spelling and punctuation - May have some difficulty in producing complex sentences - Produces writing that generally addresses given topic - Produces writing that is generally intelligible but lacking grade-level quality - Produces writing that generally expresses complete thoughts
Level IV	- Shows understanding of academic topical conversations without difficulty - Can follow complex and multi-level directions without difficulty - Shows understanding of oral information	- Speaks English fluently in social and grade-level academic settings - Produces speech that include a variety of adverbs and transitional signals - Participates in classroom discussions without difficulty	- Reads and understands factual information in non-technical prose as well as discussion on concrete topics related to special events - Comprehends standard newspaper items addressed to the general reader,	- Writes short papers and clearly expresses statements of position, points of view and arguments - Shows good control of sentence structure, spelling, and vocabulary - Produces writing with wide range of vocabulary

	provided via electronic media	☐ Demonstrates control of age- appropriate syntax and vocabulary when speaking ☐ Can use language effectively to connect, tell, expand, and reason	correspondence reports and technical materials ☐ Shows understanding of the main idea ☐ Understands figurative language in a poem	☐ Edits for sentence-level structure, spelling, and mechanics and revise for content, organization and vocabulary
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Sources: North Carolina Department of Education, 1999; Iowa Department of Education, 2000; IDEA Reading and Writing Proficiency Tests, Examiner’s Manual, 1993, Ballard and Tighe; The State Collaborative on Assessment and Student Standards (SCASS) for Assessing Limited English Proficient Students and American Institutes for Research (AIR), English Language Development Assessment K-2 Test Administration Manual, 2006.

Tools for Assessing Language Proficiency

For the purpose of the initial identification of ELL/LEP students, a standardized English language proficiency test must be used. A number of commercial tests have been developed to assess the language proficiency of students whose home/native language is not English. Some of these tests are listed on the following pages. Please note that this list should not be taken as an endorsement by ODE of a particular test. The information is provided as a resource only. School district personnel should carefully review a test instrument before selecting it to ensure that it meets the needs of the program or school.

Commercial Tests of English Language Proficiency

- Basic Inventory of Natural Language (BINL)
 - Grade Levels: K-12
 - Communication Modes: Listening and Speaking
 - Languages: Arabic, Armenian, Cambodian, Cantonese, Chinese, Creole, Dutch, English, Farsi, French, German, Greek, Hindi, Hmong, Ilokano, Inupiaq, Italian, Japanese, Korean, Laotian, Navajo, Filipino, Portuguese, Russian, Spanish, Taiwanese, Tagalog, Taishanese, Ukrainian, Vietnamese, Yugoslavian
 - Contact: CHECpoint Systems, Inc. 1520 North Waterman Ave. San Bernardino, CA 92404, Tel. (800)635-1235
- Bilingual Oral Language Tests
 - Grade Levels: 4-12
 - Communication Modes: Listening and Speaking
 - Languages: English, Spanish
 - Contact: Bilingual Media Productions, P.O. Box 9337, North Berkeley, CA 94709
- Bilingual Syntax Measure
 - Grade Levels: K-12
 - Communication Modes: Listening and Speaking
 - Languages: English, Spanish

- Contact: Harcourt Educational Measurement, 19500 Bulverde Road, San Antonio, TX 78259, Tel: (800)211-8378
- Bilingual Verbal Ability Tests (BVAT)
 - Grade levels: Ages 5-adult
 - Communication modes: Listening, Speaking
 - Languages: Arabic, Chinese (traditional and simplified), English, French, German, Haitian-Creole, Hindi, Italian, Japanese, Korean, Polish, Portuguese, Russian, Spanish, Turkish, and Vietnamese.
 - Contact: Riverside Publishing Co., 3800 Golf Road, Suite 100, Rolling Meadows, IL 60008 Tel: (800)323-9540
- IDEA Proficiency Tests (IPT)
 - Grade levels: PreK-12
 - Communication modes: Listening, Speaking, Reading and Writing
 - Language: English
 - Contact: Ballard & Tighe Publishers, 480 Atlas Street, Brea, CA 92621 Tel. (800) 321-4332
- Language Assessment Battery (LAB)
 - Grade levels: PreK-12
 - Communication modes: Listening, Speaking, Reading and Writing
 - Languages: English, Spanish
 - Contact: The State Education Department, 89 Washington Avenue, Room 775 EBA, Albany, New York, 12234, Tel. (518) 474-8220; FAX (518) 474-2021
- Language Assessment Scales (LAS)
 - Grade levels: PreK-12, LAS Links
 - Communication modes: Listening, Speaking, Reading and Writing
 - Languages: English, Spanish
 - Contact: CTB/McGraw Hill, 20 Ryan Ranch Road, Monterey, CA 93940 Tel: (800) 538-9547
- Maculaitis Test of English Language Proficiency – II (MAC II)
 - Grade levels: K-12 (Reading: 4-12)
 - Communication modes: Listening, Speaking, Reading and Writing
 - Language: English
 - Contact: Questar Assessment, Inc., 4 Hardscrabble Heights, P.O. Box 382, Brewster, NY 10509 Tel: (800) 800-2598
- Secondary Level English Proficiency Test (SLEP)
 - Grade levels: 9-12
 - Communication modes: Listening, Reading
 - Language: English
 - Contact: Educational Testing Service/SLEP Inquiries, P.O. Box 6156, Princeton, NJ, 08541-6156 Tel. (609) 771-7206
- Woodcock-Muñoz Language Survey
 - Grade levels: Ages 3-adult
 - Communication modes: Listening, Speaking, Reading, Writing
 - Language: English, Spanish
 - Contact: Riverside Publishing Co., 3800 Golf Road, Suite 100, Rolling Meadows, IL 60008 Tel: (800)323-9540

Ohio Test of English Language Acquisition (OTELA)

State and Federal law require an annual assessment of K-12 limited English proficient students to measure their English language proficiency. The Ohio Test of English Language Acquisition is the assessment used for testing English language proficiency for Ohio LEP students in Grades K-12. As OTELA is a progress test instrument, it cannot be used to screen newly identified LEP students. Districts must use screening assessments for that purpose.

The OTELA will show progress in English language proficiency that students are making from academic year to academic year. OTELA results are used to determine whether a district is meeting its annual measurable achievement objectives (AMAOs) as required by the No Child Left Behind (NCLB) Act. Each school district, based on the number of students and their previous OTELA scores, must annually reach a progress target and an attainment target for English language proficiency.

For more information on OTELA, visit the ODE website at education.ohio.gov, keyword search: *OTELA*.

Ohio's Title III Accountability Plan

Effective School Year 2009-2010

Background

The Ohio Department of Education, in collaboration with the Ohio ESL Advisory Committee and the American Institute of Research (AIR), has completed a review of Ohio's Annual Measurable Achievement Objectives (AMAOs) for limited English proficient students, as well as criteria for exiting the LEP program.

In its review, ODE analyzed longitudinal student performance data and evaluated the AMAOs and exit criteria in terms of appropriateness, reasonableness and concurrence with the U.S. Department of Education (USDOE) Notice of Final Interpretations regarding Title III Assessments and Accountability Provisions, published Oct. 17, 2008.

Based on the results of this review process, ODE developed and submitted to USDOE proposed revisions to Ohio's Title III Accountability Plan to be effective for the 2009-2010 school year. The accountability revisions, which have been accepted by USDOE, are:

AMAO #1: Limited English Proficient (LEP) students make progress in achieving English Language proficiency.

Definition of Progress: Increase at least one performance level in either the production (combination of speaking and writing) or comprehension (combination of listening and reading) domains in the OTELA from one year to the next. LEP students who have achieved attainment (Composite Level 4 on the OTELA) in a previous year and are in the trial mainstream year will make progress if they score a Composite Level 4 or 5 on the OTELA in the subsequent year.

Progress Target: By the year 2013-2014, 87 percent of ELL students will make annual progress in achieving English language proficiency as measured by performance on the OTELA. The percentage of

students expected to meet this goal between the current school year and 2013-14 will increase incrementally as follows:

2009-2010	2010-2011	2011-2012	2012-2013	2013-2014
75%	78%	81%	84%	87%

Transition Year 2009-2010: LEP students who have achieved attainment (Composite Level 5 on the OTELA in 2009) and are in the trail mainstream year will make progress if they score a Composite Level 4 or 5 on the OTELA in 2010.

❓ **AMAO #2:** LEP students attain English language proficiency

Definition of Attainment: Achieve a composite score of 4 or higher on the OTELA. AMAO #2 is calculated by taking the total of all ELL students in Ohio's ELL programs who achieve a composite score of 4 or higher on the OTELA and dividing by the total number of students in Ohio's ELL programs.

Progress Target: By the year 2013-2014, 30 percent of all ELL students served in a Title III program will attain English language proficiency. The percentage of students expected to meet this goal between the current school year and 2013-14 will increase incrementally as follows:

2009-2010	2010-2011	2011-2012	2012-2013	2013-2014
26%	27%	28%	29%	30%

❓ **AMAO #3:** LEP students meet the state's Adequate Yearly Progress (AYP) targets

Note: AMAO #3 was not revised. It remains the same as in previous years.

Contact Information

Lau Resource Center
Office of Curriculum and Assessment
Ohio Department of Education
25 South Front Street, Mail Stop 509
Columbus, OH 43215
(614) 466-4109 (Telephone) (888) 644-6732 (Toll free)
(614) 387-0421 (Fax)
lau@ode.state.oh.us (e-m

3660 – Advanced Placement Program

Federal law requires the School to raise academic standards through the “Access to High Standards Act.” This Policy applies to this School if it receives funding under Title I, Part G and seeks to continue receiving funding. The Act seeks to raise academic standards through advanced placement programs and seeks to increase the number of students who participate and succeed in the advanced placement programs. In accordance with this Act, the School shall actively promote and seek to increase the number of advanced placement programs, increase the number of pre-advanced placement programs, the number of students participating in the programs, and increase the number who succeed in these programs.

The School shall not charge students a fee or tuition for participating in any advanced standing course, except as noted in ORC 3313.603 and 3313.6013.

Federal: 20 U.S.C. 6531, et. seq.

Cross Reference: Policy No. **3550**, Core Curriculum Requirements; Policy No. **3620**, Credit Flexibility Policy; Policy No. **3660**, Advanced Placement Program.

3670 – College Credit Plus

The Governing Authority understands that its students may benefit by participating in college-level courses offered by accredited colleges and universities in Ohio. Accordingly, Eligible Students may participate in the College Credit Plus Program (the “Program”), which permits students to receive school credit for completing college-level classes.

Program

Eligible Students that participate in the Program may enroll in one of two options.

- *Option A.* Eligible Students enroll in college courses and seek only college credit for the course(s) taken. The student pays for all tuition and costs of all textbooks, materials, and fees associated with the course. Under this option, a student is not considered enrolled in the school.
- *Option B.* Eligible Students enroll in college courses and seek college credit *and* high school credit. If the student successfully completes the course, the college and school shall award high school credit and the student will not pay any tuition or any fees. The student will not be charged any other fees. If the student does not complete the course, the student may be responsible for tuition and costs of all textbooks, materials, and fees. Under this option the student is considered enrolled.

Participation Requirements

Students in grades 7-12 are eligible to participate provided the student meets all criteria required by law.

Students who have participated in the CCP program prior to September 30, 2021 and qualified to participate in the program by meeting the eligibility conditions specified under Ohio law as it existed prior to September 30, 2021, shall remain eligible for participation without meeting new eligibility requirements that begin with the 2021-2022 school year.

Beginning in the Academic Year 2021-2022, students must meet the following eligibility requirements:

1. Students must be remediation-free in accordance with one of the assessments in the Uniform Statewide Standards for Remediation-Free Status document.
2. Students may meet an alternative remediation free eligibility option, as defined by the chancellor of higher education.

To participate, the following must occur:

- Prior to November 1 or April 1 of each year, the student or the student’s parent shall inform the School of intent to participate in the Program for the following semester or term. Any student who provides notification by the first day of April may be approved to participate in the program for the next full school year. Any student who provides notification by the first day of November may be approved to participate in the program for the next semester or term only. If notice is not given by this date, the Head Administrator’s written consent is required. If the principal does not provide written consent, the student may appeal to the District Superintendent or Governing Authority. Within 30 days of notice, the appropriate entity shall hear the appeal and decide to either grant or deny that student's participation.

- The student must apply to an eligible college or university and meet that institution's standards for admission and course placement.
- The student and the student's parent shall sign a form stating they have received counseling and understand the responsibilities they must assume in the program.

The amount of credit a student may receive toward high school graduation is proportionate to the number of years a student has remaining.

- 7th-9th Grade students may not receive credit toward high school graduation for more than the equivalent of four years.
- 10th grade students may not receive credit toward high school graduation for more than the equivalent of three years.
- 11th grade students may not receive credit toward high school graduation for more than the equivalent of two years.
- 12 grade students may not receive credit toward high school graduation for more than the equivalent of one year.

Effect of Expulsion

If a student is expelled from the School, the Head Administrator shall send a written notice to any college in which the student is enrolled at the time the expulsion is imposed. The Notice shall indicate (1) the date the expulsion expires, (2) whether the school has adopted a policy pursuant to R.C. 3313.613 to deny high school credit for courses taken under College Credit Plus during an expulsion. The School shall notify the college of any expulsion extensions.

If a college withdraws acceptance of an expelled student, the School shall not award high school credit for the college courses the student was enrolled. The School may require the student to return or pay for any textbooks and materials provided free of charge.

Awarding Credit

In order to receive high school credit, the student must enroll in Option B prior to beginning the course. The student will receive high school credit upon the successfully completing the course. Students who fail or do not complete the course will not be awarded high school credit.

The amount of credit received shall be determined by the School. If the School offers a comparable course, the School shall award comparable credit. If the School does not offer a comparable course, the School shall grant an appropriate number of credits in a similar subject area. Disputes regarding the number of credits received may be appealed to the Ohio Department of Education. The Department of Education's decision is final.

All classes taken for credit will be transferred to the student's permanent record. Included in the record shall be the course completed and the name of the college/university where the courses were earned. The grade earned may be averaged in the student's high school grade point average.

Information Regarding and Promotion of the Program

Pursuant to Ohio law, the School shall provide information about the Program to students and their parents/guardians in grades six (6) through eleven (11) by February 1st of each year.

The School shall promote the program on its website. The School shall also schedule at least one informational session per school year with partnering colleges located within thirty miles of the School.

Underperforming Students

If a student enrolled in Program courses is classified as an “underperforming student”, the School shall place the student on academic probation. An underperforming student is a student who meets at least one of the following conditions:

- (a) Has a cumulative grade point average of lower than 2.0 in the college courses taken through the Program;
- (b) Withdraws from, or receives no credit for, two or more courses in the same term.

In the event that a student is classified as underperforming, the School shall promptly notify the student, the student's parents, and each institution of higher education in which the student is enrolled of the student's status and shall notify the student and the student's parents as to the requirements to continue with the Program.

When a student is on probation, the student shall enroll in no more than one college course in a term, and shall not enroll in a college course in the same subject as a college course in which the student earned a grade of "D" or "F" or for which the student received no credit. If the student had already enrolled in more than one course or an improper course for the next term before being placed on probation, then the student shall request that the college dis-enroll the student for any courses beyond the one allowed. In the event that a student fails to dis-enroll, the School shall notify the student and the student's parents that the student shall be responsible for all tuition, fees, and textbook costs for those courses, and that the student shall be declared ineligible and dismissed from the Program for the next term.

If a student takes a college course after being placed on probation and the course grade raises the student's cumulative grade point average in the student's college courses to a 2.0 or higher, the student shall be removed from probation and may participate in the Program without restrictions. If the student meets the requirements again at a later point, they will be placed back on probation.

If a student meets the definition of an underperforming student for two consecutive terms of enrollment, that student shall be classified as an “ineligible student”, and the School shall dismiss the student from the Program. The School shall promptly notify the student, the student's parents, and each institution of higher education in which the student is enrolled of the student's dismissal.

A student who has been dismissed from the Program shall not take any college courses through the Program. If the student had registered for any college courses for the next term prior to being dismissed, the student shall request each applicable institution of higher education to dis-enroll the student from those courses. In the event the student fails to dis-enroll from courses, the School shall promptly notify the student and the student's parents that the student shall be responsible for paying all tuition, fees, and textbook costs for courses from which the student was required to dis-enroll and that the student's dismissal from the program shall continue for an additional term.

After one term of dismissal, a student may request the School to allow the student to participate in the Program. The School shall review the student's full high school and college academic record to determine the student's academic progress. In order to be considered for reinstatement in the Program

under probation terms, the student must show at least a 2.0 cumulative grade point average, including both college courses and high school courses. In order to be reinstated in the Program without restrictions, the student must show at least a 2.5 cumulative grade point average, including both college courses and high school courses. Failure to make sufficient academic progress as outlined above shall result in an extension of the dismissal.

Upon receiving a request for reinstatement, the School shall issue a decision to continue the student's dismissal, place the student on probation, or allow the student to participate in the Program without restrictions. Summer shall count as a term of dismissal from the Program only if the student is enrolled in one or more high school courses during the summer.

The student may appeal a decision of the School to the Governing Authority as set forth in Ohio Administrative Code 3333-1-65.13. The student shall request an appeal within five business days after being notified of the dismissal or probation that prohibits the student from taking a course in a subject. The School shall promptly notify any institution of higher education in which the student is enrolled that the student has requested an appeal. The Governing Authority of the School shall issue a decision on the student's appeal within ten business days after the date the appeal is made. The decision shall be final. The School shall promptly notify any institution of higher education in which the student is enrolled of the decision.

Reimbursement Where Student Fails Course

If the Head Administrator determines that a student participant has not attained a passing final grade, the School may seek reimbursement for state funds paid to the college. Unless the student was expelled the School shall not seek reimbursement if the student is identified as economically disadvantaged. The School may withhold grades and credits received until the participant provides reimbursement.

Ohio: R.C. 3365.

Cross Reference: Policy No. **3550**, Core Curriculum Requirements; Policy No. **3620**, Credit Flexibility Policy; Policy No. **3660**, Advanced Placement Program; Form **3670.1**, College Credit Plus Program Counseling, Policy No. **3680** Policy on Career Advising.

Updated September 2, 2025

3670.1 – College Credit Plus Counseling

I acknowledge that I have received counseling about the School's College Credit Plus Program.

In addition to discussing the program's general requirements, we discussed: program eligibility, the process for granting academic credits, financial arrangements for tuition; books; materials; and fees, criteria for any transportation aid, available support services, scheduling, the consequences of not completing a course; the effect of the program participation on the student's ability to complete the district's or school's graduation requirements, the academic and social responsibilities of students and parents under the program, and information about and encouragement to use the counseling services of the college in which the student intends to enroll. Further, we discussed that subject matter of a course enrolled in under the CCP program may include mature subject matter or materials, including those of a graphic, explicit, violent, or sexual nature, that will not be modified for CCP enrollees regardless of where course instruction occurs, and I have attached a signed permission slip acknowledging the potential for exposure to mature subject matter or materials.

By signing below, I confirm that I have discussed the above in person and I understand all the requirements, risks, consequences, and potential benefits of participating in the program.

Student Name: _____

Parent Signature: _____ Date: _____

Student Signature: _____ Date: _____

Counselor Signature: _____ Date: _____

3670.2 – College Credit Plus Enrollment Program Counseling

This audit serves to assist each student that enrolls in the College Credit Plus Program by making sure that each student will remain on track to graduate while taking College Credit Plus classes.

Student's Name: _____ Date: _____

High School Credits Earned: _____ Credits Needed to Graduate: _____

Subject Needed to Graduate:

Proposed College Credit Plus Classes that will replace required high school courses:

College Classes	Replaced High School Course

Other College Courses available that are not required for Graduation:

Parent Signature: _____ Date: _____

Student Signature: _____ Date: _____

Counselor Signature: _____ Date: _____

3680 – Policy on Career Advising

The School directs the Head Administrator or his/her designee to develop a plan for career advising which includes providing:

- *A Link between School and Career Fields.* The plan will provide students with grade-level examples that link their schoolwork to one or more career fields. The School may use career connections developed under R.C. 3301.079 for this purpose.
- *Career Advising.* The plan will provide career advising to students in grades six through twelve, which may include meeting with each student annually to discuss academic and career pathways.
- *Employee Training.* The plan will include training employees on how to advise students on career pathways. This may also include other tools developed by the School that offer resources for students for discovering career interests, exploring career and education options, and supporting development of the student success plan.
- *Multiple Pathways to Graduation.* The plan will ensure that there are multiple, clear academic pathways through high school that students may choose in order to earn a high school diploma. This may include opportunities to earn industry-recognized credentials, and postsecondary course credit through credit plus and other appropriate programs as discussed in Policy **3670**, College Credit Plus.
- *Specific Classes.* The school will communicate courses that can award students both traditional academic and career-technical credit. This communication may include the school's Credit Flexibility Plan-Policy No. **3620**, Post-Secondary Enrollment Program-Policy **3670**, and access to educational options.
- *Documentation on Career Advising.* The School shall document the career advice provided to each student for review by the student, the student's parent, guardian, or custodian, and future schools that the student may attend. The School shall not otherwise release this information without the written consent of the student's parent, guardian, or custodian, if the student is less than eighteen years old, or the written consent of the student, if the student is at least eighteen years old.
- *Transition Preparation.* The School shall develop a program to prepare students for their transition from high school to their post-secondary destinations, including any special interventions that are necessary for students in need of remediation in mathematics or English language arts.

Additional Interventions for Advising Students at Risk of Dropping out of School

The School shall provide additional intervention and career advising for students who are identified as at risk of dropping out of school. Students shall be identified using a method that is both research-based and locally based and that is developed with input from the School's classroom teachers, guidance counselors, and other appropriate school officials.

Student Success Plan. For each student identified at risk of dropping out, the School shall develop a Student Success Plan (the "Success Plan") that addresses the student's academic pathway to a successful graduation and the role of career-technical education, competency-based education, and experiential learning, as appropriate, in that pathway. The School may use the Ohio Department of Education's model student success plan as a guide.

Developing the Success Plan. The School shall invite the student's parent, guardian, or custodian to assist in developing the Success Plan. If the student's parent, guardian, or custodian does not participate in the development of the Success Plan, the School shall provide to the parent, guardian, or custodian a copy of the student's Success Plan and a statement of the importance of a high school diploma and the academic pathways available to the student in order to successfully graduate.

Career Advising. The School shall provide career advising in alignment with each student's Success Plan and this Policy.

Publicizing and Reviewing this Policy

The policy shall be made publicly available to students, parents, guardians, or custodians, local post-secondary institutions, and residents of the areas that the School serves. The School shall post the policy on its website if it has one

The policy shall be updated at least once every two years

Ohio: R.C. 3313.6020; 3326.11

Cross Reference: Policy No. **3550** Core Curriculum Requirements; Policy No. **3620** Credit Flexibility Plan; Policy No. **3630** School-to-Work Plan; Policy No. **3660** Advanced Placement Program; Policy No. **3670**, College Credit Plus.

3680.1 – Resolution for College and Career Readiness and Financial Literacy

The following resolution is approved for adoption:

WHEREAS the School believes in and supports the importance of teaching financial literacy and college and career readiness; and

WHEREAS the Governing Authority believes that preparing students for post-secondary education, equipping them with the prerequisite skills needed for a successful career, and teaching students to become financially literate, including the ability to read, analyze, manage, and communicate about the personal financial conditions that affect material well-being, will position them for success in later life.

NOW, THEREFORE, BE IT RESOLVED that the School supports and believes strongly in the importance of teaching financial literacy.

RESOLVED, that in School, financial literacy concepts are included in the general mathematics and social studies curriculum and may involve resources and programs provided by a variety of community agencies and businesses. Financial literacy concepts are also included, but not limited to: high school mathematics and social studies curriculum, Jobs for Ohio's Graduates, Life Skills classes and other elective courses, and a variety of resources available through community agencies and businesses.

RESOLVED, that college and career readiness concepts are fulfilled through (but not limited to) the following: career study within the high school curriculum, career interest inventories, career games and career target activities, career-technical courses, college counseling and college preparatory classes, career readiness and preparation addressed in IEP transition plans, and a variety of guidance lessons.

ORC 3313.6015

3680.2 – Student Success Plan

A Student Success Plan is one component of the Career Connections K-12 Framework. This outline provides an example of the supports, services, tools, and activities that comprise a comprehensive career development experience for students. It can serve as a model for staff when developing Student Success Plans with students. Note that this outline is not exhaustive and other curricula and services are required. Individual student readiness should be considered when determining the most appropriate age or grade for each respective component of this outline. Leveraging an online career planning tool to document activities and experiences, such as provided at **ODE's Career Connections** (<https://education.ohio.gov/Topics/Career-Tech/Career-Connections>) and **OhioMeansJobs K-12** (<https://education.ohio.gov/Topics/Career-Tech/Career-Connections/OhioMeansJobs-K-12>) and <https://ohiomeansjobs.ohio.gov/home>) will be utilized.

Overview of the Student Success Plan Outline

	6	7	8	9	10	11	12
Learning style	x			x			x
Career interests	x	x	x	x	x	x	x
Strengths/skills				x	x	x	x
Work values						x	x
Academic and career pathways	x	x	x	x	x	x	x
School courses and programs	x	x	x	x	x	x	x
Career exploration activities	x	x	x	x	x	x	x
Postsecondary education and training programs			x	x	x	x	x
College and career planning and preparation					x	x	x

Student Success Plan Outline for Grades 6-12

Grade 6

Tools and Assessments	Student Activities	School Activities	Resources
Learning Style Survey* Career Cluster Inventory	Set up an OhioMeansJobs K-12 account by the end of sixth grade (or through another online tool offered by your school) Complete a learning style survey Complete the Career Cluster Inventory or career interest survey Document your reflection of career exploration activities completed (i.e., field trips, career speakers, job shadows) Explore electives available in seventh grade and identify options to explore interests Begin your Career Pathway Goals – considering how your interests may influence your long-term goals.	Provide students with access to purposeful career exploration activities; Field trips to area businesses that represent in-demand career fields Career speakers and presentations by area professionals Career mentorships and school partnerships with business and industry Advise students as to their learning style survey and career interests results – help them make linkages between their learning and future career options Advise students on choosing electives that will support them with exploring their interests Include embedded Career Connections Learning Strategies across all content area courses for students to continue exploring and planning (i.e., Mathematics: students take on the role of small business owners to solve logistic-related problems by applying related knowledge such as volume, mass and surface area)	OhioMeansJobs K-12 Middle grades course offerings

Grade 7

Tools and Assessments	Student Activities	School Activities	Resources
Career Cluster Inventory Academic and Career Pathways	Revisit your OhioMeansJobs K-12 account to update your information and continue planning Complete Career Cluster Inventory or career interest survey (if not already completed) Document your reflection of career exploration activities completed (i.e., field trips, career speakers, job shadows) Explore electives available in eighth grade and identify options to explore interests Explore courses offered in eighth grade for high school credit Revisit and update your Career Pathway Goals – considering how your interests may influence your long-term goals. Begin your Academic Pathway Plan using the information you’ve learned from exploring and researching careers and the related education requirements.	Provide students with access to purposeful career exploration activities; Field trips to area businesses that represent in-demand career fields Career speakers and presentations by area professionals Career mentorships and school partnerships with business and industry Advise students regarding any changes to their learning styles and career interests – continue to help them make linkages between their learning and future career options Advise students on choosing electives that will support them with exploring their interests Include embedded Career Connections Learning Strategies across all content area courses for students to continue exploring and planning (i.e., English language arts: students select an instruction manual that represents a career field of their interest and determine the applications of skills and knowledge learned in the classroom to related careers – careers that may use or create the manual)	OhioMeansJobs K-12 Middle grades course offerings Academic and Career Pathways

Grade 8

Tools and Assessments	Student Activities	School Activities	Resources
Career Cluster Inventory Strengths/Skills Inventory Academic and Career Pathways End-of-Course Exams	Revisit your OhioMeansJobs K-12 account to update your information and continue planning Complete Career Cluster Inventory or career interest survey (if not already completed) Complete a strengths/skills inventory or reflect upon experiences you've been involved in when you felt accomplished and successful. Then, identify the skills you needed and that you enjoyed. If you need help getting started, ask your teacher or school counselor. Document your reflection of career exploration activities completed (i.e., field trips, career speakers, job shadows) Create a Venn diagram on strengths/skills and interests to guide your high school course and program selection Explore electives available in ninth grade and identify options to explore your interests and expand strengths/skills Revisit and update your Academic and Career Pathways – consider how your interests and strengths may influence your long-term goals and how you can begin preparing now for your career goals by completing related education requirements.	Provide students with access to purposeful career exploration activities; Field trips to area businesses that represent in-demand career fields Career speakers and presentations by area professionals Career mentorships and school partnerships with business and industry Job shadows with expectations for students to identify linkages between their own learning and the workplace Advise students as to their strengths/skills survey results regarding any changes to their learning styles and career interests and continue to help them make linkages between their learning and future career options Advise students on choosing electives that will support them with exploring their interests – pay special focus on graduation requirements and the three pathway options for earning a high school diploma Include embedded Career Connections Learning Strategies across all content area courses for students to continue exploring and planning (i.e., Social studies: after researching the various types of maps, students apply that knowledge to identify uses of maps across different careers)	OhioMeansJobs K-12 High school course and program offerings High school graduation requirements and pathways to earning a diploma Academic and Career Pathways

Grade 9

Tools and Assessments	Student Activities	School Activities	Resources
Learning Style Survey*	Revisit your OhioMeansJobs K-12 account to update your information and continue planning	Provide students with access to purposeful career exploration activities;	OhioMeansJobs K-12
Career Cluster Inventory		Field trips to area businesses that represent in-demand career fields	High school course and program offerings
Strengths/Skills Inventory	Document your reflection of career exploration activities completed (i.e., field trips, career speakers, job shadows, internships, community service and service learning)	Career speakers and presentations by area professionals	High school graduation requirements and pathways to earning a diploma
Academic and Career Pathways		Career mentorships and school partnerships with business and industry	Academic and Career Pathways
End-of-Course Exams	Explore electives available in 10th grade and identify options to explore interests and expand strengths/skills	Job shadows with expectations for students to identify linkages between their own learning and the workplace	
Online practice tests and test prep courses (i.e., PLAN/ACT, PSAT/SAT, WorkKeys, ASVAB)	Explore programs available at your school where you can earn credentials or certificates during high school	Internships (paid or unpaid) to gain work experience and workplace skills	
	Revisit and update your Academic and Career Pathways – consider how your interests and strengths may influence your long-term goals and how you can begin preparing now for your career goals by completing related education requirements.	Community service and service learning where students have an opportunity to lead, organize and facilitate meaningful projects	
		Advise students as to their strengths/skills survey results, regarding any changes to their learning styles and career interests and continue to help them make linkages between their learning and future career options	
		Advise students on choosing electives and other programs that will support them with exploring their interests– pay special focus on graduation requirements and the three pathway options for earning a high school diploma	
		Include embedded Career Connections Learning Strategies across all content area courses for students to continue exploring and planning (i.e., English language arts: career research paper on their career pathway of interest)	

Grade 10

Tools and Assessments	Student Activities	School Activities	Resources
Career Profile Academic and Career Pathways End-of-Course Exams Online practice tests and test prep courses (i.e., PLAN/ACT, PSAT/SAT, WorkKeys, ASVAB)	Revisit your OhioMeansJobs K-12 account to update your information and continue planning Research college admissions criteria (i.e., G.P.A., entrance exam scores, essay, interview) Complete Career Profile to explore the relationship between personality and career interests Explore electives available in 11th grade and identify options to explore interests and expand strengths/skills Document your reflection of career exploration activities completed (i.e., field trips, career speakers, job shadows, internships, community service and service learning) Begin an initial draft of your résumé and cover letter using the information you documented (i.e., contact information, education and training, experiences). You can use this later to update and submit for a job, college or scholarship. Explore programs available at your school where you can earn credentials or certificates during high school Revisit and update your Academic and Career Pathways – consider how your interests and strengths may influence your long-term goals and how you can begin preparing now for your career goals by completing related education requirements.	Provide students with access to purposeful career exploration activities; Field trips to area businesses that represent in-demand career fields Career speakers and presentations by area professionals Career mentorships and school partnerships with business and industry Job shadows with expectations for students to identify linkages between their own learning and the workplace Internships (paid or unpaid) to gain work experience and workplace skills Community service and service learning where students have an opportunity to lead, organize and facilitate meaningful projects Provide students with resources and access to online practice tests and test prep courses (i.e., PLAN/ACT, PSAT/SAT, WorkKeys, ASVAB) Advise students as to their assessment results regarding any changes to their learning styles and career interests and continue to help them make linkages between their learning and future career options Advise students on choosing electives and other programs that will support them with exploring their interests– pay special focus on graduation requirements and the three pathway options for earning a high school diploma Include embedded Career Connections Learning Strategies across all content area courses for students to continue exploring and planning (i.e., Mathematics: creating and using algebraic equations to predict the cost of college and compare total costs across colleges)	OhioMeansJobs K-12 High school course and program offerings High school graduation requirements and pathways to earning a diploma Academic and Career Pathways act.org collegeboard.com

Grade 11

Tools and Assessments	Student Activities	School Activities	Resources
Career Profile Scholarship Search	Revisit your OhioMeansJobs K-12 account to update your information and continue planning	Provide students with access to purposeful career exploration activities;	OhioMeansJobs K-12
College and Postsecondary Education and Training Search	Connect college search and majors to career interests; schedule college visits to tour campuses, meet with admissions and talk with financial aid advisors	Field trips to area business that represent in-demand career fields	High school course and program offerings
Work Importance Locator	Construct a college and career comparison chart to evaluate your options and begin to make choices for your plans after high school	Career speakers/presentations by area professionals	High school graduation requirements and pathways to earning a diploma
Academic and Career Pathways	Update the draft of your résumé and cover letter with any new experiences or accomplishments	Career mentorships and school partnerships with business and industry	Academic and Career Pathways
End-of-Course Exams	Create a Venn diagram and synthesize your Work Importance Locator results with your strengths/skills and interests to guide your career pathway goals	Job shadows with expectations for students to identify linkages to their own learning and the workplace	act.org
Online practice tests and test prep courses (i.e., PLAN/ACT, PSAT/SAT, WorkKeys, ASVAB)	Document your reflection of career exploration activities completed (i.e., field trips, career speakers, job shadows, internships, community service and service learning, college visit, college and career fairs)	Internships (paid or unpaid) to gain work experience and workplace skills	collegeboard.com
	Explore electives available in 12th grade and identify options to explore interests and expand strengths/skills	Community service and service learning where students have an opportunity to lead, organize and facilitate meaningful projects	
	Explore programs available at your school where you can earn credentials or certificates during high school	College and career fairs to begin evaluating options and college visits to inform decisions and meet with admissions and financial aid advisors	
		Advise students on options to finance their postsecondary education (i.e., grants, loans, scholarships), resources needed to apply to college, military and work, and other supports necessary for their plans after high school	
		Provide students with resources and access to online practice tests and test prep courses (i.e., PLAN/ACT, PSAT/SAT, WorkKeys, ASVAB)	
		Advise students as to their Work Importance Locator and applicable college and career assessment results, regarding any changes to their learning styles and career interests and continue to help them make linkages between their learning and future career options	
		Advise students on senior electives and programs offered where they may earn credentials, certificates, or college credit	
		Include embedded Career Connections Learning Strategies across all content area courses for students to continue exploring and planning (i.e., Social studies: career interviews where students research careers and related	

education and training requirements, wage, and outlook data for various career pathways)

Grade 12

Tools and Assessments	Student Activities	School Activities	Resources
Learning Style Survey*	Revisit your OhioMeansJobs K-12 account to update your information and continue planning	Provide students with access to purposeful career exploration activities;	OhioMeansJobs K-12
Career Profile		Field trips to area businesses that represent in-demand career fields	High school course and program offerings
FAFSA		Career speakers and presentations by area professionals	High school graduation requirements and pathways to earning a diploma
Applications (work, college, military, scholarship, financial aid, etc.)	Complete applications and submit essay and career narrative as required for your plans after high school – remember to request recommendations and transcripts	Career mentorships and school partnerships with business and industry	Academic and Career Pathways
Work Importance Locator	Document reflection of career exploration activities (i.e., field trips, career speakers, job shadows, internships, community service and service learning, college visits, college and career fairs)	Job shadows with expectations for students to identify linkages to their own learning and the workplace	act.org
Academic and Career Pathways		Internships (paid or unpaid) to gain work experience and workplace skills	collegeboard.com
End-of-Course Exams		Community service and service learning where students have an opportunity to lead, organize and facilitate meaningful projects	fafsa.org
Online practice tests and test prep courses (i.e., PLAN/ACT, PSAT/SAT, WorkKeys, ASVAB, ACCUPLACER, COMPASS)	Update the draft of your résumé	College and career fairs to begin evaluating options and college visits to inform decisions and meet with admissions and financial aid advisors	
	Compile a career portfolio that includes the documentation collected throughout high school, exemplar works, essays, your résumé and other components necessary to support your plans after high school	Advise students on options to finance their postsecondary education (i.e., grants, loans, scholarships), resources needed to apply to college, military and work, and other supports necessary for their plans after high school	
		Provide students with resources and access to online practice tests and test prep courses (i.e., PLAN/ACT, PSAT/SAT, WorkKeys, ASVAB)	
		Advise students as to their Work Importance Locator and applicable college or career assessment results regarding any changes to their learning style and career interests and continue to help them make linkages between their learning and future career options	
		Include embedded Career Connections Learning Strategies across all content area courses for students to continue exploring and planning (i.e., Science: using problem-based learning, students will explore implications of a power	

outage on a community and identify the organizations and jobs necessary to restore power and resolve the issues)
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*Additional Resources:

- OhioMeansJobs K-12 (<https://education.ohio.gov/Topics/Career-Tech/Career-Connections/OhioMeansJobs-K-12>)
 - Assessment and Training Center, online practice tests and test prep resources
 - Career Cluster Inventory, career interest survey
 - Career Profile, career interest survey
- <http://www.educationplanner.org/students/self-assessments/index.shtml>
 - Learning style survey
 - Study habit survey
- <http://www.vark-learn.com/english/page.asp?p=younger>
 - Learning style survey
- <http://www.vocopher.com/>
 - Career development assessment and survey tools
- <http://www.careertech.org/student-interest-survey>
 - Career interest survey
- <http://www.onetcenter.org/tools.html>
 - O*NET Ability Profiler
 - O*NET Interest Profiler
 - O*NET Computerized Interest Profiler
 - O*NET Interest Profiler Short Form
 - O*NET Work Importance Locator
 - O*NET Work Importance Profiler
- <http://www.asvabprogram.com/>
 - ASVAB information for teachers and counselors

Career Readiness Skills Portfolio

Listed below is an example of the skills necessary for workplace success. Throughout the projects students will create a portfolio describing one's abilities to perform career readiness skills. As each student demonstrates specific skills, a brief description with an artifact verifying the skill will be put into the portfolio. **Note:** additional skill requirements for career readiness may be included. Check with your teachers and school counselors before adding any elements.

- **Drug Free:** The student commits to being drug-free.
- **Reliability:** The student has integrity and responsibility in professional settings.
- **Work Ethic:** The student has effective work habits, personal accountability, and a determination to succeed.
- **Punctuality:** The student arrives at commitments on time and ready to contribute.
- **Discipline:** The student abides by guidelines, demonstrates self-control, and stays on task.
- **Teamwork/Collaboration:** The student builds collaborative relationships with others and can work as part of a team.
- **Professionalism:** The student demonstrates honesty. He or she dresses and acts appropriately and responsibly. He or she learns from mistakes.
- **Learning Agility:** The student desires to continuously learn new information and skills.
- **Critical Thinking/Problem Solving:** The student exercises strong decision-making skills, analyzes issues effectively and thinks creatively to overcome problems.

- **Oral and Written Communication:** The student articulates thoughts and ideas clearly and effectively in written and oral forms.
- **Digital Technology:** The student has an in-depth understanding of emerging technology and leverages technology to solve problems, complete tasks and accomplish goals.
- **Global/Intercultural Fluency:** The student values, respects and learns from diverse groups of people.
- **Leadership:** The student leverages the strengths of others to achieve common goals. He or she coaches and motivates peers and can prioritize and delegate work.
- **Creativity/Innovation:** The student is original and inventive. He or she communicates new ideas to others, drawing on knowledge from different fields to find solutions.
- **Career Management:** The student is a self-advocate. He or she articulates strengths, knowledge, and experiences relevant to success in a job or postsecondary education.

3691 – Instruction on Proper Interactions with Peace Officers

The school will provide instruction on proper interactions with peace officers during traffic stops and other in-person encounters, using the model curriculum developed by the State Board of Education and the Director of Public Safety. The instruction will be provided for students in grades nine through twelve in one or more courses set forth in Policy **4301**.

Where the School sees fit to modify the instruction in the model curriculum as appropriate for its community, the school shall first solicit input from local law enforcement agencies, driver training schools (as that term is defined in ORC 4508.01), and the community.

Ohio: R.C. 3313.6025

3700 – Individuals with Disabilities

Policy No. 3710

3710 – Rights of Individuals with Disabilities

Consistent with this policy, the School shall comply with all applicable laws regarding the rights of individuals with disabilities. No otherwise qualified person shall, solely by reason of his/her disability, be excluded from participating in, be denied the benefits of or be subject to discrimination under any School sponsored program or activity.

An individual with a disability is defined as a person who: (1) has a physical or mental impairment that substantially limits one or more major life activities, (2) has a record of such an impairment, or (3) is regarded as having such an impairment.

Major life activities are defined to include functions such as caring for oneself, performing manual tasks, walking, seeing, hearing, speaking, breathing, learning, reading, thinking, communicating, and working.

Program. The School shall make all reasonable efforts to serve the School's special needs children who are eligible for special education and/or related services. As more fully explained in Form No. **3710.1**, Special Education Policies and Procedures, the School shall:

- provide a free appropriate public education to each qualified person with disabilities in need of a special education;
- conduct special education programs in the least restrictive environment and shall be placed in an educational setting with students to the extent appropriate;
- not deny any student, because of his/her disability, from participating in any co-curricular, intramural, or interscholastic activities or any of the services offered; and
- enforce the due process rights of disabled students and their parents.

Employment Practices. No qualified person with a disability shall, on the basis of his/her disability, be subject to discrimination in employment under any of the programs or activities of the School. The School shall take positive steps to employ and advance in employment qualified persons with disabilities. The School shall make all decisions concerning employment in a manner which ensures that discrimination on the basis of disability does not occur and shall not limit, segregate, or classify applicants or employees in any way that adversely affects their opportunities or status. The School shall not participate in a contractual or other relationship that has the effect of subjecting qualified applicants or employees with disabilities to prohibited discrimination. The School shall not use any employment test or other selection criterion that screens out or tends to screen out persons with disabilities or any class of persons with disabilities unless the test or selection criterion is job-related for the position and alternative tests, or criteria are not available.

Facilities. Consistent with all applicable laws, the School shall provide barrier free access to School or provide an alternative means of providing service so that no individual with a disability is excluded from participating in the School program solely because of the individual's disability.

Disseminating this Policy

To ensure compliance with the School's policies regarding individuals with disabilities, the School shall post a statement pertaining to regarding the School's position on non-discrimination in the School and published in any school statement pertaining to employment positions

Federal: 42 U.S.C. 1210, et seq.

Cross Reference: Form No. **3710.1**, Special Education Policies & Procedures; Policy No. **3720**, Section 504 of the Rehabilitation Action of 1973; Policy No. **3730**, Alternate State Assessments for Students with Disabilities; Policy No. **3740**, Child Find Responsibilities.

3710.1 – Special Education Policies & Procedures

The School is committed to providing a free appropriate public education (FAPE) to children with disabilities identified in accordance with applicable State and Federal laws, rules, and regulations. The School shall provide students with disabilities the services to which they are entitled pursuant to their individualized education programs (IEPs) and in accordance with the *Operating Standards for Ohio Educational Agencies Serving Children with Disabilities*, ("Ohio Operating Standards") including Child Find and Evaluation requirements.

In order to satisfy the requirements of the Ohio Operating Standards, the School adopts the Special Education Model Policies and Procedures ("Model Policies") promulgated by the Ohio Department of Education's Office of Exceptional Children (ODE-OEC), which is incorporated by reference into this policy.

While the Model Policies are comprehensive, the School recognizes its obligation to follow all relevant laws and regulations, regardless of whether their provisions are restated in the Model Policies. Copies of the Model Policies shall be available upon request.

3710.2 – Independent Educational Evaluation

An Independent Educational Evaluation ("IEE") is an evaluation conducted by a qualified examiner who is not an employee of the School. A parent has a right to an IEE at public expense if the parent disagrees with an evaluation that the School conducted.

For purposes of this policy, "evaluation" means the procedures used to determine whether a child has a disability and the nature and extent of the special education and related services the child needs. In the event the School receives a parent request for an IEE, the School must either provide the IEE at public expense pursuant to this policy or request a due process hearing to show that its evaluation is appropriate.

The IEE must meet School criteria for IEEs, which is the same criteria that the School uses when it conducts its own evaluations. If the School requests a due process hearing and the Hearing Officer determines that the School's evaluation is appropriate, the parent still has a right to an IEE, but not at public expense. Parents may only request one publicly funded IEE for each evaluation completed by the School.

Procedure to Obtain an IEE at Public Expense:

1. The parents should submit to the School a written request for an IEE and should include in such a request an explanation of their reasons for objecting to the evaluation obtained by the School. However, the School will not deny parents a publicly funded IEE because they fail to provide the School with such a written request or fail to provide reasons for requesting an IEE.
2. If a parent requests an IEE, the School will provide the following information:
 - a. A list of the names and addresses of IEE Examiners located in the area. The list will consist of IEE Examiners who, in the School's judgment, are qualified to perform the evaluation requested by the parents. If a qualified examiner is not located in the area, the School will identify a qualified examiner.
 - b. A description of the School's criteria for selection of IEE Examiners.
3. Minimum Qualifications for IEE Examiners; Evaluation Instruments and Written Reports:
 - a. The School will not pay for an IEE unless the IEE complies with the following criteria, or the parents can show unique circumstances that justify a publicly funded IEE that does not meet the criteria.
 - b. The prospective IEE Examiner (the "Examiner") must hold a college degree and appropriate and valid license from the State of Ohio in the field related to the known or suspected disability. The Examiner must have extensive training in evaluation of the area(s) of concern and be able to interpret instructional implications of the evaluation results. In instances where no "applicable license" exists, the evaluator must provide documentation of extensive and recent training and experience related to the known or suspected disability.
 - c. Minimum requirements and maximum fee:
 - i. Medical/physical examinations – must be conducted by licensed medical doctor or doctor of osteopathy; up to \$200;
 - ii. General intelligence and achievement evaluations – must be conducted by a psychologist who holds a license from the State of Ohio, Board of Psychology or who

- holds an Ohio School Psychologist certificate/license from the Ohio Department of Education; up to \$1000;
- iii. Visual evaluations – must be conducted by an optometrist or ophthalmologist; up to \$200;
- iv. Audiological evaluations – must be conducted by an audiologist who holds a license from the Ohio Board of Speech Pathology and Audiology; an Ohio special education teacher's certificate/license for audiology from the Ohio Department of Education; and at least a master's degree in audiology or its equivalent from an accredited institution; up to \$200;
- v. Speech and language evaluations – must be conducted by a speech/language pathologist who holds a license from the Ohio Board of Speech Pathology and Audiology and/or an Ohio special education teacher's certificate/license for speech and hearing therapy from the Ohio Department of Education; up to \$200;
- vi. Physical therapy/ Occupational therapy evaluations – must be conducted by a physical therapist who holds a license from the Ohio Board of Occupational Therapy and Physical Therapy and/or a special education teacher's certificate/license for physical therapy from the Ohio Department of Education; up to \$350;
- vii. Social/emotional/behavioral assessments – must be conducted by professionals with appropriate certification or licensure in relevant field, such as psychology, psychiatry, counseling, or social work; up to \$600
- viii. Other evaluations must be conducted by qualified professionals as determined by the State and Federal law and regulations and by professionals with the same qualifications as the School uses in its evaluation team reports including, but not limited to, credentials, licenses, certificates, background, and educational-related experience (including experience in a public-school educational setting).
- ix. Comprehensive IEE – up to **\$2500**.

*Note: The School shall not be responsible for reimbursement of travel costs or other related costs incurred by the parents in connection with their arrangement of, or their attendance at the IEE, unless the parents can demonstrate that necessary services are not available in the community.

- d. The Examiner must have experience or specialized training to work with children with disabilities.
- 4. The Examiner must be located within 50 miles of the School and take place in the County in which the School is located. This requirement may be waived or modified in special circumstances when unique diagnostic expertise is warranted, provided the parents demonstrate the necessity of using an evaluator outside the specified geographic area.
 - a. The Examiner may only charge fees for educational evaluation services that, in the sole judgment of the School, are reasonable.
 - b. The Examiner shall have no history of consistent bias against public schools.
- 5. The evaluation instruments utilized must be age appropriate, current, have acceptable reliability and validity according to professional testing standards, be generally accepted in the field of educational evaluation, be relevant to the educational questions to be addressed by the evaluation, and administered, scored and interpreted in conformance with the publisher's instructions and in accordance with all applicable professional criteria and standards.
 - a. Tests must be administered in a way to accurately reflect the child's aptitude or achievement level or whatever other factors the test purports to measure.

- b. The Examiner must make at least one thirty-minute observation of the child in his/her educational setting. If the child received any services at the School, one observation must be conducted at the school. The observation requirement will be waived for any evaluation that is presented strictly for purposes of clinical diagnosis of a disability.
 - c. The IEE must also include an interview of school personnel; a description of the educational history, including a listing of educational interventions and a review and summary of education records.
- 6. The complete written evaluation results must be delivered directly from the Examiner to the School. Evaluation results that have been redacted or altered or contain incomplete or missing information are not acceptable. The parent must sign a release of their right to confidentiality of information and a release of any privilege regarding information related to the IEE to permit consultation and discussion between School staff and the Examiner with regard to the IEE. The Examiner must also agree to release the assessment and results, including parent and teacher surveys, prior to receipt of payment for services.
 - a. Test interpretations and conclusions stated in the written report must be directly and clearly supported by the data. Recommendations made as a result of the evaluation must be educationally relevant and realistic within an educational setting.
- 7. The maximum allowable cost for an Examiner will be the average cost per day or per hour for a similarly qualified staff member employed by the School during the current school year, as determined by the Director of Special Education (not to exceed \$400). In the unusual event the Examiner is one not typically employed by the School, such as a medical doctor, psychiatrist, clinical psychologist, or other similar professional, reimbursement of costs will be limited to reasonable and customary charges as determined by the School and its insurance carrier.
- 8. The School will permit parents to show that unique circumstances justify an IEE that exceeds the maximum allowable cost. If the total cost of the IEE exceeds the maximum allowable costs and if, in the School's sole judgment, there is no justification for the excess cost, the cost of the IEE will be funded up to the School's maximum allowable cost and no further. The parents shall be responsible for any remaining costs.

OAC 3301-51-05; 06; 34 CFR 300.502

3720 – Section 504 of the Rehabilitation Act of 1973

Section 504 of the Rehabilitation Act provides that no qualified person with a disability shall, on the basis of the disability, be excluded from participation in, be denied the benefits of, or otherwise be subjected to discrimination under any program or activity which receives Federal financial assistance. The School shall operate all programs and activities in compliance with Section 504 of the Rehabilitation Act.

For the purposes of this policy, a “qualified” person with a disability” is defined in the following settings as follows:

- *Employment* – a disabled person who, with reasonable accommodation, can perform the essential functions of the job in question.
- *Public preschool, elementary, secondary, or adult educational services* - a disabled person (1) of an age during which nondisabled persons are provided such services, (2) of any age during which it is mandatory under state law to provide such services to disabled persons, or (3) to whom a state is required to provide a free appropriate education under Section 612 of the Education of the Handicapped Act.
- *Vocational Education Services* – a disabled person who meets the academic and technical standards requisite to admission or participation in the School’s education program or activity.
- *Other Services* – a disabled person who meets the essential eligibility requirements for receipt of such services.

For the purposes of this policy, a “person with a disability” or a “disabled person” is defined as any person who (1) has a physical or mental impairment which substantially limits one or more life activities, (2) has a record of such an impairment, or (3) is regarded as having such an impairment.

Individuals may be defined as “handicapped” or a “disabled person” under Section 504 of the Rehabilitation Act of 1973, but are not “handicapped” or a “disabled person” under the Americans with Disabilities Act.

Employment Practices

Discrimination Prohibited. No qualified person with a disability shall, on the basis of his/her disability, be subject to discrimination in employment under any of the programs or activities of the School. The School shall take positive steps to employ and advance in employment qualified persons with disabilities. The School shall make all decisions concerning employment in a manner which ensures that discrimination on the basis of disability does not occur and shall not limit, segregate, or classify applicants or employees in any way that adversely affects their opportunities or status. The School shall not participate in a contractual or other relationship that has the effect of subjecting qualified handicapped applicants or employees to discrimination prohibited by this subpart.

Reasonable Accommodations. The School shall make reasonable accommodations to the known physical or mental limitations of an otherwise qualified applicant or employee unless the School can demonstrate that the accommodation would impose an undue hardship on the operation of its program or activity.

Employment Criteria. The School shall not use any employment test or other selection criterion that screens out or tends to screen out persons with disabilities or any class of persons with disabilities unless the test or selection criterion is job-related for the position and alternative tests, or criteria are not available.

Pre-employment Inquiries. Pre-employment medical examinations and pre-employment inquiries must be made consistent with Section 504.

Education

Free and Appropriate Education. The School, if it provides an elementary or secondary education program or activity, shall provide a free appropriate education to each qualified person with disabilities and is in the School's jurisdiction, regardless of the nature or severity of the person's disability.

Academic Settings. The School shall educate each qualified person with disabilities in its jurisdiction with persons who do not have disabilities to the maximum extent appropriate to the needs of the person with disabilities. The School shall place a qualified person with disabilities in a regular environment unless it can be demonstrated that a regular environment, with the use of supplementary aids and services, cannot be achieved satisfactorily. Whenever the School places a disabled person in a different setting, the School shall take into account the proximity of the alternate setting to the disabled person's home.

Nonacademic Settings. In regards to providing or arranging to provide nonacademic and extracurricular services and activities, the School shall ensure that persons with disabilities participate with persons without disabilities in such activities and services to the maximum extent appropriate to the needs of the disabled person in question. Such services and activities include, but are not limited to meals, recess, counseling services, physical recreational athletics, transportation, health services, recreational activities, special interest groups or clubs sponsored by the School, referrals to agencies which provide assistance to persons with disabilities, and employment of students, including both employment by the School and assistance in making available outside employment.

Accessibility

No qualified person with a disability shall because the School's facilities are inaccessible to or unusable by disabled persons, be denied the benefits of, be excluded from participation in, or otherwise be subjected to discrimination under any applicable program or activity.

To comply with this policy, the School may undertake the following: redesign equipment, reassign classes or other services to accessible buildings, assign aides to beneficiaries, home visits, deliver health; welfare; or other social services at alternate accessible sites, alter existing facilities and construct new facilities in conformance with Section 504, or undertake other methods that result in making the School's program or activity accessible to handicapped persons. The School is not required to make structural changes in existing facilities where other methods are effective in achieving compliance. In choosing among available methods for meeting the accessibility requirements, the School shall give priority to those methods that serve disabled persons in the most integrated setting appropriate.

Compliance & Grievance Procedures

Compliance Officer. To ensure compliance with Section 504, the School has designated the Head Administrator as the School's Compliance Officer. As the Compliance Officer, the Head Administrator shall coordinate efforts to comply with Section 504 of the Rehabilitation Act, Title 2 of the Americans with Disabilities Act, and all other regulations.

Grievance Procedure. In compliance with Section 504, the School has adopted a grievance procedure to provide for the prompt and equitable resolution of applicable complaints brought under Section 504. The School shall not retaliate against any complaints or grievances filed. Grievance shall be conducted according to the procedure described below.

- Complaints shall be filed in writing within fifteen (15) days of the alleged conduct. The written complaint must state the alleged discrimination and the facts that surround the conduct. The written complaint shall be filed with the Compliance Officer.
- The Compliance Officer shall investigate the matter. The Compliance Officer shall attempt to First attempt to resolve the complaint informally, The Compliance Officer shall provide a written report of his/her finding ("Findings") to all parties involved. The Finding shall indicate whether a Section 504 Violation occurred.
- The Findings may be appealed in writing to the Governing Authority within ten (10) days of a receipt of the Finding. The Governing Authority may conduct a hearing on the matter. The Governing Authority shall issue a written decision regarding the matter.

Formal complaints may also be made with the U.S. Department of Education's Office for Civil Rights. Formal complaints must be made either within thirty (30) days of the Governing Authority's decision or ninety (90) days of the filing the original complaint.

Disseminating this Policy

The School shall post this policy in the School.

Federal: 29 U.S.C. 701, et seq., 34 C.F.R. Part 104.

Cross Reference: Policy No. **3710**, Rights of Individuals with Disabilities; Form No. **3710.1**, Special Education Policies & Procedures; Policy No. **3740**, Child Find Responsibilities.

3730 – Alternate State Assessments for Students with Disabilities

To the extent possible, students with disabilities shall not be excused from taking a required assessment administered to nondisabled students unless no reasonable accommodation, as described below, can be made to enable the student to take the assessment.

For the purposes of this policy, a “student with disabilities” refers to either a (1) student receiving special education services and an individualized education program (IEP) or (2) has been identified as having a disability pursuant to Section 504 of the Rehabilitation Act.

Whether a student with disabilities shall take state required assessments shall be determined by the student’s Individual education program (IEP) or 504 plan. A student’s IEP shall state either that:

- the student is excused from taking any particular assessment and is required to participate in an alternate assessment, or
- the student shall take required assessments and will need accommodations.

Alternate Assessments

A student may be excused from taking a particular assessment and may participate in an alternate assessment if all five (5) of the following are met:

1. Either of the following apply:
 - a. A student with disabilities is completing a curriculum that is modified substantially in form and/or substance by the IEP from the general education curriculum.
 - b. A student with disabilities is completing the regular curriculum, but the student has a disability that presents unique and significant challenges such that the student’s IEP provides for accommodations in classroom and district wide tests that do not meet the accommodation criteria stated below.
2. The student has a significant cognitive disability.
3. The student requires instruction focused on the application of state standards through essential life skills
4. The student requires instruction at multiple levels below age or grade level.
5. The student with disabilities is unlikely to provide valid and reliable measures of proficiency in content areas in a standardized assessment with accommodations that meet the criteria described below

When a student is excused from an assessment, the excuse shall be documented in writing in the student’s IEP or 504 Plan. The writing shall provide for an alternate assessment, describe benchmark or short-term objectives, and provide reasons for not taking the assessment, including a statement of why the child cannot participate in the regular assessment and why the particular alternate assessment selected is appropriate for the student.

No student with disabilities who is excused from taking an assessment shall be prohibited from taking that assessment. If the student takes and meets the proficient level of performance may be credited on the student’s transcript with meeting the required performance standard, provided the accommodations made are consistent with those stated below.

Accommodations for an Assessment

A student with disabilities may be required to take an assessment but may be granted accommodations in taking the assessment. Accommodations must be made in accordance with the following:

- the accommodation is specified in a student with disabilities' IEP/504 Plan and is provided for classroom and school-wide assessments;
- the accommodation does not change the content or the structure of an assessment;
- the accommodation does not change what type of knowledge or skill that an assessment is intended to measure; and
- the accommodation does not change or enhance a student's response as to what type of knowledge or skill is intended to be assessed, but it facilitates how the response is provided or accessed.

Graduation Requirements

Any student with disabilities who otherwise has completed an IEP program but has not received a diploma because the student has not passed any required assessment, may take any assessment required for graduation anytime it is administered in any School.

Reporting Pass Rates

Statewide assessment pass rates used to determine the School's performance shall include, to the maximum extent allowed by state and federal law, all those who take assessments without any accommodation; those who take assessments with approved accommodations; and those who are excused but instead take an alternate assessment.

Interpreting this Policy

This policy should be interpreted in conjunction with the Form No. **3730.1**, Alternate Assessment for Students with Cognitive Disabilities Manual.

Ohio: R.C. 3323.011, 3301.0711, O.A.C. 3301-13-03.

Cross Reference: Policy No. **3531**, State Assessments and Support; Policy No. **3540**, Promotion and Retention of Students; Policy No. **3550**, Core Curriculum Requirements

3730.1 – Alternate Assessments for Students with Cognitive Disabilities Decision

Framework & Tool

The School has adopted the most recent Decision Framework & Tool developed by the Ohio Department of Education (<https://education.ohio.gov/Topics/Testing/Ohios-Alternate-Assessment-for-Students-with-Sign>) .

The Framework may be accessed at: <https://oh-alt.portal.cambiumast.com/-/media/project/client-portals/ohio-alt/pdf/aascdparticipationcriteriaflowchartfinal0825141.pdf>

The Tool may be accessed at: https://education.ohio.gov/getattachment/Topics/Testing/Ohios-Alternate-Assessment-for-Students-with-Sign/AASCDDecisionmakingTool_Final_Accessible-pdf.aspx.pdf.aspx?lang=en-US

3740 – Child Find Responsibilities

As required by Ohio law, the School shall adopt and implement written policies and procedures that ensure all children with disabilities residing within the district, including children with disabilities, regardless of their situations, who need special education and related services are identified, located, and evaluated as required by Federal Law. The School's policies and procedures shall be approved by the Ohio Department of Education.

For the purposes of this policy, "child(ren) with disabilities" is defined to include a child with a cognitive disability, hearing impairment, autism, traumatic brain injury, other health impairment, specific learning disability, deaf-blindness, or multiple disabilities.

This policy extends to students who are:

- advancing from grade to grade;
- enrolled in a private school;
- highly mobile; and
- are home-schooled.

To meet the requirement of an effective and practical system for identifying and assuring that all children within the local school district are receiving special education and related services are accurately accounted for, the School shall publish a Child Find Notice in a newspaper of general circulation in the School's geographic area. A model Child Find Notice may be found in Form No. **3740.1**.

Federal: 34 C.F.R. 300.111.

Ohio: 20 U.S.C. 1412.

Cross Reference: Policy No. **3710**, Rights of Individuals with Disabilities; Form No. **3710.1**, Special Education Policies & Procedures; Policy No. **3720**, Section 504 of the Rehabilitation Act of 1973; Form No. **3740.1**, Child Find Notice.

3740.1 – Child Find Notice

CHILD FIND NOTICE CSA-Xenia, by law, is required to identify, locate, and evaluate all children in the School's enrollment that may have disabilities. This notice is one way the School accomplishes this goal. If you have or know a child with disabilities, please contact this school. A child with a disability is defined to include a child with a cognitive disability, hearing impairment, autism, traumatic brain injury, other health impairment, specific learning disability, deaf-blindness, or multiple disabilities. The School does not discriminate on the basis of race, color, national origin, sex, disability, or religion in the educational programs and/or activities operated by the School.

3800 – Miscellaneous Policies

Policy No. 3810

3810 – Communicating the School’s Suspension & Expulsion Policy

Suspensions and Expulsions are to be carried out as stated in Policy No. **4530**, Suspension and Expulsion Policy. As part of the Suspension and Expulsion Policy, the Student and the Student’s parents/guardians are required to receive certain notices. This policy indicates which forms are to be used with each action.

Suspension

- Form No. **3810.2**, Notice of Intent to Suspend from School
- Form No. **3810.3**, Notice of Suspension Form
- Form No. **3810.4**, Notice of Suspension Letter

Emergency Suspension

- Form No. **3810.1**, Notice of Emergency Removal
- Form No. **3810.3** Notice of Suspension from School
- Form No. **3810.4** Notice of Suspension Letter

Expulsion

- Form No. **3810.1**, Notice of Emergency Removal
- Form No. **3810.5**, Notice of Intent to Expel
- Form No. **3810.6**, Notice of Expulsion from School
- Form No. **3810.7**, Certification

Emergency Expulsion

- Form No. **3810.1** Notice of Emergency Removal
- Form No. **3810.5**, Notice of Intent to Expel
- Form No. **3810.6**, Notice of Expulsion from School
- Form No. **3810.7**, Certification

3810.1 CSA-Xenia's Notice of Emergency Removal_____
Name of Student_____
Date_____
Time_____
Grade

This notice is to inform you that your child has been emergency removed in accordance with Board Policy and Ohio Revised Code Section 3313.66 because his/her presence poses a continuing danger to persons or property or an ongoing threat of disrupting the academic process taking place either within a classroom or elsewhere on the school premises.

The specific reasons for the emergency removal are:

Check the applicable box (only one):

☐ The emergency removal will be for the remainder of the day and your child will be permitted to return the next school day on _____ [Date].

☐ Your child will be required to attend a hearing on the next school day on _____ [Date] at _____ [Time] to discuss the reasons for the removal and the Principal's intention to suspend your child. A separate notice of intention to suspend will be provided. Your child will be provided with an opportunity to respond to the allegations against him/her.

☐ Your child will be required to attend a hearing on the next school day on _____ [Date] at _____ [Time] to discuss the reasons for the removal and the Superintendent's intention to expel your child. A separate notice of intention to expel will be provided. Your child will be provided with an opportunity to respond to the allegations against him/her.

Signature of School Administrator_____
Date_____
Signature of Parent_____
Date

3810.2 – CSA-Xenia’s Notice of Intent To Suspend

Name of Student _____

Date _____

Time _____

Grade _____

Does the student receive special education services: ☐ Yes ☐ No _____

Date and Time of Incident _____

This notice is to inform you that you may be suspended from school pursuant to R.C. 3313.66 (A). During an out-of-school suspension, you are prohibited from being on school grounds, attending classes, or attending any extra-curricular activities. If you are suspended, you will be provided with the opportunity to complete any assignments missed due to your out-of-school suspension.

Before being suspended you have the right to meet with the Principal or Designee at an informal hearing to ask questions, challenge the reason(s) for the intended suspension, or otherwise explain your actions.

The reasons for the intended suspension are: _____

Rule(s)/Section(s) of the Board-Adopted Student Code of Conduct Violated by Student: _____

If you are suspended based on a violation listed (marked) below, which you committed when you were 16 years of age or older and the violation would have been a criminal offense if committed by an adult, the Superintendent may seek to permanently exclude you from attending any of the public schools of this state if you are convicted of or adjudicated a delinquent child for that violation.

☐ Knowingly conveying or attempting to convey or possess any deadly weapon or dangerous ordinance onto any property owned or controlled by, or to any activity held under the auspices of a board of education of a city, local, exempted village, or joint vocational school district.	
☐ Carrying concealed weapons.	☐ Selling or offering to sell a controlled substance.
☐ Possession of a controlled substance.	☐ Aggravated murder; murder; voluntary manslaughter; involuntary manslaughter.
☐ Felonious assault; aggravated assault.	☐ Rape; gross sexual imposition; felonious sexual penetration.

Your signature below acknowledges that you received this notice of intended suspension and were provided with an informal hearing, including the opportunity to ask questions, challenge the reason(s) for the intended suspension, or otherwise explain your actions (your signature does not signify that you agree with the intended suspension).

Student’s Signature _____

Signature of School Administrator _____

3810.3 – CSA-Xenia’s Notice of Suspension - Student_____
Name of Student_____
Date_____
Name of Parent_____
Address

Based upon my review of the circumstances and following the informal hearing during which you were provided with an opportunity to challenge the reasons or otherwise explain his/her actions regarding the intended suspension, I have determined to suspend your child from school for the following reasons:

Rule(s)/Section(s) of the Board-Adopted Student Code of Conduct Violated by Student: _____

Suspension will be for ____ school days, beginning on _____ through _____.

☐ [Check only if applicable] Be further advised that in addition to suspension, I am recommending to the Superintendent that your child be expelled.

During an out-of-school suspension, a student is prohibited from being on school grounds, attending classes, or attending any school-related or extra-curricular activities. In accordance with Ohio Revised Code 3313.66 and the Student Code of Conduct, a student suspended from school will be provided with the opportunity to complete any assignments missed due to an out-of-school suspension.

If you are suspended based on a violation of Ohio Revised Code Section 3313.662 (A) listed (marked) below, which you committed when you were 16 years of age or older and the violation would have been a criminal offense if committed by an adult, the Superintendent may seek to permanently exclude you from attending any of the public schools of this state if you are convicted of, or adjudicated a delinquent child for that violation.

☐ Knowingly conveying or attempting to convey or possess any deadly weapon or dangerous ordinance onto any property owned or controlled by, or to any activity held under the auspices of a board of education of a city, local, exempted village, or joint vocational school district.	
☐ Carrying concealed weapons.	☐ Selling or offering to sell a controlled substance.

☐ Possession of a controlled substance.	☐ Aggravated murder; murder; voluntary manslaughter; involuntary manslaughter.
☐ Felonious assault; aggravated assault.	☐ Rape; gross sexual imposition; felonious sexual penetration.

You have the right to appeal this suspension decision to the Board or its designee. You also have the right to be represented in all appeal proceedings, to be granted a hearing before the Board or its designee in order to be heard against the suspension, and to request that the hearing be held in executive session if such hearing is held by the Board. If you intend to pursue an appeal of the suspension, please submit a written request for the appeal of the suspension to the Superintendent within _____ days from the date of this Notice, so that a hearing can be scheduled.

Signature of School Administrator

Date

3810.4 – CSA-Xenia’s Notice of Suspension – Parent/Guardian

[Date]

[Name of Parent(s)]

[Address]

RE: Notice of Suspension of _____ [Student Name] – Grade ____

Dear [Parent(s)]:

This letter is written to notify you that based upon my review of the circumstances and following the informal hearing during which _____ [Name of Student] was provided with an opportunity to challenge the reasons or otherwise explain his/her actions regarding the intended suspension, I have determined to suspend _____ [Name of Student] out-of-school for _____ school days beginning on _____ [date] and ending on _____ [date].

_____ [Name of Student] has been suspended from school for [list reasons]

_____ In particular, on _____ [date of incident], _____ [Name of Student] violated the following provisions of the adopted Student Code of Conduct:

[Optional Language] Please be further advised that in addition to suspension, I am recommending to the Superintendent that _____ [Name of Student] be expelled.

During the out-of-school suspension, _____ [Name of Student] is prohibited from being on school grounds, attending classes, or attending any school-related or extra-curricular activities. In accordance with Ohio Revised Code 3313.66 and the Student Code of Conduct, a student suspended from school will be provided with the opportunity to complete any assignments missed due to an out-of-school suspension.

[Optional Language] If the Student’s suspension is based on a violation listed in Ohio Revised Code Section 3313.662(A), which the Student committed when he/she was 16 years of age or older and the violation would have been a criminal offense if committed by an adult, the Superintendent may seek to permanently exclude the Student from attending any of the public schools of this state if he/she is convicted of, or adjudicated a delinquent child for that violation.

You have the right to appeal this suspension decision to the Board or its designee. You also have the right to be represented in all appeal proceedings, to be granted a hearing before the Board or its designee in order to be heard against the suspension, and to request that the hearing be held in executive session if such hearing is held by the Board. If you intend to pursue an appeal of the

suspension, please submit a written request for the appeal of the suspension to the Superintendent within _____ days from the date of this Notice, so that a hearing can be scheduled.

Please feel free to contact me if you have any questions.

Sincerely,

Principal/Administrator

3810.5 – CSA-Xenia’s Notice Of Intent To Expel

[Date]

[Name of Parent(s)]

[Address]

[Name of Student]

[Address]

RE: Notice of Intent to Expel _____ [Student Name] – Grade ____

Dear [Parent(s)] and [Student]:

In accordance with Ohio Revised Code Section 3313.66 and Board Policy, this letter is written to inform you that _____ [Name of Student] may be expelled from school.

It is possible that _____ [Name of Student] may be expelled from school for [list reasons] _____

_____. In particular, on _____ [date of incident], _____ [Name of Student] violated the following provisions of the adopted Student Code of Conduct:

You have the right to appear in person to challenge the reasons or otherwise explain the Student’s actions regarding the intended expulsion. You also have the right to bring a representative and/or translator to the expulsion hearing. The hearing will be held on _____ [Date] at _____ [time] at the _____ [Building Name and Address].

If you are unable to attend the expulsion hearing during the date and/or time indicated above, you have the right to request a delay of the hearing for a period up to _____ days. If an extension is granted, you will be notified of the new date, time, and place to appear for the hearing.

[Optional Language] If the Student is expelled based on a violation listed in Ohio Revised Code Section 3313.662(A), which the Student committed when he/she was 16 years of age or older and the violation would have been a criminal offense if committed by an adult, the Superintendent may seek to permanently exclude the Student from attending any of the public schools of this state if he/she is convicted of, or adjudicated a delinquent child for that violation.

Please feel free to contact me if you have any questions.

Sincerely,

Superintendent

3810.6 – CSA-Xenia’s Notice Of Expulsion

[Date]

[Name of Parent(s)]

[Address]

RE: Notice of Expulsion of _____ [Student Name] – Grade ____

Dear [Parent(s)]:

This letter is written to notify you of the result of the expulsion hearing held on _____ [Date] during which _____ [Name of Student] was provided with an opportunity to challenge the reasons or otherwise explain his/her actions regarding the intended expulsion. I have determined to expel _____ [Name of Student] out-of-school for ____ school days beginning on _____ [date] and ending on _____ [date].

_____ [Name of Student] has been expelled from school for [list reasons]

In particular, on _____ [date of incident], _____ [Name of Student] violated the following provisions of the adopted Student Code of Conduct:

_____.

During the expulsion, _____ [Name of Student] is prohibited from being on school grounds, attending classes, or attending any school-related or extra-curricular activities. In addition, _____ [Name of Student] is prohibited from making up any work or completing any assignments missed due to the expulsion.

In accordance with Ohio Revised Code 3313.66 and Board Policy, below you will find the names of public and/or private agencies that can provide programs or services of assistance to _____ [Name of Student] since the expulsion is for a period of more than twenty (20) days and/or may extend into the following semester or school year. The programs or services offered by the below-listed agencies work toward improving those aspects of a student’s attitude and behavior that contributed to the incident that gave rise to the student’s expulsion from school:

[List Agencies]

You have the right to appeal this expulsion decision to the Board or its designee. You also have the right to be represented in all appeal proceedings, to be granted a hearing before the Board or its designee in order to be heard against the expulsion, and to request that the hearing be held in executive session if such hearing is held by the Board. If you intend to pursue an appeal of the expulsion, please submit a

written request for the appeal of the expulsion to the Treasurer or me within fourteen (14) days from the date of this Notice, so that a hearing can be scheduled.

[Optional Language] The expulsion may be subject to extension under Ohio Revised Code Section 3313.66(F) if the Student's expulsion involves conduct that could result in the Student's permanent exclusion from school.

[Optional Language] If the Student's expulsion is based on a violation listed in Ohio Revised Code Section 3313.662(A), which the Student committed when he/she was 16 years of age or older and the violation would have been a criminal offense if committed by an adult, the Superintendent may seek to permanently exclude the Student from attending any of the public schools of this state if he/she is convicted of, or adjudicated a delinquent child for that violation.

Please feel free to contact me if you have any questions.

Sincerely,

Superintendent

**Notice of Conditions for Reinstatement after Expulsion
for Imminent and Severe Endangerment**

You/your child _____ (name, hereinafter referred to as "Student") has been expelled for _____ days (up to 180 days) for actions that the Chief Administrative Officer has determined pose an imminent and severe endangerment to the health and safety of other students or school employees.¹³ Under Ohio law, Student must satisfy certain conditions prior to reinstatement.

Conditions. These conditions include:

- ☐ An assessment must be performed by a licensed psychiatrist, psychologist, or school psychologist employed or contracted by the School to determine whether Student poses a danger to themselves, other students, and/or school employees. The School and Student's parent/guardian will mutually agree on the individual who will conduct the assessment. If the

¹³ The term "**imminent and severe endangerment**" means any of the following actions taken by a student:

- 1) Bringing a firearm or a knife capable of causing severe bodily harm to a school operated by the Board or other property owned or controlled by the Board, or to any interscholastic competition, extra-curricular event, or any other program or activity sponsored by the School or in which the School is participating;
- 2) Committing an act that is a criminal offense when committed by an adult and that results in serious physical harm to persons as defined in R.C. 2901.01(A)(5) or to property as defined in R.C. 2901.01(A)(6) while the student is at a school operated by the School, on property owned or operated by the School, or at any other program or activity that is sponsored by the School or in which the School is participating;
- 3) Making a bomb threat to a school building or to any premises at which a school activity is occurring at the time of the threat; or
- 4) Making an articulated or verbalized threat, including a hit list, threatening manifesto, or social media post, that would lead a reasonable person to conclude that the pupil poses a serious threat.

individual is not employed by the School, the cost of the assessment shall be referred for payment through Student's health insurance. Any remaining costs not covered by Student's insurance will be paid by the School. If the individual is employed or contracted by the School, the School will pay the full cost of the assessment. In addition to including a determination of whether Student poses a danger to themselves or others, the psychiatrist, psychologist, or school psychologist may also make recommendations for the contingent conditions for Student's reinstatement. **(This condition is mandatory.)**

- ☐ An agreement to a behavior contract which may involve Student, parent or legal guardian, and an outside agency.
 - ☐ Participation in, or completion of, an anger management program or other appropriate psychological counseling.
 - ☐ Participation in, or completion of, an alcohol and/or drug treatment program.
 - ☐ An agreement to a contract for restitution where damage to property is involved.
 - ☐ Regular progress reports.
 - ☐ Any conditions recommended as part of the required psychological assessment to determine whether Student poses a danger to Student's self or to other students or school employees.
 - ☐ Other: _____
-

Sufficient rehabilitation. At the end of the initial expulsion term or any subsequent term, the Chief Administrative Officer will assess Student and determine whether Student has demonstrated sufficient rehabilitation to be reinstated to school, which means the student no longer poses a danger to the Student's self or to other students or school employees. If the student has not shown sufficient rehabilitation, the Chief Administrative Officer may extend the expulsion for an additional period not to exceed ninety (90) school days. In extending the expulsion period, the Chief Administrative Officer shall comply with the expulsion procedure in Policy No. **4530**. There is no limit on the number of times the Chief Administrative Officer may extend an expulsion for imminent and severe endangerment.

The Chief Administrative Officer shall make the determination about whether Student has demonstrated rehabilitation following an expulsion period of up to 180 days or an extended period of up to 90 days in consultation with a multidisciplinary team selected by the Chief Administrative Officer. The Chief Administrative Officer will take into consideration the assessment of the psychiatrist, psychologist, or school psychologist and whether or not Student met the conditions developed by the Chief Administrative Officer at the beginning of the expulsion period. If the Chief Administrative Officer extends the expulsion period, the Chief Administrative Officer shall develop conditions for Student to satisfy prior to reinstatement. The conditions may be the same as those developed for the initial term of expulsion and will be provided to Student and Student's parent/guardian in writing.

The Chief Administrative Officer may extend the initial or subsequent term of expulsion into the next school year. The Chief Administrative Officer may also reduce the expulsion as necessary on a case-by-case basis as specified below. Student need not be prosecuted or convicted of any criminal act to be expelled under this provision.

Reduction. The Chief Administrative Officer may, in his/her sole judgment and discretion, reduce such expulsion to a period of less than 180 school days for the initial term, or less than ninety (90) school days for any additional term, on a case-by-case basis, for the following reasons:

- 1) application of State or Federal laws and regulations relating to students with disabilities, upon recommendation from the group of persons knowledgeable of Student's educational needs; or
- 2) other extenuating circumstances, including but not limited to, the academic and disciplinary history of Student, including Student's response to the imposition of any prior discipline imposed for behavioral problems.

Early assessment. Prior to the end of the initial expulsion term or any extension, Student's parent/guardian may request that the Chief Administrative Officer complete an early assessment of Student. The Chief Administrative Officer will assess Student and make a determination of whether Student meets the requirements for reinstatement as outlined in this section. The Chief Administrative Officer will rely on the reasons permitted for the reduction of an expulsion term outlined in this section to determine whether Student may be reinstated before the end of the current expulsion term. A parent/guardian may request an early assessment one (1) time for the initial, and one (1) time for any subsequent expulsion term.

Contingent conditions. The Chief Administrative Officer may develop contingent conditions for Student's reinstatement at the end of the expulsion period, at the conclusion of a reduced expulsion period, and/or in the course of conducting a requested early assessment. The conditions may include the conditions developed for the original expulsion period and recommendations made by the psychiatrist, psychologist, or school psychologist in the original assessment. The Chief Administrative Officer shall establish a duration under which a student must meet the contingent conditions that may extend to a student's graduation date. A copy of these conditions will be provided to you in writing when the Chief Administrative Officer makes a reinstatement determination. If Student fails to adhere to the contingent conditions, the Chief Administrative Officer may revoke Student's reinstatement and establish an extended expulsion period under Policy **4530** as explained herein.

Continuing education. Not later than fifteen (15) school days after the beginning of the original expulsion period or of any extended expulsion period for a student who does not have an IEP, or not later than ten (10) school days after the beginning of the original expulsion period or of any extended expulsion period for a student who has an IEP, the Chief Administrative Officer, in consultation with Student, Student's parent, guardian, or custodian, and Student's IEP team if Student has one, will develop a plan for the continued education of Student, which may include education by the School in an alternative setting, including instruction at home, enrollment in another School or other type of public/nonpublic school, or any other form of instruction in compliance with Ohio law.

A copy of this form and any subsequent, related written determinations shall be provided to the Governing Authority, Student, and Student's parent/guardian.

Modified September 2, 2025

3810.7 – CERTIFICATION

We hereby certify that the Suspension and Expulsion Policy for Community STEAM Academy - Xenia is posted on the main office wall between the receptionist's desk and leadership offices, and available upon request in the main office.

BY: _____

[HEAD ADMINISTRATOR]

3820 – Resolving Issues with Attendance

The School is to follow the attendance policy found in the Student/Parent Handbook Policy No. **4201**, Attendance, Absence, & Truancy. In certain instances, the School is required to communicate with the student's parents when a student does not conform with the Attendance policy. In particular, the School is required to automatically withdraw a student after the student misses seventy-two (72) hours of learning opportunities. The School shall communicate this using Form No. **3820.1**, Parental Notification Regarding Automatic Withdrawal of a Student.

Cross Reference: Policy No. **4201**, Attendance, Absence, & Truancy; Policy No. **4203**, Emergency School Closings & Calamity Days; Policy No. **4630**, School-Sponsored Trips; Form No. **3820.1**, Parental Notification Regarding Automatic Withdrawal of a Student

Updated September 2, 2025

3820.1 – Attendance Corrective Action Plan

Dear Parent/Guardian:

Your child, _____, has not been attending school on a regular basis. Attendance on a regular basis is required of all students enrolled under School Policy and the laws of the State of Ohio. The School's Policy on Attendance, Absence and Truancy, has been attached for your review. As the policy states, as the student's parent or guardian, you are primarily responsible for your child's attendance at school.

Because your child has been deemed to be excessively absent from school, the School has developed the following actions to help increase your child's attendance.

- ☐ _____, a teacher will be assigned to your child to provide contact to assist your child in being present at school.
- ☐ _____, a student with good attendance, has been assigned to your child to help your child with his/her attendance.
- ☐ _____, the School Social Worker has been assigned to your child, and your child will be required to meet with the Social Worker to discuss the problem and recommend solutions to increase the student's attendance at school.

By signing below, you acknowledge that you have received, read and understand this plan.

Parent/Guardian

Date

Student

Date

Head Administrator

Date

3831 – Student Records and Release of Information

The School maintains records of students. The School prohibits the release of personally identifiable information except as is permitted by law or by this policy manual. The Student Record File is available to the student, the Student's Parents/legal guardians, or school officials who have a legitimate purpose for accessing the File.

Access by Parents & Students

The student's parents/guardian, or if the student is eighteen (18) years of age or older, the student himself/herself, may request to:

- *Inspect and Review Education Records.* Records requests are to be made in writing and shall be conducted within forty-five (45) days of the School's receipt of the request.
- *Challenge the accuracy of information contained in the records.* A parent or qualifying student may challenge the content of such student's education records in order to ensure that the records are not inaccurate, misleading, or otherwise in violation of the privacy rights of students. The School shall provide an opportunity for the correction or deletion of any such inaccurate, misleading, or otherwise inappropriate data and to insert into such records a written explanation of the parents respecting the content of such records. Should the School decide not to amend the records, the School shall advise the requesting party of their right to a hearing regarding the request for amending the record.
- *Authorizing Release of Written Information.* Records requests by parents/guardians or eligible children are to be made in writing.

Release of Information

The School may release "directory information" as provided under Ohio and Federal law. Directory information includes, but is not limited to, the student's name, address, telephone listing, electronic mail address, photograph, date and place of birth, major field of study, grade level, enrollment status, dates of attendance, date of graduation, sports and activities participated in, degrees; honors and awards received; most recent educational agency or institution attended, and in the case of athletic team members, the height and weight of the student. If the School chooses to release personally identifiable information, then it must provide a proper notice. A student's directory information shall not be released to any person or group for use in a profit-making plan or activity.

The School may release "personally identifiable information" to School Officials having a legitimate educational interest in the information without prior notice or permission. A "School Official" is a person or entity:

1. duly appointed to the Governing Authority;
2. licensed by the state and appointed by the School to an administrative or supervisory position;

3. licensed by the state and under contract to the School as an instructor;
4. employed by the School as a temporary substitute for administrative, supervisory, or teaching personnel for the period of his/her performance as a substitute; or
5. employed by, or under contract to, the School to perform a special task such as a secretary, a treasurer, School attorney, or auditor for the period of his/her performance as an employee or contractor.

In addition, a “School Official” is a contractor, consultant, volunteer, or other party to whom an agency or institution has outsourced institutional services or functions (such as a therapist, translator, or approved online/technological service provider) if such official: (1) performs an institutional service or function for which the School would otherwise use employees; (2) is under the direct control of the School with respect to the use and maintenance of education records; and (3) abides by the legal requirements governing the use and redisclosure of personally identifiable information from education records.

School Officials who meet the criteria listed above have access to a student’s records if they have a legitimate educational interest in those records. A “legitimate educational interest” is the person’s need to know in order to perform:

1. an administrative task required in the school official’s job description approved by the School;
2. a supervisory or instructional task directly related to the student’s education; or
3. a service or benefit for the student or the student’s family such as health care, counseling, student job placement, or student financial aid.

School Officials may obtain access to only those education records in which they have legitimate educational interests. Physical and technological access controls to records shall exist to ensure that access to education records is effective and in compliance with the legitimate educational interest requirement.

The School may release personally identifiable information without prior notice or permission to/for:

- *Officials in Other Schools.* Officials of other schools may have access when the student intends to enroll. Parents must be notified and given an opportunity to challenge the content of the record.
- *State and Federal Officials.* State and federal officials may access a student’s record for purposes of audits and law enforcement investigations.
- *Financial Aid.* Persons requesting such records in connection with the student's application for financial aid;
- *Military Recruiters.* Pursuant to Ohio and Federal Law, the School will provide student information of students in grades ten (10) through twelve (12), upon request to any recruiting officer for any branch of the United States armed forces who requests such information. Any data received by a recruiting officer shall be used solely for the purpose of providing information to students regarding military service and shall not be released to any person other than individuals within the recruiting services of the armed forces. The School will provide notice that

a student's parent, guardian, or custodian may request in writing that the School not release the information to military recruiters. Upon receiving such a written notice, the School will not release the student's information.

- *Anti-Terrorism Purposes.* In certain instances, student records may be obtained by an Assistant U.S. Attorney General or higher-ranking federal official.
- *Court Orders or Subpoenas.* Student records may be produced in response to a court order or a lawfully issued subpoena.
- *Missing Children.* Information may be provided to a law enforcement officer when the officer indicates an investigation is ongoing and the student may be or is a missing child, as defined by the Revised Code.
- *Personal Knowledge.* A School Official may release information when it is obtained through the official's personal knowledge or observation and not the education record.
- *Ohio Department of Education Requests.* The School shall provide the Ohio Department of Education (ODE) with student information when (1) a testing company has notified the ODE that the student's written response to a question included threats or descriptions of harm to another person or the student's self and the information is necessary to enable the department to identify the student, (2) the ODE requests information to respond to an appeal from the School on an achievement test, or (3) to determine if the student satisfies alternative conditions for a high school diploma.
- *The School's Sponsor.* The School may provide its Sponsor with access to student or other records if agreed to and required in the School's Charter Contract with its Sponsor.
- *Health & Safety Emergency.* The School may disclose personally identifiable information to necessary parties if knowledge of the information is necessary to protect the health or safety of a student or others. The school must determine and record the articulable and significant threat.

Transfer of Records

The School shall transfer all records to another school upon being notified the student has transferred and the transferring school requests the records files. The transfer shall occur within five (5) days after receiving the request. If the School has no record of the student's attendance, the School shall respond with a statement of that fact within five (5) days after receiving the request.

If, however, there is a debt of two thousand five hundred dollars or more attributable to the student, the School shall withhold transferring the student's records until the debt is paid, except that the School cannot withhold records related to a student's expulsion for the imminent and severe endangerment to the health and safety of other students or school employees under Policy No. **4530** due to outstanding debt attributed to the student.

When a request is made for student records by a school enrolling a former student placed in foster case, the School shall transfer these records within one (1) school day of the request from the enrolling school.

Security of Records

To maintain the security and confidentiality of the documents, the School shall require an employee to be present when records are inspected. The School shall also maintain a record log of all persons who access a student's records. The log must identify (1) all individuals and agencies that are granted access and (2) a statement regarding the legitimate interest in obtaining student information. The student log must be signed by employees of the School as well as non-school employees.

Safe at Home Program

If a parent, student, or member of a student's household is a participant in Ohio's Safe at Home or Address Confidentiality program, the student or student's parent must notify the School of the same and provide certification of their participation.

The School shall not include a student's actual or confidential residential address in any student files or records (including electronic records and files) or disclose the student's actual or confidential residential address when releasing student records. The School shall only use the address designated by the Ohio Secretary of State for the participant student for student records, including the release of the same to non-custodial parents, designated school officials who have a legitimate educational interest in the information, and other individuals or organizations as permitted by law. The student's actual or confidential address shall be maintained in a separate confidential file which shall not be accessible to the public or employees without a legitimate purpose.

The School shall use the student's designated address for all communications and correspondence unless instructed otherwise by the parent or adult student.

Disseminating this Policy

In accordance with federal law, parents shall be informed on an annual notice regarding their rights under this policy, state law, and federal law. The form shall specifically state what information is considered "directory information." A parent may object within ten (10) days of the receiving the notice. Upon receiving notice from the parent, the School shall not release such information without obtaining consent. The notice form is provided at **5810.2**.

Ohio: R.C. 3319.321; 3319.324

Federal: 34 C.F.R. 99.3, 20 C.F.R. 1232g (a)(2)(5).

Cross Reference: Policy No. **1741**, Public Records Access Policy; Policy No. **1742**, Internet Public Record Redaction Policy; Policy No. **1743**, Retention, Management, and Disposal of Records; Policy No. **3833**, Tracking Missing Children; Policy No. **3831**, Student Records and Release of Information; Policy No. **5810**, Personnel Records File; Policy No. **3832**, Confidential and Public Records.

Revised September 2, 2023, April 1, 2025

3831.1 – Family Educational Rights and Privacy Act (FERPA) Notice for Directory Information

The *Family Educational Rights and Privacy Act* (FERPA), a Federal law, and Ohio Law require the School to protect the privacy of student records.

FERPA affords parents and students who are 18 years of age or older ("eligible students") certain rights with respect to the student's education records. These rights are:

1. The right to inspect and review the student's education records within 45 days after the day the School receives a request for access.
 - a. Parents or eligible students who wish to inspect their child's or their education records should submit to the school principal a written request that identifies the records they wish to inspect. The principal will make arrangements for access and notify the parent or eligible student of the time and place where the records may be inspected.
2. The right to request the amendment of the student's education records that the parent or eligible student believes are inaccurate, misleading, or otherwise in violation of the student's privacy rights under FERPA.
 - a. Parents or eligible students who wish to ask the School to amend their child's or their education record should write to the school principal, clearly identify the part of the record they want changed and specify why it should be changed. If the school decides not to amend the record as requested by the parent or eligible student, the school will notify the parent or eligible student of the decision and of their right to a hearing regarding the request for amendment. Additional information regarding the hearing procedures will be provided to the parent or eligible student when notified of the right to a hearing.
3. The right to file a complaint with the U.S. Department of Education concerning alleged failures by the [School] to comply with the requirements of FERPA. The name and address of the Office that administers FERPA are:
 - a. Student Privacy Policy Office, U.S. Department of Education, 400 Maryland Avenue, SW, Washington, DC 20202
4. The right to provide written consent before the school discloses personally identifiable information (PII) from the student's education records, except to the extent that FERPA authorizes disclosure without consent.

Disclosures permitted without consent

While the School generally must obtain your written consent prior to disclosing PII from your child's education records, the School may disclose appropriately designated "directory information" without written consent, unless you have advised the School otherwise.

The primary purpose of directory information is to allow the School to include directory information from your child's education records in certain school publications. Examples include: the annual yearbook, Honor roll or other recognition lists, and Graduation programs.

Directory information may be disclosed to outside organizations without a parent's prior written consent. Directory information shall not be released to any person or entity for a profit-making purpose or activity.

The School has designated the following information (denoted by "X" marks) as directory information:

X	Name		Major Field of Study	X	Honors & awards
X	Address	X	School Related Publications	X	Weight & Height of Athletic Team Members
X	Telephone Number		Grade Level	X	Enrollment Status
	Email Address		Dates of Attendance		Student Directory
X	Photograph	X	Date of Graduation		Yearbook
	Date/Place of Birth	X	Sports & Activities		Student ID number, user ID, or other unique identifier (excluding a SSN)

If you do not want the School to disclose directory information from your child's education records without your prior written consent, you must notify the District in writing by within ten (10) days of receiving this notice. Notice in writing may be performed by completing this form.

Additionally, FERPA and Ohio law authorize disclosure of PII in certain instances without consent.

The School may release PII to School Officials having a legitimate educational interest in the information.

A "School Official" is a person or entity:

1. duly appointed to the Governing Authority;
2. licensed by the state and appointed by the School to an administrative or supervisory position;
3. licensed by the state and under contract to the School as an instructor;
4. employed by the School as a temporary substitute for administrative, supervisory, or teaching personnel for the period of his/her performance as a substitute; or
5. employed by, or under contract to, the School to perform a special task such as a secretary, a treasurer, School attorney, or auditor for the period of his/her performance as an employee or contractor.

In addition, a "School Official" is a contractor, consultant, volunteer, or other party to whom an agency or institution has outsourced institutional services or functions (such as a therapist, translator, or approved online/technological service provider) if such official: (1) performs an institutional service or function for which the School would otherwise use employees; (2) is under the direct control of the School with respect to the use and maintenance of education records; and (3) abides by the legal requirements governing the use and redisclosure of personally identifiable information from education records.

School Officials who meet the criteria listed above have access to a student's records if they have a legitimate educational interest in those records. A "legitimate educational interest" is the person's need to know in order to perform: (1) an administrative task required in the school official's job description approved by the School; (2) a supervisory or instructional task directly related to the student's

education; or (3) a service or benefit for the student or the student's family such as health care, counseling, student job placement, or student financial aid.

School Officials may obtain access to only those education records in which they have legitimate educational interests. Physical and technological access controls to records shall exist to ensure that access to education records is effective and in compliance with the legitimate educational interest requirement.

- The School may also release PII without parental/student permission under the following circumstances: To officials of another school, school system, or institution of postsecondary education where the student seeks or intends to enroll, or where the student is already enrolled if the disclosure is for purposes related to the student's enrollment or transfer;
- To authorized representatives of the U. S. Comptroller General, the U. S. Attorney General, the U.S. Secretary of Education, or State and local educational authorities, such as the Ohio Department of Education, in connection with an audit or evaluation of Federal- or State-supported education programs, or for the enforcement of or compliance with Federal legal requirements that relate to those programs. These entities may make further disclosures of PII to outside entities that are designated by them as their authorized representatives to conduct any audit, evaluation, or enforcement or compliance activity on their behalf, as permitted by law;
- In connection with financial aid for which the student has applied or which the student has received, if the information is necessary for such purposes as to determine eligibility for the aid, determine the amount of the aid, determine the conditions of the aid, or enforce the terms and conditions of the aid;
- To State and local officials or authorities to whom information is specifically allowed to be reported or disclosed by Ohio law that concerns the juvenile justice system and the system's ability to effectively serve, prior to adjudication, the student whose records were released;
- To organizations conducting studies for, or on behalf of, the school, in order to: (a) develop, validate, or administer predictive tests; (b) administer student aid programs; or (c) improve instruction, if applicable requirements are met.;
- To accrediting organizations to carry out their accrediting functions;
- To parents of an eligible student if the student is a dependent for IRS tax purposes;
- To comply with a judicial order or lawfully issued subpoena if applicable requirements are met;
- To appropriate officials in connection with a health or safety emergency, as permitted by law;
- To an agency caseworker or other representative of a State or local child welfare agency or tribal organization who is authorized to access a student's case plan when such agency or organization is legally responsible, in accordance with Ohio or tribal law, for the care and protection of the student in foster care placement; and
- To the Secretary of Agriculture or authorized representatives of the Food and Nutrition Service for purposes of conducting program monitoring, evaluations, and performance measurements of programs authorized under the Richard B. Russell National School Lunch Act or the Child Nutrition Act of 1966, under certain conditions.

The School must disclose each the name, address, and telephone listing of students aged 18 or older to the U.S. military upon request for recruitment purposes, unless the parent or eligible student notifies the School in writing that such information may not be released.

Note: this form should only be completed if you want to opt out of the School's Directory Information. If you wish for the School to include your child's directory information, do not complete and return this form.

I, _____ (parent's name) do not want my student's directory information used without my permission.

Name of Student: _____ Date: _____

Parent/Guardian Signature: _____

3831.2 – Request and Consent for Release of Records

If the student is under the age of 18, the student's parent/guardian must complete this form.

Student's Full Name _____ Date of Birth _____

Address _____

Telephone _____ E-Mail _____

My relationship to the Student is: (Please "X" the appropriate box)

☐	I am the parent/guardian/custodian of the student & the student is under the age of eighteen (18).
☐	I am a student and am eighteen (18) years of age or older.

Release the following records: (Please "X" all that apply)

☐	Academic Transcripts	☐	Health Records
☐	Attendance Record	☐	Psychological /Test Results
☐	Standardized Test Results	☐	Disciplinary Records
☐	IEP/ Special Education Records	☐	IEP/Special Education Records
☐	Ohio Proficiency Test Results	☐	

The above records may be released and/or used by the following individual or organization:

Name: _____ Phone: _____

Mailing Address: _____

State the reason(s) for disclosing the records: _____

I authorize the School to release the records as indicated above. I understand that I am not required to release these records. I understand that if copies of the above records are released to the above parties, the School is relieved of the confidentiality of those records.

Signature: _____ Date _____

REGISTRAR – PLEASE COMPLETE & RETURN TO REQUESTOR

The Above Records Request was: (mark all that apply)

☐	Completed on ____ (date) and was sent via: _____
☐	Not completed because: _____.
☐	Other: _____.

Registrar: _____ Date _____

3832 – Confidential & Public Records

With reasonable notice, the School will allow any person to inspect the School's public records. Inspections are to be conducted during the office's regular business hours and in the presence of an employee or representative of the School. Original records may not be removed unless authorized.

Public Record is defined to be consistent with Ohio Revised Code 149.43.

Copies of the records are available for a fee. The fee is limited to the cost of the copies.

The School shall treat as confidential all records from state agencies that are treated as confidential. The information shall be held as confidential unless directed by law or court.

Ohio: R.C. 149.43.

Cross Reference: Policy No. **1741**, Public Records Access Policy; Policy No. **1742**, Internet Public Record Redaction Policy; Policy No. **1743**, Retention, Management, and Disposal of Records; Policy No. **3831**, Student Records and Release of Information; Policy No. **3833**, Tracking Missing Children; Policy No. **5810**, Personnel Records File.

3833 – Tracking Missing Children

Ohio law requires the School to assist in finding missing children. When the School is notified by a law enforcement agency that a missing child report has been filed and the missing child report regards a student who is currently or was previously enrolled in the School, the person in charge of admission at the School shall mark that student's records. Marks should be made according to Form No. **3833.1**, Missing Child Report "Marking" Form. The mark shall be made so as to alert any school official that is responding to a records request that the school records belong to a missing child.

Upon receiving any request for a copy of or request for information regarding a student's records that have been marked, the person in charge of admission immediately shall report the request to the law enforcement agency that notified the School that the student is a missing child. When forwarding information from the student's records in response to a request, the person in charge of admission shall forward such information in such a way that the receiving district or school would be unable to discern that the student's records are marked. The school official, however, shall retain the mark in the student's records until the School is notified that the student is no longer a missing child.

When the law enforcement agency notifies the School that a student is no longer a missing child, the person in charge of admission shall remove the mark from the student's records and destroy the mark securely.

Ohio: R.C. 3313.672.

Cross Reference: Policy No. **1741**, Public Records Access Policy; Policy No. **1742**, Internet Public Record Redaction Policy; Policy No. **1743**, Retention, Management, and Disposal of Records; Policy No. **3831**, Student Records and Release of Information; Policy No. **3832**, Confidential and Public Records; Policy No. **5810**, Personnel Records File.

3833.1 – Missing Child Report “Marking” Form

This child has been reported missing by a law enforcement agency. This form must be attached to the child's records. Please read and complete this entire form before completing any records request.

Name of Child: _____

Date: _____

Law Enforcement Agency: _____

Law Enforcement Agency Contact Information: _____

Requests for Information – **PLEASE READ**

Upon any request for this child's records, the School is required to report the information to the law enforcement agency identified above. This form and any information pertaining to the child's missing status shall not be sent with the child's file. This form shall, however, be retained in the child's file.

Please Complete for each request of the child's file

Requesting Party	Date of Request	Date/Method Was Law Enforcement Notified	Confirm this Form was excluded from file to Requestor	School Official Signature

Upon being informed by a law enforcement agency that the student is not missing, this form must be removed from the child's file and destroyed securely. Please sign upon receiving information that the child is no longer missing.

Notification Date: _____ Law Enforcement Agency: _____

3841 – Religion and Prayer

The First Amendment protects against the establishment of religion. No instructional activities shall advance or inhibit any particular religion or religion generally. Additionally, no devotional exercises or displays of a religious character will be permitted in the School in the conduct of any program or activity under the jurisdiction of the School or the Governing Authority.

Religious Expression in Academics

The School recognizes that religion and religious themes are common throughout education. An education without referring to these themes would be incomplete and detrimental to living in a pluralistic society. The materials and curriculum approved by the School may contain religious references or themes, and teachers may discuss these religious references and themes as appropriate. Such materials, teaching, and discussion are appropriate provided they pertain to the subject matter and are neutral, unbiased, do not promote or inhibit religion, and do not imply that religious doctrines have the support of School authority.

Religious expression in the completion of homework, artwork, or other written or oral assignments is permitted. Assignment grades and scores shall be calculated using ordinary academic standards of substance and relevance, including any legitimate pedagogical concerns, and shall not penalize or reward a student based on the religious content of a student's work.

Student Religious Expression and Access to School Facilities

The First Amendment protects the free exercise of religion. Accordingly, no student shall be prohibited from exercising a voluntary expression of the student's religious beliefs through prayer or silent meditation. Students, however, are not exempt from attending a required course because the course or instruction interferes with the student's free exercise of religion. No policy of the School prevents, or otherwise denied participation in, constitutionally protected prayer in the School.

Students enrolled in the School may engage in religious expression before, during, and after school hours in the same manner and to the same extent that a student is permitted to engage in secular activities or expression before, during, and after school hours. "Religious expression" includes any of the following: (1) prayer; (2) religious gatherings, including but not limited to prayer groups, religious clubs, "see you at the pole" gatherings, or other religious gatherings; (3) distribution of written materials or literature of a religious nature; (4) any other activity of a religious nature, including wearing symbolic clothing or expression of a religious viewpoint, provided that the activity is not obscene, vulgar, offensively lewd, indecent, or substantially disrupts or materially interferes with the work and discipline of the School.

Students enrolled in the School who wish to conduct a meeting for the purpose of engaging in religious expression will have the same access to school facilities as is given to secular student groups, without regard to the content of a student's or group's expression. During instructional hours, the School

prohibits the School's facilities from being used by non-school sponsored clubs or activities or school-sponsored, non-curriculum-related clubs and activities. (See Policy No. **4650.**)

Federal: 1st Amendment to the U.S. Constitution, 20 U.S.C. 7904(b).

Ohio: R.C. 3320.01, 3320.02, 3320.03; 3326.11.

3842 – Sexual Education & Contraceptives

The School shall not develop or distribute materials, operate programs, or operate courses of instruction directed that are designed to promote or encourage sexual activity, whether homosexual or heterosexual.

The School shall not provide sex education or HIV-prevention education unless that instruction is age appropriate and includes the health benefits of abstinence.

The School shall notify all parents and guardians if it chooses to offer additional instruction in venereal disease or sexual education. Such notification shall include the name of the instructors, vendor name (if applicable), and the name of the curriculum being used.

The School shall not operate a program of contraceptive distribution.

Federal: 20 U.S.C. 7906.

Cross Reference: Policy No. **3210**, General Curriculum Standards.

3843 – Obscene Materials

The School shall not distribute or aid in the distribution of legally obscene materials to minors.

Federal: 20 U.S.C. 7906.

3850 – Displaying Mottos of the United States and Ohio

The official motto of the United State of America is “In God We Trust,” and the official motto of the State of Ohio is “With God, All Things Are Possible.” The School shall accept donated copies of either motto or accept money for the purchase of the copies of the mottoes and shall display the motto in an appropriate manner in a classroom, auditorium, or cafeteria of in the School, provided the motto meets the following conditions:

- the motto is printed on durable, poster-quality paper or displayed in a frame;
- the dimensions of the paper or frame are at least eight and one-half (8 ½) inches by eleven (11) inches;
- the copy contains no words other than the motto and language identifying the motto as the motto of the United States of America or Ohio; and
- the copy contains no images other than appropriate representations of the flag of the United States of America or Ohio.

In lieu of complying with the above conditions, the School’s Governing Authority may adopt, by a majority vote, a resolution describing appropriate design requirements for copies of the official mottoes of the United States of America and Ohio. If a copy of the official motto of the United States of America or Ohio that meets the design requirements described in the Governing Authority's resolution is donated to the School, or if money is donated to the district specifically for the purpose of purchasing such material, the Governing Authority shall accept the donation and display the motto in an appropriate manner in a classroom, auditorium, or cafeteria of the School.

Ohio: R.C. 3313.801; 3326.11.

3860 – Boy Scouts and Patriotic Youth Groups

To the extent the School has a designated open forum or a limited public forum, the School shall not deny equal access, a fair opportunity to meet, or discriminate against any group officially affiliated with the Boy Scouts of America, or any other youth group, listed in Title 36 of the U.S Code as a patriotic society, that wishes to conduct a meeting within that designated open forum or limited public forum.

Federal: 20 U.S.C. 7905.

3870 – Constitution Day

Constitution Day and Citizenship Day commemorate the formation and signing on September 17, 1787, of the Constitution and recognize all who, by coming of age or by naturalization, have become citizens. In recognition of this day, the School shall hold an educational program pertaining to the United States Constitution on September 17 of each year. If September 17 falls on a weekend or holiday, the program will be held the week prior to or after September 17.

Federal: 36 U.S.C. 106.

3890 – Single-Sex Facilities and Accommodations

The School will designate each student restroom, locker room, changing room, or shower room that is accessible by multiple students at the same time, whether located in a school building or located in a facility used by the school for a school-sponsored activity, for the exclusive use by students of the male biological sex only or by students of the female biological sex only.

No member of the female biological sex shall be permitted to use a student restroom, locker room, changing room, or shower room that has been designated by the school for the exclusive use of the male biological sex. No member of the male biological sex shall be permitted to use a student restroom, locker room, changing room, or shower room that has been designated by the school for the exclusive use of the female biological sex.

No member of the female biological sex shall be permitted to share overnight accommodations with a member of the male biological sex, and no member of the male biological sex shall be permitted to share overnight accommodations with a member of the female biological sex.

The School shall not construct, establish, or maintain a multi-occupancy facility that is designated as nongendered, multigendered, or open to all genders, with the exception that nothing shall prohibit the School from constructing, establishing, or maintaining a family facility, as defined herein.

The School may, at its discretion, provide accommodation such as single-occupancy facilities or controlled use of faculty facilities at the request of a student due to special circumstances.

When a restroom, locker room, changing room, or shower room that is designated for the exclusive use of students of one biological sex must temporarily be made available to the exclusive use of another biological sex (e.g., the visiting boys' team using the girls' locker room), the facility must be clearly marked for the duration of the temporary use.

Exceptions

The prohibitions in this policy do not apply to any of the following:

- (1) A child under the age of ten who is being assisted by a parent, guardian, or family member, as well as the parent, guardian, or family member who is assisting the child;
- (2) A person with a disability who is being assisted by another person, as well as the person providing assistance to the person with a disability;
- (3) A school employee whose job duties require the employee to enter a restroom, locker room, changing room, or shower room that is designated for a biological sex that is different than the employee's biological sex;

(4) A person who enters a restroom, locker room, changing room, or shower room that is designated for a biological sex that is different than the person's biological sex because the person reasonably believes the person is responding to a legitimate emergency.

Definitions

The following definitions apply to this policy:

"Biological sex" means the biological indication of male and female, including sex chromosomes, naturally occurring sex hormones, gonads, and non-ambiguous internal and external genitalia present at birth, without regard to an individual's psychological, chosen, or subjective experience of gender. An individual may use the individual's official birth record, as defined in section R.C. 3705.01, to prove biological sex if the birth record was issued at or near the time of the individual's birth.

"Family facility" means a family restroom or shower room that does not have more than one toilet or shower.

"Multi-occupancy facility" means a restroom, locker room, changing room, or shower room that is accessible to multiple individuals at the same time. "Multi-occupancy facility" does not include a family facility.

Ohio: R.C. § 3319.90

Section IV: Student-Parent Handbook

4000 – Introduction

Policy No. 4001

4001 – Welcome

Dear Students and Parents,

On behalf of all the School, I am excited to welcome you as a part of our learning community. The School's Governing Authority, the Administration, Teachers, and Staff have worked hard to develop a strong educational program to allow its students to grow and learn. To assist in accomplishing this goal, the School has created this Student-Parent Handbook.

This Handbook communicates many of the School's policies, and we ask that you read this Handbook to become familiar with the policies rules that directly impact you. While this Handbook covers a wide range issue that we have found to be common, many policies exceed the scope of this handbook. If you have any questions about a policy or would like to see the School's full list of policies, we ask that you contact the School.

Thank you and excited to provide premier STEAM education,

Founder, Chief Administrative Officer

4100 – Overview

Policy No. 4101

4101 – Mission Statement

Community STE(A)M Academy (CSA)-Xenia exists to ignite and sustain a desire in the school family to become responsible 21st-century decision-makers, change agents, and significant contributors to our community, by providing the skills and experiences within a caring, creative, and challenging environment that equips everyone to reach their full potential.

4102 – Philosophy and Vision Statement

Vision:

We envision CSA-Xenia as an exemplary educational community that supports all students to engage their hearts, minds, bodies, and souls to become academically, socially, emotionally, and physically successful and ready for service to local and global communities.

Philosophy:

CSA-Xenia is a formal K-12 independent public school. The entire school will be placed with grade-level teams of teachers and groups of students that will teach all of the classes with all of those groups of students throughout the entire day, allowing for a period-free school day. These teams of teachers will collaborate to instruct interdisciplinary units of study. Each team will have direct access to an Art coach, literacy coach, STEM coach, and Director of Enterprises, ensuring the implementation of the school's mission from K-12 grade. Even though there will be no specific periods, each team of teachers will decide the flow of the day, which may change as needed for each unit, since different projects require different needs for teachers and resources. There will also be specific days and times when “specials” will occur within a team. These specific times, like when the 2nd-grade goes to the YMCA to learn how to swim, those teachers will have preparation time. Also, the teacher's contracts will be crafted that each school day will have time built in with no students to co-plan. The school day will also have advisory time to allow teachers and students to interact for the purpose of advising on academic, social, emotional, or future career or college plans.

It is essential that all staff are part of the main instructional focus of CSA-Xenia, which is learning. Every position has a specific role for providing some part in learning. Even though teachers have a very direct link to the students, each employee should accentuate the community of learners. Teachers understand that teaching is a constant stream of decision-making that if made appropriately increases the opportunity for learning. Every decision made should acknowledge that all students can learn, even if it is not the same way or day.

Student learning is the key to instruction and the goal of education. Learning is the process to make visible deep understanding of usable knowledge, essential skills, and community dispositions through explanation, interpretation, application, analyzation, transferability, empathy, self-awareness, and reflection. As students develop the tools and strategies of learning, their ability to acquire new knowledge, apply it for community needs, and think critically and creatively will improve and encourage lifelong contributions to society.

Developing the STE(A)M curriculum to reflect project- and problem-based learning within a continuum of inquiry processes that develop and increase in rigor as students grow in their ability to acquire and apply knowledge and skills throughout their K-12 education will begin in the initial year of the school

prior to student enrollment. Specifically, during the planning year, the Governing Board will establish a standing Curriculum Committee with a minimum of 1 board member, who will establish the members from the STE(A)M Advisory Group, current CSA-Xenia teaching or non-teaching staff, and Chief Administrative Officer (or designee) to ensure representation of K-12 teachers (with minimum of 1 from K-3, 6-8, and 9-12 to form 3 different sub-committees), higher education faculty and community/industry professionals. This Curriculum Committee will design interdisciplinary project- and problem-based curricula that will align with state academic learning outcomes and form the basis of STEAM Mastery.

Each class will be segmented into competency units of projects of which students will be required to achieve mastery of the content and other performance requirements (e.g., 21st-century skills) in each unit before advancing to the next. Credit will be awarded when mastery is achieved in all segments of the class. Each grade-level/subject class will have structure but offer significant opportunities for students to advance through the units at their own pace. The Curriculum Committee will develop a performance-based plan to determine the specific curricular competencies for each class and will be in full compliance with the State of Ohio's Learning Standards.

To ensure effective design of this innovative curriculum, CSA-Xenia will hire newly formed grades of teacher's months prior to the beginning of the school year, to create unit plans appropriate to the grade-level content, 21st-century skills, and service-learning projects. This early hiring practice will allow the team of teachers to implement the curriculum guide into practical STEAM-education instructional plans. For example, teachers would need to understand the school's resources and physical space to fully utilize them in their units. The school's "creative spaces" require substantial time of preparation for the teachers to effectively use. "Creative spaces" are collaborative areas in the building that school children, teachers, "School to Home" volunteers, college students, graduate students, and community/industry liaisons work in unison on projects initiated by the "Director of Community Outreach & Service-Learning," part of the CSA-Xenia Administrative team. Each of these units will be crafted around the Buck Institute for Education's Gold Standard Approach to PBL's Seven Essential Project Design Elements and the Seven Project Based Teaching Practices.

4103 – Harassment and Sexual Harassment

The School seeks to create and maintain an environment that promotes learning, dignity, and respect. This environment is interfered with when a student or any other individual is harassed or discriminated against. As a result, the School strictly prohibits any type of harassment, sexual harassment, or offensive conduct that has the purpose or effect of interfering with the school setting, creates a threatening; intimidating; hostile; discriminatory, or hostile learning environment, or impedes; disrupts; or hinders the School's educational process.

Harassment takes many forms and includes, but is not limited to, conduct that has the purpose or effect of intimidating, teasing, bullying, threatening, or discriminating against another because of race, ethnicity, color, religion, disability, age, sexuality, and/or all other categories protected by law.

Sexual Harassment includes, but is not limited to unwelcome insults, advancements, requests for sexual favors, verbal and/or physical conduct of a sexual nature.

Harassment of any kind is not tolerated. Any student who is found to have harassed a fellow student or staff member will be subject to discipline as established in the School's policies.

Incidents of harassment of a student or staff member shall be reported to any teacher, the Head Administrator, or the Administrator's Designee. Reports may be made using Form 5080.1, Reporting Acts of Harassment. Upon receiving a report, the report recipient shall promptly inform the Head Administrator, his/her designee, or a Governing Authority Member, who will investigate the report and take the appropriate action.

The School may provide counseling to victim of sexual harassment or sexually related conduct.

Ohio: R.C. 3319.47

Cross Reference: Policy No. **4104**, Policy on Harassment, Intimidation, and Bullying; Policy No. **4105**, Anti-Hazing Policy; Policy No. **4106**, Policy on Gang Activity & Other Prohibited Groups

4104 – Policy on Harassment, Intimidation, and Bullying

The School seeks to create and maintain an environment that promotes learning, dignity, and respect. This environment is interfered with when one is physically or emotionally harmed. The school recognizes the seriousness of harassment, intimidation, or bullying, electronic or otherwise. Therefore, the School prohibits acts of harassment, intimidation, or bullying of any student on school property, on a school bus, or at school-sponsored events. School-sponsored events may be conducted on or off School property and/or on school-related vehicles that are recognized or authorized by the Governing Authority.

This policy was developed in consultation with parents, guardians, school employees, school volunteers, students, and other community members in order to combat acts of harassment, intimidation, or bullying.

Any student found responsible for harassment, intimidation, bullying or “bullying by electronic act” will be subject to discipline including suspension and/or expulsion.

“Harassment, intimidation, or bullying” is defined as either:

- any intentional written, verbal, electronic, or physical act that a student has exhibited toward another particular student more than once and the behavior both: (1) causes mental or physical harm to the other student and (2) is sufficiently severe, persistent, or pervasive that it creates an intimidating, threatening, or abusive educational environment for the other student; or
- violence within a dating relationship.

“Electronic act” or “bullying by electronic act” or “cyber bullying” are defined as an act committed through use of a cellular or mobile telephone, computer, pager, personal communication device, or other electronic communication device.

Promoting Civility

In an effort to promote civility in the school environment, the School seeks to recognize school administrators, faculty, staff, and volunteers that promote civility and stand up to harassment, intimidation, and bullying.

Procedure for Reporting, Investigating & Documenting Harassment and Bullying

The procedure for reporting harassment, intimidation, and bullying varies by one’s affiliation with the School. Students, school personnel, and volunteers *must* report incidents to the Head Administrator or his/her designee. All other individuals are strongly encouraged to report prohibited incidents to the Head Administrator or his/her designee.

Reports may be made in two ways. First, the report may be made using the Form No. **5080.1**, Reporting Acts of Harassment. The Form shall be submitted to any staff member, teacher, or administrator. Upon receiving the report, the staff member must immediately send the report to the Head Administrator. Second, students, parents or guardians, and school personnel may make informal complaints to a school staff member or administrator. Informal complaints must be described with specificity as to the action,

the persons involved, the number of times the alleged conduct occurred, where it occurred, and the individuals targeted. The staff member that receives the informal report must immediately document it using Form No. **5080.1**, Reporting Acts of Harassment. Anonymous complaints may be made as an individual finds necessary.

Upon receiving the report, the Head Administrator or his/her designee shall promptly and thoroughly investigate the alleged incident and then prepare a report documenting the alleged incident. Upon completing the investigation, a determination shall be made. If the investigation substantiates the claim, the School shall notify all custodial parents or guardians involved in the incident. The custodial parent or guardian of any student involved in a confirmed act will be notified and will have access to any written reports pertaining to the confirmed act to the extent permitted by section 3319.321 of the Revised Code and the "Family Educational Rights and Privacy Act of 1974," (20 U.S.C. 1232g), as amended.

On a semiannual basis, the Head Administrator shall provide the Chair of the Governing Authority with a summary of all reported acts and post the summary on its web site, if the district has a web site, to the extent permitted by section 3319.321 of the Revised Code and the "Family Educational Rights and Privacy Act of 1974," (20 U.S.C. 1232g).

Procedure for Responding to and Disciplining Acts

Acts of harassment, intimidation, and bullying, electronic or otherwise, vary in scope and seriousness. As a result, each incident requires its own discipline. The extent of the discipline is to be determined at the sole professional discretion of the Head Administrator. The Head Administrator may consider the following types of intervention for confirmed acts.

Non-disciplinary intervention may be appropriate when acts are identified early or do not require a disciplinary response. Such forms of non-disciplinary intervention include:

- *Counseling.* A student may be counseled as to the definition of harassment, intimidation or bullying, its prohibition and the student's duty to avoid any conduct that could be considered harassing, intimidating, or bullying.
- *Peer Mediation.* Peer mediation may be used when a conflict arises between students or groups. Peer mediation, however, may be inappropriate and should be used cautiously as a power imbalance may make the process intimidating for the victim. This could be true if the victim's communicative skills and assertiveness are low and have been eroded by fear from past intimidation and of future intimidation.

Disciplinary intervention may take a wide number of forms.

- *In and out-of-school Suspension.* Suspensions shall follow the procedure outlined in Policy No. **4530**, Suspension and Expulsion Policy.
- *Expulsion.* Expulsions shall follow the procedure outlined in Policy No. **4530**, Suspension and Expulsion Policy. Expulsions shall be reserved for (1) serious incidents and/or (2) past interventions have not been successful in eliminating prohibited behaviors.

The disciplinary procedure shall not infringe on any student's rights under the First Amendment to the Constitution of the United States. Due process procedures for suspension and expulsion, as provided for under R.C. 3313.66 will be followed.

Deliberately False Reports are Prohibited

Students are prohibited from deliberately making false reports of harassment, intimidation, or bullying. Students that do make a false report shall be subject to the disciplinary procedure set forth in the School's Policy on Student Discipline.

Strategy for Protecting Victims and Prohibiting Retaliation or Additional Harassment

After a report is made, the School prohibits additional acts of harassment, intimidation, or bullying, electronic or otherwise. The Head Administrator shall determine the appropriate consequences and remedial action for those who engage in the aforementioned conduct by following the School's policies and procedures.

To aid in preventing additional acts against victims and retaliatory acts against individuals making reports, the School has adopted the following strategy:

- Provide adult supervision when students are not in a traditional classroom setting including hallway passage, recess, lunch, and bathroom breaks.
- Communicate incidents with school personnel, have school personnel continue to monitor those involved for further signs of offending behavior, and intervene when offending behavior is witnessed.
- For offending students, fairly monitor and supervise.
- For the victim(s), provide daily contact to ensure there have been no further incidents and provide counseling as is determined necessary.
- For those that make reports, continue contact to ensure there have been no further incidents or retaliatory conduct.
- Allow individuals to make an anonymous report.

All School personnel, volunteers, and students shall be individually immune from civil liability in an action from damages arising from reporting an incident as provided by law.

Disseminating this Policy

This policy shall appear in the School's Policy Manual, and in any of the publications that set forth the comprehensive rules, procedures, and standards of conduct for schools and students in the School.

The policy and an explanation of the seriousness of bullying by electronic means shall be made available to students in the School and to their custodial parents or guardians, and once each school year a written statement describing the policy and the consequences for violations of the policy be sent to each student's custodial parent or guardian. The statement may be sent with regular student report cards or may be delivered electronically. Information regarding the policy shall be incorporated into employee training materials.

This policy shall be incorporated into in-service training.

Ohio: R.C. 3313.66, R.C. 3313.666, R.C. 3313.667, R.C. 3319.321.

Cross Reference: Policy No. **4103**, Harassment and Sexual Harassment; Policy No. **4105**, Anti-Hazing Policy; Policy No. **4106**, Policy on Gang Activity & Other Prohibited Groups; Policy No. **4530**, Suspension & Expulsion Policy; Form No. **5070.1**, Reporting Acts of Harassment.

4104.1 – Notification of Bullying Incident Form

Parent of: _____ Student ID: _____ Date: _____

This is to notify you that ORC 3313.666 and the School's Policy on Harassment, Intimidation, and Bullying prohibit bullying or harassment during education programs or activities, on school buses, or through use of data or computer software accessed through computer systems of certain educational institutions. The physical location or time of access of a computer-related incident cannot be raised as a defense in any disciplinary action. "Bullying" is defined as:

Any willful attempt or threat to inflict injury on another person, when accompanied by an apparent present ability to do so;

Any intentional display of force such as would give the victim reason to fear or expect immediate bodily harm; or

Any intentional written, verbal, or physical act, which a reasonable person would perceive as being intended to threaten, harass, or intimidate, that:

Causes another person substantial physical harm or visible bodily harm;

Has the effect of substantially interfering with a student's education;

Is so severe, persistent, or pervasive that it creates an intimidating or threatening education environment; or

Has the effect of substantially disrupting the orderly operation of the school?

This letter is to inform you that your child has been involved in a report of a bullying or harassment incident.

___ A report has been made that alleges your child as a perpetrator of bullying or harassment.

___ A report has been made that alleges your child as a victim of bullying or harassment.

___ A report has been made that alleges your child as a witness, bystander and/or complainant of bullying or harassment.

Please discuss this with your child and call the school if you need further assistance or information.

An investigation into the reported act of bullying has been initiated. You will be notified of the outcome and any actions taken pertaining to your child. Thank you for your attention to this matter.

Sincerely,

Chief Administrative Officer

[Main Table of Contents](#)

Policy Manual of the Governing Authority of CSA-Xenia

Page | 489

4105 – Anti-Hazing Policy

The School seeks to create and maintain a safe educational environment. Hazing is strictly prohibited. The School will actively enforce and monitor this policy. No individual may plan, encourage, or engage in hazing. Additionally, no staff member may permit, condone, or tolerate hazing activities.

Hazing is defined as doing any act or coercing another, including the victim, to do any act of initiation into any student or other organization that causes or creates a substantial risk of causing mental/physical harm to any person.

Hazing is a serious activity that may take place on or off School property. This policy extends to acts of hazing regardless of where the hazing occurs so long as the hazing is in any way connected to the activities or incidents that have occurred on property owned, used or controlled by the School.

Hazing still occurs even if the individual consents to, permits, or assumes the risk of the activities performed.

The School will actively enforce and monitor this policy. The School requires School employees to be vigilant and take the following steps regarding incidents. Upon learning of hazing, planned hazing, or possible events that may include hazing; staff members are required to inform involved individuals that hazing is prohibited, end all acts or planned acts immediately, and report the incident to the Head Administrator or his/her designee immediately.

Individuals that violate this policy may be subject to discipline and to civil and criminal penalties. Students that engage in hazing will be subject to discipline up to and including permanent exclusion.

Ohio: R.C. 2307.44, 2903.31, 3313.661.

Cross Reference: Policy No. **4103**, Harassment and Sexual Harassment; Policy No. **4104**, Policy on Harassment, Intimidation and Bullying; Policy No. **4106**, Policy on Gang Activity & Other Prohibited Groups.

4106 – Policy on Gang Activity & Other Prohibited Groups

The School seeks to create and maintain a safe learning environment. This environment is threatened and interferes with the presence of gangs, gang activity, and other prohibited groups.

School administrators will monitor the School environment, and students violating this policy will be subject to appropriate disciplinary action, which may include suspension and/or expulsion.

Gangs and Gang Activity

The School will not tolerate gangs. The School prohibits gangs or gang activities while at the School, in school buildings, school buses, or school-sponsored events.

A “gang” is defined as any identifiable group, organization, or association of three or more persons that exists without the School’s authorization, which engages in gang activity; anti-social behavior; criminal behavior; or other activities that disrupts the School environment, and possesses an identifiable name, sign, or symbol.

A “gang activity” is defined to occur when a person commits, attempts to commit, conspires, has been complicit in the commission of, or solicited; coerced; or intimidated another into an offense of violence, a felony, or other criminal conduct prohibited under R.C. 2923.41.

The School further prohibits the use of symbols, hand signals, graffiti, apparel or manner of grooming which indicates or implies membership or affiliation with a gang or gang activity.

Other Prohibited Groups

The School prohibits fraternities, sororities, and secret societies as described by law.

Ohio: R.C. 2923.41.

Cross Reference: Policy No. **4103**, Harassment and Sexual Harassment; Policy No. **4104**, Policy on Harassment, Intimidation and Bullying; Policy No. **4105**, Anti-Hazing Policy; Policy No. **4620**, Student Groups & Activities.

4200 – Attendance

Policy No. 4201

4201 – Attendance, Absence & Truancy

The School's educational program requires students to be continuously present so the student may receive instruction and actively participate in the educational process. In accordance with Ohio law, the School requires attendance of all students enrolled in the School during the days and hours the School is in session. To be considered in attendance, a student must be either within the School facilities or in place where School is in session by the School's authority.

In developing this policy, the School has consulted with the Judge of the Juvenile Court, parents, guardians, custodians, students, and all appropriate state and local agencies.

Parental Responsibility & Procedure for Reporting Absences

A student's parents or guardians are primarily responsible for a student's attendance at school. Should a student be absent, the student's parent or guardian is required to notify the School on the day the student is absent unless previous notification has been given in accordance with the School procedure regarding excused absence.

In case a student is absent, the procedure for reporting absences should be as follows:

The parent must contact the School within the first hour that the School is in session to report the student's absence via attendance@communitysteam.com or call 937-800-2720.

If a parent fails to contact the School, school personnel must make a good faith attempt to contact within 120 minutes of the start of the school day, the parent/guardian of a student who is absent from school without legitimate excuse.

The School must make at least one good faith attempt to contact the parent, guardian, or caretaker.

A good faith attempt shall include, but not be limited to, contacting the parent by:

- (1) An actual or automated telephone call;
- (2) A notification sent through the school's automated student information system;
- (3) A text message;
- (4) An email;
- (5) An actual visit to the student's residence; or
- (6) Any other method adopted by resolution of the School's governing authority.

If an automated calling system is used, it must include verification that each call is placed, and whether the call was answered by the intended recipient or the system leaves a voicemail containing notice of the student's absence.

The notification requirement does not apply to students participating in College Credit Plus, or other "off-campus activities" as well as students receiving home-based, online, or Internet- or computer-based instruction.

To facilitate policy, parents or guardians must provide the School with their current home, work, and/or cellular telephone numbers; home address; and emergency telephone numbers.

Absences

Excused Absences. The Governing Authority recognizes the following absences as excused:

- the student's physical or mental illness;
- instruction at home from a person qualified to teach the student due to a child's disability;
- illness in the family necessitating the student's presence;
- serious illness or death in the family;
- observing religious holidays and consistent with the student's truly held beliefs;
- medical or dental appointment;
- college visitation;
- quarantine;
- required court appearance;
- inability of the parent to employ help in the parent's family business;
- farm work of the parent or guardian at necessary times;
- up to three pre-approved religious expression days (see Policy No. **4204**); or
- emergency or other circumstances the School determines reasonable.

If the student is absent or will be absent for one of the above reasons, the student must provide a written note/email upon returning/prior to leaving the School or the absence will be considered unexcused. The statement must be from a parent and explain the cause for absence. At his or her sole discretion, the Head Administrator or his/her designee may investigate each individual absence. A student, whose extended absence is due to a medically-documented physical or mental impairment, will not be disciplined. As provided by law, such students may be entitled to receive an education tailored to their individual needs or abilities.

Limited Excuse Absence. Students absent solely to participate in an out-of-state School-approved activity shall constitute a limited excused absence. Limited excuse absences are to be treated as an excused absence provided: (1) the absences are limited to a maximum of twenty-four hours per school year, (2) the student must complete any missed classroom assignments, (3) and if the activity will cause the student to be absent for four or more consecutive school days, teachers must accompany the student for instructional assistance.

Unexcused Absence. A student's absence is unexcused if it is not an excused or limited excused absence. A student who is repeatedly has unexcused absences will be subject to disciplinary action.

Tardiness. A student is tardy when a student is more than five minutes late for school or is late for the start of class. If student misses more than half a class, the student shall be considered absent for the class. A student who is repeatedly tardy will be subject to disciplinary action.

Truancy

No student of compulsory school age shall be habitually truant.

Habitual Truancy – a student is absent without a legitimate excuse for any of the following:

- thirty (30) or more consecutive school hours, or

- forty-two (42) or more school hours in one (1) month, or
- seventy-two (72) or more school hours in one (1) year.

Notification and Absence Intervention Team

The School's Attendance Officer must notify a child's parent, guardian or custodian if the child has "excessive absences" which shall be defined as *nonmedical* excused absences and unexcused absences with or without legitimate excuse for 38+ hours in one school month or 65+ hours in a school year. This notice shall be made in writing within 7 days after the date of the absence that triggered the notice. A "medical excused absence" shall include:

- (1) personal illness;
- (2) illness in the family necessitating the student's presence;
- (3) quarantine of the home;
- (4) death in the family;
- (5) appointment with a health care provider (doctor, dentist, orthodontist, mental health provider, etc.); or
- (6) on a case-by-case basis, any other set of circumstances the School deems to be a good and sufficient cause for medical absence from school.

A medical excuse for personal illness or health care provider appointment will be accepted in the form of doctor/provider's note within five school days of the absence, or documented parent call-in on the day of the absence due to illness. A student may have up to ten (10) medically excused absences without a doctor's note, but with communication from a parent/guardian.

If the student continues to be truant after the notification and surpasses the threshold for habitual truancy, the School must assign the student to an absence intervention team within 10 days after the absences surpass those for habitual truancy. This team must develop an intervention plan for the student to reduce or eliminate further absences within 14 school days after the student is assigned to the team. Absence intervention plans incorporate academic and non-academic supports to help the student and remove barriers to regular attendance. They shall also include counseling for those students classified as a habitual truant.

The team must make at least three (3) meaningful good faith attempts to secure participation in this process and any recommended truancy prevention mediation programs from the student's parent, guardian or custodian.

A good faith attempt shall include, but not be limited to, contacting the parent by:

- (1) An actual or automated telephone call;
- (2) A notification sent through the school's automated student information system;
- (3) A text message;
- (4) An email;
- (5) An actual visit to the student's residence; or
- (6) Any other method adopted by resolution of the School's governing authority.

The parent is permitted to participate through a designee. If the parent fails to respond or participate, then the School is required to investigate as to whether the failure to response trigger mandatory reporting to JFS and the team must develop the plan without parent participation.

The School has the discretion to extend the intervention plan or process over the summer months.

Issuance of Age and Schooling Certificates/Work Permits

Student who are at least 16 years of age may be excused from School attendance if the Head Administrator or his/her designee has issued the proper age and schooling certificates.

Age and schooling certificates are required for the employment of minors in most occupations, the most notable exceptions being employment on a family farm or any employment by one's parents.

Age and schooling certificates are not required for minors aged sixteen or seventeen who are employed during the summer vacation months.

All age and schooling certificates must be filed electronically with the Director of Commerce. The Head Administrator or his/her designee shall not issue or file an age and schooling certificate until certain documentation has been received, including a written pledge or promise from the employer indicating that the child will be lawfully employed, the child's school record, evidence of the child's age, and a physical fitness certificate.

Records relating to the issuance and denial of age and school certificates must be kept in the office issuing them. No records need be kept, however, in the case of certificates denied to children who are immediately determined to be of insufficient age.

Children who are granted age and schooling certificates must be enrolled in a competency-based instructional program to earn a high school diploma in accordance with rules adopted by the State Board of Education.

The Head Administrator or his/her designee may revoke an age and schooling certificate on account of noncompliance with any legal requirements, the physical condition of the child, the failure of the child to attend part-time classes (if required), or other sufficient cause.

Disciplinary Consequences for Truancy

On the 61st day after implementing the absence intervention plan, the Attendance Officer must file a complaint in the juvenile court if all of the following apply:

1. The student is absent without excuse for 30+ consecutive hours, 42+ hours in a school month or 72+ hours in a school year;
2. The School has made meaningful attempts to reengage through the absence intervention plan and any offered alternatives to adjudication;
3. The student has refused to participate in or failed to make satisfactory progress on the plan, as determined by the absence intervention team, or any offered alternative adjudication.

A complaint regarding a habitual truant where the parent, guardian, or custodian fails to get the child to attend school must be file jointly against the student and the parent, guardian, or custodian. If the student is absent without excuse for 30+ consecutive hours or 42+ in a school month but the absence intervention team has determined that the student has made substantial progress on the absence intervention plan, the Attendance Officer is not required to file a complaint.

The School shall also make notification to the registrar of motor vehicles pursuant to ORC 3321.13, if applicable, and shall also initiate legal action under ORC 2919.222, 3321.20, and/or 3321.38, if applicable to the student's situation.

Pursuant to the Ohio Revised Code, the School shall not suspend, expel, or remove a student from school solely on the basis of the student's absences from school without legitimate excuse.

A student who is habitually truant will be excused for the absences if it is determined that: (1) the student was enrolled in another school, or (2) the student's absence was excused by law or this policy, or (3) the student has received an age and schooling certificate.

Attendance Officer Responsibilities

The Attendance Officer responsibilities shall be held by the Head Administrator or his/her designee. The School's Attendance Officer shall investigate all nonattendance, shall be vested with police powers, may serve warrants, and may enter workshops; factories; stores; and all other places where children are employed and do whatever is necessary in the way of investigation or otherwise to enforce the laws relating to compulsory education and the employment of minors. The Attendance Officer may also take into custody any youth of compulsory school age not legally employed on an age and schooling certificate who is not attending school and shall conduct such youth to the school he has been attending or should rightfully attend.

Withdrawal

By law, a student will be withdrawn automatically if the student fails to participate in seventy-two (72) consecutive hours of learning opportunities and the absence is not excused pursuant to O.R.C. 3314.03(A)(6)(b). Upon a student's withdrawal pursuant to this provision, the School shall automatically notify the student's school district of residence pursuant to any applicable Ohio laws, rules and regulations.

A student may be voluntarily withdrawn if a parent submits a written Voluntary Withdrawal notice to the Head Administrator.

Reporting Requirements

The School must report to the Ohio Department of Education any of the following occurrences:

1. When student is absent 38+ hours in a school month or 65+ hours in a school year and the School sends notice to the parent, guardian or custodian;
2. When the child has been absent without legitimate excuse the number of hours to classify as a habitual truant;
3. When the child is adjudicated an unruly child for being habitual truant violates the court order regarding that adjudication; and
4. When an absence intervention plan has been implemented for a child.

Ohio: R.C. 2152.02, R.C. 2152.011, R.C. 3313.668, R.C. 3313.672, R.C. 3326.22, R.C.3321, et seq., R.C. 3331.01, R.C. 3320.04; O.A.C. 3301-69-02.

Cross Reference: Policy No. **3820**, Resolving Issues with Attendance; Policy No. **4203**, Emergency School Closings & Calamity Days; Policy No. **3540**, Promotion and Retention of Students, Policy No. **4204**, Religious Expression Days and Religious Accommodations

Updated September 2, 2025

4201.1 – Attendance Tracking during the COVID-19-Related State of Emergency

The School may, due to the COVID-19 pandemic, provide a variety of instruction models, including remote and hybrid models, consistent with its Remote Learning Plan submitted to the Ohio Department of Education

Attendance at school remains key to student achievement. Students are expected to attend school regularly under remote or hybrid learning models, and parents/ guardians must be an instrumental support in this process.

The School will keep track of and report attendance in hourly increments and retain documentation of excused and unexcused absences. Excused absences are defined in Policy No. **4201**.

In a remote/hybrid learning model, a medical excuse for personal illness or health care provider appointment will be accepted in the form of doctor/provider's note within five school days of the absence, or documented parent call-in on the day of the absence due to illness. A student may have up to *ten (10)* medically excused absences without a doctor's note, but with a phone call from a parent/guardian. A medical excuse will be accepted through this process for students being educated either in-person or remotely while this policy is in effect. This process will be extended beyond 10 days if the student/student's household is in quarantine due to COVID-19 or if the student is experiencing symptoms of COVID-19.

Student attendance in teacher-led remote learning (synchronous web-based instruction) shall be tracked in the same manner as hourly, in-person instruction. Teachers will determine hourly attendance by evidence of student login and logoff data.

Teachers will further verify meaningful attendance in a method selected by the teacher, such as ungraded surveys or quizzes, random questioning of students during the online class, or other similar means.

If there is no evidence the student participated or engaged in any way in a remote learning session, the student should be marked with an absence for the hour(s) for that remote learning session.

Parents are encouraged to schedule appointments with health care providers at times that will not conflict with scheduled teacher-led remote learning (synchronous web-based instruction), to the extent possible. In addition to medical excuses, absences from teacher-led remote learning (synchronous web-based instruction) may be considered excused under the following circumstances, with documented notice from a parent/guardian:

- temporary internet outage for individual students or households;
- unexpected technical difficulties for individual students or households, such as password resets or software upgrades occurring during a teacher-led remote learning lesson;
- malfunction of a School-owned device for which the District is providing technical assistance, repair, or replacement;
- temporary computer malfunction.

Attendance in self-directed remote learning (asynchronous learning) shall be tracked by evidence of participation, which may include, but is not limited to:

Daily logins to learning management systems;

Daily interactions with the teacher to acknowledge attendance, which may include, but are not limited to, messages, emails, telephone calls, video chats or other formats that enable teachers to engage with students; and

Assignment completion. The teacher will determine the number of hours a typical student would take to complete an assignment and report those hours of attendance when the assignment is completed. As appropriate, the regular education teacher will consult the student's intervention specialist to determine the length of time to complete an assignment. [**NOTE: Student IEPs and Section 504 plans may be updated to address attendance accommodations as appropriate.**]

4203 – Emergency School Closings & Calamity Days

The Head Administrator or his/her designee shall make all decisions regarding calamity days that require the School to be closed. Closings may be made because of hazardous weather, disease epidemic, utility failure, or other conditions that jeopardize the health and safety of those affiliated with the School. As deemed necessary, the Head Administrator may close the School, delay the opening of the School, or dismiss School early. Should a calamity day be declared, School-related activities will be canceled.

Cross Reference: Policy No. **3820**, Resolving Issues with Attendance; Policy No. **4201**, Attendance, Absence, & Truancy; Policy No. **4630** School-Sponsored Trips.

4204 – Religious Expression Days and Religious Accommodations

The School will reasonably accommodate the sincerely held religious beliefs and practices of individual students with regard to all examinations or other academic requirements and absences for reasons of faith or religious or spiritual belief system.

Absences

Any student may be absent for up to three religious-expression days each school year to take holidays for reasons of faith or religious or spiritual belief system or to participate in organized activities conducted under the auspices of a religious denomination, church, or other religious or spiritual organization. No academic penalty will be imposed as a result of a student being absent as permitted in this policy. Students may participate in interscholastic athletics or other extracurricular activities on days in which the student is otherwise absent for a religious-expression day.

Academic Accommodations

In order to be provided with alternative accommodations with regard to examinations and other academic requirements missed due to a religious expression day, the parent or guardian of a student must provide the Head Administrator with written notice of up to three specific dates for which alternative accommodations are requested not later than fourteen school days after the first day of school, or fourteen school days after the date of enrollment for a student who transfers to or enrolls in the district after the first day of school.

The Head Administrator shall approve not more than three written requests per school year from a student's parent or guardian for an excused religious-expression day absence. The Head Administrator shall approve such requests without inquiry into the sincerity of a student's religious or spiritual belief system; however, the Head Administrator may verify a request for a religious expression day by contacting the parent or guardian whose signature appears on the request. If a parent or guardian disputes having signed such a request, the Head Administrator may deny the request.

Upon approval of a religious expression day absence under this policy, the Head Administrator shall require the appropriate classroom teacher or teachers to schedule a time and date for an alternative examination or other academic requirement if the approved student absence creates a conflict, which may be before or after the time and date the examination or other academic requirement was originally scheduled.

Religious Holidays

The following is a **non-exhaustive** list of major religious holidays, festivals, and religious observations for which an excused absence under this policy shall not be unreasonably withheld or denied for the 2024-2025 and 2025-2026 school years:

NOTE: This policy and the list of holidays must be posted prominently on the School's website.]

<u>Judaism</u>	Pesach (Passover)
Tu BiShvat	Yorn HaSho'ah
Purim	Yorn Ha'Azmout
Yorn HaShoah	Shavuot
Lag B'Omer	Tisha B'Av
	Rosh Hashanah

Yorn Kippur
 Sukkot
 Shemini
 Sim chat Torah
 Hanukkah
Christianity
 Feast of Mary Mother of God
 Christmas - Eastern Orthodox
 Epiphany
 Ash Wednesday
 Lent
 Orthodox Lent
 Feast of the Annunciation
 Palm Sunday
 Holy Thursday
 Good Friday
 Easter
 Pascha/ Easter (Eastern Orthodox)
 Feast of the Ascension
 Pentecost
 Trinity Sunday
 Corpus Christi Sunday
 Solemnity of the Sacred Heart of Jesus
 Nativity of St. John the Baptist
 Feast of Saints Peter and Paul
 Feast of St. Ignatius Loyola
 Feast of the Assumption of Mary
 All Saints Day
 All Souls Day
 Dia de los Muertos
 Feast of Christ the King
 Advent Season
 Feast of St. Francis Xavier
 Feast of the Immaculate Conception
 Feast of Our Lady of Guadalupe
 Christmas
Islam
 Sabe-Miraj or Lailatul Me'raj
 Sabe Ba rat
 Ramadan
 Lailatul Qadr
 Eid al-Fitr
 Day of Arafa / Haj/Waqf of Arafa
 Eid-ul Adha
 Islamic New Year

Ashura
 Mawlid-al-Nabi
Hinduism
 Maha Shivaratri
 Shri Ramakrishna Jayanti
 Holi
 Rama Navami
 Mahavir-Jayanti
 Raksha Bandhan
 Krishna Janmashtami
 Navaratri
 Diwali
Buddhism
 Bodhi Day
 Lunar New Year
 Magha Puja Day
 Vesak
 Buddha Day/Visakha Puja
 Diwali
Sikh
 Birthday of Guru Go bind Singh Sahib
 Mahavir-Jayanti
 Vaisakhi
 Martyrdom of Guru Arjan Dev Sahib
 Diwali
 Martyrdom of Guru Tegh Bahadur Sahib
 Birthday of Guru Nanak Dev Sahib
Bahá'í
 'Ala' (Loftiness)
 Naw-Ruz
 Ridvan
 Declaration of the Bab
 Ascension of Baha'u'llah
 Martyrdom of the Bab
 Birth of the Bab
 Birth of Bahauallah
 Ascension of 'Abdu'l-Baha
Shinto
 Gantan-sai
 Setsubum-sai

Other
 Kwanzaa
 Lunar New Year
Grievances

A student, parent, or guardian who disagrees with the implementation of this policy may notify the Head Administrator of any grievance by electronic mail within 3 days of receiving a decision concerning a religious expression day request or academic accommodation with which the student, parent, or guardian disagrees. The Head Administrator will review the grievance and make a final decision regarding the request within 3 days of receiving the grievance.

For further information about the policy, or to make notifications or requests under the policy, contact Head Administrator, at office@communitysteam.com.

Ohio: R.C. 3320.04

Cross Reference: Policy No. **4201**, Attendance, Absence & Truancy.

4300 – Graduation

Policy No. 4301

4301 – Graduation Requirements

currently required to meet the given State of Ohio graduation requirements. Additionally, Community STEAM Academy - Xenia requires each student to choose a journey pathway to demonstrate readiness for college or career upon completion of high school.

Specific Graduation and Diploma Requirements

Students in the classes of 2023 and beyond (those who entered grade 9 on or after July 1, 2019) are required to meet the minimum State of Ohio graduation requirements. Additionally, Community STEAM Academy – Xenia requires each student to choose a journey pathway to demonstrate readiness for college or career upon completion of high school.

These combined graduation requirements consist of **three** key components (all components must be satisfied):

Course Completion: Students will satisfy Ohio’s curriculum requirements and any additional Community STEAM Academy requirements. Students will complete the state minimum 20 units of coursework, with specific units required in each content area. However, additional units of study may be required for various pathways culminating in a potential number of 22-26 total credits earned.

General Course Requirements	State Minimum
English Language Arts CSA ELA Course Options: • Integrated English Language Arts I • Integrated English Language Arts II (required EOC) • Integrated English Language Arts III • Integrated English Language Arts IV • College Credit Plus English I • College Credit Plus English II	4.0 - 5.0 credits (Must take each year of attendance in high school)

Mathematics CSA Math Course Options • Integrated Math I: Algebra I with introductory Geometry and Statistics/Probability (required EOC) • Integrated Math II: Geometry with introductory Algebra II and Statistics/Probability (required EOC) • Integrated Math III: Algebra II with Statistics/Probability and Trigonometry • Advanced Math Options: Integrated Math IV/Pre-Calculus; College Credit Plus Pre- Calculus and/or Calculus; Probability and Statistics	4.0 credits
Science CSA Science Course Options: • Integrated Life Science/Biology (EOC required) • Integrated Physical Science • Advanced Science (possibly options – will depend on licensed instructors available): Chemistry, Physics, Advanced Biology or other life science; Astronomy, Physical geology or other earth or space science	3.0 credits
Social Studies/History CSA Science Course Options: • American History –1.0 credit (EOC required) • Modern World History – 1.0 credit • American Government – 0.5 credit (EOC required) Advanced Social Studies/History options – College Credit Plus	3.0 credits
World Language While a world language is not required by the State of Ohio for graduation, CSA-Xenia students who are college bound should complete at least two years of study in the same world language in sequential levels.	0 credits for Ohio graduation NOTE: 2-3 credits for college-bound students
Health	0.5 credits
Physical Education Dynamic Movement is a key component of the curriculum at Community STEAM Academy – Xenia. The State of Ohio requires that all high school students complete 0.5 credits in physical education. Community STEAM Academy-Xenia will exempt students who participate in interscholastic athletics, marching band, or cheerleading for two full seasons or an approved Junior Reserve Officer Training Corps (JROTC) program for two years from the physical education requirement. Students seeking the PE waiver option should alert the CSA Advising office of their intent and then finalize the request with documentation required for the waiver prior to the end of the sophomore year.	0.5 credits

Financial Literacy Beginning with students who started 9 th grade after July 1, 2022, 0.5 credits of financial literacy must be completed to graduate per the State of Ohio. The one-half credit of financial literacy can substitute for a one-half credit elective or a one-half credit of math required for graduation. The one-half credit of math cannot be Algebra 1 (or Math 1 if using an integrated approach), Geometry (or Math 2 if using an integrated approach), Advanced Computer Science or Algebra 2. Financial literacy cannot count for social studies credit.	0.5 credits
Fine/Performing Arts Elective (must complete 2 semesters)	1.0 credits
Electives The five units of electives may consist of one or any combination of foreign language, fine arts, business, career-technical education, family and consumer sciences, technology (which may include computer science), or English language arts, mathematics, science, or social studies courses not otherwise required	5.0 credits

NOTE THE FOLLOWING:

- Schools are still required to administer all the high school end-of- course assessments in English Language Arts II, Algebra I (or Integrated Math I), Geometry (or integrated Math II), Biology, American History, and American Government).
- High school credits earned by students below the ninth grade may be granted toward high school graduation requirements IF taught by a properly licensed instructor and specifically designated by the Board as meeting the high school curriculum standards and requirements.
- Units earned in English language arts, mathematics, science, and social studies that are delivered through integrated academic and technical instruction (typically in a vocational school setting) will also satisfy the unit requirements set forth above.
- For students who choose to take advanced computer science in lieu of Algebra II as permitted by law, the School shall communicate to those students that some institutions of higher education may require algebra II for the purpose of college admission. Also, the parent, guardian, or legal custodian of each student who chooses to take advanced computer science in lieu of Algebra II shall sign and submit to the School a document containing a statement acknowledging that not taking Algebra II may have an adverse effect on college admission decisions.
- Transferring students who previously attended an Ohio school complying with state minimum standards or an out-of-state school approved by the Department of Education must be placed at a grade level that corresponds to their previous placement, with full recognition for graduation units of credit previously earned. However, the specific academic subject grades from the previous school shall be accepted and the School shall translate the specific academic grades received at the previous school whenever this is deemed necessary due to the use of different grading scales or methodologies.
- Students transferring from another state, after receiving home instruction, or from a non-chartered, nontax-supported school after the start of the student's twelfth grade year and fails to attain a competency score on the Algebra I or English language arts II end-of-course examination shall not be required to retake the applicable examination prior to demonstrating competency in the failed subject area under the options established by Ohio

law.

- There are two major “flexibility” concepts for course development and completion: 1. a broad authority given to schools to integrate course content from different academic subject areas into a single course, including a career-technical education course, for which the student may then receive graduation credits in multiple subject areas. 2. the authority to grant units of high school credits to students who demonstrate subject area competency through work-based learning experiences, internships, or cooperative education. Boards of education wishing to grant credit for subject area competencies demonstrated in these ways may do (beginning with the 2018– 19 school year) in accordance with a framework developed by the Department of Education.

1. **Demonstrate Competency:** Students can demonstrate competency by earning a passing score on Ohio’s high school Algebra I (or Integrated Math I) and English language arts II tests.

Students who do not pass the test will be offered additional support and **MUST retake the test at least once**. If students have not met the competency score on these tests, there are four additional ways to show competency.

Option 1	Option 2	Option 3	Option 4	Option 5
Algebra I and ELA II EOC scores of 684	Career Readiness	College Credit Plus	Military Enlistment	ACT or SAT non-remediated scores

Option 1. To demonstrate competency using Ohio’s state tests, students must earn a score of 684 or above on both the Algebra I (or Integrated Math I) and English language arts II end-of-course exams. Students who do not pass the test will be offered additional support and **MUST retake the test at least once before selecting from the additional options to demonstrate competency**.

Option 2. To demonstrate competency by Career Readiness, students must demonstrate two career-focused activities, at least one must be a foundational option.

- Foundational options: 1. Cumulative score of proficient on 3 or more WebXams. 2. Earn 12-points of industry credential. 3. Complete a registered pre-apprenticeship, an apprenticeship, or show evidence of acceptance into an approved apprenticeship. 4. State-issued license for a practice in a vocation.
- Supporting options: 1. Work-Based Learning. 2. Earn the workforce readiness score on the Workkeys. 3. Earn the OhioMeansJobs Readiness Seal

Option 3. To demonstrate competency through the College Credit Plus Program, students must earn credit in a non-remedial math or English course for the subject area not passed.

Option 4. To demonstrate competency through Military Enlistment, students must provide evidence of enlistment in a branch of the armed forces to demonstrate competency.

Option 5. To demonstrate competency using the ACT or SAT, students must obtain a remediation-free score in the math and/ or English subject area on the ACT or SAT. To demonstrate competency in English, a student must be remediation-free in the subjects of English and reading on the ACT or SAT

Readiness: Students can meet the readiness requirement by earning two diploma seals.

In alignment with their graduation plan, students should be choosing seals that align with their goals and interests. These seals give students the chance to demonstrate academic, technical and professional skills and knowledge that align to their passions, interests and their post-high school pathway.

Of the two seals students are required to earn, at least one of the two must be State- Defined.

Ohio's State-Defined Seal Options

- OhioMeansJobs Readiness Seal (State-Defined)
- Industry-Recognized Credential Seal (State-Defined)
- College-Ready Seal (State-Defined)
- Military Enlistment Seal (State-Defined)
- Citizenship Seal (State-Defined)
- Science Seal (State-Defined)
- Honors Diploma Seal (State-Defined)
- Seal of Biliteracy (State-Defined)
- Technology Seal (State-Defined)

Locally-Defined Seals (Community STEAM Academy – Xenia)

- Community Service Seal (Locally-Defined)
- Fine and Performing Arts Seal (Locally-Defined)
- Student Engagement Seal (Locally-Defined)

For additional State of Ohio Graduation Requirements, please see:
education.ohio.gov/graduation

College Preparatory Considerations

To prepare yourself for college-level work, follow a course of study in high school that challenges YOU! This will look different for every student. So, play to your strengths and select advanced courses and electives that fulfill your educational goals and feed your personal intellectual curiosity.

Colleges review your high school transcript against the types of courses Community STEAM Academy offers by using our school profile, but this does not mean you need to take every single advanced course or College Credit Plus (CCP) course we offer. Conversely, colleges also don't like to see that a student has taken an "academic vacation," especially in the senior year. Balance is key. Please note the prerequisite requirements for the advanced and College-Credit Plus courses.

Remember, many colleges, especially those who use a "holistic" review, want to see that you're more than just a strong academic student. They desire to get a sense of who you are by how you manage your time and priorities with other enriching activities (e.g. sports, fine arts, leadership, clubs, part-time jobs, community service, or summer internships). These activities are an important part of your own

journey to self-discovery of your skills, abilities, and interests, and they tell colleges who you are and what is most important to you.

Career Technology Program Planning Considerations

Taking solid, well-sequenced, and purposeful career technology courses within specific pathways is a great way to develop skills for both the workforce and college. CTE programs provide technical training and hands-on learning experiences for students to implement what they are learning in core academic courses as well as develop dispositional traits both employers and college communities value. CTE programs in the State of Ohio are designed to prepare students for careers in pathways and programs within one of the 16 different career fields. CTE programs are designed to help students meet both academic (mathematics, English Language Arts, science, etc.) and career field technical content standards with real-work experience. At Community STEAM Academy – Xenia, high school students taking the VT level CTE courses must take the related WebXam in order to earn the industry credential.

EXPLORATION (9): Journey Exploratory Courses

Career Connections – all Freshmen take this course.

Freshmen will also select an exploratory CTE course (VM) offered from the following workforce skills pathways:

- Manufacturing Operations
- Engineering and Design
- Robotics
- Biomedical Technology
- Visual Design and Imaging
- Performing Arts
- Media Arts

ENTERPRISE (10-12): Journey Pathways

Students must finalize the selection of their CTE Journey Pathway prior to the start of the junior year. The following are samples of pathways CSA-Xenia students may pursue:

- [Performing Arts](#)
- [Visual Design](#)
- Engineering Design ([Electrical Engineering](#); [Mechanical Engineering](#))
- Manufacturing Operations ([Industrial Engineering](#); [Manufacturing Systems](#))
- Biomedical Technology ([Biomedical Engineer](#); [Biotechnology](#))

Ohio End-of-Course Exams/College-Readiness Tests Sequence at CSA-Xenia

Per the State of Ohio requires high school students to complete six (6) end-of-course examinations. Two of the six require a student to demonstrate competency with a minimum score of 684. These two-course examination are in Integrated Math I and English Language Arts II.

Also, the State of Ohio requires all juniors to complete a school-day ACT or SAT test. CSA-Xenia will offer each test in alternating years. College-bound students should be prepared to also take/retake the ACT

or SAT on their own per guidance provided from the CSA-Xenia Advisory office during graduation planning sessions.

Additionally, Community STEAM Academy will provide PSAT testing for all sophomores and select juniors. PSAT Testing is primarily used for college readiness, College Credit Plus qualification, and identification of potential National Merit Scholarship candidates.

The following is the planned sequence of testing for Community STEAM Academy students:

- **Spring of Freshman Year:** Integrated Math I or II and American History
- **Fall of Sophomore Year:** Biology (Integrated Life Sciences)
- **Spring of Sophomore Year:** English Language Arts II and Integrated Math II; PSAT for Sophomores
- **Fall of Junior Year:** PSAT for Juniors
- **Spring of Junior Year:** American Government; School Day ACT/SAT (January)
- **Summer/Fall Senior Year:** ACT/SAT testing as needed

NOTE: Remediation for Integrated Math I and English Language Arts II end-of-course exams is required along.

Community STEAM Academy – Xenia: Service Learning, Job Shadowing, and Internships

As a result of the mission of Community STEAM Academy, graduates will amass hundreds of hours of service learning in addition to internship hours.

- Service Learning - embedded in CSA projects for K12 students
- Job Shadowing - coordinated through CSA community partners for grades 6-12
- Internships - student initiated and applied for in grades 11-12

Embedded in the CSA-Xenia project-based learning, faculty and administration will create a culture of community within the student's learning through an emphasis on collaboration and personalizing learning. The faculty, in designing and instructing interdisciplinary units of study, will link projects with companies or institutions and the academy with workplace facilities and local businesses which will provide multiple service learning opportunities for all grade levels.

Additionally, as students enter the high school, there will be required hours of job shadowing and internships in various types of businesses and in varying degrees of intensity not only to allow the students to determine which career path aligns with their interests and passions but also will develop valuable workforce skills. Emphasis on **building community** through local and global perspectives to engage students in **culturally responsive** "Pay-it Forward" units of study and internships to equip them to address challenges that often result from a misunderstandings in our culture and the workplace will be provided.

The Community Enterprise Director will link projects that are issues/concerns/needs within the local community and with local community experts.

College Credit Plus Considerations

College Credit Plus Timeline

- **January:** Complete School Counseling Requirement and attend the CSA-Xenia College Credit Plus Information Session
- **Feb. 1 - April 1:** Submit Letter of Intent

- **February-April:** Determine the admission criteria for your participating college and prepare any required documents
- **April 1-May 1:** Apply for Admission to your participating college
- Complete details may be found at the College Credit Plus website - [College Credit Plus | Home | The Ohio Department of Higher Education](#)

College Credit Plus students may be enrolled in up to 30 credits per year, which includes high school courses. Calculation: $30 - (\text{HS units} \times 3) = \text{max CCP credit hours}$. The maximum number of college credits a student can complete while participating in the program is 120.

College Credit Plus students (and their parents) should also be aware that once enrolled in a college program, the Family Educational Rights and Privacy Act (FERPA) takes effect. Unless a FERPA waiver is signed by the student, the college will not discuss the student's academic progress with parents nor are parents granted permission to student academic information. It should also be noted that students participating in college credit plus have just begun their college transcript, so great care should be taken to make balanced decisions about the number and level of difficulty of the courses taken.

Parents, please note: "The subject matter of a course enrolled in under the college credit plus program may include mature subject matter or materials, including those of a graphic, explicit, violent, or sexual nature, that will not be modified based upon college credit plus enrollee participation regardless of where course instruction occurs."

Students may be able to "test out" of the required class time or to earn such credits through other alternative means. Under a "credit flexibility" plan, students may earn high school credits by demonstrating competency in the subject area on a test or through the pursuit of other educational options. See Policy No. **3620** Credit Flexibility Plan.

See Form No. **4301.1** Overview Handout about the Classes of 2021 and 2022 Graduation Requirements for Students and their Families.

Modified December 5, 2023

4301.1 – Overview Handouts Graduation Requirements for Students

Use the following link for the handout for Ohio's High School Graduation Requirements for **Classes 2023 and beyond**: <https://education.ohio.gov/getattachment/Topics/Ohio-s-Graduation-Requirements/Sections/Classes-of-2023-and-Beyond-Graduation-Requirements/GradReq2023.pdf.aspx?lang=en-US>

4302 – Graduation Plans/ Students at Risk of Not Qualifying for a High School Diploma

The Governing Authority values a high rate of graduation for its students and recognizes the importance of one's high school diploma for future success. A "graduation plan" will be developed for all students in grades 9 through 12.

Graduation Plan

The graduation plan will address the student's academic pathway to meet the curriculum requirements specified by the School (Policy **4301**, Graduation Requirements) and to satisfy the graduation conditions under section 3313.618 of the Ohio Revised Code.

A School representative advisor will develop the graduation plan jointly with the student and update the plan each school year in which the student is enrolled, until the student qualifies for a high school diploma. The School will invite a student's parent, guardian, or custodian to assist in developing and updating the graduation plan.

A student's individualized education program may be used in lieu of developing a graduation plan under this policy if the IEP contains academic goals substantively similar to a graduation plan.

At-Risk Students

The School will identify students at risk of not qualifying for a high school diploma by measuring a student's lack of adequate progress in meeting the terms of a graduation plan developed under this policy. Other criteria for identifying at-risk students will also include excessive absences or misconduct. When the graduation plan is developed and updated annually, the School will determine if a student is not making adequate progress in meeting the terms of a graduation plan. If the student is not making adequate progress to meet the terms of the plan, the School will consider the student to be at risk of not receiving a high school diploma, and will notify the student's parent, guardian, or custodian in writing. The notification will include: (1) a statement that the student is at risk of not qualifying for a high school diploma; (2) a description of the School's curriculum requirements (or the student's IEP, as applicable), as well as Ohio graduation conditions prescribed under section 3313.618 of the Revised Code; and (3) a description of additional instructional or support services available to the at-risk student. The notice will be sent each year that a student is identified as being at risk.

In conjunction with the student's Student Success Plan (**Policy No. 3680**, Policy on Career Advising, and **Form 3681**, Student Success Plan), the School offers the following instructional and support services to assist the at-risk student:

- (X) Mentoring programs like the OhioMeansJobs-Readiness Seal
- (X) Tutoring and remediation programs
- (X) High school credit through demonstrations of subject area competency under division (J) of section 3313.603 of the Revised Code like the credit flexibility options
- (X) Adjusted curriculum options
- () Career-technical programs
- () Mental health services
- () Physical health care services
- () Family engagement and support services.

Ohio: R.C. 3313.617; R.C. 3326.11.

Cross Reference: Policy No. **3680**, Policy on Career Advising; Policy No. **4301**, Graduation Requirements

Modified December 5, 2023

4400 – Student Code of Conduct

Policy No. 4410

4410 – Student Code of Conduct

In order to achieve the School's educational goals, the School requires all students to conform to the policies outlined in this handbook and further elaborated in the School's manual. Failure to comply with these requirements will result in discipline.

Discipline is to be administered in a reasonable manner and shall generally follow the Student Discipline Program outlined below, with each infraction assigned to a specific level of discipline. However, the Head Administrator retains discretion to assign an infraction to a different level of discipline depending on the facts and circumstances.

Under no circumstances does the Governing Authority condone the use of unreasonable force and fear. The School strictly prohibits Corporal Punishment by all teachers, administrators, non-licensed employees, bus drivers or volunteers. See **Policy 4560**, Positive Behavior Interventions and Support, Seclusion, and Prohibited Practices.

The Student Code of Conduct and related disciplinary process apply in the School, on the School property, at School activities or functions off the School premises, and during transportation to and from the School. Offenses and punishment will be determined by the Head Administrator and on an individual basis.

Disciplining Off-campus Speech

The School may discipline off-campus speech which materially disrupts classwork or involves substantial disorder or invasion of the rights of others.

Student Discipline Program for Students in Grades Pre-K-3rd Grade:

The School shall not issue an out-of-school suspension or expulsion for a student in grades pre-K through 3 except for serious offenses or as necessary to protect the immediate health and safety of the student, classmates, classroom staff and teachers, or other school employees.

The School's authority to issue an in-school suspension for a student in grades pre-K through 3 is expressly not affected by this rule, provided the suspension is served in a supervised learning environment. An in-school suspension means the student will serve all of the suspension in a supervised learning environment within a school setting.

Pre-K to 3rd Grade Students may be suspended and/or expelled for the violation of offenses listed in Categories 1 and 2:

Category 1: A serious and specific offense for which suspension or expulsion is statutorily required (bringing a firearm to school) or statutorily authorized (possessing a firearm, bringing a knife capable of causing serious bodily injury, making a bomb threat, or causing serious harm to persons or property).

Category 2: An offense not listed in Category 1 but for which the district or school determined suspension was necessary to protect the immediate health and safety of the student, the student's classmates, or the classroom staff or teachers.

Category 3: Students shall not be suspended and/or expelled for violation of offenses listed as Category 3, minor offenses, not described in Category 1 or 2.

Student Discipline Program for Students in Grades 4th to 12th:

See the Infraction Table for a complete listing of offenses and the offenses' discipline levels.

Level One. Should a student commit a Level One offense, the teacher shall inform the student that he/she broke a rule, explain the rule, and administer an appropriate consequence. A Level One offense occurs:

- when a student engages in conduct constituting a Level One offense; or
- when a student commits a Level Two, Level Three, or Level Four offense that the Head Administrator deems appropriate to be considered a Level One offense.

Level Two. Should a student commit a Level Two offense, the teacher shall explain the infraction and administer an appropriate consequence. The teacher shall also contact the student's parents/guardians and send a report to the parents/guardians and the appropriate administrative office. A Level Two offense occurs:

- when a student engages in conduct constituting a Level Two offense;
- when student repeatedly violates a Level One offense; or
- when a student commits a Level One, Level Three, or Level Four offense that the Head Administrator deems appropriate to be considered a Level Two offense.

Level Three. Should a student commit a Level Three Offense, the student shall be subject to suspension under the School's suspension policy. A Level Three Offense occurs:

- when a student engages in conduct constituting a Level Three offense;
- when student repeatedly violates a Level One or Level Two offense; or
- when a student commits a Level One, Level Two, or Level Four offense that the Head Administrator deems appropriate to be considered a Level Three offense.

Level Four. Should a student commit a Level Four offense, the student shall be subject to expulsion, under the School's expulsion policy. A Level Four Offense occurs:

- when a student engages in conduct constituting a Level Four offense;
- when student repeatedly violates a Level One, Level Two, or Level Three offense; or
- when a student commits a Level One, Level Two, or Level Three offense that the Head Administrator deems appropriate to be considered a Level Four offense

INFRACTION	DEFINITION	FIRST OFFENSE	SECOND OFFENSE	THIRD OFFENSE
Academic Misconduct	Plagiarizing, cheating, copying another's work or internet publishing, gaining unauthorized access to material, using, submitting, or attempting to obtain data or answers dishonestly or by means other than authorized by the teacher. Falsifying information (signing homework, etc.).	Level 2 – 3 disciplinary action.	Level 3 - 4 disciplinary action.	Level 4 disciplinary action.
Altering Official Documents	The forgery, falsifying, or unauthorized alteration of a document.	Level 2 - 3 disciplinary action.	Level 3 - 4 disciplinary action.	Level 4 disciplinary action.
Assault	Unlawfully causing any physical injury.	Level 2 - 3 disciplinary action.	Level 3 - 4 disciplinary action.	Level 4 disciplinary action.
Bullying	Any intentional written, verbal, electronic, or physical act that a student has exhibited toward another particular student more than once and the behavior both: (1) causes mental or physical harm to the other student and (2) is sufficiently severe, persistent, or pervasive that it creates an intimidating, threatening, or abusive educational environment for the other student; or violence within a dating relationship.	Level 2 - 4 disciplinary action; alternative discipline under bullying policy.	Level 3 - 4 disciplinary action; alternative discipline under bullying policy.	Level 4 disciplinary action; alternative discipline under bullying policy.
Bullying by Electronic Act ("Cyber Bullying")	Bullying, as defined above, through use of a cellular or mobile telephone, computer, pager, personal communication device, or other electronic communication device.	Level 2 - 4 disciplinary action; alternative discipline under bullying policy.	Level 3 - 4 disciplinary action; alternative discipline under bullying policy.	Level 4 disciplinary action;
Bomb Threat	Making a bomb threat to a School building or to any premises at which a School activity is occurring at the time of the threat.	Level 3 - 4 disciplinary action and 1 year discretionary expulsion.	Level 4 disciplinary action and 1 year discretionary expulsion.	Level 4 disciplinary action and 1 year discretionary expulsion.
Criminal Act	Committing an act that is a criminal offense when committed by an adult that results in serious physical harm to persons or serious physical harm to property.	Level 4 disciplinary action and 1 year discretionary expulsion.	Level 4 disciplinary action and 1 year discretionary expulsion.	Level 4 disciplinary action and 1 year discretionary expulsion.
Damage / Destruction of Property	Causing, attempting to cause, or threatening to cause damage to School or private property (including graffiti).	Level 2 – 3 disciplinary action.	Level 3 – 4 disciplinary action.	Level 4 disciplinary action.

INFRACTION	DEFINITION	FIRST OFFENSE	SECOND OFFENSE	THIRD OFFENSE
Dangerous Weapon	Bringing a dangerous weapon onto School Property or possessing a dangerous weapon on School Property. Dangerous weapon means a weapon, device, instrument, material, or substance, animate or inanimate that is used for, or is readily capable of causing death or serious bodily injury.	Level 3 – 4 disciplinary action.	Level 3 – 4 disciplinary action.	Level 4 disciplinary action.
Display of Affection	Any physical display of affection between students is prohibited.	Level 1 disciplinary action.	Level 2 disciplinary action.	Level 3 - 4 disciplinary action.
Disruptive Behavior	Engaging in any conduct that causes or results in the breakdown of the orderly process of instruction and/or School activities, including but not limited to failure to carry out directions and/or School guidelines, failure to cooperate with School personnel or parent volunteers, verbally harassing other students, and running and/or making excessive noise in the building.	Level 1 disciplinary action.	Level 2 disciplinary action.	Level 3 - 4 disciplinary action.
Dress Code Violations	As established by Policy 4420.	Level 1 - 2 Parent may be called	Level 1 - 2 Parent may be called	Level 3 - 4
Electronic Access	The unauthorized use of electronic password codes for any reason, including but not limited to, accessing, controlling, or disabling technological devices or services.	Level 2 -3 disciplinary action.	Level 3 -4 disciplinary action.	Level 4 disciplinary action.
Electronic and Other Communication Devices	No Student shall use any electronic devices (cell phones, PDA's, CD players, I-Pods, gaming devices, etc.) without approval, on School property during School hours.	Level 1 - 2 disciplinary action.	Level 2 - 3 disciplinary action.	Level 3 - 4 disciplinary action.
Extortion/Robbery	Obtaining money, information, or property from another by threat, intimidation, or coercion.	Level 2 – 3 disciplinary action.	Level 3 – 4 disciplinary action.	Level 4 disciplinary action.
Firearm - A	Bringing a firearm to the School or onto School Property (any Property owned, used, or leased by the School for School, School extracurricular or School-related events).	1 year mandatory expulsion.	1 year mandatory expulsion.	1 year mandatory expulsion.
Firearm - B	Bringing a firearm to an interscholastic competition, an extracurricular event, or any other School program or activity that is located at a School or on School property.	Level 4 disciplinary action and 1 year discretionary expulsion.	Level 4 disciplinary action and 1 year discretionary expulsion.	Level 4 disciplinary action and 1 year discretionary expulsion.
Firearm - C	Possessing a firearm at School, on School Property or at an interscholastic competition, an extracurricular event, or any other School program or activity which firearm was initially brought onto School Property by another person.	Level 4 disciplinary action and 1 year discretionary expulsion.	Level 4 disciplinary action and 1 year discretionary expulsion.	Level 4 disciplinary action and 1 year discretionary expulsion.

INFRACTION	DEFINITION	FIRST OFFENSE	SECOND OFFENSE	THIRD OFFENSE
Gambling	Illegal participation in, or the organization of, games of chance for money and/or other items of value.	Level 1 - 2 disciplinary action.	Level 2 - 3 disciplinary action.	Level 4 disciplinary action.
Gang Activity	No student shall be involved in initiations, hazing, intimidations and/or related activities of group affiliations which are likely to cause bodily danger, physical harm, or personal degradation or disgrace resulting in physical or mental harm to Students or Staff. No Student shall wear, carry or display gang paraphernalia or exhibit behaviors or gestures which symbolize gang membership or cause and/or participate in activities which intimidate or affect the attendance of another student	Levels 1 - 3	Level 3 - 4	Level 4
Hazing	Committing any act or coercing another, including the victim, to do any act of initiation into any Student or other organization that causes or creates risk of causing mental or physical harm to any person. Permission, consent, or assumption of risk by an individual subject to hazing does not lessen the prohibition in this policy.	Level 2 - 3 disciplinary action.	Level 3 - 4 disciplinary action.	Level 4 disciplinary action.
Homework	Daily homework assignments are an extension of, and reinforce class work, and may be assigned Monday through Friday evenings. The amount of homework and time required for its completion will depend on the grade level of the student and the type of skill or content being developed. All homework must be completed in a timely manner, as determined by the classroom teacher. Repeated failure to timely complete homework is of great concern and may result in appropriate disciplinary measures.	Level 1	Level 2	Level 2 - 3
Illegal or Dangerous Substances	Using, selling/purchasing, distributing, possessing, or attempting to possess, substances capable of producing a change in behavior or altering a state of mind or feeling; and/or paraphernalia.	Level 2 - 4 disciplinary action.	Level 3 - 4 disciplinary action.	Level 4 disciplinary action.
Illegal Organization	Anti-social organizations, secret societies, gangs, and other sets of individuals that are not sanctioned by the School, which are determined to be disruptive to teaching and learning. This includes but is not limited to, wearing of symbolic jewelry apparel, making gestures, language use, graffiti, distributing material, or altering personal appearance to symbolize membership in an organization with a history of, or determined to be, a disruption to teaching and learning.	Level 1 - 2 disciplinary action.	Level 2 - 3 disciplinary action.	Level 4 disciplinary action.

INFRACTION	DEFINITION	FIRST OFFENSE	SECOND OFFENSE	THIRD OFFENSE
Imminent and Severe Endangerment	Means any of the following actions taken by a student: • Bringing a firearm to School or on School property; • Bringing a firearm to an interscholastic competition, extracurricular event, or any other program or activity in which the School is participating; • Bringing a knife capable of causing serious bodily injury on School property or to any event or program in which the School is participating; • Committing an act that is a criminal offense when committed by an adult and that results in serious physical harm to persons or property while the student is on School property or at any event or program in which the School is participating. • Making a bomb threat to a School building or to any premises at which a School activity is occurring at the time of the threat; and • Making an articulated or verbalized threat, including a hit list, threatening manifesto, or social media post, that would lead a reasonable person to conclude that the student poses a serious threat	Up to one hundred and eighty (180) School days, with permissible extensions to the expulsion of up to ninety (90) School days.		
Inappropriate language	Using or directing, insulting, degrading, or demeaning language, written, verbal, or symbolic, toward School personnel or any member of the School community.	Level 1 – 2 disciplinary action.	Level 2 – 3 disciplinary action.	Level 3 - 4 disciplinary action.
Insubordination	Verbal or nonverbal refusal to comply with a reasonable request or directive while on School property or at any School related activity or event.	Level 1 – 2 disciplinary action.	Level 2 – 3 disciplinary action.	Level 3 - 4 disciplinary action.
Intimidation/ Menacing/ Bullying/Cyber-Bullying	Threats, verbal or physical, that inflict fear, injury, or damage. Cyber-bullying is a sub-set of bullying and involves the use of information and communication technologies, including but not limited to e-mail, cell phone and pager text messages, blogs, social media, Wikipedia, the Internet, instant messaging, defamatory personal Web sites, and defamatory online personal polling Web sites, to support deliberate or repeated, or hostile behavior by an individual or group, that is intended to harm, intimidate or harass others on School time or the School premises, at School events, programs or activities or off School time or School premises if such acts affect other Students or Staff of the School.)	Level 2 - 3 disciplinary action.	Level 3 - 4 disciplinary action.	Level 4 disciplinary action.

INFRACTION	DEFINITION	FIRST OFFENSE	SECOND OFFENSE	THIRD OFFENSE
Knife - A	Bringing a knife capable of causing serious bodily injury to School, onto School property, to an interscholastic competition, an extracurricular event, or any other program or activity sponsored by the School or which the School is a participant.	Level 4 disciplinary action and 1 year discretionary expulsion.	Level 4 disciplinary action and 1 year discretionary expulsion.	Level 4 disciplinary action and 1 year discretionary expulsion.
Knife - B	Possessing a knife capable of causing serious bodily injury at School, on School Property or at an interscholastic competition, an extracurricular event, or any other School program or activity which knife was initially brought onto School Property by another person.	Level 4 disciplinary action and 1 year discretionary expulsion.	Level 4 disciplinary action and 1 year discretionary expulsion.	Level 4 disciplinary action and 1 year discretionary expulsion.
Littering	Throwing paper, trash, or other materials on the floor, inside the School building, or on School grounds.	Level 1 disciplinary action.	Level 2 disciplinary action.	Level 3 - 4 disciplinary action.
Loitering	Presence of an individual in or about a School under one or more of the following circumstances: • After a reasonable request to leave. • Does not have a legitimate reason for presence. • Does not have written permission from proper authority for presence. • Refusal to identify self.	Level 3 disciplinary action.	Level 3 disciplinary action.	Level 4 disciplinary action.
Lunch and Lunch Time Behaviors	When Parents provide a Student's lunch, they are expected to provide a healthy meal. Carbonated beverages, such as soda (pop) are prohibited. Lunch should be a pleasant experience for everyone, teachers, students, and staff. Students must display decent table manners, courteous conversation, and cooperation with volunteers, teachers, and school personnel. Violations include but are not limited to: • Eating food outside the designated area or room • Leaving without permission • Littering • Discourtesy (toward volunteers, other students or staff) • Failure to remain seated and to clean up your space • Talking too loudly and/or inappropriately	Level 1 disciplinary action.	Level 2 disciplinary action.	Level 3 - 4 disciplinary action.
Lying	Intentionally giving untrue communication.	Level 1 disciplinary action.	Level 2 disciplinary action.	Level 3 - 4 disciplinary action.

INFRACTION	DEFINITION	FIRST OFFENSE	SECOND OFFENSE	THIRD OFFENSE
Misuse of Electronic Online Hardware or Software	Students using School online services for illegal, inappropriate, or obscene purposed.	Level 2 disciplinary action.	Level 3 disciplinary action.	Level 4 disciplinary action.
Obscenities/ Verbal Abuse/ Vulgarities/ Profanity	Use of obscene, abusive, vulgar, profane, harassing, insulting, racial, sexual, religious, or ethnic slurs, written or verbal, toward School personnel or any member of the School community. This shall include use of obscene gestures and signs that willfully intimidate, insult, or in any other manner, abuse others.	Level 1 – 2 disciplinary action.	Level 2 – 3 disciplinary action.	Level 3 - 4 disciplinary action.
Offensive Material	The production, possession, and/or distribution of materials that offend common decency or morals.	Level 1 disciplinary action.	Level 2 disciplinary action.	Level 3 - 4 disciplinary action.
Other Overt Disruptive Behavior	Knowingly engaging in any behavior meant to alter the teaching/learning process; to demean, intimidate, or harm another or the property of individual or the School.	Level 2 disciplinary action.	Level 3 disciplinary action.	Level 4 disciplinary action.
Physical Contact	Participating in unacceptable physical contact, including but not limited to fighting, pushing, intentionally hurting other students.	Level 1 disciplinary action.	Level 2 - 3 disciplinary action.	Level 3 - 4 disciplinary action.
Playground Behavior	The playground is a place to develop friendships in a relaxed setting. Improper behavior or other dangerous actions may include, but are not limited to: - Any use of physical force or violence - Throwing objects of any kind, including snow, and/or ice - Taking the property of others (hats, gloves, etc.) - Not being in the supervised area - Improper use of playground equipment - Using unapproved playground equipment	Level 1 disciplinary action.	Level 2 disciplinary action.	Level 3 - 4 disciplinary action.
Reckless Endangerment	Any willful act that is not intended to cause harm but in fact places others in jeopardy of injury, or results in the damage, destruction, or defacement of School or private property.	Level 1 disciplinary action.	Level 2 - 3 disciplinary action.	Level 3 - 4 disciplinary action.
Refusal to Do Classroom Work	The refusal to complete work, labs, projects, or other assignments given by the teacher.	Level 1 disciplinary action.	Level 2 disciplinary action.	Level 3 disciplinary action.

INFRACTION	DEFINITION	FIRST OFFENSE	SECOND OFFENSE	THIRD OFFENSE
Safety	Students shall be concerned about their own safety and that of others. Student actions that may be considered a safety risk include, but are not limited to: - Talking during safety drills - Running, pushing, yelling, or other inappropriate behaviors - Possession of or use of tobacco, alcohol, or drugs - Leaving the school building or grounds without permission - Any of the inappropriate playground behaviors listed above	Level 1 disciplinary action.	Level 2 disciplinary action.	Level 3 - 4 disciplinary action.
Sale, Use, Possession, or Distribution of Alcohol, Drugs, or other Chemical Controlled Substances	Using, selling/purchasing, distributing, possessing, or attempting to possess, mood altering chemicals, or substances (including counterfeit or look-alike substances), distributing any narcotics, drugs, controlled substances of any kind, or alcoholic beverages, or other intoxicant on School property or at School functions or event.	Level 3 disciplinary action.	Level 4 disciplinary action.	Level 4 disciplinary action.
Sale, Use, Possession, or Distribution of Tobacco Product	Using, selling/purchasing, distributing, possessing or attempting to possess, any tobacco product or paraphernalia.	Level 1 disciplinary action.	Level 2 - 3 disciplinary action.	Level 3 - 4 disciplinary action.
School Hall and Restrooms	Students will conduct themselves according to the standards of character education, values training, positive character traits, and proper behavior taught at the school. Violations include but are not limited to: - Cheating, stealing, lying, coarse language, etc. - Lack of courtesy and respect (name-calling, talking back) - Any use of physical force or violence at any time anywhere on school property - Harassment of other students, teachers, volunteers, etc. - Disrespect toward staff members, substitutes, volunteers, and/or visitors	Level 1 disciplinary action.	Level 2 disciplinary action.	Level 3 - 4 disciplinary action.

INFRACTION	DEFINITION	FIRST OFFENSE	SECOND OFFENSE	THIRD OFFENSE
School Property	Textbooks, computers, and school facilities are available for student use. Proper care and use of school property is expected. All violations in this area require restoration and/or restitution. Violations include but are not limited to: - Defacing textbooks, library books, and other school materials - Destruction or improper use of school computers, printers, or other technology - Defacing/destruction of school property including desks, walls, lockers, etc. - Failure to respect the property of other students, teachers, school personnel, etc. - Gum chewing on school property - Improper use of restrooms and/or supplies - Stealing	Level 1 disciplinary action.	Level 2 disciplinary action.	Level 3 - 4 disciplinary action.
School Telephone	Use of the telephone by students is strongly discouraged. To help students develop responsibility, phone calls home requires the written consent of the student's teacher. Violations include but are not limited to calls not approved by the teacher/principal.	Level 1 disciplinary action.	Level 2 disciplinary action.	Level 3 - 4 disciplinary action.
School-Wide Discipline and Classroom Policies	The School has in place a school-wide behavior management and discipline plan designed to provide consistent expectations throughout the School. In addition, each classroom has its own characteristics and expectations, and teachers may establish certain classroom rules to assist them in providing a pleasant atmosphere and good educational environment. These school-wide and classroom rules are in addition to those listed in this Code of Conduct, and failure of a student to adhere to these classroom rules and policies may be the basis of disciplinary action.	Level 1 disciplinary action.	Level 2 disciplinary action.	Level 3 - 4 disciplinary action.
Sexual or Other Harassment	Unwelcome advances of a sexual nature, requests for sexual favors, and/or other verbal or physical conduct or communication of a sexual nature. Sexual harassment that includes unwelcome physical contact shall be assumed to have the effect of substantially interfering with the victim's employment or educational environment.	Level 2 disciplinary action.	Level 3 - 4 disciplinary action.	Level 4 disciplinary action.

INFRACTION	DEFINITION	FIRST OFFENSE	SECOND OFFENSE	THIRD OFFENSE
Social Behavior	Students will conduct themselves according to the standards of character education, values training, positive character traits, and proper behavior taught at the school. Violations include but are not limited to: - Cheating, stealing, lying, coarse language, etc. - Lack of courtesy and respect (name-calling, talking back) - Any use of physical force or violence at any time anywhere on school property - Harassment of other students, teachers, volunteers, etc. - Disrespect toward staff members, substitutes, volunteers, and/or visitors	Level 1 disciplinary action.	Level 2 disciplinary action.	Level 3 - 4 disciplinary action.
Tardiness	To class: The act of a student not being in his/her classroom or seat when class is scheduled to begin as defined in the School schedule.	Level 1 disciplinary action.	Level 2 disciplinary action.	Level 3 - 4 disciplinary action.
Technology Misuse	See policy regarding Technology, Network, and Internet Access Acceptable Use and Safety.	Levels 1 through 3	Level 3 - 4	Level 4
Theft	Stealing, attempting to steal, possessing, or transferring School or private property, or participating in the theft or attempted theft of School or private property.	Level 1 disciplinary action.	Level 2 - 3 disciplinary action.	Level 3 - 4 disciplinary action.
Toys or Play Objects	School is a place of learning. Distractions cause students to be inattentive. Therefore, students are to keep all toys or play objects at home unless the teacher designates a specific day for sharing what a student owns. If a Student chooses to share a toy or other object on such an occasion, the School is not responsible for these items. Violations include but are not limited to: - Bringing toys or distracting objects to school - Creating toys or distracting objects at school	Level 1 disciplinary action.	Level 1 disciplinary action.	Level 1 disciplinary action.

INFRACTION	DEFINITION	FIRST OFFENSE	SECOND OFFENSE	THIRD OFFENSE
Transportation	Riding the bus, or other transportation provided by the district, is a privilege. The applicable guidelines, rules and policies established by the local school district which provides transportation will be supported by the School and the management company. Violations include but are not limited to: • Disrespectful behavior towards the driver or another student • Physical violence and/or abusive language (swearing) • Eating on the bus • Constant yelling or screaming (which could endanger the lives of others) • Failure to remain seated • Threatening behavior • Possession of drugs, glass, weapons, animals, or stolen merchandise. • Any other violation of school policy.	Level 1 disciplinary action.	Level 1 - 2 disciplinary action.	Level 3 - 4 disciplinary action.
Trespassing	Being in a School building or on School grounds without permission or authorization or refusing to comply with a request to leave School premises.	Level 1 disciplinary action.	Level 2 disciplinary action.	Level 3 - 4 disciplinary action.
Truancy	Habitual absence from School or class without legitimate excuse and failure to follow proper attendance check-in/check-out and absence procedures, as set forth by Policy No. 4210	Level 2 disciplinary action; possible referral to intervention team	Level 2 disciplinary action; possible referral to intervention team	Level 2 disciplinary action; possible referral to the Juvenile Court system.
Verbal altercation	Engaging in minor verbal altercations. Insulting, taunting, or challenging another person under circumstances in which such conduct could provoke a violent or disruptive response.	Level 1 disciplinary action.	Level 2 disciplinary action.	Level 3 or 4 disciplinary action.
Violating Classroom Rules	Not following the classroom rules as determined by the classroom teacher.	Level 1 disciplinary action.	Level 2 disciplinary action.	Level 3 - 4 disciplinary action.

*The Head Administrator may expel a Student from School for a period of time not to exceed 180 days for these infractions if the Head Administrator determines they pose imminent and severe endangerment to the health and safety of other students and School employees, in accordance with this Code of Conduct and **Policy No. 4530 Suspension and Expulsion**.

4410.1 – Student Bill of Rights and Responsibilities

This Student Bill of Rights and Responsibilities serves as a guide for students as they learn and grow through the School's educational process. Rights are given according to the student's maturity and to the extent the rights do not interfere with the student's responsibilities.

Right to be Respected

- Each student has a right to be treated equally and fairly.
- All individuals have a right to be respected, accepted, and heard. Students, staff, teachers, and administrators will be respectful in their actions and thoughts.
- Each student has a right to learn in a safe environment. The learning environment will be free of verbal and physical threats, harassment, and intimidation and bullying. No individual may commit, encourage, or assist in such acts. *Such Rights are further elaborated in Policy No. 4103, Harassment and Sexual Harassment and Policy No. 4104, Policy on Harassment, Intimidation and Bullying.*

Right to Learn

- Students shall have the responsibility to learn and to respect the rights of others to learn.
- Each student has a right to ask questions so long as the questions are presented respectfully and pertain to the lesson.
- Students shall respect the rights of others to teach.
- Each student has a right to a productive, disruptive-free learning environment. To ensure this, students must dress, behave, and act accordingly.

Student Discipline

- Each student has the right to access and understand the rules and behaviors to which they are subjected before they are punished.

Expression & Communication

- Each student has a right to express differing viewpoints and to disagree with statements and policies. However, such expression must be done respectfully and without disrupting class. In doing so, students must recognize and respect the rights of others. See Policy No. 4450, Student Symbolic Expression.

Property

- Each student has a right to own and possess his or her property. All searches and seizures must be done in accordance with the School's Policy No. 4490, Search and Seizure. All property must be treated with respect.

4420 – Dress and Grooming

The Governing Board believes that the responsibility for the dress and grooming of a student rests primarily with the student and his or her parents or guardians and that appropriate dress and grooming contribute to a productive learning environment. Therefore, the Board expects students to give proper attention to personal cleanliness and to wear clothes that are suitable for the school activities in which they participate.

There is a direct relationship between a student's behavior and attitude, and attire. There is a wide range of available clothing styles that reflect a positive attitude and appearance. We ask that students attending wear clothing that is comfortable, clean, and appropriate for learning and safety. Because our instructional program includes dynamic movement, students must wear clothing that allows them to run and jump, including well-secured shoes.

Selecting the appropriate dress for the specific situation is a key component of the educational process at CSA-Xenia. Therefore, clothing, and other items our students wear must not disrupt the educational process, create safety concerns, nor create any distraction. All popular fashions may not be appropriate for school.

Our intent is to have students' attire or grooming be the least restrictive and disruptive to the students' school day. Any school dress code enforcement actions should minimize the potential loss of educational time.

Minimum Safe Attire

Student attire and grooming must permit the student to participate in learning without posing a risk to the health or safety of any student or school district personnel.

- a) Students must wear clothing that fits reasonably well, including both a shirt with pants or skirt, or the equivalent (for example dresses, leggings, or shorts) and well-secured shoes that keep in contact with the entire foot.
- b) When the body is standing straight, clothing must cover the chest, back, torso, stomach, and lower extremities from armpit to armpit to mid-thigh (must be longer than all "fingertip's length" when arms are hung naturally at your side). Tops must have a strap and at no time may any part of a student's buttocks be exposed.
- c) Clothing must cover all undergarments. No underwear or undergarments may be visible at any time. Clothing may not be see-through without appropriate coverage underneath that meets the minimum requirements of the dress code.
- d) Other K-12 schools' logoed apparel including hats and accessories that are not Community STEAM Academy- Xenia are prohibited.
- e) Any headgear including hats, hoodies, and caps are permissible if the entire face of the student is visible from above. Meaning caps with a bill must be worn with the bill toward the back, and hoodies should not extend past the front of the face. Allowances may be permitted for religious, medical, or other reasons by school administration.

- f) Jewelry, earrings, and chains must not dangle or be able to be easily hooked during activity, like during dynamic movement or makerspace.

Presentation/Professional Attire

Throughout the school year CSA-Xenia interacts and works with businesses and community partners, where students will be involved in various ways (i.e., tour guide, performance, presentation). During these types of activities, there will be expectations of students to be in some level of professional attire, which exceed those defined in this policy. Students will be notified in advance when a specific dress standard is expected. To help provide some common guidelines for these types of requirements, the following is the general concept for each:

- **Business Casual:**
 - Slacks, khaki pants, chinos, knee length skirts or dresses. No denim/jeans.
 - Button-up shirts, blouses, sweaters, or polo shirts
 - No athletic shoes or work boots.
- **Business Professional:**
 - Cardigans, blazers, or jackets
 - A collared shirt/blouse or appropriate dress. No polo shirts.
 - Dress slacks or knee length skirts or dresses. No denim/jeans.
 - Dress loafers, oxfords, pumps, flats, or boots. No athletic shoes or work boots.

Students that do not have access to Presentation/Professional apparel should contact their school counselor or principal for assistance.

Additional Requirements

Specialized activities may require specialized attire that go beyond these Minimum Safe Attire guidelines. Clothing must be suitable for all scheduled learning activities including dynamic movement, makerspaces, community-service, field trips and other activities where unique hazards or specialized attire or safety gear is required.

Attire and/or grooming depicting or advocating violence, weapons, criminal activity, gang related activity (including clothes, accessories, or colors identified by local police departments as gang-affiliated), use of tobacco, alcohol or drugs, pornography, foul language, hate speech, or clothing that could be considered dangerous or that could be used as a weapon are prohibited.

Sunglasses may not be worn inside the building.

Dress Code Enforcement

No list of dress and appearance guidelines for students can be written that will anticipate all potential dress and grooming extremes. In the case of questionable dress or grooming that is not specifically covered in the list above, the administration will make the final decision. Appropriate action will be

taken at that time, and when necessary, contact will be made seeking parental cooperation and assistance.

The administration retains the sole discretion to make the final determination whether clothing, jewelry, accessories and/or appearance meet acceptable standards. All school certificated and classified personnel shall be responsible for reporting violations of this dress code. When a dress code violation occurs, the student will be required to change into proper attire to continue to remain at school. Additional clothing could be provided to allow a student to remain onsite. Continued violations of the dress code will be considered defiance and will be referred to administration for disciplinary action.

Modified October 3, 2023

4430 – Internet & Technology Acceptable Use

Please read carefully before signing. In order to access and use the Technology, the network, and internet, students and staff must read this policy and submit a signed agreement form.

The School's Governing Authority realizes that the internet and technology can greatly supplement the School's educational mission. With these opportunities come challenges to use technology in a safe and educational manner. This policy has been adopted to ensure students and staff properly use the School's Technology.

All Technology must be used responsibly, ethically, and legally. Users that do not adhere to these rules—and the guidelines elaborating these rules—will have their technology and internet use privileges removed and will be subject to disciplinary action.

This policy extends beyond the School's grounds. This policy also applies when a user's Technology use disrupts or interferes with the School, regardless of where or when the violation takes place. Users may be at home or elsewhere and still be subject to this policy.

The term "Technology" includes, but is not limited to, computers, tablets, mobile electronic devices, printers, routers, other hardware, software, internet, intranet, network, electronic mail, cellular phones, iPOD/MP3/DVD/CD players, video recorders, data devices, video games, beepers, pagers, radios, and all other similar devices.

"Users" is defined to include any student, faculty, or staff member using the School's Technology.

Technology Use Guidelines

Unacceptable uses include, but are not limited to, the following:

- Violating Ohio and Federal law regarding:
 - students' and employees' privacy rights,
 - copyright laws and all licensing agreements,
 - illegal downloading; installing; or accessing internet files; software, shareware; and freeware, and
 - all other applicable laws.
- Engaging in cyber-bullying.
- Using/accessing profane, obscene, pornographic, threatening or otherwise inappropriate language/materials which may be offensive or intended to harass/bully other users.
- Using technology for the following purposes: illegal activity, activity inconsistent with the School's mission, and activity prohibited by the School's policy manual.
- Gaining unauthorized access, "hacking," or attempting to gain unauthorized access.
- Sending or forwarding "spam" to a large group of users.
- Damaging or attempting to damage technology. Damaging includes, but is not limited to, physically damaging hardware, damaging or negatively affecting software, changing the settings without authorization, or disrupting the network.

- Using the School's technology for personal gain or profit.
- Sharing passwords or logging in to any system with credential other than one's own.

Use of Technology should conform to the following:

- Technology use is limited to educational purposes.
- Users shall use technology efficiently and courteously.
- Users shall exercise common sense and good judgment of what is permitted in a school environment.

If a user is unsure if his/her technology use conforms to these guidelines, the user shall ask the instructor before continuing with such use. If the user inadvertently violates the above guidelines, he/she should report it to the instructor immediately.

Use of Artificial Intelligence / Natural Language Processing Tools for School Work

The use of Artificial Intelligence (AI) and Natural Language Processing (NLP) tools (collectively, "AI/NLP tools"), without the permission of an instructor, is strictly prohibited for the completion of school work. If students receive permission from their instructor to use AI/NLP tools in school and for the completion of assignments, such tools shall be used in an ethical manner. Some examples of situations in which instructors have discretion to authorize students to use AI/NLP tools are for research assistance, data analysis, language translation, writing assistance and accessibility.

Accordingly, AI/NLP tools can be effectively used as a supplement to, not a replacement for, traditional learning methods. With prior permission, students can use said resources. If a student has any questions about whether they are permitted to use AI/NLP tools for a specific class assignment, they should ask their instructor.

Unauthorized use of AI/NLP tools is considered a form of plagiarism and any student found using these tools without permission or in a prohibited manner will be disciplined in accordance with the Student Code of Conduct.

Supervision and Monitoring

To ensure this policy is complied with and to ensure Technology works properly, the School will supervise and maintain Technology. Violations of this policy or the law may be uncovered during these processes. Should a user be found in violation, the user will be disciplined according to the Handbook's policy on Student Discipline.

Filtering

The School recognizes that the internet can be both a source of helpful information and inappropriate materials for users. The school, in accordance with federal law, has taken reasonable steps to create an internet environment that is safe and appropriate for students. The School has filtered internet sites that may contain inappropriate information. As technology continues to evolve and the internet grows, however, the School will be unable to properly filter or detect all use and access.

All users and parents should be aware that because a site is not filtered it may still be inappropriate and not conform to this policy.

Disclaimer of Liability & Warranty

The School makes no warranties of any kind, either express or implied, that the Technology will free of errors, will meet any of the user's specific requirements, or will be uninterrupted. The school is not liable for any direct or indirect, incidental, or consequential damages including, but not limited to, damage to the user's technology, lost data, inability to use or access the system, or loss of any information connected with use. Use of any information obtained via the Internet is at the user's own risk.

Federal: 47 U.S.C. 254.

Cross Reference: Policy No. **4440**, Use of Mobile Electronic Devices; Policy No. **5453**, School Equipment – Use and Return.

(cut here)

Internet & Technology Acceptable Use Policy Signature Form

Signature

By signing below, I affirm that I have read and agree to abide by the Internet and Technology Acceptable Use Policy 4430.

Student Name

Parent/Guardian Signature

Date

Student Signature

Date

Revised September 2, 2023

4440 – Use of Mobile Electronic Devices and Cameras

The objective of this policy is to strengthen the School's focus on learning, in alignment with our mission to ignite students' passion for learning, cultivate a strong foundation of knowledge, and foster a sense of community within our schools.

Research shows that student use of cell phones in schools has negative effects on student performance and mental health. Cell phones distract students from classroom instruction, resulting in smaller learning gains and lower test scores. Increased cell phone use has led to higher levels of depression, anxiety, and other mental health disorders in children.

"Electronic communications device" (ECD) is defined in Ohio law to mean any device that is powered by batteries or electricity and that is capable of receiving, transmitting, or receiving and transmitting communications between two or more persons or a communication from or to a person. Examples of ECDs include, but are not limited to, cellular phones, smart phones and tablets, smart watches, video games, walkie-talkies, pagers, and other similar electronic devices. "Camera devices" may also be ECDs, and include, but are not limited to, digital cameras, cellular phones with cameras, camcorders, and other imaging devices.

Rule.

Students are prohibited from using ECDs during the instructional day in accordance with this policy.

"Instructional day" means from the beginning of the school day to the end of the school day (i.e., from "bell to bell").

Exceptions.

- A student may possess and use an ECD to monitor or address a health concern if the School receives a written statement from the student's physician requiring such use.
- A students may use an ECDs in accordance with a written IEP or Section 504 plan for learning or to monitor or address a health concern.
- Students may use ECDs for student learning upon limited, prior approval by an authorized teacher or administrator.

User Liability.

The School and its employees are not responsible for theft, loss, damage, or destruction of ECDs and camera devices brought on to school property. Students are solely responsible for devices they bring on school property.

Discipline.

At no time shall ECDs or camera devices be used in a manner disruptive to the instructional process, disruptive to the School's academic mission, or inconsistent with Policy No. **4430**, Internet and Technology Use, Policy No. **4103**, Harassment, and Policy No. **4104**, Harassment, Intimidation, and Bullying.

Students shall keep their ECDs and camera devices in a secure place, such as the Receptions Desk, a closed backpack, or a personal vehicle, at all times during the school day, unless otherwise approved.

Students who violate this policy will be subject to disciplinary action and the student may lose his/her privilege to bring the ECD onto school property and/or have his/her device confiscated. If confiscated, the student shall cooperate in surrendering the ECD, and the device will only be returned to the student's parent or guardian. While confiscated, the School may further inspect the ECD if it reasonably believes the student has violated other policies in accordance with Policy **4490**, Search and Seizure.

A student disciplined for harassment, intimidation, or bullying while using an ECD (pursuant to the Code of Conduct and/or Policy Nos. **4103**, Harassment, and **4104**, Harassment, Intimidation, and Bullying) will lose his/her privilege to bring the ECD onto School property for the remainder of the school year, unless time length is lessened by Administration.

Ohio: R.C. 3313.753

Cross Reference: Policy No. **4103**, Harassment; Policy No. **4103**, Harassment, Intimidation, and Bullying; Policy No. **4430**, Internet & Technology Acceptable Use.

Updated September 2, 2025

4450 – Student Symbolic Expression

Students have the right to symbolic expression provided students comply with this policy's time, place, and manner requirements.

Symbolic expression is defined as a student's ability to distribute or display non-sponsored, non-commercial written material, handbills, petitions, audio, and video; clothing; buttons and badges; and banners, signs, and other insignia.

Student Symbolic Expression Guidelines

Symbolic Expression may not be made, displayed, or distributed if it:

- materially and substantially disrupts the School's educational mission or presents the likelihood of doing so;
- contains libelous, obscene, racist, vulgar, lewd, or indecent words, phrases or depictions;
- intends to be threatening, insulting, intimidating, harassing, or to incite fighting; or
- promotes or advertises any product or service not permitted to minors by law.

Symbolic expression, consistent with the above policy, must be distributed or displayed so as not to interfere with the School's education or student's safety. Accordingly, the following time, place, and manner restrictions apply:

- a student may display or distribute permitted materials during lunch and after school in approved locations;
- a student may not display or distribute material during class periods or during passing time between classes; and
- material must not block exits and must allow proper entry to and exit from the building.

The School requires that symbolic expression materials be reviewed prior to being distributed.

Cross Reference: Policy No. **4410.1**, Student Bill of Rights & Responsibilities; Policy No. **4420**, Dress and Grooming; Policy No. **4460**, Assembling & Disorder.

4460 – Assembling & Disorder

Students have the right to assemble peaceably and to express their ideas and opinions, provided students observe the concurrent responsibility to respect the rights of others and not to disrupt the educational process. The School prohibits any demonstration that infringes on the rights of others or disrupts the School's educational program and reserves the right to terminate any demonstration that disrupts the School's primary goal of providing an education.

A demonstration may disrupt or violate the rights of others regardless of its purpose, whether it is peaceful or violent and whether it is conducted by an individual or a group.

Cross Reference: Policy No. **3843**, Obscene Materials; Policy No. **4410.1**, Student Bill of Rights & Responsibilities; Policy No. **4420**, Dress & Grooming; Policy No. **4450**, Student Symbolic Expression.

4470 – Drugs, Alcohol, and Tobacco**Alcohol and Drug Usage**

The School recognizes that drug and alcohol abuse is a serious problem. Drug and alcohol abuse prevents individuals from reaching their academic and social potential. The School, therefore, prohibits students and all other individuals from using, possessing, concealing, or distributing any drug, alcohol, or any drug/alcohol-related paraphernalia in the School, on school property, on vehicles used or operated by the School, and at any school-sponsored event.

“Drugs” are defined as alcoholic beverages, as all controlled substances prohibited by Ohio Revised Code 4729.01 and Federal Law, chemicals which release toxic vapors, alcoholic beverages, prescription or patent drugs (except those for which permission to use has been granted pursuant to the policies found in this manual or authorized by the Governing Authority), anabolic steroids, and any substance that is a “look-alike” to any of the above.

Students who violate this policy will be subject to appropriate disciplinary action, which may include suspension, expulsion, and referral for prosecution. Disciplinary action may also include a voluntary referral to qualified and properly licensed persons or agencies for screening and assessment.

Students who are suspected of using, possessing, or distributing drugs and/or alcohol will be subject to the School’s policies and procedures on search and seizure.

School Prevention Program. To further the School’s educational mission and to prohibit drug use, the School shall develop a Drug Prevention Program. The program shall be developed in accordance with the Ohio Department of Education and shall educate students about the health, legal, social, and psychological consequences of using drugs. The program shall also equip students with techniques for overcoming peer pressure to use drugs and promote positive health, self-esteem, and respect for one’s body.

Additional School Policies to Prevent Drug and Alcohol Use. To ensure the School further prevents drug use and evolves to reflect changing issues involving drug use, the School shall:

Develop a curriculum, activities, and programs for instructing students on the illegality and negative effects of possessing or using drugs, alcohol, and tobacco.

Provide students and parents with information about drug and alcohol counseling, rehabilitation and re-entry programs.

Conduct a review of the School’s program and initiatives twice annually. The review will be conducted by the Head Administrator or his/her designee, will determine the program’s effectiveness and implement changes.

Establish administrative guidelines to implement this policy.

Smoking/Tobacco Use Prohibited

The School prohibits smoking and tobacco usage on School grounds. Smoking means inhaling, exhaling, burning, or carrying any lighted or heated tobacco product or plant product intended for inhalation in any manner or in any form. "Smoking" includes the use of an electronic smoking device and a vapor product. "Tobacco usage" is defined to include, but is not limited to the following: cigarettes, "smokeless" tobacco, clove cigarettes, chewing tobacco, snuff, cigar, pipe, or any other matter or substance that contains tobacco. The absolute prohibition on tobacco usage extends to all persons including students, staff members, school visitors, and any other person on school property.

This policy is based, in part, on the health and safety of the entire school community. By banning usage on School property, this policy ensures all nonusers are not exposed to the unwanted, negative side effects of smoking and tobacco.

This policy extends to the School building, school property, on school buses, at any interscholastic competition, at an extra-curricular event, or any other school-sponsored activity.

This policy applies at all events sponsored by the School and all events on School property that are not sponsored by, or associated with, the School.

"No Smoking" signs should be posted at each entrance and other areas as needed. Each sign must include a telephone number for reporting violations.

Electronic Smoking Devices (Vaping) Use Prohibited

The School shall include instruction in its health curriculum about the harmful effects and legal restrictions against the use of electronic smoking devices (vaping).

Federal: 21 U.S.C. 806.

Ohio: R.C. 3313.95, R.C. 3313.751, R.C. 3794.

Cross Reference: Policy No. **4490**, Search and Seizure.

4480 – Pregnant Students & Students with Children

The School's Governing Authority believes that enrolled students should not be denied an educational program because of issues relating to pregnancy, pregnancy-related disabilities, potential parenthood, childbirth, or parenthood.

In order to participate in school activities, the School may require a pregnant student to provide a written note from her doctor. The written note must state (1) that the student may participate in the desired classes, co-curricular and/or extra-curricular programs and (2) that such participation will not harm the student's health or her pregnancy.

Federal: 20 U.S.C. 1681.

4490 – Search and Seizure

In order to preserve a safe environment for all students and staff, the School may conduct reasonable searches of students and student property. All searches must recognize the privacy rights of students and may not be done without reasonable basis or in an unreasonable manner.

The authorization to search extends to all situations in which the student is under the School's jurisdiction or control.

Types of Searches

Searches may include, but are not limited to, the following types.

School-provided Storage. School lockers, desks, and other storage spaces provided by the School are the School's property. Students have no expectation of privacy in these storage spaces from school officials. The School may allow the Head Administrator or his/her designee to conduct regular searches of all such storage places or as is determined reasonably necessary.

Person & Personal Property. An Individual's person, car, and other personal belongings may be searched whenever the School has reason to believe (1) the student is concealing evidence connected to a school policy violation or criminal activity and (2) the items to be searched are capable of concealing such evidence. Searches do not require a student's consent.

Electronic Searches. Students have no expectation of privacy with regards to using the internet, intranet, network, or electronic mail. Usage of such electronics may be monitored and maintained and may uncover that a student has violated the School policy or usage.

Guidelines for Searches & Seizures

All searches and seizures shall conform to the following guidelines:

1. The extent of each search shall be proportionate to the severity of the alleged infraction.
2. Searches of a student's person shall be conducted in a private area by a school official and observed by an objective third party. Both the school official and the third party shall be of the same sex as the student being searched. The search may not require the student to remove clothing, nor should the student be touched in any way.
3. School locker, desks, and other storage property may be inspected. Students must open lockers and other storage areas at the request of School officials. A student has the right to be present during a search unless the student is absent, or an otherwise compelling situation necessitates a search in the student's absence.
4. The Head Administrator or his/her designee may use canines when he/she reasonably suspects that illegal drugs may be found, and a search warrant has been obtained. The canines (i) must be trained in detecting drugs, (ii) may only be used to determine if drugs are present in areas where the substance may be concealed, and (iii) must be conducted in conjunction with law enforcement officials or otherwise certified organizations.
5. Students are prohibited from keeping prohibited items belonging to other individuals within their lockers, backpacks, or desks.
6. The Head Administrator or his/her designee may use a breath-test instrument to determine if a student has consumed alcoholic beverages.

Documenting Searches & Possessing Contraband

All searches shall be immediately documented in a written report by the Head Administrator or his/her designee. The written report shall (1) explain why the search was conducted, (2) identify persons providing information, (3) indicate areas searched, (4) describe and identify contraband found, (4) identify persons present, and (5) explain how contraband was disposed of following the search.

All contraband and other illegal or dangerous substances seized shall be controlled and disposed of by the Head Administrator or his/her designee.

4500 – Student Discipline

Policy No. 4510

4510 – Tiered Student Discipline Program

In order to achieve the School's educational goals, the School requires all students to conform to the policies outlined in this handbook and further elaborated in the School's manual. Failure to comply with these requirements will result in the student's discipline.

Discipline is to be administered in a reasonable manner and is designed to help the student take responsibility for his or her actions. The School shall generally follow the Tiered Student Discipline Program outlined below. However, the type of discipline will depend on the facts, circumstances, and severity of a student's failure to comply with applicable guidelines, rules, or policies.

Under no circumstances does the Governing Authority condone the use of unreasonable force and fear. The School strictly prohibits Corporal Punishment by all teachers, administrators, and volunteers. See Policy No. **4560**, Positive Behavior Interventions and Support, Seclusion, and Prohibited Practices, for a complete explanation of the School's force and restraint policies.

The Student Code of Conduct and related disciplinary process applies in the School, on the School property, at School activities or functions off the School premises, and during transportation to and from the School. Offenses and punishment should be determined by the Head Administrator.

Notwithstanding anything contained herein to the contrary, disciplinary actions regarding truancy shall be subject to the requirements contained in Policy No. **4201** and the Ohio Revised Code.

Tiered Discipline Program

Tier One. Should a student commit a Tier One offense, the teacher should alert the student that he/she broke a rule, explain the rule, and administer an appropriate consequence. Tier One offenses include, but are not limited to:

- 1) Disruptive and/or Prohibited Behavior
 - a. Engaging in any physical display of affection with another student
 - b. Failing to follow reasonable instructions, directions, or guidelines or refusing to comply with a reasonable request while on School property or at a School activity or event
 - c. Running or causing any disruption in a school building
 - d. Littering inside a School building or anywhere on the School premises
 - e. Misbehaving and/or failing to follow applicable guidelines, rules, or policies during assigned lunch periods, on School playgrounds, in School hallways or restrooms, or on School transportation vehicles
 - f. Lying to School employees, personnel, or officials, parent volunteers, or any member of the School community
 - g. Violating School dress code guidelines, rules, or policies
 - h. Using any electronic device (cellular telephones, smartphones, iPads, iPods, gaming devices, etc.) without approval, on School property, and during School hours
 - i. Chewing gum on School property
 - j. Failing or refusing to turn in homework assignments or complete classroom work

- k. Ignoring safety guidelines, rules, or policies
 - l. Failing to adhere to any School and/or individual classroom guidelines, rules, or policies
 - m. Shouting at, harassing, or disrespecting School employees, personnel, officials, parent volunteers, any members of the School community, or other students
 - n. Failing to show up on time for class
 - o. Using or creating toys or other distracting objects.
- 2) Misuse and/or Abuse of School Property
- a. Using School internet access, School telephones, technology, or any School electronic device for an illegal, improper, or unauthorized reason
 - b. Stealing or defacing School books, materials, electronic devices, or supplies

Tier Two. A Tier Two offense occurs if the student repeats a Tier One offense, or the student engages in conduct constituting a Tier Two offense. Should a student commit a Tier Two offense, the teacher should explain the rule and administer an appropriate consequence. The teacher shall also contact the student's parents/guardians and send a report to the parents/guardians and the appropriate administrative office. In addition to repeated Tier One offenses, Tier Two offenses include, but are not limited to:

- 1) Repeated and/or Serious Tier One Offenses.
- 2) Disruptive and/or Prohibited Behavior
 - a. Using inappropriate, insulting, or abusive language in any form towards School employees, personnel, officials, parent volunteers, any members of the School community, or other students.
- 3) Damage/Destruction of School Property
 - a. Causing, attempting, or threatening to cause or attempt any form of damage or destruction to School property.
- 4) Academic Dishonesty
 - a. Cheating or plagiarizing
 - b. Misappropriating or misrepresenting the work of another as one's own work
 - c. Using unauthorized materials during a quiz or exam
 - d. Fraudulently altering work or official documents
 - e. Falsifying dates, records, signatures, or any other aspect of an official document or School assignment
 - f. Interfering or tampering with the instructor's work or another student's work
 - g. Aiding and abetting another student attempting to engage in act of academic dishonesty
 - h. Remaining on School property without a reason for being present, after being instructed to leave, without permission from School authority, or without properly identifying oneself
 - i. Trespassing on School property
 - j. Engaging in or coercing another to engage in any form of hazing
 - k. Participating in any gang activity or similar organizational activity, which is disruptive to the educational process
 - l. Wearing, carrying, displaying, or exhibiting an affiliation with a gang
 - m. Intimidating or bullying other students by means of verbal abuse/menacing or threats of violence including all forms of cyber-bullying
 - n. Engaging in obscene, vulgar, or insulting conduct or using obscene, vulgar, or insulting language

- o. Possessing, producing, or distributing offensive and prohibited materials
- p. Willfully engaging in a course of conduct intended to interfere with the educational process
- q. Repeatedly failing to show up for class without an acceptable excuse

Tier Three. A Tier Three offense occurs when the student continues to violate the rules despite appropriate actions at Tiers One and Two or the student engaged in conduct constituting a Tier Three offense. The Head Administrator or his/her designee may suspend the student under the suspension procedures. Tier Three offenses include, but are not limited to:

- 1) Repeated and/or Serious Tier One and/or Tier Two Offenses.
- 2) Violence and Threats of Violence
 - a. Physical Injury
 - i. Inflicting bodily injury upon another person
 - ii. Physically contacting another student, which results in physical injury or unacceptable physical contact
 - iii. Willfully engaging in a course of conduct that unreasonably places School employees, personnel, officials, parent volunteers, any members of the School community, or other students at risk of physical injury
 - b. Threats
 - i. Threatening a School building or any School premises at which an extracurricular event, interscholastic competition, or any other School program or activity is occurring with a bomb
 - ii. Threatening to inflict bodily injury upon another person
- 3) Miscellaneous Prohibited and/or Illegal Activity
 - a. Extorting another person by threat, intimidation, or coercion
 - b. Obtaining or attempting to obtain money, information, or personal property by means of theft, robbery, or fraud/deception
 - c. Transferring, distributing, selling, or purchasing stolen goods
 - d. Engaging in or committing an act that is criminally punishable
 - e. Participating in or organizing any gambling activity, which involves the payment or exchange of something of value in return for the chance to win a prize or something of value
 - f. Participating in any illegal gang-related activity
 - g. Using, possessing, selling, purchasing, or distributing any banned or controlled substance, drug, alcohol, alcohol product, tobacco product or similar substance capable of altering behavior, mood, feelings, or state of mind including any paraphernalia associated with the particular substance
 - h. Making unwanted sexual requests, advances, or communications or engaging in any other form of sexual harassment

Tier Four. A Tier Four Offense occurs if the student continues to violate the rules despite appropriate action at Tiers One, Two, and Three or the student engages in conduct constituting a Tier Four offense. Tier Four offenses are punishable by exclusion, under the exclusion procedures. Tier Four offenses include, but are not limited to:

- 1) Repeated and/or Serious Tier One and/or Tier Two and/or Tier Three Offenses.
- 2) Weapons

- a. Firearms
 - i. Bringing a firearm to the School or onto any School property
 - 1. Mandatory one-year expulsion
 - ii. Bringing a firearm to an interscholastic competition, an extracurricular event, or any other School program or activity that is not located in the School or on School property
 - 1. Discretionary one-year expulsion
 - iii. Possessing a firearm at School, on School property, or at an interscholastic competition, an extracurricular event, or any other School program or activity, which was initially brought onto School property by another person
 - 1. Discretionary one-year expulsion
- b. Knives
 - i. Bringing a knife to the School, onto any School property, to an interscholastic competition, an extracurricular event, or any other School program or activity
 - 1. Discretionary one-year expulsion
 - ii. Possessing a knife at School, on School property, or at an interscholastic competition, an extracurricular event, or any other School program or activity, which was initially brought onto School property by another person
 - 1. Discretionary one-year expulsion
- c. Dangerous Weapons
 - i. Bringing or possessing a dangerous weapon, device, instrument, material, or substance capable of causing death or serious bodily harm on School property

Cross Reference: Policy No. **2650**, Bomb Threats; Policy No. **2660**, Weapons; Policy No. **2670** Public Conduct on School Property; Policy No. **4103**, Harassment and Sexual Harassment; Policy No. **4104**, Policy on Harassment, Intimidation, and Bullying; Policy No. **4105**, Anti-Hazing Policy; Policy No. **4106**, Policy on Gang Activity & Other Prohibited Groups; Policy No. **4410**, Student Bill of Rights & Responsibilities; Policy No. **4430**, Internet & Technology Acceptable Use; Policy No. **4440**, Use of Mobile Electronic Devices; Policy No. **4450**, Student Symbolic Expression; Policy No. **4460**, Student Symbolic Expression; Policy No. **4470**, Drugs, Alcohol, and Tobacco; Policy No. **4520**, Transportation Discipline; Policy No. **4530**, Suspension & Expulsion Policy; Policy No. **4540**, Disciplining a 504 Student; Policy No. **4550**, Suspension & Expulsion Policy for Students with Disabilities; Policy No. **4560**, Positive Behavior Interventions and Support, Seclusion, and Prohibited Practices.

4520 – Transportation Discipline

This policy applies *only* where the student's sole discipline is the denial of bus riding privileges. A student may be disciplined under this policy, may be subject to additional discipline under the School's Code of Conduct.

In regard to riding privileges and rules, the School is required to enforce and follow the policy of the student's home district that provided the transportation. Accordingly, the School must follow the school district's policy in imposing the period of time for suspension.

Due Process Rights

While the School follows the discipline policies of the home district, the School still oversees the student's right to a hearing. Before a student's privileges are suspended, the student shall be provided notice and shall be given an opportunity to be heard before the School's Head Administrator in accordance with Policy No. **4530**, Suspension & Expulsion Policy.

A student may be immediately removed, without hearing, when a student poses a danger to other persons or property or threatens the bus's safe operation under the School's Emergency Suspension Rule.

If a disabled student is suspended or immediately removed, the School shall follow the laws governing suspension and expulsion of disabled students.

Disseminating this Policy

To ensure familiarity and compliance with these policies, the School has posted the School District riding policies in the school and has made the policies available for Parents or Students.

Ohio: R.C. 3326.22, R.C. 3327.01.

Cross Reference: Policy **4510**, Tiered Student Discipline Program; Policy No. **4520**, Transportation Discipline; Policy No. **4530**, Suspension & Expulsion Policy; Policy No. **4540**, Disciplining a 504 Student; Policy No. **4550**, Suspension & Expulsion Policy for Students with Disabilities.

4530 – Suspension & Expulsion Policy

The Governing Authority understands the severity of excluding a student from the School. The Governing Authority, however, will not tolerate violent, dangerous, disruptive, or inappropriate behavior by students that substantially impedes the School from accomplishing its educational mission. The following policy outlines when a student may be excluded from school, the procedure to follow, and the due process rights available to students.

If an alleged violation of the Code of Conduct meets the definition of sexual harassment under Title IX, then the School must follow its Policy No. 3120, Title IX Compliance and Grievance Procedure prior to imposing any disciplinary sanctions or other actions that are not supportive measures.

Violations of the Code of Conduct, for pre-k to 3rd grade students, are broken down into the following Categories:

Category 1: A serious and specific offense for which suspension or expulsion is statutorily required (e.g., bringing a firearm to school) or statutorily authorized (e.g., possessing a firearm, bringing a knife capable of causing serious bodily injury, making a bomb threat, or causing serious harm to persons or property).

Category 2: An offense not listed in Category 1 but for which the School determined suspension was necessary to protect the immediate health and safety of the student, the student's fellow classmates, or the classroom staff or teachers.

Category 3: A "minor offense" that neither belongs in Category 1 or Category 2.

Students may be excluded by:

- *In-School Suspension.* A student may be removed temporarily to an in-school suspension, which is a suspension served in a supervised learning environment within the School setting.
- *Out of School Suspension.* A student may be removed temporarily from the School for a maximum of ten (10) days for misconduct and violating school rules. Said students shall have an opportunity to (1) complete missed classroom assignments and (2) receive at least partial credit for any assignment completed. The School may reduce a student's grade due to the student's suspension, but the School shall not assign a failing grade solely because of the student's suspension.
 - *Exception:* Pre-K to 3rd grade students shall only be subject to an out of school suspension for serious offenses or only as necessary to protect the immediate health and safety of the student, fellow classmates, classroom staff and teachers, or other employees.
- *Emergency Suspension.* A student may be removed *immediately* from the School, without formal due process procedures when the Head Administrator determines, at his or her discretion, that the student's continued presence at the School poses a danger to others or to property or is an ongoing threat. The School shall then proceed to have a hearing on the next school day.
 - *Exception:* Pre-K through 3rd grade students may be removed on an emergency basis only for the remainder of the school day and shall be permitted to return to curricular and extracurricular activities on the school day following the day in which the student

was removed. When a student is removed and returned to curricular and extracurricular activities on the next school day, the School shall not be required to hold a hearing to provide notice of such hearing. Suspension proceedings shall not be initiated against a student in Pre-K through 3rd grade who was removed from a curricular or extracurricular activity on an emergency basis unless the student committed a serious offense or it is necessary to protect the immediate health and safety of the student, fellow classmates, classroom staff and teachers, or other employees.

- *Expulsion.* A student may be removed entirely for a maximum of one (1) year or up to one hundred eighty (180) days depending on the severity of the student's behavior. All expulsions require a hearing.
 - *Exception:* Pre-K to 3rd grade students shall only be subject to an out of school expulsion for serious offenses or only as necessary to protect the immediate health and safety of the student, fellow classmates, classroom staff and teachers, or other employees.
- *Emergency Expulsion.* A student may be removed *immediately* from the School, without formal due process procedures when the Head Administrator determines, at his or her discretion, that the student's continued presence at the School poses a danger to others or to property or is an ongoing threat. The School shall then proceed to have a hearing on the next school day.
 - *Exception:* Pre-K through 3rd grade students may be removed on an emergency basis only for the remainder of the school day and shall be permitted to return to curricular and extracurricular activities on the school day following the day in which the student was removed. When a student is removed and returned to curricular and extracurricular activities on the next school day, the School shall not be required to hold a hearing to provide notice of such hearing. Expulsion proceedings shall not be initiated against a student in Pre-K through 3rd grade who was removed from a curricular or extracurricular activity on an emergency basis unless the student committed a serious offense or it is necessary to protect the immediate health and safety of the student, fellow classmates, classroom staff and teachers, or other employees.

Suspension

A student may be suspended for a maximum of ten (10) days for misconduct and violating school rules. If a suspension is imposed with fewer than ten (10) days left in the school year, the student may be required to perform community service or another alternative consequence for a number of hours equal to the remaining period of the suspension. The student shall be required to begin the community service or alternative consequence during the first full weekday of summer break. The School, in its discretion, may develop an appropriate list of alternative consequences. If the student fails to complete community service or the assigned alternative consequence, the School shall determine an appropriate course of action. Such action, however, shall not include requiring the student to serve the remaining period of the suspension at the beginning of the following school year.

Suspensions generally entitle students to a hearing, outlined below, except in the following two situations. First, students suspended from co-curricular or extra-curricular activities will not be entitled to notice, hearing, or appeal because participating in such activities is a privilege and not a right. Second, in-school suspensions are not subject to hearing.

Suspension Procedure. The following procedure shall apply to out-of-school suspension.

1. Before imposing the suspension, the Student is provided a “Notice of Intent Suspend from School,” Form No. **3810.2**. The Notice shall provide the reasons for the proposed suspension.
2. The Student is provided an informal hearing to challenge or otherwise explain the incident leading to the proposed suspension. The hearing will be conducted before the Head Administrator or his/her designee and the student may not call witnesses at the hearing.
3. If the suspension is issued, the Head Administrator will notify, in writing, the following parties: the Student’s parents or guardian, with a “Notice of Suspension,” Form No. **3810.3**. The written notification shall explain the reasons for the suspension. The student’s parents or guardian shall also be notified, in writing with a “Notice of Suspension Letter,” Form No. **3810.4**.
4. If the student appeals to the Governing Authority, the student must file a written appeal to the Governing Authority within 14 calendar days of receiving the “Notice of Intent to Suspend from School.” The Student or the Student’s parents may request the meeting be held in executive session. All decisions, however, must be acted upon in a public meeting. The Governing Authority, by a majority vote of its full membership, shall act upon the suspension by affirming the suspension, reinstating the student, or otherwise modifying the order.

Emergency Suspension

A student may be removed immediately from the School or School property—without following the suspension or expulsion procedures—if the Head Administrator or his/her designee determines the student’s presence at the School creates (1) a health risk, (2) presents a danger to other persons or property or (3) seriously disrupt the School’s function.

Additionally, a student may be immediately removed from curricular or extracurricular activities by a teacher. The student will be sent to the Head Administrator or his/her designee. The teacher must submit in writing the reasons for removal.

Emergency Suspension Procedure. The following procedure shall apply to Emergency Suspensions:

- Once removed from the activity or school premises, the School shall provide the student written notice “Notice of Emergency Removal,” Form No. **3810.1**, as soon as practicable. The notice shall provide reasons for the removal and notify the student of a hearing.
- The hearing shall take place the next school day from the time of the initial order. The hearing shall be held in accordance with the Suspension hearing rules unless it is probable that the student may be subject to expulsion, in which case the hearing shall be held in accordance with the Expulsion rules. The individual who ordered, caused, or requested the emergency suspension shall present at the hearing.
- If the Head Administrator reinstates a student before the hearing, the teacher, upon request, shall be given in writing the reasons for reinstating the student.
- If the suspension is issued, the Head administrator will notify, in writing, the following parties: the Student’s parents or guardian with a “Notice of Suspension,” Form No. **3810.3**. The written notification shall explain the reasons for the suspension. The student’s parents or guardian shall also be notified, in writing with a “Notice of Suspension Letter,” Form No. **3810.4**.
- If the student appeals to the Governing Authority, the student must file a written appeal to the Governing Authority within 14 calendar days of receiving the “Notice of Intent to Suspend from School.” The Student or the Student’s parents may request the meeting be held in executive session. All decisions, however, must be acted upon in a public meeting. The Governing

Authority, by a majority vote of its full membership, shall act upon suspension by affirming the suspension, reinstating the student, or otherwise modifying the order.

Ability to Make Up Work Required

The School shall allow students to complete classroom assignments missed during both in-school and out-of-school suspensions.

Expulsion

A student may be expelled or totally removed from the education program for more than ten (10) days. Expulsions imposed with fewer days left in the school year than the expulsion requires may be extended into the following school year at the discretion of the Head Administrator or his/her designee. Instead of or in addition to serving an expulsion, the student may be required to perform community service. However, a student may not perform community service if he or she is expelled for bringing a firearm to School or onto School property.

During the student's expulsion, the School may continue educational services in an alternative setting.

Offenses worthy of Expulsion. Expellable offenses may be broken into three categories:

1. Students must be expelled for one year for the following offense:
 - a. Bringing a firearm to the School, onto School property, or on any property used or leased by the School for school; extracurricular events; or school-related events. On a case-by-case basis, the School may reduce this disciplinary action in accordance with section 3313.661 of the Revised Code.
2. Students may be expelled for a maximum of one (1) year for the following offenses:
 - a. Bringing a firearm to an interscholastic competition, an extracurricular event, or any other school program or activity that is not located in a school or on property that is owned or controlled by the school district. On a case-by-case basis, the School may reduce this disciplinary action in accordance with section 3313.661 of the Revised Code.
 - b. Bringing a knife capable of causing serious bodily injury or possessing a knife capable of causing serious bodily injury that was brought on by another person to the School, onto School property, or to an interscholastic competition, an extracurricular event, or any other program or activity sponsored by the School.
 - c. Making a bomb threat to a school building or any premises at which a school activity is occurring at the time under the threat.
 - d. Committing an act that is a criminal offense when committed by an adult and the offense results in serious physical harm to persons or property, *while* the student is at school, on any other property owned or controlled by the Governing Authority, at an interscholastic competition, an extracurricular event, or any other school program or activity.
3. Students may be expelled up to eighty (80) school days for the following offenses:
 - a. Serious misconduct.
 - b. Serious violation of the School rules.
 - c. Other causes.
4. Students may be expelled up to one hundred and eighty (180) school days for actions that the Head Administrator determines pose imminent and severe endangerment to the health and safety of other students or school employees, in accordance with this policy, with permissible extensions to the expulsion of up to ninety (90) days.

Definitions

A “firearm” is defined in accordance with 20 U.S.C. 7151 and means any weapon (including a starter gun which will or is designed to or may readily be converted to expel a projectile by the action of an explosive; the frame or receiver of any such weapon, any firearm or firearm silencer; or any destructive device.

A “knife” is defined as any weapon or cutting instrument consisting of a blade fastened to a handle; a razor blade; or any similar device that is used for, or is readily capable of, causing death or serious bodily injury.

"Imminent and severe endangerment" means any of the following actions taken by a student:

- Bringing a firearm to School or on School property;
- Bringing a firearm to an interscholastic competition, extracurricular event, or any other program or activity in which the School is participating;
- Bringing a knife capable of causing serious bodily injury on School property or to any event or program in which the School is participating;
- Committing an act that is a criminal offense when committed by an adult and that results in serious physical harm to persons or property while the student is on School property or at any event or program in which the School is participating.
- Making a bomb threat to a School building or to any premises at which a School activity is occurring at the time of the threat; and
- Making an articulated or verbalized threat, including a hit list, threatening manifesto, or social media post, that would lead a reasonable person to conclude that the student poses a serious threat.

A "school day" means the time during a calendar day that the School is open for instruction pursuant to the schedule adopted by the Governing Authority.

Expulsion Period Reduction. The Head Administrator may, in his/her sole judgment and discretion, modify or reduce such expulsion for a student committing serious physical harm in writing, to a period of less than one (1) year, on a case-by-case basis, upon consideration of the following:

1. Applicable State or Federal laws and regulations relating to students with disabilities (for example, where the incident involves a student with a disability and the misconduct is determined by a group of persons knowledgeable about the child to be a manifestation of the student's disability); or
2. other extenuating circumstances, including, but not limited to, the academic and disciplinary history of the student, including the student's response to the imposition of any prior discipline imposed for behavioral problems.

The Head Administrator may, in his/her sole judgment and discretion, reduce an expulsion for making a bomb threat to a period of less than one (1) year, on a case-by-case basis, upon consideration of the following:

1. Applicable State or Federal laws and regulations relating to students with disabilities (for example, where the incident involves a student with a disability and the misconduct is

- determined by a group of persons knowledgeable about the child to be a manifestation of the student's disability); or
2. other extenuating circumstances, including, but not limited to, the academic and disciplinary history of the student, including the student's response to the imposition of any prior discipline imposed for behavioral problems.

On a case-by-case basis, the head Administrator may reduce disciplinary action for all offenses involving firearms and knives.

Imminent and Severe Endangerment Expulsion. Upon the expulsion of a student for actions that the Head Administrator determines pose imminent and severe endangerment to the health and safety of other students or School employees, the Head Administrator shall develop conditions for that student to satisfy prior to the student's reinstatement.

Appropriate conditions that the Head Administrator develops for any student expelled for imminent and severe endangerment (which must be satisfied prior to reinstatement) shall be aimed at sufficient rehabilitation of the student and may include:

1. Agreement to a behavior contract which may involve the student, parent or legal guardian, and an outside agency;
2. Participation in, or completion of, an anger management program or other appropriate psychological counseling;
3. Participation in, or completion of, an alcohol and/or drug treatment program;
4. Agreement to a contract for restitution where damage to property is involved;
5. Regular progress reports; and
6. Any conditions recommended as part of the required psychological assessment to determine whether the student poses a danger to the student's self or to other students or school employees.

The Head Administrator shall provide a copy of these conditions in writing to the Governing Authority, the student, and the student's parent, guardian, or custodian at the beginning of the expulsion period.

1. Condition of assessment and payment. One of the conditions developed by the Head Administrator is an assessment to determine whether the student poses a danger to the student's self or to other students or school employees. The assessment shall be completed by a psychiatrist as defined in R.C. 5122.01, licensed psychologist, or licensed school psychologist employed or contracted by the School. The psychiatrist, psychologist, or school psychologist shall be agreed upon by both the Head Administrator and the student's parent, guardian, or custodian. If the psychiatrist, psychologist, or school psychologist is not employed or contracted by the School, the cost of the assessment shall be referred for payment to the student's health insurance. Any costs not covered by the student's health insurance shall be paid by the School. The School shall pay in full for an assessment completed by a psychiatrist, psychologist, or school psychologist that is employed or contracted by the School. The assessment shall include a determination from the psychiatrist, psychologist, or school psychologist as to whether the student poses a danger to the student's self or to other students or school employees and may include recommendations for contingent conditions on the student's reinstatement.

2. Assessment for sufficient rehabilitation. At the end of the expulsion period, the Head Administrator shall assess the student and determine whether the student has met all conditions for reinstatement set by the Head Administrator under this policy and has been determined by the Head Administrator to have shown sufficient rehabilitation, which means the student no longer poses a danger to the student's self or to other students or school employees. For an expulsion period of 180 days or an extended expulsion period of 90 days, the Head Administrator shall make this determination in consultation with a multidisciplinary team selected by the Head Administrator. The Head Administrator shall take into consideration both the assessment by the psychiatrist, psychologist, or school psychologist and whether the student has met the conditions developed by the Head Administrator at the beginning of the expulsion period. If the Head Administrator determines the student has shown sufficient rehabilitation, the Head Administrator may reinstate that student. If the student has not shown sufficient rehabilitation, the Head Administrator may extend the expulsion for an additional period not to exceed ninety (90) school days. In extending the expulsion period, the Head Administrator shall comply with the expulsion procedure in this policy.
3. Extended expulsion period. When the expulsion period is extended, the Head Administrator will develop conditions for that student to satisfy prior to that student's reinstatement, which may be the same as those developed for the original expulsion period. A copy of these conditions will be provided in writing to the Governing Authority, the student, and the student's parent, guardian, or custodian at the beginning of the extended expulsion period. At the end of the extended expulsion period, the Head Administrator will reassess the student in the manner prescribed above and may reinstate the student or may extend the expulsion for another term, not to exceed ninety (90) school days. There is no limit on the number of times the Head Administrator may extend an expulsion for imminent and severe endangerment. The expulsion procedures in this policy shall be followed for each extension.
4. Reduction of the expulsion period. Prior to the end of the original expulsion period or of an extended expulsion period, if the student has met all of the conditions developed by the Head Administrator at the beginning of the expulsion period, the Head Administrator may reduce the expulsion on a case-by-case basis. In making the determination, the Head Administrator will consider:
 - a. Applicable State or Federal laws and regulations relating to students with disabilities (for example, where the incident involves a student with a disability and the misconduct is determined by a group of persons knowledgeable about the child to be a manifestation of the student's disability); or
 - b. other extenuating circumstances, including, but not limited to, the academic and disciplinary history of the student, including the student's response to the imposition of any prior discipline imposed for behavioral problems.
5. Request for early assessment. Prior to the end of the original expulsion period or an extended expulsion period, the student or the student's parent, guardian, or custodian may request an early assessment of the student. The Head Administrator will assess the student and make a determination as to sufficient rehabilitation described above. A student or student's parent, guardian, or custodian may request one early assessment for the original expulsion period and for each extended expulsion period, if any. In making the determination, the Head Administrator will consider:
6.
 - a. Applicable State or Federal laws and regulations relating to students with disabilities (for example, where the incident involves a student with a disability and the misconduct is

- determined by a group of persons knowledgeable about the child to be a manifestation of the student's disability); or
- b. other extenuating circumstances, including, but not limited to, the academic and disciplinary history of the student, including the student's response to the imposition of any prior discipline imposed for behavioral problems.
7. Contingent conditions for reinstatement. The Head Administrator may develop contingent conditions for a student's reinstatement at the end of the expulsion period, at the conclusion of a reduced expulsion period, and/or in the course of conducting a requested early assessment. The conditions may include the conditions developed for the original expulsion period and recommendations made by the psychiatrist, psychologist, or school psychologist in the original assessment. The Head Administrator shall establish a duration under which a student must meet the contingent conditions that may extend to a student's graduation date. The Head Administrator shall provide a copy of these conditions in writing to the Governing Authority, the student, and the student's parent, guardian, or custodian when the Head Administrator makes a reinstatement determination. If a student fails to meet the contingent conditions set under this division, the Head Administrator may revoke the student's reinstatement and establish an extended expulsion period under the process in this policy.
 8. Continued education during expulsion period. Not later than fifteen (15) school days after the beginning of the original expulsion period or of any extended expulsion period for a student who does not have an IEP, or not later than ten (10) school days after the beginning of the original expulsion period or of any extended expulsion period for a student who has an IEP, the Head Administrator, in consultation with the student, the student's parent, guardian, or custodian, and the student's IEP team if the student has one, will develop a plan for the continued education of the student, which may include education by the School in an alternative setting, including instruction at home, enrollment in another School or other type of public/nonpublic school, or any other form of instruction in compliance with R.C. Ch. 3321. The Head Administrator will develop a list of such alternative educational options.
 9. Appeals. The student or the student's parent, guardian, or custodian may appeal any determination made by the Head Administrator with regard to imminent and severe endangerment expulsion under the expulsion procedure in this policy.

Expulsion Procedure. The following procedure shall apply to Expulsions:

- Before enforcing the expulsion, the Student *and* his/her parent or guardian is provided a "Notice of Intent Expel," Form No. **3810.5**. The Notice shall provide the reasons for the proposed expulsion, the time and place for the hearing.
- The Student is provided a hearing not less than three or more than five days after receiving the Notice. The student may challenge or otherwise explain the incident leading to the proposed expulsion. The hearing will be before the Head Administrator or his/her designee and the student may not call witnesses at the hearing.
- If the expulsion is issued, the Head administrator will notify, in writing, the following parties: the Student's parents or guardian and the Treasurer with a "Notice of Expulsion," Form No. **3810.6**. The written notification shall explain the reasons for the suspension. The form shall explain the right to appeal to the Governing Authority, the method of appealing to the Governing Authority, and the right to request that the hearing be held in executive session. If the expulsion is for

more than twenty (20) school days or if the expulsion will extend into the following semester or school year shall, the notice shall include information about services or programs offered by public and private agencies, including names addresses and phone numbers, that work toward improving those aspects of the student's attitudes and behavior that contributed to the incident that gave rise to the student's expulsion.

- If the student appeals to the Governing Authority, the student must file a written appeal to the Governing Authority within fourteen (14) calendar days of receiving the "Notice of Intent to Expel from School." The Student or the Student's parents may request the meeting be held in executive session. All decisions, however, must be acted upon in a public meeting. The Governing Authority, by a majority vote of its full membership, shall act upon expulsion by affirming the expulsion, reinstating the student, or otherwise modifying the order.

The Head Administrator must continue to follow through on expellable offenses, even if the expelled student withdraws from the School prior to the hearing or Head Administrator's decision.

Emergency Expulsion

A student may be removed immediately from the School or School property—without following the suspension or expulsion procedures—if the Head Administrator or his/her designee determines the student's presence at the School creates (1) a health risk, (2) presents a danger to other persons or property or (3) seriously disrupt the School's function.

Additionally, a student may be immediately removed from curricular or extracurricular activities by a teacher. The student will be sent to the Head Administrator or his/her designee. The teacher must submit in writing the reasons for removal.

Emergency Expulsion Procedure. The following procedure shall apply to Emergency Expulsion:

- Once removed from the activity or school premises, the School shall provide the student written notice "Notice of Emergency Removal," Form No. **3810.1**, as soon as practicable. The notice shall provide reasons for the removal and notify the student of a hearing.
- The hearing shall take place within the next school day from the time of the initial order. The hearing shall be held in accordance with the Expulsion hearing rules. The individual who ordered, caused, or requested the emergency expulsion shall present at the hearing.
- If the Head Administrator reinstates a student before the hearing, the teacher, upon request, shall be given in writing the reasons for reinstating the student.
- If the expulsion is issued, the Head administrator will notify, in writing, the following parties: the Student's parents or guardian and the Treasurer with a "Notice of Expulsion," Form No. **3810.6**. The written notification shall explain the reasons for the expulsion. The form shall explain the right to appeal to the Governing Authority, the method of appealing to the Governing Authority, and the right to request that the hearing be held in executive session. If the expulsion is for more than twenty school days or if the expulsion will extend into the following semester or school year shall, the notice shall include information about services or programs offered by public and private agencies, including names addresses and phone numbers, that work toward improving those aspects of the student's attitudes and behavior that contributed to the incident that gave rise to the student's expulsion.
- If the student appeals to the Governing Authority, the student must file a written appeal to the Governing Authority within fourteen (14) calendar days of receiving the "Notice of Intent to

Expel from School.” The Student or the Student’s parents may request the meeting be held in executive session. All decisions, however, must be acted upon in a public meeting. The Governing Authority, by a majority vote of its full membership, shall act upon expulsion by affirming the expulsion, reinstating the student, or otherwise modifying the order.

Consultation with Mental Health Professional

Beginning 2018-2019 school year, the Head Administrator shall consult with a mental health professional under contract with the School prior to issuing an out-of-school suspension or expulsion for a student in any of grades pre-K through three. If the events leading up to suspension or expulsion indicate a need for additional mental health services, the Head Administrator or mental health professional must, without a financial burden to the School, assist the student's parent or guardian with locating providers or obtaining those services. That assistance might include referral to an independent mental health professional. This does not limit a School's responsibility to provide special education and support services in the manner required by Ohio and federal law.

The School, its governing authority, and its employees shall be immune from civil damages for injury, death, or loss to person or property arising from a school employee’s decision not to provide or procure mental health services for a suspended or expelled student, unless the decision is made with malicious purpose, in bad faith, or in a wanton or reckless manner.

Permanent Exclusion

The Head Administrator may seek permanent exclusion pursuant to the process outlined in Ohio Revised Code 3313.662. The acts (as provided under 3313.662) qualifying a student for permanent exclusion are specified. A student must be 16 or older (at the time the act was committed) and convicted or adjudicated delinquent for violating any of the following:

- 2923.122: Illegal conveyance or possession of a deadly weapon or dangerous ordinance or of object indistinguishable from a firearm in a school safety zone.

Any of the following acts, if committed on property owned or controlled by, or at an activity held under the auspices of the school:

- 2923.12: Carrying Concealed Weapons
- 2925.03: Trafficking or Aggravated Trafficking of Drugs
- 2925.11: Possession of Controlled Substances (Other than minor drug offenses)

Any of the following acts, if committed on property owned or controlled by, or at an activity held under the auspices of the school if the victim was an employee of the school:

- 2903.01: Aggravated Murder
- 2903.02: Murder
- 2903.03: Voluntary Manslaughter
- 2903.04: Involuntary Manslaughter
- 2903.11: Felonious Assault
- 2903.12: Aggravated Assault
- 2907.02: Rape
- 2907.05: Gross Sexual Imposition

- Complicity for any of the above criminal acts, regardless of whether the complicity occurred on property owned or controlled by, or at an activity held under the auspices of the school.

After obtaining or receiving proof of the conviction or adjudication and determining that it is appropriate to seek permanent exclusion, the Head Administrator shall give the student and the student's parent, guardian, or custodian written notice that the Head Administrator intends to recommend to the Governing Authority that the Governing Authority adopt a resolution requesting the superintendent of public instruction to permanently exclude the pupil from public school attendance.

Sealed Records

The School shall comply with any court order regarding the sealing of a current or former student's records under R.C. 2151.357; provided, however, that the School shall retain records as permitted under R.C. 2151.357 for any student who has been permanently excluded under Sections 3301.121 and 3313.62 of the Revised Code, where those records are regarding an adjudication that the student is a delinquent child that was used as the basis for the student's permanent expulsions. Except as permitted by Sections 3301.121, 3313.662, or 2151.358 of the Revised Code, no officer or employee of the School shall release, disseminate, or otherwise make available records of a student which have been sealed pursuant to R.C. 2151.357 for any purpose involving employment, bonding, licensing, or education to any person or to any department, agency, or other instrumentality of the state or of any of its political subdivisions any information or other data concerning any arrest, taking into custody, complaint, indictment, information, trial, hearing, adjudication, or correctional supervision.

General Policies regarding Exclusion

While a student is excluded, whether suspended, removed, or expelled, the Governing Authority prohibits the Student from attending or participating in all School functions or entering the School. The Head Administrator may permit the student to do otherwise.

Reporting to the Department of Education

The Governing Authority will provide the Department of Education and Workforce records of each "imminent and severe endangerment" expulsion made under this policy and any changes to a student's expulsion status. Such records shall not include a student's name and shall be provided to the department in accordance with sections 3301.0714 and 3319.321 of the Revised Code. Such records shall include all of the following:

- 1) The name of the student's school;
- 2) The reason or reasons for the student's expulsion;
- 3) The duration of the student's expulsion and any extension of the expulsion;
- 4) The total number of students expelled by the School in the school year as of the date of the report; and
- 5) The student's age, gender, race, and other demographic information.

Additionally, the School must report to the Department of Education and Workforce, information on whether the School has implemented a PBIS framework.

This policy will be posted in a central location. Additionally, this policy will be made available to students.

Ohio: R.C. 2151.357, 3301.121, 3313.66, R.C. 3313.661, R.C. 3313.662, R.C. 3313.664; R.C. 3321.13; R.C. 3314.03; 3314.146.

Cross Reference: Policy No. **4510**, Tiered Student Discipline Program; Policy No. **4520**, Transportation Discipline; Policy No. **4540**, Disciplining a 504 Student; Policy No. **4550**, Suspension & Expulsion Policy for Students with Disabilities.

Modified April 1,2025

4540 – Disciplining a 504 Student

When a student that is disabled under Section 504 of the Rehabilitation act (a “504 Student”) violates the School’s code of conduct, the 504 Student shall be disciplined according to this policy.

If the 504 Student’s discipline is considered a Change in Placement, then the School shall follow the discipline in accordance with Policy No. **4530**, Suspension & Expulsion Policy. If the discipline is not considered a Change in Placement, then the School may discipline the 504 Student in the same way the School would discipline without disabilities.

A Change in Placement is defined as:

- the Student’s removal is for more than 10 consecutive days, or
- the Student has been subjected to a series of removals that constitute a pattern, and all the following exist:
 - the series of removals totals more than 10 school days in a year;
 - the student’s behavior is substantially similar to the student’s behavior in previous incidents that resulted in the series of removals; and
 - additional facts (length of each removal, total amount of time removed, proximity in time of the removals).

The School, however, should not follow this policy when the discipline pertains to the use or possession of illegal drugs or alcohol. When a 504 Student violates the School’s drug/alcohol policy, the School shall follow Policy No. **4530**, Suspension & Expulsion Policy. The 504 Student may be disciplined to the same extent as a non-disabled student.

Additionally, the School may conduct an emergency removal of a 504 Student when there is a (1) parental agreement to an interim placement or (2) through injunctive relief from a court, when the current placement presents a substantial likelihood of resulting in injury to the student or others.

Federal: 29 U.S.C. 705.

Cross Reference: Policy No.**3710**, Rights of Individuals with Disabilities; Policy No. **3720**, Section 504 of the Rehabilitation Act of 1973; Policy No. **4520**, Transportation Discipline; Policy No. **4530**, Suspension & Expulsion Policy; Policy No. **4550**, Suspension & Expulsion Policy for Students with Disabilities.

4550 – Suspension & Expulsion for Students with Disabilities

When a student with disabilities violates the School's Code of Conduct, the student shall be disciplined according to applicable laws, this School's policies regarding discipline, and all other special education policies.

Pursuant to Ohio law, the School's discipline varies depending on whether the discipline is a Change in Placement. A Change in Placement occurs if:

- the Student's removal is for more than 10 consecutive days; or
- the Student has been subjected to a series of removals that constitute a pattern, and all the following exist:
 - the series of removals totals more than 10 school days in a year
 - the child's behavior is substantially similar to the child's behavior in previous incidents that resulted in the series of removals; and
 - additional facts (length of each removal, total amount of time removed, proximity in time of the removals).

Removal for 10 Days or Less (Not a Change in Placement)

The School may remove a child with a disability without any additional action if the child is removed for a period of 10 days or less. A child may be removed by being placed in an appropriate interim alternative educational setting, another setting, or suspension. Services shall be offered as follows:

- *The removal is not for 10 consecutive days.* The School shall provide services only to the extent that services are provided to a child without disabilities who are similarly removed.
- *The removal is for more than 10 days in the same school year, but for separate incidents of misconduct* (as long as those removals do not constitute a change of placement). The School shall provide services, as determined by school personnel in consultation with at least one of the child's teachers, so as to enable the child to continue to participate in the general education curriculum, although in another setting, and to progress toward meeting the goals set out in the child's IEP.

Removal for more than 10 Days (Change in Placement)

If a Change of Placement occurs, the School must (1) provide notice to the parents and (2) conduct a Manifestation Determination Review (MDR). First, the notice to the parents must inform the parents of all the procedural safeguards, including an MDR, a right to receive services, and a continuation of services for a free appropriate public education. Second, the School must conduct an MDR. A MDR seeks to determine if the conduct was a manifestation of the student's disability. A MDR is attended by the student's parents and relevant members of the IEP team and reviews all relevant information in the child's file, including the child's IEP, any teacher observations and any relevant information provided by the parents.

Through the MDR, the School shall determine whether the conduct is a manifestation of the student's disability. The conduct is a manifestation of the student's disability if it either was (a) caused by or had

a direct and substantial relationship to, the child's disability; or (b) the direct result of the school districts failure to implement the IEP.

- *MDR determines the conduct **was not** a manifestation of the disability.* The School shall (1) ensure that the child continues to receive educational services so as to enable the child to continue to participate in the general education curriculum, although in another setting, and to progress towards meeting the goals set out in the child's IEP and (2) ensure that the child receives, as appropriate, a functional behavioral assessment and behavioral intervention services and modifications that are designed to address the behavior violation so that it does not recur.
- *MDR determines the conduct **was** a manifestation of the disability.* Upon determining the behavior is a manifestation of the disability, the School must make several determinations. First, it must determine if the behavior was a direct result of the School's failure to implement the IEP. If it is, the School must take immediate steps to remedy the deficiencies. Second, the School must conduct a functional behavioral assessment within ten (10) days of the manifestation determination and complete the assessment as soon as practicable, unless the School conducted a functional behavior assessment prior to the manifestation determination. If the assessment was already made, the IEP team must review and modify the plan to address the behavior. Third, the School must return the student to placement from which he or she was removed.

Special Circumstances

In limited circumstances, the School may remove a student to an interim alternative educational setting (IAES) for not more than forty-five (45) school days without regard to whether the conduct was a manifestation of the disability. The following circumstances include:

- the student carries a weapon to or possesses a weapon at school, on school premises, or to or at a school function;
- the student knowingly possesses or uses illegal drugs, or sells or solicits the sale of a controlled substance, while at school, on school premises, or at a school function under the jurisdiction of the ODE or the School; or
- The student has inflicted serious bodily injury on another person while at school, on school premises, or at a school function.

The terms-controlled substance, weapon, illegal drug and serious bodily injury are defined in accord with O.A.C. 3301-51-05(K)(20)(h)(i).

The Student's IEP team will meet following the placement in an IAES. The IEP team will determine (1) what the permanent setting will be, (2) take steps to review and modify the plan, and (3) continue to provide the student with educational services to enable the student to participate in the general education curriculum and to progress toward IEP goals.

Due Process

The Student's parents or guardians may appeal either the outcome of an MDR or the decision regarding placement by filing a due process complaint.

The School may request an expedited due process hearing if it believes that maintaining the current placement of the student is substantially likely to result in injury to the child or to others.

Expedited hearings must occur within twenty (20) school days after the date the due process complaint is filed, and no extensions of time shall be granted.

Federal: 20 U.S.C. 1041 et seq., 20 USC 1415.

Ohio: O.A.C. 3301-51-05(K)(20)(h)(i).

Cross Reference: Policy No. **3710**, Rights of Individuals with Disabilities; Policy No. **3720**, Section 504 of the Rehabilitation Act of 1973; Policy No. **4520**, Transportation Discipline; Policy No. **4530**, Suspension & Expulsion Policy; Policy No. **4540**, Disciplining a 504 Student; Policy No. **4550**, Suspension & Expulsion Policy for Students with Disabilities.

4560 – Positive Behavior Intervention Supports, Restraint, Seclusion, and Prohibited Practices

The School shall make every effort to prevent the need for the use of Restraint and/or Seclusion.

Restraint and/or Seclusion shall not be used, except when there is an immediate risk of physical harm to the students or others and shall only occur in a manner that complies with this policy and protects the safety of all children and adults at the School. Every use of Restraint and/or Seclusion shall be documented and reported.

Positive Behavior Intervention and Supports

To greatly reduce, or in most cases eliminate, the need to use Restraint and/or Seclusion, the School shall implement an evidence-based system of Positive Behavioral Intervention and Supports (PBIS System). The School shall conform to the standards, definitions, and requirements set forth in Ohio Adm. Code 3301-35-15 and ODE's Policy on Positive Behavior Interventions and Support, and Restraint and Seclusion. The PBIS System shall encompass a wide range of systemic and individualized positive strategies to reinforce desired behaviors, diminish recurrences of challenging behaviors, and teach appropriate behaviors. The PBIS System applies to all students, staff, and settings.

The PBIS System shall include:

- Trained school staff to identify conditions such where, under what conditions, with whom and why specific inappropriate behavior may occur;
- Preventative assessments, which should include: a review of existing data, interviews with parents; family members; and students, examination of previous, and existing behavioral intervention plans;
 - Using the above data, the School shall develop and implement preventative behavioral interventions and teach appropriate behavior.
- A system that will support students' efforts to manage their own behavior, implement instructing techniques in how to self-manage behavior and decrease the development of new problem behaviors, decrease the development of new problem behaviors, prevent worsening of existing problem behavior, redesign learning/teaching environments to eliminate triggers and maintainers of problem behaviors; and
- Family involvement.

Restraint

The only type of restraint permitted is Physical Restraint, and any use of Physical Restraint must comply with this Policy.

Physical Restraint is defined as the use of physical contact that immobilizes or reduces the ability of a student to move his/her arms, legs, body, or head freely. Physical Restraint does not include—and this Policy does not apply to—brief, but necessary physical contact used to break up a fight, to knock a weapon away, to calm or comfort, to assist a student in completing a task where the student does not resist the contact, or to prevent an impulsive behavior threatening the student's behavior.

Physical Restraint may only be used:

- when there is an immediate risk of physical harm to the student or others and no other safe and effective intervention is possible, but in no circumstances may not be used for punishment or discipline or as a substitute for other less restrictive means of assisting a student in regaining control;
- in a manner that is age and developmentally appropriate;
- by Student Personnel who are trained in safe restraint techniques, except in the case of unavoidable emergency situations when trained personnel are not immediately available; and
- by Student Personnel in accordance with Ohio law.

Procedure for using Physical Restraint. If Student Personnel use Physical Restraint, Student Personnel must:

- be appropriately trained to protect the care, welfare, dignity, and safety of the student;
- continually observe the student in restraint for indications of physical or mental distress and seek immediate medical assistance if there is a concern;
- use verbal strategies and research-based de-escalation techniques in an effort to help the student regain control;
- remove the student from physical restraint immediately when the immediate risk of physical harm to self or others has dissipated;
- conduct a de-briefing including all involved staff to evaluate the trigger for the incident, staff response, and methods to address the student's behavioral needs; and
- complete all required reports and document staff's observations of the student.

Prohibited forms of restraint. The School prohibits the following forms of restraint under all circumstances, including emergency safety situations:

- "Prone Restraint" or a physical or mechanical restraint while the student is in the face down position.
- physical restraints that obstruct the airway of a student.
- physical restraints that interfere with a student's primary mode of communication.
- any restraint that unduly risks serious harm or needless pain to the student. This includes intentionally, knowingly, or recklessly using any of the following techniques:
 - uses any method that is capable of causing loss of consciousness or harm to the neck or restricting respiration in any way;
 - pins down with knees to torso, head and/or neck;
 - includes using pressure points, pain compliance, and joint manipulation techniques;
 - drags or lifts of the student by the hair or ear;
 - uses other students or untrained staff to assist with the hold or restraint; or
 - secures a student to another student or to a fixed object.
- restraint of preschool children in violation of paragraph (D) of rule 3301-37-10 of the Administrative code.
- "Mechanical Restraint" or any method that restricts a student's freedom of movement, physical activity, or normal use of the body, using an appliance or device manufactured for this purpose. This does not mean devices used for the specific and approved therapeutic or safety purpose for which such device was designed including restraints for medical immobilization, adaptive devices or mechanical supports to allow for greater freedom of mobility, and vehicle safety restraints when used as intended during the transport of a student.

- “Chemical Restraint” or any drug or medication used to control a student’s behavior or restrict freedom of movement. This does not include drugs or medications prescribed by a qualified health professional for standard treatment of the student’s medical or psychiatric condition. This also does not include drugs or medications administered as prescribed the qualified health professional acting under the scope of Ohio law.

Seclusion

Student Personnel may only use seclusion in accordance with this Policy.

Seclusion is defined as the involuntary isolation of a student in a room, enclosure or space from which the student is prohibited from leaving by physical restraint, closed door, or another physical barrier. Seclusion is a last resort, safety intervention that provides an opportunity for the student to regain self-control.

Seclusion may be used only:

- if a student’s behavior poses an immediate risk of physical harm to the student or others and no other safe or effective intervention is available;
- as a last resort to provide an opportunity for the student to regain control of his or her actions; and
- in a room or area that is (1) not locked and (2) provides for adequate space, lighting, ventilation, clear visibility, and the student’s safety.

Seclusion shall not be used:

- for the convenience of staff;
- as a substitute for an educational program;
- as a form of discipline/punishment;
- with preschool students in violation of Ohio Adm. Code Rule 3301.-37-10(D);
- as a substitute for less restrictive alternatives, inadequate staff, staff training in positive behavior supports and crisis prevention or intervention; or
- as a means to coerce, retaliate, or in a manner that endangers a student.

Procedure for using Seclusion. If Student Personnel use seclusion, Student Personnel must:

- continually observe the student in seclusion for indications of physical or mental distress and seek immediate medical assistance if there is a concern;
- use verbal strategies and research-based de-escalation techniques in an effort to help the student regain control;
- remove the student from seclusion when the immediate risk of physical harm to self or others has dissipated;
- conduct a de-briefing including all involved staff to evaluate the trigger for the incident, staff response, and methods to address the student’s behavioral needs; and
- complete all required reports and document staff’s observations of the student.

Additional Prohibited Practices

The School prohibits the following practices under any circumstances:

- corporal punishment;
- *child endangerment*, as defined in R.C. 2919.22;

- deprivation of basic needs; and
- *Aversive Behavioral Interventions*. Aversive Behavioral Intervention is defined as any interventions that are intended to induce pain or discomfort to a student for the purpose of eliminating or reducing maladaptive behaviors. This is defined to include applications of noxious, painful and/or intrusive stimuli, including any form of noxious, painful, or intrusive spray, inhalants or tastes.

Reporting Restraint and/or Seclusion

Each use of Restraint and/or Seclusion shall be documented in writing and reported immediately to the building administration and the parent(s).

Additionally, the use of Restraint and/or Seclusion shall be documented in a written report. A copy of the written report shall be made available to the parent or guardian within twenty-four (24) hours of the use of Restraint and/or Seclusion. The School shall maintain a copy of the report in the student's file. These reports are educational records subject to the Family Educational Right to Privacy Act (FERPA). Pursuant to FERPA, the School is prohibited from releasing any personally identifiable information to anyone other than the parent.

The School shall report information concerning its use of restraint and seclusion annually to the Ohio Department of Education.

Repeated Dangerous Behavior

If a student repeatedly engages in dangerous behavior that leads to instances of restraint and/or seclusion, the School shall conduct a functional behavioral assessment to identify the student's needs and more effective ways of addressing those needs. If necessary, this functional behavioral assessment should be followed by a behavioral intervention plan that incorporates appropriate positive behavioral interventions

School District Monitoring and Complaint Procedures

Monitoring Procedure. To ensure this Policy is implemented, the School shall establish a monitoring procedure.

Complaint Procedure. The School shall also adopt a complaint procedure. The Complaint procedure shall be developed as follows:

- A parent may present written complaints to the Head Administrator to initiate a complaint investigation by the School regarding an incident of restraint and/or seclusion
- The School will respond to the Complaint within thirty days of the complaint's filing.

Availability of IDEA Complaint Process for Students with Disabilities

The Parent of a student with disability may choose to file a complaint with the Ohio Department of Education, Office for Exceptional Children (the "Office"), in accordance with the complaint procedures available concerning student's disabilities. Complaints alleging injuries to a student with a disability or

the use of restraints and/or seclusion shall not be deemed insufficient on the face if they are framed within the context of IDEA, including:

- a pattern of challenging behaviors that are related to the student's disability;
- whether the student has had or should have a functional behavioral assessment (FBA) or a positive behavior support plan (PBSP);
- whether the FBA and the PBSP are appropriate
- whether the student's behavior and interventions are addressed or should have been addressed in the IEP; and
- whether staff has been sufficiently trained in de-escalation and restraint techniques.

Training and Professional Development

The School shall train its staff in accordance with this Policy. The training shall include the following components:

- All student personnel shall be trained annually on the requirements of this Policy, O.A.C. 3301-35-15, and the School's policies and procedures regarding restraint and seclusion. Student Personnel include teachers, principals, counselors, social workers, school resource officers, teacher's aids, psychologists, bus drivers, or other School staff who interact directly with students.
- The Head Administrator shall develop a plan regarding training student personnel as necessary to implement PBIS. This may be a multi-year process for a School that is not currently implementing PBIS across the entire program.
- The Head Administrator shall ensure that an adequate number of personnel in each building are trained in crisis management and de-escalation techniques, and that their training is kept current in accordance with the requirements of the provider of the training.

Disseminating this Policy

This Policy shall be made available to parents annually. Additionally, if the School has a website, the School shall post this Policy on its website.

Ohio: O.A.C. 3301-35-15; Governor's Executive Order 2009-135; Ohio Department of Education Policy on Positive Behavior Interventions and Support, Restraint, and Seclusion (January 2013).

Cross Reference: Policy No. **2670** Public Conduct on School Property; Policy No. **4103**, Harassment and Sexual Harassment; Policy No. **4104**, Policy on Harassment, Intimidation, and Bullying; Policy No. **4105**, Anti-Hazing Policy; Policy No. **4510**, Tiered Student Discipline Program; Policy No. **4520**, Transportation Discipline; Policy No. **4530**, Suspension & Expulsion Policy; Policy No. **4540**, Disciplining a 504 Student; Policy No. **4550**, Suspension & Expulsion Policy for Students with Disabilities.

4600 – Student Activities

Policy No. 4610

4610 – Student Publications Sponsored by the School

The School understands that students often learn by actively participating in applied projects such as student publications. Whether a student publication or any part of a student publication will be published shall be decided by the student publication's adviser. The adviser's decision to publish or not to publish may be appealed to the Head Administrator or his/her designee.

In determining whether something is publishable as a student publication, the following guidelines shall be followed:

- the publication must include the student or organization's name;
- the publication's contents must be written responsibly and, in a manner, based upon professional standards of accuracy, objectivity, and fairness;
- if a viewpoint is provided on an issue, an equal opportunity must be given to the opposing view;
- student publications must be written in a manner that is appropriate for all students at the School; and
- before publication, the School may review the student publication to ensure the publication conforms with the First Amendment.

Additionally, the School will not publish any publication that does any of the following:

- infringe upon the rights of others and may not be libelous or defamatory, obscene to minors, incite violence, substantially disrupt the educational process, nor promote illegal activities; and
- grossly prejudice any ethnic, religious, racial, or other delineated group; nor seek to establish a particular religious denomination, sect, or point of view.

School Officials may regulate the time, place, and manner of distribution.

Advertising is permitted in all school-sponsored publications. Prior to being published, the Head Administrator or his/her designee may approve all advertisements. Advertisements are subject to the same general restrictions as School Publications.

Cross Reference: Policy No. **4410.1**, Student Rights and Responsibilities; Policy No. **4460**, Assembling and Disorder; Policy No. **3843**, Obscene Materials.

4620 – Student Groups & Activities

All extracurricular student groups and activities must be approved by the Head Administrator or his/her designee prior to the group being formed. In deciding whether to approve the group, the Head Administrator may consider whether the group has a clear and appropriate purpose, is consistent with the School's educational mission, complies with the School's policies; local laws; state laws; and federal laws, and any other relevant factors.

Cross Reference: Policy No. **4106**, Policy on Gang Activity & Other Prohibited Groups; Policy No. **4410.1**, Student Bill of Rights & Responsibilities.

4630 – School-Sponsored Trips

Student learning and the School's educational mission are supplemented by Field Trips and School-Related Trips. To ensure these trips support the School's mission and are consistent with the School's policies and are academically enriching, this Policy regulates the various aspects of school-sponsored trips.

A "Field Trip" is defined as a school supervised, learning experience that takes students off the School's property to learn about an area that is directly related to a particular subject matter.

A "School-Related Trip" is defined as a planned activity that takes students off the School's property in an area related to the School's mission. School-related trips include athletic trips.

For a Field Trip to be approved, the Field Trip must:

- be approved by the Head Administrator or his designee;
- be educational in nature and relate to the course being offered;
- accomplish academic objectives;
- be under the School's supervision; and
- include a planned itinerary.

Field trips not approved in the manner above are not sponsored by the School. The School does not endorse, support or assume liability for unauthorized Field Trips or School-Related Trips even if they are conducted by the School's staff, volunteers, or parents.

Field Trips may include a fee. No student shall be prohibited from attending the trip because he/she is unable to afford the fee. All students attending the Field Trip must turn in a completed Field Trip Permission Form, Form No. **4630.1**. Students that attend the Field Trip are not considered absent from school. Students that do not participate in the Field Trip shall not be punished academically. If an assignment is given in conjunction with the Field Trip, non-attending students shall be given an alternative assignment.

While on a Field Trip or School-Related Trip:

- students remain subject to the School's rules and policies;
- a copy of each attending student's Emergency Medical Authorization Form shall be maintained; and
- the staff shall not change the trip's itinerary, except where the student's health or safety is in danger or circumstances beyond the control of the staff have occurred. Should the staff member change the trip's itinerary, the administration shall be notified immediately.

Cross Reference: Policy No. **2410**, Student Medical Emergencies; Policy No. **4201**, Attendance, Absence, & Truancy; Policy No. **5443**, Reporting Accidents & Treating Injuries; Policy No. **5445**, Student Transportation in a Private Vehicle.

4630.1 – Field Trip Permission Form

I permit _____ (student's name) to attend the field trip to _____.

The Field Trip will begin on: ____/____/20____ at ____:____ am/pm

The Field Trip will conclude: ____/____/20____ at ____:____ am/pm

The Field Trip will travel by: _____ (type of transportation)

Trip Address _____; phone (____) ____-_____

The Trip will be supervised by: _____

The Purpose of the Field Trip is:

This Form must be signed by the student's parents or guardians and returned by the student in order for the student to attend the trip. While on the trip, the student will still be considered in School and *must* abide by the School's policies and code of conduct. A Teac **Parents or guardians must inform the supervising member of any medication requirements and provide necessary instructions.**

I have read the above and grant my child to attend this field trip.

Parent/Guardian Name: _____

Parent/Guardian Signature _____ Date: _____

Telephone: _____

4640 – Fundraising Activities and Projects

All fundraising activities and projects must be approved by the Head Administrator or his/her designee prior to commencing the activities. Approval must be obtained from the Head Administrator or his/her designee and must be conducted in accordance with the School's fundraising guidelines. Employees must follow all forms; rules; and regulations; maintain accurate records, safeguard funds, and deposit funds appropriately.

Individuals interested in conducting a fundraising activity or project may obtain the forms, rules, and regulations from the Head Administrator or his/her designee.

The School shall hold raffles only as permitted under ORC 2915.092 and other applicable rules and regulations. The School shall not engage or permit any illegal raffles.

Cross Reference: Policy No. **5441**, Staff and Student Boundaries; Policy No. **5451**, Contracts & Leasing; Purchasing.

4650 – Use of School Facilities by Non-School Sponsored Clubs & Activities

During in-person instructional hours, the School prohibits the School's facilities from being used by non-school sponsored clubs or activities or school-sponsored, non-curriculum-related clubs and activities.

During non-instructional hours, students may use the School to meet regardless of the activity's content or size of the group. Use is subject to the extent permitted by the owner, landlord or lease of the School.

Policy No. **6110**, Visitors; Policy No. **6120**, Volunteers.

4660 – Student Employment

The School believes that a student's focus and efforts should be on his/her education. The School understands, however, that extenuating circumstances may arise, and a student may need to work.

Students that do work while attending school, are advised to take employment that does not interfere with their ability to obtain an education. Students that do work should receive guidance in finding appropriate jobs and balancing work duties with his or their education.

Cross Reference: Policy No. **4410.1**, Student Bill of Rights & Responsibilities.

4670 – Student Violence Prevention Club

The Governing Authority permits the designation of a student-led violence prevention club for each school serving grades six through twelve. If created, each club shall do the following:

- (1) Be open to all members of the student body;
- (2) Have at least one identified adult advisor;
- (3) Implement and sustain suicide and violence prevention and social inclusion training and awareness activities in a manner consistent with Ohio law (R.C. 3301.221); and
- (4) Foster opportunities for student leadership development.

Ohio: 3313.6611

4680 – Ticketing at School-Affiliated Events

Individuals may pay cash for a ticket to a school-affiliated event, which includes an athletic event, play, musical, or any other school-related event or activity that the School conducts, sponsors, or participates in and for which the School charges admission to attend. This policy does not apply to events and activities conducted on School grounds by a private or non-School group.

In lieu of accepting cash payments on the date of an event, the School shall grant individuals a free ticket if there are still tickets available and the individual demonstrates that the individual has enough cash to cover the full cost of the ticket on a first-come, first-served basis.

There may not be different prices for tickets for a School-affiliated event based on whether those tickets are purchased using cash or any other payment method, except that the School may charge a processing fee for any ticket purchased online or by credit card.

Students currently enrolled in a school participating in the School-affiliated event will be charged a ticket price that is less than the ticket price charged for adults for the same event.

When concessions are offered at a School-affiliated event, the School will provide at least one location where an individual may pay cash for concessions and, if concessions are sold on multiple floors, at least one location on each floor that accepts cash payment.

Ohio: R.C. 3313.5319.

4690 – Discretionary Participation in Interscholastic Athletics for Unenrolled Students

The Head Administrator may afford student who is home-educated (in accordance with R.C. 3321.042) the opportunity to participate in the School's interscholastic athletics if the student was subject to any of the following by a school official, employee, or volunteer or another student from the district in which the student is participating in interscholastic athletics under R.C. 3313.537, 3313.5311, or 3313.5312:

- 1) Harassment, intimidation, or bullying as defined in Ohio law (see also Policy No. 4104);
- 2) A "qualifying offense" (see below) for which the school official, employee, or volunteer or another student has been either of the following:
 - a. Charged with, indicted for, convicted of, or pled guilty to committing;
 - b. Alleged to be or is adjudicated a delinquent child for committing; or
- 3) Conduct by a school official, employee, or volunteer that violates the licensure code of professional conduct for Ohio educators developed by the state board of education.

A "qualifying offense" means any of the following: 1) an offense of violence; 2) a violation of R.C. 2907.07 (Importuning); or 3) an attempt to commit an offense of violence or a violation of R.C. 2907.07 (Importuning).

The Head administrator shall determine the appropriate age and grade level for the school at which the student will participate in interscholastic athletics, and the home-educated student shall fulfill the same nonacademic and financial requirements as any other School participant. If, however, the student did not receive home education in the preceding grading period, the student's academic performance during the preceding grading period shall have met any academic standards for eligibility to participate in the program established by the School.

Eligibility for interscholastic athletics for a student who leaves a school district mid-year for home education shall be determined based on an interim academic assessment issued by the district in which the student was enrolled based on the student's work while enrolled in that district.

Any student who commences home education after the beginning of a school year and who is, at the time home education commences, ineligible to participate in interscholastic athletics due to failure to meet academic standards or any other requirements of the School shall not participate in interscholastic athletics under this policy until the student meets the applicable academic requirements as verified by the Head Administrator. No student under this section shall be eligible to participate in the same semester in which the student was determined ineligible.

The Head Administrator shall maintain records documenting the discretionary participation in interscholastic athletics for all home-educated students, and is encouraged to consult with legal counsel regarding students' eligibility under this policy. Prior to permitting any home-educated student to participate in interscholastic athletics under this policy, the Head Administrator shall consult with the School's insurance carrier for the purpose of ensuring coverage for unenrolled students.

Records received by the School/Head Administrator under this policy that are protected by state and federal confidentiality laws (20 USC 1232g, RC 3319.321) shall not be re-released or made available for review outside of established, preparticipation, eligibility reviews that also apply to enrolled students.

Ohio: R.C. 3313.5313. Policy Updated September 2, 2025

Section V: Personnel Handbook

5000 – Introduction

Policy No. 5010

5010 – Welcome

Staff Member,

On behalf of all the staff, I am excited to welcome you to our learning community. Our staff members serve as our direct link to the students and play a vital role in ensuring our students' success. As a result, it is essential that we place our staff in a position to succeed.

With that goal in mind, this Personnel Handbook has been created. We require all staff members to read and become familiar with it. As you look through the Handbook, you will gain a stronger understanding of our educational and administrative policies.

The Handbook strives to address a wide range of topics. Should you have any questions or would like further explanation of a policy, please contact your immediate supervisor.

Thank you and welcome,

Dr. Jeremy Ervin
Founder and Chief Administrative Officer

5020 – About this Handbook

This Handbook has been developed to give you an overview about the School's policies, expectations, rules, procedures, and benefits. As the Handbook is important to understanding your job, the School requires you to read and understand all the policies. The School requires you to sign and return Form **5020.1**, Employee Acknowledgment Form.

Understand this Handbook is not intended to cover every situation which may arise during your employment but is simply a general guide about the School's policies. The School has the right to change and modify the contents, terms, policies, and benefits at any time. This Handbook does not constitute a contract of employment, nor does it constitute any contractual rights of employment.

5020.1 – Employee Acknowledgment Form

This Personnel Handbook has been prepared for your information and understanding of the policies, philosophies and practices and benefits of the School.

I, _____, have received this Handbook and understand I am required to read and understand the goals, policies, benefits, and expectations of the School, as well as my responsibilities as an employee. I understand that I am to ask questions regarding any policy that I do not understand or to discuss questions not answered in this handbook.

By signing below, I acknowledge and understand the information contained in the Employee Handbook. I understand this Handbook is not intended to cover every situation which may arise during my employment but is simply a general guide about the School's policies. I understand the School has the right to change and modify the contents, terms, policies, and benefits at any time.

Furthermore, I acknowledge that this Handbook does not constitute a contract of employment, nor does it constitute any contractual rights of employment.

I understand that this Acknowledgement form must be signed in the presence of an authorized employee of the School.

Employee Name: _____

Employee Signature: _____

Date: _____

Witness Name: _____

Witness Signature: _____

Witness Position: _____

Date: _____

5030 – Mission Statement

Community STE(A)M Academy (CSA)-Xenia exists to ignite and sustain a desire in the school family to become responsible 21st-century decision-makers, change agents, and significant contributors to our community, by providing the skills and experiences within a caring, creative, and challenging environment that equips everyone to reach their full potential.

5040 – Philosophy and Vision**Vision:**

We envision CSA-Xenia as an exemplary educational community that supports all students to engage their hearts, minds, bodies, and souls to become academically, socially, emotionally, and physically successful and ready for service to local and global communities.

Philosophy:

CSA-Xenia is a formal K-12 independent public school. The entire school will be placed with grade-level teams of teachers and groups of students that will teach all of the classes with all of those groups of students throughout the entire day, allowing for a period-free school day. These teams of teachers will collaborate to instruct interdisciplinary units of study. Each team will have direct access to an Art coach, literacy coach, STEM coach, and Director of Enterprises, ensuring the implementation of the school's mission from K-12 grade. Even though there will be no specific periods, each team of teachers will decide the flow of the day, which may change as needed for each unit, since different projects require different needs for teachers and resources. There will also be specific days and times when "specials" will occur within a team. These specific times, like when the 2nd-grade goes to the YMCA to learn how to swim, those teachers will have preparation time. Also, the teacher's contracts will be crafted that each school day will have time built in with no students to co-plan. The school day will also have advisory time to allow teachers and students to interact for the purpose of advising on academic, social, emotional, or future career or college plans.

It is essential that all staff are part of the main instructional focus of CSA-Xenia, which is learning. Every position has a specific role for providing some part in learning. Even though teachers have a very direct link to the students, each employee should accentuate the community of learners. Teachers understand that teaching is a constant stream of decision-making that if made appropriately increases the opportunity for learning. Every decision made should acknowledge that all students can learn, even if it is not the same way or day.

Student learning is the key to instruction and the goal of education. Learning is the process to make visible deep understanding of usable knowledge, essential skills, and community dispositions through explanation, interpretation, application, analyzation, transferability, empathy, self-awareness, and reflection. As students develop the tools and strategies of learning, their ability to acquire new knowledge, apply it for community needs, and think critically and creatively will improve and encourage lifelong contributions to society.

Developing the STE(A)M curriculum to reflect project- and problem-based learning within a continuum of inquiry processes that develop and increase in rigor as students grow in their ability to acquire and apply knowledge and skills throughout their K-12 education will begin in the initial year of the school prior to student enrollment. Specifically, during the planning year, the Governing Board will establish a standing Curriculum Committee with a minimum of 1 board member, who will establish the members from the STE(A)M Advisory Group, current CSA-Xenia teaching or non-teaching staff, and Chief

Administrative Officer (or designee) to ensure representation of K-12 teachers (with minimum of 1 from K-3, 6-8, and 9-12 to form 3 different sub-committees), higher education faculty and community/industry professionals. This Curriculum Committee will design interdisciplinary project- and problem-based curricula that will align with state academic learning outcomes and form the basis of STEAM Mastery.

Each class will be segmented into competency units of projects of which students will be required to achieve mastery of the content and other performance requirements (e.g., 21st-century skills) in each unit before advancing to the next. Credit will be awarded when mastery is achieved in all segments of the class. Each grade-level/subject class will have structure but offer significant opportunities for students to advance through the units at their own pace. The Curriculum Committee will develop a performance-based plan to determine the specific curricular competencies for each class and will be in full compliance with the State of Ohio's Learning Standards.

To ensure effective design of this innovative curriculum, CSA-Xenia will hire newly formed grades of teacher's months prior to the beginning of the school year, to create unit plans appropriate to the grade-level content, 21st-century skills, and service-learning projects. This early hiring practice will allow the team of teachers to implement the curriculum guide into practical STEAM-education instructional plans. For example, teachers would need to understand the school's resources and physical space to fully utilize them in their units. The school's "creative spaces" require substantial time of preparation for the teachers to effectively use. "Creative spaces" are collaborative areas in the building that school children, teachers, "School to Home" volunteers, college students, graduate students, and community/industry liaisons work in unison on projects initiated by the "Director of Community Outreach & Service-Learning," part of the CSA-Xenia Administrative team. Each of these units will be crafted around the Buck Institute for Education's Gold Standard Approach to PBL's Seven Essential Project Design Elements and the Seven Project Based Teaching Practices.

5050 – Equal Opportunity

It is the policy of the School to provide equal employment opportunities, and to administer its personnel practices and maintain an environment free of discrimination or harassment on the basis of race, color, national origin, religion, sex, age, disability, genetic information, marital status, veteran status or any other unlawful criterion or circumstance. The School prohibits and will not tolerate any such discrimination or harassment.

5060 – Non-Discrimination Policy

It is the policy of the School not to discriminate on the basis of race, color, national origin, religion, sex, age, disability, genetic information, marital status, veteran status or any other unlawful criterion or circumstance in any of its employment practices. Such practices include but are not limited to, recruiting, hiring, placement, retention, promotion or compensation, layoff or termination, professional development, and performance appraisals.

For qualified individuals with known disabilities, the School shall make reasonable accommodations for such individuals unless doing so would result in an undue hardship.

To further this policy, the Governing Authority strongly urges all staff members with a question or concern regarding workplace discrimination to discuss the matter to the Head Administrator or his/her designee. The Governing Authority prohibits any retaliatory behavior directed against those that raise concerns or make a report. Anyone who is determined to have discriminated against others or to have retaliated because another reported discrimination will be disciplined and may be terminated.

The Governing Authority also encourages all staff members to develop their own personal commitment to the concepts of equal opportunity described above.

Federal: 42 U.S.C. 1210, 42 U.S.C. 2000, 42 U.S.C. 2000, et. seq.

Ohio: R.C. 4112.02, 4117.17.

Cross Reference: Policy No. **5050**, Equal Opportunity; Policy No. **3700**, Individuals with Disabilities.

5070 – Anti-Harassment Policy

Harassment of any employee is not tolerated, condoned, or allowed by other employees, non-employees who conduct business with the School, or any other person.

Harassment takes many forms and includes, but is not limited to, conduct that has the purpose or effect of creating a hostile, abusive, intimidating, teasing, threatening, or discriminatory environment through verbal, physical, or visual acts because of race, color, national origin, religion, sex, age, disability, genetic information, marital status, veteran status or any other unlawful criterion or circumstance in any of its employment practices. Harassment may occur in regard to hiring, terms of employment, evaluation, promotion, or other aspects of employment. Sexual Harassment is a form of harassment that includes, but is not limited to unwelcome insults, advancements, requests for sexual favors, verbal and/or physical conduct of a sexual nature.

This Policy applies to all employees. All incidents should be reported, regardless of the offender's position or status.

This Policy applies in the workplace and work-related setting including, but not limited to school trips, meetings, and school-related social events.

Addressing Harassment

The School asks all individuals who believe they are being harassed to address the perceived harassment. Individuals may proceed by: (1) informally confronting the alleged harasser and/or (2) filing a complaint.

Informal Confrontation. If employees believe they have been harassed, and they feel able and comfortable doing so, they may promptly notify the offender of his/her behavior, insist it is unwelcome, and ask the offender to stop. In some situations, an informal confrontation may be impractical or ineffective. In these instances, individuals shall not informally confront the offender and shall file a complaint.

Formal Complaint. Individuals that believe they have been harassed, or any witness of the harassment, are asked to file a complaint promptly. While there is no time limit to filing a complaint, a prompt filing will ensure an equitable process for resolving complaints.

Reports may be made using Form No. **5070.1**, Reporting Acts of Harassment. Reports shall include the following information: the identity of the individual(s) who engaged in harassment, a description of the facts, the location and time the incident occurred, and any additional witnesses to the incident.

Reports shall be delivered to the Head Administrator or his/her designee. If the alleged incidents involve the Head Administrator or his/her designee, reports shall be made directly to the President of the Governing Authority.

Once an incident is reported, an investigation will be initiated, and the incident will be reviewed. At the investigation's conclusion, the School will report its findings and decision. If the incident is verified, the harassers will be subject to discipline.

Discipline

Individuals found to have engaged in harassment will be subject to discipline as deemed appropriate by the School.

If the offender is affiliated with the School, discipline may include, but is not limited to the following:

- documenting the occurrence in the offender's personnel file,
- referring the offender to counseling,
- reprimanding the offender,
- withholding a promotion from the offender,
- demoting or reassigning the offender,
- suspending the offender temporarily without pay, and/or
- terminating the offender's employment.

If the offender does not have an affiliation with the School, the School's recourse is more limited. The School will take the appropriate actions to stop the harassment.

Confidentiality of Complaint

Throughout the investigation, the School will attempt to maintain confidentiality to the extent possible. The School may, however, need to make information public.

Protection against Retaliation

The School recognizes the importance of preventing any retaliatory acts. The School prohibits retaliatory action taken against any individual who reports harassment or assists in procedures regarding reports. Any individual that retaliates shall be subject to discipline. Disciplinary action will be the same as those committing confirmed acts of harassment.

Federal: 29 U.S.C. 206(d), 29 U.S.C. 631, 42 U.S.C. 2006(c), 42 U.S.C. 12101.

Ohio: R.C. 4112.02.

Cross Reference: Policy No. **5070**, Anti-Harassment Policy; Form **5070.1**, Reporting Acts of Harassment.

5070.1 – Reporting Acts of Harassment

Name of Reporter: _____

Date incident occurred: _____ Time: _____

Location of act: _____

Please identify any additional witness(es): _____

Please identify all Victim(s): _____

Please describe the act:

Signature _____

Date _____

5080 – Whistleblower Policy

Employees of the School are covered by Ohio's Whistleblower Laws. The Law protects employees who report violations of certain federal, state, and local laws from disciplinary or retaliatory acts.

Employees, in the course of their of employment, are required to report violations of federal, state or local law which the School has the authority to correct and reasonably believe is (1) a criminal offense likely to result in physical harm to persons or a hazard to public health and safety, (2) a felony, or (3) an improper solicitation for a campaign contribution.

To be covered by the law and this policy, an employee must orally notify the School of the violation and then file a written report describing the violation. The written report must be sufficiently detailed for corrective action to be taken. The employee must give the School twenty-four (24) hours after the report to make a good faith effort to correct the violation.

If the School does not make a good faith effort to correct the violation, the employee may file a written report with a prosecuting attorney, law enforcement officials or other appropriate persons identified by Section 4113.52 of the Revised Code.

The School will take no disciplinary or other retaliatory act against any employee who reports violations provided the employee makes a good faith effort to determine the accuracy of any information report. Any employee who initiates disciplinary action against a whistleblower shall be disciplined for their retaliatory conduct pursuant to the requirements of Ohio law and School policies.

Reports that are unreasonable or not made in good faith may be subject to disciplinary action.

Employees that believe they have been retaliated against should report the incident directly to the President of the Governing Authority of Directors.

The School must inform its employees in writing of employee whistleblower rights and protections under 41 USC 4712.

Ohio: O.R.C. 4113.51, et seq.; Federal: 41 USC 4712.

5080.1 – Notice of Whistleblower Rights

This notice is to inform employees working on federal contracts, subcontracts and grants of the rights and remedies extended by the Enhancement of Contractor Employee Whistleblower Protections.

Whistleblower protections prohibit federal contractors, subcontractors, grantees, subgrantees, or personal services contractors from retaliating against an employee who discloses information that the employee reasonably believes is evidence of: gross mismanagement of a Federal contract or grant; a gross waste of Federal funds; an abuse of authority relating to a Federal contract or grant; substantial and specific danger to public health or safety; or a violation of law, rule, or regulation related to a Federal contract (including the competition for or negotiation of a contract) or grant; to any of the persons or entities listed below: a Member of Congress or a representative of a committee of Congress; an Inspector General; the Government Accountability Office; a Federal employee responsible for contract or grant oversight or management at the relevant agency; an authorized official of the Department of Justice or other law enforcement agency; a court or grand jury; a management official or other employee of the contractor, subcontractor, or grantee who has the responsibility to investigate, discover, or address misconduct.

A person who believes they have been subjected to reprisal for a protected action may submit a complaint to the Office of the Inspector General (OIG) of the federal agency that issued the grant or contract. Complaints must be filed no more than three years after the date on which the alleged reprisal took place.

Procedures for submitting fraud, waste, abuse, and whistleblower complaints are generally accessible on agency Office of Inspector General Hotline or Whistleblower Internet sites. A reporting tool to identify and link directly to the OIG with jurisdiction over the complaint is available at [Oversight.gov](https://www.oversight.gov).

5081 – Fraud Reporting and Training

School employees and officials must report fraud, theft in office, or the misuse or misappropriation of public money to the auditor of state's fraud-reporting system.

"Misappropriation of public money" means knowingly using public money or public property for an unauthorized, improper, or unlawful purpose to serve a private or personal benefit or interest.

"Misuse of public money" means knowingly using public money or public property in a manner not authorized by law.

All School employees and officials must complete the auditor of state's training material detailing Ohio's fraud-reporting system and the means of reporting fraud, waste, and abuse.

Current employees and officials (as of the effective date of this policy) shall complete the training by November 29, 2024, unless good cause exists for completion. Subsequently, all employees and officials will complete the training every four years. New employees and officials will receive training material within thirty days after beginning employment.

For auditing purposes, the Governing Authority directs the Head Administrator to develop a system, such as the model spreadsheet on the auditor of state's website, to document when each employee is due for training and when employees have viewed the training material.

Ohio: O.R.C. 117.103; 3326.11; 4113.52.

5100 – Employment Prerequisites

Policy No. 5110

5110 – General Employment Eligibility

For the safety of the School and in compliance with state and federal law, the School requires incoming employees to pass several inquiries before being hired. Incoming employees must (1) complete a background check and (2) verify their eligibility to work in the United States.

Criminal Records Check

The School requires a Criminal Records Check of each applicant, full time, or part time, which has been recommended for employment. Applicants must complete an application from the Bureau of Criminal Identification and Investigation. The Bureau will complete the investigation and will include information from the FBI in the records check.

The School will not hire applicants if they have been convicted of certain offenses prohibited by Ohio Law and described in ORC 339.39. The School possesses a list of prohibited offenses.

The School may employ an applicant conditionally until the Criminal Records Check is completed. If the Criminal Records Check indicates the applicant does not qualify for employment, the applicant shall be released from employment.

Background checks are not required for any currently employed staff member who is a candidate for a different position in the School.

The School requires subsequent criminal checks to be conducted every five (5) years. Bus Drivers require a new check every six (6) years.

Immigration Law Compliance

The Immigration Reform and Control Act of 1986 provides measures to ensure the School is employing United States citizens and aliens that are authorized to work in the United States. In accordance with this law, each new employee must (1) present documentation regarding the employee's identity and eligibility to be employed, and (2) complete Form No. **5110.1**, the I-9 Employment Eligibility.

Rehired employees must also complete Form No. **5110.1**, the I-9 Employment Eligibility Form, if the rehired employee has not completed an I-9 form with the School within the past three (3) years, or the rehired employee's previous I-9 is no longer retained or is invalid.

The School does not unlawfully discriminate on the basis of citizenship or national origin.

Federal: 8 U.S.C. 1324.

Ohio: O.R.C. 3319.39; 3326.11; 3326.13.

Cross Reference: Policy No. **5120** Employee Designations; Policy No. **5130** Teacher requirements; Policy No. **5140**, Substitute Teachers; Policy **5150**, Educational Assistants; Policy **5160**, Other Employees; Policy **6120** Volunteers; Form No. **5110.1**, I-9 Employment Eligibility Form.

5110.1 – I-9 Employment Eligibility Form

The I-9 Employment Eligibility Form is available from the U.S. Department of Homeland Security – U.S. Citizenship and Immigration. The form may be accessed at:

<http://www.uscis.gov/i-9> .

5111 – Employee Misconduct

The School shall not employ an individual in any position if the State Board of Education permanently revoked or permanently denied the individual a license under section 3319.31 of the Revised Code or if the individual entered into a consent agreement in which the individual agreed never to apply for a license after the date on which the agreement was entered into.

O.R.C. 3314.014

5120 – Employee Designations

Employee Classifications

The School distinguishes between full-time employees and part-time employees. All employees, regardless of their classification are required by Ohio law to comply with Policy No. **5110**, General Employment Eligibility.

Full-Time Employees. A full-time employee is an employee who is expected to work an average of at least forty (40) hours a week.

Part-Time Employee. A part-time employee is an employee who is expected to work an average of less than forty (40) hours a week.

Employment Status

At Will Employment. Employees have an “employment-at-will” relationship with the School. Agreements stating otherwise must be in writing and may only be entered with employees solely by the Head Administrator. Because of the employment-at-will relationship, employees and the School are both free to terminate the employment relationship at any time and with or without cause.

Employment Contracts. Some full-time employees work under employment contracts or letters. Other employees may have supplement contracts if they perform duties in addition to their other duties. The Governing Authority must approve all contracts. All contracts are at will unless stated otherwise.

Hourly Rated Employees. Hourly rated employees are paid on a timesheet basis, are considered casual employees, and do not receive annual contracts.

Federal: 29 U.S.C. Chapter 201, et seq.

Ohio: O.R.C. 3319.086.

Cross Reference: Policy No. **5110**, General Employment Eligibility; Policy No. **5320**, Salary; Policy No. **6120**, Volunteers.

5130 – Teacher Requirements

Prior to being employed by the School, the School requires all teaching applicants to:

- provide an employment application,
- provide references and recommendation letters for employment,
- provide copy of a diploma issued by an accredited college or university & certified transcripts from the accredited colleges or universities,
- provide Teaching Certificate from the Ohio Department of Education, and
- comply with Policy No. **5110**, General Employment Eligibility.

In addition to the above requirements, the School may require teachers to possess additional training, skills, or experience for a specific position.

To be hired and to continue employment, teachers must be of sufficient physical and mental health. A teacher or other licensed education professional is prohibited from terminating their employment contract after July 10th of any school year, or during the school year prior to the last day of instruction, without the consent of the School's governing authority or operator. However, the individual may terminate their contract at any other time by giving five days written notice to the employing governing authority or operator. If an individual terminates their contract in any other manner, the employing governing authority or operator may file a complaint with the State Board of Education. After an investigation, the State Board may suspend the individual's educator license for up to one year.

Licensed Education Professionals

Licensed education professionals are prohibited from terminating their individual employment contract after July 10 of any school year or during the school year prior to the last day of instruction, without the consent of the schools governing authority or operator. However, the individual may terminate their contract at any other time by giving five days written notice to the employing governing authority or operator. If a licensed education professional terminates their contract in any other manner, the employing governing authority or operator may file a complaint with the State Board of Education. After an investigation, the State Board may suspend the individual's license educator license for up to one year.

Ohio: O.R.C. 3326.11; 3326.13.

Cross Reference: Policy No. **5110**, General Employment Eligibility; Policy No. **5620**, Ohio Teacher Residency Program.

5140 – Substitute Teachers

Prior to being employed by the School, the School requires all substitute teachers to:

- provide a valid, state-issued educator license for substitute teaching, and
- comply with Policy No. **5110**, General Employment Eligibility.

If an applicant does not possess the license for substitute teaching but can provide evidence that he/she has applied for a substitute teacher license, the School may employ the applicant for sixty (60) days pending receipt of the license. If a license is denied or not obtained within the sixty (60) day period, the applicant will be terminated.

To be hired and to continue employment, substitute teachers must be of sufficient physical and mental health.

Ohio: O.R.C. 3319.226.

Cross Reference: Policy No. **5110**, General Employment Eligibility.

5150 – Educational Assistants

An “Educational Assistant” is defined as any non teaching employee in the School who directly assists a teacher by performing duties for which a teaching license is not required. An educational assistant is neither (1) a student preparing to become a teacher or an educational assistant nor (2) a non teaching employee whose functions are solely secretarial-clerical and who do not perform any other duties of an Educational Assistant.

Application Requirements

Prior to being employed by the School, the School requires all Educational Assistant applicants to:

- provide an employment application,
- provide references and recommendation letters for employment,
- provide a copy of a state issued educational aide permit or Educational Paraprofessional License, and
- comply with Policy No. **5110**, General Employment Eligibility.

General Duties

Educational Assistants shall perform their duties under the supervision and direction of an assigned teacher. An Educational Assistant assigned to a teacher may assist in supervising students, assist with instructional tasks, and other duties that may be performed by a person not licensed to teach. The duties of an Educational Assistant need not be performed in the physical presence of the teacher to whom the Educational Assistant is assigned (the “Assigning Teacher”), but the activity shall always be under the direction of the Assigning Teacher. When the Assigning Teacher is not physically present, the Educational Assistant shall maintain the degree of control and discipline that would be maintained by the Assigning Teacher.

Educational Assistants are generally prohibited from divulging personal information concerning any student, which was obtained or obtainable while employed. An Educational Assistant may divulge, however, such personal information to either the Assigning Teacher, the school administrator in the assigning teacher’s absence, or as required in a legal proceeding. Violations of this policy are grounds for disciplinary action and/or dismissal.

To be hired and to continue employment, employees must be of sufficient physical and mental health to perform the essential functions of their jobs.

Ohio: O.R.C. 3319.088.

Cross Reference: Policy No. **5110**, General Employment Eligibility.

5160 – Other Employees

To be employed by the School, the School requires all other employees, except teachers, substitute teachers, and educational assistants, to:

- provide an employment application,
- provide references and recommendation letters for employment,
- provide any license or certificate required by law, the School, or the Governing Authority, and
- comply with the requirements of Policy No. **5110**, General Employment Eligibility.

In addition to the above requirements, the School may require employees to possess additional training, skills, or experience for a specific position.

To be hired and to continue employment, employees must be of sufficient physical and mental health.

Cross Reference: Policy No. **5110**, General Employment Eligibility.

5200 – Legal Employment Status

Policy No. 5210

5210 – Scheduling and Work Hours

As an educational institution, the School's schedule and work hours are designed to facilitate student learning. The School shall release a general schedule and work hours at the beginning of each academic year. The schedule is subject to change to ensure the School's mission is achieved.

Cross Reference: Policy No. **5120**, Employee Designations.

5220 – Organizational Communications

To ensure clear and efficient communication between staff members and the Governing Authority of Directors, the School has adopted an organizational communication policy. Staff members are to communicate all issues and concerns to the Head Administrator. The Head Administrator is to communicate these to the Governing Authority of Directors.

Exceptions to this policy are noted in the applicable policies throughout this manual.

5230 – Reductions in Staff

The Governing Authority seeks to staff the School so the School may achieve its mission. Situations may arise that require the Governing Authority to reduce the staff. The Governing Authority reserves the right to reduce staff, eliminate positions and/or otherwise act as situations arise.

Reductions in positions and staff shall be made by the Head Administrator or his/her designee. The Head Administrator or his/her designee shall report all reductions to the Governing Authority.

5240 – Resignation

Employees that wish to resign or terminate their contract must provide written notice thirty (30) days prior to the effective date of resignation or termination. Employees who are teachers have further detailed information concerning resignation in Policy No. 5130.

Cross Reference: Policy No. **5130**, Teacher Requirements.

5300 – Compensation and Benefits

Policy No. 5310

5310 – Compensation and Benefits Overview

To accomplish the School's mission, it is important to attract personnel who are motivated and excel at their respective jobs. To attract and retain personnel, the School seeks to provide competitive wages/salary, benefits, and time off. Compensation and benefits may vary based on a number of factors including, but not limited to job duties, experience, and performance.

Cross Reference: Policy No. **5320**, Salary; Policy No. **5330**, Benefits; Policy No. **5340**, Paid School Holidays; Policy No. **5350**, Time Off; Policy No. **5360**, Family Medical Leave Act Policy.

5320 – Salary

Payment of Salary

Each employee's salary will be paid in twenty-four (24) equal payments. The payments shall be distributed twice a month. Should payday fall on a weekend or holiday, the payday will be the last regular workday before the weekend or holiday.

Recording Time

The Head Administrator or his/her designee will explain to hourly employees the procedure for completing timesheets. All hourly employees are responsible for keeping accurate time. The School prohibits any employee from completing or directing another to complete another's time sheet.

Overtime

Federal law excludes exempt employees from receiving pay for working overtime. Non-exempt employees receive overtime pay when non-exempt employees work over forty (40) hours in a workweek.

A workweek is defined as Sunday through Saturday.

Overtime pay is defined as pay at one and one-half (1 ½) the regular pay.

Exempt Employees are defined as executive, administrative, professional, and outside sales. Exempt employees are required to work as many hours as needed to complete their job requirements.

Exempt Employee Salary Deductions

In compliance with the Fair Labor Standards Act, the School prohibits improper deductions from the pay of exempt employees.

Deductions from an exempt employee's pay *may be* made for the following reasons:

- the employee is absent from work for one or more full days for personal reasons other than sickness or disability;
- the employee is absent from work for one or more full days due to sickness or disability if the deduction is made in accordance with a bona fide plan, policy, or practice of providing compensation for salary lost due to illness;
- to offset amounts employees, receive as jury or witness fees, or for military pay; or
- for unpaid disciplinary suspensions of one or more full days imposed in good faith for workplace conduct rule infractions.

Also, the School is not required to pay the full salary of an exempt employee and may make either partial day or full day deductions in these circumstances:

- in the initial or terminal week of employment;
- for penalties imposed in good faith for infractions of safety rules of major significance; or;
- for weeks in which an exempt employee takes unpaid leave under the Family and Medical Leave Act.

Employees who believe that an improper deduction has been made to their salary should immediately report this information to their direct supervisor or to the Head Administrator.

Reports of improper deductions will be promptly investigated. If it is determined that an improper deduction has occurred, employees will be promptly reimbursed for any improper deduction made.

Federal: 29 U.S.C. 201.

Ohio: R.C. 4113.15.

Cross Reference: Policy No. **5310**, Compensation and Benefits Overview; Policy No. **5330**, Benefits; Policy No. **5350**, Time Off; Policy No. **5360**, Family Medical Leave Act Policy.

Updated: November 7, 2023.

5330 – Benefits

The Governing Authority realizes how benefits, personal and protective, that extend beyond an employee's salary can be of great importance. The Governing Authority seeks to provide such benefits as the Governing Authority is able within the bounds of the law and the School's mission.

Health Insurance

Health insurance is provided for all full-time employees. Part-time employees are not provided paid health insurance, unless otherwise stated in writing. The Governing Authority's contribution shall be determined prior to the start of each school year.

The following are special circumstances affecting one's health insurance:

- Employees granted a leave of absence will not receive health insurance except as required by law under the Family Medical Leave Act (FMLA). While on leave, the employee may elect to pay premiums.
- Employees who resign *before* the end of their contract year will have Governing Authority paid health insurance extended through the end of the month in which their resignation date becomes effective.
- Teachers or Teacher Aids who resign at the end of their contract year will have Governing Authority paid health insurance extended through August of that year.
- All other employees who resign at the end of a contract will have health insurance paid through the end of the month immediately following the end of the contract.

Dental and Legal Insurance

Dental and legal insurance shall be contracted for but will be paid for entirely by the employee. The employee may use his or her FSA money to cover the costs.

Annuities

The Governing Authority may contract with companies to provide tax sheltered annuities. Contributions are paid entirely by the employee and will be made through payroll deduction.

Workers' Compensation Insurance

Under Ohio law, all employees are covered by Workers' Compensation Insurance. The law provides that employees injured in the performance of their duties may be eligible for payment of medical expenses.

Any employee who is injured while at work must immediately report the injury to his/her supervisor and take all necessary steps required by law. Failure to comply with all testing required by law and regulation may make the injured employee ineligible to receive workers' compensation benefits.

Any employee that fails to report an injury while at work will be disciplined and may be discharged.

STRS/SERS

Ohio law has created two funds for payment of retirement and benefits to certain employees of the School. The retirement systems, the State Public Employee Retirement System, or SERS, and the State

Teacher Retirement System, or STRS. Not all employees or contractors will be eligible for STRS or SERS. Eligibility will be determined based on several factors including the law, particular facts, and other circumstances.

Unemployment Compensation

Ohio law insures most workers for unemployment compensation. Should an employee lose his/her job under the applicable conditions, the employee will receive income for a period of time.

Ohio: O.R.C. 3307.03, 145.03, 9.90, 4123.01, 4123.83, 4141.01.

Cross Reference: Policy No. **5310**, Compensation and Benefits Overview; Policy No. **5320**, Salary; Policy No. **5350**, Time Off; Policy No. **5360**, Family Medical Leave Act Policy.

5340 – Paid School Holidays

For all full-time employees, these are the paid school holidays (equivalent to 8 hours):

- New Year's Day
- Martin Luther King Jr. Day
- Presidents Day
- Good Friday
- Easter Monday
- Memorial Day
- Independence Day
- Labor Day
- Veterans Day
- Thanksgiving Day
- Day After Thanksgiving
- Christmas Eve
- Christmas Day

5350 – Time Off

Personal leave may be used for personal matters including vacation, illness, or family illness. Using the chart below, each full-time employee will receive a maximum paid days per year of:

Employee Contract	Max. paid days off
10-month [Academic Year]	10 (80 hours)
12-month [July 1 to June 30]	12 (96 hours)

The School requires employees to request time off as early as possible. Employees absent for unforeseen reasons, such as an emergency or illness, must notify the Head Administrator no later than 1-1/2 hours before the opening of school. Upon return, the employee must complete a return from leave form.

Unused personal leave may be accrued from one contract year to the next for up to a total of 65 days (520 hours).

If an employee is terminated or resigns, the employee will not be paid for remaining or accrued personal leave.

Emergencies may require this policy to change. If the Federal government or the State of Ohio declare a pandemic flu outbreak or other pandemic outbreak in the community, the School will not grant personal leave for vacations and will restrict personal leave to the employee's own illness or the illness of the employee's immediate family.

Vacation Leave for Administrative Staff

Administrative Staff (12-month contract) are subject to additional personal leave policy. Administrative staff includes personnel primarily engaged in administration, management, or support roles, as opposed to instruction.

Administrative Staff may take vacation leave as follows:

- All school days off during the school calendar,
- Ten (10) days (400 hours) during the months of July & June the following year.

All vacation time described above must be pre-approved as far in advance as possible but at least one month prior to the start of the requested vacation. Additionally, all vacation time off is contingent on the Administrative Staff member completing all assigned duties prior to taking vacation leave.

The School requires Administrative Staff Employees to request time off as early as possible. Employees absent for unforeseen reasons, such as an emergency or illness, must notify the Head Administrator no later than 1-1/2 hours before the opening of school. Upon return, the employee must complete a return from leave form.

Vacation leave will NOT be accrued from one year to the next. Vacation leave is a "use it or loose it" benefit.

Military Duty Leave

The School follows all laws concerning military leave and re-employment rights upon return from military leave.

Military Leave for Family Member

In Accordance with the Ohio Family Military Leave Act, the School permits a qualifying employee to take unpaid leave up to ten (10) days or eighty (80) hours, whichever is less for certain military related occurrences, when the employee is the parent, spouse, guardian or former guardian of a military member that is called to active duty or is injured, wounded, or hospitalized while serving on active duty.

To be a qualifying employee, the employee must be employed at the School for at least twelve (12) consecutive months and the employee must have worked at least one thousand two hundred fifty (1,250) hours in the twelve (12) months preceding the leave. Additionally, the employee must notify the School as early as practicable and provide certification.

This leave is to be available only if the employee has no other leave available, except for sick leave or disability leave.

If leave is taken because an employee's military relative is called to active duty, leave must be taken no more than two (2) weeks prior to or one (1) week after the deployment date of the military member.

During the leave, the School will continue to provide benefits to the employee. The employee shall be responsible for the same proportion of the cost of the benefits as the employee regularly pays during periods of time when the employee is not on leave. The employee will not earn salary or wages while on leave.

Upon return from leave, the School will restore the employee to the position the employee held prior to taking that leave or a position with equivalent seniority, benefits, pay, and other terms and conditions of employment.

Jury Duty Leave

If a full-time employee is selected for jury, the full-time employee shall be excused for the duration of jury duty service. While on jury duty, the employee shall continue to receive regular wages for the first two weeks of jury service. The employee may also keep any pay received from serving.

Employees receiving notice of jury duty must notify Human Resources as soon as possible so that the School may make necessary adjustments.

Medical Leave of Absence

Employees may seek a medical leave of absence if the employee is (1) unable to physically or mentally perform required job duties and (2) such a leave is recommended by a physician.

Medical leave must be reported to the Governing Authority.

A Medical leave of absence is unpaid, and the employee is prohibited from taking other employment while on leave. Additionally, the employee will not accumulate personal leave. Health insurance will not be continued. The employee, however, may elect to pay the cost of health insurance while on an approved leave.

Ohio: R.C. 5906.02, 2313.19.

Federal: Families First Coronavirus Response Act.

Cross Reference: Policy No. **5310**, Compensation and Benefits Overview; Policy No. **5320**, Salary; Policy No. **5330**, Benefits; Policy No. **5350**, Time Off; Policy No. **5360**, Family Medical Leave Act Policy.

Updated May 6, 2025 to implement Fiscal Year 2026 (July 1, 2025)

5360 – Family Medical Leave Act Policy

In accordance with the Family Medical Leave Act (FMLA), the School seeks to balance employees' work and family life by permitting reasonable unpaid leave for certain family and medical needs. The School is required to provide FMLA leave to eligible employees when there are at least fifty (50) employees within a seventy-five (75) mile radius of the School.

Eligible Employees

To be eligible for FMLA leave, an employee must meet *all* of the following employment requirements:

- the employee must have worked for the School for at least twelve (12) months;
- the employee must have worked at least 1,250 hours during the twelve (12) months prior to the start of the FMLA leave; and
- the employee must be employed at a location that has at least fifty (50) of the School's employees within seventy-five (75) miles of the location.

In determining whether an employee meets the above requirements, the School shall count all periods of absence from work due to or necessitated by covered services under the Uniformed Services and Reemployment Rights Act.

Leave Entitlement

General Leave. The School provides eligible employees with two (2) work weeks [10 days = 80 hours] of paid and ten (10) work weeks [50 days = 400 hours] of unpaid for a total of twelve (12) work weeks of paid & unpaid leave in a twelve (12) month period for one or more of the following reasons:

- To recover from a Serious Health Condition, as defined below, that prohibits the employee from performing essential work functions.
- Incapacity due to pregnancy, prenatal medical care, or childbirth.
- The birth of a son or daughter, and to care for the newborn. Leave must conclude within twelve (12) months after the birth.*
- To care for, or spend additional time with, a newly adopted child or foster child. Leave must conclude within 12 months after the adoption or placement.*
- To care for an immediate family member with a Serious Health Condition as defined below. Immediate family members include: spouse, child, or parent – but excludes a parent in-law.*
- The employee's spouse, son, daughter or parent is on active duty or is called to active duty status in the Armed Forces for any of the following as defined by the FMLA: short-notice deployment, military events and related activities, childcare and school activities, financial and legal arrangements, counseling, rest and recuperation, post-deployment activities, and other additional activities as defined by the FMLA.
- The employee's spouse, son, daughter, or parent is a covered veteran who is undergoing medical treatment, recuperation, or therapy for a serious injury or illness. A covered veteran is an individual who was discharged or released under conditions other than dishonorable at any time during the five-year period to the first date the eligible employee

*If both a husband and wife work for the School, the amount of FMLA leave may be limited to a combined total of twelve (12) weeks.

Leave to Care for a Covered Service Member. The School provides eligible employees with twenty-six (26) weeks leave in a twelve (12) month period to care for a Covered Member of the Armed Forces. To be considered a Covered Member, the service member must either (1) be in active duty or (2) be a veteran receiving treatment, recuperation, or therapy for a serious injury or illness and the veteran must meet discharge and time requirements required by law. To qualify the eligible employee must (I) be the service member's spouse, son, daughter, parent, or next of kin; (II) the service member must have a "serious injury or illness" incurred in the line of duty on active duty that may render the service member medically unfit to perform duties of his/her office, grade, rank, or rating; (III) the leave must be taken to care for the covered service member while he/she is undergoing medical treatment, recuperation, therapy, or while he/she is on the temporary disability retired list; (IV) the service member had injuries or illnesses that existed before the beginning of the member's active duty and were aggravated by service in the line of duty on active duty in the Armed Forces and (V) additional requirements as provided by the relevant section of the FMLA. For leave to be granted, the School may request a copy of active-duty orders and a certification containing information permitted by law.

Serious Health Condition. Some leave under the FMLA requires a Serious Health Condition. A Serious Health Condition is defined as an illness, injury, impairment, or physical or mental condition that involves any of the following:

- Overnight Stay. Any period of incapacity or treatment connected with inpatient care in a hospital, hospice, or residential medical care facility.
- Extended Treatment. A period of incapacity requiring absence of more than three calendar days from work, school, or other regular daily activities that also involves continuing treatment by (or under the supervision of) a health care provider.
- Multiple Treatments. Any absences to receive multiple treatments (including any period of recovery) by, or on referral by, a health care provider for a condition that likely would result in incapacity of more than three consecutive days if left untreated (e.g., chemotherapy, physical therapy, dialysis, etc.).
- Pregnancy or Prenatal Care. A period of incapacity due to pregnancy, or for prenatal care.
- Chronic Serious Health conditions. A period of incapacity or treatment due to a chronic serious health condition. (e.g., asthma, diabetes, epilepsy, etc.).
- Severe or Permanent Condition: A period of incapacity that is permanent or long-term due to a condition for which treatment may not be effective (e.g., Alzheimer's, stroke, terminal diseases, etc.).

Twelve Month Period

The School calculates the twelve (12) month leave period as a "rolling" 12-month period measured backward from the date an employee uses leave.

Continuous, Intermittent, and Reduced Schedule Leave

FMLA Leave is generally granted for a continuous period of time, but certain circumstances may require intermittent leave (leave taken in blocks of time) or a reduced schedule leave (reducing an employee's working hours). Intermittent/reduced schedule leave may be taken when (1) medically necessary to care for a seriously ill family member, (2) because of the employee's serious health condition, or (3) as approved by the School to care for a newborn or newly placed adopted/foster care child.

Employees needing intermittent/reduced schedule leave for foreseeable medical treatment must work with the School, so the leave does not unduly disrupt the School's operation. For example, Employees must schedule leave for foreseeable appointments outside of work hours as is possible.

Only the amount of leave actually taken while on intermittent/reduced schedule leave will be charged as FMLA leave. Employees may not be required to take more FMLA leave than necessary to address the circumstances that cause the need for leave. Total leave time may not exceed a total of twelve (12) weeks in a rolling twelve (12)-month period.

Restrictions and Benefits During Leave

During leave, no employee may engage in any other employment. Additionally, the leave is limited to the purpose requested and may not be used for any other purpose including unrelated travel and/or vacation. An Employee that uses FMLA for any other purpose will be treated as if he/she voluntarily resigned from his/her position.

At the beginning of leave, the School will discuss how premium payments will be made for the unpaid FMLA leave days. Employees' health insurance coverage will be continued during an FMLA leave and employees are responsible for making the per month payments for their health insurance to the School for the unpaid days of unpaid leave. There is a 30-day grace period for payments. If an employee is more than thirty (30) days late in payment for insurance, the insurance will be discontinued as of the date of non-payment. However, the School reserves the right to continue the insurance. When an employee returns to work after an FMLA leave, he/she will be reinstated in the insurance program with no additional requirements to re-qualify. If an employee does not return to work after FMLA leave, he/she may be required to reimburse the School for any benefit premiums paid.

Paid Leave & FMLA

An employee, on any FMLA leave including an intermittent/reduced schedule leave, is required to take any paid time he/she has available at the beginning of an FMLA leave and such paid time will run concurrently with and be counted against the FMLA leave entitlement. During an FMLA leave, no vacation or personal time benefits will accrue.

Additional Qualifying Events

If an employee is already on FMLA leave and the employee encounters a second matter that would qualify for leave, the employee may request a concurrent leave. The employee must follow the Procedure for Requesting leave, outlined above. The approved leave may overlap the existing leave and the employee is to return on later of the two leave periods.

Disseminating This Policy

The School shall post a notice of this policy in a conspicuous location.

Federal: 29 U.S.C. 2601-2654; Families First Coronavirus Response Act.

Cross Reference: Policy No. **5310**, Compensation and Benefits Overview; Policy No. **5330**, Benefits; Policy No. **5350**, Time Off.

Updated September 2, 2025

5370 – Severance Pay Policy: Classified Staff

All employees of the Community STE(A)M Academy – Xenia are employed under provisions of the School Employees Retirement System of Ohio, at the time of retirement from this system, shall be eligible for compensation for one fourth (1/4) of the value of their accrued but unused personal leave credit as defined below. The request for severance allowance shall also include the employee's resignation from employment in the Community STE(A)M Academy – Xenia. The employee must, within one hundred eight (180) days of the last day of employment with the Board, prove acceptance into the SERS. Employees eligible for severance pay will be notified by the Treasurer of the Board upon receipt of notification of retirement.

The severance allowance shall be one-fourth (1/4) of the value of accrued unused personal leave with a maximum allowance not to exceed sixty-five (65) days, except as set forth in this policy.

Compensation shall be based upon the employee's daily rate of pay at the time of separation. Payment for sick leave under this provision shall be considered to eliminate all sick leave credit accrued by the employee with such payment being made only once to any employee. Requests for payment should be made to the Treasurer of the Board of Education at the time an application is made for retirement to the School Employees Retirement System of Ohio. Said request for severance allowance shall also include the employee's resignation from employment in the Community STE(A)M Academy – Xenia. Payment shall be made the pay date following the effective date of resignation and official retirement. Upon the death of an employee in pay status with the Board, severance pay, and unused vacation will be paid to the beneficiary as identified in the deceased employee's life insurance policy.

5400 – Behavioral Expectations and Responsibilities

5410 – Behavioral Expectations

Policy No. 5411

5411 – Dress and Grooming

The Governing Board believes that the responsibility for the dress and grooming of an employee rests primarily with the employee and that appropriate professional dress and grooming contribute to a productive learning environment and respect for the profession of education. Therefore, the Board expects employees to give proper attention to personal cleanliness and to wear clothes that are suitable for the school activities in which they participate.

Selecting the appropriate dress for the specific situation is a key component of being a professional and modeling this to students during the educational process at CSA-Xenia. Therefore, clothing and other items our employees wear must not disrupt the educational process, create safety concerns, nor create any distraction. All popular fashions may not be appropriate for school.

Our intent is to have employee's attire or grooming be the least restrictive and disruptive to the student's school day. Any school dress code enforcement actions should minimize the potential loss of educational time.

Professional Attire

Throughout the school year CSA-Xenia expects its employees to be in some level of professional attire with the minimum of Business Casual, which will hopefully exceed those defined in this and the student's policy for the Presentation/Professional Attire. When employees are involved within a Neighborhood in which the students are expected to be in Business Professional due to many of the students' providing presentations to the community or providing tours, then employees of that Neighborhood should also be dressed to exceed the same level of attire. To help provide some common guidelines for these types of requirements, here is the general concept for each.

- **Business Casual:**
 - Slacks, khaki pants, chinos, knee length skirts or dresses. No denim/jeans.
 - Button-up shirts, blouses, sweaters, or polo shirts
 - No athletic shoes or work boots.
- **Business Professional:**
 - Cardigans, blazers, or jackets
 - A collared shirt/blouse or appropriate dress. No polo shirts.
 - Dress slacks or knee length skirts or dresses. No denim/jeans.
 - Dress loafers, oxfords, pumps, flats, or boots. No athletic shoes or work boots.

Additional Requirements

Specialized contracts/activities may require specialized attire that go beyond these guidelines. Clothing must be suitable for all scheduled learning activities including dynamic movement, makerspaces, community-service, field trips and other activities where unique hazards or specialized attire or safety gear is required. Any such modification to the typical day professional attire must be approved by the Chief Administrative Officer prior to the day of the modification of dress.

Attire and/or grooming depicting or advocating violence, weapons, criminal activity, gang related activity (including clothes, accessories, or colors identified by local police departments as gang-affiliated), use of tobacco, alcohol or drugs, pornography, foul language, hate speech, or clothing that could be considered dangerous or that could be used as a weapon are prohibited.

Sunglasses may not be worn inside the building.

Dress Code Enforcement

No list of dress and appearance guidelines for employees can be written that will anticipate all potential dress and grooming extremes. In the case of questionable dress or grooming that is not specifically covered in the list above, the administration will make the final decision. Appropriate action will be taken at that time.

The administration retains the sole discretion to make the final determination whether clothing, jewelry, accessories and/or appearance meet acceptable standards. When a dress code violation occurs, the employee will be required to change into proper attire. Continued violations of the dress code will be considered defiance and will be referred to administration for disciplinary action.

5412 – Social Computing

The School recognizes that Staff members are increasingly connected online, and that social computing may present opportunities for professional enrichment. The School permits staff members to participate in Social Computing but requires staff members to act responsibly in light of their professional positions. Social Computing may not occur during work hours. Staff members are responsible for the groups they join, the content they create, the content others post on their accounts, and the public nature of the groups they participate in.

Social Computing is defined broadly to include social media, social networking, blogging, vlogging, micro-blogging, chatting, posting, commenting, and other interactive activity online.

Staff members are personally responsible for the content they publish online. Staff members are prohibited from posting photographs, videos, links, documents, or other information that is inappropriate, unprofessional, and/or may disrupt classroom activity. Such postings may include information regarding students, employees, classes, and school officials. The Head Administrator has sole discretion in determining whether classroom activity has been disrupted. Staff members that violate this rule may be disciplined and/or terminated.

Staff members that publish content in their capacity as an employee of the School must make it clear that the views expressed are of the employee and not the School. A disclaimer should be displayed stating “the postings are my own and do not necessarily represent the School’s position or opinions.”

Staff members must vigilantly monitor their accounts and activity that occurs and must remove anything inappropriate.

Staff members are prohibited from “friending,” “liking,” or communicating with other students via social computing including, but not limited to, social media, personal email, chat rooms, blogging or micro-blogging, or other electronic technology.

Using Common Sense

Staff members are urged to use common sense when considering whether to publish content or participate in social computing. Staff members are advised to review this policy before they act.

The School’s Head Administrator is required by the Ohio Department of Education to report improper use of technology if the technology if the acts violate the Code of Professional Conduct for Ohio Educators.

Cross Reference: Policy No. **4430**, Internet & Technology Acceptable Use; Policy No. **4440**, Use of Mobile Electronic Devices; Policy No. **5413**, Mobile Phone Use; Policy No. **5441**, Staff and Student Boundaries.

5413 – Mobile Phone Use

This policy sets forth the School's policies regarding mobile phone use for staff members.

Mobile Phones are defined to include any handheld electronic device with the ability to receive and/or transmit voice, text, or data messages, including, but not limited to cellular telephones, smartphones, Bluetooth devices, Personal Digital Assistants, pagers, walkie-talkies.

Using a Personal Mobile Phone at Work

While staff members are permitted to possess mobile phones during work, calls taken during work are disruptive and discouraged. The School does recognize that emergencies may require personal use during the day. To the extent possible, staff members should limit personal calls to breaks and avoid taking calls in front of students. Staff members are prohibited from playing games and/or surfing the internet on a mobile phone.

Using a Personal Mobile Phone for Work Purposes

In certain emergencies or unusual circumstances, the School may require a staff member to use his/her personal phone. The staff member may be reimbursed for additional charges a staff member may encounter.

School Issued Mobile Phones

The School may issue mobile phones to staff members who demonstrate a justifiable business need for the mobile phone. Should a phone be granted, its use shall be solely for school business or emergencies. The phone shall not be used as a personal communication device or violate the state laws while driving.

To further ensure phones are used properly, the Governing Authority requires that each staff member issued a mobile phone knows and understands the phone's contract requirements, network limitations, long distance, and use; reimburses the Governing Authority for non-School related use; and limits usage to necessary calls. The Governing Authority may audit all cell phone usage.

Phones are a privilege. Phones may be revoked if staff members abuse their phones or use them in a manner inconsistent with this policy.

If the mobile phone is requested back by the School, the staff member is required to surrender it within a reasonable time period. If a staff member fails to return the phone in the period, the employee may be required to pay for the phone's replacement.

Discipline

Staff members that violate this policy may result in disciplinary action and/or termination.

Cross Reference: Policy No. **4430**, Internet & Technology Acceptable Use; Policy No. **4440**, Use of Mobile Electronic Devices; Policy No. **5412**, Social Computing; Policy No. **5453**, School Equipment - Use and Return.

5414 – Receiving Gifts

Gifts to staff members from students and/or their parents are considered problematic for several reasons. First, gifts may create the appearance of impropriety. Second, gifts may cause students that are unable to give a feeling of inadequacy. Consequently, the School strongly discourages gifts to staff members. When a gift is given, the gift should be of nominal value.

Cross Reference: Policy No. **5441**, Staff and Student Boundaries.

5415 – Conflicts of Interest

Employees are prohibited from engaging in any activity that may conflict with the School's interests. Additionally, employees are prohibited from using the School's resources for professional work unrelated to the School, personal activities, and personal associations. Similarly, employees are prohibited during school hours from engaging in professional work unrelated to the School, personal activities, and personal associations that may conflict with the School.

Such conflicts of interests may include, but are not limited to, private tutoring/lessons, business associations with competitors or vendors, and political campaigns.

Employees that are unsure if a conflict exists or if their conduct is otherwise prohibited must speak to a school official.

Cross Reference: Policy No. **5441**, Staff and Student Boundaries.

5420 – Drugs and Alcohol Policies

In order for the School's mission to be realized, the School's environment must be free of drug use and the negative consequences associated with drugs. The School is a drug-free workplace and prohibits the use of drugs or any controlled substances by its staff members as specified by this policy. The School will not tolerate any drug use or controlled substance abuse, which threatens the health and wellbeing of its staff members and students or threatens the School's operations.

This policy applies to all School staff members, staff members of temporary employment agencies that perform work on the School's behalf, all staff members of contracts that provide services at School locations, and all applicants for employment at the School.

The School is committed to maintaining a safe workplace and an educational environment free from the influence of drugs and alcohol. All staff members are required to read and abide by the following policy.

Prohibition of Drugs & Alcohol

While on school premises, school supplied vehicles, facilities managed by the School, or during working hours, no staff member or other individual shall be under the influence of, consume, share, use manufacture, possess, distribute, dispense, or sell any of the following: drugs, alcohol, tobacco, or other controlled substance. An exception may be made for staff members with an active Medical Marijuana card. This will be evaluated and determined on a case-by-case basis, and the exception shall not apply to bus drivers, certified motor van drivers, and any employee responsible for transporting students in School vehicles.

While off School premises, no staff member shall be under the influence of, consume, share, use manufacture, possess, distribute, dispense, or sell any illegal drugs.

The School further prohibits individuals from using alcohol or any controlled substance to the extent the alcohol or controlled substance negatively affects an individual's job duties, the safety of others, or the School's reputation.

If a staff member is in a drug or alcohol treatment/counseling program, the staff member must adhere to the program's requirements.

Staff members are prohibited from being arrested or convicted under any drug law, or any driving while under the influence of alcohol or other drugs. If a staff member is arrested or convicted of a controlled substance law, the staff member must notify the School within (5) days of the matter.

Medicine Use

Employees may use over-the-counter medication or prescribed medication (including CBD oil). Employees must discuss with the physician or pharmacist the medication's potential side effects. Any potential side effects or drugs that may affect an employee's mental or physical abilities must be reported to the Head Administrator. The Head Administrator or his/her designee will determine if the employee's job duties shall be changed while the employee is on the medication.

Drug and Alcohol Testing

Employees may be required to submit a blood, urine or other sample for testing for an approved reason. Prior to the testing, staff members will be given the opportunity to list and explain the use of all drugs, prescribed and otherwise, that the staff member has used in the last thirty (30) days.

Employees are required to consent to the (1) testing and (2) releasing the results to the School. Employees are prohibited from refusing to consent to a test. If an employee refuses to consent, the School will consider the test as refused, will discharge the employee, and may deny the employee workers' compensation. Employees are prohibited from tampering with any urine, blood, or other sample submitted from testing.

All tests shall be conducted in accordance with federal testing guidelines and be performed by a laboratory that is federally certified.

Tests may be conducted at the following times:

- **Pre-Employment Testing.** An employee may be tested as a condition of employment. For bus and motor van drivers, the driver shall undergo testing for controlled substances as a condition prior to driving or performing safety-sensitive duties for the first time, unless federal exceptions in 49 CFR 382.301(b) apply, and may not drive a bus or van or perform safety-sensitive duties until the School has received a negative controlled substances test result.
- **Reasonable Suspicion Testing.** An employee will be tested when there is specific, documented reason to believe the employee's work performance or behavior indicates the employee may be under the influence of drugs and/or alcohol. While the School awaits test results, the tested employee will be temporarily suspended. Specific reasons that may justify a test include evidence of specific physical, behavioral (absenteeism or irregular attendance), or performance indicators (confusion or deteriorating performance).

For bus and motor van drivers, a test must be conducted when a properly trained supervisor or School official has reasonable suspicion that the driver has violated the School's alcohol or drug prohibitions. This reasonable suspicion must be based on specific, contemporaneous, articulable observations concerning the driver's appearance, behavior, speech or body odors.

The observations may include indications of chronic and withdrawal effects of controlled substances.

Alcohol tests are authorized for reasonable suspicion only if the required observations are made during, just before, or just after the period of the workday when the driver must comply with alcohol prohibitions. If an alcohol test is not administered within two hours of a determination of reasonable suspicion, the Head Administrator or designee prepares and maintains a record explaining why this was not done. Attempts to conduct alcohol tests terminate after eight hours. The alcohol test may not be conducted by the person who determines that reasonable suspicion exists to conduct such a test.

A supervisor or School official who makes a finding of reasonable suspicion must also make a written record of his/her observations leading to a reasonable-suspicion drug test within 24 hours of the observed behavior or before the results of the drug test are released, whichever is earlier. In accordance with federal regulations, third party information may not be the only determining factor used to conduct reasonable suspicion testing.

- Post-Accident Testing. An employee will be tested when an accident occurs and an employee either contributed to an accident or it cannot be determined that the employee did not contribute to the accident. Tests must be performed as soon as possible to ensure a clear indication of the employee's drug or alcohol level. Accidents that require testing include, but are not limited to, the following: serious bodily harm, death, explosion, fire, serious damage to School property, serious damage to the property of others, or any other similar event that the School determines requires testing.

For bus and motor van drivers, alcohol and controlled substance tests are conducted in the time limits imposed by the federal regulations after an accident on any driver who: 1) was performing safety-sensitive functions with respect to the vehicle if the accident involved loss of human life; and/or 2) received a citation under State or local law for a moving-traffic violation arising from the accident.

No driver involved in an accident may use alcohol for eight hours after the accident or until he/she undergoes a post-accident alcohol test, whichever occurs first. If an alcohol test is not administered within two hours or if a drug test is not administered within 32 hours after the accident, the Head Administrator or designee documents why the test was not conducted.

Tests conducted by authorized federal, state, or local officials fulfill post-accident testing requirements, provided they conform to applicable legal requirements and are obtained by the Head Administrator. Breath tests validate only the alcohol test and cannot be used to fulfill controlled-substance testing obligations.

- **Random Testing.** Bus drivers and certified motor van drivers will be subject to random drug and alcohol testing as mandated by the federal motor carrier safety administration (FMCSA) pursuant to 49 C.F.R. 382, at unannounced times throughout the year. Random tests are conducted just before, during, or just after the performance of safety-sensitive functions. Once notified of selection for drug testing, a driver must proceed immediately to a collection site to provide a urine specimen.

Drivers are selected by a scientifically valid random process, and each driver has an equal chance of being tested each time selections are made. All drivers, whether full-time or substitute, and other individuals who are certified to operate school buses and vans and may be called upon to do so, will be included in the random pool. Individuals who are selected for a random test but who are not operating a school vehicle at the time of the selection will be passed over, and an alternate driver will be tested under the random draw. The number of drivers selected for random testing is in accordance with federal regulations.

Smoking/Tobacco Use Prohibited

The School prohibits smoking and tobacco usage on School grounds. Smoking means inhaling, exhaling, burning, or carrying any lighted or heated tobacco product or plant product intended for inhalation in any manner or in any form. "Smoking" includes the use of an electronic smoking device and a vapor product. The absolute prohibition on tobacco usage extends to all persons including students, staff members, school visitors, and any other person on school property.

Searches

Searches may be conducted whenever the School has reason to believe that (1) an employee possesses alcohol or drugs on School premises or (2) the employee's work performance or behavior is impaired by alcohol or drugs. The search may include the employee's person; the employee's automobile or personal effects on school property or any facility maintained by the School; the employee's locker, desk or other School property that the employee controls.

Discipline

Employees that violate the School's Drugs & Alcohol Policy may be (1) subject to discipline, up to and including discharge and (2) referred to an appropriate treatment and counseling program. The treatment and counseling program is designed to help the employee, and an employee that enters treatment or counseling may be reassigned to another position temporarily. Any employee who is in a treatment or counseling program and tests positive for alcohol or drugs will be terminated. In addition to other appropriate discipline, a bus driver or certified motor van driver may not operate a school bus or motor van when a drug or alcohol test indicates any measurable or detectable amount of a controlled substance. Employees who refuse to submit to a test, fail a test, or tamper with a test may be (1) subject to discipline up to and including discharge, and (2) disqualified from receiving compensation and/or benefits under Ohio's worker compensation laws.

Records

Employee drug and alcohol test results and records are confidential and released only in accordance with law. Upon written request, an employee may receive copies of any records pertaining to the employee's own drug or alcohol tests. Records may be released to a subsequent employer or other identified persons only as expressly requested in writing by the employee.

Driver Notifications

Each bus and certified motor van driver shall receive educational materials that explain the requirements of the Code of Federal Regulations, Title 49, Part 382, together with a copy of this policy and any regulations for meeting these requirements. The information identifies:

1. that the Head Administrator is the person designated by the Governing Authority to answer driver questions about the materials;
2. categories of drivers who are subject to the drug and alcohol testing requirements;
3. sufficient information about the safety-sensitive functions performed by drivers to make clear for what period of the workday driver compliance is required;
4. specific information concerning driver conduct that is prohibited;
5. circumstances under which a driver is tested for drugs and/or alcohol;
6. procedures that are used to test for the presence of drugs and alcohol, protect the driver and the integrity of the testing processes, safeguard the validity of test results and ensure that test results are attributed to the correct driver;
7. the requirement that a driver submit to drug and alcohol tests administered in accordance with federal regulations;
8. an explanation of what constitutes a refusal to submit to a drug or alcohol test and the attendant consequences;
9. consequences for drivers found to have violated the drug and alcohol prohibitions, including the requirement that the driver be removed immediately from safety-sensitive functions and the procedures for referral, evaluation and treatment;
10. consequences for drivers found to have an alcohol concentration of 0.02 or greater but less than 0.04; and
11. information concerning the effects of drugs and alcohol on an individual's health, work and personal life; external and internal signs and symptoms of a drug or alcohol problem; and available methods of intervening when a drug or alcohol problem is suspected including confrontation, referral to an employee assistance program and/or referral to administrative officials.

Each driver must sign a statement certifying that he/she has received a copy of the above materials.

The Head Administrator notifies a driver of the results of a pre-employment drug test if the driver requests such results within 60 calendar days of being notified of the disposition of his/her employment application.

The Head Administrator notifies a driver of the results of random, reasonable suspicion and post-accident drug tests if the test results are verified positive. The Head Administrator also tells the driver which controlled substances were verified as positive.

Drivers inform their supervisors if at any time they are using a controlled substance that their physician has prescribed for therapeutic purposes. Such a substance may be used only if the physician is familiar with the driver's medical history and has advised the driver that it will not adversely affect his/her ability to safely operate a commercial motor vehicle. The School may require additional written notification from the prescribing physician.

Enforcement

Any driver who refuses to submit to post-accident, random, reasonable-suspicion or follow-up tests is not allowed to perform or continue to perform safety-sensitive functions and is ineligible to operate a school bus in the state. The Department of Education and Workforce will be notified of the refusal to test.

Ohio: R.C. 2925, et seq., R.C. 3319.20, R.C. 4123.651, Ch. 3794, **R.C. 4511.76.**

Federal: 49 C.F.R. §382. A.C. 3301-83-06.

Cross Reference: Policy No. 4470, Drugs, Alcohol, and Tobacco.

Updated: 11/03/2025

5420.1 – No Smoking Sign

The School adopts the no Smoking Signs provided by the Ohio Department of Health. If the “No Smoking” symbol is used, it must be used in color. Furthermore, the sign shall be of sufficient size to be clearly legible to a person of normal vision.

Signs developed by the Ohio Department of Health that comply with R.C. 3794.06 may be accessed at:

<https://www.odh.ohio.gov/smokefree/sfsigns.aspx>



5430 – Encountering Threatening Behavior

All employees are entitled to a safe and secure work environment. It is the policy of the Governing Authority that no employee should be threatened by another person including, but not limited to, staff, vendors of the School, visitors, students, parents, or any other person on School property. Threatening behavior includes but is not limited to threatening speech, writings, or actions made to any staff member.

Individuals that believe they have been threatened or observe another being threatened shall report the incident to the proper school authority. Reports shall include the participants' names, the victims' names, and the nature of the threat.

Upon receiving a report, the Head Administrator shall immediately conduct a confidential investigation to determine the validity of the complaint. The investigation shall include talking to the parties involved and any witnesses. While the complaint is being investigated, no information regarding the conduct may be released unless it is to persons involved with the investigation or as required by law.

If a complaint is confirmed, participants shall be disciplined appropriately, banned from the School grounds, and/or have the action reported to the proper authorities.

No employees shall be the subject of coercion, intimidation, retaliation, or discrimination for filing a complaint or assisting in an investigation.

Cross Reference: Policy No. **5070**, Anti-Harassment; Policy No. **2660**, Weapons; Policy No. **5441**, Staff and Student Boundaries; Policy No. **5442**, Emergency Procedures; Policy No. **5443**, School Safety.

5441 – Staff & Student Boundaries

Staff members, by virtue of their professional positions, have a unique relationship with students as the students' teacher, mentor, and educator. Because of this relationship, staff members must interact with students professionally, ethically, and respectfully. Staff members are to use good judgment.

Staff members must avoid the appearance of impropriety and are prohibited from excessive and/or improper social involvement with individual students. The school has a zero-tolerance policy regarding improper conduct.

The following guidelines represent some situations a staff member may encounter. Many situations are further elaborated in other sections.

Student/Staff Member Interaction Guidelines

Safety

- Staff members are required by Ohio law to report immediately any signs of abuse or neglect to the Head Administrator and/or his designee. The Head Administrator shall follow Policy No. **5444**, Reporting Suspected and Actual Child Abuse & Neglect, to report the abuse.
- Staff members must provide proper instruction on safety matters.
- Staff members must report all threats of violence, violence, abuse, or neglect.
- Staff members must report all accidents or safety hazards.
- Staff members must not assume responsibility for duties the staff member cannot perform.

Associations with Students

- Staff members are prohibited from associating with students at any time that gives the appearance of impropriety or is improper. Such situations include, but are not limited to, settings that may be considered sexually suggestive, involve controlled substances such as alcohol; drugs; or tobacco, or are otherwise abusive. Offending staff members may be criminally liable and may be disciplined, up to and including, terminating employment.
- Staff members may not fraternize with students in parties or activities, unless the activities are an extension of the School's educational program and are approved by the School.
- Staff members are prohibited from using technology or social computing to communicate socially with students.

Interactions with Students

- Staff members are prohibited from making derogatory comments to students regarding other students, other staff, or the School.
- Staff members may not disclose information regarding a student unless the individual is authorized to receive the information.
- Staff members shall not transport students in a private vehicle without the Head Administrator's approval and subject to Policy No. **5445**, Student Transportation in a Private Vehicle.
- Staff members shall not send students on personal errands for the staff member.
- Staff members shall not require students to engage in any activity that may harm or be detrimental to a students' health.

- Staff members who are approached by a student regarding personal issues may aide the student by assisting in the contact of a certified individual who is certified or licensed to assist, diagnose, and treat the student's issues. Staff members are prohibited from assessing, diagnosing, counseling, or treating the student's identified issues unless the staff member is certified or authorized to do so. Personal issues include, but are not limited to family relationships, controlled substance abuse, mental/physical health, and/or sexual behavior.

Cross Reference: Policy No. **2610**, Building and Grounds Security; Policy No. **2620**, School Safety/Emergency Management Plan; Policy No. **2630**, Crisis Management and Response Plan; Policy No. **2640**, Emergency Evacuation Drills; Policy No. **2650**, Bomb Threats; Policy No. **2660**, Weapons; Policy No. **2670**, Public Conduct on School Property; Policy No. **4440**, Use of Mobile Electronic Devices; Policy No. **5110**, General Employment Eligibility; Policy No. **5414**, Receiving Gifts; Policy No. **5442**, School Safety; Policy No. **5445**, Student Transportation in a Private Vehicle; Policy No. **5444**, Reporting Suspected and Actual Child Abuse and Neglect.

5442 – School Safety

Staff Members should not leave students unattended. In the event a teacher must leave a room, another staff member shall be left in charge.

Staff Members shall review and understand the fire, tornado, emergency safety and emergency evacuation procedures. All procedures are posted and described in the manual.

Should a Staff Member engage in an activity that may be unreasonably dangerous, the staff member must have the activity pre-approved and then closely supervise the activity. Unreasonably dangerous activities include, but are not limited to, experiments and/or class projects. Staff Members are asked to inquire about approval if they are unsure if approval is required.

Staff members shall properly store all chemicals and other dangerous products in their proper devices.

Cross Reference: Policy No. **2610**, Building and Grounds Security; Policy No. **2620**, School Safety/Emergency Management Plan; Policy No. **2630**, Crisis Management and Response Plan; Policy No. **2640**, Emergency Evacuation Drills; Policy No. **2650**, Bomb Threats; Policy No. **2660**, Weapons; Policy No. **2670**, Public Conduct on School Property; Policy No. **6220**, Crisis Media Management.

5443 – Reporting Accidents & Treating Injuries

Staff members are required to report all accidents by using Form No. **5443.1**, Accident Report Form.

All accidents must be reported when they occur (1) on school property, (2) at school-sponsored events, or (3) while on school transportation.

Should an injury occur, first aid kits are available in the following locations:

- the main office, or
- each neighborhood print center.

Minor injuries, such as scratches or cuts, may be treated in the School. More serious injuries require each staff member to contact the student's parent or guardian. If the injury requires medical treatment, the proper procedure shall be followed, and the child's health form should be accessible. If medical help is sought, the School will follow determinations made regarding additional treatment.

All forms will be gathered, summarized, and reported to the Governing Authority.

Cross Reference: Policy No. **2610**, Building and Grounds Security; Policy No. **2620**, School Safety/Emergency Management Plan; Policy No. **5442**, School Safety; Form No. **5443.1**, Accident Report Form; Policy No. **6220**, Crisis Media Management.

5443.1 – Accident Report Form

Student Name: _____ Grade: _____

Date of Accident: _____ Time of Accident: _____ am / pm

Staff member in charge at time of accident: _____

Location of Accident: _____

Please describe the accident, including events leading up to the accident, any equipment involved, and the students activity at the time of the accident:

Responsive Action Taken:

- ☐ Notification of Parent By (name): _____
- ☐ First Aid Treatment By (name): _____
- ☐ Sent to School Nurse By (name): _____
- ☐ Sent Home By (name): _____
- ☐ Sent to Physician By (name): _____
- ☐ Sent to Hospital By (name): _____
- ☐ _____ By (name): _____

Witness Name: _____ Phone Number: _____

Additional Remarks: _____

Name of Person Submitting Report: _____

Signature: _____ Date: _____

5444 – Reporting Suspected and Actual Child Abuse & Neglect/Suicide AwarenessTraining

Under this policy and Ohio law, all employees are *required* to report child abuse when the employee knows of or *has reasonable cause to believe* abuse or neglect has occurred to a child. The employee shall immediately (1) inform the School's Head Administrator and (2) report that knowledge or belief to either the children services agency or a municipal or county peace officer. The School shall assist the employee in creating the report, but Ohio law requires each employee to make the report directly.

"Abuse or neglect" is defined to include any physical or mental wound, injury, disability, or condition of a nature that reasonably indicates abuse or neglect of the child.

"Child" or "Children" are defined to include those under eighteen (18) years of age or a developmentally disabled or physically impaired child under twenty-one (21) years of age.

Employees are *required* to report suspected cases if they cannot confirm abuse or neglect but have a "good faith" belief that child abuse or neglect has occurred or may occur. Ohio law provides School employees that make reports in good faith complete immunity, civil or criminal, in participating in the making of a report.

Failure to make a required report may result in disciplinary and legal action.

Reports

Reports to the authorities may be made in telephone or in person.

If the receiving agency or receiving officer requests a report, the written report must contain the following: (1) the names and addresses of the child and the child's parents or the person or persons having custody of the child, if known; (2) the child's age and the nature and extent of the child's injuries, abuse, or neglect that is known or reasonably suspected or believed, to have occurred or of the threat of injury, abuse, or neglect that is known or reasonably suspected or believed to exist; (3) any other information that might be helpful in establishing the cause of the injury, abuse, or neglect that is known or reasonably suspected or believed to have occurred or of the threat of injury, abuse, or neglect that is known or reasonably suspected or believed, as to exist; (4) an employee, with the consent of the Head Administrator may take or cause to be taken color photographs of areas of trauma visible on a child.

Confidentiality

The School recognizes the importance of confidentiality in making reports. Ohio law provides that the report and its contents are confidential. Additionally, the reporting person's identity will remain confidential unless the reporting person discloses his/her identity, or a court order requires it. Finally the identity of the student that suffered the alleged abuse will remain confidential. Any individual that violates this policy may be subject to disciplinary, civil, and/or criminal action.

Training

To ensure that employees are aware of the severity of abuse and to aid them in identifying instances of abuses, the School and Ohio law require in-service training (Training). Training is required for all

teachers, counselors, school psychologists, nurses, administrators and any other appropriate personnel employed by the School. Each staff member complete at least four (4) hours of Training within two (2) years of commencing employment with the School, and at least four (4) additional hours every five (5) years thereafter. The training shall address the School's policy on harassment; intimidation; & bullying, preventing child abuse, violence, substance abuse, child sexual abuse, promoting positive youth development, school safety, and suicide awareness and prevention.

In-service training in youth suicide awareness and prevention must be completed every two (2) years. The Training's curriculum shall be developed by the Governing Authority in consultation with public or private agencies or persons involved in youth suicide awareness and prevention programs. For middle school and high school employees, the School's training shall also include training in preventing dating violence, which will be developed by the School. Training on child sexual abuse shall be developed and provided by the Governing Authority in consultation with public or private agencies or persons involved in child sexual abuse prevention or child sexual violence prevention.

Human Trafficking

Approximately one-third of all human trafficking cases reported to the National Human Trafficking Resource Center Hotline involve minor victims. The US Department of Education and the Ohio Department of Education both recognize human trafficking as a form of violence against children that needs to be addressed in school settings.

All employees of the School shall be aware of the signs of human trafficking as set forth in the Ohio Department of Health's resources for school nurses. These may be found at the links set forth below:

<https://www.odh.ohio.gov/-/media/ODH/ASSETS/Files/chss/school-nursing/2014-PROTOCOL-FlowChart.pdf?la=en>

<https://www.odh.ohio.gov/-/media/ODH/ASSETS/Files/chss/school-nursing/2014-PROTOCOL-General-Info.pdf?la=en>

<https://www.odh.ohio.gov/-/media/ODH/ASSETS/Files/chss/school-nursing/2014-Definitions.pdf?la=en>

Possible behavioral indicators of a child human trafficking victim include:

- An inability to attend school on a regular basis and/or unexplained absences
- Frequently running away from home
- References made to frequent travel to other cities
- Bruises or other signs of physical trauma, withdrawn behavior, depression, anxiety, or fear
- Lack of control over a personal schedule and/or identification or travel documents
- Hunger, malnourishment, or inappropriate dress (based on weather conditions or surroundings).
- Signs of drug addiction
- Coached or rehearsed responses to questions
- A sudden change in attire, behavior, relationships, or material possessions (e.g., expensive items).
- Uncharacteristic promiscuity and/or references to sexual situations or terminology beyond age-specific norms
- A "boyfriend" or "girlfriend" who is noticeably older and/or controlling

- An attempt to conceal scars, tattoos, or bruises
- A sudden change in attention to personal hygiene
- Tattoos (a form of branding) displaying the name or moniker of a trafficker, such as “daddy”.
- Hyperarousal or symptoms of anger, panic, phobia, irritability, hyperactivity, frequent crying, temper tantrums, regressive behavior, and/or clinging behavior.
- Symptoms of daydreaming, inability to bond with others, inattention, forgetfulness, and/or shyness.

Ohio: R.C. 2151.421, R.C. 3319.073, O.A.C. 3301-57-01.

Cross Reference: Policy No. **5441**, Staff and Student Boundaries.

Updated September 2, 2025

5445 – Student Transportation in a Private Vehicle

The School permits students to be transported by an Authorized Driver's private vehicle, provided this procedure is followed. Authorized Drivers are those that hold a valid Ohio driver's license, possess automobile liability and personal injury insurance, and are any of the following: a school employee; an approved volunteer; the parent/guardian of a student enrolled at the School.

This policy applies only to occasional or limited transportation by an employee. An employee that regularly transports students with his or her vehicle is required to follow the applicable Ohio laws and regulations regarding regular transportation.

For transportation in an employee's private vehicle to be permitted, the following must be completed in writing *before* the transportation occurs.

- the person must be an Authorized Driver as defined above;
- the School must determine that transportation by School vehicles is impractical or impossible;
- the employee must obtain completed Request for Authorization to Transport Students in a Private Vehicle Form, Form No. **5445.1**, from each attending student's Parent/Guardian;
- the employee must re-submit the Request and all completed consent forms to the Head Administrator for approval;
- the employee shall submit a list of all students riding in the vehicle and shall acquire each student's medical authorization forms.

While driving students, the Authorized Driver shall maintain copies of each student's Emergency Medical Authorization Form. Employees shall have the same responsibility over and ability to discipline its students.

Cross Reference: Form No. **5445.1**, Request to Transport Students in a Private Vehicle; Form No. **5445.2**, Transportation in a Private Vehicle; Form No. **5445.3**, Authorized Driver Form.

5445.1 – Request for Authorization to Transport Students in a Private Vehicle

Name of Requesting Employee: _____

Purpose of Transportation: _____

Transportation Destination/Address _____

The Trip will begin on: ____/____/20____ at ____:____ am/pm

The Trip will conclude: ____/____/20____ at ____:____ am/pm

Number of Students to be transported: _____

Explanation of why School Vehicle use is impractical or impossible:

Please Identify each Driver:

Name and Affiliation (employee, parent, volunteer)	Possess valid driver's license?	Possess required automobile and liability insurance?	Phone Number
1.			
2.			
3.			
4.			

This Form must be completed before using any personal transportation. Employees must obtain release forms from all parents.

5445.2 – Student Transportation in a Private Vehicle

I permit _____ (student's name) to travel by private vehicle to/for: _____

Transportation Destination/Address _____

The Transportation will begin on: _____/_____/20____ at ____:____ am/pm

The Transportation will conclude: _____/_____/20____ at ____:____ am/pm

I understand that the trip will not be made using a School vehicle, but will be made using an employee's, volunteer's, or parent's personal vehicle.

All persons who drive using their vehicle are approved as "Authorized Drivers." Authorized Drivers certify that: they possess a license, their license has no pending charges, their car is mechanically sound and fully operable, they are assuming all liability and responsibility for students that they are transporting, that they are not acting as agents of the School, and they will return the students' Medical Authorization Forms upon completing the trip.

In the event that an "Authorized Driver" uses a personal vehicle—and not a school vehicle—I acknowledge and grant permission for my child to be transported by an Authorized Driver. I further authorize the release of my child's Medical Authorization Form to the individual transporting my child.

This Form must be signed by the student's parents or guardians and returned by the student. While on the trip, the student will still be considered in School and *must* abide by the School's policies and code of conduct.

I have read the above and grant my child to travel by personal vehicle.

Parent/Guardian Name: _____

Parent/Guardian Signature _____ Date: _____

Telephone: _____

5445.3 – Authorized Driver Form

The School permits students to be transported by an Authorized Driver's private vehicle for limited transportation to the School, School field trips, or other School activities. You have identified yourself as a willing driver. To be permitted to drive the students you must complete this form and certify all the information as true. Your ability to drive will be subject to approval by the School's Head Administrator or his/her designee.

To be an Authorized Driver, you must hold a valid Ohio driver's license, the license must have no pending charges, you must possess automobile liability insurance, and you must hold the following relationship with the School: a school employee; an approved volunteer; or the parent/guardian of a student enrolled at the School.

In addition, your vehicle must be mechanically sound and fully operable.

The School will not pay or reimburse you for any transportation expenses. Additionally, you may not collect any fee from riders.

Please staple a copy of your liability insurance to this form.

I have read this form and certify the following:

- I have a valid driver's license and have no pending charges.
- I have liability insurance.
- My vehicle is mechanically sound and operable.
- I am voluntarily choosing to drive instead of using the School's transportation.
- I am assuming all liability and responsibility for the students I am transporting.
- While transporting students, I will retain a copy of each student's Medical Authorization Forms.
- While transporting students, I am not act as an agent of the School.
- I will return all student Medical Authorization Forms.

Authorized Driver's Name: _____

Authorized Driver's Signature: _____ Date: _____

Telephone: _____

5451 – Contracts & Leasing; Purchasing

Contracts & Leasing

An authorized School Administrator must initiate, and the Governing Authority must approve *all* contracts and leases. Staff members, administrators, volunteers, consultants, parents and or other persons have no authority to sign a lease or contract without Governing Authority approval.

Purchasing

To purchase needed materials, employees are required to make written requests from the Head Administrator prior to purchasing. All purchases are subject to the availability of adequate funds in the School's budget and the Head Administrator's approval. Employees are prohibited from purchasing materials and seeking approval after the purchase. Employees are also prohibited from obtaining "verbal approval"—all approval must be in writing. The writing must be from an employee authorized to make such transactions.

The Head Administrator may approve single purchases up to \$2,500. Purchases over \$2,500 require the Governing Authority's approval.

Procedure for Purchasing

- Employee purchase requests must be made in writing using a Request Form. The Request Form must be signed by the employee's supervisor and the Head Administrator or his/her designee.
- The Request Form shall be sent to the School's Treasurer. The Treasurer shall decide if there are enough funds available to approve the purchase. If the Treasurer approves, the Treasurer will complete and send a written purchase order.
- Once the requesting employee receives the requested materials, the requesting employee must verify the order is complete, conforms to the intended use, and functions properly. If the order does not comply, the employee is required to alert the Head Administrator or his/her designee to resolve any issues.
- Once the invoice for payment is received, the School's Treasurer shall send a copy of the invoice to the requesting employee. The Employee will be required to examine the copy, sign and date the copy, and indicate that the order may be paid. Upon requiring this, the Employee shall return the signed copy to the Head Administrator or his/her designee.

Cross Reference: Policy No. **1755**, Purchasing; Policy No. **1756**, Credit Cards; Policy No. **5452**, Reimbursement of Staff Members.

5452 – Reimbursement of Staff Members

This policy serves to facilitate the timely and efficient reimbursement of appropriate expenses incurred by staff members on behalf of the School.

Reimbursements will only be made upon when all appropriate receipts and documentation are provided. No staff member shall incur any expenses on behalf of the School without receiving prior approval from the Head Administrator. If a staff member advances money or makes a purchase on behalf of the School without prior approval, he/she does so completely at the staff member's own risk and may be reimbursed only if the staff member can show that such unauthorized advancement or payment was necessary to serve the School's interests or purposes.

If any payments or advances are made with the School credit card, the purchaser shall follow Policy **1756**, Credit Cards.

The School shall make every reasonable attempt to reimburse actual food, transportation, and lodging expenses associated with School-approved travel, provided that the staff member adheres to the guidelines below.

- If the staff member is aware of upcoming travel, he/she shall fill out the appropriate documentation for a purchase order, to be submitted to the Head Administrator for approval within ten (10) days of the expected travel. All estimated expenses shall be included on this form.
- After incurring travel-related expenses, a Travel Reimbursement Form shall be filled out and signed by the staff member's supervisor.
- In incurring travel expenses, the staff member shall use the same level of care and reasonability that he would use if traveling for personal business reasons. Travel accommodations should be of a reasonable quality and comfort level. Any expenses for lavish or excessive travel accommodations will not be reimbursed.
- Staff members will not be reimbursed for the purchase of alcoholic beverages.
- All rental cars shall be considered "economy rentals," or any other category having the same meaning, unless otherwise approved by the Treasurer as a necessary upgrade.
- All mileage driven by a staff member on School-related business will be reimbursed at the current IRS-approved mileage rate.
- All mileage driven by any volunteer as a result of transporting students to a competition or other off-site activity shall be reimbursed for actual expenses incurred or according to the IRS-approved Charitable Rate.

Cross-Reference: Policy No. **1755**, Purchasing; Policy No. **5451**, Contracts & Leasing; Purchasing.

Modified August 5, 2025

5453 – School Equipment – Use and Return

School Equipment is made available to enhance the School's educational mission and to provide employees with resources to help students learn. Consequently, it is essential for all equipment and property to be used for its intended purpose and remain in proper working order.

"Equipment" for the purposes of this policy includes, but is not limited: equipment, electronic equipment, software, supplies, property, automobiles, and other property.

Care and Responsibility for Equipment

Every employee is responsible for the equipment he/she possesses or is assigned. Employees must be familiar with all the equipment's safety rules and follow all safety instructions. Employees are required to report any equipment or property that becomes damaged, broken, or goes missing, employees may not use damaged equipment and are also prohibited from attempting to fix damaged equipment or property. Employees may use damaged equipment or attempt to fix damaged equipment if their supervisor approves.

The School will examine damages to equipment and property to determine responsibility. Employees will be responsible for incidents that result in damage to Equipment or for the equipment of another if the damage resulted from the employee's own negligence or misconduct. Employees held responsible will be required to (1) pay for the damage or (2) authorize the School to deduct from the staff member's paycheck by completing Form No. **5453.1**.

Upon the termination of an employment relationship, each employee is required immediately to return all of the School's equipment and other property. This includes, but is not limited to, keys, access cards, credit/debit cards, computers, laptops, mobile phones, texts, manuals, documents, supplies, and records. The School will take all appropriate action to ensure compliance.

Proper Use of Equipment & Property

Use of the School's Equipment and property is limited to school purposes and may not be used for personal use, other business use, illegal use, or to harass others. The School's equipment may not be used for transmitting, receiving, or storing any communications that are defamatory, discriminatory, harassing, sexually explicit, pornographic, or obscene. All Equipment property use must comply with the School's Internet and Technology Acceptable Use Policy, Policy No. **4430** and the School's Use of Mobile Electronic Devices Policy, Policy No. **4440**. All employees are required to read and sign these policies.

Employees will have access to confidential information. Employees are required to protect all information by taking all precautions to "lock" the School's equipment and property. Employees are prohibited from transmitting sensitive information across the internet or through fax machines.

Employees and students are prohibited from using passwords or access codes that are not the Employee's or student's password. All individuals are further prohibited from sharing or the unauthorized release of passwords.

Monitoring Usage

The School may monitor all office electronic mail and Internet usage originating from the School's Equipment, and employees have no privacy when using the School's equipment. The School reserves the right to access, inspect and review all Equipment owned by the School. As the School's network, messaging system and computer belong to the School, the School may monitor all electronic mail, computer, network, internet, and intranet usage originating from the School's equipment. The School's ability to monitor includes to, but is not limited to files, folders, song, pictures, videos, downloads, messaging, internet activity, internet cache or other similar use.

Cross Reference: Policy No. **2330**, Equipment Safety; Policy No. **2500**, Environmental Safety; Policy No. **4430**, Internet & Technology Acceptable Use; Policy No. **4440**, Use of Mobile Electronic Devices; Policy No. **5413**, Mobile Phone Use; Form No. **5453.1**, School Equipment Use - Authorization.

5453.1 – School Equipment Use – Authorization

I acknowledge that I damaged/lost equipment owned by _____ on the following date:
_____. I acknowledge that the equipment was damaged/lost by my own negligence.

I further acknowledge that I am an employee of the School.

I further acknowledge that I am obligated to pay, in total, \$ _____ to cover the cost of the equipment's replacement or repair. To cover the cost, I expressly agree for the School to deduct _____ from each pay period. The School may continue to deduct such payments until my obligation is completed.

I further acknowledge that should my employment be terminated before the obligation is satisfied, I expressly agree and authorize _____ to withhold the remaining balance of my obligation.

Employee Signature: _____

Employee Name: _____

Date: _____

5454 – Software and Copyright Issues

Software Downloading

The School prohibits employees, students, and all other individuals from downloading anything using the School's Equipment and Technology unless the downloading has been approved. This policy ensures the School does not infringe on copyright laws and protects the School's equipment from malware.

Copyright Law

The School prohibits copyrighted material from being copied illegally by the School's Equipment or Technology.

Federal copyright law protects "original works of authorship" and prohibits individuals from replicating original works unless the author permits the reproduction, or the replication falls under one of the exceptions to the copyright law.

One exception to this law is the "Fair Use" Exception. In limited circumstances, "Fair Use" does not require the owner's permission when a user copies a work for the purpose of critiquing, commenting, reporting, teaching (including multiple copies for classroom use), scholarship or research. To determine if the staff member's use constitutes "fair use," the following factors are considered:

- The purpose and character of the use, including whether such use is of a commercial nature or is for nonprofit educational purposes.
- The nature of the copyrighted work.
- The amount and substantiality of the portion used in relation to the copyrighted work as a whole (are you copying the entire document or just parts of the document).
- The effect of the use upon the potential market for or value of the copyrighted work.

Adapted from 17 U.S.C. 107.

Copyright Guidelines

Single Copying for Teacher Use. A single copy of the following may be made for a teacher's scholarly research or used in teaching or preparing to teach a class:

- A chapter from a book.
- An article from a periodical or newspaper.
- A short story, short essay, or short poem, whether from a collective work.
- A chart, graph, diagram, drawing, cartoon or picture from a book, periodical, or newspaper.

The "single copying" guideline does not apply to current news periodicals, newspapers, and current news sections of other periodicals

Multiple copies for Classroom Use. Multiple copies may be made by or for a teacher giving a course for classroom use or discussion, provided that: (1) there is not more than one copy per student in a course (2) each copy includes a notice of copyright and (3) the copying meets the tests of brevity, spontaneity, and cumulative effect as defined below.

The “single copying” guideline does not apply to current news periodicals, newspapers and current news sections of other periodicals.

Defined terms:

- *Brevity*: Brevity varies by the type of work:
 - Poetry: (a) A complete poem if less than 250 words and if printed on not more than two pages or (b) an excerpt of not more than 250 words from a longer poem.
 - Prose: (a) Either a complete article, story, or essay of less than 2,500 words or (b) an excerpt from any prose work provided the excerpt is not more than 1,000 words or 10% of the work, whichever is less, and a minimum of 500 words.
 - (Each of the numerical limits stated in "i" and "ii" above may be expanded to permit the completion of an unfinished line of a poem or an unfinished prose paragraph.)
 - Illustration: One chart, graph, diagram, drawing, cartoon, or picture per book or per periodical issue.
 - "Special" works: Certain works in poetry, prose or "poetic prose" which often combine language with illustrations and are intended for children and/or a more general audience fall short of 2,500 words in length. Such "special works" may not be reproduced in their entirety. However, an excerpt comprising not more than two of the published pages and not more than 10% of the words found in the text may be reproduced.
- *Spontaneity*: The copying is at the instance and inspiration of the individual teacher, and the inspiration and decision to use the work and the moment of its use for maximum teaching effectiveness are so close in time that it would be unreasonable to expect a timely reply to a request for permission.
- *Cumulative Effect*:
 - The copying of the material is for only one course in the School in which the copies are made.
 - Not more than one short poem, article, story, essay or two excerpts may be copied from the same author, nor more than three from the same collective work or periodical volume during one class term.
 - There shall not be more than nine instances of such multiple copying for one course during one class term.

Federal: 17 U.S.C. 107.

Cross Reference: Policy No. **4430**, Internet & Technology Acceptable Use; Policy No. **4440**, Use of Mobile Electronic Devices; Policy No. **5413**, Mobile Phone Use.

5500 – Discipline

Policy No. 5510

5510 – General Employee Discipline Policy

To ensure the School meets its educational goals and creates an environment of respect and fairness, the School has adopted an employee policy on discipline. As with any disciplinary code, this code reflects the wide spectrum of issues that may arise with employees in an education setting.

The School has adopted a tiered discipline system to address these issues and situations that arise. While the tiered program is an effective approach for many issues, it is not appropriate for all circumstances. Certain issues may require the tiered system to be adapted as tiered levels are skipped or the same discipline is repeated. Other issues may require discipline outside the tiered discipline system.

Disciplinary action outside the tiered system may be appropriate in the following, or similar, circumstances:

- issues arising with Employees in visible or leadership positions;
- the Tiered Discipline System has been ineffective in deterring the prohibited actions;
- the employee's actions are substantially disruptive;
- the employee's conduct demonstrates severe performance deficiencies; or
- other actions as identified.

Cross Reference: Policy No. **5110**, General Employment Eligibility; Policy No. **5411**, Dress and Grooming; Policy No. **5412**, Social Computing; Policy No. **5413**, Mobile Phone Use; Policy No. **5414**, Receiving Gifts; Policy No. **5415**, Conflicts of Interest; Policy No. **5420**, Drug and Alcohol Policies; Policy No. **2660**, Weapons; Policy No. **5441**, Staff and Student Boundaries.

5520 – Tiered Discipline System

The School has adopted a tiered approach to addressing disciplinary issues. As a general matter, discipline should be administered according to the tier. Certain instances, however, may require certain steps to be skipped or for the discipline to be provided outside the system.

Tier One. After an issue arises the Employee and Employee's Supervisor meet promptly to discuss the issue, ways to remedy the issue, and a period to correct the issue.

Tier Two. After an issue arises and a Tier One discussion is ineffective or inappropriate, the Employee's supervisor may issue a written warning describing the issue and proposing a meeting time to discuss the issue. In the meeting, the employee and the employee's supervisor should discuss the issue, identify ways to remedy the issue, and establish a time frame for the issue to be resolved by. The discussion should be documented in a letter that is to be signed by the employee. The supervisor must note if the employee refuses to sign the letter. The letter shall be given to the Employee and a signed copy of the letter and written warning shall be retained in the employee's file.

Tier Three. In *limited* circumstances, the School may suspend an employee for a specific length of time. Suspensions are without pay, unless stated otherwise. Suspension may be appropriate where an alleged infraction warrants discharge, but the matter must be investigated to verify it occurred. Thus, a suspension occurs while the investigation is conducted. Suspension may also be appropriate where an employee commits a serious infraction, and the suspension is determined appropriate.

Tier Four. After an issue arises and the lower tiers are ineffective or inappropriate, the Employee's Supervisor may discharge the employee. The Employee's supervisor is required to document the reasons for discharge and meet with the Head Administrator or his/her designee. The Head Administrator or his/her designee must approve the discharge.

5530 – Discharge/Termination

Employees at the School are employed on an “At Will” or under a contract.

Cross Reference: Policy No. **5510**, General Employee Discipline; Policy No. **5520**, Tiered Discipline System; Policy No. **5540**, Reporting Licensed Employee Misconduct.

5540 – Reporting Licensed Employee Misconduct

The School is required to promptly submit reports to the Ohio Department of Education (ODE) when certain misconduct occurs involving an employee or an employee of an operator working in the School who holds a license.

The Head Administrator shall report teacher misconduct and misconduct of an operator working at the School. The Governing Authority President shall report misconduct by the Head Administrator.

The School must report an employee to the ODE when the following conditions occur:

- *Certain Criminal Proceedings.* The Head Administrator or Governing Authority President, knows that the employee has plead guilty to, has been found guilty by a jury or court of, has been convicted of, has been found to be eligible for intervention in lieu of conviction for, or has agreed to participate in a pre-trial diversion program for a 3319.31(B)(2) offense, a 3319.31(C) offense, or a 3319.39 (B)(1) offense.
- *Certain Terminations or Nonrenewal.* The Head Administrator or the Governing Authority has initiated termination or nonrenewal proceedings against, has terminated, or has not renewed the contract of the employee because the Head Administrator or Governing Authority has reasonably determined that the employee has committed an act that is any of the following: unbecoming to the teaching profession, a 3319.31(B)(2) offense, a 3319.31(C) offense, or a 3319.39 (B)(1) offense.
- *Certain Resignations.* The employee has resigned under threat of termination or nonrenewal because of any of the following: unbecoming to the teaching profession, a 3319.31(B)(2) offense, a 3319.31(C) offense, or a 3319.39 (B)(1) offense.
- *Certain Investigations.* The employee has resigned because of or during an investigation by the governing authority or operator regarding whether the employee has committed an any of the following: an act unbecoming to the teaching profession, a 3319.31(B)(2) offense, a 3319.31(C) offense, or a 3319.39 (B)(1) offense.

Offenses Defined

“Conduct Unbecoming to the Teaching Profession” is defined in accordance with the State Board of Education’s Rule 3301-73-21(A) to mean:

- Crimes or misconduct involving minors.
- Crimes or misconduct involving school children.
- Crimes or misconduct involving academic fraud.
- Making, or causing to make, any false or misleading statement, or concealing a material fact in a matter pertaining to facts concerning qualifications for professional practice and other educational matters.
- Crimes or misconduct involving the School community, school funds, or school equipment/property.
- As the term is defined in the Licensure Code of Professional Conduct for Ohio Educators, *3319.31(C) Offense* is defined as any violation found in ORC 3319.31(C), which includes human trafficking.

3319.39(B)(1) *Offense* is defined as a plea of guilty to, a finding of guilt by a jury or court of, or a conviction of any of the following:

- Felony other than 3319.31(C) felonies.
- An offense of violence other than an offense of violence listed 3319.31(C);
- Theft offense, as defined in section 2913.01 of the Revised Code, other than a theft offense listed in 3319.31(C).
- A drug abuse offense, as defined in section 2925.01 of the Revised Code, which is not a minor misdemeanor, other than a drug abuse offense listed in 3319.31(C); (5) A violation of an ordinance of a municipal corporation that is substantively comparable to an offense listed in divisions 3319.39(B)(2)(a) to (d).

Reporting Credentialed Educators under the Code of Professional Conduct

The Licensure Code of Professional Conduct for Ohio Educators (LCPCOE, which may be accessed here: <http://education.ohio.gov/getattachment/Topics/Teaching/Educator-Conduct/Licensure-Code-of-Professional-Conduct-for-Ohio-Ed/Licensure-Code-of-Professional-Conduct-for-Ohio-Educators-9-17-19.pdf.aspx?lang=en-US>) is a guide for conduct in situations that have professional implications for all educators credentialed by the State Board of Education, including teachers, administrators, school nurses, substitute teachers, coaches, educational aides, and others. The LCPCOE compels educators to notify the Head Administrator of any conduct by a licensed educator that substantially impairs his or her ability to function professionally or is detrimental to the health, safety, and welfare of students. It further defines “conduct unbecoming to the profession” to mean a violation of the following nine principles by any credentialed employee or credentialed employee of an operator working at the School:

1. Educators behave in a professional manner, realizing that one’s actions reflect directly on the status and substance of the profession.
2. Educators always maintain a professional relationship with all students, both in and out of the classroom.
3. Educators accurately report information required by the local board of education or governing board, state education agency, federal agency or state or federal law.
4. Educators adhere to federal, state, and local laws and statutes regarding criminal activity.
5. Educators comply with state and federal laws related to maintaining confidential information.
6. Educators serve as positive role models and do not use, possess, or unlawfully distribute illegal or unauthorized drugs.
7. Educators ensure school property, public funds or fees paid by students or the community are used in the best interest of students and not for personal gain.
8. Educators fulfill all the terms and obligations in their employment contracts.
9. Educators use technology in a responsible manner and safeguard the electronic devices and data entrusted to them.

Filing Reports

Reports shall be made by filling out the Educator Misconduct Reporting Form from ODE. The Report shall include the employee’s name, social security number, and a factual description of the event. The report shall be sent to two places. One copy of the report shall be kept in the Employee’s file. The other

copy of the report shall be submitted to the ODE. The ODE will decide when to proceed with an investigation. If it is determined that the actions do not warrant action, reports shall be moved from the employee's file to a separate, public file.

Knowingly submitting false reports of employee misconduct are prohibited and are actionable by law.

Suspension During Criminal Proceedings

If the School receives notice that an employee has been arrested, summoned, or indicted with one or more of the criminal offenses listed above, the School shall suspend that employee from all duties which require the care, custody, or control of a child during the pendency of a criminal action.

Ohio: R.C. 3326.99, R.C. 3319.31, R.C. 3326.11; R.C. 3326.24. O.A.C. 3301-73-21. Licensure Code of Professional Conduct for Ohio Educators.

Cross Reference: Form No. **5540.1**, Educator Misconduct Reporting Form; Policy No. **5510**, General Employee Discipline Policy; Policy No. **5520**, Tiered Discipline System; Policy No. **5530**, Discharge/Termination.

5540.1 – Educator Misconduct Reporting Form

The manual adopts the Ohio Department of Education’s Educator Misconduct Reporting Form. The Form may be accessed by clicking the link below.

<https://sboe.ohio.gov/professional-conduct/report-educator-misconduct>

5550 – Pre-employment Applications and Screening Process**Employment Applications:**

The School shall include on all employment applications, the following notice:

ANY PERSON WHO KNOWINGLY MAKES A FALSE STATEMENT IS GUILTY OF FALSIFICATION UNDER SECTION 2921.13 OF THE REVISED CODE, WHICH IS A MISDEMEANOR OF THE FIRST DEGREE.

Release of Information Obtained During an Investigation:

The Head Administrator may request that the Ohio Department of Education (“ODE”) provide any report of misconduct that ODE has received regarding an individual whom the School is considering for employment. Upon receiving a request, ODE must provide the contents of any report of misconduct it has received to the Head Administrator and must notify him/her that the information provided is confidential and may not be disseminated to another person or entity. If ODE provides the contents of a report under this provision, then ODE must document the information provided in the record of any investigation undertaken based on the report. The documentation must include a list of the information provided, the date the information was provided, and the name and contact information of the Head Administrator to whom it was provided.

Pre-employment Screening Process:

Before making hiring decisions, the School shall consult the ODE’s “Educator Profile” database, currently on the website as “CORE” – Connected Ohio Records for Educators. After consulting the database, the School may consult with the ODE’s Office of Professional Conduct to determine if an applicant has been the subject of a disciplinary report by a school official to the state Superintendent or had any disciplinary actions taken by the Department. The School may also consult any of the applicant’s prior education-related employers.

The School has the option of offering conditional employment to an individual pending the completion of the screening process, and the School may release the individual from employment if the screening process uncovers misconduct for which an individual may not be employed in a school.

The School may require an applicant to volunteer to undergo background checks which are in addition to the required criminal records checks.

Assisting Individuals in Obtaining School Employment

A School representative shall not engage in any activity intended to assist another individual in obtaining school employment to teach school age children, if the representative knows or has reasonable cause to believe that the individual has committed a sex offense involving a student.

This prohibition does not apply if either:

1. The school representative is transmitting administrative and personnel files to the prospective employer; or

2. The information has been reported to law enforcement or the public children services agency and one of the following apply:
 - a. law enforcement has determined there is insufficient information to indict the individual for the alleged offense,
 - b. the individual has not been indicted within four years after the date of the report, or
 - c. the individual has been acquitted otherwise exonerated of the offense.

See R.C. 3319.318; 3319.319; 3319.393; 3326.11; 3326.24.

5600 – Employee Development

Policy No. 5610

5610 – General Employee Learning/Development

The Governing Authority realizes that Employee Development is important in furthering the School's educational mission. The Governing Authority seeks to provide learning/development opportunities for Employees as the Governing Authority is within the bounds of the law and the School's mission.

Cross Reference: Policy No. **5620**, Ohio Teacher Residency Program; Policy No. **5630**, Staff Performance Review; Policy No. **5650**, Performance Improvement Plan; Policy No. **5660**, Professional Growth and Development; Policy No. **5670**, Tuition Assistance Plan.

5620 – Ohio Teacher Residency Program

In accordance with Ohio law, the School's teachers shall participate in the "Ohio Teacher Residency Program," a four-year program is required for entry-level classroom teachers. The program is designed to assist entry-level teachers by providing mentoring and counseling over a four-year period.

The program is required for each person with a resident educator license, or an alternative resident educator license. The program must be completed to qualify for a professional educator license under O.R.C. 3319.22.

Ohio: R.C. 3319.22, 3319.223

Cross Reference: Policy No. **5610**, General Employee Development; Policy No. **5630**, Staff Performance Review; Policy No. **5650**, Performance Improvement Plan; Policy No. **5660**, Professional Growth and Development; Policy No. **5670**, Tuition Assistance Plan.

5630 – Staff Performance Review

Every staff member will be evaluated while employed with the School. Evaluations include informal evaluations and an Annual Performance Review.

Informal evaluations occur throughout the year and include student performance. The informal evaluations will be included in the Annual Performance Review.

The Annual Performance Review will occur once a year and is used in assessing continued employment and compensation for the following year. Annual Performance Reviews are to include a written component.

Cross Reference: Policy No. **5610**, General Employee Development; Policy No. **5620**, Ohio Teacher Residency Program; Policy No. **5630**, Staff Performance Review; Policy No. **5650**, Performance Improvement Plan.

5640 – Teacher Evaluation

The Governing Authority adopts the following policy to evaluate its teachers beginning with the 2022-2023 school year. The Governing Authority evaluates teachers in accordance with Ohio law and the standards-based statewide teacher evaluation framework adopted by the Ohio Board of Education.

The Governing Authority directs the Head Administrator or his/her designee to implement this policy in accordance with Ohio law.

This policy applies only to teachers. A teacher is defined to include any person who spends at least 50% of his/her time employed providing content-related student instruction and is working under any of the following:

- a teacher's license issued under O.R.C. Sections 3319.22, 3319.26, 3319.222 3319.226;
- a professional or permanent teacher's certificate issue under the former 3319.2222; or
- a teacher working under a permit issued under O.R.C. 3319.301

For the purposes of this policy, a teacher does not include substitute teachers or adult education instructors. The policy also does not apply to the Head Administrator, business managers, and/or treasurers.

Credentialed Evaluators

Evaluations conducted under this policy are to be conducted by Credentialed Evaluators. Credentialed Evaluators are persons who complete state-sponsored evaluation training and pass the online credentialing assessment. The School shall adopt a list of approved credentialed evaluators chosen from the Ohio Department of Education's list.

Final Holistic Rating

Each teacher's evaluation shall include a final holistic rating. The final holistic rating will be either: Accomplished, Skilled, Developing, or Ineffective.

Evaluation Components

Consistent with Ohio Department of Education guidance published in *Ohio Teacher Evaluation System 2.0 Model*, a complete evaluation cycle shall include the following components:

- Annual development of a professional growth plan, or if applicable, an improvement plan
- One (1) formal holistic observation
- At least one (1) conference with the evaluator, including a discussion of the teacher's progress on his/her professional growth plan or improvement plan
- One (1) formal focused observation emphasizing previously identified focus areas
- At least two (2) classroom walkthroughs emphasizing previously identified focus areas.

Evaluation Framework

Teachers shall be evaluated according to the Ohio Revised Code and the *Ohio Teacher Evaluation Framework*, consistent with standards adopted in *Ohio Standards for the Teaching Profession*.

Credentialed evaluators shall evaluate teachers using the *Teacher Performance Evaluation Rubric* and shall issue a final holistic rating based upon observations and supporting evidence.

Teacher performance shall be evaluated based on the *Ohio Standards for the Teaching Profession*.

Evaluators shall measure a teacher's abilities to:

- Understand student learning and development, respect student diversity and hold high expectations for all students to achieve and progress at high levels;
- Understand the content areas for which they have instructional responsibility;
- Understand and use varied assessments to inform instruction and evaluate and ensure student learning;
- Plan and deliver effective instruction that advances the learning of each student;
- Create a learning environment that promotes high levels of learning and achievement for all students;
- Collaborate and communicate with students, parents, other teachers, administrators, and the community to support student learning; and
- Assume responsibility for professional growth and performance as an individual and as a member of a learning community.

Credentialed evaluators shall consider at least two (2) measures of high-quality student data ("HQSD") in a teacher's evaluation. When applicable to the grade level or subject area taught by a teacher, HQSD shall include the value-added progress dimension and the teacher shall use at least one other measure of HQSD to demonstrate student learning. The Head Administrator shall implement procedures to obtain HQSD for the purposes of teacher evaluation. HQSD employed in the evaluation process shall be rigorously reviewed by locally determined experts in the field of education to meet all the following criteria:

- Aligned to learning standards
- Measures what it is intended to measure
- Be attributable to a specific teacher for courses and grade levels taught
- Demonstrate evidence of student learning (achievement and/or growth)
- Follow protocols for administration and scoring
- Provide trustworthy results
- Not offend or be driven by bias

HQSD shall NOT include student learning objectives.

Teachers shall use the HQSD instrument by:

- Critically reflecting upon and analyzing available data, using the information as part of an ongoing cycle of support for student learning
- Considering student learning needs and styles, identifying the strengths and weaknesses of an entire class as well as individual students
- Informing instruction, adapting instruction to meet student need based upon the information gained from the data analysis

- Measuring student learning (achievement and/or growth) and progress towards achieving state/local standards

Professional Growth and Improvement Plans

All teachers shall develop a professional growth plan annually to identify areas of professional development unless the teacher has been placed on an improvement plan by their credentialed evaluator. All professional growth plans shall be individualized to address each teacher's professional needs and shall focus on growth areas identified in the teacher's most recent evaluation.

Teachers receiving a Final Holistic Rating of "Accomplished" on the most recent evaluation shall develop a self-directed professional growth plan.

Teachers receiving a Final Holistic Rating of "Skilled" on the most recent evaluation shall jointly develop a professional growth plan with their credentialed evaluator.

Teachers receiving a Final Holistic Rating of "Developing" on the most recent evaluation shall develop a professional growth plan guided by their credentialed evaluator.

Teachers receiving a Final Holistic Rating of "Ineffective" on the most recent evaluation shall be placed on a performance improvement plan developed by their credentialed evaluator. The performance improvement plan shall identify specific areas of performance improvement and foster professional development through targeted support.

The Governing Authority shall allocate financial resources towards professional development to accelerate and continue teacher growth and provide support for poorly performing teachers.

Performance Improvement Plans are discussed further in Policy No. **5650**, Performance Improvement Plan. Professional Growth plans are discussed further in Policy No. **5660**, Professional Growth and Development.

Evaluation Timeline

Teachers shall be evaluated annually, except as provided below. Annual evaluations include two (2) formal observations and periodic classroom walkthroughs. Formal Evaluations shall last at least 30 minutes.

Teachers, who are on limited or extended limited contracts pursuant to State law and under consideration for nonrenewal, will receive at least three formal observations during the evaluation cycle.

Teachers receiving a Final Holistic Rating of "Accomplished" on the most recent evaluation shall be evaluated under this policy every three years and shall choose their credentialed evaluators from the approved evaluator list.

Teachers receiving a Final Holistic Rating of “Skilled” on the most recent evaluation shall be evaluated under this policy every two years and shall be involved in the selection process of their credentialed evaluator.

Teachers receiving a Final Holistic Rating of “Developing” or “Ineffective” on the most recent evaluation shall be evaluated under this policy annually and shall be assigned a credentialed evaluator from the approved evaluator list.

All teacher evaluations are to be completed by May 1. Teachers shall be provided with a written copy of their evaluation results by May 10.

Use of Evaluation Results

The Governing Authority shall use the evaluation results for retention and promotion decisions.

Seniority shall not be used when deciding to retain teachers, except when choosing between teachers who have comparable evaluations.

The Governing Authority shall use the evaluation results for removing poorly performing teachers. The Board shall adopt procedures for removing poorly-performing teachers based on evaluation results.

Mandatory Reporting

The Governing Authority must report to the ODE the number of teachers for whom an evaluation was conducted. The Governing Authority shall report the aggregated data on the number of teachers at each designation. The Data must be aggregated by the teacher preparation programs from which and the years in which the teachers graduated.

Ohio: R.C. 3319.11; R.C.3319.111; R.C. 3319.112; R.C. 3319.16

Cross Reference: Policy No. **5610**, General Employment Development; Policy No. **5630**, Staff Performance Review; Policy No. **5650**, Performance Improvement Plans.

5650 -Performance Improvement Plans

Employees that receive unsatisfactory Annual Performance Reviews may be provided a Performance Improvement Plan. In a Performance Improvement Plan, the Head Administrator or his/her designee will meet with the evaluated employee, discuss the employee's Annual Performance Review, and develop a plan that will guide the employee in achieving better performance.

The Plan shall include objective goals that are achievable in a specified period. The Plan should be drafted in writing and specify the areas that need improving, state objective goals, identify the date to achieve the goals, and specify the next meeting time to review the desired goals.

At the conclusion of the first plan, another meeting will occur. If the Head Administrator or his/her designee determines that the employee's performance has not improved or met the goals of the Performance Improvement Plan, the Head Administrator may take any appropriate action, including termination.

The Performance Improvement Plan or the failure to provide such a plan does not interfere with the School's right to terminate an employee.

Cross Reference: Policy No. **5610**, General Employee Development; Policy No. **5620**, Ohio Teacher Residency Program; Policy No. **5630**, Staff Performance Review; Policy No. **5660**, Professional Growth & Development.

5660 – Professional Growth & Development**In-Service Training**

The School recognizes the importance of continuing professional growth for its employees. The School is to develop in-service training for the School's Teachers and Teacher Aids. The in-service training shall be on topics that supplement the School's educational mission, improve methods to educate students, achieve state mandates, aid the professional development of staff, and/or achieve state goals.

Attendance is mandatory and will be conducted throughout each school year.

Local Professional Development Committee (LPDC)

The School shall establish a Local Professional Development Committee ("the Committee"). The Committee shall review the coursework and other professional learning/development activities proposed and completed by teachers to determine if the teachers meet the requirements for renewing their licenses and determine whether a teacher's coursework meets the requirements of the State Board standards for license renewal.

The Committee will be limited to the School as defined within the entire K-12 grades at a city location.

School Representation. The Committee shall be composed of five (5) persons. There should be three teacher representatives, one administrative member representative, and one other employee representative.

- Teacher Representatives - The School's classroom teachers will select three teacher members. Ideally these teachers will represent as many different grade levels and/or subject areas as possible. Should a teacher representative spot become vacant, the remaining members shall decide who will occupy the vacancy. The appointed member shall finish the remainder of the term.
- Administrative Representative – The administrative member shall be selected by the Governing Authority. Should this position become vacant during the term, the Head Administrator shall appoint a new representative to finish the remainder of the term.
- Other Representative – The Head Administrator shall select another employee representative. Should this position become vacant during the term, the Head Administrator shall appoint a new representative to finish the remainder of the term.

Terms of Representation. Members of the Committee shall serve terms of one (1) year. Members may be re-elected up to 4 consecutive times for a maximum of 5 years of continuous service. If this occurs the Member must not serve again until 2 years have passed.

Meeting Schedule. The Committee shall meet *at a minimum* of two times a year. Additional meetings shall be held as is deemed necessary.

Other Requirements. The Committee shall be operated consistent with Ohio Revised Code Section 3319.22's requirements.

Ohio: R.C. 3319.22.

Cross Reference: Policy No. **5610**, General Employee Development; Policy No. **5620**, Ohio Teacher Residency Program; Policy No. **5640**, Teacher Evaluation Policy No. **5650**, Performance Improvement Plan; Policy No. **5670**, Tuition Assistance Plan.

5670 – Tuition Assistance Plan

As an educational institution, the School is committed to assisting its employees in furthering their own knowledge and development through the School's Tuition Assistance Plan (TAP). TAP allows qualified employees to receive assistance at accredited educational institutions.

Employee Eligibility. To qualify for TAP, an individual must be a full-time employee and have worked six (6) full months of continuous employment. Retirees and family members are not eligible for the plan.

Satisfactory Participation. TAP will provide 50% assistance to tuition and required lab fees, provided a satisfactory grade is achieved. A satisfactory grade is a "B" or better for graded classes or a "Pass" in Pass/Fail classes. Grades below a B or a "Fail" will not receive assistance. Evidence of satisfactory grades must be submitted in the form of an official transcript and be provided to the Head Administrator within sixty (60) days of completing the course. Failure to provide these results may cause an employee not to be eligible for reimbursement.

Course/Program Eligibility. TAP may be used for individual courses or degree programs at accredited colleges and universities. For TAP to apply to courses, the course must provide the employee with skills and knowledge for the Employee's current position, an advanced position, or further development within the School. For TAP to apply to degree programs, the degree must be job related. Tap does not apply to short-term course work, seminars, workshops, or coursework supported by grants. Employees are required to apply for TAP eligibility before entering into a course or program. The Head Administrator retains final discretion to determine whether an employee's courses or programs qualify for TAP. The Head Administrator may terminate or change the program or the program's benefits at any time.

Non-interference with Job Duties. Courses and programs must not interfere with an Employee's job responsibilities or work schedule.

Procedure. To participate in TAP, employees should do the following prior to entering the class/program:

- complete Form No. **5670.1**, Tuition Assistance Plan (TAP) Application; and
- obtain approval from their supervisors.

Within sixty (60) days of completing of the program, employees are required to:

- complete and return the Form No. **5670.2**, Tuition Assistance Plan (TAP) Reimbursement Form;
- submit a proof of payment; and
- submit a copy of an official transcript.

Cross Reference: Policy No. **5610**, General Employee Development; Policy No. **5620**, Ohio Teacher Residency Program; Policy No. **5650**, Performance Improvement Plan; Policy No. **5660**, Professional

Growth & Development; Policy No.**5670**, Tuition Assistance Plan; Form No. **5670.1**, Tuition Assistance Plan (TAP) Application; Form No. **5670.2**, Tuition Assistance Plan (TAP) Reimbursement Form.

5670.1 – Tuition Assistance Plan (TAP) Application

Application must be submitted and approved before the class/program begins

Name:	Position:
Address:	Home Phone:
	Cell Phone:

Name of Institution: _____

Level of Instruction: (please circle) Undergraduate Graduate Other:

Please identify any/all additional forms of Financial Assistance (Grants, Scholarships, Etc.)

-
-

Please Complete all course information:

Course Name	Course Number	Begin/End Date	Credit Hours	Evaluation Type (Graded Pass/Fail)

I certify that I have read and understand the School's Tuition Assistance Plan. The courses/program I am entering provides me with skills and knowledge related to my current position. If the courses provide skills and/or knowledge for an advanced position or further development within the School, I understand that I must discuss this with my Supervisors and obtain approval from the Head Administrator. I further certify that these courses will not interfere with my job duties. I understand that if my employment is terminated, I will not be reimbursed.

Employee Signature

Date

Office Use:

Received Date:

Status: Approved or Denied

Head Administrator

Date

5670.2 – Tuition Assistance Plan (TAP) Reimbursement Form

This Form must be submitted within 60 days of the Course's Completion

Name:	Position:
Address:	Home Phone:
	Cell Phone:

Please include the following documents with this form:

- Official transcript indicating courses completed and grade received.
- Document proving payment.

Please Complete all course information:

Course Name/Number	Tuition Cost	Lab Fees	Course Completed on: (date)	Evaluation Received (Indicate Letter Grade; Pass/Fail)

Total Costs (tuition and lab fees) _____

I certify that I completed the above courses and am eligible to receive assistance under the School's Tuition Assistance Program.

Employee Signature

Date

Office Use:

Received Date:

Total Amount Requested: _____

50% Assistance Amount: _____

Date of Reimbursement: _____

Amount paid: _____

Head Administrator

Date

5700 – Employee Medical Policies

Policy No. 5710

5710 – Employee Medical Information and Examinations

Medical Records

The School may require you to provide medical information and records. All medical information and records are confidential to the extent permitted by law and are separate from each employee's personnel file.

The Governing Authority prohibits discrimination on the basis of genetic information. By law, the School is required to comply with the Genetic Information Nondiscrimination Act of 2008 (GINA). GINA prohibits the School from requesting or requiring genetic information, unless the law permits such information (e.g., leave under the Family Medical Leave Act).

"Genetic information," as defined by GINA, includes information about the individual's genetic tests, the genetic tests of family members of such individuals, the manifestation of a disease or disorder in family members of such individuals, participation in genetic services, and participation in genetic research. Genetic information *does not* include information about the individual's age or sex.

Medical Exams/Testing

To protect the health of the School's students and other employees, the School may require currently employed employees to undergo medical exams as it determines is necessary. The examinations may be provided by (1) a health care provider identified by the School or (2) the employee's health care provider. Results of the examination must be sent to the School. The examination results will be kept with other medical records.

Cross Reference: Policy No. **2210**, Health Screenings; Policy No. **2220**, Immunization Requirements; Policy No. **2230**, Medication Administration; Policy No. **2420**, Communicable Diseases; Policy No. **2430**, Direct-Contact Communicable Diseases; Policy No. **2440**, Bodily Fluid Exposure Control; Policy No. **2450**, Head Lice; Policy No. **5720**, Communicable Disease Prevention and Safety; Policy No. **5730**, Tuberculosis & Tuberculin Testing.

5720 – Communicable Disease Prevention and Safety

The School seeks to maintain a healthy and safe environment. An employee with an infectious or otherwise serious disease may continue to work so long as the employee does not jeopardize the health of the employee, other students, or other employees.

It is highly advised for employees to report infectious or otherwise serious diseases or illnesses to the Head Administrator. The School will maintain confidentiality to the extent permitted by law.

The School may require the employee undergo medical testing pursuant to Policy **5710**. Should the School determine that an employee's disease places others in imminent serious danger, the School may also request the employee undergo testing or may place the employee on an involuntary leave. Certain diseases identified by the Ohio Department of Health may require the employee to be placed in isolation. Prior to return, the School may require a physician's medical certification indicating the employee's disease no longer poses a danger to the health of others.

If an employee is concerned about contracting another's disease or illness, the employee is first required to discuss his/her concerns with the Head Administrator or his/her designee. The Head Administrator will determine if there is a real risk of contracting the disease. Should it be determined there is no or minimal risk of infection, the employee will be required to continue working. Employees that refuse to work despite this policy may be disciplined.

This Policy does not affect an eligible employee's ability to use the Family and Medical Leave Act.

Ohio: R.C. 3313.67, R.C. 3313.671, R.C. 3707.26.

Cross Reference: Policy No. **2210**, Health Screenings; Policy No. **2220**, Immunization Requirements; Policy No. **2230**, Medication Administration; Policy No. **2420**, Communicable Diseases; Policy No. **2430**, Direct-Contact Communicable Diseases; Policy No. **2440**, Bodily Fluid Exposure Control; Policy No. **2450**, Head Lice; Policy **5710**, Employee Medical Information and Examinations; Policy No. **5730**, Tuberculosis & Tuberculin Testing.

5730 – Tuberculosis & Tuberculin Testing

All school employees found to be ill or suffering from tuberculosis shall be promptly sent home and the employee's employment shall be suspended until it is certified that the School employee has recovered from the disease.

To aid in protecting all members of the School from tuberculosis, the School requires Tuberculin testing for all its employees. Prior to employment, all employees are required to provide the School with a medical certificate that certifies that the employee is free from active tuberculosis. The medical certificate must be completed within sixty (60) days of employment. If the employee tests positive or is a known positive reactor, the employee must undergo an X-ray test and submit a statement by a medical doctor that the employee is free of tuberculosis in a communicable stage.

After employment begins, all employees are required to provide the School with a medical certificate that certifies that the employee is free from active tuberculosis. This test must be completed every three (3) years. If the employee tests positive or is a known positive reactor, the employee will be required to have an annual x-ray test completed and submit a statement by a medical doctor that the employee is free from tuberculosis in a communicable stage. Employees that have undergone preventative therapy as defined by the Ohio Department of health will be required to have an x-ray test completed every three years.

The School reserves the right to change the examination requirements to protect the health of all the School's community.

Ohio: R.C. 3313.67, 3313.71.

Cross Reference: Policy No. **2210**, Health Screenings; Policy No. **2220**, Immunization Requirements; Policy No. **2230**, Medication Administration; Policy No. **2420**, Communicable Diseases; Policy No. **2430**, Direct-Contact Communicable Diseases; Policy No. **2440**, Bodily Fluid Exposure Control; Policy No. **2450**, Head Lice; Policy No. **5710**, Employee Medical Information and Examinations; Policy No. **5720**, Communicable Disease Prevention and Safety.

5800 – Records Access

Policy No. 5810

5810 – Personnel Records File

The School develops and maintains a Personnel File of each employee. The Personnel File may contain hiring information, employment information, compensation information, misconduct/discipline, and other additional reports related to the employee.

Due to the type of files in the Personnel File, there may be extensive personal information about each employee.

Definitions:

"Personal Information" or "PI":

Any information that describes anything about a person, or that indicates actions done by or to a person, or that indicates that a person possesses certain personal characteristics, and that contains, and can be retrieved from a system by, a name, identifying number, symbol, or other identifier assigned to a person.

"System":

Any collection or group of related records that are kept in an organized manner and that are maintained by the school, and from which personal information is retrieved by the name of the person or by some identifying number, symbol, or other identifier assigned to the person. "System" includes both records that are manually stored and records that are stored using electronic data processing equipment.

"System" does not include published directories, reference materials or newsletters, or routine information that is maintained for internal office administration, the use of which would not adversely affect a person.

Personal information shall only be kept if it is necessary for the School to maintain. Personal Information shall not be placed in an interconnected or combined system, or use information in such a system, unless the interconnected or combined system will contribute to the efficiency of the School in the implementation of its programs. When such personal information is no longer needed, the information should be destroyed securely.

Personnel files are the property of the School, and access to the information they contain is restricted. To the extent permitted by law, the School restricts access to the Personnel File and all personal information found in the file. In the following circumstances, access may be granted:

- Ohio law requires access to the documents,
- the Governing Authority of directors requests access and has reason to request access,
- employees need access to the data because they work with the data and files,
- at the Head Administrator's Discretion.

Generally, if the School's Governing Authority has a legitimate reason to review information in a file, then it is allowed to do so. The Head Administrator is directly responsible for the Personal Information

systems and may adopt further procedural rules consistent with this policy. No Personal Information may be accessed without first completing a written request to the Head Administrator. The Head Administrator may grant blanket access to all or part of the Personal Information systems for employees whose jobs require such access. All employees granted access to any Personal Information in the files shall be informed of the substantive provisions of the policy and accompanying appendices. In an effort to protect Personal Information in the system from unauthorized modification, destruction, use or disclosure, the Head Administrator shall keep a log of authorized parties and specific access granted, and all Personal Information systems shall be password protected.

The Head Administrator is authorized to create a Personal Information System. The personal information system shall be password protected and a log shall be kept of employees that have access.

To fulfill their purpose, personnel files must be updated and complete. The School requires employees to provide updates to all of the following on an annual basis:

- biographical information (name, marital status),
- contact information (address, phone number, email address),
- familial information (dependents, spouses),
- tax information (federal, state tax deductions),
- professional/educational information (degrees, achievements, awards).

Upon being asked to provide personal information, employees will be told if the information is mandatory or optional.

Unauthorized access or use of the personnel file or any personal information within the file is strictly prohibited. Discipline may include action up to termination and/or referral for criminal prosecution.

Personal Information

The following should be contained for each employee.

Personnel File

- Application for Employment
- Valid License
- School transcripts, education information
- Biographical information: name, address, and telephone number
- Disciplinary Action
- Military Service status/discharge
- Compensation
- Proof of fulfillment of requirements for change in salary classification

Payroll File

- W-4 Forms
- I-9 Forms
- Life insurance, disability insurance, Annuity Forms (excluding medical examination)

- Payroll deduction authorization
- Sick/Personal Days accumulated

Confidential File

- Medical records
- Criminal Records
- Other records prohibited for release by State or Federal law.

Review of Personnel Files and Personal Information

Employees who wish to review their own personnel file shall make no alterations or additions to the record nor remove any material. Employees who wish copies of material in their personnel file shall receive such copies free of charge. The following information may be requested:

- The existence of PI.
- They may inspect the PI contained in the system.
- Inform them of the types and uses of the PI.
- Identification of the system and the users with access.
- Any mental health information in the PI, unless a doctor has determined disclosure will have an adverse effect on the person.
- Copies of the PI may be obtained upon request.

A person may request an investigation to determine if the PI is accurate, relevant, timely or complete. Upon the request of the employee, the School shall investigate the accuracy of his/her personnel file and either delete the disputed information or include in the file a statement by the employee that he/she disputes the information. If information is deleted or a statement of protest is made by an employee, the employee may request the School to notify any person of such deletion or protest. In that event, the disputer may attach a brief statement that is 100 words or less, or the School must attach a note that the disputer protests that the PI is inaccurate, irrelevant, outdated, or incomplete.

If there is a breach of security in any computerized data system which creates a material risk of identity theft or other fraudulent activity, the School shall notify the affected employees.

Ohio: R.C.

Cross Reference: Policy No. **1741**, Public Records Access Policy; Policy No. **1742**, Internet Public Record Redaction Policy; Policy No. **1743**, Retention, Management and Disposal of Records; Policy No. **3831**, Student Records and Release of Information; Policy No. **3832**, Confidential and Public Records.

5810.1 – Notice of Personal Information & Rights of Individuals**Subject to Personal Information System**

The School maintains a personal information system for the efficient tracking of all information. The chart below lists the type of information maintained and who may access your information.

The information may only be used as allowed under Ohio's public records laws.

You, your legal guardian, or your attorney may review all of your personal information. Upon request for review, the School will provide copies, at cost, of your personal information. If you dispute the accuracy of the information, you may request the Governing Authority to investigate the current status of the information. The Governing Authority shall investigate the dispute pursuant to Ohio law.

Personal Information Maintained

Staff Members	Personal Information:
	Persons with Access:
Students	Personal Information:
	Persons with Access:
Parents	Personal Information:
	Persons with Access:

Section VI: Community Relations

6100 – Community Partnership

Policy No. 6110

6110 – Visitors

The Governing Authority encourages the community and parents to be involved in and to support the School, but also seeks to keep the School safe and productive. To encourage involvement, the School welcomes visitors to the School to observe and learn about the educational program and encourages the community to attend public events, such as Esports events, musical programs, and drama productions.

All visitors to the School must comply with the following rules and guidelines.

- All School visitors must report immediately to the administrative office at the School and sign the School guest list. The Head Administrator is responsible for posting signs within the School to notify visitors of this requirement.
- Students from other schools are not permitted to visit the School during normal school hours. The Head Administrator may allow students who are considering transferring from another school to visit during school hours.
- Any individual who disrupts the educational environment, acts in a disorderly manner, damages School property, or violates the law or these Policies may be requested to leave School property, and the local law enforcement agency may be contacted if necessary.
- The Head Administrator has the authority and sole discretion to prohibit any individual from entering School property if the Head Administrator has reason to believe that such individual's presence would be detrimental to the effective operation of the School.

In addition to the rules and procedures contained within this Policy, the Head Administrator may develop and implement visitor controls and procedures designed to maintain a safe and effective learning environment.

Cross Reference: Policy No. **2130** Wellness Policy; Policy No. **2610**, Building and Grounds Security; Policy No. **4650**, Use of School Facilities by Non-School Sponsored Clubs and Activities; Policy No. **6120** Volunteers.

6120 – Volunteers

This policy serves to notify every School volunteer who has regular unsupervised access to students that the School may be conduct a background check or request a set of fingerprints.

If the criminal background reveals that the volunteer has been convicted of or plead guilty to any offense described in section 109.572 of the Ohio Revised Code, the School will not permit the volunteer to have unsupervised access to students unless the following are satisfied:

- A written notice is sent out to the parent or guardian of each student enrolled in the School, stating the name of the volunteer, and indicating that the volunteer has been convicted of or plead guilty to one or more of the prohibited offenses; and
- The notice is sent out to each parent either when the School starts providing services to the student or when the School decides to accept the volunteer despite the volunteer's previous offense, whichever comes later.

Ohio: R.C. 109.575.

Cross-Reference: Policy No. **2130**, Wellness Policy; Policy No. **6110**, Visitors.

6130 – Relations with Law Enforcement Agencies

“Law enforcement agencies” is defined to include police departments, parole Governing Authorities, Children’s Services, the Court, and any other agency or organization that promotes the public welfare. The phrase “law enforcement officer” means any individual employed by or otherwise representing the law enforcement agency, regardless of position or title.

The Governing Authority recognizes that mutual cooperation between law enforcement agencies and the School is necessary to the extent that it promotes efficiency, maintains a safe School, and provides for orderly responses to emergency situations. Accordingly, the Governing Authority hereby adopts this Policy to help foster a cooperative relationship with law enforcement agencies.

Law Enforcement Protocol

Whenever a law enforcement officer visits the School in his/her official capacity, the following requirements must be complied with:

- the law enforcement officer shall check-in at the School office immediately upon arrival at the School;
- upon checking-in, the law enforcement officer shall provide proof of identification and shall indicate the law enforcement agency he or she is affiliated; and
- upon checking-in, the law enforcement officer shall state the purpose for the School visit.

On-Site Student Questioning

Whenever a law enforcement officer intends to question a student on School property and during school hours, the student’s parent or guardian must be contacted by the School and asked: (1) whether the parent or guardian consents to the questioning of their child by the law enforcement officer; and (2) if so, whether the parent or guardian would like to exercise his/her right to be present during the questioning.

If the parent or guardian consents to the questioning and desires to be present during the questioning, the student may be called to the School office as soon as the parent or guardian arrives at the School. Throughout the questioning, the Head Administrator shall be present in the room to represent the interests of the School, to assist in the questioning, and, if advisable, to assist the parents and/or the student.

If the parent consents to the questioning and waives the right to be present during the questioning, the student may be called to the School office immediately and questioned. During the questioning, the Head Administrator shall be present to represent the interests of the School, to assist in the questioning, and to assist the student to the extent possible. The student may also request that another School employee attend the questioning.

If the parent does not consent to the questioning, the student shall not be called to the School office or questioned.

If a student is being questioned as a potential victim, and the law enforcement officer, in his or her professional opinion, deems it undesirable to contact the parents before questioning the student, then the School shall not contact the parent or guardian. Instead, the student shall be called to the School office and questioned by the law enforcement officer. The Head Administrator shall be present during the questioning.

Off-Site Student Questioning

If a law enforcement officer requests to take a student off-site for questioning and the questioning is not pursuant to an arrest, the School shall not release the student unless the student's parent or legal guardian is contacted by the Head Administrator and grants consent. If the parent or legal guardian cannot be contacted, or is unwilling to grant consent, then the School shall not release the student to the law enforcement officer.

If, however, the law enforcement officer arrests the student, then the School shall release the student to the law enforcement officer, regardless of whether the parent or legal guardian has been contacted or grants such consent.

Student Rights

A student's legal rights and liberties, whether provided by federal or state law, shall be respected and observed at all times by law enforcement officers and School officials.

Contract for Sheriff Services

A county sheriff is permitted to enter into a contract with the School, to perform any police function, exercise any police power, or render any police service on behalf of the School.

Cross Reference: Policy No. **2610**, Building and Grounds Security; Policy No. **2620**, School Safety/Emergency Management Plan; Policy No. **2630** Crisis Management and Response Plan; Policy No. **2640** Emergency Evacuation Drills; Policy No. **2650** Weapons.

6140 – Student Fingerprinting

The Governing Authority recognizes that immediate access to student fingerprints is useful in situations involving an abducted or missing student. Accordingly, the School may provide a voluntary fingerprinting program for the protection of its students.

A voluntary fingerprinting program shall be carried out in cooperation with local law enforcement officials and shall be conducted in accordance with applicable state and federal law.

Participation in any School-sponsored fingerprinting program shall be strictly voluntary.

Cross Reference: Policy No. **3831**, Student Records and release of Information; Policy No. **3833**, Tracking Missing Children.

6200 – Media

Policy No. 6210

6210 – Media Relations

The Governing Authority recognizes that the media connects the School to the community. To preserve and foster this link, the Governing Authority seeks to develop a working relationship with all responsible news media representatives.

The Head Administrator is hereby granted the authority and the responsibility to develop and maintain this relationship. This responsibility includes, but is not limited to, the following duties:

- being available to representatives of the news media at appropriate and necessary times;
- keeping the media sources informed with respect to all School events, activities, and changes to ensure that all stories reported by the media are based on accurate information;
- contacting the media sources with stories and other information that may be of interest to the media source;
- assisting School-sponsored student groups with media relations;
- providing informational packets to media representatives who are in attendance at Governing Authority meetings; and
- establishing rules, guidelines, and procedures by which media demands are filtered to the Head Administrator so Staff members and other School employees may dedicate themselves to the duties and obligations of their positions.

To ensure clear communications, Staff members may not provide information or give interviews with the media unless permission is first obtained from the Head Administrator and all of the following occur:

- the interview or appointment is arranged at a time and location that does not interfere with the effective performance of the Staff member's or School employee's duties and responsibilities; and
- The Head Administrator is present during the entire interview and/or meeting.

Any photograph that is deemed to be of a controversial nature or that invades the privacy of any individual shall not be released to the news media.

The School reserves the right to negotiate and enter into a contract with any outside agency for the right to record and/or broadcast any School event, whether in audio or visual format, so long as the contract terms are competitive and beneficial to the School.

Cross-Reference: Policy No. **1510**, Public Meetings and Notification; Policy No. **1570**, Public Participation at Governing Authority Meetings; Policy No. **6220**, Crisis Media Management.

6220 – Crisis Media Management

In the event of a School Crisis, the School shall follow this policy when communicating with the media.

A School Crisis is defined to include any situation involving potential or actual danger, injury, or death to a student or group of students. Examples include, but are not limited to, a school bus accident, serious injury to a student, or student suicide.

In the event of a School Crisis, the Head Administrator shall be immediately notified of the situation and provided with as much information as possible including, but not limited to, the name of the student(s) involved and the details of the accident or injury.

The following procedures should be followed concerning the media:

- If the School Crisis warrants, the Head Administrator shall immediately proceed to the location of the School crisis to provide assistance and manage the media.
- A Staff member or other School employee shall be stationed near the site of the School Crisis to assist and direct parents and others seeking information.
- A specific area shall be designated for representatives of media sources. Representatives of media sources shall stay in the designated area and shall be prohibited from photographing, filming, or interviewing students who are involved in the School crisis.

In order to ensure an orderly flow of information to the media, one individual shall be designated as the spokesperson and shall be given the sole responsibility for providing information to media sources. No information about a School crisis shall be shared with the media sources until after the parents of the involved students have been notified, if possible. When interviewing or otherwise meeting with representatives of media sources, the spokesperson shall avoid revealing the type of extent of injuries involved.

Cross-Reference: Policy No. **2620**, School Safety/Emergency Management Plan; Policy No. **2630**, Crisis Management and Response Plan; Policy No. **2650**, Bomb Threats; Policy No. **5442**, School Safety; Policy No. **5443**, Reporting Accidents & Treating Injuries; Policy No. **6210**, Media Relations.